IMPORTANT NOTICE
THIS OFFERING IS AVAILABLE ONLY TO INVESTORS MEETING THE QUALIFICATIONS DESCRIBED IN THE ATTACHED PRIVATE PLACEMENT MEMORANDUM

IMPORTANT: You must read the following before continuing. The following applies to the private placement memorandum following this page (the "Private Placement Memorandum"), and you are therefore advised to read this carefully before reading, accessing or making any other use of the Private Placement Memorandum. In accessing the Private Placement Memorandum, you agree to be bound by the following terms and conditions, including any modifications to them any time you receive any information from us as a result of such access.

NOTHING IN THIS ELECTRONIC TRANSMISSION CONSTITUTES AN OFFER OF SECURITIES FOR SALE IN ANY JURISDICTION WHERE IT IS UNLAWFUL TO DO SO. THE NOTES HAVE NOT BEEN, AND WILL NOT BE, REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED, OR THE SECURITIES LAWS OF ANY STATE OR OTHER JURISDICTION, AND THE NOTES MAY NOT BE OFFERED OR SOLD EXCEPT PURSUANT TO AN EXEMPTION FROM, OR IN A TRANSACTION NOT SUBJECT TO, THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT OF 1933, AS AMENDED, AND APPLICABLE SECURITIES LAWS OF ANY STATE OR ANY OTHER JURISDICTION. THE ACQUISITION AND TRANSFER OF THE NOTES ARE SUBJECT TO ANY ADDITIONAL RESTRICTIONS DESCRIBED IN THE PRIVATE PLACEMENT MEMORANDUM.

EXCEPT AS OTHERWISE SET FORTH IN THE PRIVATE PLACEMENT MEMORANDUM, THE PRIVATE PLACEMENT MEMORANDUM MAY NOT BE FORWARDED OR DISTRIBUTED TO ANY OTHER PERSON AND MAY NOT BE REPRODUCED IN ANY MANNER WHATSOEVER. ANY FORWARDING, DISTRIBUTION OR REPRODUCTION OF THIS DOCUMENT IN WHOLE OR IN PART IS UNAUTHORIZED. FAILURE TO COMPLY WITH THIS DIRECTIVE MAY RESULT IN A VIOLATION OF THE SECURITIES ACT OF 1933, AS AMENDED, OR THE APPLICABLE LAWS OF OTHER JURISDICTIONS.

Confirmation of your Representation: In order to be eligible to view the Private Placement Memorandum, investors must either (i) be qualified institutional buyers (within the meaning of Rule 144A under the Securities Act of 1933, as amended) or (ii) solely in the case of the Rated Notes, not be "U.S. persons" (as defined in Regulation S under the Securities Act of 1933, as amended) in compliance with Regulation S under the Securities Act of 1933, as amended. The Private Placement Memorandum is being sent at your request and by accepting this e-mail and accessing the Private Placement Memorandum, you will be deemed to have represented to us that you are a qualified institutional buyer (within the meaning of Rule 144A under the Securities Act of 1933, as amended) or, solely in the case of the Rated Notes, not a "U.S. person" (as defined in Regulation S under the Securities Act of 1933, as amended) and that you consent to delivery of the Private Placement Memorandum by electronic transmission.

You are reminded that the Private Placement Memorandum has been delivered to you on the basis that you are a person into whose possession the Private Placement Memorandum may be lawfully delivered in accordance with the laws of the jurisdiction in which you are located and you may not, nor are you authorized to, deliver the Private Placement Memorandum to any other person.

The Private Placement Memorandum has been sent to you in an electronic form. You are reminded that documents transmitted via this medium may be altered or changed during the process of electronic transmission and consequently none of the Structuring Agent or the Initial Purchasers or any person who controls the Structuring Agent or an Initial Purchaser or any director, officer, employee or agent of the Structuring Agent or an Initial Purchaser or any affiliate of any such person accepts any liability or responsibility whatsoever in respect of any difference between the Private Placement Memorandum distributed to you in electronic format and the hard copy version available to you on request from the Structuring Agent and the Initial Purchasers.

THIS PRIVATE PLACEMENT MEMORANDUM IS STRICTLY CONFIDENTIAL AND NOT TO BE PRINTED OR REPRODUCED IN ANY MANNER WHATSOEVER WITHOUT THE CONSENT OF THE STRUCTURING AGENT AND THE INITIAL PURCHASERS. FAILURE TO COMPLY WITH THIS DIRECTIVE MAY RESULT IN A VIOLATION OF THE SECURITIES ACT OF 1933, AS AMENDED.

ACHV ABS TRUST 2024-2PL

Issuer

$263,450,000

ASSET-BACKED NOTES

(consisting of $263,350,000 aggregate principal amount of Rated Notes and $100,000 notional amount of Class R Notes or exchangeable combinations thereof)

Class	Maximum Initial Amount (1)	Interest Rate	Final Maturity Date	Ratings (DBRS/KBRA)
Class A Notes(2)	$126,581,000	5.07%	October 27, 2031	AAA (sf) / AAA (sf)
Class B Notes(2)	$62,364,000	5.43%	October 27, 2031	AA (low) (sf) / AA- (sf)
Class C Notes(2)	$34,578,000	5.72%	October 27, 2031	A (low) (sf) / A- (sf)
Class D Notes(2)	$39,827,000	6.40%	October 27, 2031	Not Rated / BBB- (sf)
Class R Notes(2)(3)	$100,000(5)	N/A	N/A	Not Rated / Not Rated
Class AB Notes(4)	$188,945,000	(7)	October 27, 2031	Not Rated / Not Rated
Class ABC Notes(4)	$223,523,000	(7)	October 27, 2031	Not Rated / Not Rated
Class ABCD Notes(4)	$263,350,000	(7)	October 27, 2031	Not Rated / Not Rated
Class PT Notes(4)	$263,450,000 (6)	(7)	(8)	Not Rated / Not Rated

(1) The Notes that are being offered by this Private Placement Memorandum will consist of up to $126,581,000 principal amount of the Class A Notes, up to $62,364,000 principal amount of the Class B Notes, up to $34,578,000 principal amount of the Class C Notes, up to $39,827,000 principal amount of the Class D Notes, up to $100,000 notional amount of the Class R Notes, up to $188,945,000 principal amount of the Class AB Notes, up to $223,523,000 principal amount of the Class ABC Notes, up to $263,350,000 principal amount of the Class ABCD Notes and up to $263,450,000 Face Amount (defined below) of the Class PT Notes. On the Closing Date, the Retaining Sponsor or its Affiliate will retain at least 5% of the initial principal balance of each Class of Rated Notes (defined below) and at least 5% of the initial notional amount of the Class R Notes (which holding, in each case, may include Exchangeable Notes representing an interest in the corresponding Exchange Notes) for purposes of the U.S. Risk Retention Rules. The initial Aggregate Principal Balance of the Rated Notes will be $100,000 less than the initial Face Amount of the Class PT Notes.

(2) This Class of Notes is a Class of Exchange Notes. On the Closing Date, either Exchange Notes or Exchangeable Notes or a combination thereof may be issued and, subject to the limitations described herein, any such Exchange Notes may generally be exchanged thereafter for the corresponding Exchangeable Notes, and vice versa, in each case as and to the extent described herein. See "*Description of the Notes—Exchange Notes and Exchangeable Notes*" and "*Schedule III: Exchangeable Combinations*" herein. No exchange fee will be required to be paid to the Paying Agent in connection with any Exchange Notes issued on the Closing Date, but a $5,000 exchange fee will be required for each exchange request made after the Closing Date.

(3) The Class R Notes will represent undivided interests in the residual interest in the Trust Estate. To the extent that the proceeds from the assets of the Issuer are insufficient to pay all amounts senior in the priority of payments described in "*Application of Available Funds*" in this Private Placement Memorandum on any Distribution Date, the Issuer will have no obligation to pay any further amount in respect of the Class R Notes.

(4) This Class of Notes is a Class of Exchangeable Notes. On the Closing Date, either Exchange Notes or Exchangeable Notes or a combination thereof may be issued and, subject to the limitations described herein, any such Exchangeable Notes may generally be exchanged thereafter for the corresponding Exchange Notes, and vice versa, in each case as and to the extent described herein. See "*Description of the Notes—Exchange Notes and Exchangeable Notes*" and "*Schedule III: Exchangeable Combinations*" herein. To the extent Exchangeable Notes are issued on the Closing Date, Exchange Notes with an aggregate principal amount (and, in the case of Class R Notes, notional amount) equal to the principal amount (and, in the case of Class PT Notes, Face Amount) of the Exchangeable Notes as of the Closing Date will be deemed to have been exchanged for such Exchangeable Notes on the Closing Date in a permissible exchange combination described in Schedule III. No exchange fee will be required to be paid to the Paying Agent in connection with any Exchangeable Notes issued on the Closing Date, but a $5,000 exchange fee will be required for each exchange request made after the Closing Date. The Class of Exchangeable Notes will be entitled to the interest, principal and other payments of the corresponding Exchange Notes represented thereby, and any shortfalls of interest allocable to the Exchange Notes will be borne proportionately by the Class of Exchangeable Notes.

(5) This is a notional amount that is not intended to approximate the offering price or value of the Class R Notes.

(6) The amount listed for the Class PT Notes represents the maximum initial Face Amount of Class PT Notes as of the Closing Date, where "Face Amount" means the sum of the principal amount of Rated Notes and the notional amount of Class R Notes represented by the Class PT Notes. If no Class PT Notes are issued on the Closing Date, the Class PT Notes will have an initial Face Amount of $0.

(7) The interest rate on this Class of Notes for any Interest Period represents the weighted average of the interest rates on the Classes of the corresponding Exchange Notes that are Rated Notes based upon the Note Balance of each Class of such Exchange Notes for such Interest Period.

(8) The maturity date of this Class of Notes represents the maturity date of each constituent Class of Exchange Notes other than the Class R Notes.

ACHV ABS
Master Depositor Trust
Depositor

Jefferies LLC
Sponsor

Freedom Financial
Asset Management, LLC d/b/a
Achieve Personal Loans
Servicer and Sponsor

ACHV ABS Trust 2024-2PL, a Delaware statutory trust (the "Trust" or the "Issuer"), will issue its Class A Asset-Backed Notes (the "Class A Notes"), its Class B Asset-Backed Notes (the "Class B Notes"), its Class C Asset-Backed Notes (the "Class C Notes"), its Class D Asset-Backed Notes (the "Class D Notes" and, together with the Class A Notes, the Class B Notes and the Class C Notes, the "Rated Notes"), its Class R Asset-Backed Notes (the "Class R Notes" and, together with the Rated Notes, the "Exchange Notes"), its Class AB Asset-Backed Notes (the "Class AB Notes"), its Class ABC Asset-Backed Notes (the "Class ABC Notes"), its Class ABCD Asset-Backed Notes (the "Class ABCD Notes") and its Class PT Asset-Backed Notes (the "Class PT Notes" and, together with the Class AB Notes, the Class ABC Notes and the Class ABCD Notes, the "Exchangeable Notes" and, the Exchangeable Notes together with the Exchange Notes, the "Notes") pursuant to an indenture, as further described herein. The initial Outstanding Amount of the Rated Notes will equal $263,350,000.

The Notes will be secured by the assets of the Issuer and ACHV ABS Grantor Trust 2024-2PL (the "Grantor Trust"), which will consist primarily of (i) a pool of unsecured consumer loans that were originated by Partner Banks under the Achieve Personal Loan Program (formerly known as the FreedomPlus (F+) loan program, the "Achieve Personal Loan Program", and loans originated under the Achieve Personal Loan Program being "Achieve Personal Loans") established pursuant to Bank Program Agreements each between a Partner Bank and Freedom Financial Asset Management, LLC ("FFAM"), d/b/a Achieve Personal Loans ("APL") and acquired by the Issuer and contributed to the Grantor Trust and (ii) monies, if any, on deposit in the Payment Account and the Reserve Fund. The assets of the Issuer and the Grantor Trust are the sole source of payments on the Notes. The Notes will represent obligations of the Issuer only, and of no other person or entity.

The Notes are subject to redemption under the circumstances described herein. See "*Description of the Notes—Optional Redemption*" herein. Distributions on the Notes will be made on the 25th day of each month, or, if not a Business Day, then on the next Business Day, beginning on the Initial Distribution Date.

Prospective investors should consider carefully the risk factors beginning on page 20.

Neither the Securities and Exchange Commission nor any state securities commission has approved or disapproved these securities or determined that this private placement memorandum (this "Private Placement Memorandum") is accurate or complete. Any representation to the contrary is a criminal offense.

THE NOTES HAVE NOT BEEN AND WILL NOT BE REGISTERED UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE "SECURITIES ACT") OR REGISTERED OR QUALIFIED UNDER ANY APPLICABLE STATE SECURITIES LAWS AND THE NOTES MAY NOT BE OFFERED AND SOLD EXCEPT (A) TO PERSONS THAT ARE "QUALIFIED INSTITUTIONAL BUYERS" (AS DEFINED IN RULE 144A UNDER THE SECURITIES ACT ("RULE 144A")) IN TRANSACTIONS COMPLYING WITH RULE 144A OR (B) SOLELY WITH RESPECT TO THE RATED NOTES, OUTSIDE THE UNITED STATES TO ENTITIES WHICH ARE NOT "U.S. PERSONS" (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT ("REGULATION S")) IN TRANSACTIONS COMPLYING WITH REGULATION S (EXCEPT, IN EACH CASE, IN CONNECTION WITH THE INITIAL PLACEMENT OF THE NOTES). ANY RESALE OR TRANSFER OF THE NOTES WILL BE SUBJECT TO CERTAIN RESTRICTIONS AS DESCRIBED UNDER "NOTICE TO INVESTORS/TRANSFER RESTRICTIONS."

Each of the Issuer and the Grantor Trust will be relying on an exemption from the definition of "investment company" under the Investment Company Act of 1940, as amended (the "Investment Company Act"), contained in Rule 3a-7 promulgated under the Investment Company Act, although there may be additional exemptions or exceptions available. Each of the Issuer and the Grantor Trust is being structured so as not to constitute a "covered fund" for purposes of the Volcker Rule under the Dodd-Frank Act (each as defined in this Private Placement Memorandum).

Jefferies LLC ("Jefferies"), Barclays Capital Inc. ("Barclays") and CRB Securities LLC ("CRB Securities") will act as initial purchasers for the Rated Notes and Exchangeable Notes corresponding solely to Rated Notes and Morgan Stanley & Co. LLC ("Morgan Stanley") will act as an initial purchaser for all Classes of Notes (Jefferies, Barclays, CRB Securities and Morgan Stanley, collectively, the "Initial Purchasers"). The Initial Purchasers will purchase from the Issuer only the Notes for which investors have entered into agreements to purchase from the Initial Purchasers. The Initial Purchasers have advised the Issuer that they propose to place such acquired Notes privately from time to time in negotiated transactions at varying prices to be determined in each case at the time of sale, and subject to the right of the Initial Purchasers to withdraw, cancel or modify any offer and to reject any order in whole or in part. Jefferies will act as structuring agent (in such capacity, the "Structuring Agent") for the Notes. It is expected that delivery of the Notes will be made through The Depository Trust Company ("DTC") in the United States on a date expected to be on or about August 29, 2024 (such date, the "Closing Date"), against payment therefor in same-day funds.

Jefferies	**Morgan Stanley**	**Barclays**	**CRB Securities**
Structuring Agent, Rated Notes Initial Purchaser and Joint Bookrunner	*Initial Purchaser and Joint Bookrunner*	*Rated Notes Initial Purchaser and Joint Bookrunner*	*Rated Notes Initial Purchaser and Joint Bookrunner*

The date of this Private Placement Memorandum is August 21, 2024

INTRODUCTORY NOTE

Confidential information. This Private Placement Memorandum is confidential. The Issuer has prepared this Private Placement Memorandum solely in connection with an offering that is exempt from the registration requirements of the Securities Act. It is intended for the benefit of prospective investors qualified to purchase Notes in such an exempt transaction. The Issuer is submitting this Private Placement Memorandum to prospective investors solely for their information in connection with their consideration of a purchase of Notes in this offering. The Issuer has not authorized the use of this Private Placement Memorandum for any other purpose. Prospective investors may not copy or distribute this Private Placement Memorandum or disclose its contents to any person unless it has been submitted by the Issuer to that person.

Information furnished. The Issuer has furnished the information contained in this Private Placement Memorandum based on its own knowledge and other sources that the Issuer believes are reliable. Neither the Structuring Agent nor any Initial Purchaser has independently verified any of this information, makes any representation or warranty, express or implied, as to the accuracy or completeness of the information contained in this Private Placement Memorandum, or assumes any responsibility for any error or omission contained herein. Nothing in this Private Placement Memorandum shall be deemed to constitute, or may be relied upon as, a representation or warranty by the Structuring Agent or any Initial Purchaser or any promise or representation as to the past or future performance of the Issuer, the Grantor Trust, either Sponsor, the Servicer, the Backup Servicer, the Backup Servicer Subcontractor, the Collateral Agent, the Administrator, any Partner Bank, or any other person or the Loans.

This Private Placement Memorandum contains summaries of certain documents. The Issuer qualifies all summaries by reference to the actual documents.

None of the Issuer, the Grantor Trust, the Depositor, either Sponsor, the Indenture Trustee, the Collateral Agent, the Owner Trustee, the Grantor Trust Trustee, the Note Registrar, the Issuer Certificate Registrar, the Paying Agent, the Backup Servicer, the Backup Servicer Subcontractor, the Grantor Trust Certificate Registrar, the Administrator, any Partner Bank, the Structuring Agent or any Initial Purchaser has authorized any person to give any information or make any representation that is different from what is contained in this Private Placement Memorandum and prospective investors should not rely on any such information or representation. In addition, unless specifically stated that information is as of a certain date, the information in this Private Placement Memorandum is as of the date of this Private Placement Memorandum. Neither the subsequent delivery of this Private Placement Memorandum nor any sale of the Notes implies that there has not been any change in the affairs of the Issuer, the Sponsors, the Servicer or the Grantor Trust or the information presented here after the date of this Private Placement Memorandum. Prospective investors should direct all inquiries concerning this offering or the other information in this Private Placement Memorandum to the Structuring Agent and the Initial Purchasers.

No advice furnished. This Private Placement Memorandum does not contain investment, legal or tax advice to prospective investors. Prospective investors should consult their own counsel, accountant and other advisors regarding the legal, tax, business and financial and related aspects of a purchase of Notes. None of the Issuer, the Structuring Agent or the Initial Purchasers are making any representation to prospective investors regarding the legality of an investment in the Notes.

Obligations of the Issuer and the Initial Purchasers. The Issuer reserves the right to withdraw this offering at any time. The Issuer and the Initial Purchasers reserve the right to reject any commitment to purchase the Notes in whole or in part or to sell less than all of the Notes offered hereby.

Certain legal restrictions. The distribution of this Private Placement Memorandum and the sale of the Notes may be restricted by law in some jurisdictions. Prospective investors must inform themselves about, and observe, any of these restrictions. Prospective investors must comply with all applicable laws and regulations in any jurisdiction in which they purchase, offer or sell the Notes or in which they distribute this Private Placement Memorandum. Prospective investors must obtain any consent, approval or permission required in these jurisdictions for any of these activities. None of the Issuer, the Structuring Agent or the Initial Purchasers are responsible for compliance with any of these laws or regulations.

THE INFORMATION IN THIS PRIVATE PLACEMENT MEMORANDUM SUPERSEDES IN ITS ENTIRETY ANY INFORMATION CONTAINED IN ANY PRIOR PRIVATE PLACEMENT MEMORANDUM AND ANY OTHER DISCLOSURE, DESCRIPTION OR STATISTICAL INFORMATION RELATING TO THE

NOTES THAT PROSPECTIVE INVESTORS MAY HAVE RECEIVED. PROSPECTIVE INVESTORS SHOULD RELY ONLY ON THE INFORMATION IN THIS PRIVATE PLACEMENT MEMORANDUM IN MAKING THEIR INVESTMENT DECISION.

NOTICE TO INVESTORS: UNITED KINGDOM

PROHIBITION ON SALES TO UK RETAIL INVESTORS

THE NOTES ARE NOT INTENDED TO BE OFFERED, SOLD OR OTHERWISE MADE AVAILABLE TO, AND SHOULD NOT BE OFFERED, SOLD OR OTHERWISE MADE AVAILABLE TO, ANY UK RETAIL INVESTOR IN THE UNITED KINGDOM (THE "UK"). FOR THESE PURPOSES, THE EXPRESSION "UK RETAIL INVESTOR" MEANS A PERSON WHO IS ONE (OR MORE) OF THE FOLLOWING: (I) A RETAIL CLIENT, AS DEFINED IN POINT (8) OF ARTICLE 2 OF COMMISSION DELEGATED REGULATION (EU) 2017/565, AS IT FORMS PART OF UK DOMESTIC LAW BY VIRTUE OF THE EUROPEAN UNION (WITHDRAWAL) ACT 2018 (AS AMENDED, THE "EUWA") AND AS AMENDED; (II) A CUSTOMER WITHIN THE MEANING OF THE PROVISIONS OF THE FINANCIAL SERVICES AND MARKETS ACT 2000 (AS AMENDED, THE "FSMA") AND ANY RULES OR REGULATIONS MADE UNDER THE FSMA (SUCH RULES AND REGULATIONS AS AMENDED) TO IMPLEMENT DIRECTIVE (EU) 2016/97, WHERE THAT CUSTOMER WOULD NOT QUALIFY AS A PROFESSIONAL CLIENT, AS DEFINED IN POINT (8) OF ARTICLE 2(1) OF REGULATION (EU) NO 600/2014, AS IT FORMS PART OF UK DOMESTIC LAW BY VIRTUE OF THE EUWA AND AS AMENDED; OR (III) NOT A QUALIFIED INVESTOR (A "UK QUALIFIED INVESTOR"), AS DEFINED IN ARTICLE 2 OF REGULATION (EU) 2017/1129, AS IT FORMS PART OF UK DOMESTIC LAW BY VIRTUE OF THE EUWA AND AS AMENDED (THE "UK PROSPECTUS REGULATION").

CONSEQUENTLY, NO KEY INFORMATION DOCUMENT REQUIRED BY REGULATION (EU) NO 1286/2014, AS IT FORMS PART OF UK DOMESTIC LAW BY VIRTUE OF THE EUWA AND AS AMENDED (THE "UK PRIIPS REGULATION") FOR OFFERING OR SELLING THE NOTES OR OTHERWISE MAKING THEM AVAILABLE TO UK RETAIL INVESTORS IN THE UK HAS BEEN PREPARED; AND THEREFORE OFFERING OR SELLING THE NOTES OR OTHERWISE MAKING THEM AVAILABLE TO ANY UK RETAIL INVESTOR IN THE UK MAY BE UNLAWFUL UNDER THE UK PRIIPS REGULATION.

OTHER UNITED KINGDOM OFFERING RESTRICTIONS

THIS PRIVATE PLACEMENT MEMORANDUM IS NOT A PROSPECTUS FOR THE PURPOSES OF THE UK PROSPECTUS REGULATION. THIS PRIVATE PLACEMENT MEMORANDUM HAS BEEN PREPARED ON THE BASIS THAT ANY OFFER OF NOTES IN THE UK WILL ONLY BE MADE TO A LEGAL ENTITY WHICH IS A UK QUALIFIED INVESTOR. ACCORDINGLY, ANY PERSON MAKING OR INTENDING TO MAKE AN OFFER IN THE UK OF NOTES WHICH ARE THE SUBJECT OF THE OFFERING CONTEMPLATED IN THIS PRIVATE PLACEMENT MEMORANDUM MAY ONLY DO SO WITH RESPECT TO UK QUALIFIED INVESTORS. NONE OF THE ISSUER, THE STRUCTURING AGENT OR ANY INITIAL PURCHASER HAS AUTHORIZED, NOR DO THEY AUTHORIZE, THE MAKING OF ANY OFFER OF NOTES IN THE UK OTHER THAN TO UK QUALIFIED INVESTORS.

UK MIFIR PRODUCT GOVERNANCE

ANY DISTRIBUTOR SUBJECT TO THE FCA HANDBOOK PRODUCT INTERVENTION AND PRODUCT GOVERNANCE SOURCEBOOK (THE "UK MIFIR PRODUCT GOVERNANCE RULES") THAT IS OFFERING, SELLING OR RECOMMENDING THE NOTES IS RESPONSIBLE FOR UNDERTAKING ITS OWN TARGET MARKET ASSESSMENT IN RESPECT OF THE NOTES AND DETERMINING APPROPRIATE DISTRIBUTION CHANNELS. NONE OF THE ISSUER, THE OWNER TRUSTEE, THE DEPOSITOR TRUSTEE, THE DEPOSITOR, EITHER SPONSOR OR (EXCEPT AS REGARDS ITSELF OR AGENTS ACTING ON ITS BEHALF, TO THE EXTENT THAT THE UK MIFIR PRODUCT GOVERNANCE RULES APPLY TO THE STRUCTURING AGENT OR TO THE RELEVANT INITIAL PURCHASER) THE STRUCTURING AGENT OR ANY INITIAL PURCHASER MAKE ANY REPRESENTATIONS OR WARRANTIES AS TO A DISTRIBUTOR'S COMPLIANCE WITH THE UK MIFIR PRODUCT GOVERNANCE RULES.

OTHER UNITED KINGDOM REGULATORY RESTRICTIONS

IN THE UK, THIS PRIVATE PLACEMENT MEMORANDUM IS BEING DISTRIBUTED ONLY TO AND IS DIRECTED ONLY AT: (I) PERSONS WHO HAVE PROFESSIONAL EXPERIENCE IN MATTERS RELATING TO INVESTMENTS AND WHO FALL WITHIN ARTICLE 19(5) OF THE FINANCIAL SERVICES AND MARKETS ACT 2000 (FINANCIAL PROMOTION) ORDER 2005 (AS AMENDED, THE "FINANCIAL PROMOTION ORDER"); (II) PERSONS WHO FALL WITHIN ARTICLE 49(2)(A) TO (D) OF THE FINANCIAL PROMOTION ORDER; OR (III) PERSONS TO WHOM IT MAY OTHERWISE LAWFULLY BE COMMUNICATED (ALL SUCH PERSONS TOGETHER BEING REFERRED TO AS "RELEVANT PERSONS"). THIS PRIVATE PLACEMENT MEMORANDUM MUST NOT BE ACTED ON OR RELIED ON IN THE UK BY PERSONS WHO ARE NOT RELEVANT PERSONS. IN THE UK, ANY INVESTMENT OR INVESTMENT ACTIVITY TO WHICH THIS PRIVATE PLACEMENT MEMORANDUM RELATES, INCLUDING THE NOTES, IS AVAILABLE ONLY TO RELEVANT PERSONS AND WILL BE ENGAGED IN ONLY WITH RELEVANT PERSONS.

NOTICE TO INVESTORS: EUROPEAN ECONOMIC AREA

PROHIBITION ON SALES TO EU RETAIL INVESTORS

THE NOTES ARE NOT INTENDED TO BE OFFERED, SOLD OR OTHERWISE MADE AVAILABLE TO, AND SHOULD NOT BE OFFERED, SOLD OR OTHERWISE MADE AVAILABLE TO, ANY EU RETAIL INVESTOR IN THE EUROPEAN ECONOMIC AREA (THE "EEA"). FOR THESE PURPOSES, AN "EU RETAIL INVESTOR" MEANS A PERSON WHO IS ONE (OR MORE) OF THE FOLLOWING: (I) A RETAIL CLIENT, AS DEFINED IN POINT (11) OF ARTICLE 4(1) OF DIRECTIVE 2014/65/EU (AS AMENDED, "MIFID II"); (II) A CUSTOMER WITHIN THE MEANING OF DIRECTIVE (EU) 2016/97 (AS AMENDED), WHERE THAT CUSTOMER WOULD NOT QUALIFY AS A PROFESSIONAL CLIENT, AS DEFINED IN POINT (10) OF ARTICLE 4(1) OF MIFID II; OR (III) NOT A QUALIFIED INVESTOR (AN "EU QUALIFIED INVESTOR"), AS DEFINED IN ARTICLE 2 OF REGULATION (EU) 2017/1129 (AS AMENDED, THE "EU PROSPECTUS REGULATION").

CONSEQUENTLY, NO KEY INFORMATION DOCUMENT REQUIRED BY REGULATION (EU) NO 1286/2014 (AS AMENDED, THE "EU PRIIPS REGULATION") FOR OFFERING OR SELLING THE NOTES OR OTHERWISE MAKING THEM AVAILABLE TO EU RETAIL INVESTORS IN THE EEA HAS BEEN PREPARED; AND THEREFORE, OFFERING OR SELLING THE NOTES OR OTHERWISE MAKING THEM AVAILABLE TO ANY EU RETAIL INVESTOR IN THE EEA MAY BE UNLAWFUL UNDER THE EU PRIIPS REGULATION.

OTHER EEA OFFERING RESTRICTIONS

THIS PRIVATE PLACEMENT MEMORANDUM IS NOT A PROSPECTUS FOR THE PURPOSES OF THE EU PROSPECTUS REGULATION. THIS PRIVATE PLACEMENT MEMORANDUM HAS BEEN PREPARED ON THE BASIS THAT ANY OFFER OF NOTES IN THE EEA WILL ONLY BE MADE TO A LEGAL ENTITY WHICH IS AN EU QUALIFIED INVESTOR. ACCORDINGLY, ANY PERSON MAKING OR INTENDING TO MAKE AN OFFER IN THE EEA OF NOTES WHICH ARE THE SUBJECT OF THE OFFERING CONTEMPLATED IN THIS PRIVATE PLACEMENT MEMORANDUM MAY ONLY DO SO WITH RESPECT TO EU QUALIFIED INVESTORS. NONE OF THE ISSUER, THE STRUCTURING AGENT OR ANY INITIAL PURCHASER HAS AUTHORIZED, NOR DO THEY AUTHORIZE, THE MAKING OF ANY OFFER OF NOTES IN THE EEA OTHER THAN TO EU QUALIFIED INVESTORS.

MIFID II PRODUCT GOVERNANCE

ANY DISTRIBUTOR SUBJECT TO MIFID II THAT IS OFFERING, SELLING OR RECOMMENDING THE NOTES IS RESPONSIBLE FOR UNDERTAKING ITS OWN TARGET MARKET ASSESSMENT IN RESPECT OF THE NOTES AND DETERMINING APPROPRIATE DISTRIBUTION CHANNELS FOR THE PURPOSES OF THE MIFID II PRODUCT GOVERNANCE RULES UNDER COMMISSION DELEGATED DIRECTIVE (EU) 2017/593 (AS AMENDED, THE "EU DELEGATED DIRECTIVE"). NONE OF THE ISSUER, THE OWNER TRUSTEE, THE DEPOSITOR TRUSTEE, THE DEPOSITOR, EITHER SPONSOR OR (EXCEPT

AS REGARDS ITSELF OR AGENTS ACTING ON ITS BEHALF, TO THE EXTENT THAT MIFID II APPLIES TO THE STRUCTURING AGENT OR TO THE RELEVANT INITIAL PURCHASER) THE STRUCTURING AGENT OR ANY INITIAL PURCHASER MAKE ANY REPRESENTATIONS OR WARRANTIES AS TO A DISTRIBUTOR'S COMPLIANCE WITH THE EU DELEGATED DIRECTIVE.

EU SECURITIZATION REGULATION AND UK SECURITIZATION REGULATION

NONE OF THE PARTIES TO THE TRANSACTION CONTEMPLATED BY THIS PRIVATE PLACEMENT MEMORANDUM NOR ANY OF THEIR RESPECTIVE AFFILIATES UNDERTAKES, OR INTENDS, TO RETAIN A MATERIAL NET ECONOMIC INTEREST IN SUCH TRANSACTION, OR TO TAKE ANY OTHER ACTION WITH REGARD TO SUCH TRANSACTION, IN A MANNER PRESCRIBED OR CONTEMPLATED BY THE EU SECURITIZATION REGULATION OR THE UK SECURITIZATION REGULATION (AS EACH SUCH TERM IS DEFINED BELOW). IN PARTICULAR, NO SUCH PARTY UNDERTAKES TO TAKE ANY ACTION, OR REFRAIN FROM TAKING ANY ACTION, FOR PURPOSES OF, OR IN CONNECTION WITH, COMPLIANCE BY ANY PROSPECTIVE INVESTOR (OR ANY OTHER PERSON) WITH ANY APPLICABLE REQUIREMENT THEREOF. IN ADDITION, THE ARRANGEMENTS DESCRIBED UNDER "*U.S. CREDIT RISK RETENTION*" HAVE NOT BEEN STRUCTURED WITH THE OBJECTIVE OF ENSURING COMPLIANCE BY ANY PERSON WITH ANY APPLICABLE REQUIREMENT OF THE EU SECURITIZATION REGULATION OR THE UK SECURITIZATION REGULATION. CONSEQUENTLY, THE NOTES MAY NOT BE A SUITABLE INVESTMENT FOR ANY PERSON THAT IS SUBJECT TO THE EU SECURITIZATION REGULATION OR THE UK SECURITIZATION REGULATION; AND THIS MAY, AMONGST OTHER THINGS, HAVE A NEGATIVE IMPACT ON THE VALUE AND LIQUIDITY OF THE NOTES, AND OTHERWISE AFFECT THE SECONDARY MARKET FOR THE NOTES.

IN ADDITION, NONE OF THE PARTIES TO THE TRANSACTION CONTEMPLATED BY THIS PRIVATE PLACEMENT MEMORANDUM NOR ANY OF THEIR RESPECTIVE AFFILIATES INTENDS, AT ANY TIME, TO TAKE ANY ACTION IN RESPECT OF SUCH TRANSACTION FOR PURPOSES OF, OR IN CONNECTION WITH, ANY PERSON'S COMPLIANCE WITH ANY FUTURE UK SECURITIZATION RULES (AS DEFINED BELOW).

SEE "*RISK FACTORS – RISKS PRIMARILY RELATED TO THE NOTES AND THE ISSUER–RISKS ASSOCIATED WITH SECURITIZATION AND RISK RETENTION REQUIREMENTS*".

IMPORTANT NOTICE ABOUT INFORMATION IN THIS PRIVATE PLACEMENT MEMORANDUM.

THE NOTES ARE OBLIGATIONS OF THE ISSUER ONLY AND DO NOT REPRESENT OBLIGATIONS OF ANY OTHER PERSON OR ENTITY. THE NOTES ARE NOT INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY, OR BY ANY OTHER PERSON OR ENTITY. THE NOTES ARE PAYABLE SOLELY FROM THE ASSETS OF THE ISSUER AND THE GRANTOR TRUST, AND PROSPECTIVE INVESTORS SHOULD MAKE AN INVESTMENT DECISION BASED UPON AN ANALYSIS OF THE SUFFICIENCY OF SUCH ASSETS.

THIS PRIVATE PLACEMENT MEMORANDUM HAS BEEN PREPARED FROM INFORMATION FURNISHED BY THE ISSUER AND FROM OTHER SOURCES, INCLUDING, WITH RESPECT TO THE INFORMATION RELATED TO THE U.S. CREDIT RISK RETENTION REQUIREMENTS, THE SPONSORS. NOTWITHSTANDING ANY INVESTIGATION THAT THE STRUCTURING AGENT AND/OR THE INITIAL PURCHASERS MAY HAVE CONDUCTED WITH RESPECT TO THE INFORMATION CONTAINED HEREIN, NEITHER THE STRUCTURING AGENT NOR THE INITIAL PURCHASERS MAKE ANY REPRESENTATION OR WARRANTY AS TO THE ACCURACY OR COMPLETENESS OF SUCH INFORMATION. NOTHING HEREIN SHALL BE DEEMED TO CONSTITUTE SUCH A REPRESENTATION OR WARRANTY AS TO THE FUTURE PERFORMANCE OF THE ISSUER, THE GRANTOR TRUST, THE SPONSORS, THE SERVICER, THE ADMINISTRATOR, ANY PARTNER BANK, THE BACKUP SERVICER, THE BACKUP SERVICER SUBCONTRACTOR, THE PAYING AGENT, THE COLLATERAL AGENT, THE OWNER TRUSTEE, THE INDENTURE TRUSTEE OR THE NOTES. THE DELIVERY OF THIS PRIVATE PLACEMENT MEMORANDUM AT ANY TIME DOES NOT IMPLY THAT THE INFORMATION HEREIN IS CORRECT AS OF ANY TIME SUBSEQUENT TO THE DATE OF THIS PRIVATE PLACEMENT MEMORANDUM.

NOTWITHSTANDING ANY INVESTIGATION THAT THE ISSUER, THE DEPOSITOR, THE STRUCTURING AGENT, THE INITIAL PURCHASERS OR THEIR RESPECTIVE AFFILIATES OR ADVISORS MAY HAVE CONDUCTED WITH RESPECT TO THE INFORMATION CONCERNING THE SPONSORS, THE ADMINISTRATOR, THE SERVICER, ANY PARTNER BANK, THE BACKUP SERVICER, THE BACKUP SERVICER SUBCONTRACTOR, THE COLLATERAL AGENT, THE NOTE REGISTRAR, THE ISSUER CERTIFICATE REGISTRAR, THE PAYING AGENT, THE OWNER TRUSTEE, THE GRANTOR TRUST TRUSTEE OR THE INDENTURE TRUSTEE, NONE OF THE ISSUER, THE DEPOSITOR, THE STRUCTURING AGENT, THE INITIAL PURCHASERS OR THEIR RESPECTIVE AFFILIATES OR ADVISORS MAKES ANY REPRESENTATION OR WARRANTY AS TO THE ACCURACY OR COMPLETENESS OF SUCH INFORMATION. NOTHING HEREIN SHALL BE DEEMED TO CONSTITUTE SUCH A REPRESENTATION OR WARRANTY AS TO THE FUTURE PERFORMANCE OF THE ISSUER, THE GRANTOR TRUST, THE SPONSORS, THE SERVICER, THE ADMINISTRATOR, ANY PARTNER BANK, THE BACKUP SERVICER, THE BACKUP SERVICER SUBCONTRACTOR, THE PAYING AGENT, THE COLLATERAL AGENT, THE OWNER TRUSTEE, THE INDENTURE TRUSTEE OR THE NOTES.

NO PERSON HAS BEEN AUTHORIZED TO GIVE ANY INFORMATION OR TO MAKE ANY REPRESENTATION CONCERNING THE NOTES OTHER THAN THE INFORMATION HEREIN. NONE OF THE ISSUER, THE STRUCTURING AGENT OR THE INITIAL PURCHASERS TAKE RESPONSIBILITY FOR, AND NONE OF THEM CAN PROVIDE ANY ASSURANCES AS TO THE RELIABILITY OF, ANY OTHER INFORMATION OR REPRESENTATIONS THAT PROSPECTIVE INVESTORS OBTAIN ELSEWHERE.

THE INFORMATION CONTAINED IN THIS PRIVATE PLACEMENT MEMORANDUM IS FURNISHED ON A CONFIDENTIAL BASIS AND MAY NOT BE REPRODUCED IN WHOLE OR IN PART.

THIS PRIVATE PLACEMENT MEMORANDUM IS PERSONAL TO THE PROSPECTIVE INVESTOR AND HAS BEEN PREPARED SOLELY FOR USE IN CONNECTION WITH THE OFFERING OF THE NOTES. DELIVERY OF THIS PRIVATE PLACEMENT MEMORANDUM TO ANY PERSON OTHER THAN THE PROSPECTIVE INVESTOR AND THOSE PERSONS, IF ANY, RETAINED TO ADVISE SUCH PROSPECTIVE INVESTOR WITH RESPECT TO THE POSSIBLE OFFER AND SALE OF THE NOTES IS UNAUTHORIZED, AND ANY DISCLOSURE OF ANY OF ITS CONTENTS IS STRICTLY PROHIBITED. A PROSPECTIVE INVESTOR SHALL NOT BE ENTITLED TO, AND MUST NOT RELY ON, THIS PRIVATE PLACEMENT MEMORANDUM UNLESS IT WAS FURNISHED TO SUCH PROSPECTIVE INVESTOR DIRECTLY BY THE ISSUER OR ITS AGENTS (INCLUDING, FOR SUCH PURPOSE, THE STRUCTURING AGENT AND THE INITIAL PURCHASERS). EACH PROSPECTIVE INVESTOR, BY ACCEPTING DELIVERY OF THIS PRIVATE PLACEMENT MEMORANDUM, AGREES (i) TO COMPLY WITH THE FOREGOING, (ii) NOT TO MAKE COPIES OF THIS PRIVATE PLACEMENT MEMORANDUM, (iii) NOT TO FURNISH THIS PRIVATE PLACEMENT MEMORANDUM, ITS CONTENTS OR ANY OF THE BASIC DOCUMENTS (AS DEFINED HEREIN) TO ANY OTHER PERSON (OTHER THAN ITS ADVISERS AS AFORESAID) AND (iv) TO RETURN THIS PRIVATE PLACEMENT MEMORANDUM TO THE ISSUER, THE STRUCTURING AGENT OR THE INITIAL PURCHASERS IMMEDIATELY UPON REQUEST.

EACH PURCHASER OF NOTES MUST COMPLY WITH ALL APPLICABLE LAWS AND REGULATIONS IN FORCE IN ANY JURISDICTION IN WHICH IT PURCHASES, OFFERS OR SELLS SUCH NOTES AND MUST OBTAIN ANY CONSENT, APPROVAL OR PERMISSION REQUIRED FOR THE PURCHASE, OFFER OR SALE BY IT OF THE NOTES UNDER THE LAWS AND REGULATIONS IN FORCE IN ANY JURISDICTION TO WHICH IT IS SUBJECT OR IN WHICH IT MAKES SUCH PURCHASES, OFFERS OR SALES, AND THE ISSUER, THE STRUCTURING AGENT AND THE INITIAL PURCHASERS SHALL NOT HAVE ANY RESPONSIBILITY THEREFOR.

THIS PRIVATE PLACEMENT MEMORANDUM DOES NOT CONSTITUTE AN OFFER TO SELL OR A SOLICITATION OF AN OFFER TO BUY ANY SECURITIES OTHER THAN THE NOTES OR AN OFFER OF THE NOTES TO ANY PERSON IN ANY STATE OR OTHER JURISDICTION IN WHICH SUCH OFFER WOULD BE UNLAWFUL.

UNDER CERTAIN CIRCUMSTANCES, AN INVESTMENT IN THE NOTES BY OR ON BEHALF OF AN EMPLOYEE BENEFIT PLAN OR OTHER RETIREMENT ARRANGEMENT SUBJECT TO THE FIDUCIARY RESPONSIBILITY PROVISIONS OF TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED ("ERISA"), SECTION 4975 OF THE INTERNAL REVENUE CODE

OF 1986, AS AMENDED (THE "CODE"), OR PROVISIONS UNDER ANY FEDERAL, STATE, LOCAL OR NON-U.S. LAWS OR REGULATIONS THAT ARE SUBSTANTIALLY SIMILAR TO SUCH PROVISIONS OF ERISA OR THE CODE ("SIMILAR LAWS") MIGHT GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA AND BE SUBJECT TO EXCISE TAX UNDER SECTION 4975 OF THE CODE AND/OR OTHER PENALTIES UNDER ERISA OR RESULT IN A VIOLATION OF SIMILAR LAWS. ACCORDINGLY, INVESTORS WILL BE DEEMED OR REQUIRED TO MAKE CERTAIN REPRESENTATIONS REGARDING ERISA, SECTION 4975 OF THE CODE AND ANY APPLICABLE SIMILAR LAWS. SEE "NOTICE TO INVESTORS/TRANSFER RESTRICTIONS" AND "ERISA CONSIDERATIONS" IN THIS PRIVATE PLACEMENT MEMORANDUM.

THE OBLIGATIONS OF THE PARTIES TO THE TRANSACTIONS REFERRED TO HEREIN ARE SET FORTH IN, AND GOVERNED BY, CERTAIN DOCUMENTS DESCRIBED HEREIN, AND ALL OF THE STATEMENTS AND INFORMATION CONTAINED HEREIN ARE QUALIFIED IN THEIR ENTIRETY BY REFERENCE TO SUCH DOCUMENTS. THIS PRIVATE PLACEMENT MEMORANDUM CONTAINS SUMMARIES, WHICH THE ISSUER BELIEVES TO BE ACCURATE, OF CERTAIN OF THESE DOCUMENTS, BUT FOR A COMPLETE DESCRIPTION OF THE RIGHTS AND OBLIGATIONS SUMMARIZED HEREIN, REFERENCE IS HEREBY MADE TO THE ACTUAL DOCUMENTS.

READING THIS PRIVATE PLACEMENT MEMORANDUM

This Private Placement Memorandum provides information about the Issuer and the terms and conditions that apply to the Notes. We suggest that prospective investors read this Private Placement Memorandum in its entirety.

We include cross-references to sections herein where prospective investors can find further related discussions. Refer to the Table of Contents to locate the referenced sections.

The Glossary lists definitions of certain terms used in, and rules of construction for, this Private Placement Memorandum.

Prospective investors should rely only on information on the Notes provided in this Private Placement Memorandum. We have not authorized anyone to provide prospective investors with different information.

FORWARD-LOOKING STATEMENTS

Any projections, expectations and estimates contained in this Private Placement Memorandum are not purely historical in nature but are forward-looking statements based upon information and certain assumptions that the Issuer considers reasonable, subject to uncertainties as to circumstances and events that have not as yet taken place and are subject to material variation. The Issuer has no obligation to update or otherwise revise any forward-looking statements, including statements regarding changes in economic conditions, portfolio or loan performance or other circumstances or developments that may arise after the date of this Private Placement Memorandum.

NOTICE TO INVESTORS/TRANSFER RESTRICTIONS

Because of the following restrictions, each investor is advised to consult legal counsel prior to making an offer, resale, pledge or other transfer of the Notes. The Notes have not been and will not be registered under the Securities Act or the securities laws of any jurisdiction. Consequently, the Notes are not transferable other than pursuant to an exemption from the registration requirements of the Securities Act and satisfaction of certain other provisions of the Indenture. Resales of the Notes may be made only (i) to qualified institutional buyers within the meaning of Rule 144A (each, a "QIB") pursuant to Rule 144A, (ii) solely in the case of Rated Notes, outside the United States to entities which are not "U.S. persons" (as defined in Regulation S) in compliance with Regulation S

or (iii) to the Issuer or APL or one of its direct or indirect subsidiaries in a transaction that would not result in such Notes being subject to registration under the Securities Act.

The Notes offered and sold to QIBs in reliance on Rule 144A will be issued as Book-Entry Notes represented by one or more notes in fully-registered, global form (each, a "Rule 144A Global Note"). The Rated Notes offered and sold outside the United States in reliance on Regulation S will be issued in the form of one or more fully-registered Regulation S temporary global notes (each, a "Temporary Regulation S Global Note"). Beneficial interests in each Temporary Regulation S Global Note will be exchanged for beneficial interests in a fully registered permanent Regulation S global note (each, a "Permanent Regulation S Global Note" and together with each Temporary Regulation S Global Note, the "Regulation S Global Notes") upon the expiration of the period through and including the 40th day after the later of (i) the beginning of the offering of Notes to persons other than distributors in reliance upon Regulation S or (ii) the Closing Date (that period through and including that 40th day, the "Distribution Compliance Period"), *provided* that the requisite certifications are furnished by holders of beneficial interests in such Temporary Regulation S Global Note and by the Euroclear System ("Euroclear") or Clearstream Banking ("Clearstream"), as further described below in this section. The Regulation S Global Notes together with the Rule 144A Global Notes are referred to herein as the "Global Notes."

The Global Notes will be deposited upon issuance with a custodian for DTC and registered in the name of Cede & Co. ("Cede"), as nominee of DTC, in each case for credit to an account of a direct or indirect participant in DTC as described below. Beneficial interests in the Regulation S Global Notes may be held only through Euroclear or Clearstream (as indirect participants in DTC) unless transferred to a person that takes delivery through an interest in a Rule 144A Global Note in accordance with the certification requirements described below. Beneficial interests in a Rule 144A Global Note may not be exchanged for beneficial interests in the Regulation S Global Notes at any time except under the limited circumstances described below.

Any ownership interest represented by a beneficial interest in a Rule 144A Global Note may be transferred to another entity who wishes to hold the Notes in the form of a beneficial interest in a Rule 144A Global Note, *provided* that, the applicable transferor and transferee are deemed to have represented and warranted that such transfer is being made to a transferee that, if other than the Issuer or APL or one of its direct or indirect subsidiaries in a transaction that would not result in such Notes being subject to registration under the Securities Act, the transferor reasonably believes is a QIB in a transaction meeting the requirements of Rule 144A and in addition the transferee is deemed to have made the representations and warranties set forth below.

Beneficial interests in a Regulation S Global Note may be transferred to another person who wishes to hold the Notes in the form of a beneficial interest in a Regulation S Global Note whether before or after the expiration of the Distribution Compliance Period, only if the transferring beneficial owner is deemed to have represented and warranted that such transfer is being made in accordance with Rule 903 or Rule 904 of Regulation S and that the interest transferred will be held immediately thereafter through an account of Euroclear or Clearstream at DTC, and the transferee is deemed to have made the representations and warranties set forth below.

Beneficial interests in a Regulation S Global Note may be exchanged for beneficial interests in a Rule 144A Global Note only if that exchange occurs in connection with a transfer of beneficial interests in the Note pursuant to Rule 144A and only upon receipt by the Paying Agent of written certifications from the transferor and the transferee (in the forms provided in the Indenture) to the effect that the transfer is being made to a QIB in a transaction meeting the requirements of Rule 144A or to the Issuer or APL or one of its direct or indirect subsidiaries in a transaction that would not result in such Notes being subject to registration under the Securities Act and in accordance with any applicable securities laws of any state of the United States or any other jurisdiction.

Beneficial interests in a Rule 144A Global Note that is a Rated Note may be transferred to a person who takes delivery in the form of an interest in a Regulation S Global Note whether before or after the expiration of the Distribution Compliance Period, only upon receipt by the Paying Agent of written certifications from the transferor and the transferee (in the forms provided in the Indenture) to the effect that the transfer is being made to a transferee that is not a "U.S. Person" (as defined in Regulation S) and in accordance with Regulation S and the interest transferred will be held immediately thereafter through an account of Euroclear or Clearstream at DTC.

A holder of a beneficial interest in a Temporary Regulation S Global Note must provide Euroclear or Clearstream, as the case may be, with a certification in the form required by the Indenture certifying that the beneficial owner of the interest in that Global Note is not a "U.S. person" (as defined in Regulation S), and Euroclear or

Clearstream, as the case may be, must provide to the Paying Agent a certification in the form required by the Indenture, before (i) the payment of principal of, interest on or any other payment with respect to that holder's beneficial interest in such Temporary Regulation S Global Note and (ii) any exchange of that beneficial interest for a beneficial interest in a Permanent Regulation S Global Note.

None of the Class R Notes or the Exchangeable Notes will be offered and sold in reliance on Regulation S under the Securities Act.

Each purchaser or other transferee of Notes or beneficial interests therein, other than the Issuer, APL or one of its direct or indirect subsidiaries, and the Initial Purchasers, in the case of (i) a Global Note, will be deemed to represent and agree, or (ii) a Definitive Note, will be required to certify in writing, that:

(1) it will be bound, as a Noteholder, by all of the terms, covenants and conditions of the Indenture, the other Basic Documents and the Notes;

(2) it is (i) (a) a QIB purchasing for its own account or as a fiduciary or agent for others (which others also are QIBs and for which it has sole investment discretion) or (b) solely in the case of a Rated Note, not a "U.S. person" (as defined in Regulation S) (and is not purchasing for the account or benefit of a "U.S. person" as defined in Regulation S), is outside the United States, and is acquiring the applicable Notes pursuant to an exemption from registration in accordance with Rule 903 or Rule 904 of Regulation S, (ii) not purchasing the Notes with a view to the distribution thereof in violation of applicable securities laws and (iii) aware that the sale of the Notes to it is being made in reliance on Rule 144A or Regulation S, as applicable;

(3) it understands that (i) the Notes have not been and will not be registered under the Securities Act or registered or qualified under any applicable State securities laws, (ii) none of the Issuer, the Depositor, the Owner Trustee, the Indenture Trustee, the Note Registrar, the Issuer Certificate Registrar, the Structuring Agent, the Initial Purchasers or any other entity is obligated to register or qualify the Notes and (iii) no interest in the Notes may be reoffered, resold, pledged or otherwise transferred unless (a) such Notes are registered pursuant to the Securities Act and registered or qualified pursuant to any applicable State securities laws or (b) such interest is reoffered, resold, pledged or otherwise transferred to (1) a person whom the holder desiring to effect such transfer reasonably believes is a QIB purchasing for its own account or as a fiduciary or agent for others (which others also are QIBs and for which it has sole investment discretion) to whom notice is given that the reoffer, resale, pledge or other transfer is being made in reliance on Rule 144A, (2) solely in the case of Rated Notes, a purchaser who is not a "U.S. person" (as defined in Regulation S) (and is not purchasing for the account or benefit of a "U.S. person" as defined in Regulation S), is outside the United States, and is acquiring the applicable Notes pursuant to an exemption from registration under the Securities Act in accordance with Rule 903 or Rule 904 of Regulation S or (3) the Issuer or APL or one of its direct or indirect subsidiaries in a transaction that would not result in such Notes being subject to registration under the Securities Act;

(4) it agrees that (a) the Rated Notes are issued and may be held only in minimum denominations of $100,000 and integral multiples of $1 in excess thereof, (b) unless waived by the Administrator in its sole discretion, the Class R Notes are issued and may only be held in minimum denominations of $1,200 notional amount and integral multiples of $1 in excess thereof, and (c) the Exchangeable Notes are issued and may only be held in permitted denominations of the corresponding Classes of Exchange Notes (after giving effect to any waiver of the type described in clause (b) above);

(5) if it is acquiring (i) Rule 144A Notes, it is acquiring such Notes for its own account or as a fiduciary or agent for others (which others also are QIBs and for which it has sole investment discretion) or (ii) Regulation S Notes, it is acquiring such Notes for its own account or for the account of one or more other persons (none of which is a "U.S. person" as defined in Regulation S), in each case, in a principal amount of not less than the minimum denomination of such Note for it and each such account;

(6) it has such knowledge and experience in financial and business matters as to be capable of evaluating the merits and risks of its investment in the Notes, and it and any accounts for which it is acting is each able to bear the economic risk of its investment;

(7) it understands that the Notes are being offered only in a transaction not involving any public offering in the United States within the meaning of the Securities Act, the Notes have not been registered under the Securities Act, and, if in the future it decides to offer, resell, pledge or otherwise transfer the Notes, such securities may be offered, resold, pledged or otherwise transferred only in accordance with the legend on such Notes set forth herein; it acknowledges that no representation is made by either Sponsor, the Administrator, the Issuer, the Paying Agent, the Owner Trustee, the Indenture Trustee, the Collateral Agent, the Note Registrar, the Depositor, the Grantor Trust or the Grantor Trust Trustee (or any of their respective Affiliates) as to the availability of any exemption under the Securities Act or any State securities laws for resale of the Notes;

(8) it understands that an investment in the Notes involves certain risks, including the risk of loss of all or a substantial part of its investment under certain circumstances;

(9) it acknowledges that it has had access to such financial and other information concerning the Notes, the Loans, the Servicer's servicing practices and procedures and any other information as deemed necessary or appropriate in order to make an informed investment decision with respect to its acquisition of the Notes, including an opportunity to ask questions of and request information from the Issuer;

(10) either (i) it is not an "employee benefit plan" (as defined in Section 3(3) of ERISA) subject to the fiduciary responsibility provisions of Title I of ERISA, a "plan" (as defined in Section 4975(e)(1) of the Code) subject to Section 4975 of the Code or a plan, account or other arrangement that is subject to Similar Laws (each, a "Plan"), or an entity whose underlying assets are considered to include "plan assets" (as defined in the Plan Asset Regulation or any applicable Similar Laws) due to investments made in the entity by any such Plan (a "Plan Asset Entity"), or any person who is directly or indirectly acquiring or holding the Notes or any interest therein on behalf of, as fiduciary of, as trustee of, or with assets of, any such Plan or Plan Asset Entity or (ii) it is acquiring Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes) and its acquisition, holding and disposition of such Notes or any interest therein is consistent with applicable fiduciary duty rules and will not constitute or result in a non-exempt prohibited transaction under Section 406 of ERISA or Section 4975 of the Code or a violation of any applicable Similar Laws. See "*ERISA Considerations*" in this Private Placement Memorandum;

(11) it acknowledges that each Note will bear a legend to the following effect:

[RULE 144A NOTES ONLY] "THIS NOTE HAS NOT BEEN REGISTERED UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE "SECURITIES ACT"), OR ANY SECURITIES LAWS OF ANY STATE OR OTHER JURISDICTION. THE HOLDER HEREOF, BY PURCHASING THIS NOTE, IS DEEMED TO REPRESENT TO THE ISSUER, THE SPONSORS, THE PAYING AGENT AND THE INDENTURE TRUSTEE (AND EACH OF THEIR RESPECTIVE AFFILIATES) THAT, UNLESS IT IS THE ISSUER OR APL OR ONE OF ITS DIRECT OR INDIRECT SUBSIDIARIES IN A TRANSACTION THAT WOULD NOT RESULT IN SUCH NOTES BEING SUBJECT TO REGISTRATION UNDER THE SECURITIES ACT, IT IS A "QUALIFIED INSTITUTIONAL BUYER" (A "QIB") WITHIN THE MEANING OF RULE 144A ("RULE 144A") UNDER THE SECURITIES ACT (EXCEPT IN CONNECTION WITH THE INITIAL PLACEMENT OF THE NOTES) AND IS ACQUIRING SUCH NOTE FOR ITS OWN ACCOUNT OR AS A FIDUCIARY OR AGENT FOR OTHERS (WHICH OTHERS ALSO ARE QIBS AND FOR WHICH IT HAS SOLE INVESTMENT DISCRETION) TO WHOM NOTICE IS GIVEN THAT THE TRANSFER IS BEING MADE IN RELIANCE ON RULE 144A."

[REGULATION S NOTES ONLY] "THIS NOTE HAS NOT BEEN REGISTERED UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE "SECURITIES ACT"), OR ANY SECURITIES LAWS OF ANY STATE OR OTHER JURISDICTION. THE

HOLDER HEREOF, BY PURCHASING THIS NOTE, IS DEEMED TO REPRESENT TO THE ISSUER, THE SPONSORS, THE PAYING AGENT AND THE INDENTURE TRUSTEE (AND EACH OF THEIR RESPECTIVE AFFILIATES) THAT IT IS NOT A "U.S. PERSON" (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT ("REGULATION S")), IS OUTSIDE THE UNITED STATES AND IS ACQUIRING THIS NOTE IN ACCORDANCE WITH RULE 903 OR RULE 904 UNDER REGULATION S. THE INDENTURE CONTAINS A PROVISION REQUIRING THAT ANY TRANSFER NOT IN COMPLIANCE WITH THE FOREGOING IS NOT TO BE GIVEN EFFECT."

[**RATED NOTES ONLY**] "NO SALE, PLEDGE OR OTHER TRANSFER OF THIS NOTE MAY BE MADE BY ANY PERSON UNLESS (A) SUCH NOTES ARE REGISTERED PURSUANT TO THE SECURITIES ACT AND REGISTERED OR QUALIFIED PURSUANT TO ANY APPLICABLE STATE SECURITIES LAWS OR (B) SUCH INTEREST IS SOLD, PLEDGED OR TRANSFERRED (1) TO A PERSON WHO THE SELLER REASONABLY BELIEVES IS A QIB (EXCEPT IN CONNECTION WITH THE INITIAL PLACEMENT OF THE NOTES) PURCHASING FOR ITS OWN ACCOUNT OR AS A FIDUCIARY OR AGENT FOR OTHERS (WHICH OTHERS ALSO ARE QIBS AND FOR WHICH IT HAS SOLE INVESTMENT DISCRETION) TO WHOM NOTICE IS GIVEN THAT THE TRANSFER IS BEING MADE IN RELIANCE ON RULE 144A, (2) TO A PERSON WHO IS NOT A "U.S. PERSON" (AS DEFINED IN REGULATION S ("REGULATION S") UNDER THE SECURITIES ACT) AND IS NOT PURCHASING FOR THE ACCOUNT OR BENEFIT OF A "U.S. PERSON" AS DEFINED IN REGULATION S, IS OUTSIDE THE UNITED STATES, AND IS ACQUIRING THE APPLICABLE NOTES PURSUANT TO AN EXEMPTION FROM REGISTRATION UNDER THE SECURITIES ACT IN ACCORDANCE WITH RULE 903 OR RULE 904 OF REGULATION S, OR (3) TO THE ISSUER OR APL OR ONE OF ITS DIRECT OR INDIRECT SUBSIDIARIES IN A TRANSACTION THAT WOULD NOT RESULT IN SUCH NOTES BEING SUBJECT TO REGISTRATION UNDER THE SECURITIES ACT. IN THE CASE OF A HOLDER OF A DEFINITIVE NOTE, SUCH HOLDER IS DEEMED TO AGREE THAT IT WILL DELIVER TO EACH PERSON TO WHOM THIS NOTE OR AN INTEREST HEREIN IS TO BE TRANSFERRED A NOTICE SUBSTANTIALLY TO THE EFFECT OF THIS LEGEND. THE INDENTURE CONTAINS A PROVISION REQUIRING THAT ANY TRANSFER NOT IN COMPLIANCE WITH THE FOREGOING IS NOT TO BE GIVEN EFFECT. EACH TRANSFEREE ACCEPTING A BENEFICIAL INTEREST IN THIS NOTE PURSUANT TO CLAUSE (B)(1) ABOVE IS DEEMED TO REPRESENT TO THE ISSUER, THE SPONSORS, THE PAYING AGENT, THE INDENTURE TRUSTEE (AND EACH OF THEIR RESPECTIVE AFFILIATES) THAT IT IS A QIB PURCHASING FOR ITS OWN ACCOUNT OR FOR THE ACCOUNT OF ANOTHER QIB FOR WHICH IT HAS SOLE INVESTMENT DISCRETION."

[CLASS R NOTES AND EXCHANGEABLE NOTES ONLY] "NO SALE, PLEDGE OR OTHER TRANSFER OF THIS NOTE MAY BE MADE BY ANY PERSON UNLESS (A) SUCH NOTES ARE REGISTERED PURSUANT TO THE SECURITIES ACT AND REGISTERED OR QUALIFIED PURSUANT TO ANY APPLICABLE STATE SECURITIES LAWS OR (B) SUCH INTEREST IS SOLD, PLEDGED OR TRANSFERRED (1) TO A PERSON WHO THE SELLER REASONABLY BELIEVES IS A QIB (EXCEPT IN CONNECTION WITH THE INITIAL PLACEMENT OF THE NOTES) PURCHASING FOR ITS OWN ACCOUNT OR AS A FIDUCIARY OR AGENT FOR OTHERS (WHICH OTHERS ALSO ARE QIBS AND FOR WHICH IT HAS SOLE INVESTMENT DISCRETION) TO WHOM NOTICE IS GIVEN THAT THE TRANSFER IS BEING MADE IN RELIANCE ON RULE 144A OR (2) TO THE ISSUER OR APL OR ONE OF ITS DIRECT OR INDIRECT SUBSIDIARIES IN A TRANSACTION THAT WOULD NOT RESULT IN SUCH NOTES BEING SUBJECT TO REGISTRATION UNDER THE SECURITIES ACT. IN THE CASE OF A HOLDER OF A DEFINITIVE NOTE, SUCH HOLDER IS DEEMED TO AGREE THAT IT WILL DELIVER TO EACH PERSON TO WHOM THIS NOTE OR AN INTEREST HEREIN IS TO BE TRANSFERRED A NOTICE SUBSTANTIALLY TO THE EFFECT OF THIS LEGEND. THE INDENTURE CONTAINS A PROVISION REQUIRING THAT ANY TRANSFER NOT IN COMPLIANCE WITH THE FOREGOING IS NOT TO BE GIVEN EFFECT. EACH TRANSFEREE ACCEPTING A BENEFICIAL INTEREST IN THIS NOTE PURSUANT TO CLAUSE (B)(1) ABOVE IS DEEMED TO REPRESENT TO THE ISSUER, THE SPONSORS, THE PAYING AGENT, THE

INDENTURE TRUSTEE (AND EACH OF THEIR RESPECTIVE AFFILIATES) THAT IT IS A QIB PURCHASING FOR ITS OWN ACCOUNT OR FOR THE ACCOUNT OF ANOTHER QIB FOR WHICH IT HAS SOLE INVESTMENT DISCRETION."

[TEMPORARY REGULATION S GLOBAL NOTES ONLY] "BENEFICIAL INTERESTS IN THIS TEMPORARY GLOBAL SECURITY CERTIFICATE ARE NOT EXCHANGEABLE FOR DEFINITIVE SECURITIES UNTIL THE EXPIRATION OF A 40-DAY DISTRIBUTION COMPLIANCE PERIOD AND, FOR PERSONS OTHER THAN "DISTRIBUTORS" (AS DEFINED IN REGULATION S), UNTIL CERTIFICATION OF BENEFICIAL OWNERSHIP BY A NON-U.S. PERSON."

[**RATED NOTES AND EXCHANGEABLE NOTES CORRESPONDING SOLELY TO RATED NOTES ONLY**] "THE HOLDER OF THIS NOTE OR ANY INTEREST HEREIN WILL BE DEEMED TO HAVE REPRESENTED THAT EITHER (A) IT IS NOT AN "EMPLOYEE BENEFIT PLAN" (AS DEFINED IN SECTION 3(3) OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED ("ERISA")) SUBJECT TO THE FIDUCIARY RESPONSIBILITY PROVISIONS OF TITLE I OF ERISA, A "PLAN" (AS DEFINED IN SECTION 4975(e)(1) OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE "CODE")) SUBJECT TO SECTION 4975 OF THE CODE, OR A PLAN, ACCOUNT OR OTHER ARRANGEMENT THAT IS SUBJECT TO PROVISIONS UNDER ANY FEDERAL, STATE, LOCAL OR NON-U.S. LAWS OR REGULATIONS THAT ARE SUBSTANTIALLY SIMILAR TO SUCH PROVISIONS OF ERISA OR THE CODE (COLLECTIVELY, "SIMILAR LAWS") (EACH, A "PLAN"), OR AN ENTITY WHOSE UNDERLYING ASSETS ARE CONSIDERED TO INCLUDE "PLAN ASSETS" (AS DEFINED IN UNITED STATES DEPARTMENT OF LABOR REGULATION 29 C.F.R. SECTION 2510.3-101, AS MODIFIED BY SECTION 3(42) OF ERISA, OR ANY APPLICABLE SIMILAR LAWS) DUE TO INVESTMENTS MADE IN THE ENTITY BY ANY SUCH PLAN (A "PLAN ASSET ENTITY"), OR ANY PERSON WHO IS DIRECTLY OR INDIRECTLY ACQUIRING OR HOLDING THIS NOTE OR ANY INTEREST HEREIN ON BEHALF OF, AS FIDUCIARY OF, AS TRUSTEE OF, OR WITH ASSETS OF, ANY SUCH PLAN OR PLAN ASSET ENTITY OR (B) THE ACQUISITION, HOLDING AND DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN IS CONSISTENT WITH APPLICABLE FIDUCIARY DUTY RULES AND WILL NOT CONSTITUTE OR RESULT IN A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR A VIOLATION OF ANY APPLICABLE SIMILAR LAWS."

[CLASS R NOTES AND CLASS PT NOTES ONLY] "THE HOLDER OF THIS NOTE OR ANY INTEREST HEREIN WILL BE DEEMED TO HAVE REPRESENTED THAT IT IS NOT AN "EMPLOYEE BENEFIT PLAN" (AS DEFINED IN SECTION 3(3) OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED ("ERISA")) SUBJECT TO THE FIDUCIARY RESPONSIBILITY PROVISIONS OF TITLE I OF ERISA, A "PLAN" (AS DEFINED IN SECTION 4975(e)(1) OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE "CODE")) SUBJECT TO SECTION 4975 OF THE CODE, OR A PLAN, ACCOUNT OR OTHER ARRANGEMENT THAT IS SUBJECT TO PROVISIONS UNDER ANY FEDERAL, STATE, LOCAL OR NON-U.S. LAWS OR REGULATIONS THAT ARE SUBSTANTIALLY SIMILAR TO SUCH PROVISIONS OF ERISA OR THE CODE (COLLECTIVELY, "SIMILAR LAWS") (EACH, A "PLAN"), OR AN ENTITY WHOSE UNDERLYING ASSETS ARE CONSIDERED TO INCLUDE "PLAN ASSETS" (AS DEFINED IN UNITED STATES DEPARTMENT OF LABOR REGULATION 29 C.F.R. SECTION 2510.3-101, AS MODIFIED BY SECTION 3(42) OF ERISA, OR ANY APPLICABLE SIMILAR LAWS) DUE TO INVESTMENTS MADE IN THE ENTITY BY ANY SUCH PLAN (A "PLAN ASSET ENTITY"), OR ANY PERSON WHO IS DIRECTLY OR INDIRECTLY ACQUIRING OR HOLDING THIS NOTE OR ANY INTEREST HEREIN ON BEHALF OF, AS FIDUCIARY OF, AS TRUSTEE OF, OR WITH ASSETS OF, ANY SUCH PLAN OR PLAN ASSET ENTITY."

[GLOBAL NOTES ONLY] "TRANSFERS OF THIS NOTE SHALL BE LIMITED TO TRANSFERS IN WHOLE, BUT NOT IN PART, TO NOMINEES OF THE REGISTERED CLEARING AGENCY OR TO A SUCCESSOR THEREOF OR SUCH SUCCESSOR'S

NOMINEE AND TRANSFERS OF PORTIONS OF THIS NOTE SHALL BE LIMITED TO TRANSFERS MADE IN ACCORDANCE WITH THE RESTRICTIONS SET FORTH IN THE INDENTURE REFERRED TO HEREIN."

[RATED NOTES AND EXCHANGEABLE NOTES CORRESPONDING SOLELY TO RATED NOTES ONLY] "THE PRINCIPAL OF THIS NOTE IS PAYABLE AS SET FORTH HEREIN. ACCORDINGLY, THE OUTSTANDING PRINCIPAL AMOUNT OF THIS NOTE AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ON THE FACE HEREOF. ANY PERSON ACQUIRING THIS NOTE MAY ASCERTAIN ITS CURRENT PRINCIPAL AMOUNT BY INQUIRY OF THE PAYING AGENT."

[CLASS PT NOTES ONLY] "THE PORTION ATTRIBUTABLE TO PRINCIPAL OF THE CORRESPONDING EXCHANGE NOTES THAT ARE RATED NOTES PAYABLE ON THIS NOTE IS PAYABLE AS SET FORTH HEREIN. ACCORDINGLY, THE OUTSTANDING FACE AMOUNT OF THIS NOTE AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ON THE FACE HEREOF. ANY PERSON ACQUIRING THIS NOTE MAY ASCERTAIN ITS CURRENT FACE AMOUNT BY INQUIRY OF THE PAYING AGENT."

[RATED NOTES AND EXCHANGEABLE NOTES CORRESPONDING SOLELY TO RATED NOTES ONLY] "THE FAILURE TO PROVIDE THE ISSUER AND THE PAYING AGENT WITH THE APPLICABLE U.S. FEDERAL INCOME TAX CERTIFICATIONS (GENERALLY, AN INTERNAL REVENUE SERVICE ("IRS") FORM W-9 (OR APPLICABLE SUCCESSOR FORM) IN THE CASE OF A PERSON THAT IS A "UNITED STATES PERSON" WITHIN THE MEANING OF SECTION 7701(a)(30) OF THE CODE, OR AN APPROPRIATE IRS FORM W-8 (OR APPLICABLE SUCCESSOR FORM) IN THE CASE OF A PERSON THAT IS NOT A "UNITED STATES PERSON" WITHIN THE MEANING OF SECTION 7701(a)(30) OF THE CODE) MAY RESULT IN THE IMPOSITION OF U.S. FEDERAL WITHHOLDING OR BACK-UP WITHHOLDING UPON PAYMENTS TO THE HOLDER IN RESPECT OF THIS NOTE."

[CLASS R NOTES AND CLASS PT NOTES ONLY] "THE FAILURE TO PROVIDE THE ISSUER AND THE PAYING AGENT WITH THE APPLICABLE U.S. FEDERAL INCOME TAX CERTIFICATIONS (GENERALLY, AN INTERNAL REVENUE SERVICE ("IRS") FORM W-9 (OR APPLICABLE SUCCESSOR FORM) IN THE CASE OF A PERSON THAT IS A "UNITED STATES PERSON" WITHIN THE MEANING OF SECTION 7701(a)(30) OF THE CODE, OR AN APPROPRIATE IRS FORM W-8 (OR APPLICABLE SUCCESSOR FORM) OTHER THAN AN IRS FORM W-8ECI OR IRS FORM W-8IMY WITH AN IRS FORM W-8ECI ATTACHED IN THE CASE OF A NOTEHOLDER OF CLASS R NOTES (INCLUDING ANY PORTION OF A CLASS PT NOTE ATTRIBUTABLE TO A CLASS R NOTE) THAT IS NOT A "UNITED STATES PERSON" WITHIN THE MEANING OF SECTION 7701(a)(30) OF THE CODE) MAY RESULT IN THE IMPOSITION OF U.S. FEDERAL WITHHOLDING OR BACK-UP WITHHOLDING UPON PAYMENTS TO THE HOLDER IN RESPECT OF THIS NOTE."

[CLASS R NOTES AND CLASS PT NOTES ONLY] "NO PORTION OF THIS NOTE OR ANY INTEREST HEREIN MAY BE TRANSFERRED, DIRECTLY OR INDIRECTLY, TO ANY PERSON WHICH WOULD PROVIDE AN IRS FORM W-8ECI OR IRS FORM W-8IMY WITH AN ATTACHED IRS FORM W-8ECI IN RESPONSE TO THE WITHHOLDING REQUIREMENTS IN THE INDENTURE."

[CLASS R NOTES AND CLASS PT NOTES ONLY] "THE HOLDER OF THIS NOTE OR ANY INTEREST HEREIN WILL BE DEEMED TO HAVE REPRESENTED THAT AS A RESULT OF SUCH HOLDER'S OWN ACTIVITIES SEPARATE FROM THOSE OF THE ISSUER SUCH HOLDER IS NOT REQUIRED TO TREAT INCOME FROM ANY CLASS R NOTE (INCLUDING ANY PORTION OF A CLASS PT NOTE ATTRIBUTABLE TO A CLASS R NOTE) AS EFFECTIVELY CONNECTED TO A UNITED STATES TRADE OR BUSINESS OF A PERSON THAT IS NOT A "UNITED STATES PERSON" (WITHIN THE MEANING OF SECTION 7701(a)(30) OF THE CODE) AND NO HOLDER SHALL PROVIDE THE ISSUER WITH EITHER AN IRS FORM W-8ECI (OR APPLICABLE SUCCESSOR FORM) OR AN IRS

FORM W-8IMY (OR APPLICABLE SUCCESSOR FORM) TO WHICH AN IRS FORM W-8ECI (OR APPLICABLE SUCCESSOR FORM) IS ATTACHED (EITHER DIRECTLY OR AS PART OF ANOTHER FORM ATTACHED TO SUCH IRS FORM W-8IMY)."

[CLASS R NOTES AND CLASS PT NOTES ONLY] "THE HOLDER OF THIS NOTE OR ANY INTEREST HEREIN REPRESENTS, WARRANTS AND AGREES OR IS DEEMED TO REPRESENT, WARRANT AND AGREE THAT: UNLESS WAIVED IN WRITING BY THE ADMINISTRATOR WITH RESPECT TO A PARTICULAR HOLDER, (A) EITHER (I) IT IS NOT AND WILL NOT BECOME FOR U.S. FEDERAL INCOME TAX PURPOSES A PARTNERSHIP, SUBCHAPTER S CORPORATION OR GRANTOR TRUST (OR A DISREGARDED ENTITY THE SINGLE OWNER OF WHICH IS ANY OF THE FOREGOING) (EACH SUCH ENTITY A "FLOW-THROUGH ENTITY") OR (II) IF IT IS OR BECOMES A FLOW-THROUGH ENTITY, THEN (X) NONE OF THE DIRECT OR INDIRECT BENEFICIAL OWNERS OF ANY OF THE INTERESTS IN SUCH FLOW-THROUGH ENTITY HAS OR EVER WILL HAVE MORE THAN 50% OF THE VALUE OF ITS INTEREST IN SUCH FLOW-THROUGH ENTITY ATTRIBUTABLE TO THE INTEREST OF SUCH FLOW-THROUGH ENTITY IN THE CLASS R NOTES (INCLUDING ANY PORTION OF A CLASS PT NOTE ATTRIBUTABLE TO A CLASS R NOTE), OTHER INTEREST (DIRECT OR INDIRECT) IN THE ISSUER, OR ANY INTEREST CREATED UNDER THE INDENTURE AND (Y) IT IS NOT AND WILL NOT BE A PRINCIPAL PURPOSE OF THE ARRANGEMENT INVOLVING THE INVESTMENT OF SUCH FLOW-THROUGH ENTITY IN ANY CLASS R NOTE (INCLUDING ANY PORTION OF A CLASS PT NOTE ATTRIBUTABLE TO A CLASS R NOTE) TO PERMIT ANY PARTNERSHIP TO SATISFY THE 100 PARTNER LIMITATION OF SECTION 1.7704-1(h)(1)(ii) OF THE TREASURY REGULATIONS NECESSARY FOR SUCH PARTNERSHIP NOT TO BE CLASSIFIED AS A PUBLICLY TRADED PARTNERSHIP UNDER THE CODE, (B) IT WILL NOT SELL, ASSIGN, TRANSFER, PLEDGE OR OTHERWISE CONVEY ANY PARTICIPATING INTEREST IN ANY CLASS R NOTE (INCLUDING ANY PORTION OF A CLASS PT NOTE ATTRIBUTABLE TO A CLASS R NOTE) OR ANY FINANCIAL INSTRUMENT OR CONTRACT THE VALUE OF WHICH IS DETERMINED BY REFERENCE IN WHOLE OR IN PART TO ANY CLASS R NOTE (INCLUDING ANY PORTION OF A CLASS PT NOTE ATTRIBUTABLE TO A CLASS R NOTE), (C) IT IS NOT ACQUIRING AND WILL NOT SELL, TRANSFER, ASSIGN, PARTICIPATE, PLEDGE OR OTHERWISE DISPOSE OF ANY CLASS R NOTE(S) (INCLUDING ANY PORTION OF A CLASS PT NOTE ATTRIBUTABLE TO A CLASS R NOTE) (OR INTEREST THEREIN) OR CAUSE ANY CLASS R NOTE(S) (INCLUDING ANY PORTION OF A CLASS PT NOTE ATTRIBUTABLE TO A CLASS R NOTE) (OR INTEREST THEREIN) TO BE MARKETED ON OR THROUGH AN "ESTABLISHED SECURITIES MARKET" WITHIN THE MEANING OF SECTION 7704(b) OF THE CODE, INCLUDING, WITHOUT LIMITATION, AN INTERDEALER QUOTATION SYSTEM THAT REGULARLY DISSEMINATES FIRM BUY OR SELL QUOTATIONS AND (D) IT DOES NOT AND WILL NOT BENEFICIALLY OWN ANY CLASS R NOTE (INCLUDING ANY PORTION OF A CLASS PT NOTE ATTRIBUTABLE TO A CLASS R NOTE) (OR ANY BENEFICIAL INTEREST THEREIN) IN AN AMOUNT THAT IS LESS THAN THE MINIMUM DENOMINATION FOR SUCH NOTE. ANY TRANSFER OF A CLASS R NOTE (INCLUDING ANY PORTION OF A CLASS PT NOTE ATTRIBUTABLE TO A CLASS R NOTE) (OR ANY BENEFICIAL INTEREST THEREIN) THAT DOES NOT COMPLY WITH THE FOREGOING REQUIREMENTS WILL BE DEEMED NULL AND VOID AB INITIO."

[CLASS R NOTES AND CLASS PT NOTES ONLY] NO PORTION OF THIS NOTE OR ANY INTEREST HEREIN MAY BE TRANSFERRED, DIRECTLY OR INDIRECTLY, TO ANY PERSON AND NO SUCH TRANSFER SHALL BE EFFECTIVE, UNLESS, PRIOR TO AND AS A CONDITION TO EACH SUCH TRANSFER, THE PROSPECTIVE TRANSFEREE COVENANTS AND AGREES WITH THE INDENTURE TRUSTEE, THE NOTE REGISTRAR, THE PAYING AGENT, THE ISSUER AND THE ADMINISTRATOR, AND EACH OF THEIR RESPECTIVE SUCCESSORS AND ASSIGNS, IN WRITING, SUBSTANTIALLY IN THE FORM OF THE INVESTOR LETTER SET FORTH IN EXHIBIT G TO THE INDENTURE, (A) TO COOPERATE WITH THE ISSUER (OR THE ADMINISTRATOR ON ITS BEHALF) WITH RESPECT TO ITS INQUIRY AND DETERMINATION OF "BENEFICIAL OWNERS" (AS

DEFINED UNDER THE CORPORATE TRANSPARENCY ACT, AS AMENDED (THE "CTA")) OF THE ISSUER OR THE GRANTOR TRUST AND (B) TO THE EXTENT IDENTIFIED BY THE ISSUER (OR THE ADMINISTRATOR ON ITS BEHALF) AS A "BENEFICIAL OWNER" (AS DEFINED UNDER THE CTA) OF THE ISSUER OR THE GRANTOR TRUST, (I) TO PROVIDE TO THE ADMINISTRATOR SUCH INFORMATION REQUIRED BY THE ISSUER OR THE GRANTOR TRUST TO COMPLY WITH THE CTA WITH RESPECT TO SUCH TRANSFEREE, INCLUDING EITHER (X) A FINCEN IDENTIFIER (AS DEFINED UNDER THE CTA), OR PERSONAL IDENTIFYING INFORMATION AND AN "ACCEPTABLE IDENTIFICATION DOCUMENT" (AS DEFINED UNDER THE CTA), OR (Y) TO THE EXTENT AN APPLICABLE CTA EXEMPTION PERMITS A "BENEFICIAL OWNER" (AS DEFINED UNDER THE CTA) TO PROVIDE OTHER INFORMATION FOR REPORTING TO FINCEN (AS DEFINED UNDER THE CTA) IN LIEU OF THE INFORMATION CONTEMPLATED BY CLAUSE (X), SUCH OTHER INFORMATION PERMITTED TO BE PROVIDED UNDER THE CTA, AND (II) TO PROVIDE OR UPDATE INFORMATION RELATING TO ANY CHANGES TO THE SAME IN A TIMELY MANNER IN ACCORDANCE WITH THE CTA (OR TO USE ITS BEST EFFORTS TO CAUSE ANY INDIVIDUAL WHO IS A "BENEFICIAL OWNER" BY DIRECTLY OR INDIRECTLY OWNING ANY OWNERSHIP INTERESTS (AS DEFINED UNDER THE CTA) OF SUCH TRANSFEREE, OR EXERCISING "SUBSTANTIAL CONTROL" (AS DEFINED UNDER THE CTA) THROUGH SUCH TRANSFEREE OVER THE ISSUER, TO PROVIDE OR UPDATE THE SAME).

[**EXCHANGE NOTES ONLY**] "THIS NOTE IS AN EXCHANGE NOTE AND, SUBJECT TO THE TERMS AND CONDITIONS OF THE INDENTURE, MAY BE EXCHANGED FOR ONE OR MORE EXCHANGEABLE NOTES IN AN EXCHANGEABLE COMBINATION DESCRIBED THEREIN."

[**EXCHANGEABLE NOTES ONLY**] "THIS NOTE IS AN EXCHANGEABLE NOTE AND, SUBJECT TO THE TERMS AND CONDITIONS OF THE INDENTURE, MAY BE EXCHANGED FOR ONE OR MORE EXCHANGE NOTES IN AN EXCHANGEABLE COMBINATION DESCRIBED THEREIN."

(12) it has been furnished with all requested information regarding (i) the Notes and distributions thereon, (ii) the Indenture and (iii) all related matters;

(13) it has received and reviewed this Private Placement Memorandum and all other documents and information it considers appropriate, reliable and adequate for determining whether to invest in the Notes;

(14) it has consulted with its own legal counsel, independent accountants and financial advisors to the extent it deems necessary regarding the tax consequences to it of ownership of the Notes and it is aware that its taxable income with respect to the Notes in any accounting period may not correspond to the cash flow (if any) from the Notes for such period;

(15) it is a sophisticated institutional investor and has such knowledge and experience in financial and business matters and expertise in assessing financial risk, that it is capable of evaluating the merits, risks and suitability of investing in the Notes and understands that any rating issued by a rating agency on any Note is not a recommendation to buy, sell or hold securities and may be revised or withdrawn at any time by the assigning rating agency;

(16) it has conducted its own independent due diligence investigation (including asking questions and receiving answers and obtaining all information it deems necessary) of the Issuer, the Grantor Trust, the Depositor, each Sponsor (and its Affiliates), the Servicer, the Backup Servicer, the Backup Servicer Subcontractor, any Partner Bank, the Loans, and the Notes, and is relying solely on its own diligence investigation, its own financial analysis, and whatever sources of information it has deemed appropriate, reliable and adequate, with respect to the Notes;

(17) it acknowledges that none of the Issuer, either Sponsor, the Servicer, the Grantor Trust, the Depositor, the Administrator, any Partner Bank, the Structuring Agent, the Initial Purchasers, the Owner Trustee, the Indenture Trustee, the Paying Agent, the Grantor Trust Trustee or any of their respective Affiliates has made any representation to it as to the credit or investment quality of the Notes;

(18) it (i) is able to bear the economic risks of and an entire loss of its investment in the Notes, (ii) has determined that its acquisition of the Notes is suitable for it, is consistent with its financial needs, objectives and condition, and complies with all of its investment policies, guidelines and restrictions, (iii) has not relied on either Sponsor, the Servicer, the Backup Servicer, the Backup Servicer Subcontractor, the Administrator, the Depositor, the Grantor Trust, the Issuer, the Grantor Trust Trustee, the Owner Trustee, the Indenture Trustee, the Paying Agent, any Partner Bank, the Structuring Agent, the Initial Purchasers, or any of their respective Affiliates in connection with its determination of the foregoing and (iv) has determined the foregoing based on its own independent review as described herein;

(19) it agrees that as a condition of the registration of any sale, transfer, assignment, participation, pledge or other disposition of a Note, the prospective transferee of such Note will be required to make the representations set forth in the Indenture in the manner provided for therein;

(20) it agrees that any purported transfer of any Note or any interest in a Note that is not made in accordance with the restrictions set forth herein and in the Indenture will be null and void from the beginning and will not be given effect for any purpose thereunder;

(21) it acknowledges that the Issuer, the Indenture Trustee, the Paying Agent and others are relying on the truth and accuracy of the foregoing acknowledgments, representations and agreements and agrees that, if any of the acknowledgments, representations or warranties made or deemed to have been made by it in connection with its acquisition of a Note is no longer accurate, it will promptly notify the Issuer, the Indenture Trustee and the Paying Agent;

(22) if it is acting as a nominee or in a similar capacity, it represents and agrees that no beneficial owner for which it is acting as a nominee owns less than the minimum denomination for such Note;

(23) it will strictly comply with the Indenture as to treatment of (i) the Rated Notes as indebtedness of the Issuer, (ii) the Issuer as a "grantor trust" and each Class R Note as an undivided beneficial ownership interest in all of the assets of the Issuer and (iii) the Exchangeable Notes as a direct ownership interest in the separate Classes of Exchange Notes corresponding to such Exchangeable Notes, in each case for purposes of U.S. federal, state and local income or franchise taxes and any other tax imposed on or measured by income, as provided in the Indenture;

(24) it will not take any action that could cause, and will not omit to take any action, which omission could cause, the Issuer to be treated as an association or publicly traded partnership taxable as a corporation for U.S. federal income tax purposes; and

(25) if it is acquiring Class R Notes either directly or as a component of the Class PT Notes:

(i) it represents and agrees that, as a result of such holder's own activities separate from those of the Issuer, such holder will not be required to treat income from the Class R Notes (including any portion of the Class PT Notes attributable to Class R Notes) as effectively connected to a U.S. trade or business of a person that is not a U.S. Person (within the meaning of Section 7701(a)(30) of the Code) and will not provide the Issuer with either an Internal Revenue Service ("IRS") Form W-8ECI (or successor form) or an IRS Form W-8IMY (or successor form) to which an IRS Form W-8ECI (or successor form) is attached (either directly or as part of another form attached to such IRS Form W-8IMY);

(ii) it shall deliver to the Issuer, the Indenture Trustee, the Administrator, the Paying Agent, the Note Registrar, prior to a transfer being recognized, (A) if it is not a U.S. Person, two duly completed copies of the IRS Form W-8BEN, IRS Form W-8BEN-E, IRS Form W-8IMY (with applicable

supporting documentation other than an attached IRS Form W-8ECI), or in each case successor applicable forms required to evidence that it is entitled to receive payments under the Indenture and without deduction or withholding of any United States federal income taxes, (B) in any other case, a properly completed and executed IRS Form W-9 (or successor form) representing that such transferee is a U.S. Person, and (C) in every case, such other forms and information as may be required to confirm the availability of any applicable exemption from U.S. federal, state or local withholding taxes. It also agrees to deliver to the Issuer, the Indenture Trustee, the Administrator, the Paying Agent and the Note Registrar two further copies of such IRS Form W-8BEN, IRS Form W-8BEN-E, IRS Form W-8IMY (with applicable supporting documentation other than an attached IRS Form W-8ECI), and IRS Form W-9, or such successor applicable forms or other manner of certification, as the case may be, on or before the date that any such form expires or becomes obsolete or after the occurrence of any event requiring a change in the most recent form previously delivered by it hereunder, and such extensions or renewals thereof as may reasonably be requested by the Issuer, the Indenture Trustee, the Administrator, the Paying Agent or the Note Registrar;

(iii) unless waived in writing by the Administrator with respect to a particular holder, it (A) either (I) is not and will not become a Flow-Through Entity or (II) if it is or becomes a Flow-Through Entity, then (x) none of the direct or indirect beneficial owners of any of the interests in such Flow-Through Entity has or ever will have more than 50% of the value of its interest in such Flow-Through Entity attributable to the interest of such Flow-Through Entity in the Class R Notes (including any portion of the Class PT Notes attributable to Class R Notes), other interest (direct or indirect) in the Issuer, or any interest created under the Indenture and (y) it is not and will not be a principal purpose of the arrangement involving the investment of such Flow-Through Entity in the Class R Notes (including any portion of the Class PT Notes attributable to Class R Notes) to permit any partnership to satisfy the 100 partner limitation of Section 1.7704-1(h)(1)(ii) of the Treasury Regulations necessary for such partnership not to be classified as a publicly traded partnership under the Code, (B) it will not sell, assign, transfer, pledge or otherwise convey any participating interest in the Class R Notes (including any portion of the Class PT Notes attributable to Class R Notes) or any financial instrument or contract the value of which is determined by reference in whole or in part to the Class R Notes (including any portion of the Class PT Notes attributable to Class R Notes), (C) it is not acquiring and will not sell, transfer, assign, participate, pledge or otherwise dispose of the Class R Notes (including any portion of the Class PT Notes attributable to Class R Notes) (or interest therein) or cause the Class R Notes (including any portion of the Class PT Notes attributable to Class R Notes) (or interest therein) to be marketed on or through an "established securities market" within the meaning of Section 7704(b) of the Code, including, without limitation, an interdealer quotation system that regularly disseminates firm buy or sell quotations and (D) it does not and will not beneficially own a Class R Note (including any portion of a Class PT Note attributable to a Class R Note) (or any beneficial interest therein) in an amount that is less than the minimum denomination for such Note. Any transfer of a Class R Note (including any portion of a Class PT Note attributable to a Class R Note) (or any beneficial interest therein) that does not comply with the foregoing requirements will be deemed null and void ab initio;

(iv) it agrees that it will not acquire or hold a Class R Note (including any portion of a Class PT Note attributable to a Class R Note) (or any beneficial interest therein) if such action causes the Issuer to be treated for U.S. federal income tax purposes as (A) owned at least 80 percent directly or through attribution by one or more members of an "expanded group" of corporations within the meaning of the Treasury Regulations promulgated under Section 385 of the Code that includes at least one corporate member organized under U.S. law (including the law of any State or the District of Columbia) and one or more members of such expanded group (directly or through attribution) holds Notes or (B) disregarded as separate from an entity that owns Notes. Clause (A) shall not apply if all expanded group members that hold Notes are members of an affiliated group of corporations that file a consolidated return for U.S. federal income tax purposes. Clause (B) shall not apply to the acquisition of Class R Notes (including any portion of a Class PT Note attributable to a Class R Note) (or any beneficial interests therein) on the Closing Date (or to the continued ownership of such Class R Notes);

(v) it understands that if it fails to comply with the requirements of paragraph (25)(iv), above, the Issuer and the Administrator are each authorized, at its discretion, to compel such Noteholder to sell

its Class R Note (including any portion of a Class PT Note attributable to a Class R Note) (or beneficial interest therein) to a Person whose ownership does not result in a failure to comply with paragraph (25)(iv);

(vi) it represents and agrees that complying with Section 1446(f) of the Code is not the responsibility of the Issuer, and that a transferor and transferee of a Class R Note (including any portion of a Class PT Note attributable to a Class R Note) may be subject to withholding or a withholding obligation, as the case may be, in the event that the Issuer is treated as a partnership for U.S. federal income tax purpose and there is a failure to comply with Section 1446(f) of the Code;

(vi) it understands that no portion of any Class R Note or Class PT Note or any interest therein may be transferred, directly or indirectly, to any person and no such transfer shall be effective, unless, prior to and as a condition to each such transfer, the prospective transferee covenants and agrees with the Indenture Trustee, the Note Registrar, the Paying Agent, the Issuer and the Administrator, and each of their respective successors and assigns, in writing, substantially in the form of the investor letter set forth in Exhibit G to the Indenture, (a) to cooperate with the Issuer (or the Administrator on its behalf) with respect to its inquiry and determination of "beneficial owners" (as defined under the CTA) of the Issuer or the Grantor Trust and (b) to the extent identified by the Issuer (or the Administrator on its behalf) as a "beneficial owner" (as defined under the CTA) of the Issuer or the Grantor Trust, (i) to provide to the Administrator such information required by the Issuer or the Grantor Trust to comply with the CTA with respect to such transferee, including either (x) a FinCEN identifier (as defined under the CTA), or personal identifying information and an "acceptable identification document" (as defined under the CTA), or (y) to the extent an applicable CTA exemption permits a "beneficial owner" (as defined under the CTA) to provide other information for reporting to FinCEN (as defined under the CTA) in lieu of the information contemplated by clause (x), such other information permitted to be provided under the CTA, and (ii) to provide or update information relating to any changes to the same in a timely manner in accordance with CTA (or to use its best efforts to cause any individual who is a "beneficial owner" by directly or indirectly owning any ownership interests (as defined under the CTA) of such transferee, or exercising "substantial control" (as defined under the CTA) through such transferee over the Issuer, to provide or update the same).

Any purported resale, pledge or other transfer of the Notes contrary to the restrictions set forth above will be deemed void *ab initio* by the Issuer, the Indenture Trustee and the Note Registrar.

AVAILABLE INFORMATION

Each offeree of the Notes and its representatives and beneficial owners, if any, are invited to ask questions concerning the terms, conditions and other aspects of the Notes and the Issuer. Questions may be directed to:

Jefferies LLC
520 Madison Avenue
New York, NY 10022

In addition, the Paying Agent, on behalf of the Issuer, will provide without charge to any holder of Notes, on request of any such Noteholder and subject to such Noteholder signing a written confidentiality agreement, a copy of any of the Basic Documents, except for the APL Purchase Agreements; *provided* that any Noteholder may receive a copy of the Indenture without executing or delivering a confidentiality agreement. Requests for such copies should be directed to the Paying Agent at its address listed herein.

To permit compliance with Rule 144A in connection with resales of the Notes, the Issuer will furnish upon request to a holder and to any prospective purchaser designated by that holder, the information required to be delivered under Rule 144A(d)(4) under the Securities Act if at the time of the request the Issuer is not a reporting company under Section 13 or Section 15(d) of the Securities Exchange Act of 1934.

TABLE OF CONTENTS

Page

INTRODUCTORY NOTE i
NOTICE TO INVESTORS: UNITED KINGDOM ii
OTHER UNITED KINGDOM REGULATORY RESTRICTIONS iii
NOTICE TO INVESTORS: EUROPEAN ECONOMIC AREA iii
IMPORTANT NOTICE ABOUT INFORMATION IN THIS PRIVATE PLACEMENT MEMORANDUM. iv
READING THIS PRIVATE PLACEMENT MEMORANDUM vi
FORWARD-LOOKING STATEMENTS vi
NOTICE TO INVESTORS/TRANSFER RESTRICTIONS vi
AVAILABLE INFORMATION xviii
SUMMARY 1
- Principal Parties 1
- Transfer Agreements 4
- Terms of the Securities 5
- Important Dates 7
- Interest 7
- Priority of Payments 7
- Credit Enhancement 11
- Controlling Class of Notes 12
- Optional Redemption 12
- Amortization Events 13
- Events of Default 13
- Property of the Issuer and the Grantor Trust 14
- Servicing and Servicer Compensation 15
- Ratings of the Notes 16
- U.S. Credit Risk Retention 16
- EU Securitization Regulation and UK Securitization Regulation 16
- Tax Status 17
- ERISA Considerations 17
- Certain Investment Company Act Considerations 17

TRANSACTION STRUCTURE CHART 19
RISK FACTORS 20
USE OF PROCEEDS 91
THE ISSUER 92
- Limited Purpose and Limited Assets 92
- Capitalization and Property of the Issuer 92

THE GRANTOR TRUST 93
- Limited Purpose and Limited Assets 93
- Property of the Grantor Trust 94
- Beneficial Ownership Interest in the Grantor Trust 94

Page

THE SPONSORS 94
- APL 94
- Retaining Sponsor 96

THE Loan Transferor 96
THE DEPOSITOR 96
THE SERVICER 96
THE BACKUP SERVICER 97
THE BACKUP SERVICER SUBCONTRACTOR 98
THE TRUSTEES 98
- The Owner Trustee 98
- The Grantor Trust Trustee and the Grantor Trust Certificate Registrar 100
- The Indenture Trustee 100

THE NOTE REGISTRAR, THE PAYING AGENT AND THE ISSUER CERTIFICATE REGISTRAR 101
THE COLLATERAL AGENT 102
THE PARTNER BANKS 102
THE LOAN DATA AGENT 103
THE LOAN SELLERS 103
THE ACHIEVE LOAN PROGRAM 104
- Bank Program 104
- Marketing 105
- Credit Policy 106
- Proprietary Credit Models 106
- Closing and Funding 108

SERVICING POLICIES AND PROCEDURES 108
- Servicing Locations 108
- Records Management and Storage 108
- Billing and Payments 109
- Servicing and Collection Activities 109

DESCRIPTION OF THE LOANS 111
- Historical Information with respect to Achieve Personal Loans 111
- Loan Selection 112
- Loan Level Representations 112
- Loan Servicing and Collection 114
- Characteristics of the Statistical Loan Pool 114

PREPAYMENT AND YIELD CONSIDERATIONS 122
DESCRIPTION OF THE NOTES 139
- General 139
- Securities Law Restrictions 139
- Delivery of Notes 140
- Payments of Interest 140
- Payments of Principal 141
- Exchange Notes and Exchangeable Notes 141
- Credit Enhancement 143
- Optional Redemption 145

Limitation on Right to Institute Bankruptcy and Other Proceedings 146
Amortization Events 146
Events of Default 147
Rights Upon Event of Default 148
Waiver of Past Defaults 149
Book-Entry Registration 149
APPLICATION OF AVAILABLE FUNDS 152
Sources of Funds for Distributions 152
Priority of Payments 152
DESCRIPTION OF THE BASIC DOCUMENTS 157
Transfer Agreements 157
Accounts 158
Sale of Charged-Off Loans, Bankruptcy Loans and Delinquent Loans 159
Servicing 160
Administration Agreement 169
Loan Data Agent Agreement 170
Collateral Agent Matters 171
Replacement or Termination of Trustees, Paying Agent, Collateral Agent, Administrator or Loan Data Agent 172
Amendment 174
Termination of the Indenture 180
Fees and Expenses 180
STATEMENTS TO NOTEHOLDERS 183
Compliance Statements 183
MATERIAL LEGAL ASPECTS OF THE LOANS 185
General 185
Regarding the Servicemembers Civil Relief Act 185
Regarding Consumer Protection Laws 185
U.S. CREDIT RISK RETENTION 188
General 188
CERTAIN FEDERAL INCOME TAX CONSIDERATIONS 190
General 190
Tax Characterization of the Issuer and the Notes 190
Consequences to U.S. Note Owners of Rated Notes 193
Consequences to Non-U.S. Note Owners of Rated Notes 198
State and Local Tax Consequences 201
ERISA CONSIDERATIONS 203
Special Considerations Applicable to Insurance Company General Accounts 205
CERTAIN INVESTMENT COMPANY ACT CONSIDERATIONS 206
RATINGS OF THE NOTES 206
PLAN OF DISTRIBUTION 207
LEGAL MATTERS 209
GLOSSARY 210
INDEX OF DEFINED TERMS 233

Appendix A Historical Pool Information

Schedule I Cumulative Net Loss Ratio Amortization Event

Schedule II Cumulative Net Loss Ratio Step-Up Event

Schedule III Exchangeable Combinations

SUMMARY

This summary describes the main terms of the offering of the Notes. This summary does not contain all of the information that may be important to a prospective investor. To fully understand the terms of the offering of the Notes, prospective investors need to read this Private Placement Memorandum in its entirety.

Certain capitalized terms used herein are defined elsewhere in this Private Placement Memorandum. See the "*Glossary*" and "*Index of Defined Terms*" in this Private Placement Memorandum.

Principal Parties

Issuer

ACHV ABS Trust 2024-2PL, a Delaware statutory trust, will be the Issuer under the Indenture. The Issuer will issue the Notes pursuant to the Indenture and will be solely liable for their payment. The Issuer will be the sole beneficiary and equity owner of the Grantor Trust. The Issuer's principal assets will consist of (i) the Grantor Trust Certificate representing a 100% undivided beneficial ownership interest in the Grantor Trust (which will own a pool of unsecured consumer loans, as described below) and the rights related thereto and (ii) the amounts on deposit in the Payment Account and the Reserve Fund. The Issuer will issue the Issuer Trust Certificate, representing 100% of the undivided beneficial ownership interest in the Issuer, to the Depositor on the Closing Date pursuant to the Issuer Trust Agreement. It is not expected that any funds will be distributed on the Issuer Trust Certificate.

Grantor Trust

ACHV ABS Grantor Trust 2024-2PL, a Delaware statutory trust, will own a pool of unsecured consumer loans consisting of Achieve Personal Loans that were originated by a Partner Bank within the Achieve Loan Program and will be contributed to the Grantor Trust through a series of transactions to occur on the Closing Date, as further described under *"—Transfer Agreements*" below and "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum and in the definition of "*Loans*" in the "*Glossary*" in this Private Placement Memorandum. The Loans will be the Grantor Trust's principal assets. The Loans will be pledged by the Grantor Trust to the Indenture Trustee for the benefit of the Secured Parties pursuant to the Indenture. The Grantor Trust will issue the Grantor Trust Certificate to the Issuer on the Closing Date pursuant to the Grantor Trust Agreement.

Sponsors

Each of (i) APL and (ii) Jefferies LLC ("Jefferies") is a sponsor of the transaction described in this Private Placement Memorandum (each, a "Sponsor" and together the "Sponsors"). On the Closing Date, (i) APL will acquire all of the Loans from the Loan Sellers (ii) Jefferies, through its interest in the Loan Transferor, will indirectly acquire all of the Loans from APL and (iii) through a series of transactions described under "*—Transfer Agreements*" below and in "*Description of the Basic Documents— Transfer Agreements*" in this Private Placement Memorandum, all of the Loans will then be contributed to the Grantor Trust and pledged to the Indenture Trustee. In connection with the conveyance of the Loans to the Loan Transferor, APL will make certain representations and warranties and will agree to certain purchase and indemnity obligations that, in each case, will be assigned to the Grantor Trust as further described under "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum.

Loan Transferor

JACV, a Delaware statutory trust (the "Loan Transferor"), will acquire all of the Loans from APL on the Closing Date. Upon acquisition thereof by the Loan Transferor, such Loans will be, through a series of transactions described under "*—Transfer Agreements*" below and in "*Description of the Basic Documents—Transfer Agreements*", contributed to the Grantor Trust and pledged to the Indenture Trustee. JACV is wholly owned by Jefferies Funding LLC and is an Affiliate of Jefferies.

Depositor

ACHV ABS Master Depositor Trust, a Delaware statutory trust (the "Depositor"), was formed by APL pursuant to the Trust Agreement, dated as of July 31, 2024, between APL, as settlor, and Wilmington Savings Fund Society, FSB, as owner trustee, to be amended and restated by the Amended and Restated Trust Agreement to be dated as of the Closing Date, between APL, as settlor and as administrator, and Wilmington Savings Fund Society, FSB, as owner trustee and as certificate registrar (the "Depositor Trust Agreement").

The Depositor acquired 100% of the beneficial interests in the Issuer pursuant to the First Amended and Restated Trust Agreement of the Issuer, dated as of August 1, 2024, among the Depositor, FREED ABS Master Depositor Trust and the Owner Trustee, to be amended and restated by the Second Amended and Restated Trust Agreement, to be dated as of the Closing Date (the "Trust Agreement"), among the Depositor, the Owner Trustee, the Issuer Certificate Registrar, the Paying Agent and the Administrator.

Indenture Trustee, Note Registrar, Paying Agent and Issuer Certificate Registrar

Wilmington Trust, National Association, a national banking association ("WTNA"), will serve as indenture trustee (in such capacity, the "Indenture Trustee") and as note registrar (in such capacity, the "Note Registrar") under the Indenture, as paying agent (in such capacity, the "Paying Agent") for the Issuer under the Indenture and the Trust Agreement, and as certificate registrar (in such capacity, the "Issuer Certificate Registrar") for the Issuer under the Trust Agreement.

Servicer

APL will service the Loans on behalf of the Grantor Trust pursuant to the Servicing Agreement. In the event APL is terminated as Servicer under the Servicing Agreement, the Backup Servicer will be obligated to become, or appoint a Backup Servicer Subcontractor (as defined below) to become, the Successor Servicer.

Backup Servicer

WTNA will serve as backup servicer (in such capacity, the "Backup Servicer") under the Backup Servicing Agreement, to be dated as of the Closing Date (the "Backup Servicing Agreement"), among APL, as Servicer, the Grantor Trust and WTNA, as Backup Servicer. The Backup Servicer will be obligated to perform certain backup services for the Grantor Trust and to become the Successor Servicer if the Servicer is terminated under the Servicing Agreement. Under the Backup Servicing Agreement, the Backup Servicer will be entitled to appoint a subcontractor (a "Backup Servicer Subcontractor") to perform the duties and obligations of the Backup Servicer, including providing the backup servicing services and the successor servicing services under the Backup Servicing Agreement. Generally, the use of a Backup Servicer Subcontractor will not relieve the Backup Servicer of any of its obligations under the Backup Servicing Agreement; provided, however that the Backup Servicer will be entitled to appoint a Backup Servicer Subcontractor to directly become the Successor Servicer in which case the Backup Servicer will incur no liability for such appointment or any acts or omission of such Backup Servicer Subcontractor, solely with respect to such Backup Servicer Subcontractor's role as Successor Servicer, and shall have no responsibility to monitor or supervise such Backup Servicer Subcontractor or any of such Backup Servicer Subcontractor's agents, attorneys, custodians or nominees in the performance of the duties to be performed by such Backup Servicer Subcontractor as Successor Servicer as of the effective date of such appointment. Upon acceptance of appointment as Successor Servicer, the Backup Servicer Subcontractor will join as a party to the Backup Servicing Agreement and be liable directly for the obligations of the Successor Servicer under the Backup Servicing Agreement arising on and after the time of the Backup Servicer Subcontractor's acceptance of such appointment as Successor Servicer.

Backup Servicer Subcontractor

Nelnet Servicing, LLC, d/b/a Firstmark Services ("Firstmark"), will be appointed by the Backup Servicer as its initial Backup Servicer Subcontractor on the Closing Date as permitted by the Backup Servicing Agreement. Firstmark, as the initial Backup Servicer Subcontractor, will be designated by the Backup Servicer to perform the duties and obligations of the Backup Servicer under the Backup Servicing Agreement, including providing the backup servicing services and the successor servicing services under the Backup Servicing Agreement. The Backup Servicer may only appoint a Person other than Firstmark or Vervent Inc. ("Vervent"), as its Backup Servicer Subcontractor if at the time of such appointment (a) if any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification is given and (b) such Person services at least $50,000,000 in outstanding principal balance of consumer loans.

Vault Provider

The Grantor Trust will maintain a segregated vault partition (an "eVault") at eOriginal Inc. (the "Vault Provider"), through which it expects to maintain in electronic form the Related Documents related to the Loans. See "*Description of the Basic Documents—Vault Provider Control Agreement*". Pursuant to the Vault Provider Control Agreement among the Vault Provider, the Grantor Trust, the Servicer, Freedom Financial Network, LLC and the Collateral Agent (the "Vault Provider Control Agreement"), the Grantor

Trust and the Vault Provider will provide the Collateral Agent with access to, and control over, the Related Documents maintained in the Grantor Trust's eVault.

Collateral Agent

WTNA will serve as collateral agent pursuant to the Indenture (in such capacity, the "Collateral Agent"). The Collateral Agent will maintain control over the Related Documents maintained in the Grantor Trust's eVault pursuant to the Vault Provider Control Agreement for the exclusive benefit of the Grantor Trust and the Indenture Trustee on behalf of the Secured Parties, and may make dispositions of the Related Documents contained therein only in accordance with the Indenture.

Partner Banks

Each of the Loans was originated by Cross River Bank, a New Jersey state-chartered commercial bank, or Pathward, National Association (formerly known as MetaBank, National Association), a national bank ("Pathward", and together with Cross River Bank, each, a "Partner Bank" and collectively, the "Partner Banks"), and, except for the CRB Retained Loans (as defined below), were initially sold by the applicable Partner Bank under the applicable Bank Purchase Agreement to (i) a Loan Seller or its Affiliates or other designees, and then concurrently or subsequently transferred to a Loan Seller or (ii) another third-party purchaser, and then concurrently or subsequently transferred to a Loan Seller, in each case, as described under "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum. Approximately 25.18% of the Loans (by aggregate Principal Balance as of the Statistical Cutoff Date) consist of Loans that have been retained by Cross River Bank since origination (the "CRB Retained Loans"). Under the applicable Bank Purchase Agreement, each Partner Bank makes limited representations and warranties with respect to the Loans, except for the CRB Retained Loans, and incurs limited repurchase and indemnity obligations relating thereto. See "*Risk Factors – Representations and warranties of APL and the Partner Banks are Limited.*"

Administrator

APL will act as administrator for the Issuer and the Grantor Trust (the "Administrator") as provided in the Administration Agreement, the Grantor Trust Agreement, the Trust Agreement and the other Basic Documents. The Administrator's responsibilities will include, among other things, preparing and making available Monthly Reports to the Grantor Trust, the Backup Servicer, the Paying Agent, the Loan Data Agent and each Rating Agency.

Owner Trustee, Grantor Trust Trustee, Grantor Trust Certificate Registrar, Depositor Trustee and Depositor Certificate Registrar

Wilmington Savings Fund Society, FSB ("WSFS Bank"), a federal savings bank, will serve as the owner trustee of the Issuer pursuant to the Trust Agreement (in such capacity, the "Owner Trustee"), the grantor trust trustee of the Grantor Trust (in such capacity, the "Grantor Trust Trustee") and the grantor trust certificate registrar (in such capacity, the "Grantor Trust Certificate Registrar") pursuant to the Grantor Trust Agreement, and as the depositor trustee and the depositor trust certificate registrar pursuant to the Depositor Trust Agreement.

Loan Sellers

On the Closing Date, APL expects to acquire the Loans from the following entities (each, a "Loan Seller" and collectively, the "Loan Sellers"): (i) FCCF Funding Trust 2018-1, a Delaware statutory trust ("Series B Loan Seller"), which is an which is an Affiliate of APL, (ii) ACM F Acquisition, LLC, a Nebraska limited liability company (the "Nelnet Loan Seller"), which is an affiliate of Firstmark, (iii) Cross River Bank, which is a Partner Bank and an affiliate of CRB Securities, (iv) Achieve Personal Loan Master Pass-Through Trust, a Delaware statutory trust organized in series (the "Pass-Through Master Trust"), on behalf of one or more series thereof, each of which is beneficially owned by one or more of Morgan Stanley, Barclays and/or CRB Securities or their respective affiliates (the Pass-Through Master Trust on behalf of each such series, a "Pass-Through Loan Seller" and collectively, the "Pass-Through Loan Sellers") and (v) one or more additional holders of Loans that are directly or indirectly beneficially owned by investment funds or other entities not affiliated with APL, Firstmark, Cross River Bank or the Initial Purchasers. See *"Risk Factors – Risks Primarily Related to the Notes and the Issuer – There are potential conflicts of interest relating to the Sponsors and the Loan Sellers"* and "*The Loan Sellers*".

Loan Data Agent

DV01, Inc., a Delaware corporation, will serve as loan data agent (the "Loan Data Agent") pursuant to the Loan Data Agent Agreement, to be dated as of the Closing Date, among the Issuer, the Servicer, the

Administrator and the Loan Data Agent. The Loan Data Agent will be obligated to maintain an investor portal at https://dv01.co through which Noteholders and prospective Noteholders can view performance information, which the Issuer expects to be updated on a monthly basis, related to the Loans after the Closing Date. In addition, the Loan Data Agent will assist the Administrator in preparing Monthly Reports; however, the Loan Data Agent will rely upon the Servicer to provide it with ongoing information concerning the Loans. The Loan Data Agent may be terminated by the Issuer at any time after the Closing Date if the Loan Data Agent materially breaches the Loan Data Agent Agreement or with or without cause if no Notes remain Outstanding, in which case the Loan Data Agent would cease providing Loan information through its portal. See "*The Loan Data Agent*".

Transfer Agreements

Prior to the Closing Date, all of the Loans were originated by a Partner Bank and, except for the CRB Retained Loans, sold by such Partner Bank, directly or indirectly, to a Loan Seller. The CRB Retained Loans have been owned by Cross River Bank since origination.

On the Closing Date:

- APL will purchase the Loans (including any accrued and unpaid interest on the Principal Balance of the Loans through and including the Cutoff Date (the "Cutoff Date Accrued Interest")) from the Loan Sellers for a fair market value purchase price payable in a combination of cash and certain notes to be retained by the Loan Sellers (such notes, the "Loan Seller Retained Notes").

- APL will sell and contribute all of its right, title and interest in the Loans to the Loan Transferor, in exchange for cash (including, cash received as net proceeds from the sale of Notes) and the Loan Seller Retained Notes.

- The Loan Transferor will sell and contribute all of its right, title and interest in the Loans to the Depositor, in exchange for cash (received as net proceeds from the sale of Notes), the Loan Seller Retained Notes and the Retaining Sponsor Retained Notes (as defined below under "*—U.S. Credit Risk Retention*").

- The Depositor will sell and contribute all of its right, title and interest in the Loans to the Issuer, in exchange for cash (received as net proceeds from the sale of Notes), the Loan Seller Retained Notes and the Retaining Sponsor Retained Notes.

- The Issuer will contribute all of its right, title and interest in the Loans to the Grantor Trust in exchange for the Grantor Trust Certificate (described under "*—Terms of the Securities—Beneficial Ownership Interest in the Grantor Trust*" below). The Issuer will grant to the Indenture Trustee a security interest in the Grantor Trust Certificate pursuant to the Indenture.

- The Grantor Trust will grant to the Indenture Trustee a security interest in the Loans pursuant to the Indenture.

- APL will make certain representations and warranties with respect to the Loans for the benefit of the Loan Transferor and will agree to certain purchase obligations in the case that any such representations and warranties are breached. The Loan Transferor will assign such rights to the Depositor, who in turn will assign such rights to the Issuer, who in turn will assign such rights to the Grantor Trust. See "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum.

- Net proceeds of the sale of the Notes by the Issuer, after required deposits into the Reserve Fund, will be used by the Issuer to pay the Depositor a portion of the purchase price for the Loans, make a deposit into the Payment Account in an amount equal to the aggregate Unremitted Collections Amounts on the Loans determined as of the Closing Date and pay certain fees and expenses related to the transactions described in this Private Placement Memorandum.

- With respect to the Loans sold by each Pass-Through Loan Seller, the proceeds of the sale of such Loans will be paid to such Pass-Through Loan Seller, each of which is beneficially owned by one or more of Morgan Stanley, Barclays and/or CRB Securities or their respective affiliates. See *"Risk Factors – Risks Primarily Related to the Notes and the Issuer – There are potential*

conflicts of interest relating to the Initial Purchasers." and "*Use of Proceeds.*"

Terms of the Securities

The Notes

The Issuer will issue the following asset-backed notes pursuant to the Indenture:

- Up to $126,581,000 in aggregate principal amount of Class A Notes, designated as the "ACHV ABS Trust 2024-2PL Class A Asset-Backed Notes," due October 27, 2031;
- Up to $62,364,000 in aggregate principal amount of Class B Notes, designated as the "ACHV ABS Trust 2024-2PL Class B Asset-Backed Notes," due October 27, 2031;
- Up to $34,578,000 in aggregate principal amount of Class C Notes, designated as the "ACHV ABS Trust 2024-2PL Class C Asset-Backed Notes," due October 27, 2031;
- Up to $39,827,000 in aggregate principal amount of Class D Notes, designated as the "ACHV ABS Trust 2024-2PL Class D Asset-Backed Notes," due October 27, 2031;
- Up to $100,000 in notional amount of Class R Notes, designated as the "ACHV ABS Trust 2024-2PL Class R Asset-Backed Notes"; and
- Up to $188,945,000 in aggregate principal amount of Class AB Notes, designated as the "ACHV ABS Trust 2024-2PL Class AB Asset-Backed Notes," due October 27, 2031;
- Up to $223,523,000 in aggregate principal amount of Class ABC Notes, designated as the "ACHV ABS Trust 2024-2PL Class ABC Asset-Backed Notes," due October 27, 2031;
- Up to $263,350,000 in aggregate principal amount of Class ABCD Notes, designated as the "ACHV ABS Trust 2024-2PL Class ABCD Asset-Backed Notes," due October 27, 2031;
- Up to $263,450,000 in aggregate Face Amount of Class PT Notes, designated as the "ACHV ABS Trust 2024-2PL Class PT Asset-Backed Notes".

The Class A Notes will bear interest at a fixed rate of 5.07% per annum, the Class B Notes will bear interest at a fixed rate of 5.43% per annum, the Class C Notes will bear interest at a fixed rate of 5.72% per annum and the Class D Notes will bear interest at a fixed rate of 6.40% per annum, each in the manner described under "*—Interest*" below.

The Class R Notes will not bear interest.

Each Class of Exchangeable Notes will bear interest at a rate equal to the weighted average of the interest rate on the Classes of the corresponding Exchange Notes that are Rated Notes based on the Note Balance of such Classes of Exchange Notes for such Interest Period.

The CUSIP and ISIN numbers for each Class of Notes is set forth in "*Description of the Notes—General*" in this Private Placement Memorandum

The Rated Notes will be issued in registered book-entry form in minimum denominations of $100,000 and integral multiples of $1 in excess thereof. The Class R Notes will be issued in registered book-entry form in minimum denominations of $1,200 notional amount and integral multiples of $1 in excess thereof (unless waived by the Issuer in its sole discretion). The Exchangeable Notes will be issued in registered book-entry form and only in permitted denominations of the corresponding Classes of Exchange Notes (after giving effect to any waiver of the type described in the immediately preceding sentence).

The Rated Notes may be sold outside the United States in reliance on Regulation S, in accordance with the terms of the Indenture and as more fully described in "*Notice to Investors/Transfer Restrictions*" in this Private Placement Memorandum.

The Notes will be secured pursuant to the Indenture by the Collateral consisting of (i) substantially all of the assets of the Issuer, which assets will primarily consist of the Grantor Trust Certificate and amounts held by the Issuer in the Payment Account and the Reserve Fund, and (ii) substantially all of the assets of the Grantor Trust, which assets will primarily consist of the Loans. The assets of each of the Issuer and the Grantor Trust are further described under "*—Property of the Issuer and the Grantor Trust*" below.

On each Distribution Date, distributions on the Class R Notes will be subordinated to all payments on the Notes and certain other payments, as and to the extent described under "*—Priority of Payments*" below and "*Application of Available Funds—Priority of Payments*" herein.

The Class R Notes will represent undivided interests in the equity interest in the Issuer, subject to the Rated Notes. To the extent that the proceeds from the assets of the Issuer are insufficient to pay all amounts senior in the priority of payments on any Distribution Date, the Issuer will have no obligation to pay any further amount in respect of the Class R Notes. The notional amount of the Class R Notes is not intended to approximate the offering price or value of the Class R Notes. The Class R Notes are not redeemable for their notional amount.

Beneficial Ownership Interest in the Issuer

On the Closing Date, the Issuer will issue a trust certificate representing a 100% undivided non-economic beneficial ownership interest in the Issuer (the "Issuer Trust Certificate") to the Depositor. The Issuer Trust Certificate is not being offered pursuant to this Private Placement Memorandum. Any information provided in this Private Placement Memorandum regarding the characteristics of the Issuer Trust Certificate is provided only to enhance a prospective investor's understanding of the Notes, including the Class R Notes. Because the Class R Notes will represent 100% of the residual interest in the Trust Estate, it is not expected that any funds will be distributed on the Issuer Trust Certificate.

Beneficial Ownership Interest in the Grantor Trust

On the Closing Date, the Grantor Trust will issue a trust certificate representing a 100% undivided beneficial ownership interest in the Grantor Trust (the "Grantor Trust Certificate") to the Issuer, which will be pledged by the Issuer to the Indenture Trustee for the benefit of the Secured Parties pursuant to the Indenture. The Grantor Trust Certificate is not being offered pursuant to this Private Placement Memorandum. Any information provided in this Private Placement Memorandum regarding the characteristics of the Grantor Trust Certificate is provided only to enhance a prospective investor's understanding of the Notes.

Transfer Restrictions for the Notes

The Notes have not been and will not be registered under the Securities Act or the securities laws of any jurisdiction. No Note or any interest or participation therein can be reoffered, resold, pledged or otherwise transferred unless such reoffer, resale, pledge or transfer is to (1) a QIB in a transaction meeting the requirements of Rule 144A, (2) solely in the case of Rated Notes, a transferee that is not a "U.S. person" (as defined in Regulation S) in a transaction meeting the requirements of Regulation S or (3) the Issuer or APL or one of its direct or indirect subsidiaries in a transaction that would not result in such Notes being subject to registration under the Securities Act, and, in each case, in accordance with the terms of the Indenture and as more fully described in "*Notice to Investors/Transfer Restrictions*" in this Private Placement Memorandum.

Exchangeable Notes

As described in this Private Placement Memorandum, the Exchange Notes may be exchanged for the Exchangeable Notes. Investors interested in exchanging their Notes must carefully follow the instructions for such exchanges. See "*Description of the Notes—Exchange Notes and Exchangeable Notes—Procedures.*" Schedule III of this Private Placement Memorandum shows the available combinations of Exchange Notes that can be exchanged for Exchangeable Notes and *vice versa*. To the extent Exchangeable Notes are issued on the Closing Date, Exchange Notes with an initial Outstanding Amount equal to the initial Outstanding Amount of such Exchangeable Notes issued on the Closing Date will be deemed to have been exchanged for such Exchangeable Notes on the Closing Date in a permissible exchange combination described in Schedule III of this Private Placement Memorandum (the "Exchangeable Combinations").

The characteristics of the Exchangeable Notes will generally reflect the characteristics of the corresponding Exchange Notes and *vice versa*. However, the Exchangeable Notes will not be rated by any Rating Agency, even if they have been issued solely in exchange for a combination of Rated Notes. Accordingly, Exchangeable Notes may be less liquid than the corresponding Rated Notes for which they have been exchanged. The Exchangeable Notes are not separate legal obligations of the Issuer but are Notes issued by the Issuer which represent a combination (as described in Schedule III of this Private Placement Memorandum) of Classes of Exchange Notes with the payment, voting and consent rights and obligations of such Exchange Notes. References herein to the phrase "Outstanding Amount of all Classes of Notes" mean the aggregate sum of the Outstanding Amount of each Class of Notes excluding, to avoid duplication, the Note Balance of the Exchangeable Notes.

In addition, see "*Description of the Notes—Exchange Notes and Exchangeable Notes—Procedures*" and "*—Additional Considerations*" in this Private Placement Memorandum for a description of the Exchangeable

Notes and exchange procedures and fees and other important additional considerations to be considered before making an exchange.

Important Dates

Cutoff Date

The Cutoff Date with respect to the Loans to be transferred to the Issuer and contributed to the Grantor Trust on the Closing Date is expected to be on or about the close of business on August 23, 2024.

Statistical Cutoff Date

The Statistical Cutoff Date with respect to the Statistical Loan Pool (as defined below) is the close of business on July 23, 2024.

Closing Date

The Closing Date is expected to be on or about August 29, 2024.

Distribution Dates

The Distribution Dates will be the 25th day of each month (or, if the 25th day is not a Business Day, the next succeeding Business Day). The first Distribution Date will be the Initial Distribution Date.

Record Dates

On each Distribution Date, the Paying Agent, on behalf of the Issuer, will be required to pay from Available Funds on deposit in the Payment Account and any amounts withdrawn from the Reserve Fund to the holders of record of the Notes as of the related Record Date, the amounts described below under "—*Priority of Payments.*"

With respect to any Distribution Date, the Record Date will be the close of business on the Business Day immediately preceding such Distribution Date or, if the Notes have been issued in fully registered, definitive form, the last Business Day of the immediately preceding Collection Period.

Collection Period

The Collection Period for each Distribution Date will be the calendar month immediately preceding the calendar month in which that Distribution Date occurs or, for the first Distribution Date, the period beginning on but excluding the Cutoff Date to and including the last day of the calendar month immediately preceding the calendar month in which the first Distribution Date occurs.

Interest

On each Distribution Date, the Issuer will pay interest on the Rated Notes at the rates specified under "*Description of the Notes—Payments of Interest*" in this Private Placement Memorandum. Interest on the Rated Notes will accrue for each Interest Period and will be calculated on the basis of a 360-day year consisting of twelve 30-day months (or in the case of the first Distribution Date, the period from and including the Closing Date to but excluding the first Distribution Date, on the basis of a 30-day month).

The Class R Notes will not bear interest.

Each Class of Exchangeable Notes will bear interest at a rate equal to the weighted average of the interest rate on the Classes of the corresponding Exchange Notes that are Rated Notes based on the Note Balance of such Classes of Exchange Notes for such Interest Period.

All interest that is due but not paid on any Distribution Date will be due on the next Distribution Date, together with interest on the unpaid amount at the applicable interest rate. Failure to pay interest that is due on the Controlling Class of Notes that continues for five (5) Business Days will be an Event of Default. Failure to pay interest that is due on any class of Notes that is not part of the Controlling Class will not be an Event of Default.

Priority of Payments

Priority of Payments prior to Acceleration of the Notes

On each Distribution Date prior to the acceleration of the Notes due to an Event of Default, the Paying Agent, in accordance with the Monthly Report for such Distribution Date prepared by the Administrator, will be required to apply or cause to be applied Available Funds on deposit in the Payment Account or the Reserve Fund to make the following payments and deposits in the following order of priority (subject to the next succeeding sentence in the event Exchange Notes have been exchanged for Exchangeable Notes):

(i) *pro rata*, to (A) the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Note Registrar, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar, the Paying Agent and the Collateral Agent, to the

extent not previously paid, *pro rata* (i) any accrued and unpaid fees then due to them, and (ii) any accrued and unpaid expenses and indemnities then due to them, up to a maximum aggregate amount of expenses and indemnities of $200,000 in any calendar year; *provided* that such annual cap shall not apply with respect to the expenses and indemnities payable after the occurrence and during the continuation of an Event of Default or upon the optional redemption of the Notes in accordance with the Indenture, and any such expenses and indemnities not paid in full in any calendar year shall be payable in subsequent years (subject to the annual cap for such year) until paid in full, and (B) the Backup Servicer, (i) any accrued and unpaid fees (other than, with respect to the Backup Servicer acting in its capacity as Successor Servicer, servicing fees, Ancillary Fees (but only to the extent such Ancillary Fees have been received as Available Collections) and Collection Fees, which shall be payable pursuant to clause (ii)(A) below) and (ii) expenses and indemnities (including those of a Successor Servicer, as applicable), in each case, then due to it, up to a maximum aggregate amount of expenses and indemnities of $250,000 in any calendar year;

(ii) *pro rata,* to (A) the Servicer, to the extent not retained by the Servicer from collections on the Loans, (1) any servicing fees then due and owing to the Servicer up to a maximum amount for such Distribution Date of the greater of the Servicing Fee for the related Collection Period and $7,500, (2) Ancillary Fees then due and owing to the Servicer (but only to the extent such Ancillary Fees have been received as Available Collections), (3) Collection Fees (for payment by the Servicer to the applicable Collection Agents, to the extent not retained by such Collection Agents) then due and owing to the applicable Collection Agents, and (4) other amounts relating to mistaken deposits, postings or checks returned for insufficient funds, and (B) to any Successor Servicer, Transition Costs not to exceed $150,000 (including onboarding fees) in the aggregate;

(iii) *pro rata*, to (A) the Administrator, any accrued and unpaid fees, expenses and indemnities then due to it, up to a maximum aggregate amount of $45,000 in any calendar year, and (B) the Loan Data Agent, any accrued and unpaid fees, expenses and indemnities then due to it, but in the case of expenses and indemnities, only up to a maximum aggregate amount of $25,000 in any calendar year;

(iv) *pro rata*, to the Class A Noteholders, any accrued and unpaid Class A Interest Distributable Amount;

(v) to the Principal Distribution Allocation, an amount equal to the First Priority Principal Distribution Amount for such Distribution Date;

(vi) *pro rata*, to the Class B Noteholders, any accrued and unpaid Class B Interest Distributable Amount;

(vii) to the Principal Distribution Allocation, an amount equal to the Second Priority Principal Distribution Amount for such Distribution Date;

(viii) *pro rata*, to the Class C Noteholders, any accrued and unpaid Class C Interest Distributable Amount;

(ix) to the Principal Distribution Allocation, an amount equal to the Third Priority Principal Distribution Amount for such Distribution Date;

(x) *pro rata*, to the Class D Noteholders, any accrued and unpaid Class D Interest Distributable Amount;

(xi) to the Principal Distribution Allocation, an amount equal to the Fourth Priority Principal Distribution Amount for such Distribution Date;

(xii) to the Reserve Fund, the Reserve Fund Deficiency for such Distribution Date, if any;

(xiii) to the Principal Distribution Allocation, an amount equal to the Regular Principal Distribution Amount for such Distribution Date;

(xiv) *pro rata*, to the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar, the Note Registrar, the Paying Agent, the Servicer, the Administrator, the Backup Servicer, the Collateral Agent, the Vault Provider and the Loan Data Agent, any unpaid

fees, expenses and indemnities then due that are in excess of the related caps or monthly or annual limitations, if applicable, in clauses (i), (ii) and (iii) above; and

(xv) any remaining Available Funds will be distributed, on a *pro rata* basis, to the Class R Noteholders.

In the event that any Exchange Notes have been exchanged for the related Class of Exchangeable Notes in an Exchangeable Combination, such Class of Exchangeable Notes received in such an exchange shall be entitled to a proportionate share of the interest, principal and other payments, as applicable, otherwise allocable to the Exchange Notes that were exchanged for Exchangeable Notes, in accordance with the payment priorities set forth above.

Principal Distribution Allocation

On each Distribution Date, as set forth in the Monthly Report for such Distribution Date, the Paying Agent will be required to apply or cause to be applied all amounts held as the Principal Distribution Allocation, sequentially:

(i) *first*, to the Class A Noteholders, *pro rata* based on each Class A Noteholder's portion of the Class A Note Balance, until the Class A Note Balance has been reduced to the Class A Target Note Balance;

(ii) *second*, to the Class B Noteholders, *pro rata* based on each Class B Noteholder's portion of the Class B Note Balance, until the Class B Note Balance has been reduced to the Class B Target Note Balance;

(iii) *third*, to the Class C Noteholders, *pro rata* based on each Class C Noteholder's portion of the Class C Note Balance, until the Class C Note Balance has been reduced to the Class C Target Note Balance; and

(iv) *fourth*, to the Class D Noteholders, *pro rata* based on each Class D Noteholder's portion of the Class D Note Balance, until the Class D Note Balance has been reduced to zero.

Any remaining amounts held as the Principal Distribution Allocation will be required to be applied as Available Funds to make distributions pursuant to the priority of payments for, and to the extent not paid on, the same Distribution Date. Any Class of Exchangeable Notes shall be entitled to a proportionate share of the Principal Distribution Allocation otherwise allocable to the Exchange Notes that constitute such Exchangeable Notes, in accordance with the payment priorities set forth above.

"Class A Target Note Balance" means, (i) with respect to any Distribution Date for which an Amortization Event does not exist, an amount, not less than zero, equal to the excess of (x) the Pool Balance as of the end of the related Collection Period over (y) the Class A Target Overcollateralization Amount for such Distribution Date, and (ii) with respect to any Distribution Date for which an Amortization Event exists, zero.

"Class A Target Overcollateralization Amount" means, with respect to any Distribution Date, an amount equal to the sum of (x) (1) if no Step-Up Event exists on such date, 62.00% of the Pool Balance as of the end of the most recently ended Collection Period and (2) if a Step-Up Event exists on such date, 70.00% of the Pool Balance as of the end of the most recently ended Collection Period and (y) 4.00% of the Cutoff Date Pool Balance.

"Class B Target Note Balance" means, (i) with respect to any Distribution Date for which an Amortization Event does not exist, an amount, not less than zero, equal to the excess of (x) the Pool Balance as of the end of the related Collection Period over (y) the sum of (a) the Class B Target Overcollateralization Amount for such Distribution Date and (b) the Class A Target Note Balance for such Distribution Date, and (ii) with respect to any Distribution Date for which an Amortization Event exists, zero.

"Class B Target Overcollateralization Amount" means, with respect to any Distribution Date, an amount equal to the sum of (x) (1) if no Step-Up Event exists on such date, 47.00% of the Pool Balance as of the end of the most recently ended Collection Period and (2) if a Step-Up Event exists on such date, 55.00% of the Pool Balance as of the end of the most recently ended Collection Period and (y) 3.50% of the Cutoff Date Pool Balance.

"Class C Target Note Balance" means, (i) with respect to any Distribution Date for which an Amortization Event does not exist, an amount, not less than zero, equal to the excess of (x) the Pool Balance as of the end of the related Collection Period over (y) the sum of (a) the Class C Target Overcollateralization Amount for such Distribution Date, (b) the Class A Target Note Balance for such Distribution Date and (c) the Class B Target Note Balance for such Distribution Date and (ii) with respect to any Distribution Date for which an Amortization Event exists, zero.

"Class C Target Overcollateralization Amount" means, with respect to any Distribution Date, an amount equal to the sum of (x) (1) if no Step-Up Event exists on such date, 37.00% of the Pool Balance as of the end of the most recently ended Collection Period and (2) if a Step-Up Event exists on such date, 45.00% of the Pool Balance as of the end of the most recently ended Collection Period and (y) 3.00% of the Cutoff Date Pool Balance.

"Step-Up Event" means with respect to any Distribution Date, the circumstance that the Cumulative Net Loss Ratio for such Distribution Date exceeds the percentage set forth opposite the month of such Distribution Date as specified on Schedule II hereto.

Priority of Payments After Acceleration of the Notes

Notwithstanding the foregoing, the unpaid principal amount of the Notes shall be due and payable, to the extent not previously paid, on the date on which an Event of Default shall have occurred and be continuing, if the Majority Holders have caused the Notes to be declared immediately due and payable in the manner provided in the Indenture. On each Distribution Date following acceleration of the Notes due to an Event of Default that has not been rescinded or annulled, the Paying Agent will be required to apply or cause to be applied all Available Funds to make the following payments and deposits in the following order of priority (subject to the next succeeding sentence in the event Exchange Notes have been exchanged for Exchangeable Notes):

(1) *pro rata*, to the Backup Servicer, any Successor Servicer, the Servicer (solely in respect of Collection Fees for payment by the Servicer to the applicable Collection Agents), the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Note Registrar, the Paying Agent, the Collateral Agent, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar and the Vault Provider and second, *pro rata*, to the Administrator, the Servicer and the Loan Data Agent, the unpaid fees, expenses and indemnities due and owing to such entities pursuant to the priorities set forth in clauses (i), (ii), (iii) and (xiv) of the priority of payments set forth above under "*—Priority of Payments prior to Acceleration of the Notes*", without regard to the caps or monthly or annual limitations set forth in such clauses, except in the case of the Loan Data Agent, for which the cap in clause (iii) of the priority of payments set forth above under "*—Priority of Payments prior to Acceleration of the Notes*" shall continue to apply in this clause (1);

(2) *pro rata*, to the Class A Noteholders, any accrued and unpaid Class A Interest Distributable Amount;

(3) *pro rata*, to the Class A Noteholders, payments of principal, until the Class A Note Balance has been reduced to zero;

(4) *pro rata*, to the Class B Noteholders, any accrued and unpaid Class B Interest Distributable Amount;

(5) *pro rata*, to the Class B Noteholders, payments of principal, until the Class B Note Balance has been reduced to zero;

(6) *pro rata*, to the Class C Noteholders, any accrued and unpaid Class C Interest Distributable Amount;

(7) *pro rata*, to the Class C Noteholders, payments of principal, until the Class C Note Balance has been reduced to zero;

(8) *pro rata*, to the Class D Noteholders, any accrued and unpaid Class D Interest Distributable Amount;

(9) *pro rata*, to the Class D Noteholders, payments of principal, until the Class D Note Balance has been reduced to zero;

(10) to the Loan Data Agent, the unpaid fees, expenses and indemnities due and owing to it to the extent not paid as set forth in clause (1) above; and

(11) any remaining Available Funds will be distributed, on a *pro rata* basis, to the Class R Noteholders.

In the event that any Exchange Notes have been exchanged for the related Class of Exchangeable Notes in an Exchangeable Combination, such Class of Exchangeable Notes received in such an exchange shall be entitled to a proportionate share of the interest, principal and other payments, as applicable, otherwise allocable to the Exchange Notes that were exchanged for the Exchangeable Notes, in accordance with the payment priorities set forth above.

Credit Enhancement

General

Credit enhancement for the Rated Notes will consist of overcollateralization, excess spread and the Reserve Fund. The Class A Notes will benefit from the additional credit enhancement provided by the subordination of the Class B Notes, the Class C Notes and the Class D Notes, the Class B Notes will benefit from the additional credit enhancement provided by the subordination of the Class C Notes and the Class D Notes, and the Class C Notes will benefit from the additional credit enhancement provided by the subordination of the Class D Notes.

If Available Collections, together with amounts available in the Reserve Fund, are insufficient to make required payments of principal on the Rated Notes, it is possible that the Rated Notes will not be paid in full, whether at maturity or otherwise.

There is no credit enhancement for the Class R Notes.

Overcollateralization

Overcollateralization represents the amount by which the Pool Balance as of the end of the most recently ended Collection Period (or prior to the end of the first Collection Period, as of the Cutoff Date) exceeds the Note Balance of all Classes of Rated Notes. On the Closing Date, the initial amount of overcollateralization will be approximately 14.70% of the Cutoff Date Pool Balance.

Excess Spread

Excess spread will generally equal (1) the amount of interest collections on the Loans during the related Collection Period minus (2) the sum of all fees, expenses and indemnities of the Issuer (subject to the applicable caps and annual limitations set forth in clauses (i), (ii) and (iii) of the "*—Priority of Payments—Priority of Payments prior to Acceleration of the Notes*" set forth above, at times prior to the acceleration of the Notes due to an Event of Default), including servicing fees, Ancillary Fees, fees, expenses and indemnities of the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Paying Agent, the Note Registrar, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar, the Collateral Agent, the Backup Servicer (including those of a Successor Servicer, as applicable), the Administrator and the Loan Data Agent, and the Transition Costs of any Successor Servicer, any interest payments on the Rated Notes, any required principal payments to be made on the Rated Notes in respect of Priority Principal Distribution Amounts, and any required deposits to be made into the Reserve Fund.

Subordination

Payments of interest, and in certain instances principal, on the Class A Notes are higher in priority than payments of principal and interest on the Class B Notes, the Class C Notes and the Class D Notes, payments of interest, and in certain instances principal, on the Class B Notes are, in turn, higher in priority than payments of principal and interest on the Class C Notes and the Class D Notes and payments of interest, and in certain instances principal, on the Class C Notes are, in turn higher in priority than payments of principal and interest on the Class D Notes. Consequently, to the extent that the Collateral does not generate enough cash to satisfy the Issuer's obligations on any particular Distribution Date, any shortfall on such Distribution Date will be absorbed first by the holders of the Class D Notes, then by the holders of the Class C Notes, then by the holders of the Class B Notes and then by the holders of the Class A Notes. Any shortfall allocable to the Exchange Notes that have been exchanged for Exchangeable Notes will be borne proportionately by the Class of Exchangeable Notes. On the Closing Date, the initial Note Balance of the Class A Notes, the Class B Notes, Class C Notes and the Class D Notes will equal approximately 41.00%, 20.20%, 11.20% and 12.90%, respectively, of the Cutoff Date Pool Balance.

The Class R Notes are subordinated to all other payments and distributions required to be made by the Issuer.

Reserve Fund

The Notes are expected to benefit from a Reserve Fund that will be funded after the Closing Date to the extent there are Available Funds for such purpose. On any Distribution Date when the amounts on deposit in the Reserve Fund (after giving effect to all required withdrawals from the Reserve Fund on such Distribution Date) are below the Reserve Fund Required Amount, which is defined to be the lesser of (i) the Outstanding Amount of all Classes of Rated Notes as of such date prior to giving effect to any payments of principal of or redemptions of the Rated Notes on such Distribution Date and (ii) greater of (x) an amount equal to 0.25% of the Cutoff Date Pool Balance and (y) an amount equal to 0.50% of the aggregate outstanding Principal Balance of all Loans as of the last day of the related Collection Period, then

the Paying Agent will be required to deposit into the Reserve Fund, solely as set forth in and in accordance with the Monthly Report, in an amount equal to the Reserve Fund Deficiency from amounts collected on or in respect of the Loans during the related Collection Period to the extent available in accordance with clause (xii) under "*—Priority of Payments—Priority of Payments prior to Acceleration of the Notes*" described above.

If the Available Collections are insufficient to cover the amounts required to be paid by the Issuer according to clauses (i) through (xi) under "*—Priority of Payments—Priority of Payments prior to Acceleration of the Notes*" above, the Paying Agent will be required to withdraw amounts from the Reserve Fund, in accordance with the Monthly Report, to cover the shortfall and treat that amount as Available Funds. The Paying Agent also will be required to withdraw amounts from the Reserve Fund to the extent needed to pay each Class of Rated Notes in full on its respective Maturity Date or to be treated as Available Funds on the first Distribution Date following the acceleration of the Notes after an Event of Default.

For a more detailed description of the credit enhancement for the Notes, see "*Description of the Notes—Credit Enhancement*" in this Private Placement Memorandum.

Controlling Class of Notes

The Controlling Class of Notes will be (i) if any Class A Notes are Outstanding, the Class A Notes, (ii) if no Class A Notes are Outstanding and any Class B Notes are Outstanding, the Class B Notes, (iii) if no Class A Notes or Class B Notes are Outstanding and any Class C Notes are Outstanding, the Class C Notes, (iv) if no Class A Notes, Class B Notes or Class C Notes are Outstanding and any Class D Notes are Outstanding, the Class D Notes or (v) if no Class A Notes, Class B Notes, Class C Notes or Class D Notes are Outstanding and any Class R Notes are Outstanding, the Class R Notes.

Holders of the Controlling Class of Notes will be able to control certain decisions regarding the Issuer, including whether to declare or waive an Event of Default, accelerate the applicable Maturity Dates of all of the Classes of Notes upon the occurrence of an Event of Default or direct any remedial action under the Indenture, approve certain amendments, modifications or waivers to, or assignments of, the Indenture or other Basic Documents, and to control certain other matters. Holders of Notes that are not part of the Controlling Class of Note will generally not have these rights, but will have certain limited rights specified in the Indenture.

In addition, failure to pay all accrued and unpaid interest on a Controlling Class of Notes (other than the Class R Notes) will trigger an Event of Default under the Indenture. However, failure to pay any accrued and unpaid interest on any other Class of Notes will not result in an Event of Default. If the Class A Notes are outstanding, interest payments on the Class B Notes, the Class C Notes and the Class D Notes may continue to accrue but remain unpaid for so long as principal payments are required to be made on the Class A Notes to maintain the minimum level of collateralization for the Class A Notes. If no Class A Notes are outstanding and any Class B Notes are outstanding, interest payments on the Class C Notes and Class D Notes may continue to accrue but remain unpaid for so long as principal payments are required to be made on the Class B Notes to maintain the minimum level of collateralization for the Class B Notes. If no Class B Notes are outstanding and any Class C Notes are outstanding, interest payments on the Class D Notes may continue to accrue but remain unpaid for so long as principal payments are required to be made on the Class C Notes to maintain the minimum level of collateralization for the Class C Notes. Consequently, holders of the Class B Notes, the Class C Notes and the Class D Notes may receive fewer payments than anticipated, or may receive payments later than anticipated.

Optional Redemption

If, as of the last day of any Collection Period, the Pool Balance shall be less than or equal to 10% of the Cutoff Date Pool Balance, the Redemption Holder will have the option to purchase or cause its designee to purchase all Loans and the related Purchased Loan Assets from the Grantor Trust on any subsequent Distribution Date for a purchase price equal to the "Redemption Price", which will be an amount equal to the Pool Balance as of the last day of the Collection Period immediately preceding the Redemption Date minus (x) amounts received after the last day of such Collection Period (and investment earnings thereon) that are on deposit in the Payment Account on the Business Day immediately preceding the Redemption Date and (y) the aggregate Principal Balance of all Loans that are more than 29 days past due as of the last day of such Collection Period; provided, however that such amount shall be at least equal to the sum as of the Redemption Date of (i) the Outstanding Amount of the Rated Notes, plus (ii) accrued and unpaid interest thereon through the related Interest Period, plus (iii)

all accrued and unpaid Issuer Expenses, minus (iv) amounts on deposit in the Reserve Fund and the Payment Account. The Redemption Price will be distributed in accordance with "*—Priority of Payments*" above on the related Redemption Date, and the Notes will be redeemed.

Amortization Events

With respect to any particular Distribution Date, an Amortization Event exists under the Indenture if either:

(i) the Pool Balance as of the last day of the related Collection Period is equal to or less than 10% of the Cutoff Date Pool Balance (and the Redemption Holder has not exercised its redemption right pursuant to the Indenture), or

(ii) the Cumulative Net Loss Ratio for such Distribution Date exceeds the percentage set forth opposite the month of such Distribution Date as specified on Schedule I hereto. The Cumulative Net Loss Ratio generally measures the running total of the uncollected and unrecovered Principal Balances of the Loans that have become Charged-Off Loans since the Cutoff Date, relative to the Cutoff Date Pool Balance.

If an Amortization Event exists on any particular Distribution Date, all Available Funds remaining after application of clauses (i) through (xii) under "*—Priority of Payments—Priority of Payments prior to Acceleration of the Notes*" above will be applied to the Principal Distribution Allocation and will continue to be so applied on subsequent Distribution Dates until such Amortization Event no longer exists or until the Outstanding Amount of all Classes of Notes has been paid in full.

Events of Default

The Events of Default under the Indenture will consist of the following:

(i) failure by the Issuer to pay any interest on any Note of the Controlling Class when the same becomes due and payable, and such failure shall continue for a period of five (5) Business Days;

(ii) failure by the Issuer to pay in full all of the then outstanding principal of any Class of Rated Notes on the related Maturity Date;

(iii) default in the observance or performance of any material covenant or agreement of the Issuer or the Grantor Trust made in the Indenture (other than a covenant or agreement to pay interest or principal on any Class of Rated Notes or any covenant or agreement a default in the observance or performance of which is specifically dealt with elsewhere under "*Events of Default*") and such default shall continue or not be cured for a period of 30 days (or for such longer period, not in excess of 60 days, as may be reasonably necessary to remedy such default; *provided* that such default is capable of remedy within 60 days and the Issuer or the Grantor Trust, as the case may be, has commenced, or will promptly commence and pursue, all reasonable efforts to remedy such default) after there shall have been given, by registered or certified mail, to the Issuer or the Grantor Trust, as the case may be, by the Indenture Trustee or to the Issuer or the Grantor Trust, as the case may be, and the Indenture Trustee, by the holders of Notes evidencing not less than 25% of the Note Balance of the Controlling Class of Notes, a written notice specifying such default and requiring it to be remedied and stating that such notice is a "Notice of Default," and as a result of such default, the interests of the Noteholders of such Controlling Class are materially and adversely affected and continue to be materially and adversely affected during such 30 day or 60 day period, as applicable;

(iv) any representation or warranty of the Issuer or the Grantor Trust, as the case may be, made in the Indenture or in any certificate or other writing delivered pursuant thereto or in connection therewith proving to have been incorrect in any material adverse respect as of the time when the same shall have been made, and the circumstance or condition in respect of which such representation or warranty was incorrect shall not have been eliminated or otherwise cured for a period of 30 days (or for such longer period, not in excess of 60 days, as may be reasonably necessary to remedy such default; *provided* that such default is capable of remedy within 60 days and the Issuer or the Grantor Trust,

as the case may be, has commenced, or will promptly commence and pursue, all reasonable efforts to remedy such default) after there shall have been given, by registered or certified mail, to the Issuer or the Grantor Trust, as the case may be, by the Indenture Trustee or to the Issuer or the Grantor Trust, as the case may be, and the Indenture Trustee by the Holders of Notes evidencing not less than 25% of the Note Balance of the Controlling Class of Notes, a written notice specifying such incorrect representation or warranty and requiring it to be remedied and stating that such notice is a "Notice of Default" under the Indenture;

(v) the filing of a decree or order for relief by a court having jurisdiction in the premises in respect of the Issuer or the Grantor Trust or any substantial part of the Collateral in an involuntary case under any applicable Insolvency Law now or hereafter in effect, or appointing a receiver, liquidator, assignee, custodian, trustee, sequestrator or similar official of the Issuer or the Grantor Trust or for any substantial part of the Collateral, or ordering the winding-up or liquidation of the Issuer's or the Grantor Trust's affairs, and such decree or order shall remain unstayed and in effect for a period of 60 consecutive days;

(vi) the commencement by the Issuer or the Grantor Trust of a voluntary case under any applicable Insolvency Law now or hereafter in effect, or the consent by the Issuer or the Grantor Trust to the entry of an order for relief in an involuntary case under any such Insolvency Law, or the consent by the Issuer or the Grantor Trust to the appointment or taking possession by a receiver, liquidator, assignee, custodian, trustee, sequestrator or similar official of the Issuer or the Grantor Trust or for any substantial part of the Collateral, or the making by the Issuer or the Grantor Trust of any general assignment for the benefit of creditors, or the failure by the Issuer or the Grantor Trust generally to pay its debts as such debts become due, or the taking of any action by the Issuer or the Grantor Trust in furtherance of any of the foregoing; or

(vii) the Issuer or the Grantor Trust shall be required to register as an "investment company" under the Investment Company Act of 1940, as amended (the "Investment Company Act").

Property of the Issuer and the Grantor Trust

General

The property of the Issuer will include the Grantor Trust Certificate, representing 100% of the beneficial ownership interest in the Grantor Trust. In addition to the Grantor Trust Certificate, the property of the Issuer will include all of the Issuer's right, title and interest in and to (a) all proceeds from the Grantor Trust Certificate received from the Grantor Trust and (b) all amounts on deposit in the Payment Account and the Reserve Fund.

The Grantor Trust will own the pool of Loans to be contributed to it by the Issuer. The acquisition of the Loans and their contribution to the Grantor Trust are described under "*—Transfer Agreements*" above and in "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum. In addition to the Loans, the property of the Grantor Trust will include all of the Grantor Trust's right, title and interest in and to the other Purchased Loan Assets and all Account Collateral related to the foregoing, and its rights under the Basic Documents.

The Loans

The Loans will be acquired by the Grantor Trust on the Closing Date in a series of transactions indirectly from the Loan Sellers, as described in "*—Transfer Agreements*" above and as more fully described under "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum. Neither the Issuer nor the Grantor Trust will be permitted to acquire any additional Loans after the Closing Date.

All of the Loans were originated by a Partner Bank within the Achieve Personal Loan Program (formerly known as the FreedomPlus loan program, and loans originated under the Achieve Personal Loan Program being "Achieve Personal Loans"). Both Partner Banks also originate loans through the Achieve Acceleration Loan program (formerly known as the Consolidation Plus loan program, and loans originated under such program being "Achieve Acceleration Loans", and together with Achieve Personal Loans, "Achieve Loans"). No Achieve Acceleration Loans will be included in the Loans acquired by the Grantor Trust on the Closing Date. See "*The Achieve Loan Program*" in this Private Placement Memorandum. APL will make certain representations and warranties relating to

the Loans, including with respect to the satisfaction of the Loan Level Representations described herein. See "*Description of the Loans – Loan Level Representations*". For a description of the selection process used for the Loans please see "*Description of the Loans – Loan Selection*".

The composition of the Statistical Loan Pool as of the Statistical Cutoff Date was as follows[1]:

Aggregate Current Principal Balance:	$321,139,423
Aggregate Original Principal Balance:	$355,725,974
Number of Loans:	14,488
Weighted Average Original Term:[2]	50 months
Range of Original Terms:[2]	24 months to 60 months
Weighted Average Remaining Term:[3]	45 months
Range of Remaining Terms:[3]	1 month to 60 months
Weighted Average Monthly Payments Remaining:[4]	45 months
Range of Monthly Payments Remaining:[4]	2 months to 60 months
Weighted Average Seasoning:	5 months
Range of Seasoning:	0 month to 57 months
Weighted Average Original FICO® Score:	715
Non-Zero Weighted Average Current FICO® Score:[5]	727
Weighted Average Verified Income:	$157,298
Percentage Verified Income:	100%
Weighted Average APR:	23.40%
Weighted Average Interest Rate:	19.57%
Percentage of Modified Loans:	1.21%
Top 3 States (by Aggregate Current Principal Balance):	CA (13.20%) TX (11.12%) NY (9.40%)

(1) All weighted averages set forth in the table above are weighted on the basis of the current Principal Balance of the Loans as of the Statistical Cutoff Date.
(2) Original Term is based on the original contractual term.
(3) Remaining Term is defined as the difference between the Original Term and the loan's months on book.
(4) Monthly Payments Remaining has been calculated by adding (a) the remaining term of a loan and (b) the number of monthly payments deferred, if any, if a loan has been deferred or had its term extended after March 15, 2020. For loans that do not pay monthly, the number of payments deferred has been converted into equivalent month(s). As of the Statistical Cutoff Date, approximately 1.19% of the Statistical Loan Pool by aggregate Principal Balance has been granted a deferral or had its term extended on or after March 15, 2020, with the remaining loan terms having been extended by the number of monthly (or equivalent months, as the case may be) payments deferred.
(5) Non-Zero Weighted Average Current FICO® Score is as of the Statistical Cutoff Date, for most accounts where a refreshed FICO® Score is obtained.

Statistical Information

The statistical information in this Private Placement Memorandum is based on a statistical pool of loans (the "Statistical Loan Pool") measured as of the Statistical Cutoff Date. The Issuer expects that the Cutoff Date Pool Balance will be approximately $12,404,677 less than the aggregate Principal Balance of the Loan Pool as of the Statistical Cutoff Date (which corresponds to a 3.86% amortization of the Loan Pool over such period), due to, among other things, normal collection activity, Borrower prepayments, delinquencies, defaults or bankruptcies, and removal of Loans that will not satisfy the Loan Level Representations as of the Closing Date. The actual Cutoff Date Pool Balance may vary by up to 5% more or less than the assumed Cutoff Date Pool Balance. There can be no assurance that the characteristics of the Loans as of the Closing Date will be the same as, or not be different from, the characteristics of the Statistical Loan Pool as of the Statistical Cutoff Date or the Cutoff Date. See "*Risk Factors—Risks Primarily Related to the Notes and the Issuer— The characteristics of the loans in the Statistical Loan Pool as of the Statistical Cutoff Date may differ from the characteristics of the Loans owned by the Grantor Trust as of the Closing Date*" in this Private Placement Memorandum.

Servicing and Servicer Compensation

APL's responsibilities as Servicer will include, among other things, collection of payments on the Loans and providing any and all cooperation requested by the Administrator in order to assist the Administrator in furnishing the Monthly Report for each Distribution Date.

For its services, the Servicer will receive (a) a servicing fee for each Collection Period, equal to the greater of (i) the product of (1) 1.00%, (2) the average of the aggregate outstanding principal balance of all Loans that are not Severely Delinquent Loans or Charged-Off Loans as of the first day of the related Collection Period and as of the last day of the related Collection Period and (3) 1/12, and (ii) $7,500; *provided* that for the initial Collection Period, such servicing fee shall be equal to the greater of (i) the product of (A) the actual number of days of the initial Collection Period divided by 360 (on the basis of a 30-day month), (B) the servicing fee rate of 1.00% and (C) the average of the aggregate outstanding principal balance of all Loans that are not Severely Delinquent Loans or Charged-Off Loans as of the first day of the initial Collection Period and as of the last day of the initial Collection Period, and (ii) $7,500, and (b) with respect to any Loan, ancillary servicing type fees or compensation ("Ancillary Fees") derived from such

Loan after the Closing Date, including, but not limited to, insufficient fund charges, name change fees and other similar servicing related fees imposed by Servicer in the exercise of its Reasonable Servicer Discretion in relation to servicing activities in amounts consistent with applicable laws, the Related Documents of such Loan and the Servicing Agreement, but in all events not including or duplicative of (1) servicing fees, (2) origination fees, (3) payments of principal and interest, (4) payments of default interest or late payment fees or (5) Collection Fees.

If the Backup Servicer or a Backup Servicer Subcontractor becomes the Successor Servicer, then the servicing fee payable to it may instead be a monthly servicing fee ranging from $7.00 to $8.75 per Loan (depending upon the volume of Loans serviced for the Grantor Trust) together with additional per Loan fees for certain past due Loans, Loans in litigation or arbitration and Loans assigned to Collection Agents; *provided* that in no event will such monthly servicing fee payable to the Backup Servicer as the Successor Servicer be less than $7,500 for any Collection Period.

See "*Description of the Basic Documents—Servicing Compensation*" and *"—Backup and Successor Servicing*" in this Private Placement Memorandum.

Ratings of the Notes

It is a condition of issuance of the Rated Notes that DBRS, Inc. ("DBRS") and Kroll Bond Rating Agency, LLC ("KBRA") assign ratings equal to or better than the following ratings to the Rated Notes on the Closing Date:

Rated Notes	DBRS Rating	KBRA Rating
Class A	AAA (sf)	AAA (sf)
Class B	AA (low) (sf)	AA- (sf)
Class C	A (low) (sf)	A- (sf)
Class D	Not Rated	BBB- (sf)

Each of DBRS and KBRA is referred to herein as a "Rating Agency", in each case prior to the Closing Date and thereafter for so long as it rates any of the Rated Notes at the request of the Issuer or APL. The Class R Notes and the Exchangeable Notes will not be rated. APL did not solicit a rating on the Class D Notes from DBRS. A security rating is not a recommendation to buy, sell or hold securities and may be revised or withdrawn at any time by the assigning Rating Agency. No transaction party will be responsible for monitoring any changes to the ratings on the Rated Notes. See "*Risk Factors — Risks Primarily Related to the Notes and the Issuer — The ratings of the Notes may be withdrawn or lowered, or the Notes may receive an unsolicited rating, which may adversely affect the liquidity or market value of the Notes. In addition, the Rating Agencies may have a conflict of interest because APL pays the fees charged by each Rating Agency for its rating services in connection with rating the Notes.*"

U.S. Credit Risk Retention

The federal credit risk retention rules, 17 C.F.R. Part 246 (the "U.S. Risk Retention Rules"), require the sponsor of a securitization transaction to retain an economic interest in the credit risk of the securitized assets, either directly or through a majority-owned affiliate. Each of APL and Jefferies is a sponsor of the securitization transaction described in this Private Placement Memorandum. Pursuant to the U.S. Risk Retention Rules, if more than one Persons satisfies the definition of sponsor thereunder, one such Person must comply with such duties and obligations, and Jefferies has agreed to act in such capacity (Jefferies in such capacity, the "Retaining Sponsor"). The Retaining Sponsor or its majority-owned affiliate will acquire on the Closing Date at least 5% of the initial principal balance of each Class of Rated Notes and at least 5% of the initial notional amount of the Class R Notes (such Notes, the "Retaining Sponsor Retained Notes", and which holding, in each case, may include Exchangeable Notes representing an interest in the corresponding Exchange Notes), as described under "*U.S. Credit Risk Retention*". The Retaining Sponsor believes that the acquisition of such Retaining Sponsor Retained Notes by the Retaining Sponsor or its majority-owned affiliate is consistent with the requirements of the U.S. Risk Retention Rules and will satisfy the Retaining Sponsor's obligations as sponsor thereunder as of the Closing Date. See "*U.S. Credit Risk Retention*" in this Private Placement Memorandum for additional information regarding the U.S. Risk Retention Rules. For risks associated with the U.S. credit risk retention regulations that may affect the Sponsors and the Noteholders, see "*Risk Factors – Risks Primarily Related to the Notes and the Issuer – Risks associated with financial regulatory legislation*", and "*—Certain U.S. regulatory matters could delay or reduce payments on the Notes*".

EU Securitization Regulation and UK Securitization Regulation

None of the parties to the transaction contemplated by this Private Placement Memorandum nor any of their respective affiliates undertakes, or intends, to retain a

material net economic interest in such transaction, or to take any other action with regard to such transaction, in a manner prescribed or contemplated by the EU Securitization Regulation or the UK Securitization Regulation (as each such term is defined below). In particular, no such party undertakes to take any action, or refrain from taking any action, for purposes of, or in connection with, compliance by any prospective investor (or any other person) with any applicable requirement thereof. In addition, the arrangements described under "*U.S. Credit Risk Retention*" have not been structured with the objective of ensuring compliance by any person with any applicable requirement of the EU Securitization Regulation or the UK Securitization Regulation.

Consequently, the Notes may not be a suitable investment for any person that is subject to the EU Securitization Regulation or the UK Securitization Regulation; and this may, amongst other things, have a negative impact on the value and liquidity of the Notes, and otherwise affect the secondary market for the Notes.

In addition, none of the parties to the transaction contemplated by this Private Placement Memorandum intends, at any time, to take any action in respect of such transaction for purposes of, or in connection with, any person's compliance with any Future UK Securitization Rules (as defined below).

See "*Risk Factors – Risks Primarily Related to the Notes and the Issuer–Risks associated with securitization and risk retention requirements"*.

Tax Status

In the opinion of Sidley Austin LLP, for U.S. federal income tax purposes, (i) when issued, the Rated Notes will be characterized as debt, (ii) neither the Issuer nor the Grantor Trust will be classified as an association (or a publicly traded partnership) taxable as a corporation, (iii) the Grantor Trust will be classified as a "grantor trust" within the meaning of subpart E of part I of subchapter J of chapter 1 of subtitle A of the Code, and (iv) although the matter is not free from doubt, the Issuer will not be treated as engaged in the conduct of a trade or business within the United States for U.S. federal income tax purposes. The opinion described in clause (i) above does not apply to any Notes beneficially owned by the Issuer or a Person that is considered the same Person as the Issuer or its single beneficial owner, as the case may be, for U.S. federal income tax purposes.

The Issuer intends to treat beneficial owners of Exchangeable Notes as directly owning the separate Classes of Exchange Notes corresponding to such Exchangeable Notes for U.S. federal income tax purposes. By acquiring an Exchangeable Note, each beneficial owner will agree to this treatment.

If a prospective investor purchases Rated Notes or beneficial interests therein, such prospective investor agrees by its purchase that such prospective investor will treat such Rated Notes (or, in the case of beneficial owners of Exchangeable Notes, the corresponding Exchange Notes) as debt for U.S. federal income tax purposes.

If a prospective investor purchases Class R Notes or beneficial interests therein, such prospective investor agrees by its purchase that such prospective investor will treat such Class R Notes (or, in the case of beneficial owners of Exchangeable Notes, the corresponding Exchange Notes, if any, attributable to the Class R Notes) as undivided beneficial ownership interests in the income and assets of the Issuer for U.S. federal income tax purposes.

Prospective investors in Notes should carefully review the information set forth under "*Certain Federal Income Tax Considerations*" in this Private Placement Memorandum.

ERISA Considerations

As described herein, Rated Notes (and Exchangeable Notes corresponding solely to Rated Notes) may generally be purchased by or with plan assets of Plans and Plan Asset Entities subject to the considerations discussed under "*ERISA Considerations*" in this Private Placement Memorandum.

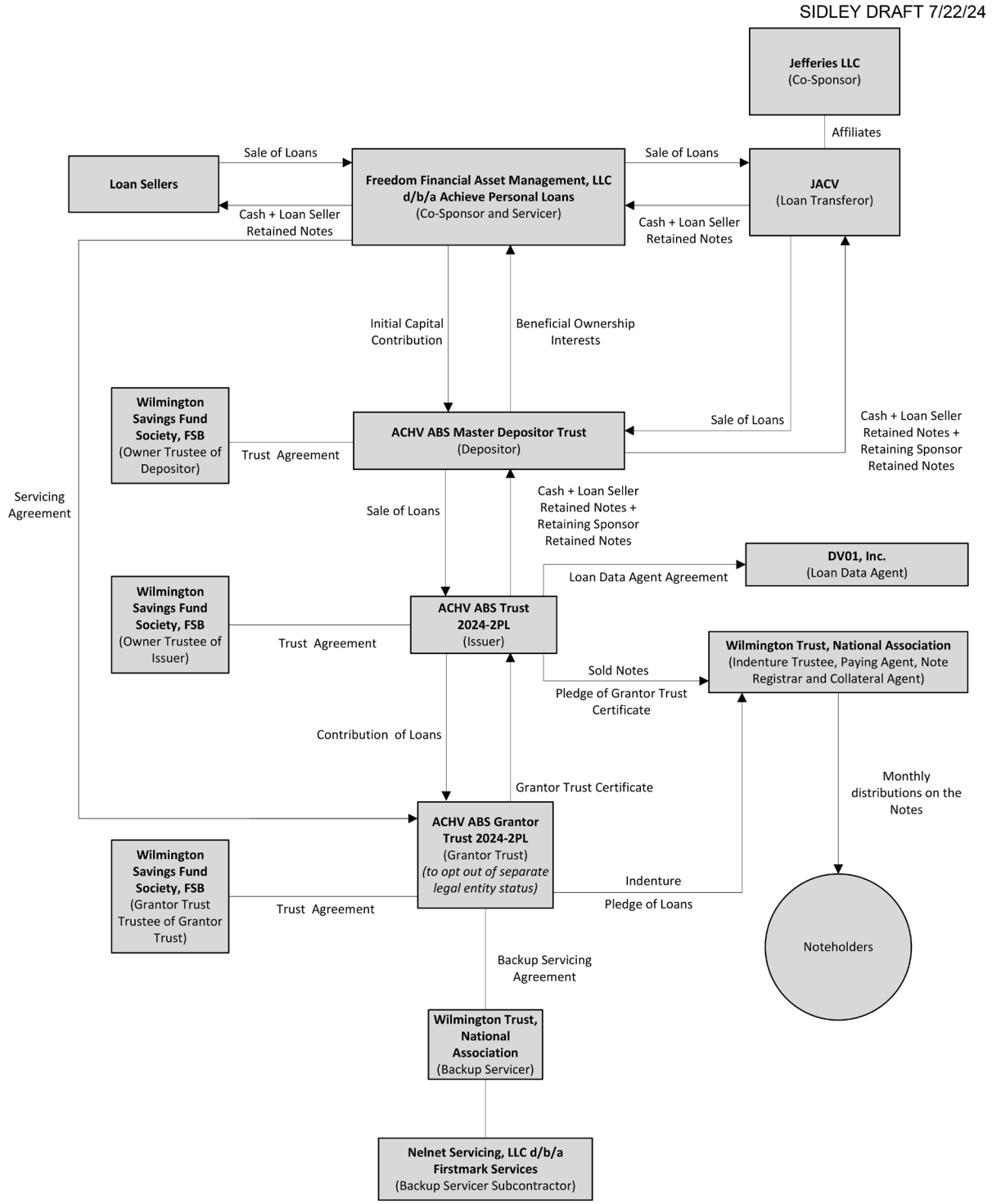
Certain Investment Company Act Considerations

Each of the Issuer and the Grantor Trust is being structured such that it is not now, and solely after giving effect to the offering and sale of the Notes and the application of the proceeds thereof, will not be, a "covered fund" for purposes of regulations adopted under Section 13 of the Bank Holding Company Act of 1956, as amended, commonly known as the "Volcker Rule."

In reaching this conclusion, although other statutory or regulatory exemptions or exceptions under the Investment Company Act and under the Volcker Rule and its related regulations may be available, each of the Issuer and the Grantor Trust is relying on the

exemption from registration under the Investment Company Act provided by Rule 3a-7 thereunder.

TRANSACTION STRUCTURE CHART



RISK FACTORS

The following information, which prospective investors should carefully consider, identifies certain significant sources of risk associated with an investment in the Notes. The order in which these considerations are presented is not intended to represent the magnitude of risk discussed.

SPECIAL NOTE REGARDING APL

Because payments on the Notes are dependent on the performance of the Loans, and APL is the servicer of the Loans, the performance of the Notes would likely be adversely affected if adverse developments were to occur in FFAM's business, particularly in its servicing business functions of APL that affect the Loans. The Issuer and the Grantor Trust will rely exclusively on the collection and enforcement efforts of APL, as servicer, for collection of payments on the Loans. Accordingly, performance of the Loans is highly dependent on the continued performance of APL. In addition to any direct effects relating to the servicing of the Loans, adverse developments in other aspects of FFAM's or its affiliates' business could adversely affect participation through the Achieve Loan Program, which could, in turn, adversely affect APL's ability to generate income and thus the ability of APL to perform its indemnity and payment obligations under the Basic Documents, which are remedies on which the Issuer relies in order to perform its obligations under the Notes.

APL operates in an area of the financial markets that has become increasingly scrutinized by regulators, governmental agencies and the judiciary. See *"Risks Primarily Related to the Loans—Consumer protection laws and contractual restrictions may affect the enforceability or collectability of the Loans or result in penalties or damages to the transaction parties"; "Risks Primarily Related to the Loans—Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement actions, any of which would adversely affect the Notes."; "Risks Primarily Related to the Loans—Federal, state and local laws may adversely affect the ability to collect amounts due on the Loans."; "Risks Primarily Related to the Loans—If Loans are found to violate a state's usury laws, this could adversely affect the performance of the Loans and the Notes, and adversely affect the ability of APL to perform its obligations under the Basic Documents."; "Risks Primarily Related to the Loans—APL has limited historical performance data about performance on the Loans. Loss rates on the Loans may be higher than expected."; "Risks Primarily Related to the Loans—The Loans were originated through a program that has a limited operating history. Borrowers may not view or treat their obligations on the Loans as having the same significance as loans from traditional lending sources."; "Risks Primarily Related to APL's Business—There continues to be uncertainty as to how the actions of the Bureau, the FDIC, the OCC and other Governmental Authorities could impact APL's business or that of the Partner Banks"; "Risks Primarily Related to APL's Business—The regulatory framework for marketplace lending is evolving and uncertain as federal and state governments consider new laws to regulate marketplace lending. New laws and regulations, including taxes on services provided by marketplace lending platforms, as well as continued uncertainty regarding potential new laws or regulations, may negatively affect APL's business."; and "Risks Primarily Related to Servicing—APL is directly and indirectly subject to extensive federal, state and local regulation that could adversely impact their ability to service the Loans."* herein.

For additional risks related to the Loans, APL and APL's business, see *"—Risks Primarily Related to the Loans*", "*—Risks Primarily Related to Servicing*" and "*—Risks Primarily Related to APL's Business*" herein.

RISKS PRIMARILY RELATED TO THE NOTES AND THE ISSUER

The Notes are not suitable for all investors.

The Notes are not suitable investments for all investors. In particular, prospective investors should not purchase the Notes unless they understand the structure, including the priority of payments, the Loans and other assets that secure the Notes and the tax consequences of an investment associated with the Notes, and are able to bear the

prepayment, credit, liquidity, market, regulatory, counterparty and enforcement risks associated with the Notes. The Notes are complex securities. Prospective investors should possess, either alone or together with financial, tax and legal advisors, the expertise to analyze the priority of payments, prepayment, credit, liquidity, market, regulatory and enforcement risks, the tax consequences of an investment and the interaction of these factors.

As described below in more detail in this section of this Private Placement Memorandum, the yields to maturity and the aggregate amount and timing of distributions on the Notes are subject to variability from period to period and over the lives of the Notes and such variability may be material. The interaction of the factors described in this Private Placement Memorandum and other factors that may affect the Notes and their combined effects on the Notes are not possible to predict with meaningful certainty and are likely to change from time to time. As a result, an investment in the Notes involves substantial risks and uncertainties and should be considered only by sophisticated institutional investors with substantial investment experience with similar types of securities and who have conducted an appropriate analysis of the Notes. Prospective investors must be able to bear the risk of loss (including total loss) on their investment in the Notes.

No assurance can be given that the Notes may be sold by a purchaser thereof at any time or at acceptable prices. Therefore, an investment in the Notes should only be made by investors who are able to hold such Notes to maturity notwithstanding the possibility that the Notes may experience a severe reduction in value while held.

Risks Related to the Exchange Notes and the Exchangeable Notes.

The characteristics of the Exchangeable Notes will generally reflect the characteristics of the corresponding Exchange Notes and *vice versa*. However, the Exchangeable Notes will not be rated by any Rating Agency, even if they have been issued solely in exchange for a combination of Rated Notes. See *"— The Class R Notes and the Exchangeable Notes will not be rated as of the Closing Date and none of the Issuer, the Sponsors or any of their respective Affiliates has requested a rating of the Class R Notes or the Exchangeable Notes by any rating agency"* in this Private Placement Memorandum. Accordingly, Exchangeable Notes may be less liquid than the corresponding Rated Notes for which they have been exchanged. The Exchangeable Notes are not separate legal obligations of the Issuer but are Notes issued by the Issuer which represent a combination (as described in Schedule III of this Private Placement Memorandum) of Classes of Exchange Notes with the payment, voting and consent rights, and obligations, of such Exchange Notes.

Investors should consider the following factors which will limit a Noteholder's ability to exchange Exchange Notes for Exchangeable Notes and *vice versa*:

i. At the time of the proposed exchange, a Noteholder must own Exchange Notes or Exchangeable Notes of the requisite Class or Classes in the Exchangeable Combination necessary to make the desired exchange and must pay the exchange fee charged by the Indenture Trustee.

ii. A Noteholder that does not own the Exchange Notes of the requisite Classes in the Exchangeable Combination may be unable to obtain the necessary Notes in order to effect the desired exchange.

iii. The holder of needed Exchange Notes and/or Exchangeable Notes may refuse to sell them at a reasonable price (or any price) or may be unable to sell them.

iv. Exchangeable Notes may not be issued or transferred in reliance on Regulation S. Accordingly, Noteholders who acquired Rated Notes in reliance on Regulation S may not exchange such Rated Notes for Exchangeable Notes unless they are QIBs and the exchange otherwise satisfies the criteria for a transfer of Rule 144A Notes. Likewise, if a Noteholder wishes to transfer Exchangeable Notes to a transferee in reliance on Regulation S, such Noteholder will first need to exchange such Exchangeable Notes for Exchange Notes that are Rule 144A Notes, and then follow the procedures to transfer Rule 144A Exchange Notes to a transferee taking in the form of Regulation S Exchange Notes.

v. Certain Exchange Notes and/or Exchangeable Notes may have been purchased or placed into other financial structures and thus may be unavailable for exchange.

vi. Reductions of principal on the Exchange Notes and/or Exchangeable Notes and the effect of the minimum denominations will reduce the availability of the relevant Exchangeable Combination and the availability of the Exchange Notes and/or Exchangeable Notes.

vii. Unless waived by the Issuer in its sole discretion, the Class R Notes will be issued and may only be held in minimum denomination of $1,200 notional amount, which represents 1.2% of the Class R Notes. As a result, any exchange of Exchange Notes into an Exchangeable Note for which one of the separate Classes of Exchange Notes corresponding to such Exchangeable Note is a Class R Note will require the exchange of at least 1.2% of the Outstanding Amount of each of the other separate Classes of Exchange Notes corresponding to such Exchangeable Note.

viii. Only the combinations described in Schedule III of this Private Placement Memorandum are permitted.

Restrictions relating to the transfer of the Notes reduces their liquidity and may make resale difficult or impossible.

The Notes will not be registered under the Securities Act or the securities laws of any jurisdiction. Consequently, the Notes are not transferable other than pursuant to an exemption under the Securities Act and in accordance with the laws of each applicable jurisdiction and subject to the restrictions described herein. The Notes are being offered to (i) QIBs in reliance on Rule 144A and (ii) solely in the case of Rated Notes, Persons that are not "U.S. persons" (as defined in Regulation S) pursuant to offers and sales that occur outside of the United States in compliance with Regulation S. Any resale of the Notes made in reliance on Rule 144A or Regulation S, as applicable, must satisfy the applicable conditions of Rule 144A or Regulation S, respectively. Accordingly, no Note or any interest or participation therein can be reoffered, resold, pledged or otherwise transferred unless such Note is sold to (i) to a QIB in a transaction meeting the requirements of Rule 144A, (ii) solely in the case of Rated Notes, outside the United States to Persons that are not "U.S. persons" (as defined in Regulation S) in compliance with Regulation S or (iii) the Issuer or APL or one of its direct or indirect subsidiaries in a transaction that would not result in such Notes being subject to registration under the Securities Act, and, in each case, in accordance with the terms of the Indenture. See "*Notice to Investors/Transfer Restrictions*" in this Private Placement Memorandum.

The Notes will not be listed on any securities exchange or traded on any automated quotation systems of any registered securities association, and there is currently no secondary market for the Notes and no person is obligated to make a secondary market for the Notes. The Structuring Agent or the Initial Purchasers may, but are under no obligation to, make a secondary market in the Notes solely to facilitate transfers among QIBs and may discontinue such market-making activities at any time without notice. There can be no assurance that a secondary market for the Notes will develop or, if it does develop, that it will continue or be sufficiently liquid to permit the resale of the Notes. The ability of the Structuring Agent and the Initial Purchasers to make a market in the Notes may be impacted by changes in any regulatory requirements applicable to the marketing, holding and selling of, and issuing quotations with respect to, asset-backed securities generally. No representation or warranty, express or implied, is made by any person or entity as to what the market value of any Note will be at any time. Investors who desire to obtain financing for their Notes similarly may have difficulty obtaining credit or credit with satisfactory interest rates or advance rates, which may result in lower leveraged yields and lower secondary market prices upon the sale of the Notes. The market values of the Notes are likely to fluctuate from time to time. These fluctuations may be significant and could result in significant losses on the Notes. Investors must be able to bear the risks of their investment in the Notes for an indefinite period of time.

The liquidity of a trading market, if any, for the Notes may also be adversely affected by general declines or disruptions in the credit markets. Such market declines or disruptions could adversely affect the liquidity of and market for the Notes independent of the credit performance of the Loans.

The primary source of information available to investors concerning the Notes will be monthly statements to Noteholders made available by the Paying Agent. There can be no assurance that any additional information regarding

the Notes will be available from any source (although the Loan Data Agent will be obligated to maintain an investor portal to the extent described in "*The Loan Data Agent*" herein). In addition, none of the Issuer, the Structuring Agent or the Initial Purchasers are aware of any source through which pricing information about the Notes will be generally available on an ongoing basis. The limited nature of such information regarding Notes may adversely affect the liquidity of the Notes, even if a secondary market for the Notes becomes available.

None of the Issuer, the Sponsors or the Depositor makes representations or warranties, express or implied, as to the proper characterization of the Notes for legal investment, regulatory, financial reporting or other purposes, as to the ability of particular investors to purchase the Notes under applicable legal investment or other restrictions or as to the consequences of an investment in the Notes for such purposes or under such restrictions.

No registration rights will be granted to any purchaser of the Notes and no Noteholder may register the Notes under the Securities Act or any state securities laws. As a result of the transfer restrictions imposed to comply with the Securities Act, investors must be prepared to bear the risk of holding the Notes for as long as such Notes are outstanding.

Each beneficial owner of a Book-Entry Note or any interest therein, by acceptance of such Note or any interest therein, will be deemed to make the representations and agreements contained under the heading "*Notice to Investors/Transfer Restrictions*" in this Private Placement Memorandum.

Each holder of a Definitive Note will be required to make certain representations and agreements in writing as specified under the heading "*Notice to Investors/Transfer Restrictions*" in this Private Placement Memorandum. The Notes will be issued as Definitive Notes only under the limited circumstances specified in the Indenture. See "*Description of the Notes—Book-Entry Registration*" and "*ERISA Considerations*" in this Private Placement Memorandum.

Prospective investors should consult their own financial, business, investment, accounting, tax, legal, regulatory and other advisors for assistance in determining the suitability of and consequences of the purchase, ownership, and sale of the Notes.

At least 5% of the initial principal balance of each Class of Rated Notes and at least 5% of the initial notional amount of the Class R Notes will be acquired by the Retaining Sponsor or its Affiliate on the Closing Date, and additional Notes may be acquired by either of the Sponsors, the Loan Sellers or any of their respective Affiliates, which could adversely affect the market value or liquidity of the Notes.

At least 5% of the initial principal balance of each Class of Rated Notes and at least 5% of the initial notional amount of the Class R Notes (which holding, in each case, may include Exchangeable Notes representing an interest in the corresponding Exchange Notes) will be acquired by the Retaining Sponsor or its majority-owned affiliate on the Closing Date (see "*U.S. Credit Risk Retention*" in this Private Placement Memorandum), and additional Notes may be acquired by either of the Sponsors, the Loan Sellers or any of their respective Affiliates on the Closing Date or from time to time thereafter. As a result, the market for the Notes may be less liquid than would otherwise be the case and, if any such Notes are subsequently sold by either of the Sponsors, the Loan Sellers or any of their respective Affiliates on the secondary market, it could reduce demand for Notes already in the market, which could adversely affect the market value of the Notes and/or limit the ability of Noteholders to resell their Notes.

Changes in the market value of the Notes may not reflect the performance or anticipated performance of the Loans.

The market value of the Notes may be volatile. Market values can change rapidly and significantly and changes can result from a variety of factors. A decrease in market value may not necessarily be the result of deterioration in the performance or anticipated performance of the Loans. For example, changes in prevailing interest rates, perceived risk, supply and demand for similar or other investment products, accounting standards, capital requirements that apply to regulated financial institutions, legal proceedings, governmental intervention and other factors that are not directly related to the Loans may adversely and materially affect the market value of the Notes.

Investors are receiving no assurance, guarantee or representation and should make their own determinations and seek independent advice.

None of the Sponsors, the Loan Sellers, the Depositor, the Issuer, the Grantor Trust, the Structuring Agent, the Initial Purchasers, the Servicer, the Administrator, the Indenture Trustee or any of their respective affiliates makes any assurance, guarantee or representation or warranty, express or implied, as to the expected or projected success, return, timing or amount of payments, performance result, effect, consequence or benefit (including legal, regulatory, tax, financial, accounting, regulatory capital, legal investment or otherwise) to any investor of ownership of any Class of the Notes, and none of the foregoing parties will have a fiduciary relationship with respect to any investor or prospective investor in the Notes. No investor may rely on any such party for a determination of expected or projected success, return, performance result, effect, consequence or benefit (including legal, regulatory, tax, financial, accounting, regulatory capital, legal investment or otherwise) with respect to any investor in connection with its ownership of the Notes. Each holder of Notes will be required or deemed to represent and agree that, among other things, it has consulted with its own legal counsel, independent accountants and financial advisors to the extent it deems necessary regarding the tax consequences to it of ownership of the Notes and it is aware that its taxable income with respect to the Notes in any accounting period may not correspond to the cashflow (if any) from the Notes for such period, and it has conducted its own independent due diligence investigation (including asking questions and receiving answers and obtaining all information it deems necessary) of the Issuer, the Grantor Trust, the Depositor, both of the Sponsors (and their respective Affiliates), the Servicer, the Backup Servicer, the Backup Servicer Subcontractor, any Partner Bank, the Loans and the Notes, and is relying solely on its own diligence investigation, its own financial analysis, and whatever sources of information it has deemed appropriate, reliable and adequate, with respect to the Notes.

Adverse economic conditions in financial markets may affect return on the Notes.

Events in the global financial markets, including those described under *"—Risks Primarily Related to the Loans—Social and economic factors may affect repayment of the Loans"* below; rising interest rates; supply chain issues; inflation; threats of future recession; disrupted credit markets; pandemics (such as the COVID-19 pandemic); the devaluation of currencies by foreign governments; the slowing growth in China's economy; the invasion of Ukraine by the Russian Federation and the sanctions imposed by the U.S., the European Union (the "EU"), the United Kingdom (the "UK"), Japan and other countries; Hamas' attack against Israel and the ensuing conflict; the changes in international trade policies, including the imposition of tariffs, by the U.S. or other countries; the rating agency downgrade of U.S. Treasury bonds and other debt instruments backed by the full faith and credit of the U.S., together with similar downgrades of sovereign debt of the UK and of certain member states of the EU; a country's involuntary or voluntary exit from the EU (including the withdrawal of the UK from the EU); and increasing tensions between the U.S. and countries such as China and Russia, have caused, or may cause, a significant reduction in liquidity in the secondary market for asset-backed securities, which could adversely affect the market value of the Notes and/or limit the ability of an investor to resell its Notes. Further, the uncertainty relating to any of the above described events could lead to further disruption of the credit markets and/or deterioration in general economic conditions.

Bank Failures May Adversely Affect the Notes and Result in Market Disruption.

On March 10, 2023, the California Department of Financial Protection and Innovation closed Silicon Valley Bank and appointed the Federal Deposit Insurance Corporation as receiver, following a major outflow of deposits from Silicon Valley Bank and its failure to raise new capital. On March 12, 2023, the New York State Department of Finance closed Signature Bank and appointed the Federal Deposit Insurance Corporation as receiver after its customers withdrew more than $10 billion in deposits at the bank. The failure of such banks has resulted in significant concern regarding the health of other banking institutions and the ability of such institutions to withstand the economic conditions posed by rapidly increasing interest rates including a decline in value of securities and loan portfolios, and it is unclear if there will be additional bank failures. Utilizing the systemic risk exception, the FDIC immediately transferred all the deposits and substantially all of the assets of Signature Bank to Signature Bridge Bank, N.A., a full-service bank operated by the FDIC. On March 13, 2023, the FDIC applied the systemic risk exception again and transferred all deposits and substantially all assets of Silicon Valley Bank to Silicon Valley Bridge Bank, N.A., a full-service bank operated by the FDIC. As a result of the FDIC's application of the systemic risk exception to Silicon Valley Bank and Signature Bank, depositors of such banks are fully insured by the FDIC. On March 20, 2023, the FDIC entered into a purchase and assumption agreement for substantially all deposits and certain loan portfolios of

Signature Bridge Bank, N.A., by Flagstar Bank, N.A., a wholly-owned subsidiary of New York Community Bancorp, Inc. Depositors of Signature Bridge Bank, N.A., other than cash depositors related to the digital-asset banking businesses, automatically became depositors of Flagstar Bank, N.A. On March 26, 2023, the FDIC announced that it had entered into a purchase and assumption agreement for all deposits and loans of Silicon Valley Bridge Bank, N.A. by First-Citizens Bank & Trust Company. Depositors of Silicon Valley Bridge Bank, N.A. automatically became depositors of by First-Citizens Bank & Trust Company. On March 19, 2023, UBS Group AG announced that it had agreed to acquire Credit Suisse Group AG for approximately $3.2 billion in an all-stock transaction brokered by the government of Switzerland and the Swiss Financial Market Supervisory Authority. On May 1, 2023, the FDIC seized control of First Republic Bank and, following an auction, JPMorgan Chase Bank, N.A. agreed to pay $10.6 billion to the FDIC as part of a deal to take control of most of First Republic Bank's assets. Under the deal, the FDIC will cover 80% of any losses incurred on First Republic Bank's portfolio of single-family residential mortgage loans and commercial loans over the next five to seven years. JPMorgan Chase Bank, N.A. did not assume First Republic Bank's corporate debt, assumed the deposits, insured and uninsured, of First Republic Bank, and will receive $50 billion in financing from the FDIC to complete the deal. The failures of Silicon Valley Bank, Signature Bank and First Republic Bank are among the largest U.S. bank failures.

To the extent of a failure of a bank at which APL's Servicing Collection Account or at which the Payment Account or Reserve Fund is maintained, such failure could result in a delay or failure by noteholders to receive the funds held in such accounts and, unless such accounts are held as trust accounts or the FDIC applies its systemic risk exception, only $250,000 in any such account would be federally insured.

Risks associated with securitization and risk retention requirements.

Investors should be aware, and in some cases are required to be aware, of certain restrictions and obligations with regard to any securitisation (as such term is defined for purposes of the relevant legislation) imposed:

(a) in the EU, pursuant to Regulation (EU) 2017/2402 (as amended, the "EU Securitization Regulation");

(b) in the non-EU member states of the European Economic Area, pursuant to the EU Securitization Regulation, to the extent (if at all) implemented or applicable in such member states; and

(c) in the UK, pursuant to Regulation (EU) 2017/2402, as it forms part of UK domestic law by virtue of the European Union (Withdrawal) Act 2018 (as amended, the "EUWA") and as amended (including by the Securitisation (Amendment) (EU Exit) Regulations 2019) (the "UK Securitization Regulation").

The EU Securitization Regulation imposes certain requirements (the "EU Investor Requirements") with respect to "institutional investors" (as such term is defined for purposes of the EU Securitization Regulation), being: (a) insurance undertakings and reinsurance undertakings as defined in Directive 2009/138/EC; (b) subject to certain conditions and exceptions, institutions for occupational retirement provision falling within the scope of Directive (EU) 2016/2341, and certain investment managers and authorized entities appointed by such institutions; (c) alternative investment fund managers as defined in Directive 2011/61/EU which manage and/or market alternative investment funds in the EU; (d) certain internally-managed investment companies authorized in accordance with Directive 2009/65/EC, and management companies as defined in that Directive; and (e) credit institutions and investment firms as defined in Regulation (EU) No 575/2013 (as amended, the "EU CRR") (and, in addition, the EU CRR makes provision as to the application of the EU Investor Requirements to consolidated affiliates, wherever established or located, of entities that are subject to the EU CRR).

The UK Securitization Regulation imposes certain requirements (the "UK Investor Requirements") with respect to "institutional investors" (as such term is defined for purposes of the UK Securitization Regulation), being: (a) insurance undertakings and reinsurance undertakings as defined in the Financial Services and Markets Act 2000 (as amended, the "FSMA"); (b) occupational pension schemes as defined in the Pension Schemes Act 1993 that have their main administration in the UK, and certain fund managers of such schemes; (c) AIFMs as defined in the Alternative Investment Fund Managers Regulations 2013 which market or manage AIFs (as defined in such Regulations) in the UK; (d) UCITS as defined in the FSMA, which are authorized open ended investment companies

as defined in the FSMA, and management companies as defined in the FSMA; (e) CRR firms as defined in Regulation (EU) No 575/2013 as it forms part of UK domestic law by virtue of the EUWA and as amended (the "UK CRR"); and (f) FCA investment firms as defined in the UK CRR (and, in addition, the UK CRR makes provision as to the application of the UK Investor Requirements to consolidated affiliates, wherever established or located, of entities that are subject to the UK CRR).

Any person subject to the EU Investor Requirements or the UK Investor Requirements (an "SR Investor") is required (amongst other things), prior to investing in a securitization, to verify certain matters, including that (a) certain credit-granting requirements are satisfied, (b) the originator, sponsor or original lender retains on an ongoing basis a material net economic interest in the securitization which, in any event, will not be less than 5%, in accordance with the EU Securitization Regulation or the UK Securitization Regulation (as applicable to the relevant SR Investor), and discloses that risk retention, and (c) the originator, sponsor or securitization special purpose entity has, where applicable, made available information in accordance with the EU Securitization Regulation or the UK Securitization Regulation (as applicable).

If any SR Investor fails to comply with the EU Investor Requirements or the UK Investor Requirements (as applicable) with respect to an investment in the Notes, it may be subject (where applicable) to a range of penalties dependent on its regulatory status, including without limitation, the imposition of a punitive capital charge with respect to such investment, or a requirement to take corrective action.

None of the parties to the transaction contemplated by this Private Placement Memorandum nor any of their respective affiliates undertakes, or intends, to retain a material net economic interest in such transaction, or to take any other action with regard to such transaction, in a manner prescribed or contemplated by the EU Securitization Regulation or the UK Securitization Regulation. In particular, no such party undertakes to take any action, or refrain from taking any action, for purposes of, or in connection with, compliance by any prospective investor (or any other person) with any applicable requirement thereof. In addition, the arrangements described under "*U.S. Credit Risk Retention*" have not been structured with the objective of ensuring compliance by any person with any applicable requirement of the EU Securitization Regulation or the UK Securitization Regulation. Consequently, the Notes may not be a suitable investment for any SR Investor; and this may, amongst other things, have a negative impact on the value and liquidity of the Notes, and otherwise affect the secondary market for the Notes.

It is expected that, with effect from November 1, 2024, the UK Securitization Regulation and certain related measures will be repealed, and certain new laws, rules and guidance (the "Future UK Securitization Rules") will be implemented. The scope and requirements of the Future UK Securitization Rules will be broadly similar to those of the UK Securitization Regulation and such related measures, but there will be differences between the two regimes, some of which may be significant for affected parties. The Future UK Securitization Rules will (amongst other things) make provision with regard to the "grandfathering" of any securitization in respect of which the securities were issued during the period from January 1, 2019 to October 31, 2024 (inclusive), such that, to the extent (and subject to the conditions) specified in the Future UK Securitization Rules, the relevant securitization will continue to be subject to the UK Securitization Regulation and the applicable related measures, notwithstanding their repeal.

None of the parties to the transaction contemplated by this Private Placement Memorandum nor any of their respective affiliates intends, at any time, to take any action in respect of such transaction for purposes of, or in connection with, any person's compliance with any Future UK Securitization Rules.

Prospective investors and Noteholders are responsible for analyzing their own legal and regulatory position; and are encouraged (where relevant) to consult their own legal, accounting and other advisors and/or any relevant regulator or other authority, and to make their own assessment, regarding the suitability of the Notes for investment, and, in particular, the scope and applicability of the EU Securitization Regulation, the UK Securitization Regulation and any equivalent or similar requirements (including the Future UK Securitization Rules) and their compliance (where applicable) with the EU Securitization Regulation, the UK Securitization Regulation or any such other requirements.

The U.S. Risk Retention Rules adopted under the Dodd-Frank Act require sponsors of asset-backed securities (or their majority-owned affiliates) to retain, on an unhedged basis, at least 5% of the credit risk of the assets underlying the securities, subject to certain exemptions and exceptions. Each of APL and Jefferies is a sponsor of the securitization transaction described in this Private Placement Memorandum. Pursuant to the U.S. Risk Retention Rules, if more than one Person satisfies the definition of sponsor thereunder, one such Person must comply with such duties and obligations, and the Retaining Sponsor has agreed to act in such capacity. The Retaining Sponsor or its majority-owned affiliate will acquire on the Closing Date at least 5% of the initial principal balance of each Class of Rated Notes and at least 5% of the initial notional amount of the Class R Notes (which holding, in each case, may include Exchangeable Notes representing an interest in the corresponding Exchange Notes) issued by the Issuer on the Closing Date, which the Retaining Sponsor believes to be an "eligible vertical interest" that is required to be retained by the "sponsor" or its "majority-owned affiliate" under the U.S. Risk Retention Rules. The U.S. Risk Retention Rules are subject to interpretive uncertainty and, while the Retaining Sponsor intends to comply with the U.S. Risk Retention Rules, there can be no assurance that the Retaining Sponsor will satisfy, as of the Closing Date or any other date in the future, all of the initial and ongoing requirements of the U.S. Risk Retention Rules. The manner in which the Retaining Sponsor seeks to comply with the U.S. Risk Retention Rules may change over time. No assurance can be given that the Retaining Sponsor will not be subject to enforcement actions or other litigation notwithstanding its good faith intent to comply with the U.S. Risk Retention Rules, nor can there be any assurance that the Retaining Sponsor will not be subject to penalties arising out of a regulator's or court's retrospective determination that the Retaining Sponsor's retention, or retention of such eligible vertical interest through itself or one or more of its Affiliates, does not in fact comply with the U.S. Risk Retention Rules. Any such enforcement action or other penalties arising out of either Sponsor's obligations under the U.S. Risk Retention Rules could have adverse effects on the servicing and securitization program of APL and its Affiliates and the securitization activities of the Retaining Sponsor. Additionally, no assurance can be given as to the effect that these risk retention regulations may have on the liquidity and market value of the Notes. See *"—At least 5% of the initial principal balance of each Class of Rated Notes and at least 5% of the initial notional amount of the Class R Notes will be acquired by the Retaining Sponsor or its Affiliates on the Closing Date, and additional Notes may be acquired by the Sponsors, the Loan Sellers or any of their respective Affiliates, which could adversely affect the market value or liquidity of the Notes*" above.

The EU Securitization Regulation, the UK Securitization Regulation, the U.S. Risk Retention Rules and any other changes to the regulation or regulatory treatment of the Notes, whether in the United States, the EU, the UK or elsewhere, may negatively impact the regulatory position of affected investors and/or investment managers and have an adverse impact on the value and liquidity of the Notes. Investors should analyze their own regulatory position, and are encouraged to consult with their own investment and legal advisors regarding compliance with the applicable risk retention rules or other applicable regulations and the suitability of the Notes for investment. None of the Sponsors, the Servicer, the Issuer, the Depositor, any Partner Bank, the Loan Sellers, the Structuring Agent, the Initial Purchasers, the Grantor Trust, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, any other party to the transaction or any of their respective Affiliates makes any representation to any prospective investor or purchaser of the Notes regarding the regulatory treatment of their investment in the Notes on the Closing Date or at any time in the future.

Repayment of the Notes is limited to the Issuer's and Grantor Trust's assets.

The Issuer does not have, nor is it expected in the future to have, any significant assets other than the Grantor Trust Certificate, certain rights under the Basic Documents to which the Issuer will be a party, and amounts on deposit in the Payment Account and the Reserve Fund. The Grantor Trust does not have, nor is it expected in the future to have, any significant assets other than the Loans, certain rights under the Basic Documents to which the Grantor Trust is a party and the other related Purchased Loan Assets. No Noteholder will have recourse for payment of its Notes to any assets of any Person other than the Issuer and the Grantor Trust. The Notes represent obligations solely of the Issuer, and no Person other than the Issuer is obligated to make any payments on the Notes, *provided* that the Grantor Trust has pledged the Loans and other related Purchased Loan Assets to secure the Notes. The Notes are not insured by any financial guaranty insurance policy. None of any governmental agency or instrumentality, the Sponsors, the Servicer, the Structuring Agent, the Initial Purchasers or any of their respective affiliates will guarantee or insure either the Notes or the Loans. Consequently, Noteholders must generally rely upon the Loans owned by the Grantor Trust and collections thereon for the payment of principal of and interest on the Notes. Should the Notes not be paid in full on a timely basis, Noteholders may not look to, or draw upon, any assets of any Person other than the Issuer

and the Grantor Trust to satisfy their claims. See "*Application of Available Funds—Sources of Funds for Distributions*" in this Private Placement Memorandum.

If the Issuer does not have sufficient assets to pay the full amount due and payable to a Noteholder, such Noteholder's yield will be impaired, and the return of principal may even be impaired, without such Noteholder having recourse to anyone else. Furthermore, certain assets of the Issuer or Grantor Trust may be released and paid out to other persons, such as service providers, or any other person entitled to payments from the Issuer or Grantor Trust prior to making payment on the Notes. Those assets will no longer be available to make payments on the Notes.

Credit enhancement for the Rated Notes may be inadequate.

Credit enhancement for the Rated Notes will be provided by excess spread, overcollateralization and amounts on deposit in the Reserve Fund. In addition, the Class A Notes will benefit from the additional credit enhancement provided by subordination of the Class B Notes, the Class C Notes and the Class D Notes, the Class B Notes will benefit from the additional credit enhancement provided by subordination of the Class C Notes and the Class D Notes and the Class C Notes will benefit from the additional credit enhancement provided by subordination of the Class D Notes. There is no other form of credit enhancement for the Rated Notes. Greater than expected losses on the Loans would have the effect of reducing, and could eliminate, the protection against loss afforded by this credit enhancement. The timing of defaults on the Loans, particularly defaults on principal payments occurring towards the maturity of the Loans, may further limit the benefits afforded by this credit enhancement. Moreover, each time a Loan is prepaid by a Borrower, a Loan is repurchased from the Grantor Trust by APL or its designee pursuant to its obligations under the Loan Transferor Purchase Agreement or the Servicing Agreement or by the applicable Partner Bank or APL, as applicable, under or in connection with the applicable Bank Purchase Agreement, a Delinquent Loan, Bankruptcy Loan or Charged-Off Loan is sold to a third party, or collection efforts on a Delinquent Loan, Bankruptcy Loan or Charged-Off Loan are ceased, such Loan will cease to generate interest collections, thereby reducing the protection against loss afforded by excess spread. Similarly, each time collection efforts on a Delinquent Loan or Charged-Off Loan are ceased or otherwise unsuccessful or a settlement is entered into with the Borrower, all or some of the principal for such Loan will not be collected, thereby reducing the protection against loss afforded by overcollateralization. Furthermore, Loan Modifications that reduce the principal or interest owing on a Loan will also reduce the protection against loss afforded by overcollateralization. See "*Description of the Notes—Credit Enhancement*" in this Private Placement Memorandum.

Reserve Fund may need to be replenished.

As described under "*Summary — Credit Enhancement — Reserve Fund*" and "*Description of the Notes — Credit Enhancement — Reserve Fund*" in this Private Placement Memorandum PPM, on the initial Distribution Date and on any other Distribution Date when the amounts on deposit in the Reserve Fund (after giving effect to all required withdrawals from the Reserve Fund on such Distribution Date) are below the Reserve Fund Required Amount, which is defined to be the lesser of (i) the Note Balance of all Classes of Notes as of such date prior to giving effect to any payments of principal on or redemptions of the Notes on such Distribution Date and (ii) greater of (x) an amount equal to 0.25% of the Cutoff Date Pool Balance and (y) an amount equal to 0.50% of the aggregate outstanding Principal Balance of all Loans as of the last day of the related Collection Period, the Paying Agent will be required to deposit Available Funds into the Reserve Fund in an amount equal to the Reserve Fund Deficiency, prior to making any distributions in respect of the Regular Principal Distribution Amount or the Class R Notes. Moreover, if it is necessary to use any amounts on deposit in the Reserve Fund to pay certain fees, expenses and indemnities or make certain payments on the Notes, then any amounts that would otherwise have been used to pay the Regular Principal Distribution Amount on the Notes will instead be used first to replenish the Reserve Fund to the Reserve Fund Required Amount which may extend the weighted-average life of the Notes, causing more of the Collections on the Loans to be used to pay interest on the Notes and resulting in reduced distributions to the Class R Notes. There can be no assurance that the Reserve Fund will be replenished.

Book-entry registration for the Notes may reduce their liquidity.

The Notes initially will be represented by one or more Global Notes registered in the name of Cede, as a nominee of DTC, and will not be registered in the names of the owners of the beneficial interests in such Notes ("Note Owners") or their nominees or direct or indirect participants in DTC (including Euroclear and Clearstream and account

holders and participants therein). The Investors will not be recognized as Noteholders or as holders of record of the related Book-Entry Notes. As a consequence, investors may experience difficulties in identifying or communicating with other investors in the Book-Entry Notes for the purpose of exercising remedies, taking collective action or otherwise.

Issuance of the Notes as Global Notes may reduce the liquidity of the Notes in the secondary trading market, if any, since investors may be unwilling to purchase Notes for which they cannot obtain definitive physical securities representing such investors' interests, except in certain limited circumstances described under "*Description of the Notes—Book-Entry Registration*" in this Private Placement Memorandum.

Since transactions in Notes represented by Global Notes will be effected only through DTC, direct or indirect participants in DTC's book-entry system or certain banks, the ability of a Note Owner to pledge its interest in the Notes to persons or entities that do not participate in the DTC system, or otherwise to take actions in respect of such Notes, may be limited due to lack of a physical security representing such Note Owner's interest in such Notes.

Additionally, owners of the Notes may experience some delay in their receipt of distributions of interest on and principal of the Global Notes since distributions may be required to be forwarded by the Paying Agent to DTC and, in such case, DTC will be required to credit such distributions to the accounts of its participants which thereafter will be required to credit them to the accounts of the applicable Note Owners either directly or indirectly through indirect participants. See "*Description of the Notes—Book-Entry Registration*" in this Private Placement Memorandum. Investors' access to consent solicitations and responses thereto (including in connection with any amendment to the Indenture that requires the consent of the Noteholders) and other information regarding the Notes may be limited or delayed since conveyance of notices and other communications by DTC to its participating organizations, and directly and indirectly through those participating organizations to investors, will be governed by arrangements among them, subject to any statutory or regulatory requirements as may be in effect at that time, and may require that such communications be transferred through a chain of multiple parties.

The characteristics of the loans in the Statistical Loan Pool as of the Statistical Cutoff Date may differ from the characteristics of the Loans owned by the Grantor Trust as of the Closing Date.

This Private Placement Memorandum describes the characteristics of the Statistical Loan Pool as of the Statistical Cutoff Date. There can be no assurance that the characteristics of the Loans as of the Closing Date will be the same as, or not be different from, the characteristics of the loans in the Statistical Loan Pool as of the Statistical Cutoff Date, including due to normal collection activity, Borrower prepayments, delinquencies, defaults, bankruptcies, temporary Loan payment deferrals, other Loan modifications and removal or substitution of Loans that will not satisfy the Loan Level Representations as of the Closing Date. Loans not included in the Statistical Loan Pool may be sold to the Issuer and contributed to the Grantor Trust on the Closing Date, and loans included in the Statistical Loan Pool may not be sold to the Issuer and contributed to the Grantor Trust on the Closing Date, although the Issuer does not believe that there will be a significant difference between the loans included in the Statistical Loan Pool and the Loans actually sold to the Issuer and contributed to the Grantor Trust on the Closing Date. Some Loans that satisfy the Loan Level Representations as of the Statistical Cutoff Date may no longer satisfy such criteria as of the Closing Date, but will nevertheless be acquired by the Issuer and contributed to the Grantor Trust and may be subject to repurchase by APL pursuant to its obligations under the Loan Transferor Purchase Agreement. Alternatively, the Sponsors may, but are not obligated to, elect to not transfer Loans to the Issuer that do not satisfy the Loan Level Representations as of the Closing Date, in which case cash in the amount of the aggregate Principal Balance of such Loans as of the Cutoff Date will be deposited into the Collection Account or Loans that do satisfy the Loan Level Representations on the Closing Date will be substituted for such Loans. See "*Description of the Loans—Loan Level Representations*" in this Private Placement Memorandum.

Representations and warranties of APL and the Partner Banks are limited.

The representations and warranties made by APL and the Partner Banks with respect to the Loans are described in *"Description of the Loans—Loan Level Representations"* in this Private Placement Memorandum. The representations and warranties with respect to the Loans of APL under the Loan Transferor Purchase Agreement, of the applicable Partner Bank and APL, as applicable, under or in connection with the applicable Bank Purchase Agreement, and of Cross River Bank under the APL Purchase Agreement related to the CRB Retained Loans, are

made as of specific dates and, in many cases, subject to important exceptions, qualifications and other limitations, including being subject to knowledge qualifications and contractual standards of materiality that are different from those generally applicable to disclosures to purchasers of securities. In addition, these representations and warranties are included principally for the purpose of allocating risk among the parties to those agreements rather than to establish matters of fact. Accordingly, these representations and warranties should not be read as characterizations of the current state of facts, but instead should be read in light of the limitations and purposes discussed above and in conjunction with the information provided elsewhere in this Private Placement Memorandum. The representations and warranties cover a number of potential defects with respect to each Loan, but may not cover every potential defect which may result in a loss. See "*Risks Primarily Related to the Notes and the Issuer—The Grantor Trust's ability to obtain Loan repurchase protection and indemnification from APL and the applicable Partner Bank is limited and may not be exercised in all cases*" and "*Risks Primarily Related to APL's Business—Obligations of APL are subject to its financial and operational ability to fulfill them*" in this Private Placement Memorandum.

Due diligence conducted with respect to the representations and warranties of APL and the Partner Banks is limited.

Any third-party diligence conducted with respect to the representations and warranties of APL and the Partner Banks was limited in scope and subject to other limitations. As a general matter, the truth and accuracy of the substance of certain of the matters addressed in such representations and warranties cannot be independently verified, and consequently would not be revealed through any diligence process. As a result, no assurance can be given that any representation and warranty with respect to the Loans made by APL or the Partner Banks is true and accurate. Investors are urged to make their own determination as to whether the limited diligence conducted with respect to such representations and warranties described in this Private Placement Memorandum are sufficient to meet their investment criteria.

The Loans may cease to satisfy Loan Level Representations by the time they are acquired by the Issuer and contributed to the Grantor Trust.

Although APL will make certain representations under the Loan Transferor Purchase Agreement as to a Loan's compliance with applicable Loan Level Representations as of the date such Loan was originated or sold to the Loan Sellers or as of the Cutoff Date or the Closing Date, as applicable, these criteria generally will not be checked or confirmed when a Loan is acquired by the Issuer and contributed to the Grantor Trust, and a Loan may cease to satisfy one or more of the Loan Level Representations by the time it is so acquired by the Issuer and contributed to the Grantor Trust. While Loans that do not satisfy the Loan Level Representations as of the Closing Date may be subject to repurchase by APL pursuant to its obligations under the Loan Transferor Purchase Agreement, no recourse to any party will be available with respect to the failure of any such Loans to continue to satisfy such Loan Level Representations criteria after the Closing Date. Certain limited checks and confirmations will be made by the Sponsors in order to determine whether such loan is a Charged-Off Loan or a loan for which any scheduled payment thereon remains unpaid for more than 30 days from the original due date for such payment as of the Cutoff Date, and any such loans will not be acquired by the Issuer and contributed to the Grantor Trust. However, because the Cutoff Date occurs prior to the Closing Date, a Loan that satisfies the Loan Level Representations as of the Cutoff Date may be acquired by the Issuer and contributed to the Grantor Trust notwithstanding the fact that such Loan may no longer satisfy the Loan Level Representations as of the Closing Date. Alternatively, the Sponsors may, but are not obligated to, elect to not transfer Loans to the Issuer that do not satisfy the Loan Level Representations as of the Closing Date, in which case cash in the amount of the aggregate Principal Balance of such Loans as of the Cutoff Date will be deposited into the Collection Account or Loans that do satisfy the Loan Level Representations on the Closing Date will be substituted for such Loans.

Yield considerations/prepayments; the yield to investors in the Notes will be sensitive to the rate and timing of principal payments thereon.

All of the Loans may be prepaid, in whole or in part, at any time without penalty. The rate and timing of prepayment on the Loans may be influenced by a variety of economic, social and other factors, including changes in prevailing interest rates. Prepayment rates are likely to fluctuate significantly from time to time. The rate of prepayment on the Loans may be influenced by the nature of the Borrowers and servicing decisions. Recent and future government fiscal stimulus programs may also lead to an increase in the rate of prepayments, as occurred with respect

to Achieve Loans following government fiscal stimulus programs in response to the COVID-19 pandemic. A Borrower may obtain a new loan, through the Achieve Loan Program, through a Partner Bank (whether or not through the Achieve Loan Program) or from another source, and use the loan proceeds to prepay and refinance his or her Loan. In addition, APL or its Affiliates may, if they so choose, solicit Borrowers for new Achieve Personal Loans that would refinance existing Loans. *See* "*The Achieve Loan Program*" in this Private Placement Memorandum.

Such solicitations increase the likelihood of early prepayments by the Borrowers on the Loans and therefore may accelerate the maturity of the Notes. Furthermore, a Loan may be effectively "prepaid" if APL or its designee repurchases the Loan as a result of a breach of the Loan Level Representations under the Loan Transferor Purchase Agreement, if the applicable Partner Bank or APL repurchases or purchases such Loan due to a breach of representations and warranties under or in connection with the applicable Bank Purchase Agreement, or if the Servicer elects to purchase a Loan in order to cure a breach of representation, warranty or covenant under the Servicing Agreement. Investors must make their own decisions as to the appropriate prepayment and default assumptions to be used when purchasing Notes. See "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum.

Investors are urged to consider that the yield to maturity of the Notes purchased at a discount or premium will be more sensitive to the rate and timing of payments of principal thereon. Investors should consider, in the case of any such Notes purchased at a discount, the risk that a slower than anticipated rate of principal payments could result in an actual yield that is lower than the anticipated yield, and, in the case of any such Notes purchased at a premium, the risk that a faster than anticipated rate of principal payments (including prepayments) could result in an actual yield that is lower than the anticipated yield. Investors in the Notes will bear all the reinvestment risks relating to prepayments on the Loans or other payments by the Partner Banks or APL or their designees in respect thereof that result in distributions of principal on the Notes. These reinvestment risks include the possibility that an investor may not be able to reinvest distributions of principal in alternative comparable investments having similar yields. No representation is made as to the anticipated rate of prepayments of, rate and timing of losses on, or rate and timing of purchases and indemnification payments by the Partner Banks or APL or their designees with respect to, the Loans, or the occurrence of an Event of Default or Amortization Event or the resulting yield to maturity of the Notes. In addition, no assurance can be given that any of the Loans will or will not be prepaid prior to maturity. If the prepayment characteristics of the Loans differ from what a prospective investor assumed, the weighted average lives and yields of the Notes may be significantly different than what such prospective investor anticipated. Investors are urged to make an investment decision with respect to any Class of Notes based on the anticipated yield to maturity of that Class of Notes resulting from its purchase price and the investor's own determination as to anticipated Loan prepayment and default rates under a variety of scenarios. The yield to maturity of the Class of Exchangeable Notes will depend on the yield to maturity of the Classes of the corresponding Exchange Notes in the related combination of exchange. There is no guarantee of the actual rate of prepayment on the Loans, or that the rate of prepayment will conform to any model described in this Private Placement Memorandum. See "*Prepayment and Yield Considerations*" in this Private Placement Memorandum.

The timing of changes in the rate of prepayments may significantly affect the actual yield to Noteholders, even if the average rate of principal prepayments is consistent with a prospective investor's expectations. In general, the earlier the payment of principal of the Loans, the greater the effect on yield to maturity. As a result, the effect on yield of principal prepayments occurring at a rate higher (or lower) than the rate a prospective investor anticipates during the period immediately following the issuance of the Notes may not be offset by a subsequent like reduction (or increase) in the rate of principal prepayments.

In addition, although the Servicer (or if the Servicer is no longer APL, the Administrator) has the right to cause an optional redemption of the Notes if, as of the last day of any Collection Period, the Pool Balance is less than or equal to 10% of the Cutoff Date Pool Balance, neither the Servicer nor the Administrator, as applicable, is obligated to exercise such right. See "*Description of the Notes—Optional Redemption*" in this Private Placement Memorandum. No assurance can be given that the Servicer (or if the Servicer is no longer APL, the Administrator) will have the desire or the financial ability to pay the Redemption Price and cause an optional redemption of the Notes, at any time. In the event that the Servicer (or if the Servicer is no longer APL, the Administrator) has not caused the Issuer to effect an optional redemption of the Notes on any Distribution Date on or after the time when the Pool Balance is less than or equal to 10% of the Cutoff Date Pool Balance, then an Amortization Event will exist and all Available Funds remaining after application of clauses (i) through (xii) under "*Application of Available Fund—Priority of Payments*"

on such Distribution Date will be applied to the Principal Distribution Allocation and will continue to be so applied on subsequent Distribution Dates until such Amortization Event no longer exists or until the Outstanding Amount of all Classes of Rated Notes has been paid in full.

The Rated Notes bear interest at a fixed rate. The Class R Notes bear no interest. The Class PT Note bear interest at a rate equal to the weighted average of the interest rates on the Classes of the corresponding Exchange Notes that are Rated Notes based on the Note Balance of such Classes of Exchange Notes for such Interest Period. If prevailing interest rates increase, the prevailing market value of the Notes may diminish, possibly in a material amount, and in the event an investor disposes of its interest in the Notes under such circumstances, such investor would suffer a loss on its investment.

The exercise of the optional redemption of the Notes will cause retirement of the Class R Notes prior to the collection or other charge off of all amounts owing under the Loans.

The exercise of the optional redemption of the Notes will cause retirement of the Class R Notes prior to the collection or charge off of all amounts owing under the Loans. This may result in Class R Noteholders receiving fewer amounts in respect of their Class R Notes than if the Notes remained outstanding and distributions continued to be made from Available Collections on each Distribution Date. The Paying Agent will be required to notify the Class R Noteholder of any optional redemption of the Notes and provide instructions for surrender of the Class R Notes.

Subordination of the Class B Notes, Class C Notes, the Class D Notes and the Class R Notes results in a greater risk of losses or delays in payment on those Notes.

Payments of principal and, in certain circumstances, interest on the Class B Notes are subordinated to payments of principal and interest on the Class A Notes, payments of principal and, in certain circumstances, interest on the Class C Notes are subordinated to payments of principal and interest on the Class A Notes and the Class B Notes, and payments of principal and, in certain circumstances, interest on the Class D Notes are subordinated to payments in principal and interest on the Class A Notes, the Class B Notes, and the Class C Notes, in each case, as provided in the priority of payments described in "*Application of Available Funds*" in this Private Placement Memorandum; provided however, that the application of the Principal Distribution Allocation in the absence of an Amortization Event will lead to principal on subordinated Notes being paid even if more senior Notes remain outstanding and may even result in the Class D Notes being paid down to zero while the Class A Notes, the Class B Notes and the Class C Notes remain outstanding. In addition, the priority of payments requires Available Funds that would otherwise have been applied (i) to pay interest on the Class B Notes to be diverted to pay principal of the Class A Notes, (ii) to pay interest on the Class C Notes to be diverted to pay principal of the Class A Notes and the Class B Notes and (iii) to pay interest on the Class D Notes to be diverted to pay principal of the Class A Notes, the Class B Notes and the Class C Notes, in cases when there is insufficient collateral to otherwise support the payment in full of amounts due and payable on the applicable Distribution Date to the Class A Notes, Class B Notes or Class C Notes, as applicable. Because an Event of Default is not triggered under the Indenture for failure to pay interest on any Notes other than the Controlling Class of Notes (other than the Class R Notes), interest payments on the Class B Notes, the Class C Notes or the Class D Notes may continue to accrue but remain unpaid for so long as principal payments on the Class A Notes, the Class B Notes, the Class C Notes or the Class D Notes, as applicable, are required to maintain such minimum level of collateralization. Consequently, holders of the Class B Notes, the Class C Notes and the Class D Notes may receive fewer interest and/or principal payments than anticipated or may receive payments later than anticipated.

The amount of distributions on the Class R Notes and the time when the Class R Noteholders receive those distributions depends on the amount and times at which Borrowers make payments on the Loans, which can be impacted by a number of factors. Those payments may be regularly scheduled payments or unscheduled payments resulting from prepayments or defaults on the Loans. See "*Risk Factors — Risks Primarily Related to the Notes and the Issuer—Yield considerations/prepayments; the yield to investors in the Notes will be sensitive to the rate and timing of principal payments thereon*" and "*Risk Factors—Risks Primarily Related to the Loans*".

On each Distribution Date, no distributions will be made on the Class R Notes until the fees, expenses and indemnities of the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar, the Note Registrar, the Paying Agent, the Servicer, the Administrator, the

Backup Servicer, the Collateral Agent, the Vault Provider and the Loan Data Agent are paid, required deposits to the Reserve Fund have been made, all payments of principal of and interest due on the Rated Notes on such Distribution Date have been paid in full and all Issuer Expenses then due and owing have been paid in full. In addition, no distributions will be made on the Class R Notes on any Distribution Date for which an Amortization Event has occurred or that occurs after the acceleration of the Notes following an Event of Default, unless and until the Note Balance of all outstanding Classes of Notes has been reduced to zero. See "*Application of Available Funds—Priority of Payments*" in this Private Placement Memorandum. In addition, in the case of an Event of Default under the Indenture, as long as any Rated Notes are outstanding, the Holders of such Rated Notes will be entitled to determine the remedies to be exercised under the Indenture. Remedies pursued by the Holders of Notes would likely adversely affect the interests of the holders of the Class R Notes. See "*—The Class R Noteholders may be bound by the decisions made by the Noteholders"* below.

The subordination of the Class R Notes is intended to increase the likelihood of timely payments of principal of and interest on the Rated Notes. Accordingly, the Class R Noteholders are in a "first loss" position and will bear the greatest risk of non-payment or under-payment. Distributions on the Class R Notes will be extremely sensitive to the rate and severity of losses on and prepayments of the Loans, any extensions of the Loans, the quality of the servicing of the Loans, general economic conditions and the timing of payments on the Loans because if collections are lower or slower than expected, the amount available for distributions to Class R Noteholders will be diminished or not available. See "*Risk Factors — Risks Primarily Related to the Loans—Social and economic factors may affect repayment of the Loans*", "*—The Servicer has the authority to waive or modify the terms of a Loan without the consent of the Grantor Trust, the Issuer or the Noteholders, which could negatively affect collections on the Loans,*" and "*—The Loans do not contain any cross-default or similar provisions. If a Borrower defaults on any of his or her other debt obligations, the Servicer's ability to collect on the Loan made to such Borrower may be substantially impaired"* and *"Prepayment and Yield Considerations."*

Furthermore, there is no credit enhancement for the Class R Notes. Any diminution in cash flow on the Loans and other assets of the Grantor Trust due to losses, prepayments or other reasons described herein will diminish amounts that would have been available for distributions on the Class R Notes and may cause holders of the Class R Notes to experience significant losses on their investment.

Investors in the Class B Notes will bear a greater risk of loss than the investors in Class A Notes, investors in the Class C Notes will bear a greater risk of loss than the investors in Class A Notes and the Class B Notes, investors in the Class D Notes will be a greater risk of loss than the investors in the Class A Notes, the Class B Notes and the Class C Notes and investors in Class R Notes will be a greater risk of loss than the investors in the Class A Notes, the Class B Notes, the Class C Notes and the Class D Notes, in the event of greater than expected losses on the Loans or following the occurrence of any Amortization Event, the Maturity Date of the Class A Notes, the Class B Notes or the Class C Notes (as applicable) or the acceleration of the Notes following an Event of Default. In the event of the acceleration of the Notes following an Event of Default or at any time on or after the Maturity Date of the Class A Notes, the Class B Notes or the Class C Notes (as applicable), interest and principal payments will be made (to the extent of Available Funds) on the Class A Notes, until they are paid in full, on the Class B Notes, until they are paid in full and, as applicable, on the Class C Notes, until they are paid in full, prior to any interest or principal payments being distributed on the Class B Notes, the Class C Notes or the Class D Notes, respectively. Investors in the Class B Notes will bear the risk of any adverse changes in the anticipated yield and weighted average life of their Notes resulting from any variability in payments of principal of and interest on the Class A Notes. Investors in the Class C Notes will bear the risk of any adverse changes in the anticipated yield and weighted average life of their Notes resulting from any variability in payments of principal of and interest on the Class A Notes and the Class B Notes. Investors in the Class D Notes will bear the risk of any adverse changes in the anticipated yield and weighted average life of their Notes resulting from any variability in payments of principal of and interest on the Class A Notes, the Class B Notes and the Class C Notes. Investors in the Class R Notes will bear the risk of any adverse changes in the anticipated yield and weighted average life of their Notes resulting from any variability in payments of principal of and interest on the Class A Notes, the Class B Notes, the Class C Notes and the Class D Notes.

The yields to maturity on the Class B Notes may be more sensitive to Loan losses than the yields to maturity on the Class A Notes, the yields to maturity on the Class C Notes may be more sensitive to Loan losses than the yields to maturity on the Class A Notes and the Class B Notes, the yields to maturity on the Class D Notes may be more sensitive to Loan losses than yields to maturity on the Class A Notes, the Class B Notes and the Class C Notes and

the yields on the Class R Notes may be more sensitive to Loan losses than yields to maturity on the Class A Notes, the Class B Notes, the Class C Notes and the Class D Notes. The timing of receipt of principal of and interest on the Class B Notes, the Class C Notes and the Class D Notes and distributions on the Class R Notes may be adversely affected by such losses even if those Notes do not ultimately bear such losses.

The Class R Notes are limited recourse interests in the Issuer, payable only from distributions on the Grantor Trust Certificate, which in turn are made from Collections on the Loans and the other Collateral owned by the Issuer. The notional amount is not intended to approximate the offering price or value of the Class R Notes. No distributions to the Class R Noteholders will reduce the notional amount of the Class R Notes until the final Distribution Date. No Class R Note is redeemable for its notional amount.

The sole source of distributions on the Class R Notes will be the distributions on the Grantor Trust Certificate received by the Issuer from Collections on the Loans held by the Grantor Trust and other Collateral owned by the Issuer (including amounts on deposit in the Collection Account and the Reserve Fund). The Class R Notes are not insured or guaranteed by any governmental agency or any other person or entity. The Class R Notes are not obligations of, interests in, or guaranteed by, any Partner Bank, the Loan Sellers, either Sponsor, the Servicer, the Administrator, the Grantor Trust, the Grantor Trust Trustee, the Grantor Trust Certificate Registrar, the Indenture Trustee, the Owner Trustee, the Depositor Trustee, the Note Registrar, the Issuer Certificate Registrar, the Paying Agent, the Backup Servicer, the Backup Servicer Subcontractor, the Structuring Agent, the Initial Purchasers or any of their respective officers, employees, subsidiaries or affiliates, and no holder of Class R Notes will have any claim or recourse to any funds or assets other than such funds and financial assets which are held in or available to the Issuer. This Private Placement Memorandum and the Basic Documents describe the circumstances under which payments will be made on the Class R Notes. The Class R Notes represent undivided interests in the residual interest in the Trust Estate. The Class R Notes are subordinated to all other payments and distributions required to be made by the Issuer and are not debt securities. There is no credit enhancement for the Class R Notes and the Issuer does not have any other source of payment to protect the Class R Notes in the event the Issuer does not have sufficient Available Funds to make distributions on the Class R Notes on any Distribution Date. Depending on the price paid for the Class R Notes, interest rate fluctuations, the amount and timing of payments on the Loans and other factors (including those described under "*Risk Factors*" in this Private Placement Memorandum), investors in the Class R Notes may not fully recover their investment. If Collections or other proceeds of the Loans are insufficient to make payments on the Class R Notes on any Distribution Date, no other assets will be available for payment thereon.

The notional amount is not intended to approximate the offering price or value of the Class R Notes. No distributions to the Class R Noteholders will reduce the notional amount of any Class R Notes until the final Distribution Date. The Class R Notes are not redeemable for their nominal amount.

The Noteholders have limited control over amendments, modifications and waivers to, and assignments of, the Indenture and other Basic Documents and limited control over the exercise of remedies under the Basic Documents.

Certain amendments, modifications or waivers to, or assignments of, the Indenture and the other Basic Documents may require the consent of holders representing only a certain percentage interest of the Notes or the Controlling Class of Notes. Additionally, other amendments, modifications or waivers to, or assignments of, the Indenture and other Basic Documents do not require the consent of any Noteholder. As a result, certain amendments, modifications or waivers to the Indenture and such other Basic Documents may be effected without the consent of any Noteholders or with the consent of only a specified percentage of Noteholders. See "*Description of the Basic Documents—Amendment*" in this Private Placement Memorandum. There can be no assurance as to whether or not amendments, modifications, waivers or assignments effected without a Noteholder vote (or with a vote of only certain Noteholders) could in the future adversely affect the performance of the Notes.

In addition, the exercise of certain remedies available to the Indenture Trustee, such as the right to accelerate the maturity of the Notes or direct any remedial action under the Indenture, and the exercise of certain remedies available to the Issuer or the Grantor Trust that may also be exercised by the Indenture Trustee, such as the right to enforce APL's repurchase and indemnification obligations, each Partner Bank's repurchase obligation or to terminate the Servicer upon a Servicer Event of Default, may only be exercised by the Indenture Trustee upon the direction of holders representing a certain percentage interest of the Notes or of the Controlling Class of Notes. These restrictions

may make it more difficult to effect remedies under the Basic Documents, or conversely, may result in the exercise of remedies despite the fact that one or more Noteholders are opposed to such exercise. See *"—There are potential conflicts of interest relating to the classes of Notes.*"

Subordinated Noteholders may not be able to direct the Indenture Trustee upon an Event of Default under the Indenture.

If an Event of Default occurs under the Indenture, no holders of Notes other than the Majority Holders will be able to waive that Event of Default, accelerate the applicable Maturity Dates of the Notes or direct any remedial action under the Indenture (although a consent of all Noteholders is required for sale or liquidation of the Collateral in certain circumstances set forth in the Indenture). Under the Indenture, "Majority Holders" is defined to be the Holders of not less than an aggregate of 51% of the Note Balance of the Controlling Class of Notes and the "Controlling Class" is defined to be (i) the Class A Notes, if any Class A Notes are Outstanding, (ii) the Class B Notes, if no Class A Notes are Outstanding and any Class B Notes are Outstanding, (iii) the Class C Notes, if no Class A Notes or Class B Notes are Outstanding and any Class C Notes are Outstanding, (iv) the Class D Notes, if no Class A Notes, Class B Notes or Class C Notes are Outstanding and any Class D Notes are Outstanding, or (v) the Class R Notes, if no Class A Notes, Class B Notes, Class C Notes or Class D Notes are Outstanding and any Class R Notes are Outstanding. See the definition of "Outstanding" in the "*Glossary*" for the treatment of Exchangeable Notes in determining the Controlling Class. In determining whether the Noteholders of the requisite principal amount of Notes Outstanding have given any request, demand, authorization, direction, notice, consent or waiver under the Indenture or any other Basic Document, any request, demand, authorization, direction, notice, consent or waiver under the Indenture or under any other Basic Document given by a Noteholder of Exchangeable Notes will be deemed to have been given by the corresponding Exchange Notes in the outstanding principal amount (or notional amount, in the case of the Class R Notes) of such Exchange Notes allocable to such Exchangeable Notes. Accordingly, the holders of the Class B Notes will not have any rights to direct any remedial action until the Class A Notes have been paid in full, the holders of the Class C Notes will not have any rights to direct any remedial action until the Class A Notes and the Class B Notes have been paid in full, the holders of the Class D Notes will not have any rights to direct any remedial action until the Class A Notes, the Class B Notes and the Class C Notes have been paid in full and the holders of the Class R Notes will not have any rights to direct any remedial action until the Class A Notes, the Class B Notes, the Class C Notes and the Class D Notes have been paid in full.

Sale of Collateral upon default of the Rated Notes could materially reduce distributions on the Class R Notes.

If an Event of Default occurs under the Indenture with respect to the Rated Notes, there can be no assurance that the proceeds of any sale of the Loan portfolio and the other Collateral securing the Rated Notes will be sufficient to pay in full the principal of and interest on the Rated Notes, and other Issuer Expenses then due and payable, or if sufficient to so pay in full, whether any material proceeds would remain for on the Class R Notes. None of the Issuer, the Owner Trustee or any Class R Noteholder (while any other Class of Notes is Outstanding) will have any right to consent to such a foreclosure sale following an Event of Default under the Indenture. If such a sale were to occur, the total amount of distributions in respect of the Class R Notes could be materially reduced or be zero. See "*Description of the Notes—Events of Default"* and *—Amortization Events"* in this Private Placement Memorandum.

The Class R Noteholders may be bound by decisions made by the Noteholders of the Rated Notes.

The Class R Noteholders will have very limited voting rights in respect of matters related to the Issuer and the management of the Collateral and the Class R Notes will not be entitled to any voting rights allocated to the Controlling Class if any other Class of Notes is Outstanding. The Class R Noteholders should anticipate that the Noteholders of the Rated Notes will exercise their rights under the Indenture and the other Basic Documents in their own best interests, which will most likely be adverse to the interests of the Class R Noteholders, but the Class R Noteholders are nonetheless bound by the decisions of the Noteholders of the Rated Notes.

If an Event of Default under the Indenture occurs, the Indenture Trustee, if so requested in writing by Noteholders representing not less than the Majority Holders, shall declare all of the Notes to be immediately due and payable. Under certain conditions, after the Notes are declared due and payable, the Indenture Trustee, at the direction of Noteholders representing not less than the Majority Holders, may sell the Collateral, irrespective of whether the related proceeds will be sufficient to make any payments on the Class R Notes. Any such sale of the Collateral may

cause the Class R Noteholders to suffer a loss on their investment. The interests of the Noteholders of Rated Notes may conflict with the interests of the Class R Noteholders, and a liquidation of the Collateral may occur under circumstances or at times the Class R Noteholders may view as unfavorable.

Certain Holders or beneficial owners of Class R Notes may be Non-Voting Class R Noteholders.

If a Noteholder or Note Owner of a Class R Note is an investment company registered under the Investment Company Act of 1940, as amended, or any wholly-owned subsidiary thereof, it will be a Non-Voting Class R Noteholder unless, in either case, the Administrator, in its sole discretion, has upon request waived in writing the "Non-Voting Class R Noteholder" status with respect to such Noteholder or Note Owner, in which case, upon the grant of such waiver, such Noteholder or Note Owner shall be entitled to exercise all rights of a regular Noteholder or Note Owner as if it were not a Non-Voting Class R Noteholder. The Class R Notes held or beneficially owned by Non-Voting Class R Noteholders will be disregarded from the calculations of Majority Holders and Required Class R Noteholders and therefore not entitled to vote on actions which require the request, demand, authorization, direction, notice, consent or waiver of the Majority Holders or Required Class R Noteholders. Nonetheless, Non-Voting Class R Noteholders will be bound by such actions of the Majority Holders and Required Class R Noteholders.

Required Class R Noteholders include Noteholders and Note Owners of Class R Notes constituting more than 60% of the aggregate notional amount of the Class R Notes, excluding the aggregate notional amount of any Class R Notes held by Non-Voting Class R Noteholders. It is expected that none of the Class R Notes will be held on the Closing Date by Non-Voting Class R Noteholders. However, there can be no assurance that the percentage of Non-Voting Class R Noteholders will not increase such that holders of an even smaller percentage of the aggregate notional amount of the Class R Notes could be sufficient to constitute Majority Holders or Required Class R Noteholders, or decrease such that holders of an aggregate notional amount of the Class R Notes previously sufficient to constitute Majority Holders or Required Class R Noteholders may no longer be sufficient to constitute Majority Holders or Required Class R Noteholders.

The Grantor Trust's ability to obtain Loan repurchase protection and indemnification from APL and the applicable Partner Bank is limited and may not be exercised in all cases.

The Grantor Trust will be entitled to certain remedies under the Loan Transferor Purchase Agreement against APL, relating to any failure of a Loan to satisfy the Loan Level Representations as of the date such Loan was originated or sold by the applicable Partner Bank, as of the Cutoff Date or the Closing Date, as applicable, as well as other matters. In addition, the loan level representations and warranties made by the applicable Partner Bank and APL under or in connection with the applicable Bank Purchase Agreement as of the date of sale by the applicable Partner Bank, and by Cross River Bank in the related APL Purchase Agreement, in each case, related to the CRB Retained Loans, and associated purchase and repurchase remedies, will be assigned to the Grantor Trust on the Closing Date. Those rights indirectly assigned to the Grantor Trust under the Loan Transferor Purchase Agreement, the applicable APL Purchase Agreement and such Bank Purchase Agreement, will be pledged by the Grantor Trust to the Indenture Trustee for the benefit of the Noteholders, together with the other Collateral.

APL and the Partner Banks are obligated to repurchase a Loan from the Grantor Trust only in limited circumstances. These circumstances include if certain of the representations and warranties of APL with respect to a Loan under the Loan Transferor Purchase Agreement and of Cross River Bank with respect to a CRB Retained Loan under the applicable APL Purchase Agreement (see "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum), or of the applicable Partner Bank or APL, as applicable, under or in connection with the applicable Bank Purchase Agreement, prove to be incorrect.

The Issuer and the Grantor Trust will generally rely on APL and the applicable Partner Bank to self-report any discovery that a Loan is required to be repurchased, and thus may not detect all circumstances in which purchase or indemnification is warranted. In addition, even in cases where such a circumstance is detected, particularly with respect to performing Loans, it may be less than clear whether such circumstance triggers a purchase or indemnification obligation. Additionally, no assurances can be given that APL or the Partner Banks, as applicable, will have sufficient funds to repurchase such Loans from the Grantor Trust when and as required, and the Grantor Trust and the Issuer (as the Grantor Trust Certificateholder) may experience delay in enforcing such purchase and indemnification rights and may not be able to exercise such rights at all. See *"—Risks Primarily Related to APL's*

Business — Obligations of APL are subject to its financial and operational ability to fulfill them." In the event such remedies are exercised, the Grantor Trust and the Issuer may incur costs that it may be unable to recover or may only recover after a delay, which may further reduce Available Funds and cause a delay or reduction in payment on the Notes or an Event of Default under the Indenture.

Risks associated with the Investment Company Act.

Neither the Issuer nor the Grantor Trust has been registered with the SEC as an investment company under the Investment Company Act. Counsel for the Issuer will opine, in connection with the initial issuance of the Notes by the Issuer, that neither the Issuer nor the Grantor Trust is required to be registered on the Closing Date as an investment company under the Investment Company Act in reliance upon Rule 3a-7 promulgated under the Investment Company Act, although there may be additional exemptions or exceptions available. No opinion or no-action position has been requested of the SEC.

If the SEC or a court of competent jurisdiction were to find that the Issuer or the Grantor Trust is in violation of the Investment Company Act for having failed to register as an investment company thereunder, possible consequences include, but are not limited to, the following: (i) the SEC could apply to a district court to enjoin the violation; (ii) investors in the Issuer could sue the Issuer and recover any damages caused by the violation; and (iii) any contract to which the Issuer or the Grantor Trust, as applicable, is party that is made in, or whose performance involves a, violation of the Investment Company Act would be unenforceable by any party to the contract unless a court were to find that under the circumstances enforcement would produce a more equitable result than nonenforcement and would not be inconsistent with the purposes of the Investment Company Act. Should the Issuer or the Grantor Trust be subjected to any or all of the foregoing, the Issuer or the Grantor Trust, as applicable, would be materially and adversely affected, and losses to investors could occur.

Risks associated with the Corporate Transparency Act.

On January 1, 2021, Congress enacted the Corporate Transparency Act as part of The National Defense Authorization Act. The CTA mandates the establishment of a national registry requiring corporations, limited liability companies and other similar entities formed or registered to do business in the U.S. or otherwise deemed "reporting companies" to disclose the identity of their beneficial owners to the Department of the Treasury's Financial Crimes Enforcement Network ("FinCEN"). Reporting companies formed prior to January 1, 2024 have until January 1, 2025 and reporting companies formed on or after January 1, 2024 have until 90 days after formation, to file an initial Beneficial Ownership Information ("BOI") report with FinCEN, unless an applicable exemption from reporting applies. Reporting companies are also required to update previously submitted reports promptly in certain circumstances. Non-compliance with the CTA's reporting requirements can result in significant penalties including criminal fines. There can be no assurance that the Issuer will be able to rely upon an exemption from CTA reporting and, to the extent reporting is required, timely file an applicable initial BOI report or any subsequent updates thereto as and when required to do so under the CTA. Furthermore, future interpretive guidance or other regulatory developments may result in regulatory conclusions that there are other ownership interests in the Issuer and/or that the Issuer is not exempt from being a reporting company and therefore that there may be requirements that certain investors furnish to the Administrator such information, including personally identifying information and documentation, as the Administrator determines is necessary to permit the Issuer to comply with the CTA or other applicable transparency laws in effect from time to time. In order to comply with the CTA, the Issuer has imposed additional requirements or restrictions on holders of the Class R Notes and Class PT Notes and may impose additional requirements or restrictions on holders of other classes of Notes. Such additional requirements or restrictions may reduce the liquidity of such Notes in the secondary market. In addition, there can be no assurance that applicable Noteholders will provide the required information necessary for the Issuer to comply with the CTA. Investors should note that any determination that the Issuer has failed to comply with the CTA could adversely affect the Notes.

The recharacterization of any of the transfers through which the Loans are transferred to the Grantor Trust could result in late payments on the Notes and/or reductions in the amounts of such payments.

Each of the Loans to be held by the Grantor Trust as of the Closing Date was originated by a Partner Bank and, except for the CRB Retained Loans, sold by such Partner Bank directly or indirectly, to a Loan Seller. The CRB Retained Loans have been owned by Cross River Bank since origination. On the Closing Date, each Loan Seller will

transfer the Loans owned by it to APL pursuant to its related APL Purchase Agreement, APL will transfer the Loans to the Loan Transferor pursuant to the Loan Transferor Purchase Agreement, the Loan Transferor will transfer the Loans to the Depositor pursuant to the Depositor Purchase Agreement, the Depositor will transfer the Loans to the Issuer pursuant to the Issuer Purchase Agreement, and the Issuer will contribute the Loans to the Grantor Trust pursuant to the Grantor Trust Contribution Agreement in exchange for the Grantor Trust Certificate, which, together with certain assets of the Issuer and the Loans, will be pledged as collateral for the Notes.

If any of the transfers from prior owners in the chain of title are recharacterized as something other than true sales or absolute assignments (as grants of a security interest to secure loans, for example), this may limit the Issuer's or the Grantor Trust's rights in respect of the Loans and result in delays or reductions in payments on the Notes, particularly in the case of a bankruptcy, conservatorship, receivership, insolvency or similar proceeding against any of the prior owners in the chain of title. Even if a challenge to the true sale characterization were not successful, it is possible that payments on the Notes would be delayed while a court resolves the claim.

Because Collections are temporarily commingled, payments on the Notes could be delayed or reduced in a Servicer or Collection Agent bankruptcy.

Collections on the Loans are generally expected to be remitted directly into a Servicing Collection Account that will not be subject to control arrangements in favor of the Indenture Trustee or any other Person, prior to their deposit in the Payment Account. See "*Description of the Basic Documents—Accounts*" in this Private Placement Memorandum.

The Servicing Agreement obligates the Servicer to maintain (or cause to be maintained) each Servicing Collection Account as a segregated account separate and apart from any of the Servicer's own funds and general assets. However, some payments on the Loans are mailed to the Servicer, or may be remitted by a Borrower to the Servicer in a method that results in commingling of such payments. Furthermore, Collections obtained by Collection Agents may be commingled with other funds before they are remitted by the applicable Collection Agent to the Servicer and further identified and transferred to a Servicing Collection Account, and may be comingled with funds held on behalf of other customers of the Servicer while in a Servicing Collection Account.

Neither the Indenture Trustee nor the Paying Agent has any direct access to, or control over, any Servicing Collection Account. In the event that the Servicer or any Collection Agent were to become a debtor in a Proceeding under the Bankruptcy Code or any other Debtor Relief Law and there are competing claims on any commingled funds by creditors of any holder or owner of any such commingled funds, payments on the Notes could be delayed or reduced.

The Rated Notes may be issued with original issue discount, which may require a U.S. Note Owner to pay taxes on the related income even before such U.S. Note Owner receives cash attributable to that income.

One or more classes of the Rated Notes may be issued with original issue discount ("OID") for U.S. federal income tax purposes. If a Rated Note is issued with OID, a U.S. Note Owner generally will be required to accrue OID on a current basis as ordinary income and pay tax accordingly, even before such U.S. Note Owner receives cash attributable to that income and regardless of such U.S. Note Owner's method of tax accounting. For further discussion of the computation and reporting of OID, see "*Certain Federal Income Tax Considerations—Consequences to U.S. Note Owners—Interest and Original Issue Discount*" in this Private Placement Memorandum.

Holders of Class R Notes (including holders of any portion of Class PT Notes attributable to Class R Notes) may have taxable income in excess of their cash distributions.

Because the Class R Notes (including any portion of the Class PT Notes attributable to the Class R Notes) will be treated as an undivided ownership interest in the assets of the Issuer for U.S. federal income tax purposes (which include, for this purpose, the Loans), each Class R Note Owner (including holders of any portion of Class PT Notes attributable to Class R Notes) will be required to report on its U.S. federal income tax return in accordance with such Class R Note Owner's method of accounting its pro rara share of the income from the Loans. This recognition of income will not be dependent upon the actual receipt by the Class R Note Owners (including holders of any portion of Class PT Notes attributable to Class R Notes) of any cash attributable to the Issuer. Because distributions with

respect to the Loans in excess of the interest on the Notes and certain Issuer Expenses will be paid to the Noteholders as principal payments in amounts up to the respective principal distribution amounts for each Distribution Date, an income tax liability could result for several tax years during which the Class R Note Owners (including holders of any portion of Class PT Notes attributable to Class R Notes) do not receive corresponding, or in some cases, any, cash distributions. See "*Certain Federal Income Tax Considerations—Consequences to Note Owners of Class R Notes*" in this Private Placement Memorandum.

Certain Issuer Expenses may be limited or disallowed in certain circumstances

For taxable years beginning before January 1, 2026, non-corporate Class R Note Owners (including holders of any portion of Class PT Notes attributable to Class R Notes) will be unable to deduct their pro rata share of expenses of the Issuer constituting "miscellaneous itemized deductions." For taxable years beginning after December 31, 2025, such miscellaneous itemized deductions are deductible for regular U.S. federal income tax purposes only to the extent they exceed 2 percent of the taxpayer's adjusted gross income for the year. In addition, for taxable years beginning after December 31, 2025, the Code imposes additional limitations on the deductibility of itemized deductions by individuals whose adjusted gross income exceeds a specified amount. The servicing fees and other similar expenses of the Issuer will likely constitute miscellaneous itemized deductions for these purposes.

Treasury Regulations under Section 385 of the Code require certain additional restrictions on the acquisition of Class R Notes (including any portion of Class PT Notes attributable to Class R Notes).

Due to Treasury Regulations under Section 385 of the Code, a Class R Note Owner (including a holder of any portion of a Class PT Note attributable to a Class R Note) will not be permitted to own (together with other members of its "expanded group" (as such term is defined in the applicable Treasury Regulations)), directly or through attribution, 80% or more of the Class R Notes (including any portion of the Class PT Notes attributable to Class R Notes) if another member of its expanded group owns any Rated Notes. If a Class R Note Owner (including a holder of any portion of the Class PT Notes attributable to Class R Notes) fails to comply with such restriction, the Issuer and Depositor are each entitled, at its discretion, to compel such Class R Note Owner (including such holder of any portion of the Class PT Notes attributable to Class R Notes) to sell its beneficial ownership interest in the Class R Notes (including any portion of the Class PT Notes attributable to Class R Notes). See "*Certain Federal Income Tax Considerations—Tax Regulations for Related Party Note Acquisitions*" and "*Notice to Investors/Transfer Restrictions*".

Decrement tables are based upon assumptions and models, and therefore, the actual weighted average lives of the Notes may differ from the weighted average lives shown in the decrement tables.

The decrement tables appearing under "*Prepayment and Yield Considerations*" in this Private Placement Memorandum have been prepared on the basis of the modeling assumptions set forth under "*Prepayment and Yield Considerations*" in this Private Placement Memorandum. The model used in this Private Placement Memorandum for prepayments does not purport to be a historical description of prepayment experience or a prediction of the anticipated rate of prepayment of any pool of loans, including the Loans in the pool. It is highly unlikely that the Loans will prepay at the rates specified. The prepayment assumptions are for illustrative purposes only. For these reasons, the actual weighted average lives of the Notes may differ from the weighted average lives shown in the decrement tables.

The ratings of the Rated Notes may be withdrawn or lowered, or the Rated Notes may receive an unsolicited rating, which may adversely affect the liquidity or market value of the Rated Notes. In addition, the Rating Agencies may have a conflict of interest because APL pays the fees charged by each Rating Agency for its rating services in connection with rating the Rated Notes.

It is a condition of issuance that the Rated Notes be rated as specified under "*Summary—Ratings of the Rated Notes*" in this Private Placement Memorandum. A rating is not a recommendation to purchase, hold or sell the Rated Notes, and the rating does not address the market price of the Rated Notes, marketability or suitability of investing in the Rated Notes for a particular investor (including, but not limited to, any accounting and/or regulatory treatment) or the tax treatment or taxability of payments made in respect of any security. The ratings of the Rated Notes address the likelihood of the timely payment of interest and the ultimate payment of principal on the Rated Notes by their

Maturity Date. The ratings assigned to the Rated Notes reflect only the opinion of the assigning Rating Agency as of the date such ratings were issued. Future events or conditions could have an adverse impact on such ratings. APL has hired each Rating Agency and APL will pay each a fee to assign ratings on the Rated Notes; provided APL did not solicit a rating on the Class D Notes from DBRS. APL did not solicit a rating on the Class R Notes or the Exchangeable Notes. A rating may not remain in effect for any given period of time and may be reviewed, revised, lowered, suspended, subject to credit watch, or withdrawn entirely by the assigning Rating Agency for any reason if, in its judgment, circumstances in the future so warrant, including as the result of changes to such Rating Agency's ratings criteria. The reduction, suspension or withdrawal of the ratings assigned to any of the Rated Notes will not, by itself, constitute an Event of Default. In the event that an initial or then current rating on the Rated Notes is reduced, suspended or withdrawn for any reason, no person or entity, including the Issuer, the Depositor, the Sponsors, the Administrator, the Servicer or any of their respective Affiliates, will be obligated to provide any additional credit enhancement or collateral, or take any other action, nor will the Noteholders have any right to direct any such persons to take any action in response to a lowering, suspension or withdrawal of a rating on the Rated Notes. In addition, no person or entity, including the Issuer, the Depositor, the Sponsors, the Administrator, the Servicer or any of their respective Affiliates, will be obligated to take any action that could avoid a reduction, suspension or withdrawal of the then current rating on the Rated Notes, nor will the Noteholders have any right to direct any such person to take any action in response to an event that could result in a reduction, suspension or withdrawal of a rating on the Rated Notes. The ratings do not consider to what extent the Rated Notes will be subject to prepayment or that the outstanding principal amount of any Class of Rated Notes will be prepaid. None of the Sponsors, the Depositor, the Structuring Agent, the Initial Purchasers, the Servicer, the Paying Agent or the Indenture Trustee has independently verified the ratings on any Class of Rated Notes or verified that each Rating Agency adhered to its ratings criteria in assigning a rating to any Class of Rated Notes.

Furthermore, the ratings assigned to the Rated Notes and the amount, type and nature of credit support, if any, provided with respect to the Rated Notes was determined on the basis of the criteria and methodology established by the Rating Agencies. These criteria and methodologies are sometimes based upon analysis of the behavior of loans in a larger group. However, we cannot assure prospective investors that the particular criteria or methodologies were followed, that the criteria or methodology that was used by the Rating Agencies conformed to the general criteria and methodology used for similar securities by the Rating Agencies or that the historical data supporting the Rating Agencies' analysis will accurately reflect future experience or that the data derived from a large pool of loans will accurately predict the delinquency or loss experience of the Loans. The assignment by a Rating Agency of a credit rating to a Class of Rated Notes should not be interpreted to mean that there is no risk, or a reduced risk, of loss on that Class. Further, no credit rating should be interpreted to be an indication of the expected return on a Class of Rated Notes. Changes affecting the Loans, the parties to the Basic Documents or other persons, which may occur quickly and frequently, or changes to ratings criteria employed by the Rating Agencies, may have an adverse effect on the ratings of the Rated Notes, and thus on the liquidity, market value and regulatory characteristics of the Rated Notes. Any adverse change to the rating of any Rated Notes would likely have an adverse effect on the market value of such Rated Notes. A security rating does not represent an assessment of the yield to maturity that a Noteholder may experience. See *"Ratings of the Rated Notes"* in this Private Placement Memorandum.

Rating agencies attempt to evaluate the principal and interest payments and do not evaluate the risks of fluctuations in market value; therefore, ratings may not fully reflect the true risks of an investment. The ratings of the Rated Notes only address the likelihood of the timely payment of interest and the ultimate payment of principal on the Rated Notes by their Maturity Date. Consequently, credit ratings of any Class of Rated Notes should not be considered a reliable indicator of investment quality. Prospective investors in the Rated Notes should make their own evaluation of the creditworthiness of the Loans and the applicable credit enhancement for the Rated Notes, and prospective investors should not rely on the ratings assigned by any rating agency to any of the Rated Notes.

APL may, but is not obligated to, pay monitoring fees with respect to any such ratings. The Sponsors are not aware that any nationally recognized statistical rating organization ("NRSRO") other than the Rating Agencies has assigned ratings to the Rated Notes. SEC rules state that the payment of fees by the Depositor, the Issuer, the Sponsors, the Structuring Agent or the Initial Purchasers to rating agencies to issue or maintain a credit rating on asset-backed securities is a conflict of interest for the rating agencies. In the view of the SEC, this conflict is particularly acute because arrangers of asset-backed securities transactions provide repeat business to the rating agencies.

Under SEC rules aimed at enhancing transparency, objectivity and competition in the credit rating process, information provided by the Depositor, the Issuer, the Sponsors or an entity on behalf of the foregoing, including the Structuring Agent and Initial Purchasers, to the Rating Agencies for the purpose of assigning or monitoring the ratings on the Rated Notes is required to be made available to each other non-hired NRSRO in order to make it possible for non-hired NRSROs to assign unsolicited ratings to the Rated Notes or otherwise provide market reports and/or published commentary related to the Rated Notes. An unsolicited rating could be assigned at any time, including prior to the Closing Date. None of the Depositor, the Sponsors, the Issuer, the Structuring Agent, the Initial Purchasers or any of their Affiliates will have any obligation to inform any Noteholder of any unsolicited ratings assigned to the Rated Notes, even though one or more of these parties may be aware of unsolicited ratings assigned to the Rated Notes. Consequently, prospective investors should monitor whether an unsolicited rating of the Rated Notes has been assigned by a non-hired NRSRO and are urged to consult with their financial and legal advisors regarding the effect of the assignment of an unsolicited rating to a class of Rated Notes. NRSROs, including the Rating Agencies, may have different methodologies, criteria, models and requirements. If any non-hired NRSRO assigns an unsolicited rating to the Rated Notes, there can be no assurance that the unsolicited rating will not be lower than the ratings provided by the Rating Agencies with respect to the Rated Notes, which could adversely affect the market value of Rated Notes and/or limit a Noteholder's ability to resell their Rated Notes. Any market reports or published commentary also may express differing and/or potentially negative views regarding the Loans and/or the Rated Notes. In addition, if the Sponsors fail to make available to the non-hired NRSROs any information provided to the Rating Agencies for the purpose of assigning or monitoring the ratings on the Rated Notes, the Rating Agencies could withdraw their ratings on the Rated Notes, which could adversely affect the liquidity, market value or regulatory characteristics of a Noteholder's Rated Notes and/or limit their ability to resell such Rated Notes. See "*—Restrictions relating to the transfer of the Notes reduces their liquidity and may make resale difficult or impossible*."

Any Rating Agency may revise or withdraw the ratings at any time in its sole discretion, including as a result of a failure by the Sponsors to comply with its obligation to post information provided to the hired agencies on a website that is accessible by a rating agency that is not a hired agency. The ratings of any Rated Notes may be lowered by any Rating Agency following the initial issuance of the Rated Notes as a result of losses on the Loans in excess of the levels contemplated by the Sponsors at the time of its initial rating analysis or as a result of a change in the financial condition of the Servicer or APL or a change or other update to such Rating Agency's ratings criteria or methodology or for any other reason that such Rating Agency believes is appropriate.

Accordingly, the ratings assigned to any Note on the date on which the Note is originally issued may be lowered or withdrawn by any Rating Agency at any time thereafter. If any rating with respect to the Rated Notes is revised or withdrawn, the liquidity or the market value of a Noteholder's Note may be adversely affected, and such Noteholder may not be able to sell or obtain financing for such Rated Notes, or such Noteholder may be able to sell only at a substantial discount from the price such Noteholder paid or obtain financing at interest rates in excess of current interest rates.

Each Rating Agency has been hired by APL to provide its ratings on the Rated Notes. We note that the Rating Agencies may have a conflict of interest because APL pays the fees charged by each Rating Agency for its rating services in connection with rating the Rated Notes.

Congress or the SEC may determine that any NRSRO that assigns ratings to the Rated Notes no longer qualifies as a nationally recognized statistical rating organization for purposes of the federal securities laws and that determination may also have an adverse effect on the market value of the Rated Notes and/or limit the ability of Noteholders to resell their Rated Notes. See "*—Restrictions relating to the transfer of the Notes reduces their liquidity and may make resale difficult or impossible*."

The Sponsors and their representatives from time to time engage in discussions with rating agencies on various transactions, and such discussions prior to the date hereof may have related to this transaction or other transactions involving the Sponsors, the Depositor or other unaffiliated participants in the market for consumer receivables. The Sponsors elected to solicit a rating on the Rated Notes solely from the Rating Agencies. APL did not solicit a rating on the Class D Notes from DBRS. There can be no assurance that another rating agency (including a rating agency with whom APL has had discussions), if it had been solicited to rate the Rated Notes in addition to or instead of the Rating Agencies, would not have issued ratings lower than the ratings issued by the Rating Agencies or declined to issue any rating on one or more classes of Rated Notes.

Prospective investors in the Rated Notes are urged to make their own evaluation of the creditworthiness of the Loans, the Issuer and the credit enhancement for the Rated Notes and not to rely solely on the ratings on the Rated Notes.

The Class R Notes and the Exchangeable Notes will not be rated as of the Closing Date and none of the Issuer, the Sponsors or any of their respective Affiliates has requested a rating of the Class R Notes or the Exchangeable Notes by any rating agency.

The Class R Notes and the Exchangeable Notes will not be rated as of the Closing Date and none of the Issuer, the Sponsors or any of their respective Affiliates has requested a rating of the Class R Notes or the Exchangeable Notes by any rating agency. The lack of a rating on the Class R Notes and the Exchangeable Notes may significantly limit the liquidity and market value of the Class R Notes and the Exchangeable Notes. A rating may have relevance beyond the rating agency's assessment of the credit quality of a security; the rating of a security can determine the treatment of such security for certain regulatory purposes. In addition, the lack of a rating will reduce the potential for, or increase the cost of, financing the purchase and/or holding of the Class R Notes and the Exchangeable Notes. Investors subject to capital requirements may be required to hold more capital against the Class R Notes and the Exchangeable Notes than would have been the case had the Class R Notes and the Exchangeable Notes been rated. An unsolicited rating could be assigned to the Class R Notes and the Exchangeable Notes at any time, including prior to the Closing Date, and no Person will have any obligation to inform any Noteholder of any such unsolicited rating. Any unsolicited rating of the Class R Notes and the Exchangeable Notes could be lower than the rating anticipated by Noteholders.

Failure to pay principal on any Class of Notes will not be an Event of Default until its respective Maturity Date.

The Issuer does not have an obligation to pay a specified amount of principal on any Class of Notes on any date other than its outstanding amount on its respective Maturity Date. Failure to pay principal on any Class of Notes will not be an Event of Default until its respective Maturity Date.

In addition, an Event of Default is not triggered under the Indenture for failure to pay interest on any Rated Notes other than the Controlling Class of Rated Notes. See "—*Subordination of the Class B Notes, the Class C Notes and the Class D Notes results in a greater risk of losses or delays in payment on those Notes*" above.

Failure to make distributions on the Class R Notes is not an Event of Default.

The Class R Notes do not bear interest and do not have regularly scheduled principal payments. As such, the holders of Class R Notes will rank behind all creditors, whether secured or unsecured and known or unknown, of the Issuer. In the event the Issuer does not have sufficient Available Funds to make payments on the Class R Notes on any Distribution Date, the failure to make a distribution on the Class R Notes will not be a default and the Class R Noteholders will not have any remedies available against the Issuer or any other party.

There are potential conflicts of interest relating to the Sponsors and the Loan Sellers.

APL is a Sponsor of the transaction described in this Private Placement Memorandum and will be the Servicer of the Loans. In addition, APL will also be the Administrator of the Issuer and the Grantor Trust and can only be removed from such capacity for cause by the Indenture Trustee at the written direction of the Required Class R Noteholders. The Depositor is a wholly owned subsidiary of APL. The Series B Loan Seller is a wholly owned direct or indirect subsidiary of Series B, a series of Freedom Consumer Credit Fund, LLC, a Delaware multi-series limited liability company (such series, "Series B"). FFAM is the managing member of Series B.

Jefferies is a Sponsor of the transaction described in this Private Placement Memorandum and will be the Structuring Agent and an Initial Purchaser. The Loan Transferor is owned in its entirety by Jefferies Funding LLC and is an Affiliate of Jefferies.

Notes may be held by either of the Sponsors, the Loan Sellers or their respective Affiliates or third-party investors. On the Closing Date, at least 5% of the initial principal balance of each Class of Rated Notes and at least

5% of the initial notional amount of the Class R Notes (which holding, in each case, may include Exchangeable Notes representing an interest in the corresponding Exchange Notes) will be held by the Retaining Sponsor or its majority-owned affiliate. See "*U.S. Credit Risk Retention*" in this Private Placement Memorandum.

The interests of each Sponsor, the Loan Sellers and their respective Affiliates may not always be aligned with the interests of other investors in the Notes, and may cause or lead to potential or actual conflicts of interest. For example, the decision of the Administrator to enforce or refrain from enforcing the obligations of the Servicer under the Servicing Agreement (including the obligation of the Servicer to provide indemnification as provided in the Servicing Agreement) or the obligations of APL under the Loan Transferor Purchase Agreement (including the obligations of APL to repurchase the Loans and provide indemnification), or of the Required Class R Noteholders to direct the Indenture Trustee to remove the Administrator for failure to do so, may be influenced by the affiliation of APL and the Depositor, by APL acting as Administrator, Servicer and seller under the Loan Transferor Purchase Agreement, or by the other relationships and investments the Loan Sellers have with each Sponsor or any of their respective Affiliates, and, in each case, may conflict with the interests of other investors in the Notes. Additionally, APL's exercise of its power as Servicer to defer or otherwise modify the terms of a Loan could be influenced by its role as a Sponsor or its affiliation of FDR or the overall strategic objectives of the Achieve Loan Program, any of which influences could conflict with the interests of investors in the Notes. See *"—Risks Primarily Related to the Loans—The Servicer has the authority to waive or modify the terms of a Loan without the consent of the Grantor Trust, the Issuer or the Noteholders, which could negatively affect collections on the Loans*". Even in cases where interests are generally aligned, the Administrator's or Servicer's determination regarding a particular course of action may differ significantly from that of an unaffiliated investor in the Notes, including by reason of differences in determining or weighting different factors, such as the probability of success of any such course of action or the costs, risks, time or operational burden involved in connection with taking any such action. Many of these determinations may further require decisions to be made or actions to be taken within a timeframe in which the applicable decision maker or decision makers have less than all the information required to make an optimal decision. None of the Servicer, the Administrator or any Class R Noteholder is under any obligation to act in the best interests of investors in the Notes when such interests conflicts with its own, and may exercise remedies or take enforcement actions without regard to the interests of investors in the Notes or in a manner that may be adverse to the interests of investors in the Notes.

In addition, a portion of APL's income is based on transaction volume, with APL earning more fees (including upfront fees and servicing income) as transaction volume increases. Accordingly, APL may be incentivized to solicit potential borrowers, including Borrowers under the Loans, to refinance their existing loans through the Achieve Loan Program. Such solicitations may result in earlier than expected repayments on the Notes. See *"—Yield considerations/prepayments; the yield to investors in the Notes will be sensitive to the rate and timing of principal payments thereon*."

The Trust Agreement provides that none of the Depositor, the Owner Trustee, the Administrator or any Class R Noteholder will have any duties or obligations, fiduciary or otherwise, to the Issuer or to each other, and any such duty or obligation that may otherwise exist at law, in equity or otherwise is expressly disclaimed under the Trust Agreement, although the implied contractual covenant of good faith and fair dealing under Delaware law is still applicable. Furthermore, in the event of any conflict of interest as among the Class R Noteholders, other investors in the Notes, the Issuer's service providers, agents or representatives, the other parties to the Basic Documents or any other Person, each of the Depositor, the Administrator and the Class R Noteholders, in determining the appropriate course of conduct for the Issuer, will be entitled, pursuant to the Trust Agreement, to consider the interests of each or any of them and will not be bound to consider the interests of any one of them above those of any others.

There are potential conflicts of interest relating to the Initial Purchasers.

The Initial Purchasers and/or their affiliates may from time to time perform investment banking services for, or solicit investment banking business from, any person named in this Private Placement Memorandum. Various potential and actual conflicts of interest may arise as a result of the investment banking, commercial banking, asset management, financing and financial advisory services and products, among others, provided by the Initial Purchasers and/or their affiliates. The Initial Purchasers and/or their employees or customers may from time to time have a long or short position in one or more Classes of Notes or a long or short position with respect to either Sponsor, any Partner Bank or their respective affiliates. These long or short positions with respect to the Notes may be as a result of any

market making activities with respect to one or more Classes of Notes. The Initial Purchasers and/or their employees or customers may from time to time enter into hedging positions with respect to one or more Classes of Notes. Jefferies serves as both an Initial Purchaser and as the Retaining Sponsor and in such capacity may have interests that differ from the other transaction parties and other holders of the Notes.

In addition, the Initial Purchasers and/or their affiliates are currently party to, and may in the future enter into, commercial and financing relationships with APL, any Partner Bank and their respective affiliates and other persons who acquire Achieve Loans. Actions taken by the Initial Purchasers and/or their affiliates in connection with such transactions, which may include the exercise of remedies against APL could adversely affect APL. If this were to occur, APL's ability to service the Loans or repurchase Loans pursuant to its obligations under the Loan Transferor Purchase Agreement could be adversely affected, in which event payments on the Notes could be delayed or reduced.

Each Pass-Through Loan Seller is beneficially owned by one or more of Morgan Stanley, Barclays and/or CRB Securities or their respective affiliates. A portion of the net proceeds of the offering of the Notes will be applied to pay the purchase price for the Loans sold by each Pass-Through Loan Seller and further distributed to Morgan Stanley, Barclays and/or CRB Securities or their respective affiliates, as applicable, as beneficiaries of the Pass-Through Loan Sellers.

The Initial Purchasers or their affiliates could in the future provide additional financing to, or make additional whole loan purchases from any Partner Bank, either of the Sponsors or any of their respective Affiliates, including any of APL's Affiliates. The interests of the Initial Purchasers or their affiliates may not be aligned with the interests of the Noteholders. See "*Certain U.S. regulatory matters could delay or reduce payments on the Notes.*"

In addition, Jefferies, which is an Initial Purchaser and the Structuring Agent, is also a Sponsor and an Affiliate of the Loan Transferor. See "*There are potential conflicts of interest relating to the Sponsors and the Loan Sellers.*"

There are potential conflicts of interest relating to the classes of Notes.

As described elsewhere in this Private Placement Memorandum, the Noteholders representing not less than the Majority Holders will make certain decisions with regard to declaration or waivers of Events of Default, acceleration of payments on the Notes in the event of an Event of Default, the exercise of certain remedies under the Basic Documents, and certain other matters. In certain circumstances following an Event of Default, the consent of all Noteholders is required under the Indenture for sale or liquidation of the Collateral by the Indenture Trustee. Because the holders of different Classes of Notes may have varying interests when it comes to these matters, or may be affiliated with either of the Sponsors (see "*—There are potential conflicts of interest relating to the Sponsors and the Loan Sellers"* above) or have other relationships with either of the Sponsors or their respective Affiliates (including as whole loan purchasers), certain holders may find that courses of action determined by other holders do not reflect their interests but that they are nonetheless bound by the decisions of these other holders. See "*Description of the Notes—Rights Upon Event of Default*" herein.

There may be conflicts of interest among Classes of Notes due to differing priorities of payment and terms. Investors in the Notes should consider that certain decisions may not be in the best interests of each Class of Noteholders and that any conflict of interest among different Noteholders may not be resolved in favor of investors in a particular Class of Notes. These conflicts may be exacerbated if there are holders of Exchangeable Notes, given that they will simultaneously hold interests in multiple Classes of Notes. Any disputes that arise between Noteholders may not be resolved without substantial delay, which may cause delays in payment on the Notes. The economic interests of the holders of a Class of Notes may not coincide with those of other holders of the same Class or holders of other Classes of Notes. The holders of Notes will not be required to consider any possible adverse effect of their actions on other holders of the same Class or holders of other Classes of Notes.

Certain bankruptcy and insolvency matters may delay or reduce payments on the Loans or the Notes.

In general, the Basic Documents and other agreements relating to the Loans were structured in order to limit the likelihood of adverse determinations in bankruptcy, conservatorship, receivership or insolvency proceedings

instituted against prior owners in the chain of title to the Loans, the Servicer and relevant parent entities, including structuring transfers as "true sales" and structuring the Issuer and the Grantor Trust as special purpose bankruptcy-remote entities. However, it is possible in any such proceeding that claimants may argue, and that a court may determine, that one or more transfers of the Loans were not "true sales," or that the separateness of the Issuer or another relevant entity should be disregarded and substantively consolidated with one or more parent entities. In such a case, the Loans may be treated as part of the bankruptcy estate or conservatorship or receivership estate of the prior owner or parent entity that is the subject of the applicable proceeding, whether conducted under the Bankruptcy Code (in the case of the Sponsors or the non-bank Loan Sellers) or applicable laws (such as the Federal Deposit Insurance Act) governing the receivership or conservatorship of banks (in the case of Cross River Bank and Pathward). If the Loans are treated as part of a bankruptcy or conservatorship or receivership estate, there could be delays or reductions in payments on the Notes.

In addition, numerous statutory provisions, including federal bankruptcy laws and related State laws, may interfere with or affect the ability of a creditor to enforce a Loan. A bankruptcy court may also reduce the monthly payments due under the related contract or Loan or change the rate of interest and time of repayment of the indebtedness. Any of the foregoing could result in delays and/or reductions in payments on the Notes.

Certain U.S. regulatory matters could delay or reduce payments on the Notes.

Laws and regulations in effect or proposed in the United States, including the Dodd-Frank Wall Street Reform and Consumer Protection Act (the "Dodd-Frank Act"), may negatively affect the liquidity and market value of the Notes or otherwise adversely affect the performance of the Notes.

The Dodd-Frank Act was signed into law on July 21, 2010. Although the Dodd-Frank Act generally took effect on July 22, 2010, many provisions are taking effect as implementing regulations are issued and finalized. The Dodd-Frank Act is extensive and significant legislation that, among other things:

- creates a framework for the orderly liquidation by the Federal Deposit Insurance Corporation (the "FDIC") of certain bank holding companies and other nonbank financial companies, defined as "covered financial companies", in the event such a company is, among other things, in default or in danger of default under its obligations and the resolution of such a company under other applicable law would have serious adverse effects on the financial stability or economic conditions of the United States, which framework also would apply to the liquidation of certain of their respective subsidiaries, defined as "covered subsidiaries", in the event such a subsidiary is, among other things, in default or in danger of default under its obligations and the liquidation of such subsidiary would avoid or mitigate serious adverse effects on the financial stability or economic conditions of the United States;

- creates a new framework for the regulation of over-the-counter derivatives activities;

- strengthens the regulatory oversight of securities and capital markets activities by the SEC;

- creates the Consumer Financial Protection Bureau (the "Bureau"), an agency responsible for administering and enforcing the laws and regulations for consumer financial products and services; and

- increases the regulation of the securitization markets through, among other things, a mandated risk retention requirement for securitizers and a direction to the SEC to regulate credit rating agencies and adopt regulations governing these organizations and their activities.

Although the expectation is that the liquidation framework described above will be invoked on rare occasions and only involving the largest financial companies, no assurances can be given that the liquidation framework for the resolution of "covered financial companies" or their "covered subsidiaries" would not apply to either of the Sponsors, the Servicer, the Issuer, the Grantor Trust, the Owner Trustee, the Grantor Trust Trustee, the Indenture Trustee, the Loan Sellers, and their Affiliates or, if it were to apply, would not result in a repudiation of any of the Basic Documents

where further performance is required or an automatic stay or similar power preventing the Indenture Trustee or other transaction parties from exercising their rights. Any attempt by the FDIC to recharacterize the transfer of the Loans as a security interest to secure debt that the FDIC then repudiates would cause delays in payments or losses on the Notes. In addition, if the Issuer were to become subject to the orderly liquidation framework, the FDIC could repudiate the debt of the Issuer and the Noteholders would have a secured claim in the receivership of the Issuer. Also, if the Issuer were subject to the orderly liquidation framework, Noteholders would not be permitted to accelerate the debt, exercise remedies against the Collateral or replace the Servicer without the FDIC's consent for 90 days after the receiver is appointed. As a result of any of these events, delays in payments on the Notes would occur and possible reductions in the amount of those payments could occur.

The Dodd-Frank Act affects the offering, marketing and regulation of consumer financial products and services offered by or through financial institutions, which could include any Partner Bank, either of the Sponsors, the Servicer, the Issuer, the Grantor Trust, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee and their respective Affiliates. Title X of the Dodd-Frank Act gives the Bureau supervision, examination and enforcement authority over the consumer financial products and services offered by certain non-depository institutions and large insured depository institutions. In particular, three of the primary purposes of the Bureau are to enforce federal consumer financial laws, to ensure that consumers receive clear and accurate disclosures regarding financial products and to protect consumers from discrimination and unfair, deceptive and abusive acts and practices. The Bureau also has broad rulemaking, examination and enforcement authority over parties offering or providing consumer financial products and services or otherwise subject to federal consumer financial laws and authority to prevent "unfair, deceptive or abusive" acts and practices. In December 2021, in denying a motion to dismiss an action brought by the Bureau involving student loans, one U.S. District Court held that a securitization trust was a "covered person" under the Dodd-Frank Act, and thus subject to investigation and enforcement activity by the Bureau, because by contracting for past due and defaulted loans to be serviced by an unaffiliated third party special servicer and subservicers, it was engaged in collecting debt and servicing the loans. The U.S. Court of Appeals for the Third Circuit granted a petition for interlocutory review of that decision and on March 19, 2024, the Third Circuit issued its opinion finding that the trusts are covered persons subject to the Dodd-Frank Act and the Bureau's enforcement authority. Now, the Bureau, and state attorneys general, who have the independent authority to enforce the Dodd-Frank Act, may rely on the Third Circuit's decision as precedent in investigating and bringing enforcement actions against other trusts and securitization vehicles, including the Issuer, in the future. And indeed, on May 6, 2024, the Bureau brought an action against the National Collegiate Student Loan Trusts and Pennsylvania Higher Education Assistance Agency ("PHEAA") for multi-year servicing failures related to student loans in securitization trusts. The Bureau alleges that the defendants failed to respond to borrowers seeking relief from student loan payments. The Bureau filed a proposed stipulated final judgment, which, if entered by the court, would require the National Collegiate Student Loan Trusts and PHEAA to pay $400,000 and $1.75 million in penalties, respectively, to the Bureau's victims relief fund. They would also pay nearly $3 million in redress to harmed borrowers.

The Bureau has the authority to write regulations under federal consumer financial laws, and to enforce those laws against and examine a wide variety of large depository institutions and other non-bank providers of consumer financial products and services for compliance. It is also authorized to collect fines and seek various forms of consumer redress in the event of alleged violations, engage in consumer financial education, track consumer complaints, request data and promote the availability of financial services to underserved consumers and communities. In addition, federal, state and local governments during the COVID-19 pandemic enacted legislation, promulgated regulations and issued orders and statements mandating or encouraging financial services companies to make accommodations to borrowers and other customers affected by COVID-19. These accommodations included loan modifications such as collection programs or extensions of repayment terms, allowing obligors to temporarily stop making scheduled payments on certain obligations, interest and fee waivers and forbearance from exercising remedies, including moratoriums on enforcing rights with respect to collateral. Future pandemics, epidemics, or other societal events could lead to similar or other governmental actions to mandate or encourage similar or further accommodations with respect to consumer debt like the Loans.

Depending on how the Bureau functions and its areas of focus, it could increase the compliance costs for the Sponsors, the Servicer, the Issuer, the Grantor Trust, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee and their respective Affiliates, potentially delay the ability of any Partner Bank, the Sponsors, the Servicer, the Issuer, the Grantor Trust, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee and their respective Affiliates to respond to marketplace changes, result in requirements to alter products and services that would make

them less attractive to consumers, impair the ability of any Partner Bank, the Sponsors, the Servicer, the Issuer, the Grantor Trust, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee and their respective Affiliates to offer products and services profitably, and harm the reputations of any Partner Bank, the Sponsors, the Servicer, the Issuer, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee and their respective Affiliates or otherwise adversely affect their respective businesses. Such occurrences could adversely affect the ability of such Persons to perform their obligations under the Basic Documents which in turn could adversely affect the Issuer's ability to make payment on the Notes. The Bureau is authorized to pursue administrative proceedings or litigation for violations of federal consumer financial laws. In these proceedings, the Bureau can obtain cease and desist orders (which can include orders for restitution or rescission of contracts, as well as other kinds of affirmative relief) and monetary penalties. Also, where a company has violated Title X of the Dodd-Frank Act or Bureau regulations promulgated under the authority granted to the Bureau by Title X, the Dodd-Frank Act empowers state attorneys general and state regulators to bring civil actions for the kind of cease and desist orders available to the Bureau. See *"—There continues to be uncertainty as to how the actions of the Bureau, the FDIC, the OCC and other Governmental Authorities could impact APL's business or that of the Partner Banks"* in this Private Placement Memorandum. There can be no assurance that the Bureau or state attorneys general or state regulators would not pursue such an action against either of the Sponsors, the Servicer, the Issuer, the Grantor Trust, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee and their respective Affiliates.

On September 30, 2021, Rohit Chopra was confirmed as the Bureau Director. He has adopted, and is likely to continue to adopt, different sets of policies and priorities for the Bureau than under the previous administration. A senior official at the Bureau has commented that the Bureau is looking at consumer protection concerns with certain loans originated in programs involving relationships between banks and lending platforms. Such policies and priorities and related actions by the Bureau could result in requirements to alter or cease offering certain loan products and services, making them less attractive and restricting APL's ability to offer them, or could lead to increased enforcement action by the Bureau with respect to existing Achieve Loans (including the Loans) or the activities of APL or its affiliates.

Among other things, the Dodd-Frank Act also increases the regulation of the securitization markets. For example, it gives broader powers to the SEC to regulate credit rating agencies and adopt regulations governing these organizations and their activities. It also requires securitizers or originators to retain an economic interest in a portion of the credit risk for any asset that they securitize or originate.

The U.S. Risk Retention Rules generally require, among other things, that the sponsor of a securitization transaction or a "majority-owned affiliate" thereof retain at least 5% of the credit risk of the assets of the securitization transaction, and in general prohibit, for a specified period based on the applicable asset class, such sponsor or such affiliate from directly or indirectly hedging or otherwise selling or transferring the retained interest, subject to certain exemptions. The Depositor will initially acquire and then transfer to the Retaining Sponsor or its majority-owned affiliate, on the Closing Date, at least 5% of the initial principal balance of each Class of Rated Notes and at least 5% of the initial notional amount of the Class R Notes (which holding, in each case, may include Exchangeable Notes representing an interest in the corresponding Exchange Notes), which the Retaining Sponsor believes to be an "eligible vertical interest" retained by the "sponsor" or its "majority-owned affiliate" that comprises at least 5% of the credit risk of the assets of the securitization transaction under the U.S. Risk Retention Rules. Any failure by the Retaining Sponsor to satisfy the U.S. Risk Retention Rules could have a material and adverse effect on the market value and liquidity of the Notes as well as on the business, financial condition, assets or operations of the Issuer or either of the Sponsors which in turn could adversely affect the ability of such Persons to perform their obligations under the Basic Documents. The U.S. Risk Retention Rules are subject to interpretive uncertainty and, while the Retaining Sponsor intends to comply with the U.S. Risk Retention Rules, there can be no assurance that the Retaining Sponsor will satisfy, as of the Closing Date or any other date in the future, all of the initial and ongoing requirements of the U.S. Risk Retention Rules. See *"–Risks associated with securitization and risk retention requirements."*

Compliance with the implementing regulations under the Dodd-Frank Act or the oversight of the SEC or Bureau may impose costs on, create operational constraints for, or place limits on pricing with respect to finance companies such as the Sponsors. Some regulations required by the Dodd-Frank Act have not been finalized. Until all of the implementing regulations are issued, interpreted and tested in the market, no assurance can be given that these new requirements imposed by the Dodd-Frank Act will not have a significant impact on marketability of asset-

backed securities such as the Notes, the secondary market for such securities, the servicing of the Loans, and on the operating results, the regulation and supervision of the Sponsors.

The SEC adopted revised disclosure and due diligence requirements under Regulation AB for public transactions on August 27, 2014. Although the transaction described in this Private Placement Memorandum is an unregistered private transaction and, as such, is not currently subject to the requirements of Regulation AB and would not be subject to the recently adopted revised requirements, the SEC may adopt additional rules in the future requiring private transactions to comply with Regulation AB requirements or making private securitization transactions such as that described in this Private Placement Memorandum subject to asset-level data disclosure requirements similar to those under Regulation AB. The adoption of any such requirements for private transactions may materially adversely affect either of the Sponsors, the Issuer and the Notes, whether due to an inability to comply or due to the cost, expense and operational burdens associated with compliance. In addition, the SEC's adoption of revised rules for public transactions, or the implementation of similar requirements for private transactions in the future, may cause the Notes to be less marketable than asset-backed securities that are offered in compliance with such requirements. Also, if the Issuer were subject to the orderly liquidation framework, Noteholders would not be permitted to accelerate the debt, exercise remedies against the collateral or cause the Grantor Trust to replace the Servicer without the FDIC's consent for 90 days after the receiver is appointed. As a result of any of these events, delays in payments on the Notes would occur and possible reductions in the amount of those payments could occur.

No Assurances can be made that a state regulator, if any, that investigates the transaction will approve the transaction structure and the Issuer's and the Grantor Trust's Lack of Licensing.

Neither the Issuer nor the Grantor Trust is licensed to hold or service loans in any state. The transaction structure described in this Private Placement Memorandum presumes that a state regulator, if any, that investigates the transaction will conclude that no licensing in respect of the Issuer's or the Grantor Trust's ownership of the Loans is required. State regulators may, however, take a different view and require licensing of additional transaction parties and no assurance can be given in that regard.

If a regulator were to adopt the view that licensing of additional transaction parties was or will be required, this would result in administrative burden, cost and, potentially, penalties or potentially even an invalidation of the affected Loans. The penalties for failure to obtain requisite licenses vary from jurisdiction to jurisdiction, but if a regulator were to assess monetary penalties and/or require licensing for the Grantor Trust or the Issuer, then delays in payments on the Notes could occur and/or the ability of the Issuer to make payments on the Notes could be adversely affected.

RISKS PRIMARILY RELATED TO THE LOANS

Social and economic factors may affect repayment of the Loans.

The ability of the Borrowers to make payments on the Loans, as well as the prepayment experience thereon, may be affected by a variety of social and economic factors. Economic factors include interest rates, unemployment levels, government fiscal stimulus, tariffs and other taxes, gasoline prices, upward adjustments in monthly mortgage payments or other debt payments, the rate of inflation and consumer perceptions of economic conditions generally. Moreover, the past partial shutdown of the U.S. federal government, and any other shutdowns that may occur in the future, could have a negative economic impact on Borrowers who are employees of the federal government or who otherwise rely upon federal government assistance (including, for example, Borrowers living in Federal Emergency Management Agency disaster areas). Social factors include changes in consumer confidence levels and attitudes toward incurring debt and changing attitudes regarding the stigma of personal bankruptcy. Economic conditions may also be impacted by epidemics and pandemics (and any resulting quarantines or shelter-in-place or similar directives), such as COVID-19, as well as localized civil unrest, localized weather events and environmental disasters. See "—*Geographic concentration may increase risk of loss*" below. The Issuer is unable to determine and has no basis to predict whether or to what extent social or economic factors will affect the Loans.

Following the financial crisis that began in 2008, the United States experienced an extended period of economic weakness or recession. This period was marked by high unemployment, decreases in certain home values, increased mortgage and consumer loan delinquencies and a lack of available consumer credit that has generally

resulted in increased delinquencies, increased volatility in financial markets, general deleveraging of consumer balance sheets, and defaults and losses on consumer loans and receivables, including installment loans similar to those serviced by the Servicer. The number of delinquencies and defaults on consumer receivables is significantly influenced by the employment status of obligors. There can be no assurance that high levels of unemployment or underemployment or other factors relating to the uncertain economic climate will not result in increased delinquencies and defaults with respect to the Loans, or materially impair the ability of the Sponsor, the Issuer, the Administrator and the Servicer to meet their respective obligations under the Basic Documents. Any increase in delinquencies or defaults with respect to the Loans or material impairment of the ability of the Sponsor, the Issuer, the Administrator or the Servicer to meet their respective obligations under the Basic Documents increases the likelihood that investors will experience losses with respect to the Notes.

After many years of historically low inflation, consumer prices in the United States are experiencing steep increases. The general effects of inflation on the economy of the United States can be wide ranging, evidenced by rising wages and rising costs of consumer goods and necessities. If a Borrower's income growth fails to keep pace with the rising costs of necessary goods, then such Borrower may have less funds available to make towards their loan payments. The long-term effects of inflation on the general economy and on Borrowers are unclear, and in certain cases, rising inflation may affect Borrowers' abilities to repay their Loans or lead them to request payment deferrals, thereby reducing or delaying the amount received by the holders of the Notes with respect to such Loans.

Additionally, in the not so distant past, unstable real estate values, resets of adjustable rate mortgages to higher interest rates, political gridlock on United States federal budget matters, the downgrade of the U.S. sovereign debt credit rating below Triple-A and the downgrade of the UK sovereign debt credit rating below "AAA" by Standard & Poor's, changing interest rate environments, the sovereign debt crisis in the EU, general economic malaise in the United States, Europe and Japan, and other factors have impaired consumer confidence and disposable income in the United States, and if they occur again may affect delinquencies and defaults on the Loans, although the severity or duration of this effect is unknown.

Several nations, particularly within the EU, in the not so distant past, have suffered from significant economic distress. There can be no assurance as to the ultimate resolution of the economic problems in those countries, nor as to whether such problems will spread to other countries or otherwise negatively affect economies or markets. A debt default by a sovereign nation or other potential consequences of these economic problems may trigger a new crisis in the global credit markets and overall economy which could have a significant adverse effect on the Issuer and the Notes. In addition, it is possible that in the future one or more countries that have adopted the Euro could abandon the Euro and return to a national currency and/or that the Euro will cease to exist as a single currency in its current form. The effects on a country of abandonment of the Euro, a country's voluntary exit from the EU or a country's forced expulsion from the EU are difficult to predict, but would be likely to have a negative effect on such country's economy and the global economy as a whole. A country's involuntary or voluntary exit from the EU or the abandonment by any country of the Euro could have a destabilizing effect on all Eurozone countries and their economies and a negative effect on the global economy as a whole. The invasion by the Russian Federation of Ukraine and the sanctions imposed by the U.S., the EU, the UK, Japan and other countries, Hamas' attack against Israel and the ensuing conflict, as well as escalating tension between the United States and other countries such as China, could also have a negative effect on the U.S. economy and the global economy as a whole.

In addition, the COVID-19 pandemic has led, and may continue to lead, to disruptions in global financial markets and the economies of many nations and has resulted in adverse impacts on the economy of the United States (including a recession in 2020, a significant increase in unemployment, increases in the inflation rate, decreases in certain home values and, in some cases, a tightening of available credit) and the global economy in general, which may adversely affect the ability of Borrowers to make timely payments on the Loans, and the value and liquidity of and ability of the Issuer to make payments on, the Notes. Other widespread health crises occurring in the future could have similar, or even more severe, adverse consequences. We cannot predict the course of this current pandemic, the likelihood or severity of any future outbreak or the ultimate effects of either on the financial markets generally, or on the value or performance of the Notes.

Conversely, an improvement in economic conditions or government fiscal stimulus could result in prepayments by the Borrowers of their payment obligations under the Loans, as occurred with respect to Achieve Loans following government fiscal stimulus programs in response to the COVID-19 pandemic. As a result, investors

may receive principal payments of the Rated Notes and distributions on the Class R Notes earlier than anticipated. See "*Prepayment and Yield Considerations*" in this Private Placement Memorandum.

The resumption of payments on federal student loans could adversely affect payments on the Loans and therefore on the Notes.

As part of the United States government's response to the COVID-19 pandemic, payments and interest accrual on federal student loans were paused beginning in March 2020. Interest resumed accruing on such loans on September 1, 2023, and payments on such loans resumed on October 1, 2023. In general, consumers with federal student loans, which will likely include some Borrowers under the Loans, will have fewer available funds for other expenses than they had in the forty-two months preceding the payment resumption, potentially resulting in increased delinquencies and defaults on their other obligations, such as the Loans.

Consumer protection laws and contractual restrictions may affect the enforceability or collectability of the Loans or result in penalties or damages to the transaction parties.

Federal and state consumer protection laws impose requirements, including, where applicable, licensing requirements, and place restrictions on creditors in connection with solicitations and extensions of credit, the interest rate and other terms of credit, as well as servicing of and collections on loans, including protection of sensitive customer data obtained in the origination and servicing thereof. Violations of applicable consumer protection laws may result in penalties or regulatory actions, subject collection efforts to defenses, and may result in findings that loans are not valid or enforceable under their terms against the obligors of those loans. Although limited inquiries have been made and representations and warranties in connection with the sale and servicing of the Loans were made by or on behalf of APL and the Servicer, no independent diligence was performed to ensure that the Partner Banks or any Collection Agents, where applicable, were or are properly licensed and, consequently, enforcement of the Loans could be impaired. Moreover, certain of these laws, such as the federal Truth in Lending Act, may make an assignee of such loans (such as the Sponsor, the Depositor, the Issuer or the Grantor Trust) liable to the obligor thereon for any violation by the originating lender. *See "—Plaintiffs may assert claims against subsequent holders of the Loans, including the Depositor, the Issuer or the Grantor Trust, and recipients of amounts collected on the Loans, including the Noteholders".* Federal law permits both FDIC-insured state-chartered banks and national banks to charge interest to borrowers on a nationwide basis based on the rates allowed by the state where the bank is located, and these federal statutes preempt inconsistent state law limitations. In *Madden v. Midland Funding, LLC*, 786 F.3d 246 (2d Cir. 2015), the United States Court of Appeals for the Second Circuit (the "Second Circuit") ruled that federal law did not preempt a state's interest rate limitations when applied to the non-bank debt buyer of a loan seeking to collect interest at the rate originally contracted for by a national bank. Citing *Madden v. Midland Funding, LLC*, a Colorado state court ruled that non-bank purchasers of loans that were originated by Cross River Bank could not rely on federal preemption pursuant to the Federal Deposit Insurance Act to receive interest in excess of the rates permitted by Colorado law. As further discussed under "*—Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from Collections on the Loans, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement actions, any of which would adversely affect the Notes*" below, the OCC and the FDIC each has finalized regulations to address the application of federal preemption to loans that are originated by national banks, federal savings banks, or FDIC-insured state banks and then sold by the banks, concluding that the allowable interest rate is not affected by the sale, assignment, or other transfer of the loan. The jurisdiction of the Second Circuit, where *Madden* was decided, includes Connecticut, New York and Vermont. Although the Loans will not include any loans made to borrowers who were Connecticut or Vermont residents at the time of their Loan application, investors should understand and consider that approximately 8.28% of the loans in the Statistical Loan Pool (by aggregate Principal Balance as of the Statistical Cutoff Date) are CRB Retained Loans made to Borrowers residing in New York with an interest rate (calculated as an annual percentage rate) exceeding the New York civil usury limit that, under the Madden decision, could be applicable to such loan following a transfer if federal preemption were held not to apply (any such Loans being, "Subject New York Loans"). While the facts of the *Madden* case are different from the facts relating to the origination and subsequent transfer of the Loans, and the OCC and the FDIC have issued final regulations contrary to the *Madden*

decision, if the *Madden* holdings were nevertheless applied to the Loans originated by any Partner Bank and ultimately transferred to the Grantor Trust, then the Loans could be found to be unenforceable and void, or subject to reduction of the interest or principal (previously paid since origination or to be paid), or holders thereof could be subject to other penalties or damages. States have enacted, and additional states may enact, laws that seek to deem certain entities to be the lender of a loan and prohibit any evasion or circumvention of state laws regulating consumer lending. For example, in 2021 Maine adopted a law that, among other things, may deem an entity to be the lender of a loan if it (a) holds, acquires or maintains the "predominant economic interest in the loan" or (b) markets, arranges or facilitates the loan and holds the right to purchase the loan or interest in the loan, or (c) based on the totality of the circumstances, appears to be the lender, and the transaction is structured to evade certain statutory requirements. Any violation of such laws or any litigation alleging such a violation with respect to a Loan could give rise to claims and/or defenses by a Borrower, or a group of similarly situated Borrowers, against the Issuer, the Grantor Trust, the Depositor, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from Collections on the Loans (including Noteholders), the Trustees, the Servicer and certain other parties, or subject them to claims for damages, disgorgement or enforcement actions by regulators or other Governmental Authorities.

The federal and state consumer protection laws, rules and regulations applicable to the solicitation and advertising, underwriting, granting, servicing and collection of loans, and the protection of sensitive customer data, frequently provide for administrative penalties, as well as civil (and in some cases, criminal) liability resulting from their violation. For example, on April 25, 2018, the Federal Trade Commission filed a complaint against an online platform, claiming that the platform engaged in deceptive practices relating to the disclosure of loan origination fees and the disclosure of loan approval, engaged in unfair practices with respect to making unauthorized charges to borrowers' bank accounts, and failed to properly deliver privacy notices. The complaint sought injunctive relief and ancillary relief including rescission or reformation of contracts, restitution, the refund of monies paid, and disgorgement. The Federal Trade Commission announced a settlement of this matter on July 14, 2021, in which the platform agreed to pay $18 million. On April 15, 2019, the Federal Trade Commission filed a complaint and announced a settlement with another online platform. The claims in that matter related to alleged unfair or deceptive practices regarding methods for making payments, crediting payments, paying off loans in full, and taking unauthorized payments, and alleged violations of the Telemarketing Sales Rule and the Electronic Fund Transfer Act relating to the methods consumers could use to make loan payments. An administrative proceeding, litigation or investigation relating to one or more allegations or findings of the violation of such laws by any Partner Bank, the Sponsor, the Servicer, the Depositor, the Issuer, the Grantor Trust or other prior owners or subsequent transferees of the Loans (whether by an administrative agency, a Borrower or a group or class of Borrowers) could result in modifications in a Partner Bank's, the Sponsor's or the Servicer's methods of doing business which could impair the Servicer's ability to service the Loans or collect on the Loans or result in the requirement that the Sponsor, the Servicer, the Depositor, the Issuer, the Grantor Trust and/or prior owners or subsequent transferees of the Loans pay damages, fines or penalties and/or cancel the balance or other amounts owing under a Loan associated with such violations.

The Loans generally are written using standardized documentation. Thus, many Borrowers may be similarly situated insofar as the provisions of their respective contractual obligations are concerned. Accordingly, allegations of violations of the provisions of applicable federal or state consumer protection laws could potentially result in a large class of claimants asserting claims against the Sponsor, the Servicer, the Depositor, the Issuer, the Grantor Trust, prior owners or subsequent transferees of the Loans and/or recipients of proceeds from collections on the Loans (including Noteholders). There is no assurance that such claims will not be asserted against the Sponsor, the Servicer, the Depositor, the Issuer, the Grantor Trust, prior owners or subsequent transferees of the Loans and/or recipients of proceeds from collections on the Loans in the future. The loan agreement for each Loan (other than those subject to the Military Lending Act) contains an arbitration provision that is intended to limit class litigation while complying with applicable case law. To that end, such arbitration provision is designed to be substantively fair and customer-friendly, to prevent any credible allegation of overreaching. However, it is possible that a court could decline to enforce the arbitration clause, in which case litigation could proceed in court including as a class action. See also "—*Federal, state and local laws may adversely affect the ability to collect amounts due on the Loans*" below.

To the extent it is determined that the Loans were not originated in accordance with all applicable laws, APL may be obligated to purchase from the Grantor Trust any Loan that fails to comply with such legal requirements. There can be no assurance that such Loan purchases will be enforced or that APL will have adequate resources to make such Loan purchases. See "*Risks Primarily Related to the Notes and the Issuer—The Grantor Trust's ability to obtain Loan repurchase protection and indemnification from APL and the applicable Partner Bank is limited and may*

not be exercised in all cases" and "*Risks Primarily Related to APL's Business – Obligations of APL are subject to its financial and operational ability to fulfill them.*"

Additionally, Congress, the states and regulatory agencies could further regulate the consumer credit industry in ways that would make it more difficult for the Servicer to collect payments on the Loans. See "*—There continues to be uncertainty as to how the actions of the Bureau, the FDIC, the OCC and other Governmental Authorities could impact APL's business or that of the Partner Banks*" herein. Further, changes in the regulatory application or judicial interpretation of the laws and regulations applicable to financial institutions also could impact the manner in which the Servicer conducts its business. The regulatory environment in which financial institutions, creditors and servicers operate has become increasingly complex and robust, and following the financial crisis of 2008, supervisory efforts to apply relevant laws, regulations and policies have become more intense. In addition, Congress could enact new legislation, and the President's administration, including the Director of the Bureau, could adopt new regulatory requirements and enforcement priorities, in each case, that could adversely impact the Servicer or the Loans.

State or federal laws may require the owner or servicer of a loan to send certain notices to customers upon a change in such owner or servicer. These notices might cause a borrower to request validation of the debt, dispute the debt or make other inquiries about debt balances, which may adversely affect collections on the Loans.

As set forth in further detail below in this Private Placement Memorandum, recent litigation brought by both government and private plaintiffs has successfully challenged the contention that a bank acting as the lender on a loan was the true lender and asserting that the party providing the source of loan financing was instead the true lender. See "*—Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement actions, any of which would adversely affect the Notes*" below.

Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement actions, any of which would adversely affect the Notes.

Each of the Loans was originated by a Partner Bank, and each Partner Bank contracts for interest, origination fees, late fees and returned check fees based on federal law. Section 27 of the Federal Deposit Insurance Act allows an FDIC-insured bank such as Cross River Bank, and 12 U.S.C. § 85 allows a national bank such as Pathward, to charge interest to borrowers on a nationwide basis based on the rates allowed by the state where the bank is located. Cross River Bank is located in New Jersey, and Pathward is located in South Dakota. These federal statutes generally preempt inconsistent state law limitations. However, there have been both private litigation and enforcement actions seeking to recharacterize a lending transaction, claiming that the named lender was not the true lender, and that instead another entity was the true lender. Since that other entity was not an FDIC-insured bank or a national bank that has federal interest rate preemption, under this theory, state law limitations would not be preempted. Other litigation has challenged the ability of loan assignees to rely on the preemption that applied to the lender of a loan. Any such litigation or enforcement action with respect to a Loan against the Issuer, the Grantor Trust, the Depositor, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans (including Noteholders), the Trustees, the Servicer and certain other parties, could subject them to claims for damages, disgorgement or other penalties or remedies.

There have been judicial decisions which could affect the Loans and their collectability. In May 2015, the United States Court of Appeals for the Second Circuit decided the case of *Madden v. Midland Funding, LLC*, 786

F.3d 246 (2d Cir. 2015). There, a credit card loan made by a national bank was assigned to a non-bank debt collector which attempted to collect the loan and to continue to charge interest at the rate contracted for by the national bank. The borrower filed suit claiming, among other things, that the rate charged by the non-bank entity exceeded the maximum interest rates allowable under New York usury law. The Second Circuit ruled that federal preemption generally applicable to national banks did not apply to non-bank assignees if the bank no longer had an interest in the loan, and therefore did not preempt state interest rate limitations that might apply to the non-bank assignees. In November 2015, the defendant in the *Madden* case filed a petition for a writ of certiorari with the United States Supreme Court for further review of the Second Circuit's decision. On March 21, 2016, the Supreme Court requested that the Solicitor General file a brief setting forth the government's position on whether the Supreme Court should hear the case. On May 24, 2016, the Solicitor General filed its brief recommending that the petition for a writ of certiorari be denied, although the Solicitor General's brief concluded that the Second Circuit's decision was incorrect as a matter of law. On June 27, 2016, the Supreme Court denied the petition, thus allowing the Second Circuit decision to stand. The Second Circuit's decision is binding on Federal courts in the Second Circuit which includes the states of New York, Connecticut and Vermont and could be viewed as persuasive authority by federal courts in other jurisdictions and in state courts. To the extent Loans have interest rates that exceed the amount permitted by usury laws in these states, the Loans could be found to be unenforceable and void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages. Any violation of such laws or any litigation alleging such a violation with respect to a Loan could give rise to claims and/or defenses by a Borrower, or a group of similarly situated Borrowers, against the Issuer, the Grantor Trust, the Depositor, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans (including Noteholders), the Trustees, the Servicer and certain other parties, or subject them to claims for damages, disgorgement or enforcement actions by regulators or other Governmental Authorities. Investors should understand and consider that the pool of Loans will include Subject New York Loans. As of the Statistical Cutoff Date, approximately 8.28% of the loans in the Statistical Loan Pool (by aggregate Principal Balance as of the Statistical Cutoff Date) are Subject New York Loans.

In *Madden*, the Second Circuit remanded the case to the United States District Court for the Southern District of New York. On February 27, 2017, the District Court issued an opinion addressing defendants' motion for summary judgment and plaintiff's motion for class certification. On the summary judgment motion, the court applied New York usury law and rejected application of Delaware law pursuant to the cardholder agreement. The court concluded that applying Delaware law would violate a fundamental public policy of New York. The court held that plaintiff could not assert a direct usury claim under New York law, but could use the alleged violation of New York's criminal usury law as a basis for asserting claims under the federal Fair Debt Collection Practices Act and New York General Business Law Section 349. The court also granted plaintiff's motion for class certification, certifying a class of New York state borrowers with similar claims. These *Madden* decisions could result in similar actions or decisions in other jurisdictions, which could adversely affect Loans originated to borrowers in states outside the Second Circuit. On September 10, 2019, the District Court in *Madden* entered a final approval order for a classwide settlement to fully and finally resolve the litigation. The settlement includes a variety of relief including $550,000 monetary relief to class borrowers, the option to use a fund of more than $9,000,000 as credits for borrowers to reduce the balance of their respective loans, and payment of $550,000 in attorneys' fees.

On February 2, 2017, the Colorado Administrator (the "Colorado Administrator") of the Uniform Consumer Credit Code ("UCCC") served a complaint against Marlette Funding, LLC ("Marlette"), filed in Colorado state court. The Colorado Administrator filed an amended complaint on February 15, 2017. Marlette, like APL, has an arrangement under which Cross River Bank originates loans. Marlette has held a Colorado supervised lenders license since May 2014 and, as a result, the Colorado Administrator periodically examines Marlette. The Colorado Administrator contended that Marlette was the "creditor" of the loans originated through Marlette's Best Egg Platform ("Best Egg loans") made by Cross River Bank to Colorado state residents and owned by nonbanks and that the federal preemption of Colorado interest rate limitations afforded to Cross River Bank did not apply. Relatedly, the Colorado Administrator contended that Marlette collected payments of finance, extension and delinquency charges on certain of the Colorado Best Egg loans owned by nonbanks that were not permitted under Colorado law or were outside of the state's required grace periods. Lastly, the Colorado Administrator contended that for the loans owned by nonbanks the loan agreements between Colorado residents and Cross River Bank were required to choose Colorado law as the governing law, and that the provisions choosing New Jersey law were impermissible. The Colorado Administrator sought (i) the refund of certain excess finance and delinquency charges that exceeded amounts permitted by the UCCC for the loans owned by nonbanks, (ii) preliminary and permanent injunction of engaging in such activities going

forward, (iii) related restitution and civil penalties, and (iv) interest and costs. The Colorado Administrator also brought a parallel action against Avant, another platform, relating to loans made to Colorado borrowers by another bank.

On November 30, 2018, the Colorado Administrator filed Second Amended Complaints in each of the cases pending against Marlette and Avant. The new Second Amended Complaints contained similar allegations as the prior complaints, but each new Second Amended Complaint named as additional defendants Wilmington Trust, N.A. and Wilmington Savings Fund Society, FSB, not in their individual capacities but solely as trustees of certain trusts that acquired loans originated through the respective loan platforms, including these banks in their capacities as trustees of the depositor and of the issuer and grantor trust under prior securitizations of consumer loans made to borrowers who were residents of Colorado at the time of their loan application. The Second Amended Complaint against Avant also named as an additional defendant a special purpose vehicle that acquired loans originated through the Avant online lending platform. The Colorado Administrator alleged that, as assignees of loans, the newly named defendants are "creditors" as defined under the UCCC and are therefore liable for the collection by them of finance charges, late charges, and other amounts in excess of the amounts permitted by the UCCC, as well as civil penalties in accordance with Colorado law.

On June 9, 2020, the Colorado state court hearing the case brought by the Colorado Administrator against Marlette granted the Colorado Administrator's motion for a determination of law. The court ruled, citing *Madden*, that non-bank purchasers of loans that were originated by Cross River Bank could not rely on federal preemption pursuant to Section 27 of the Federal Deposit Insurance Act, to receive interest in excess of the rates permitted by Colorado law. In August 2020, the Colorado Administrator and the defendants agreed to a settlement of the litigation. In the settlement, the defendants agreed to pay $1.05 million to the Colorado Attorney General and $500,000 to a Colorado financial literacy program, and the state agreed to a release of its claims. The parties also agreed to the terms of a safe harbor under which loans with interest rates exceeding the limits of Colorado law can be originated to Colorado residents through the platforms. The safe harbor includes requirements related to the structuring of the program between the originating bank and the platform, oversight by the bank, consumer disclosures, funding of the loans, licensing of the platform and terms of the loans. The safe harbor applies prospectively to loans originated through programs offered by the banks and platforms that were parties to the litigation. The safe harbor does not apply to the Loans, and the Achieve Loan Program was not structured to comply with the specific terms of the safe harbor.

The Loans will not include any loans made to borrowers who were Colorado residents at the time of their Loan application. Nonetheless, there is a risk that regulators, courts or other Governmental Authorities in states where Borrowers of Loans reside may take the position of this Colorado court, or take the position that the applicable Partner Bank is not the "true lender" of the Loans, which in either case could lead to litigation or enforcement action in those states against the Issuer, the Grantor Trust, the Depositor, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans (including Noteholders), the Trustees, the Servicer and certain other parties, and could subject them to claims for damages, disgorgement or other penalties or remedies.

Class action complaints were filed (1) in the United States District Court for the Eastern District of New York (*Cohen, et al. v. Capital One Funding, LLC et al.,* (No. 19-03479 (E.D.N.Y. June 12, 2019))) against three special purpose vehicles involved in the securitization of credit card receivables originated by Capital One Bank (USA), N.A., as well as the trustees of two of the special purpose vehicles and (2) in the United States District Court for the Western District of New York (*Petersen, et al. v. Chase Card Funding, LLC, et al.,* (No. 1:19-cv-00741-LJV (W.D.N.Y. June 6, 2019))) against two special purpose vehicles involved in the securitization of credit card receivables originated by Chase Bank USA, N.A., as well as a trustee of one of the special purpose vehicles. The complaints alleged a usury claim under New York law, as well as a claim for unjust enrichment. The plaintiffs claimed, based on the *Madden* decision, that the non-bank special purpose vehicles could not rely on federal preemption to collect interest on the credit card receivables and therefore violated New York's interest rate laws by collecting interest in excess of 16%, and sought compensatory, treble, punitive, statutory and other monetary damages, injunctive and declaratory remedies, and other relief. The courts granted motions to dismiss both cases in 2020 and, although the plaintiffs initially filed appeals, the appeals were subsequently dismissed. There can be no assurance that similar claims will not be brought against the Issuer, the Grantor Trust, the Depositor, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans (including Noteholders), the Trustees, the Servicer

and certain other parties, or subject them to claims for damages, disgorgement or enforcement actions by regulators or other Governmental Authorities, or of the outcome of any such claims.

Two borrowers commenced putative class actions in Circuit Court for Montgomery County, Maryland, against Prosper Marketplace, Inc. ("Prosper") and certain entities that had been trying to collect on the borrowers' loans. The complaint asserts claims for violation of certain Maryland state laws and seeks damages in part on the theory that Prosper is the true lender rather than WebBank. The plaintiffs also seek a declaration of requirement for Maryland licensure as a credit services business, and that defendants did not have the right to collect money from the plaintiffs and the class members on the loan accounts. Defendants removed the actions to federal court and have moved to compel arbitration. *Jones v. Prosper Marketplace, Inc*., Civil Action No. 8:21-cv-00893 (GJH) (D. Md.); *Khan v. Crown Asset Management LLC*, Civil Action No. 8:21-cv-01126 (GJH) (D. Md.). Plaintiff also filed a separate proceeding claiming that the arbitration provisions are unenforceable, which defendants also removed to federal court. *Khan v. Crown Asset Management, LLC*, Civil Action No. 8:21-cv-01914. On March 21, 2022, the court granted defendants' motion to compel arbitration. Plaintiffs filed an appeal to the U.S. Court of Appeals for the Fourth Circuit, which has been dismissed with the consent of the parties.

On June 23, 2021, a consumer filed a putative class action complaint against a nonbank partner that arranged for the origination of loans by Cross River Bank in state court in Pennsylvania. *Henry v. Marlette Funding*, LLC, No. GD-21-007229 (Ct. Common Pleas, Allegheny Cty., Penn.). The plaintiff alleges both that nonbank partner was the lender of the loan rather than Cross River Bank, and that, based on the Madden case, the nonbank partner may not rely on the federal preemption of interest rate laws that applies to Cross River Bank after the sale of the loan. Based on these theories, the plaintiff claims that the interest rate on the loan exceeded the six percent interest allowed by Pennsylvania law for unlicensed lenders. The complaint raises a claim under the Pennsylvania Unfair Trade Practices and Consumer Protection Law on behalf of a putative class of Pennsylvania borrowers, and seeks actual, statutory, treble and other damages, attorneys' fees and costs, declaratory relief, and other unspecified relief. Marlette removed the case to federal district court and has filed a renewed motion to compel individual arbitration after the court allowed limited discovery on that issue. *Henry v. Marlette Funding, LLC*, No. 2:21-cv-985 (W.D. Pa.). The court allowed limited discovery regarding arbitration issues, after which Marlette renewed its motion to compel arbitration. The court dismissed the litigation by agreement on January 30, 2023 after the parties reached a settlement. The plaintiff also filed separate putative class action complaints asserting claims under the Fair Debt Collection Practices Act against two collection agencies that allegedly sought to collect his loan on behalf of the current owner of the loan, which have been dismissed by the plaintiff with prejudice.

On July 23, 2021, a consumer filed a putative class action complaint against a nonbank partner that arranged for the origination of loans by WebBank in state court in Pennsylvania. *McDaid v. Avant, LLC,* No. GD-21-008447 (Ct. Common Pleas, Allegheny Cty., Pa.). The plaintiff alleges both that nonbank partner was the lender of the loan rather than WebBank, and that, based on the Madden case, the nonbank partner may not rely on the federal preemption of interest rate laws that applies to WebBank after the sale of the loan. Based on these theories, the plaintiff claims that the interest rate on the loan exceeded the six percent interest allowed by Pennsylvania law. The complaint raises a claim under the Pennsylvania Loan Interest Protection Law, the Consumer Discount Company Act, and the Unfair Trade Practices and Consumer Protection Law on behalf of a putative class of Pennsylvania borrowers who paid interest and fees in excess of six percent simple per year, and it seeks actual, statutory, treble and other damages, attorneys' fees and costs, declaratory relief, and other unspecified relief. On August 26, 2021, Avant removed the case to federal court and has filed a renewed motion to compel individual arbitration after the court allowed limited discovery on that issue. *McDaid v. Avant, LLC*, 2:21-cv-01135 (W.D. Pa.). On September 23, 2022, a magistrate judge recommended that Avant's motion to compel arbitration be granted and the litigation dismissed. The district court judge approved and adopted the recommendation in November 2022, closing the case.

There has been (and may continue to be) other litigation challenging lending arrangements where a bank has made a loan and then sells and assigns it to an entity that is engaged in assisting with the origination and servicing of the loan. For example, in 2006 and 2007, a high-interest lending platform purchased and serviced loans made to residents of West Virginia by a South Dakota bank. The West Virginia Attorney General challenged this arrangement in court. The highest court in West Virginia found that the true lender in this arrangement was the non-bank lending platform. Accordingly, federal preemption did not apply, and the lending platform was required to be licensed as a lender in West Virginia and to comply with the usury laws applicable in West Virginia. See *CashCall, Inc. v. Morrisey*, No. 12–1274, 2014 WL 2404300 (W. Va. May 30, 2014). Because the rates charged exceeded West

Virginia's usury laws and because the lending platform was not licensed, the court found the loans to be unenforceable and entered penalties against the lending platform. The United States Supreme Court declined to hear an appeal of this case in 2015. The Loans will not include any loans made to borrowers who were West Virginia residents at the time of their Loan application. On August 31, 2016, the United States District Court for the Central District of California ruled on a summary judgment motion in *Consumer Financial Protection Bureau v. CashCall, Inc., et al.* The Bureau alleged that the defendants, which included CashCall, a high-interest lending platform, and Western Sky Financial, an entity formed by a Native American tribe, engaged in unlawful unfair, deceptive and abusive acts and practices by servicing and collecting full payment on loans that were void or voidable because of state licensing and usury laws. In its summary judgment ruling, the court concluded that CashCall was the "true lender" because only CashCall had money at risk, favorably citing the holding in *CashCall, Inc. v. Morrisey*. As a result, the court rejected application of tribal law as provided in the consumer loan agreements, and instead applied the laws of the states where the borrowers resided. On January 19, 2018, the court issued its ruling after a bench trial of the case, awarding a civil money penalty of $10,283,886 to the Bureau but denying the Bureau's request for restitution and declaratory and injunctive relief. In May 2022 the Ninth Circuit affirmed the application of the laws of the states where the borrowers resided to conclude that the loans were unenforceable and remanded the case to the District Court to reassess application of a higher civil money penalty and the appropriateness of restitution. In February 2023, the District Court ordered CashCall to pay $134 million in restitution and $33 million in penalties. CashCall has appealed that judgment to the Ninth Circuit. The Ninth Circuit denied a motion to stay the appellate proceedings pending resolution of a now resolved case before the Supreme Court challenging the constitutionality of the Bureau. The parties have filed appellate briefs with the Ninth Circuit, and the case is awaiting oral arguments or decision.

In April 2016, a putative class action lawsuit was filed in federal court in New York, alleging that persons received loans, through the LendingClub online marketplace lending platform, that exceeded usury limits in violation of state usury and consumer protection laws and the federal Racketeer Influenced and Corrupt Organizations Act. *Bethune v. LendingClub Corporation* (SDNY No. 1:16-cv-02578 April 6, 2016). The suit essentially alleged that LendingClub was the true lender, that its originating bank partner, WebBank, a FDIC insured Utah chartered industrial bank, was not a real party in interest to the loans and that the loans pass through WebBank solely to create the "illusion" that a bank originated the loans. In January 2017, the court granted the defendants' motion to require individual arbitration of the claims asserted in the case, and the case has now been dismissed. Pursuant to the applicable Bank Program Agreement, each Partner Bank has agreed to originate Achieve Loans, with APL performing specified services related to application processing, underwriting compliance and funding mechanics. See "*The Achieve Loan Program*" in this Private Placement Memorandum. Accordingly, APL and the Partner Banks could become subject to similar litigation and alleged claims as those raised in the *Bethune* case.

Similarly, in October 2017, a small business owner filed suit against a marketplace lender and a bank in federal court in Massachusetts. *NRO Boston, LLC, et al. v. Kabbage, Inc. & Celtic Bank Corp*. (No. 17-cv-11976 D. Mass.). The main allegations were true lender theories. The defendants moved to compel arbitration based on a provision in the loan agreement. In March 2018, the proceedings were stayed pending the outcome of arbitration, and in May 2020 the matter was resolved by entry of a consent judgment. There is continuous litigation in this area. On March 22, 2018, a small business owner filed a putative class action lawsuit against a marketplace lender and a bank in state court in California. On April 24, 2018, defendants removed the case to federal court. *Barnabas Clothing, Inc. et al. v. Kabbage, Inc. & Celtic Bank Corp.* (C.D. Cal.) (No. 2:18-cv-03414). The complaint alleged that Kabbage's partnership with Utah bank Celtic Bank is a "rent-a-bank" scheme and the purpose was to evade criminal usury laws. The suit asserted violation of California usury laws, California consumer protection laws for false advertising and unfair competition, and violations of federal RICO laws. Defendants' motion to stay the action pending the outcome of arbitration was granted, and the case has been dismissed. On October 4, 2019, plaintiff small businesses and business owners filed a putative class action against Kabbage, Inc. and two named individuals. The complaint alleged that the relationship between Kabbage and Celtic Bank was intended to evade state laws that limit interest rates on loans to small businesses, and asserts violations of state usury laws, the federal Racketeer Influenced and Corrupt Organizations Act, as well as California, Colorado, New York and Massachusetts state statutes. *Bright Kids NYC, Inc., et al. v. Kabbage, Inc., et al.* (S.D.N.Y.) (No. 19-cv-9221). The defendants moved to compel arbitration of the matter and to stay the litigation pending arbitration, and the parties agreed to a voluntary dismissal in 2020. In 2020 and 2021, the Attorney General of the District of Columbia filed complaints against two lending platforms, Elevate Credit, Inc. and Opportunity Financial, LLC. *District of Columbia v. Elevate Credit, Inc.;* Case No. 2020 CA 2697 B (D.C. Super. Ct.); *District of Columbia v. Opportunity Financial, LLC;* Case No. 2021 CA 001072 (D.C. Super. Ct.). In each complaint, the Attorney General alleged that the platform rather than banks had the predominant economic

interest in the loans, was therefore the lender of the loans, and violated applicable interest rate limitations. The defendants removed both cases to federal court and the Attorney General filed motions to remand. The federal court granted the remand motion in the Elevate Credit case in July 2021. On November 30, 2021, the Attorney General announced a settlement in the Opportunity Financial case in which Opportunity Financial agreed to refund more than $1.5 million to borrowers, waive $640,000 of interest, and pay a $250,000 penalty to the District of Columbia. On February 8, 2022, the Attorney General announced a settlement with Elevate Credit in which Elevate Credit agreed to refund at least $3.75 million to borrowers and pay a $450,000 penalty to the District of Columbia. On July 2, 2020, Affirm, Inc. and the Massachusetts Division of Banks entered into an agreement to resolve allegations that Affirm, Inc. had acted as a small loan company and a third-party loan servicer in Massachusetts without required licenses. Affirm, Inc. agreed to pay the Division of Banks $2.25 million, and agreed to obtain licenses as a third-party loan servicer and small loan company.

It is possible that another court may follow the decisions of the courts in the foregoing cases, and any Loans as to which a holding applies that the applicable Partner Bank was not the true lender could be found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or there could be claims and/or defenses by a Borrower, or a group of similarly situated Borrowers, against the Issuer, the Grantor Trust, the Depositor, the Sponsor, prior owners of the Loans, the Trustees, the Servicer and certain other parties, or such entities could be subject to claims for damages, disgorgement or enforcement actions by regulators or other Governmental Authorities.

In an additional action, certain borrowers sued their lender, CashCall, in a putative class action asserting that the loans violated California's Unfair Competition Law ("UCL"). *De La Torre v. CashCall, Inc*., 56 F. Supp. 3d 1073 (N.D. Cal. 2014). Under the UCL, "unfair competition" includes "any unlawful, unfair or fraudulent business act or practice" and the borrowers contended the loans were unlawful. At the time, there was no express interest rate limit on loans in excess of $2,500 made by licensees under the California Financing Law ("CFL"). Nevertheless, the plaintiffs-borrowers contended the loans were unlawful under California Financial Code section 22302 which makes the unconscionability doctrine applicable to all consumer loans made by CFL licensees. The district court certified a class action of borrowers who, while residing in California, borrowed at an interest rate of 90% or higher from CashCall. After the court granted summary judgment to CashCall, plaintiffs appealed. On appeal, the Ninth Circuit Court of Appeals certified the issue of state law to California's highest court. In a decision rendered August 13, 2018, the Supreme Court of California held that "an interest rate on consumer loans of $2,500 or more may be deemed unconscionable under Financial Code section 22302." *De La Torre v. CashCall, Inc*., S241434, at 5 (Aug. 13, 2018). An assessment of unconscionability depends heavily on the factual context and requires a showing of both procedural and substantive unconscionability. As such "a court declares unconscionable only those interest rates that – in light of the totality of a transaction's bargaining context – are so 'unreasonably and unexpectedly harsh' as to be 'unduly oppressive' or 'shock the conscience'" *Id*. at 2 (citations omitted). Even though the Loans are not made under the CFL, in light of the Supreme Court of California's decision, additional borrowers in California or elsewhere may attempt to challenge their loan terms based on alleged unconscionability. There can be no assurance that borrowers in California or other states will not attempt to use unconscionability as a purported defense to the Loans or what the outcome of any such challenges might be. The $2,500 cap referenced in this case was raised to $10,000, effective January 1, 2020, and limits the rate of interest on loans up to that amount to 36% plus the federal funds rate. Cal. Assembly Bill 539.

In October 2015, the Maryland Court of Special Appeals ruled that CashCall, Inc. was required to obtain a license under the state's Credit Services Business Act ("CSBA"). *Maryland Commissioner of Financial Regulation v. CashCall, Inc. et al.* (Ct. Sp. App. No. 1477 October 27, 2015). The CSBA imposes a licensing requirement on entities that engage in the "credit services business" which includes assisting Maryland residents in obtaining loans, and prohibits licensees from providing any assistance with loans (even from out of state banks) at rates higher than rates allowed by Maryland law for compensation or other valuable consideration. The appellate court ruled that CashCall was engaged in the credit services business due to its involvement in the marketing, and origination of such loans. The appellate court reinstated the state regulator's cease and desist order and fine of $1,000 for each of 5,651 loans made to Maryland borrowers with the assistance of CashCall. The holding in this case potentially impacts loans made to Maryland borrowers by a bank with the assistance of an entity that is not licensed under the CSBA. On June 23, 2016, Maryland's highest court affirmed this ruling. The applicability of state licensing requirements to online lending programs continues to be evolving and a subject of regulatory attention which could impose additional licensing and compliance requirements on APL and adversely affect the enforceability or collectability of the Loans.

In January 2021, the Maryland Commissioner of Financial Regulation ("Commissioner") commenced an administrative proceeding against a Missouri state-chartered bank and its marketplace platform partners alleging that the bank engaged in unlicensed activities and therefore violated various Maryland licensing and credit-related statutes. *CFR v. Fortiva Financial, et al.*; Case No. CFR-FY2017-0033. The Commissioner asserted that the bank and the other defendants violated several Maryland consumer protection laws by failing to be licensed or exempt from licensing in connection with loans made to Maryland consumers, including through in-store retail credit financing and store-branded credit card accounts. The Commissioner also asserted that certain defendants violated the Maryland Collection Agency Licensing Act by soliciting and collecting consumer claims without a license. The Commissioner seeks relief including a cease and desist order, penalties, restitution of all principal, interest and fees and a finding that the loans are unenforceable by the defendants or their assigns. On April 5, 2021, the defendants removed the proceeding to the U.S. District Court for the District of Maryland asserting that the Commissioner's claims against the bank are completely preempted by Section 27 of the Federal Deposit Insurance Act. *Salazar v. Fortiva Financial, LLC, et al.*; Case 1:21-cv-00866 (ELH). On April 28, 2022, the federal court issued an order remanding the action back to the state regulator for additional proceedings. On May 9, 2022, the defendants filed a motion seeking permission to appeal the remand order to the U.S. Court of Appeals for the Fourth Circuit. On July 8, 2022, the federal court denied the motion for certification of an interlocutory appeal and remanded the case to the state regulator for further proceedings. On April 30, 2024, the Commissioner, Fortiva and other defendants entered into a settlement agreement that fully resolved the matter. The agreement provides, among other things, that the bank does not need to obtain a license to continue making extensions of credit, and the defendants will not engage in certain activities prohibited by Maryland law. The case is now concluded.

In March 2022, Opportunity Financial, LLC filed a complaint in state court against the California Department of Financial Protection and Innovation (the "Department") seeking declaratory and injunctive relief to prevent the Department from taking action against the lending program between Opportunity Financial, LLC and FinWise Bank. *Opportunity Financial, LLC v. Hewlett*, No. 22STCV08163 (L.A. Cty. Super. Ct.). In April 2022, the Department filed a Cross-Complaint against Opportunity Financial, LLC alleging violations of the California Financing Law and the California Consumer Financial Protection Law. The Cross-Complaint seeks injunctive relief, voiding of loans made to California borrowers, restitution, disgorgement, removal of negative credit reporting, penalties of at least $100 million, and other relief. On September 30, 2022, the court overruled Opportunity Financial, LLC's demurrer to the Cross-Complaint, allowing the Department's claims to proceed. Opportunity Financial, LLC subsequently filed a Cross-Complaint against the Department, which has since been amended. In February 2023, the state filed for an injunction against offering loans in California. On October 30, 2023, the court denied the state's request for an injunction. The case is in its early stages and no assurance can be given as to the potential outcome of this litigation or its impact, if any, on Loans made to borrowers who were residents of California at the time of origination.

On June 1, 2022, a putative class action lawsuit was filed in federal court in the Western District of Texas, alleging that persons received high interest rate loans through Opportunity Financial that exceeded the usury limits in violation of Texas usury laws. The suit asserts statutory claims under Texas law, claims of unjust enrichment, and violation of the federal Racketeer Influenced and Corrupt Organizations Act and also seeks a declaratory judgment that the loans are unconscionable, void and unenforceable. *Michael v. Opportunity Financial, LLC*; No. 1:22-cv-00529 (W.D. Tex. (Austin)). The suit alleges that Opportunity Financial is the true lender with the predominant economic interest in the loans, that the originating bank, FinWise Bank, is not the real party in interest to the loans and that Opportunity Financial devised a "rent-a-bank scheme" in an attempt to evade Texas law. The complaint alleges that the interest rate on the loans in question is 130% and in excess of the 30% usury limit in Texas. The complaint further asserts that the loan's arbitration clause is unconscionable, void and unenforceable. In October 2022, a magistrate judge recommended that the defendant's motion to compel arbitration be granted and the case dismissed. In January 2023, the district judge adopted the recommendation and the case has been dismissed.

Another putative class action lawsuit was filed in federal court in the Western District of Washington on May 25, 2023, alleging that the plaintiff and other class members received loans through Opportunity Financial that exceed the usury limits under Washington law. The suit asserts claims under the Washington Consumer Protection Act, for declaratory relief, and for violation of the federal Racketeer Influenced and Corrupt Organizations Act. The suit alleges that Opportunity Financial is the true lender with the predominant economic interest in the loans, that the originating banks are not the real parties in interest to the loans and that Opportunity Financial devised a "rent-a-bank scheme" in an attempt to evade Washington law. *Fama v. Opportunity Financial, LLC*, No. 3:23-cv-5477 (W.D.

Wash.). In October 2023, the court granted Opportunity Financial's motion to compel arbitration, and the plaintiff subsequently dismissed the case.

On December 22, 2021, a putative class action complaint was filed in federal court in California, asserting that loans obtained through FinWise Bank from a non-bank partner were usurious. *Carpenter v. Opportunity Fin., LLC*, Case No. 2:21-cv-09875 (C.D. Cal. filed Dec. 22, 2021). The complaint alleges that Opportunity Financial is the true lender and asserts state law causes of action related to unfair competition, unconscionability, money had and received, conspiracy and fraudulent concealment. On March 29, 2023, the Court denied defendants' motion to compel arbitration on unconscionability grounds. On June 20, 2023, the Court denied defendants' motion for reconsideration. On March 21, 2024, the Ninth Circuit Court of Appeals vacated the district court's denial and remanded the case to the district court to compel arbitration. On April 21, 2024, the district court stayed the case and ordered the parties to proceed with arbitration of individual claims.

On August 25, 2023, two consumers filed a putative class action complaint against a nonbank partner that arranged for the origination of loans by Cross River Bank in federal district court in Pennsylvania. *Dieffenbach v. Upgrade, Inc*., Case No. 4:23-cv-01427-MWB (M.D. Pa.). Plaintiffs allege that the nonbank partner was the lender of the loan rather than Cross River Bank, and that the nonbank partner may not rely on the federal preemption of interest rate laws that applies to Cross River Bank after the sale of the loan. Based on these theories, the plaintiff claims that the interest rate on the loan exceeded the six percent interest allowed by Pennsylvania law for unlicensed lenders. The complaint asserts claims under the Pennsylvania Unfair Trade Practices and Consumer Protection Law, violation of the Loan Interest and Protection Law, and violation of the Consumer Discount Company Act on behalf of a putative class of Pennsylvania borrowers, and seeks actual, statutory, treble and other damages, attorneys' fees and costs, declaratory relief, and other unspecified relief. Upgrade, Inc. has moved to dismiss the case and to compel arbitration. The case is in its early stages.

On September 6, 2023, two consumers filed a putative class action complaint against a nonbank partner that arranged for the origination of loans by Cross River Bank in federal district court in Pennsylvania. *Happy v. Marlette Funding, LLC*, Case No. 1:23-cv-00265-SPB (W.D. Pa.). Plaintiffs allege that the nonbank partner was the lender of the loan rather than Cross River Bank, and that the nonbank partner may not rely on the federal preemption of interest rate laws that applies to Cross River Bank after the sale of the loan. Based on these theories, the plaintiff claims that the interest rate on the loan exceeded the six percent interest allowed by Pennsylvania law for unlicensed lenders. The complaint asserts claims under the Pennsylvania Unfair Trade Practices and Consumer Protection Law, violation of the Loan Interest and Protection Law, and violation of the Consumer Discount Company Act on behalf of a putative class of Pennsylvania borrowers, and seeks actual, statutory, treble and other damages, attorneys' fees and costs, declaratory relief, and other unspecified relief. Marlette Funding, LLC has moved to compel arbitration. On August 9, 2024, the Court granted defendants' motion to compel arbitration and stayed the case pending the completion of arbitration.

The Office of the Comptroller of the Currency (the "OCC") and the FDIC each has finalized regulations to address the application of federal preemption to loans that are originated by national banks, federal savings banks, or FDIC-insured state banks and then sold by the banks. The FDIC's final rule, "Federal Interest Rate Authority," FDIC Financial Institution Letter FIL 65-2020, 85 Fed.Reg. 44146 (July 22, 2020) effective Aug. 22, 2020, states that the permissibility of interest rates would be determined "as of the date the loan was made," and would not "be affected by the sale, assignment, or other transfer of the loan, in whole or in part." The OCC rule, "Permissible Interest on Loans That Are Sold, Assigned, or Otherwise Transferred," 85 Fed. Reg. 33530 (June 2, 2020) (effective Aug. 3, 2020), provides that "[i]nterest on a loan that is permissible under" relevant federal law would "not be affected by the sale, assignment, or other transfer of the loan." Both the OCC and the FDIC stated that the rules were not intended to address the question of determining the "true lender" of a loan. Several advocacy groups and members of Congress stated publicly their opposition to these proposed regulations. Groups of state attorneys-general filed lawsuits challenging both the FDIC's and the OCC's rules, claiming that the rules are invalid exercises of the agencies' authorities under the relevant statutes. *California, et al. v. OCC*, No. 4:20-cv-05200-JSW (N.D. Cal.); *California, et al. v. FDIC*, No. 4:20-cv-05860-JSA (N.D. Cal). In February 2022, the court granted summary judgment to the OCC and FDIC and dismissed these cases. There can be no assurance as to whether either regulation will be given effect or treated as persuasive by courts or regulators in a manner that mitigates usury, licensing and related risks to the Loans.

The OCC has also finalized a regulation to address when a national bank, like Pathward, is the lender of a loan. "National Banks and Federal Savings Associations as Lenders," 85 Fed. Reg. 68742 (Oct. 30, 2020) (effective Dec. 29, 2020). The rule provided that a bank makes a loan if the bank, on the date of origination, either is named as the lender in the loan agreement or funds the loan. On June 30, 2021, the President signed a joint resolution of disapproval that had been passed by the House and the Senate under the Congressional Review Act, and thus the rule is treated as if it had never gone into effect.

On January 5, 2023, Chairman Gruenberg was sworn in as Chairman of the FDIC Board of Directors after serving as the Acting Chairman since February 2022. On May 20, 2024, following the release of an independent report examining the FDIC's workplace culture authored by Cleary Gottlieb Steen & Hamilton LLP, Chairman Gruenberg announced his intent to resign upon the confirmation of his successor. On June 13, 2024, President Biden announced his intent to nominate Christy Goldsmith Romero, a commissioner at the Commodity Futures Trading Commission, to the position of FDIC Chair. If confirmed, Romero is likely to continue many of the same policies and priorities as Chairman Gruenberg in some respects but is also likely to pursue different sets of policies and priorities in other respects. On January 14, 2021, the Acting Comptroller of the Currency resigned. Successor Acting Comptrollers have served in the position since then. The Acting Comptrollers and, if nominated and confirmed, a new Comptroller are likely to adopt a different set of policies and priorities for the OCC than those under the previous administration.

Additionally, Cross River Bank voluntarily entered into a consent order with the FDIC, in its capacity as a prudential banking regulator, related to its fair lending program (the "2023 CRB Consent Order"). The 2023 CRB Consent Order was made public on April 28, 2023. The FDIC determined that Cross River Bank engaged in unsafe and unsound banking practices by failing to maintain sufficient internal controls, systems, and underwriting practices to comply with federal fair lending laws in connection with loans Cross River Bank originated as part of partnerships with third parties. The Consent Order arose from the FDIC's 2021 regular compliance examination of Cross River Bank. The Consent Order requires Cross River Bank to (1) enhance its oversight of third-party marketplace lending partners, (2) enhance its fair lending monitoring of third party partnerships and any of those third-parties' partner front-end merchants, which includes retention of an independent third party to conduct a fair lending review covering January 2021 through December 2022, (3) take remedial actions to address any fair lending findings, (4) obtain the FDIC's advance non-objection to any new partnerships with third parties who intend to offer the Bank's credit products, and (5) obtain the FDIC's advance non-objection to any new credit product offered through a third party. The 2023 Consent Order does not provide for any civil money penalties, nor does it require any restitution to be paid to any parties. There can be no assurances that the FDIC will not increase its oversight or regulation of Cross River Bank or its activities with respect to its relationship with third-party marketplace lending platforms, including APL. There can also be no assurances that the FDIC or other agencies will not take similar action with other banks that originate loans with third-party marketplace lending platforms.

In addition to the litigation referenced above, several other lawsuits and regulatory actions have brought under scrutiny the association between high-interest loan marketers and bank lenders. It is possible that similar litigation or regulatory actions undertaken in the future by Borrowers, regulators or other Governmental Authorities may have success in challenging the applicable Partner Bank's status as a Loan's true lender, and in such instances, the Sponsor, the Depositor, the Issuer, the Grantor Trust or other prior owners of the Loans may be recharacterized by a court or a regulatory agency to be a Loan's lender and therefore obligated to comply with state lender licensing requirements, state usury laws, which limit the interest rates that can be charged on loans, and other consumer protection requirements. The Grantor Trust and certain prior owners of the Loans that previously acquired the Loans in a series of transactions from the Partner Banks do not hold such licenses in each relevant jurisdiction. APL has a contractual arrangement with each Partner Bank, in which such Partner Bank acts as the direct lender to Borrowers for Loans, then sells and assigns the Loans to APL's subsidiaries or another investor. If either of the Sponsors, the Servicer, the Depositor, the Issuer, the Grantor Trust or other prior unlicensed owners of the Loans were recharacterized as the lender of the Loans, such a recharacterization could render the Loans void or voidable, unenforceable or subject to rescission or reduction of the interest or principal (previously paid since origination or to be paid) in whole or in part or subject to damages or penalties. In addition, such entity could be subject to claims and/or defenses by a Borrower, or a group of similarly situated Borrowers, or claims for damages, disgorgement or enforcement actions by regulators or other Governmental Authorities. Even if APL were not required to cease doing business with residents of one or more states, it could be required to change its business practices to comply with applicable laws and regulations or register or obtain licenses or regulatory approvals that could impose substantial

costs or operational burdens, and in response, APL could elect to cease doing, or materially reduce the level at which it does, business with residents of one or more states. Any such developments could have a material adverse effect on APL's ability to effectively service the Loans or to perform obligations under the Basic Documents, in addition to potential adverse effects on the enforceability or collectability of the Loans.

See also "*—Federal, state and local laws may adversely affect the ability to collect amounts due on the Loans*" and "*—If Loans are found to violate a state's usury laws, this could adversely affect the performance of the Loans and the Notes, and adversely affect the ability of APL to perform its obligations under the Basic Documents*" in this Private Placement Memorandum.

Plaintiffs may assert claims against subsequent holders of the Loans, including the Depositor, the Issuer or the Grantor Trust, and recipients of amounts collected on the Loans, including the Noteholders.

Some of the laws with which the Achieve Loan Program must comply with respect to the marketing, origination, servicing, and collection of the Loans, such as the federal Truth in Lending Act, may make an assignee of such Loans (such as the Depositor, the Issuer or the Grantor Trust) liable for violations.

Even when laws do not include express provisions creating assignee liability, plaintiffs (including private plaintiffs and government regulators and agencies) may bring claims against assignees based on general common law principles of liability or other theories. In addition, some laws, such as the Colorado UCCC (as has been alleged by the Colorado Administrator), may make subsequent holders liable for claims relating to the collection of amounts provided for under the terms of the Loans. As discussed above under *"—Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement actions, any of which would adversely affect the Notes*", the Colorado Administrator has brought claims against certain subsequent holders of loans originated through the Marlette and Avant online platforms, alleging that the subsequent holders are liable with respect to finance charges, late charges, and other amounts that the servicer collected on their behalf in excess of the amounts permitted by the Colorado UCCC, as well as civil penalties in accordance with Colorado law. Additionally, as discussed in the aforementioned Risk Factor, claims were brought against subsequent holders of credit card receivables in class action complaints filed (1) in the United States District Court for the Eastern District of New York against three special purpose vehicles involved in the securitization of credit card receivables originated by Capital One Bank (USA), N.A., as well as the trustees of two of the special purpose vehicles and (2) in the United States District Court for the Western District of New York against two special purpose vehicles involved in the securitization of credit card receivables originated by Chase Bank USA, N.A., as well as a trustee of one of the special purpose vehicles. There can be no assurance that plaintiffs or regulators will not bring claims relating to the Loans or Notes against assignees of the Loans, such as the Sponsor, the Depositor, the Trustees, the Issuer or the Grantor Trust, or against recipients of the proceeds collected on the Loans, including the Noteholders.

Federal, state and local laws may adversely affect the ability to collect amounts due on the Loans.

The Achieve Loan Program must comply with legal and regulatory regimes (both civil and criminal) applicable to consumer credit transactions. These laws affect how loans are made, enforced and collected. The relative novelty of certain aspects of the Achieve Loan Program means compliance with various aspects of such laws and regulations (both civil and criminal) is untested or insufficiently tested. Certain state laws may, if applicable, regulate interest rates and other charges and require certain disclosures, and may also require licensing for certain activities. In addition, state laws, public policy and general principles of equity relating to the protection of consumers, unfair and deceptive practices and debt collection practices may apply to a Partner Bank's origination of, or APL's servicing and collection of, the Loans. The Achieve Loan Program is also subject to other laws, including but not limited to:

- the Federal Truth-in-Lending Act and Regulation Z promulgated thereunder, which require certain disclosures to borrowers regarding the terms of their loans;

- the Federal Equal Credit Opportunity Act and Regulation B promulgated thereunder, which prohibit discrimination in the extension of credit on the basis of age, race, color, sex, religion, marital status, national origin, receipt of public assistance or the exercise of any right under the Consumer Credit Protection Act;

- the Federal Fair Credit Reporting Act, which regulates the use and reporting of information related to each applicant's credit history and imposes restrictions on the marketing of credit products through prescreened solicitations based on consumer report information;

- the Federal Fair Debt Collection Practices Act, which regulates debt collection practices by "debt collectors" and prohibits debt collectors from engaging in certain practices in collecting, and attempting to collect, outstanding consumer loans;

- the Telephone Consumer Protection Act, which, among other things, prohibits the use of automated telephone dialing systems to contact mobile devices (including via text messages) without the prior express consent of the called party, to the extent that APL uses telephones to contact borrowers in connection with the servicing or collection accounts;

- Section 5 of the Federal Trade Commission Act, which prohibits unfair and deceptive acts or practices in or affecting commerce, and Section 1036 of the Dodd-Frank Wall Street Reform and Consumer Protection Act, which prohibits unfair, deceptive or abusive acts or practices in connection with any consumer financial product or service, the Federal Holder in Due Course Rule, which permits borrowers of certain loans to assert any claims and defenses that they would have against the originator of a loan against subsequent purchaser of such loan, and analogous state laws prohibiting unfair, deceptive or unconscionable trade practices;

- the Federal CAN-SPAM Act and the Telemarketing Sales Rule, and analogous state laws, to the extent that APL markets credit or other products and services by use of email or telephone marketing;

- the privacy provisions of the Gramm-Leach-Bliley Act and the Federal Affiliate Marketing Rule, and analogous state laws, such as the California Financial Information Privacy Act and the California Consumer Privacy Act, which include limitations on financial institutions' disclosure of nonpublic personal information about a consumer to affiliate and nonaffiliated third parties, in certain circumstances require financial institutions to limit the use and further disclosure of nonpublic personal information by nonaffiliated third parties to whom they disclose such information and require financial institutions to disclose certain privacy policies and practices with respect to information sharing with affiliated and nonaffiliated entities as well as to safeguard personal customer information, and other privacy laws and regulations;

- the Bankruptcy Code, which limits the extent to which creditors may seek to enforce debts against parties who have filed for bankruptcy protection;

- the Servicemembers Civil Relief Act, which, among other things, allows military members to suspend or postpone certain civil obligations so that the military member can devote his or her full attention to military duties and limits interest rates on certain obligations of servicemembers to 6% per annum;

- the Military Lending Act, which, among other things, caps the maximum annual percentage rate on certain loans to active duty military servicemembers and their dependents at 36.00% and excepts such borrowers from mandatory arbitration requirements;

- the Federal Electronic Fund Transfer Act and Regulation E promulgated thereunder, as well as rules of payment networks and the National Automated Clearing House Association, which require separate customer authorization for a loan servicer to use electronic transfers for

customer payments and provide disclosure requirements, guidelines and other restrictions on the electronic transfer of funds to and from consumers' bank accounts;

- the Electronic Signatures in Global and National Commerce Act ("E-SIGN") and similar state laws, including, without limitation, the Uniform Electronic Transactions Act ("UETA"), which authorize the creation of legally binding and enforceable agreements utilizing electronic records and signatures and govern the circumstances in which a person may electronically provide disclosures otherwise required to be in writing;

- the Bank Secrecy Act and the USA PATRIOT Act, which relate to compliance with anti-money laundering, customer due diligence and record-keeping policies and procedures;

- other state specific regulations; and

- state and federal securities laws.

During the COVID-19 pandemic, federal, state and local governments enacted legislation, promulgated regulations and issued orders and statements mandating or encouraging financial services companies to make accommodations to borrowers and other customers affected by the COVID-19 pandemic. These accommodations may include loan modifications such as payment deferrals or extensions of repayment terms, allowing obligors to temporarily stop making scheduled payments on certain obligations, interest and fee waivers and forbearance from exercising remedies, including moratoriums on enforcing rights with respect to collateral. Future governmental action could mandate or encourage similar or further accommodations with respect to consumer debt like the Loans. Moreover, the U.S. government and states may, unrelated to the COVID-19 pandemic, pass new laws or amend existing laws to regulate further the consumer finance industry or to reduce the finance charges or other fees applicable to installment loans. Any of the foregoing could make collection of the Loans more difficult for the Servicer and could decrease the amount of Collections received by the Issuer, which in turn could result in a delay in the payment of principal of or interest on one or more classes of Rated Notes or distributions on Class R Notes or, under certain loss scenarios, the failure to pay the remaining principal balance of one or more classes of Notes upon maturity. In addition, Cross River Bank is regulated by both the FDIC and the New Jersey Department of Banking and Insurance and Pathward is principally regulated by the OCC, and any such regulatory entity could impose restrictions on Cross River Bank's or Pathward's, as applicable, ability to continue to originate consumer loans on the Achieve Loan Program.

Borrowers may make counterclaims regarding the enforceability of their obligations under borrower or consumer protection laws after collection actions have commenced, or otherwise seek damages based on allegations that a Partner Bank, the Servicer or the Achieve Loan Program have not complied with the laws described above. Such claims could potentially take the form of class action claims. Compliance with these requirements may also be costly and time-consuming and limit operational flexibility. Failure to comply with the laws and regulatory requirements applicable to the Loans may, among other things, limit the Servicer's or a collection agency's ability to collect all or part of the principal of or interest on the Loans, which could result in a reduction in the payments received on the Loans and thus reduce the funds available to the Issuer to make payments on the Notes, and subject certain parties involved in the Loans to statutory, punitive, consequential and actual damages, administrative enforcement, or forfeiture or voiding of Loans or security interests therein, and criminal penalties. In the last several years, a number of laws have been introduced or enacted at the federal, state and local level that are designed to discourage certain lending practices, including those now deemed abusive or predatory. In some cases, state law imposes requirements and restrictions greater than those under federal law. Some such state laws are extremely rigorous and a violation could lead to statutory, punitive, consequential and actual damages, administrative enforcement, or forfeiture of all principal and interest or the voiding of Loans or security interests therein. In addition, other state laws, public policy and general principles of equity relating to the protection of consumers (including, for example, unconscionability), unfair and deceptive practices and debt collection practices may apply to the origination, servicing and collection of loans, and lead to similar consequences for violations.

Where applicable, APL is required to comply with state small loan, loan broker, servicing, debt collection and similar statutes. If APL is found to not have complied with applicable laws, APL could lose one or more of its

licenses or authorizations or face other sanctions or penalties or suits by Borrowers or be required to obtain a license in such jurisdiction, which may have an adverse effect on its ability to continue to facilitate loans through the Achieve Loan Program, perform its servicing obligations or make the Achieve Loan Program available to borrowers in particular states, which may harm APL's business or adversely affect the performance of the Loans. For example, in 2013, APL applied to the Massachusetts Division of Banks ("Massachusetts Division") for registration as a third-party loan servicer. Due to administrative errors, APL did not respond to inquiries from the Massachusetts Division and the Massachusetts Division did not issue the requested registration. In 2018, APL discovered these errors and approached the Massachusetts Division to obtain the required registration. On November 19, 2018, APL and the Massachusetts Commissioner of Banks (the "Massachusetts Commissioner") stipulated to the entry of a consent order (the "Massachusetts Consent Order"). On August 5, 2019, the parties stipulated to amend the order to address an issue related to arranging consumer loans. Under Massachusetts law, a license is required to arrange loans under $6,000 to consumers. Since 2014, despite efforts to avoid this, APL arranged 15 loans for Massachusetts residents where the total loan amount, after all disbursements, was less than $6,000. No such Loans will be included in the Loans transferred to the Grantor Trust on the Closing Date. The Massachusetts Consent Order requires APL to obtain registration as a third-party loan servicer, which it has done, and prohibits APL from engaging in any activity that requires a license prior to obtaining the required license. In addition, the Massachusetts Consent Order requires APL to pay an administrative penalty, which it has done.

APL will represent and warrant that each Loan has been originated in accordance with, and otherwise has complied with, all Applicable Laws, including the Gramm-Leach-Bliley Act of 1999, in all material respects through the Closing Date. In the event of a breach of such representation, APL will be required to purchase the affected Loan from the Grantor Trust, including if such Loan is rendered unenforceable due to such noncompliance. However, if APL is unable to fulfill its obligations for financial or other reasons, shortfalls in the payments on the Notes could occur and investors in the Notes could suffer a loss, which may be significant, on their investment. See "*Risks Primarily Related to the Notes and the Issuer—The Grantor Trust's ability to obtain Loan repurchase protection and indemnification from APL and the applicable Partner Bank is limited and may not be exercised in all cases*" and "*Risks Primarily Related to APL's Business – Obligations of APL are subject to its financial and operational ability to fulfill them.*"

If Loans are found to violate a state's usury laws, this could adversely affect the performance of the Loans and the Notes, and adversely affect the ability of APL to perform its obligations under the Basic Documents.

Certain states have statutory interest rate limitations on installment loans. In some jurisdictions, the maximum rate is less than some of the rates applicable to the Loans. If the laws of such jurisdictions were found to apply to any Loans with rates higher rates than that jurisdiction's maximum rate, those Loans could be in violation of such laws.

If a Borrower were to successfully bring claims with respect to a Loan for state usury law violations, including based on allegations that APL, rather than the applicable Partner Bank, is the "true lender" of the Loan or the reasoning in the *Madden* case referenced above, and the rate on that Borrower's Loan was greater than that allowed under applicable state law, such Loan could be found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or there could be claims and/or defenses by a Borrower, or a group of similarly situated Borrowers, against the Issuer, the Grantor Trust, the Depositor, either of the Sponsors, prior owners or subsequent transferees of the Loans or recipients of proceeds from collections on the Loans (including Noteholders), the Trustees, the Servicer and certain other parties, or such entities could be subject to claims for damages, disgorgement or enforcement actions by regulators or other Governmental Authorities. Investors should understand and consider that the pool of Loans will include Subject New York Loans. As of the Statistical Cutoff Date, approximately 8.28% of the loans in the Statistical Loan Pool (by aggregate Principal Balance as of the Statistical Cutoff Date) are Subject New York Loans. See also "*—Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement*

actions, any of which would adversely affect the Notes" for additional discussion regarding this court decision and its subsequent development.

In addition, in response to any such claims, APL might decide to limit the maximum interest rate on certain loans originated through the Achieve Loan Program, and APL might decide to originate loans under state-specific licenses, where this ruling is applicable. These actions could give rise to additional expenses and otherwise adversely impact APL's business which could adversely affect the ability of APL to perform its obligations under the Basic Documents, which in turn would adversely affect payments on the Notes.

There is no collateral securing a Borrower's obligations under a Loan, and recourse to Borrowers is limited.

The Loans are unsecured consumer loans, the proceeds of which are used by Borrowers for a variety of purposes. They are not secured by any property or other collateral of the related Borrower or others, and they are not guaranteed or insured by any Partner Bank, the Sponsor, the Loan Sellers, the Servicer, the Depositor, the Issuer, the Grantor Trust or any third party or backed by any Governmental Authority in any way. Accordingly, the Servicer will be limited in its ability to collect on the Loans.

In addition, no provision of any Basic Document will obligate the Indenture Trustee to pursue any remedies directly against any Borrower, whether following acceleration of the Notes or otherwise, and none of the Issuer, the Indenture Trustee or any Noteholder will have any recourse to any Borrower or any independent ability to pursue Borrowers to collect payments under the Loans. Accordingly, collections on the Loans will be entirely dependent on voluntary payments made by the Borrowers and the collection efforts and activities of the Servicer (or its successors or delegees).

A portion of the Loans are obligations of Borrowers that were not considered "prime" at the time of origination and may have significantly higher default rates than a pool of Loans constituting obligations of solely prime borrowers.

A portion of the Loans are obligations of Borrowers that were not considered "prime" at the time of origination and who do not qualify for, or may have difficulty qualifying for, credit from traditional sources of consumer credit as a result of, among other things, moderate income, limited assets, other adverse income characteristics and/or a limited credit history or an impaired credit record, which may include a history of irregular employment, previous bankruptcy filings, repossessions of property, charged-off loans, and/or garnishment of wages.

The average interest rate charged to such Borrowers generally is higher than that charged by commercial banks and other institutions providing traditional sources of consumer credit. These traditional sources of consumer credit typically impose more stringent credit requirements than the installment loan products provided under the Achieve Loan Program. As a result of the credit profile of the Borrowers and the interest rates on the Loans, the historical delinquency and default experience on the Loans may be significantly higher than those experienced by financial products arising from traditional sources of consumer credit. In addition, the credit score of a Borrower at the time the Grantor Trust acquires the related Loan may be materially lower than at the time such Loan was originated. Investors are urged to consider the highly risky nature of the credit quality of the Loans when analyzing an investment in the Notes.

Further, APL on behalf of a Partner Bank may offer alternative loan amount and interest rate combinations to applicants for Achieve Personal Loans, including loans that are larger than the amount the applicants originally requested, *provided* that such applicants qualify for such larger amounts with a correspondingly higher interest rate under the Credit Policy. This practice increases the risk that a Borrower may have taken on debt for purposes other than those stated in his or her application and that such debt may be more than he or she has the ability to repay.

APL has limited historical performance data about performance on the Loans. Loss rates on the Loans may be higher than expected.

Achieve Personal Loans (formerly known as FreedomPlus loans) were first offered through the Achieve Loan Program in 2014. The estimated loss rates used to determine interest rates and other terms of the Achieve Loans

have been developed from the loss histories of all Achieve Loans originated through the Achieve Loan Program and sample credit bureau data obtained by APL. However, the Loans may default more often than similar loans have defaulted in the past, which increases the risk of investing in the Notes. In addition, especially because of the limited history of the Achieve Loan Program, there can be no assurance that past performance of Achieve Loans is indicative of their future performance. See "*—Historical loss experience may not accurately predict the likelihood of delinquencies, defaults and losses on the Loans.*" below.

Historical loss experience may not accurately predict the likelihood of delinquencies, defaults and losses on the Loans.

Historical default and delinquency information set forth in this Private Placement Memorandum under "*Description of the Loans – Historical Information with respect to Achieve Personal Loans*" and in Appendix A was affected by several variables, including general economic conditions, the competitive environment and market interest rates, that are likely to differ in the future. In particular, government fiscal stimulus programs and reduced consumer spending, as well as changes to the Servicer's Policies and Procedures, in response to the COVID-19 pandemic reduced default and delinquency rates for Achieve Loans. Default and delinquency rates for Achieve Loans increased in 2022 following the discontinuation at the end of 2021 of the federal government's direct COVID-19 pandemic stimulus payments to individuals. There can be no assurance that the delinquency and default experience calculated and presented in this Private Placement Memorandum with respect to the Statistical Loan Pool prior to the Statistical Cutoff Date, or with respect to the Achieve Personal Loans made under the Achieve Loan Program as a whole, will reflect actual experience with respect to the Loans after the Closing Date. A portion of the Loans will have been originated subsequent to certain periods presented in the net default and delinquency tables. In addition, there can be no assurance that the future delinquency or loss experience of the Loans will be better or worse than that set forth herein or that of similar installment loans that are not conveyed to the Grantor Trust.

Because a pandemic such as COVID-19 has not occurred in many years, it is unlikely that historical loss experience will accurately predict the performance of the Loans over the near future.

Internet-based loan origination processes may give rise to greater risks than paper-based processes.

APL uses the internet to distribute certain legally required notices to applicants for and borrowers of the Loans, and to, in the case of a majority of the Loans, obtain, on the Partner Banks' behalf, electronically signed loan documents in lieu of paper documents with tangible borrower signatures. These processes may entail greater risks than would paper-based loan origination processes, including risks regarding the sufficiency of notice for compliance with consumer protection laws, risks that borrowers may challenge the authenticity of loan documents, and risks that despite internal controls, unauthorized changes are made to the electronic loan documents. If any of those factors were to cause Loans, or any of the terms of the Loans, to be unenforceable against the Borrowers, or impair the Servicer's ability to service Loans, the Issuer's ability to pay principal of and interest on the Rated Notes and make distribution on the Class R Notes could be adversely affected.

There are risks to investors in the Notes because the Loan Documents are not in tangible form and are delivered to the Grantor Trust only electronically.

The Loans are maintained in electronic form and, to APL's knowledge, no tangible written documents evidencing the Loans and payments owed thereon exist. Under the Loan Transferor Purchase Agreement, APL will represent and warrant that (i) immediately prior to the transfer to the Loan Transferor pursuant to the Loan Transferor Purchase Agreement, APL is the sole owner of such Loan, has good and marketable title thereto, and had the right to assign, contribute and transfer such Loan to the Loan Transferor free and clear of any lien, pledge, charge, claim, security interest or other encumbrance, other than interests granted to the Loan Transferor (as assigned to the Grantor Trust) and (ii) an electronic copy of the Related Documents for each Loan shall have been or will be delivered to an eVault in the name of the Grantor Trust at the Vault Provider subject to the Vault Provider Control Agreement, within three (3) Business Days after the Closing Date. An error in identifying the Grantor Trust as the owner of the Loans, or the creation of multiple copies of the loan documents, whether arising from inadvertence, system failure, fraud or otherwise, could interfere with the interest of the Grantor Trust (and accordingly the Collateral Agent) in the Loans, which could result in losses on the Notes.

The transfer and assignment of Loans to the Grantor Trust through a series of transactions on the Closing Date will be perfected solely by filing UCC-1 financing statements (and, where applicable, by relying on automatic perfection of sales of payment intangibles). Through inadvertence, system failure, fraud or otherwise, another person may have, or could acquire, an interest in an electronic contract evidencing a Loan that is superior to, or free and clear of, the interest of the Grantor Trust (and accordingly the Indenture Trustee's interest), which could result in losses on the Notes. As a result, (i) the Grantor Trust may not have a perfected security interest in certain Loans and (ii) the Indenture Trustee may not have a perfected security interest in certain Loans, or, in each case, even if there is a perfected security interest it may not be of first priority. The possibility that the Grantor Trust or the Indenture Trustee may not have a perfected security interest in the Loans (or that such perfected security interest may be junior to another party's interest) may adversely affect the ability to obtain Collections on the Loans and seek judgments against Borrowers for payments on the Loans. Therefore, there may be delays in payment or losses on the Notes.

Additionally, market practices and commercial laws with respect to "control" over electronic loan documents under the UCC, E-SIGN and UETA, and under other comparable state laws, are also still developing. For example, several states have recently adopted or are in the process of adopting amendments to their state's version of the Uniform Commercial Code (the "UCC") to add a concept of "control" with respect to electronic contracts in addition to electronic chattel paper. The concept of "control" under the Electronic Signatures in Global and National Commerce Act ("E-SIGN") and the Uniform Electronic Transactions Act ("UETA") by their terms applies to some electronic contracts that are "transferable records" within the meaning of such laws. It is not expected that the Loans will constitute transferable records under E-SIGN and, though the matter is not free from doubt, the Issuer does not believe the Loans will constitute transferable records under UETA. If through inadvertence or otherwise, any of the Loans evidenced by electronic records were sold to another Person that obtained control over the electronic records under the UCC, UETA or other applicable law, that Person may acquire an interest in such Loan that is superior to, or free and clear of, the interest of the Grantor Trust (and accordingly the Indenture Trustee's interest), which could result in losses on the Notes.

The Grantor Trust is reliant upon the Collateral Agent to retain copies of the electronic records evidencing each Loan and the ownership of each Loan directly or through a third-party electronic vaulting system, and to provide access to such records to the Grantor Trust and its designees, including the Servicer, any Successor Servicer, the Backup Servicer, and to the Indenture Trustee. The Servicer also maintains a record of the ownership of each Loan and APL acts as registrar for Loans that are in registered form. Neither the Grantor Trust nor the Indenture Trustee nor any other person acting on behalf of the Grantor Trust maintains a backup file of these records. The Grantor Trust, Collateral Agent and Servicer rely on an electronic vault maintained by the Vault Provider, which is susceptible to risks associated with such electronic systems, to maintain (i) authoritative copies of the Related Documents with respect to the Loans, (ii) records of the Grantor Trust's ownership of the Loans and (iii) records indicating that such Loans are subject to the rights of the Collateral Agent on behalf of the Grantor Trust and the Indenture Trustee. These risks include, among others: power loss, computer systems failures and Internet, telecommunications or data network failures; operator negligence or improper operation by, or supervision of, employees; physical and electronic loss of data or security breaches, misappropriation and similar events; computer viruses; cyberattacks; acts of terrorism, vandalism and similar events; strikes; epidemics or pandemics, quarantine, shelter-in-place or similar directives, guidance, policies or other action by any governmental authority; increased risk of cybersecurity breaches due to remote work; and hurricanes, earthquakes, fires, floods and other natural disasters. If the Grantor Trust, Collateral Agent or Servicer (including any Successor Servicer) is unable to access such electronic records, whether due to system failure or because the Vault Provider fails to grant access to such records, then the Grantor Trust, the Collateral Agent or the Servicer (including any Successor Servicer) may not have sufficient records to be able to seek collections on the Loans or to obtain judgments against borrowers for payments on the Loans, and they may be unable to evidence the existence of, or the Grantor Trust's ownership of, or the Indenture Trustee's security interest in, the Loans, and they may be unable to transfer servicing of the Loans. As a result, there may be delays in payment or losses on the Notes.

There can be no assurances that the Related Documents will remain in the eVault.

The eVault into which the Related Documents for the Loans will be held is being established pursuant to a global arrangement between the Vault Provider and Freedom Financial Network, LLC ("FFN"), an Affiliate of APL. Should such global arrangement terminate, including due to a failure of either party to renew such arrangement when its term expires or due to a default by FFN, such as failing to pay required fees to the Vault Provider, then the

Vault Provider Control Agreement may also terminate simultaneously, subject to certain cure rights of the Collateral Agent. In such case, unless the Collateral Agent and Grantor Trust are able to agree to a replacement arrangement with the Vault Provider, the Related Documents may be required to be removed from the eVault. In such case, there can be no assurance that the Grantor Trust will be able to establish a successor arrangement that would give the Collateral Agent control over such Related Documents.

Collections on the Loans could be evidenced by instruments, and in certain situations purchasers thereof may acquire an interest superior to, or free and clear from, the interest of the Grantor Trust, which could result in losses on the Notes.

Collections on the Loans may be evidenced by checks or other "instruments" as defined in the UCC. If, through inadvertence or otherwise, another purchaser takes possession of such checks or other instruments for value and in good faith without actual knowledge that the purchase violates the rights of the Grantor Trust, such purchaser may acquire an interest in the payments owed on the Loans in the form of such checks or other instrument superior to, or free and clear of, the interest of the Grantor Trust, which could result in losses on the Notes.

Information supplied by applicants may be incomplete, inaccurate or intentionally false. Investors in the Notes should assume that such information has not been verified.

Borrowers, in connection with applying for the Loans, supply a variety of information regarding the purpose of the loan, income, occupation, and employment status. APL verifies income information for certain Loans and, when supplied, employment information for all Loans. While APL verifies certain other secondary information provided by certain selected applicants (for example, retirement assets), this verification is limited to certain information provided by the Borrower, and is not uniformly performed with respect to all applications. See "*Achieve Loan Program – Income Verification*". Increases in unemployment levels may exacerbate instances of Borrower fraud, including increasing incidences of Borrower misrepresentations of employment status and income. See "*—Some Borrowers of Achieve Personal Loans may use the Achieve Loan Program to defraud a Partner Bank and APL, which could result in delays or reductions in payments on the Notes*" herein. Any information supplied by a Borrower will not be updated subsequent to the time of origination in connection with the offering of the Notes. For Achieve Personal Loan funds that are not distributed to a creditor of the Borrower pursuant to APL's "Direct Pay" service, neither any Partner Bank nor APL verifies any statements by applicants as to how Loan proceeds are to be used nor confirms after loan funding how Loan proceeds were used. If a Borrower supplied false, misleading or inaccurate information, repayments on the corresponding Loan may be lower, in some cases significantly lower, than expected, and Noteholders may suffer a loss as a result.

The credit information of an applicant may be inaccurate or may not accurately reflect the applicant's creditworthiness.

APL obtains applicant credit information from consumer reporting agencies and other sources, including Borrower supplied information, and assigns internal ratings to Achieve Loans based in part on the applicant's credit score. However, a credit score collected in connection with an application or that forms a part of the internal rating assigned to an Achieve Loan may not reflect the applicant's actual creditworthiness because the credit score may be based on outdated, incomplete or inaccurate consumer reporting data. Similarly, the credit data taken from the applicant's credit report and provided with respect to an Achieve Loan may also be based on outdated, incomplete or inaccurate consumer reporting data. APL will not verify the information obtained from the applicant's credit report, and none of the Issuer, the Grantor Trust, the Depositor or any other parties involved in the acquisition of the Loans by the Grantor Trust or the offering of the Notes has conducted or intends to conduct any such verification.

Credit scores are generated by models developed by third-party credit reporting organizations which analyzed data on consumers in order to establish patterns which are believed to be indicative of a Borrower's probability of default. A credit score represents an opinion of the related credit reporting organization of a Borrower's creditworthiness. The methodology employed by a credit reporting organization to assess a Borrower's creditworthiness may change from time to time, which may result in a decrease in the credit score for a Borrower from that obtained prior to closing date and described in this Private Placement Memorandum. The credit score is based on a Borrower's historical credit data, including, among other things, payment history, delinquencies on accounts, levels of outstanding indebtedness, length of credit history, types of credit and bankruptcy experience. Credit scores

may be based on outdated, incomplete or inaccurate consumer reporting data, including as a consequence of APL's utilizing credit reports for a specific period of time after issuance before such reports are deemed to be outdated. Similarly, the credit data taken from the applicant's credit report may also be based on outdated, incomplete or inaccurate consumer reporting data. Credit scores can range from approximately 300 to approximately 850, with higher scores indicating an individual with a more favorable credit profile compared to an individual with a lower score. A credit score purports only to be a measurement of the relative degree of risk a Borrower represents to a lender, *i.e.*, that a Borrower with a higher score is statistically expected to be less likely to default in payment than a Borrower with a lower score. In addition, it should be noted that credit scores were developed to indicate a level of default probability over a two-year period, which does not correspond to the life of the Loans. Credit scores do not necessarily correspond to the probability of default over the life of the related Loan, because they reflect past credit history, rather than an assessment of future payment performance. Furthermore, credit scores were not developed specifically for use in connection with the Loans, but for consumer loans in general. Therefore, credit scores do not address particular loan characteristics that influence the probability of repayment by the Borrower. Credit scores should not be considered as an accurate predictor of the likelihood of repayment of the related Loans.

A credit score or internal rating assigned to a Borrower may not reflect that Borrower's actual creditworthiness because the credit score may be based on outdated, incomplete or inaccurate consumer reporting data, and APL does not verify the information obtained from the Borrower's credit report and none of the Issuer, the Grantor Trust, the Depositor, the Loan Transferor, APL or any other parties involved in the acquisition of the Loans by the Grantor Trust or the offering of the Notes has conducted or intends to conduct any such verification. Additionally, there is a risk that, following the date of the credit report that APL has obtained and reviewed, a Borrower may have:

- become delinquent in the payment of an outstanding obligation;
- defaulted on a pre-existing debt obligation;
- taken on additional debt; or
- sustained other adverse financial events.

If Borrowers default on Loans that are not priced correctly because the information provided by the Borrowers or third parties is inaccurate or for any other reason, this may cause the pool of Loans to perform worse than expected, and may accordingly adversely affect the performance of the Notes.

None of APL, the Servicer, the Loan Transferor, the Depositor, the Issuer, the Grantor Trust, the Structuring Agent, the Initial Purchasers, the Loan Data Agent or any of their Affiliates makes any representation or warranty as to any Borrower's current credit score or the actual performance of any Loan or that a particular credit score should be relied upon as a basis for an expectation that a Borrower will repay its Loan according to its terms. Investors are encouraged to make their own determination as to the degree of reliance they place on credit scores, including those of the Borrowers described under the table entitled "*Distribution of the Statistical Loan Pool by FICO® Score at Origination as of the Statistical Cutoff Date*" in this Private Placement Memorandum.

Some Borrowers of Achieve Personal Loans may use the Achieve Loan Program to defraud a Partner Bank and APL, which could result in delays or reductions in payments on the Notes.

Some Borrowers of Achieve Personal Loans may use the Achieve Loan Program to defraud a Partner Bank and APL. For example, Borrowers may use stolen identity information, including, for instance, that from the 2017 data security breach at credit bureau Equifax, Inc., to fraudulently obtain an Achieve Personal Loan. APL uses identity and fraud checks with external databases to authenticate each Borrower's identity. There is a risk, however, that these checks could fail and fraud may occur. In addition, applicants may misrepresent their intentions regarding loan purpose or other information required to be provided in connection with a loan application, and this information may not be verified. Increases in unemployment levels may exacerbate instances of Borrower fraud, including increasing incidences of Borrower misrepresentations of employment status and income. See "*Social and economic factors may affect repayment of the Loans.*" herein. While APL is obligated to repurchase Loans that were subject to Verifiable

Fraud, such circumstances may nonetheless result in losses to the Issuer or delays in payment or losses on the Notes. See "*Risks Primarily Related to the Notes and the Issuer—The Grantor Trust's ability to obtain Loan repurchase protection and indemnification from APL and the applicable Partner Bank is limited and may not be exercised in all cases*" and "*Risks Primarily Related to APL's Business – Obligations of APL are subject to its financial and operational ability to fulfill them.*"

APL's right to determine whether Verifiable Fraud has occurred in connection with the origination of Loans creates a significant conflict of interest between APL and the Noteholders.

Pursuant to the Loan Transferor Purchase Agreement, APL is obligated to purchase from the Grantor Trust the Loans that were subject to Verifiable Fraud by a purported borrower. Whether or not Verifiable Fraud has occurred is determined by APL in its reasonable discretion. APL may be less inclined to determine that Verifiable Fraud has occurred because such determination would give rise to liability of APL. See "*Risks Primarily Related to the Notes and the Issuer—The Grantor Trust's ability to obtain Loan repurchase protection and indemnification from APL and the applicable Partner Bank is limited and may not be exercised in all cases*" and "*Risks Primarily Related to APL's Business – Obligations of APL are subject to its financial and operational ability to fulfill them.*"

If payments on the Loans become overdue, it is likely the Issuer will not receive the full principal and interest payments that the Grantor Trust is owed on the Loans and may incur additional costs, which could negatively impact the repayment of the Notes.

Late payment performance is an early indicator of charge-off probability. The Servicer may refer Delinquent Loans or Charged-Off Loans to a third-party collection agency for collection or it may collect on such Loans directly. If payments on a Delinquent Loan or Charged-Off Loan are received from a Borrower after the Loan has been referred to a third-party collection agency, the collection agency may retain a percentage of that payment as a fee before any principal or interest is received by the Issuer. Collection fees are expected to be up to 35% of recovered amounts on Charged-Off Loans, and may be higher if consented to by the Servicer in its Reasonable Servicer Discretion, in addition to any legal fees and transaction fees associated with accepting payments incurred in the collection effort. Alternatively, the Servicer may approve the sale of Delinquent Loans or Charged-Off Loans on behalf of the Grantor Trust to third-party debt buyers. The net proceeds from such sales would likely be significantly less than the amounts owing on such Delinquent Loans or Charged-Off Loans.

For some non-performing Loans, the Servicer may only recover a partial amount, or may not be able to recover any, of the unpaid balance of such Loans. A Borrower may, for example, seek a debt settlement for less than the full balance owed. See "*Borrowers of the Loans may be more likely to seek debt settlements than similarly situated borrowers*" below. The Grantor Trust relies exclusively on the collection efforts of the Servicer or the applicable collection agency to which such Loans are referred and the Grantor Trust is not expected to attempt to collect payments on the Loans in any manner. If losses are greater than anticipated, investors in the Notes may suffer a loss on their investments.

Borrowers of the Loans may be more likely to seek debt settlements than similarly situated borrowers.

APL is affiliated with Freedom Debt Relief, LLC ("FDR"), an entity which negotiates settlements of debts with creditors on behalf of consumers overburdened by debt. Given FDR's affiliation with APL, it is likely that borrowers of Achieve Personal Loans are more aware of the process and benefits of debt settlement than the average consumer loan borrower. Accordingly, Borrowers of the Loans may be more likely to seek debt settlement than other similarly situated borrowers of consumer loans that are not Achieve Loans. If a Borrower seeks a debt settlement on a Loan, there will be delays in the receipt of Collections on such Loan and ultimately if a settlement is entered into, the Grantor Trust will recover less than the full amount owing on such Loan. Such delays and reductions in proceeds will in turn reduce the amount of Available Funds available to the Issuer to make payments on the Notes.

The Loans do not restrict Borrowers from incurring additional unsecured or secured debt, nor do they impose any financial restrictions on Borrowers during the term of the Loan.

A Loan is likely not a Borrower's only debt obligation. If a Borrower incurs additional debt after the date of the Loan, the additional debt may impair the ability of that Borrower to make payments on his or her Loan and the Grantor Trust's ability to receive the principal and interest payments that it expects to receive on such Loan. In addition, the additional debt may adversely affect the Borrower's creditworthiness generally, and could result in the financial distress, insolvency, or bankruptcy of the Borrower. To the extent that the Borrower has or incurs other indebtedness and cannot pay all of his or her indebtedness, the Borrower may choose to make payments on other debts, rather than on such Borrower's Loan.

To the extent Borrowers have or incur other indebtedness that is secured, such as a mortgage, a home equity line or an auto loan, the ability of the secured creditors to exercise remedies against the assets of the related Borrower may impair such Borrower's ability to repay his or her Loan. Borrowers may also choose to repay obligations under secured indebtedness or other unsecured indebtedness before repaying Loans because there is no collateral securing the Loans. Neither the Issuer nor the Grantor Trust receives any notification if a Borrower incurs additional debt.

A Borrower may request that his or her bank "chargeback" a payment on a Loan and request a refund on that payment, resulting in a delinquency on the payment and a possible negative cash balance in a Servicing Collection Account.

A chargeback is a process by which a Borrower who has made a payment on a Loan has his or her bank cancel the payment or request a refund of that payment. If a chargeback occurs, the Issuer and Grantor Trust must rely on the Servicer to contest the chargeback if it deems it appropriate. If a Borrower successfully processes a chargeback, such payment is expected to be deducted from the applicable Servicing Collection Account, and if funds have been withdrawn in the interim, a negative cash balance may result. Amounts received on Loans and deposited into a Servicing Collection Account are subject to set-off against any negative balance or shortfall in each Servicing Collection Account. To the extent that there are insufficient funds in a Servicing Collection Account to set-off, the Issuer and Grantor Trust may have to use funds otherwise available to pay interest on the Rated Notes and make distribution on the Class R Notes to cover a negative balance, which could result in an Event of Default if there are insufficient Available Funds remaining.

Borrowers may seek the protection of debtor relief under federal bankruptcy or state insolvency laws, which may result in delays in payment or losses on the Notes.

A Borrower may seek protection under federal bankruptcy law or similar laws. If a Borrower files for bankruptcy (or becomes the subject of an involuntary petition), a stay will go into effect that will automatically put any pending collection actions on the related Loan on hold and prevent further collection action absent bankruptcy court approval. If the Servicer receives notice from a court or trustee, or learns (and confirms with court records) that a Borrower has filed for protection under the federal bankruptcy laws, or has become the subject of an involuntary bankruptcy petition, the Servicer will put the Borrower's Loan account into "bankruptcy status." When this occurs, the Servicer terminates automatic monthly ACH debits on such Loan and the Servicer will not undertake collection activity without first receiving bankruptcy court approval. Whether any payment will ultimately be made or received on a Loan after the Borrower becomes subject to a bankruptcy proceeding depends on the Borrower's particular financial situation and the determination of the court. In most cases, however, unsecured creditors such as the Grantor Trust receive nothing, or only a fraction of their outstanding debt. In such cases, Noteholders could suffer a loss if insufficient funds were available from credit enhancement or other sources to cover the applicable amounts due on the Notes.

A Borrower may seek protection under federal bankruptcy law or similar laws after the Cutoff Date but prior to the Closing Date. No representation or warranty will be made by either of the Sponsors or any other Person as to the bankruptcy status of any Borrower as of any date later than the Cutoff Date.

Federal law entitles Borrowers who enter active military service to an interest rate cap and certain other rights that may inhibit the ability to collect on the Loans and reduce the amount of interest paid to the Grantor Trust and ultimately available for distribution on the Notes.

Federal law provides a Borrower on active military service with rights that may delay or impair the Servicer's ability to collect on a Loan. Current U.S. military operations and rising tensions in other regions may continue to involve military operations that will increase the number of citizens who have been called or will be called to active duty. The Servicemembers Civil Relief Act ("SCRA") requires that the interest rate on preexisting debts, such as the Loans, be set at no more than 6% while the qualified service member or reservist is on active duty. The Grantor Trust, as owner of such a Loan, will not receive the difference between 6% and the original stated interest rate for the Loan during any such period, nor will such difference be accrued during such period and paid at a later date. The SCRA also permits courts to stay proceedings and execution of judgments against service members and reservists on active duty, which may delay recovery on any Loans in default, and, accordingly, payments to the Grantor Trust and the Issuer, and ultimately on the Notes.

Under the Military Lending Act, contracts that contain provisions that are prohibited by the statute are void from the inception of the contract. Although APL has adopted policies designed to comply with the Military Lending Act, and APL will represent in the Loan Transferor Purchase Agreement that the Loans comply with applicable laws, there can be no assurance that a court or regulatory agency responsible for determining whether the Loans comply with the Military Lending Act will not find that a Loan fails to comply, and thus cannot be enforced against the Borrower.

The death of a Borrower may impair the Issuer's ability to receive any future Collections on a Loan.

If a Borrower dies while his or her Loan is still outstanding, APL will charge off the Loan unless there is a living co-borrower, in which case, APL will contact the co-borrower to arrange for the co-borrower to repay the Loan. The timing of payments received on such a Loan, if any, may be delayed due to the time required for the probate of the estate. There can be no assurance that any such delay will not extend beyond the Maturity Date of the Notes. In addition, the Borrower's estate may not contain sufficient assets to repay the Loan, or the related executor or trustee may prioritize payments to other creditors. If such an event occurs, there will be a realized loss on the related Loan and possibly on the Notes.

The Loans do not contain any cross-default or similar provisions. If a Borrower defaults on any of his or her other debt obligations, the Servicer's ability to collect on the Loan made to such Borrower may be substantially impaired.

Loans sourced through the Achieve Loan Program do not contain any cross-default provisions. A cross-default provision makes a default under certain debts of a Borrower an automatic default on another debt of that Borrower. Because the Loans do not contain cross-default provisions, a Loan will not be placed automatically in default upon a Borrower's default on any of that Borrower's other debt obligations. If a Borrower defaults on debt obligations owed to a third party and continues to satisfy the payment obligations under his or her Loan, the third party may seize the Borrower's assets or pursue other legal action against the Borrower before the Borrower defaults on his or her Loan, leaving the Borrower with fewer remaining assets to repay his or her Loan.

The credit decisioning and scoring models used by the Achieve Loan Program have not yet been fully tested in down-cycle economic conditions and if they contain errors or are otherwise ineffective, the performance of the Loans may be worse than anticipated.

The performance of the Loans is significantly dependent on the ability of the credit decisioning and scoring models used by the Achieve Loan Program to effectively evaluate a borrower's credit profile and likelihood of default. These credit decisioning and scoring models assign each loan offered on the Achieve Loan Program an interest rate. The Achieve Loan Program's credit decisioning and scoring models are based on algorithms that evaluate a number of factors, including behavioral data, transactional data and employment information, and are then adjusted by APL's underwriting group. These model outputs, even after underwriting adjustments, may not effectively predict future Loan losses. They have not been fully tested in a down cycle or recessionary economic environment, and there is no assurance that these models can accurately predict loan performance under such economic conditions. APL

continually refines these algorithms based on new data and changing macro and economic conditions. If these models do not accurately reflect credit risk on the Loans, greater than expected losses may result on the Loans which, in turn, may cause losses on the Notes. Further, if any of these credit decisioning and scoring models contain programming or other errors, are ineffective or the data provided by applicants or third parties is incorrect or stale, APL's loan pricing and approval process could be negatively affected, resulting in mispriced or misclassified loans or incorrect approvals or denials of loans, including with respect to the Loans owned by the Grantor Trust. See "*—Appropriate interest rates may not have been set for Loans, and if the interest rates are set too low, the Grantor Trust and the Issuer may not be compensated appropriately for the level of risk they assume in purchasing the Loans*" below.

Appropriate interest rates may not have been set for Loans, and if the interest rates are set too low, the Grantor Trust and the Issuer may not be compensated appropriately for the level of risk they assume in purchasing the Loans.

The interest rates for the Loans are determined by the credit policy of the applicable Partner Bank. If the interest rates for the Loans are set too low, the Grantor Trust and the Issuer (as the Grantor Trust Certificateholder) may not be compensated appropriately for the level of risk that either has assumed in purchasing Loans, while setting the interest rate too high may increase the risk of non-payment or earlier than expected repayment if the Borrower is able to subsequently find a loan with more favorable terms. In either case, failure to set rates appropriately may adversely impact the ability of the Grantor Trust and the Issuer (as the Grantor Trust Certificateholder) to receive returns on the Loans that are commensurate with the risks associated with directly or indirectly owning the Loans and, as a result, Noteholders may suffer a loss on the Notes.

Modifications to the Policies and Procedures may result in changes to the performance and servicing of the Loans, which could negatively affect collections on the Loans.

The Servicer may modify the Policies and Procedures at any time upon notice to the Grantor Trust certifying either that (i) such modification is, in the Servicer's good faith determination, necessary in order to comply with Applicable Law or (ii) such modification (A) applies generally to the servicing practices used by the Servicer for loans that are originated under the same credit policy as the Loans or applicable subset of the Loans or (B) is consistent with generally accepted industry practices; *provided*, that no modification of a Loan shall extend the maturity date of such Loan beyond the Maturity Date. For example, the Servicer revised its Policies and Procedures from April 2020 to August 2022 in response to the COVID-19 pandemic and related financial and economic disruption to allow up to three months of deferred payments to customers who indicate that they have been directly impacted by issues such as unemployment, lay-off or furlough, or caring for others that have been directly impacted, which allowances may be in addition to standard deferral allowances. Modifications to the Policies and Procedures could alter the policies by which the Servicer services the Loans, including the policies by which the Servicer determines whether to change the terms of the Loans owned by the Grantor Trust. If further modifications to the Policies and Procedures were to occur, they could result in more delinquencies or defaults on the Loans or the deferral of payments on the Loans. If the performance of the Loans deteriorates or the timing of Loan payments is deferred, it could result in losses on the Notes. See "*Description of the Basic Documents—Servicing*" in this Private Placement Memorandum.

The Servicer has the authority to waive or modify the terms of a Loan without the consent of the Grantor Trust, the Issuer or the Noteholders, which could negatively affect collections on the Loans.

The Servicer may, without the consent of the Issuer, the Grantor Trust, the Indenture Trustee, any Noteholder or any other Person, grant, permit or enter into Loan Modifications, subject to certain limitations. See "*Description of the Basic Documents—Servicing*" in this Private Placement Memorandum. These Loan Modifications could have the effect of, among other things, reducing or otherwise changing the Loan interest rate, forbearing, deferring or forgiving payments of interest on, principal of or other charges on the Loans, extending the final maturity date or the due date for scheduled payments, capitalizing delinquent interest and other amounts owed under the Loans or any combination of these or other modifications; *provided*, that no modification of a Loan shall extend the maturity date of the Loan beyond the Maturity Date. If one or more scheduled payments on a Loan is deferred or otherwise modified pursuant to an Eligible Modification, then the determination of whether the Loan is a Delinquent Loan, Severely Delinquent Loan or Charged-Off Loan will be made after giving effect to such deferral or other modification, and accordingly such deferral or other modification may allow the Servicer to delay or avoid characterizing the Loan as a Delinquent Loan, Severely Delinquent Loan or Charged-Off Loan, including for purposes of calculating its servicing

fees. The Servicer experienced a significant increase in requests for deferrals of Loan payments due to the impact of the COVID-19 pandemic and its after effects, and a significant number of such requests were granted. The active loan deferral rate has since declined. However, inflation and other adverse economic conditions may cause deferral rates to increase again. See "*—Social and economic factors may affect repayment of the Loans*" above. As of August 1, 2024, the active loan deferral rate for Achieve Personal Loans within the Achieve Loan Program was approximately 6.50%. As of the Statistical Cutoff Date, approximately 1.19% of the loans in the Statistical Loan Pool (by aggregate current Principal Balance as of the Statistical Cutoff Date) have been granted a deferral or have had their term extended on or after March 15, 2020.

Reports have raised concerns over servicing practices that grant multiple payment deferrals on the same loan or reduce payments or extend maturities on loans in a way that may suppress loan loss, delinquency and default statistics. There can be no assurance that such practices would not occur with respect to the Loans. However, under the Servicer's Policies and Procedures, generally, deferrals are not offered to borrowers who are more than one payment past due or have received a two-month deferral or two one-month deferrals within the last 12 months. Exceptions to the standard deferral procedures (for example, to defer for an additional month) must be approved by senior management. A borrower impacted by a natural disaster, epidemic or pandemic may obtain a deferral of up to two months irrespective of whether the borrower has received any other deferrals within the last 12 months. The restrictions and conditions for deferrals that are described in the third and fourth sentences of this paragraph do not apply to deferrals related to a natural disaster, epidemic or pandemic. Excluding multiple deferrals due to natural disasters, epidemics and pandemics, since the beginning of 2018, when the Servicer began keeping data on the subject, less than 1% of Achieve Personal Loans under the Achieve Loan Program have received multiple deferrals, though there is no assurance that such percentage will not increase. See "*Social and economic factors may affect repayment of the Loans."* In addition to deferrals, APL may otherwise modify an Achieve Loan when the borrower has a financial hardship (such as a decrease in income or increase in unavoidable expenses, such as unexpected medical costs). Typically, such modifications consist of a reduction in the monthly payment amount, resulting in an increase in the repayment period. A reduction in the monthly payment amount that would either cause the repayment period to be extended by more than 12 months or cause the total repayment period to be greater than 72 months requires approval by senior management. See "*Servicing Policies and Procedures—Servicing and Collection Activities*" in this Private Placement Memorandum.

If the Servicer reduces the interest rate of a Loan in connection with a modification, the resulting interest shortfall, if any, will reduce the amount of Collections available to the holders of the Notes. A modification of the final maturity date or the due date of any scheduled payment on a Loan may slow the rate of principal payments thereon and, as a result, may extend the weighted average lives of the Notes. If the Servicer forgives, defers or forbears all or a portion of the principal balance of a Loan or takes any of the other actions described in the preceding two paragraphs, it could result in a delay in the payment of principal of one or more Classes of Rated Notes and distributions on the Class R Notes or, under certain loss scenarios, the failure to pay the remaining principal balance of one or more Classes of Notes upon maturity.

In addition, there can be no assurance that APL, in its capacity as Servicer, will be able to collect the principal and interest agreed to and/or sell Delinquent Loans, Bankruptcy Loans or Charged-Off Loans in the future as a result of business, regulatory or other considerations.

Borrowers may not view or treat their obligations on the Loans as having the same significance as loans from traditional lending sources.

The repayment of the Notes depends on the Borrowers fulfilling their payment obligations in a timely and complete manner as provided for under the corresponding Loans. The Borrowers may not view the Loans, which were originated through the Achieve Loan Program, as having the same significance as other credit obligations arising under more traditional circumstances. In addition, unlike in the case of revolving obligations, a Borrower's Loan will be fully funded at origination. Accordingly, the Loans do not carry with them the prospect of future extensions of credit to incentivize Borrowers to make full and timely payment of principal and interest and otherwise not default. If a Borrower neglects his or her payment obligations on a Loan or chooses not to repay his or her Loan entirely, the amount of payments received by the Issuer will be less than expected and could negatively impact its ability to repay the Notes.

Geographic concentration may increase risk of loss.

The geographic concentration of the Loans may expose the Notes to an increased risk of loss due to risks associated with certain regions. Certain regions of the United States from time to time will experience weaker economic conditions and higher unemployment, and consequently, will likely experience higher rates of delinquency and loss than on similar loans nationally. In addition, environmental disasters and natural disasters, such as hurricanes, tornadoes, floods, drought, wildfires, mudslides, earthquakes and other extreme conditions, or epidemics in specific geographic regions may result in higher rates of delinquency and loss in those areas. In the event that a significant portion of the pool of Loans is comprised of Loans owed by Borrowers resident in certain states, economic conditions, localized weather events, extended power outages, environmental disasters, natural disasters, epidemics (such as, an increase in COVID-19 cases in such states), quarantines, shelter-in-place or similar directives or other factors affecting these states in particular could adversely impact the delinquency and default experience of the Loans and could result in delays in payments or losses on the Notes. See "*Risk Factors — Risks Primarily Related to the Loans— Social and economic factors may affect repayment of the Loans"* in this Private Placement Memorandum.

Further, the concentration of the Loans in one or more states would have a disproportionate effect on investors if governmental authorities in any of those states take action against the Sponsor, the Servicer or the applicable collection agencies (such as actions described in "*Risk Factors–Risks Primarily Related to the Loans—Consumer protection laws and contractual restrictions may affect the enforceability or collectability of the Loans or result in penalties or damages to the transaction parties*" in this Private Placement Memorandum), or take action affecting the Servicer's or the applicable collection agencies' ability to service and collect the Loans.

As of the Statistical Cutoff Date, the aggregate current Principal Balance of loans in the Statistical Loan Pool with Borrowers residing in the following States at the time of their loan application exceeded 5.00% of the Statistical Cutoff Date Pool Balance:

California	13.20%
Texas	11.12%
New York	9.40%
Florida	7.75%

The geographic concentration of the Loans may change after the Statistical Cutoff Date as a result of repayments of the Loans, charge-offs, substitution of Loans that will not satisfy the Loan Level Representations on the Closing Date or otherwise, including in a manner that adversely affects investors in the Notes.

RISKS PRIMARILY RELATED TO SERVICING

Replacement of the Servicer, failure or delay in replacing the Servicer, or the inability of the Servicer to service the Loans could result in reduced payments on the Notes.

The Grantor Trust's receipt of collections in respect of the Loans (the predominant source from which the Issuer (as the Grantor Trust Certificateholder) pays amounts in respect of the Notes) will depend on the ability of the Servicer to collect Borrower payments. If the Servicer fails to make collections adequately for any reason – for example, whether due to the inability to attract and maintain highly skilled employees or the inability to implement appropriate controls and procedures, among others – then payments to the Grantor Trust in respect of the Loans may be delayed or reduced. In that event, it is likely that delays or reductions in the amounts distributed on the Notes would result. As described under "*Description of the Basic Documents—Servicing—Servicer Events of Default and Termination*" and "*Description of the Basic Documents—Servicing–Backup and Successor Servicing*" in this Private Placement Memorandum, following a Servicer Event of Default and the termination of the Servicer under the Servicing Agreement, at the direction of the Grantor Trust or, after the occurrence and during the continuation of an Event of Default, the Indenture Trustee at the written direction of the Majority Holders, the Backup Servicer will be obligated to serve, or appoint its Backup Servicer Subcontractor or another Person to serve, as the Successor Servicer; provided, however, that the Backup Servicer may only appoint a Person other than Firstmark or Vervent Inc. ("Vervent") as its Backup Servicer Subcontractor if at the time of such appointment (a) if any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification is given and (b) such Person services at least $50,000,000 in outstanding principal balance of consumer loans. Additionally, in certain

circumstances APL may resign as Servicer. See "*Description of the Basics Documents—Servicing—Certain Other Matters Regarding the Servicer.*"

It is likely that the termination or resignation of APL as Servicer and the assumption of servicing by the Backup Servicer or other Successor Servicer (including a Backup Servicer Subcontractor) would (at least for a period of time) adversely affect the servicing of the Loans. For example, transfers of servicing involve the risk of disruption in collections due to data input errors, misapplied or misdirected payments, system incompatibilities, lack of information about collection agents, delays in transitioning of servicing duties from APL to the Successor Servicer and other reasons. Because the Borrowers in respect of certain of the Loans were not considered "prime" at the time of origination, such Loans likely are more sensitive to any such disruptions than installment loans owing from "prime" loan obligors. In addition, there is expected to be some delay between the Grantor Trust's notification to the Backup Servicer and Backup Servicer's or its appointed Successor Servicer's assumption of the Servicer's duties. Most of the Loans are collected by initiating ACH transfers on a monthly basis from the applicable Borrower's bank account to the applicable Servicing Collection Account. The ability to initiate these ACH transfers is dependent upon the Servicer's agreements and relationship with the bank that maintains the Servicing Collection Account. If the Backup Servicer or other Successor Servicer is not able to continue to initiate these ACH transfers with the bank that maintains the applicable Servicing Collection Account at the time of the servicing transfer, there would be significant disruptions in collections until the Backup Servicer or other Successor Servicer is able to restore these capabilities with that bank or at another account bank. As a result, the Loans may experience increased delinquencies and defaults, at least for a period of time. There can be no assurance as to the extent or duration of any disruptions associated with the transfer of servicing or as to the resulting effects on the performance of the Notes.

The transfer of servicing from the initial Servicer to the Backup Servicer or another Successor Servicer could result in changes in the manner in which the Loans are serviced, including with respect to practices regarding application of Borrower payments, monthly due dates, late fees, Ancillary Fees and Loan modifications; additional fees, expense and indemnities owing to the Backup Servicer that are payable prior to payments to the Noteholders and, as further described in "*Description of the Basic Documents—Servicing—Backup and Successor Servicing,*" the Grantor Trust's recourse to the Successor Servicer may be more limited than the recourse to the Servicer. Further, in the event that the Backup Servicer (or a Backup Servicer Subcontractor or another designated subcontractor) is unable or unwilling to assume the obligations of the Servicer upon such appointment, including, as referenced in "*—Bankruptcy or insolvency of the Sponsor, the Servicer or the Backup Servicer could result in losses on the Notes,"* as a consequence of Bankruptcy Code provisions preventing the Backup Servicer (or a Backup Servicer Subcontractor or other appointee of the Backup Servicer) from assuming the servicing role, it may be difficult to find a third party to act as Successor Servicer. If the Backup Servicer (or a Backup Servicer Subcontractor) is unable or unwilling to fulfill the Backup Servicer's obligations to take over servicing and, if it would be difficult to find a third party to act as Successor Servicer, payments on the Notes may be delayed or reduced.

Investors should note that the historical performance of the Loans may not be consistent with the performance of the Loans if they are serviced by a different servicer.

Additionally, in the event of the Servicer's bankruptcy, the Grantor Trust or the Administrator on behalf of the Grantor Trust may face delays in terminating, or may be unable to terminate, the Servicer. The termination rights of the Grantor Trust and the Administrator on behalf of the Grantor Trust under the Servicing Agreement upon a Servicer Event of Default relating to insolvency generally are subject to the provisions of the Bankruptcy Code invalidating "ipso facto" clauses that provide for the alteration or termination of the contract or property rights of a debtor because of the filing of a bankruptcy petition, imposing an automatic stay of creditor collection actions or permitting a bankruptcy trustee of the Servicer (including the Servicer as debtor in possession) to assume an executory contract such as a servicing agreement. These Bankruptcy Code provisions could prevent the Backup Servicer from assuming the servicing role notwithstanding any provision in the Servicing Agreement, the Backup Servicing Agreement or the Indenture to the contrary. As a result, investors should not assume that the Backup Servicer will automatically or promptly be able to take over servicing from the Servicer in the event of a bankruptcy of the Servicer.

Similarly, there can be no assurance whether, after a Servicer Event of Default, the Grantor Trust or the Administrator on behalf of the Grantor Trust will elect to terminate the Servicer or how quickly the Grantor Trust will act in order to terminate the Servicer or in the context of an insolvency of the Servicer how much delay may occur in obtaining the approval of such termination by a bankruptcy court. In the event that the Servicer fails to service, or is

unable to service, the Loans in accordance with the Servicing Agreement after such a Servicer Event of Default and the Grantor Trust does not terminate the Servicer or experiences delay in such termination, these servicing disruptions could result in higher delinquencies and defaults on the Loans, which in turn may adversely affect the repayment of the Notes.

Any reasonable costs and expenses of the Backup Servicer or other Successor Servicer incurred in connection with the transfer of servicing from the Servicer as a result of the occurrence and continuation of a Servicer Event of Default will be paid by the Servicer following its receipt of a written accounting thereof in reasonable detail. In the event that the Servicer fails to reimburse the Backup Servicer or other Successor Servicer for such costs within a reasonable period of time, the Backup Servicer or other Successor Servicer will be entitled to reimbursement from the assets of the Issuer at a higher level of priority than payments on the Notes, subject to a cap of $150,000 (including onboarding fees). No provision of the Basic Documents obligates the Indenture Trustee to act as a Successor Servicer under any circumstances.

Even if a transfer of servicing does not actually occur, potential transition issues associated with, or possible disruptions in operations resulting or arising from, consolidations or business combinations affecting the Servicer, may result in similar issues associated with a servicing transfer or otherwise adversely affect servicing generally. It is difficult to predict the effect of any consolidation or business combination on the servicing of the Loans and its impact on the Notes. APL may from time to time evaluate and consider strategic transactions, combinations, acquisitions or alliances, which may give rise to a number of associated risks, including the potential for servicing disruptions described above, in addition to risks affecting APL's business more generally.

Bankruptcy or insolvency of APL, in its capacity as seller under the Loan Transferor Purchase Agreement, the Servicer or the Backup Servicer could result in losses on the Notes.

If the Servicer were to go into bankruptcy or become the subject of a similar insolvency proceeding, the Servicer (whether APL or a Successor Servicer) may stop performing its functions as Servicer. Similarly, if the Backup Servicer (or a Backup Servicer Subcontractor) were to go into bankruptcy or become the subject of a similar insolvency proceeding, the Backup Servicer may stop performing its functions as Backup Servicer. Additionally, the termination rights of the Grantor Trust and Administrator (on behalf of the Grantor Trust) in the Servicing Agreement upon a Servicer Event of Default relating to insolvency generally are subject to the provisions of the Bankruptcy Code invalidating "ipso facto" clauses that provide for the alteration or termination of the contract or property rights of a debtor because of the filing of a bankruptcy petition, imposing an automatic stay of creditor collection actions or permitting a bankruptcy trustee of the Servicer (including the Servicer as debtor in possession) to assume an executory contract such as a servicing agreement. These Bankruptcy Code provisions could prevent the Backup Servicer or another Successor Servicer from assuming the servicing role notwithstanding any provision in the Servicing Agreement, the Backup Servicing Agreement or the Indenture to the contrary. As a result, investors should not assume that the Backup Servicer or another Successor Servicer will automatically or promptly be able to take over servicing from the Servicer in the event of a bankruptcy of the Servicer.

Additionally, except with respect to the Backup Servicer's (or a Backup Servicer Subcontractor's) replacement of the Servicer as Successor Servicer, it may be difficult to find a third party to act as Successor Servicer. Alternatively, the Servicer may take the position that unless the amount of its compensation is increased or the terms of its obligations are otherwise altered, it will stop performing its functions as Servicer. If the Backup Servicer (directly or by appointment of a Backup Servicer Subcontractor as its subcontractor or as Successor Servicer) is unable to fulfill the Backup Servicer's obligations to take over servicing and, if it would be difficult to find a third party to act as Successor Servicer, the Issuer as the Grantor Trust Certificateholder, as a practical matter, may have no choice but to agree to the demands of the Servicer. The Servicer may also have the power, in connection with a bankruptcy or insolvency proceeding and with the approval of the court or the bankruptcy trustee or similar official, to assign its rights and obligations as Servicer to a third party without the consent, and even over the objection, of the Issuer as the Grantor Trust Certificateholder despite the provisions of the applicable documents.

If the Servicer or the Backup Servicer is a debtor in bankruptcy or the subject of a similar insolvency proceeding, then the parties may be prohibited (unless authorization is obtained from the court or the bankruptcy trustee or similar official) from taking any action to enforce any obligations of the Servicer under the Servicing Agreement, of the Backup Servicer under the Backup Servicing Agreement, or of either under any related documents,

or to collect any amount owing by the Servicer or the Backup Servicer under such documents, or to terminate and replace the Servicer or the Backup Servicer despite the terms of the any such documents.

Additionally, if the Servicer were to become a debtor in bankruptcy or the subject of an insolvency or similar proceeding, payments previously made by such Person during the preference period could potentially be avoided and required to be returned as a preferential payment under applicable bankruptcy, insolvency, receivership or similar law. To the extent any Collections have been received on the Loans but not yet been remitted to the Payment Account, including amounts held in a Servicing Collection Account or any other account of the Servicer, there can be no assurance that such Collections will be remitted to the Payment Account in the event of the bankruptcy or insolvency of the Servicer. Other creditors of the Servicer may be deemed to have, or actually have, rights to such amounts that are equal to or greater than the rights of the Grantor Trust or Issuer as Grantor Trust Certificateholder. In addition, because a bankruptcy or similar proceeding may take months or years to complete, even any recovery that is determined to be owed by the Servicer as the debtor in the bankruptcy or similar proceeding (and no such recovery can be assured) may effectively experience a reduction in value by the time such recovery is available.

More generally, Borrowers may delay or suspend making payments to the Servicer because of the uncertainties occasioned by the Servicer becoming subject to a bankruptcy or similar proceeding, even if the Borrowers have no legal right to do so, and such delay would reduce, at least for a time, the funds that might otherwise be available to pay the Notes.

It is possible that a period of adverse economic conditions resulting in high defaults and delinquencies on the Loans will increase the potential bankruptcy risk to the Servicer if its respective servicing compensation is less than the cost of servicing. See "—*Additional Servicing Risks*" below.

In addition, if APL were to go into bankruptcy or become the subject of insolvency or similar proceedings, APL may be unable to fulfill its contractual obligations under the Loan Transferor Purchase Agreement, including the obligation to repurchase Loans or otherwise indemnify the Grantor Trust as assignee. Furthermore, in such a case, the Grantor Trust (unless authorization is obtained from the court or the receiver, conservator, liquidator or similar official) from taking any action to enforce any obligations of APL, as applicable, under the Loan Transferor Purchase Agreement or related documents.

The occurrence of any of these events could result in delays or reductions in distributions on, or other losses with respect to, the Notes. There may also be other possible effects of a bankruptcy, insolvency proceeding or similar proceeding of the Servicer, APL or the Backup Servicer that could result in delays or reductions in distributions on, or other losses with respect to, the Notes. Regardless of any specific adverse determinations in a bankruptcy or similar insolvency proceeding of the Servicer or the Backup Servicer, the fact that such a proceeding has been commenced could have an adverse effect on the value of the Loans and the liquidity and value of the Notes.

Payments on the Loans are subject to vulnerabilities in the Servicer's information technology infrastructure.

The Servicer uses information management systems to service and administer the Loan portfolio, including management of collections and servicing, administration and maintenance of the electronic contracts. Among other risks, these systems are subject to damage or interruption from:

- Power loss, computer systems failures and Internet, telecommunications or data network failures;
- Operator negligence or improper operation by, or supervision of, employees;
- Physical and electronic loss of data or security breaches, misappropriation and similar events;
- Computer viruses and hacking;
- Intentional acts of vandalism, terrorist attacks and similar events; and

- Hurricanes, tornadoes, fires, floods, earthquakes and other natural disasters.

In addition, the software that the Servicer has developed for use in daily operations may contain undetected errors that could cause the information network to fail. Any failure of the Servicer's systems due to any of these causes or other unforeseen events could cause an interruption in operations and result in reduced collections of the Loans. Also, although the Servicer has implemented contingency and disaster recovery processes in the event of one or several technology failures, any unforeseen failure, interruption or compromise of these systems or security measures could affect its collection of the Loans. The risk of possible failures or interruptions may not be adequately addressed, and such failures or interruptions could occur. APL employees who service Achieve Loans have generally been working remotely since March 2020, following the onset of the COVID-19 pandemic. Working in a remote environment may also increase the risk of a security breach.

APL is directly and indirectly subject to extensive federal, state and local regulation that could adversely impact their ability to service the Loans.

APL is subject to extensive federal, state and local regulation, non-compliance with which could have a negative impact on their ability to service the Loans.

Additionally, APL holds lending licenses, collections licenses or similar authorizations in numerous states, all of which have the authority to supervise and examine APL's activities, and in the future, it may seek to obtain licenses in states in which it is not currently licensed. It is possible that APL could lose (or, in the case of licenses not currently held, fail to obtain) one or more of these licenses or authorizations, which may have an adverse effect on APL's ability to continue to perform its servicing obligations with respect to the Achieve Loan Program.

The Federal Fair Debt Collection Practices Act and similar state debt collection laws regulate debt collection practices by "debt collectors" and prohibit debt collectors from engaging in certain practices in collecting, and attempting to collect, outstanding consumer loans. It is possible that agents engaged by the Servicer to collect loans may engage in improper collection practices that could adversely affect the collectability or enforceability of the Loans or could result in financial penalties or operating restrictions being imposed on, or litigation including, APL that could adversely affect the Servicer's ability to operate or perform its obligations under the Servicing Agreement.

The Servicer relies on a third-party commercial bank to process transactions. If the Servicer is unable to continue utilizing these services, its business and ability to service the Loans may be adversely affected.

Because APL is not a bank, it cannot belong to or directly access the ACH payment network. As a result, it relies on Wells Fargo Bank, N.A. to process collections on the Loans, and the Servicer is responsible for the fees, expenses and indemnities owing to such Servicing Account Bank. If the Servicer cannot continue to obtain such services from this institution or elsewhere, including due to failure to pay fees, expense and indemnities related thereto, and if it cannot transition to another processor quickly, its ability to process payments will suffer and principal and interest payments on the Notes will be delayed or impaired.

None of the Sponsors, the Servicer, the Administrator, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Collateral Agent, the Paying Agent, the Issuer, the Structuring Agent, the Initial Purchasers or any of their respective Affiliates makes any representation or warranty as to the accuracy, completeness, timeliness or continuous delivery of the information made available by the Loan Data Agent under the Loan Data Agent Agreement.

Under the Loan Data Agent Agreement, the Loan Data Agent will be required to maintain an investor portal at https://dv01.co through which Noteholders and prospective Noteholders can view performance information, which the Issuer expects to be updated on a monthly basis, related to the Loans. While the Loan Data Agent will assist the Administrator in preparing draft Monthly Reports, the Loan Data Agent will rely upon the Servicer to provide it with ongoing information concerning the Loans, and in the event that the Servicer does not provide such information to the Loan Data Agent as and when necessary, no assurance can be given that the information in the Loan Data Agent's portal will be current or periodically updated. None of the Sponsors, the Servicer, the Administrator, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Collateral Agent, the Paying Agent, the Issuer, the

Structuring Agent, the Initial Purchasers, or any their respective Affiliates makes any representation or warranty as to, nor will it verify or ensure, the accuracy or completeness of the information made available by the Loan Data Agent. Any errors in the information provided by the Loan Data Agent shall be solely the responsibility of the Loan Data Agent, except to the extent such errors in the information result from errors in the information provided by the Servicer to the Loan Data Agent. Additionally, the Loan Data Agent may be terminated by the Issuer at any time after the Closing Date if the Loan Data Agent materially breaches the Loan Data Agent Agreement or with or without cause if no Notes remain Outstanding, and the Issuer will have no obligation to replace the Loan Data Agent with a comparable service. Prospective investors in the Notes should not assume that the Loan data to be provided by the Loan Data Agent will be accurate and/or complete at all times or that its delivery will be timely, continuous and/or uninterrupted, or that it will continue to be provided for the life of the transaction described in this Private Placement Memorandum.

Additional servicing risks.

The Servicer will be responsible for servicing the Loans regardless of whether the Loans are performing or have become delinquent or are otherwise in default. Delinquencies and defaults may occur for a number of reasons, including economic distress or other events that substantially impair the ability of a Borrower to make payments on the related Loan, including death, serious physical or mental disability, life threatening illness, divorce or legal separation or termination of employment of a borrower. As delinquencies or defaults occur, the Servicer and the Collection Agents (if any) will be required to utilize an increasing amount of resources to work with Borrowers to maximize Collections on the Loans. At each step in the process of trying to bring a delinquent or defaulted Loan current or in maximizing proceeds, the Servicer or any Collection Agent on its behalf, will be required to invest time and resources not otherwise required when collecting payments on performing Loans.

During periods of increased delinquencies, it is important that the Servicer and the Collection Agents are proactive in consistently contacting a Borrower which, in turn, makes it extremely important that the Servicer and the Collection Agents are properly staffed and trained to take appropriate action in an effort to bring a delinquent balance current and ultimately avoid the related Loan becoming charged off. APL experienced an increase in Borrower inquiries related to deferrals of Loan payments due to the impact of the COVID-19 pandemic and its after effects. See *"Risks Primarily Related to the Loans—The Servicer has the authority to waive or modify the terms of a Loan without the consent of the Grantor Trust, the Issuer or the Noteholders, which could negatively affect collections on the Loans."* above. During such periods, it is important that APL is properly staffed to respond to such inquiries. However, if significant portions of APL's workforce are unable to work effectively including because of illness, quarantines, shelter-in-place or similar directives, facility closures or ineffective remote work arrangements, APL may not be able to respond to Borrower inquiries in a timely manner, and its ability to perform its other servicing obligations could be materially and adversely affected and result in reduced collections on the Loans. If the Servicer and the Collection Agents are unable to attract and retain qualified credit and collection personnel, and maintain workloads for their collections personnel at a manageable level, it could result in increased delinquencies and charge-offs on the Loans, in which case payments on the Notes would be adversely affected and investors in the Notes might suffer a loss on their investments.

RISKS PRIMARILY RELATED TO APL'S BUSINESS

APL's income is highly dependent upon the performance of loans originated under the Achieve Loan Program. There can be no assurance that APL will be able to meet its repurchase or indemnification obligations to the Grantor Trust.

APL's income consists primarily of fees and other compensation for servicing Achieve Acceleration Loans and Achieve Personal Loans. Accordingly, the income of APL is highly dependent upon the performance of Achieve Acceleration Loans and Achieve Personal Loans.

APL believes it will have income and assets sufficient to meet its reasonably anticipated indemnification and purchase obligations with respect to the Loans. There can be no assurance, however, that if APL is obligated to repurchase a Loan or indemnify the Grantor Trust, it will be able to meet its purchase or indemnification obligations. These purchase and indemnification obligations are triggered by facts or circumstances that adversely affect the Loans. Because the income of APL is highly dependent upon the performance of the Loans and other Achieve Acceleration Loans and Achieve Personal Loans, it is likely that if purchase and indemnification obligations were to arise, they

would do so at a time when the income of APL has been reduced. Further, APL has similar purchase and indemnification obligations with respect to other Achieve Personal Loans similar to the Loans and with respect to certain Achieve Acceleration Loans. If APL were to be required to make purchases or indemnification payments with respect to the Loans, they would likely be required to make purchases and indemnification payments with respect to other Achieve Personal Loans and Achieve Acceleration Loans at essentially the same time, which would dilute financial resources available to make such purchases and indemnification payments with respect to the Loans. If APL is unable to meet its purchase or indemnification obligations, the Grantor Trust may incur losses related to payments on the Loans which may affect the ability of the Issuer, as Grantor Trust Certificateholder, to make payments on the Notes. See "*Risks Primarily Related to the Notes and the Issuer—The Grantor Trust's ability to obtain Loan repurchase protection and indemnification from APL and the applicable Partner Bank is limited and may not be exercised in all cases*" and "*Risks Primarily Related to APL's Business— Obligations of APL are subject to its financial and operational ability to fulfill them.*"

The market in which APL participates is competitive and, if APL does not compete effectively, operating results could be harmed.

The consumer lending market is highly competitive and rapidly changing, and the barriers to entry for new competitors are relatively low in the market segment in which APL operates. APL competes with marketplace lenders as well as consumer finance companies and other types of financial institutions that offer products that are similar to the Loans. Some of these competitors have considerably greater financial, technological and marketing resources than does APL. APL competes with other funds and platforms for investors in consumer loans. Some competitors may also have a lower cost of funds than APL, greater access to funding sources than APL or other competitive advantages relative to APL. With the introduction of new technologies and the influx of new entrants, APL expects competition to persist and intensify in the future, which could harm APL's business.

APL's competition could result in reduced volumes, reduced fees or the failure of the Achieve Loan Program to achieve or maintain more widespread market acceptance, any of which could harm APL's business.

If APL is unable to effectively compete with their competitors and meet the need for innovation, the use of the Achieve Loan Program could stagnate or substantially decline, which may reduce the resources available to APL and adversely affect the ability of APL to meet its various obligations under the Basic Documents, including APL's repurchase and indemnity obligations, which could adversely affect performance of the Notes.

APL may become subject to individual or class action litigation or arbitration by consumers and consumer protection groups.

Due to the consumer-oriented nature of the personal lending industry and the application of certain laws and regulations, industry participants are regularly named as defendants in litigation alleging violations of federal and state laws and regulations and consumer law torts, including fraud. See "*Risks Primarily Related to the Loans—Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement actions, any of which would adversely affect the Notes*" in this Private Placement Memorandum. Many of these actions involve alleged violations of consumer protection laws. The loan agreement for each Loan (other than those subject to the Military Lending Act) contains a mandatory arbitration provision, which precludes any form of a representative or class proceeding. The loan agreement's arbitration provision is intended to limit class litigation against the Partner Banks and APL while complying with applicable case law. To that end, the loan agreement's arbitration provision is designed to be substantively fair and customer-friendly, to prevent any credible allegation of overreaching. However, it is possible that a court could decline to enforce the arbitration clause, in which case litigation against the applicable Partner Bank and/or APL could proceed in court including as a class action.

A significant judgment or judgments against APL in connection with individual or class action litigation could have a material adverse effect on APL's financial condition or results of operations or the ability of APL to perform its obligations under the Basic Documents.

Obligations of APL are subject to its financial and operational ability to fulfill them.

APL has obligations arising from representations and warranties, and certain other contractual obligations related to the sale or servicing of the Loans, including the obligation to repurchase Loans from the Grantor Trust in certain limited circumstances, the obligation of APL, as Servicer, to service the Loans, the obligation of the Servicer to pay the fees, expenses and indemnities of the Servicing Account Bank associated with the Servicing Collection Account, and the obligation of APL to provide indemnification under certain circumstances to the Grantor Trust. In addition to its obligations to the Grantor Trust, APL has additional obligations as a servicer to other lenders and other third parties. The aggregate outstanding principal amount of Achieve Loans for which APL has undertaken these repurchase indemnity obligations greatly exceeds the available assets of APL to satisfy these obligations. Should the actual liabilities of APL with respect to these contingent obligations be greater than expected, APL may not have sufficient assets to satisfy such liabilities. In the event of any financial or other inability of APL to fulfill its obligations in respect of the Loans, payments on the Notes could be adversely affected. See "*Description of the Basic Documents—Servicing"* and *"—Servicer Events of Default and Termination*" in this Private Placement Memorandum.

The Achieve Loan Program and APL's internal systems rely on software that is highly technical, and if it contains undetected errors, APL's business could be adversely affected.

The Achieve Loan Program and APL's internal systems rely on software that is highly technical and complex. In addition, the Achieve Loan Program and APL's internal systems depend on the ability of such software to store, retrieve, process and manage immense amounts of data. The software on which APL relies has contained, and may now or in the future contain, errors or bugs. Some errors may only be discovered after the code has been released for external or internal use. Errors or other design defects within the software on which APL relies may result in a negative experience for borrowers who use the Achieve Loan Program, delay introductions of new features or enhancements, result in errors or compromise APL's ability to protect borrower or investor data or APL's intellectual property. Any errors, bugs or defects discovered in the software on which APL relies could negatively impact operations of the Achieve Loan Program and the ability of APL to perform its obligations with respect to the Loans and may adversely affect payments on the Notes.

There continues to be uncertainty as to how the actions of the Bureau, the FDIC, the OCC and other Governmental Authorities could impact APL's business or that of the Partner Banks.

The Bureau, which commenced operations in July 2011, has broad authority over the businesses in which APL engages. This includes authority to write regulations under federal consumer financial protection laws, such as the Truth in Lending Act and the Equal Credit Opportunity Act, and to enforce those laws against and examine large financial institutions for compliance. The Bureau is authorized to prevent "unfair, deceptive or abusive acts or practices" through its regulatory, supervisory and enforcement authority. To assist in its enforcement, the Bureau maintains an online complaint system that allows consumers to log complaints with respect to various consumer finance products, including the loan products facilitated by the Achieve Loan Program. This system could inform future Bureau decisions with respect to its regulatory, enforcement or examination focus.

APL is subject to the Bureau's jurisdiction, including its enforcement authority, as a marketer and servicer of consumer credit. The Bureau may request reports concerning APL's organization, business conduct, markets and activities. The Bureau may also conduct on-site examinations of APL's business on a periodic basis if the Bureau were to determine, through its complaint system that APL was engaging in activities that pose risks to consumers. In addition, the Bureau had indicated that it may adopt a rule under which larger participants in the market for installment lending would become subject to the Bureau's supervisory jurisdiction. Further, the Bureau in 2022 communicated it will begin utilizing a provision of the Dodd-Frank Act that permits it to subject a non-bank to the Bureau's supervisory jurisdiction if the company "is engaging, or has engaged, in conduct that poses risks to consumers with regard to the offering or provision of consumer financial products or services" and the Bureau promulgated a regulation with regard to such designations. If APL were to become subject to the Bureau's supervisory jurisdiction, then the Bureau would have authority to conduct examinations of APL's business. See "*Regulatory enforcement action by the Bureau, or*

other governmental regulatory actions, against FDR or a Law Firm Provider may adversely affect APL and its business."

There continues to be uncertainty as to how the Bureau's strategies and priorities, including in both its examination and enforcement processes, will impact APL's businesses and the results of its operations going forward. On September 30, 2021, Rohit Chopra was confirmed as the new Bureau Director. He has adopted, and is likely to continue to adopt, different sets of policies and priorities for the Bureau than under the previous administration. A senior official at the Bureau has commented that the Bureau is looking at consumer protection concerns with certain loans originated in programs involving relationships between banks and lending platforms. Such new policies and priorities and related actions by the Bureau could result in requirements to alter or cease offering certain loan products and services, making them less attractive and restricting APL's ability to offer them, or could lead to increase enforcement action by the Bureau with respect to existing Achieve Loan Program or activities of APL or its affiliates. At the end of 2022 and the beginning of 2023, the Bureau proposed two new regulations that would require certain non-bank financial services companies to make submissions to the Bureau for inclusion in an online public registry. The first such proposed regulation would require most non-bank financial services companies to submit to the Bureau consent orders or other non-supervisory orders with or issued by a federal, state, or local regulator or a court in connection with an action by a federal, state, or local regulator. The second such proposed regulation requires Bureau supervised non-bank financial services companies to submit consumer contract terms that limit consumers' legal rights and remedies, such as mandatory arbitration provisions. Under both regulations, the Bureau would publish online information it receives from non-bank financial services companies. If APL were required to make such submissions to the Bureau, it could increase the risk of enforcement or supervisory action by Bureau or that a Partner Bank could change the terms of its consumer credit contracts.

APL, as a service provider to Cross River Bank and Pathward with respect to the Achieve Loan Program, is subject to the FDIC's and OCC's jurisdiction. See "*Regulatory enforcement action by FDIC against APL may adversely affect APL and its business.*"

The Sponsor, as sponsor of securitization transactions, including that described in this Private Placement Memorandum, is subject to the SEC's jurisdiction, including its enforcement authority. The SEC may request documents or reports concerning the Sponsor's participation in securitization transactions or its business generally.

Actions by the Bureau, SEC, FDIC, OCC or other regulators or other Governmental Authorities against APL, issuing banks (such as Cross River Bank or Pathward) or APL's competitors that discourage the use of the Achieve Loan Program's origination and funding model or suggest to consumers the desirability of other loan products or services could adversely affect the performance of the Achieve Loan Program and the loans facilitated through the Achieve Loan Program, including the Loans. The potential adverse effects of such regulatory actions may include, but are not limited to, regulatory determinations that render the loans facilitated by the Achieve Loan Program unenforceable in accordance with their original terms, or an inability to operate the Achieve Loan Program as currently operated, including with respect to loans previously facilitated by the Achieve Loan Program, such as the Loans.

In addition, such regulatory actions could result in reputational harm to APL and a loss of borrowers or investors participating in the Achieve Loan Program, and APL's compliance costs and litigation exposure could increase materially if the Bureau, SEC or other regulators enact new regulations, change regulations that were previously adopted, modify, through supervision or enforcement, past regulatory guidance, or interpret existing regulations in a manner different or stricter than have been previously interpreted, any of which could adversely affect ability of APL to perform its obligations under the Basic Documents.

Regulatory enforcement action by FDIC against FFAM, which also does business as APL, may adversely affect APL and its business.

On March 22, 2018, FFAM, which also does business as APL, and Cross River Bank entered into separate consent agreements with the Federal Deposit Insurance Corporation ("FDIC") with respect to the Achieve Loan Program. The FDIC subsequently issued consent orders on March 28, 2018.

The consent orders pertain primarily to the Achieve Acceleration Loan program. At the time, Achieve Acceleration Loans were offered exclusively to debt settlement clients of Freedom Debt Relief, LLC ("FDR"), an

affiliate of APL, which negotiates settlements of debts with creditors on behalf of consumers overburdened by debt. Achieve Acceleration Loans provide a means to accelerate FDR's debt-resolution process by providing readily available funds for settlements reached by FDR.

FFAM's consent order (the "FFAM Consent Order") stated that the FDIC has jurisdiction over FFAM as an institution-affiliated party of Cross River Bank under the Federal Deposit Insurance Act. It provided that materials given to consumers in the Achieve Acceleration Loan program between June 26, 2013 and March 28, 2018 ("Eligible Consumers") contained certain misleading information, including: (i) misrepresentations of the length of time it would take FDR to settle identified consumer debts under the Achieve Acceleration Loan program; (ii) failures to disclose to consumers that certain creditors do not negotiate directly with FDR, or that FDR will not be able to negotiate debts with those creditors unless the debts had been charged off and either sold to a third-party or referred to a third-party collector; (iii) improperly requiring Eligible Consumers to negotiate debts on their own or with coaching from FDR and charging settlement fees for such settlements; (iv) failing to disclose clearly and conspicuously to Eligible Consumers the essential loan terms at the time the consumer signed the loan agreement, including the amount the consumer was agreeing to borrow, the periodic payment, or the term over which the loan was to be repaid; and (v) engaging in misleading telemarketing by not clearly stating at the outset of the call that the purpose of the call was to solicit a loan. The FFAM Consent Order also stated that FFAM violated the Electronic Funds Transfer Act and Regulation E by requiring consumers who obtained an Achieve Acceleration Loan or an Achieve Personal Loan to repay their loans by preauthorized electronic funds transfers.

Without admitting any violation of law, under the FFAM Consent Order, FFAM agreed to (i) correct all violations of law alleged in the order and implement policies, processes and procedures to prevent their recurrence, (ii) add certain disclosures to Achieve Acceleration Loan materials, (iii) refrain from making certain misrepresentations and omissions to consumers, and (iv) take all actions necessary to comply with limitations on unfair or deceptive acts under Section 5 of the Federal Trade Commission Act. In addition, the FFAM Consent Order required APL to take steps to provide "restitution" to impacted consumers and to pay a $493,000 civil monetary penalty.

All required restitution payments were provided to consumers and FFAM paid the civil monetary penalty. FFAM worked with the FDIC as it monitored the restitution process and the steps taken by APL to comply with the FFAM Consent Order. On January 19, 2021, the FDIC issued an order terminating the FFAM Consent Order. Although the FFAM Consent Order has been terminated, there is a risk that the FDIC could bring further enforcement actions against FFAM for alleged violations of law with respect to the Achieve Loan Program.

Regulatory enforcement action by the Bureau, or other governmental regulatory actions, against FDR or a Law Firm Provider may adversely affect APL and its business.

On November 8, 2017, the Bureau filed a complaint against FDR and FDR's co-chief executive officer, Mr. Andrew Housser ("Mr. Housser"), in the United States District Court for the Northern District of California (Case No. 3:17-cv-6484) (the "FDR Complaint") alleging that FDR engaged in deceptive conduct in violation of the Consumer Financial Protection Act (the "CFPA"), the Telemarketing and Consumer Fraud and Abuse Prevention Act, and the Telemarketing Sales Rule promulgated by the Federal Trade Commission. In particular, the FDR Complaint alleged that FDR: (i) told consumers that FDR could negotiate all of the consumers' debts despite knowing that certain creditors would not negotiate with it; (ii) told consumers it would only charge settlement fees if it successfully settled the debt for the consumers, but imposed such fees when the consumer had negotiated a settlement on his or her own behalf or in circumstances when a creditor stopped collecting debts from a consumer in the absence of a binding settlement; (iii) told consumers to mislead their creditors when asked about their enrollment in a debt-settlement program; and (iv) failed to disclose truthfully, in a clear and conspicuous manner, before consumers consent to pay for debt settlement services, that the consumers own the funds held in the dedicated accounts into which consumers place savings for settlements (a "Settlement Account"), that the consumers may withdraw those amounts at any time without penalty, and that, if the consumers withdraw, they must receive all funds in the accounts other than funds earned for debt-settlement services.

On July 7, 2019, the Bureau, FDR, and Mr. Housser entered into a joint stipulation and a proposed Stipulated Final Judgment and Order (collectively, the "FDR Consent Order") in settlement of the FDR Complaint. The FDR Complaint was dismissed with prejudice as to Mr. Housser. No penalties were imposed on him and he is not subject

to any order requiring, prohibiting, or limiting any action or activities (except to the extent requirements, prohibitions, and limitations imposed on FDR also apply to its officers, agents, employees etc. generally).

Without admitting or denying any allegations in the FDR Complaint (other than as to jurisdiction), in connection with the FDR Consent Order, FDR agreed to, and the court ordered FDR to, pay certain restitution and monetary penalties and take certain remedial actions, including refraining from misrepresenting FDR's ability to settle a consumer's debts and charging settlement fees when a debt is resolved without a settlement with the creditor. The order also requires FDR to make certain disclosures in materials provided to consumers, and prohibits FDR from requesting or receiving fees in certain cases.

In addition, the FDR Consent Order required FDR to pay $20,000,000 to the Bureau for the purpose of providing restitution to affected consumers and an additional $5,000,000 civil money penalty to the Bureau, of which $493,500 was required to be remitted in light of the civil money penalty under the APL Consent Order. FDR has paid these amounts to the Bureau.

In addition, the FDR Consent Order required FDR to submit a redress and compliance plan to, among other things, ensure compliance with the FDR Consent Order. FDR submitted the required redress and compliance plan on September 9, 2019. FDR received a notice of non-objection from the Bureau on January 21, 2020, based on the latest updates to the redress and compliance plan submitted on January 6, 2020.

There is a risk that the Bureau or other regulators or other Governmental Authorities could bring further enforcement actions against FDR should FDR fail to comply fully with the FDR Consent Order or for alleged violations of law unrelated to the FDR Consent Order.

In addition to providing debt settlement services to consumers who have difficulty managing their debt obligations or have experienced financial hardship, FDR is also retained by law firms that provide legal services (including, but not limited to, the administration of debt settlement and lawsuit representation) to consumers, which consumers may be screened, and introduced to the Law Firm Providers, by FDR (such law firms that retain FDR, "Law Firm Providers").

There is a risk that the FDR Consent Order, other government or regulatory actions against FDR or a Law Firm Provider and changes to FDR's or a Law Firm Provider's practices made to comply with that order or other orders could adversely affect FDR's or such Law Firm Provider's business, which in turn could reduce volumes or profitability under the Achieve Acceleration Loan program. Given their dependence on the Achieve Acceleration Loan program for income, such reductions could adversely affect APL's business.

The regulatory framework for marketplace lending is evolving and uncertain as federal and state governments consider new laws to regulate marketplace lending. New laws and regulations, including taxes on services provided by marketplace lending platforms, as well as continued uncertainty regarding potential new laws or regulations, may negatively affect APL's business.

The regulatory framework for marketplace lending platforms is evolving and uncertain. While APL does not consider the Achieve Loan Program to be a marketplace lending platform, this regulation may nonetheless apply to the Achieve Loan Program. It is possible that new laws and regulations will be adopted in the United States (including state and local laws) and internationally, or existing laws and regulations may be interpreted in new ways, that would affect the operation of the Achieve Loan Program and the way in which it interacts with borrowers and investors.

In December 2016, the OCC announced that it planned to issue special purpose bank charters to qualified financial technology companies. This action was challenged by the Conference of State Bank Supervisors ("CSBS") in United States District Court for the District of Columbia (*CSBS v. OCC* (Case No. 18-cv-2449)), but it was dismissed as premature. On July 31, 2018, the OCC announced that it would accept applications for a special purpose national bank charter from nondepository financial technology companies. The New York Department of Financial Services ("DFS") filed a challenge to the OCC's authority to issue such charters in the United States District Court for the Southern District of New York (*Lacewell v. OCC* (Case No. 18 Civ. 8377)). In September 2019, the United States District Court issued a decision in the case brought by DFS, holding that the OCC cannot

offer special purpose national bank charters to financial technology companies. The United States Court of Appeals reversed that ruling in June 2021, concluding that the Department of Financial Services lacked standing and its claims were not ripe for adjudication. In December 2020, the CSBS filed another lawsuit challenging the OCC's authority to issue special purpose charters in the United States District Court for the District of Columbia (*CSBS v. OCC* (Case No. 1:20-cv-03797)). That case was stayed and subsequently voluntarily dismissed by the CSBS.

As discussed above under *"—Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement actions, any of which would adversely affect the Notes*," the OCC and the FDIC adopted new regulations that address the applicability of federal preemption to loans that are originated by banks and then sold. Both the FDIC and the OCC stated that their rules are not intended to address the determination of the true lender of a loan. However, on October 30, 2020, the OCC finalized a regulation to determine when a national bank or Federal savings association makes a loan and is the "true lender" in the context of a partnership between a bank and a third party, such as a marketplace lender. This rule provided that a bank makes a loan if, as of the date of origination, it is named as the lender in the loan agreement or funds the loan. On June 30, 2021, the President signed a joint resolution of Congress passed under the Congressional Review Act that rescinds the OCC's true lender rule, the effect of which is the same as if the rule had never been enacted. See "*Risks Primarily Related to the Loans—Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement actions, any of which would adversely affect the Notes*" in this Private Placement Memorandum for additional information regarding the "true lender" issue.

The cost and complexity to comply with new laws or regulations and increased regulatory scrutiny could be significant and result in the need to modify APL's operations and increase its operating expenses, which may have an adverse impact on the ability of APL to perform its obligations under the Basic Documents and the performance of the Achieve Loan Program, and accordingly, the performance of the Notes.

In addition, in June 2023, Colorado enacted a law that opts Colorado out of the Depository Institutions Deregulation and Monetary Control Act of 1980 ("DIDMCA"), which has the intended effect of preventing out of state, state-chartered banks, such as Cross River Bank, from originating loans at interest rates that are higher than the Colorado state usury cap of 21% to Colorado residents. This law was expected to take effect on July 1, 2024. In response to a federal lawsuit brought by several industry trade groups challenging certain aspects of the Colorado law, on June 20, 2024 a federal court has granted a preliminary injunction that prevents Colorado from enforcing the law against out-of-state chartered banks that are members of the respective industry trade groups (including Cross River Bank) from making loans to Colorado residents. Though the Loans will not include any loans made to borrowers who were Colorado residents at the time of their Loan application, no assurance can be given as to the outcome of this litigation or its impact. Iowa and Puerto Rico also have exercised this opt out. If other states or jurisdictions adopt similar legislation, it may limit the interest rates that could be charged on new loans made in such states by state chartered banks such as Cross River Bank.

Additional legislative, regulatory and governmental scrutiny of the marketplace lending industry in general may now exist or occur in the future. This scrutiny may result in laws and regulations which may create uncertainty in the online marketplace lending industry and create other unknown risks. It is not clear whether and when any related legislation or regulation will go into effect, or the impact it may have on APL's business and the performance by APL and the other transaction parties. Any such new legislation or regulation may adversely affect the value or marketability of the Notes.

LIBOR has been discontinued as a floating rate benchmark; the LIBOR discontinuation has affected and will continue to affect financial markets generally and may also affect APL's operations, finances and investments specifically.

Most London Interbank Offered Rate ("LIBOR") settings have permanently ceased to be published. Three LIBOR settings continue to be published on a synthetic basis only (i.e., not on the basis of panel bank submissions); but all will have permanently ceased to be published by the end of September 2024. LIBOR was for many years the principal floating rate benchmark in the financial markets, and its discontinuation has affected and will continue to affect the financial markets generally, and may also affect the Sponsor's operations, finances and investments specifically.

In the United States, there have been efforts to identify alternative reference interest rates for U.S. dollar LIBOR. The cash markets have generally coalesced around recommendations from the Alternative Reference Rates Committee (the "ARRC"), which was convened by the Board of Governors of the Federal Reserve System and the Federal Reserve Bank of New York (the "FRBNY"). The ARRC has recommended that U.S. dollar LIBOR be replaced by rates based on the Secured Overnight Financing Rate ("SOFR") plus, in the case of existing LIBOR obligations, a spread adjustment. The derivatives markets are also expected to use SOFR-based rates to replace U.S. dollar LIBOR.

SOFR is a relatively new interest rate index and may not become widely established in the market or could eventually be eliminated. Further, the way that SOFR, including any market accepted adjustments to SOFR, is determined may change over time. SOFR is intended to be a broad measure of the cost of borrowing cash overnight collateralized by U.S. Treasury securities, and has been published by the FRBNY since April 2018. The FRBNY states on its publication page for SOFR that the use of SOFR is subject to important limitations and disclaimers, including that the FRBNY may alter the methods of calculation, publication schedule, rate revision practices or availability of SOFR at any time without notice. There is a risk that SOFR will not continue or that it will be altered. In contrast to other indices, SOFR may be subject to direct influence by activities of the FRBNY, which activities may directly affect prevailing SOFR rates in ways APL is unable to predict.

Resulting changes in the financial markets may adversely affect financial markets generally and may also adversely affect APL's operations specifically.

If APL is unable to maintain a relationship with its Partner Banks, its business will suffer.

APL relies on its Partner Banks to originate all Achieve Loans and to comply with various federal, state and other laws in connection with such origination activities. APL's agreements with each Partner Bank are non-exclusive and do not prohibit either Partner Bank from working with APL's competitors or from offering competing services. The CRB Bank Program Agreement has a term that expires on January 1, 2026, subject to three automatic two-year extensions unless either party thereto provides written notice of its intent not to extend at least 120 days prior to then current expiration date; provided, however, that the CRB Bank Program Agreement shall automatically terminate with respect to any loan program thereunder upon the termination of the last of all purchase agreements related to such program. The Pathward Program Agreement has an initial term that expires on December 16, 2024, subject to unlimited automatic two-year extensions unless either party thereto provides written notice of its intent not to extend at least 180 days prior to then current expiration date; provided, however, that APL has the right to terminate the Pathward Program Agreement with respect to any loan program thereunder upon the termination of the last of all purchase agreements related to such program. Any Partner Bank could condition the extension of the applicable program agreement upon revised economic terms that make working with it cost prohibitive, or it may enter into exclusive or more favorable relationships with APL's competitors. In addition, the Partner Banks may not perform as expected under the applicable program and purchase agreements. APL could in the future have disagreements or disputes with any Partner Bank, which could negatively impact or threaten their respective relationships.

Cross River Bank is subject to oversight by the FDIC and the State of New Jersey, and Pathward is principally subject to oversight by the OCC, and thus each must comply with complex rules and regulations, licensing and examination requirements, including requirements to maintain a certain amount of regulatory capital relative to its outstanding loans. As described above, in 2018, the FDIC issued consent orders against Cross River Bank and APL in connection with the Achieve Loan Program. See *"Regulatory enforcement action by FDIC against APL may*

adversely affect APL and its business." In the consent order against Cross River Bank (the "Bank Consent Order"), the FDIC ordered the bank to develop a plan to provide monetary restitution to certain borrowers of such loans, to cease violations of law and correct the violations of law identified by the FDIC, to address Board of Directors oversight of the banks' activities, to develop a compliance program and a third-party risk management program, and to pay a civil money penalty of $641,750. There is a risk that the Bank Consent Order could adversely impact the ability or willingness of Cross River Bank, or Pathward, to participate in the Achieve Loan Program.

APL is a service provider to Cross River Bank and Pathward, and as such, is subject to audit by Cross River Bank and Pathward in accordance with FDIC and OCC guidance related to management of third-party vendors. APL may also be subject to the examination and enforcement authority of the FDIC and OCC as a bank service company covered by the Bank Service Company Act. If any Partner Bank were to suspend or cease its operations or its relationship with APL were to otherwise terminate, APL would need to implement a substantially similar arrangement with another bank, obtain additional state licenses or curtail its operations. If APL needs to enter into alternative arrangements with a different bank, it may not be able to negotiate a comparable alternative arrangement. Transitioning loan originations to a new bank may result in disruptions to the Achieve Loan Program. If APL is unable to enter into an alternative arrangement with a different bank, it would need to obtain a state license in each state in which it operates in order to enable it to originate loans, as well as comply with other state and federal laws, which would be costly and time-consuming. In addition, APL may not be able to obtain some or all of the state licenses it would need to originate loans in such states. If APL is unsuccessful in maintaining its relationships with its Partner Banks, its ability to perform its obligations with respect to the Loans could be materially impaired, which in turn would adversely affect payments on the Notes.

If the security of Achieve Loan borrowers' confidential information stored in APL's systems is breached or otherwise subjected to unauthorized access, secure information may be stolen, APL's reputation may be harmed, and it may be exposed to liability.

The Achieve Loan Program stores Borrowers' bank information and other personally-identifiable sensitive data. Any accidental or willful security breaches or other unauthorized access could cause individuals' secure information to be stolen and used for criminal purposes. Security breaches or unauthorized access to secure information could also expose APL to liability related to the loss of the information, time-consuming and expensive litigation and negative publicity. APL employees who service Achieve Loans have generally been working remotely since March 2020, following the onset of the COVID-19 pandemic, and working in a remote environment could increase the risk of a security breach. If security measures are breached because of third-party action, employee error, malfeasance or otherwise, or if design flaws in the relevant software are exposed and exploited, and, as a result, a third party or disaffected employee obtains unauthorized access to any Achieve Loan borrowers' data, APL's relationships with its borrowers and investors will be severely damaged, and APL could incur significant liability. Because techniques used to obtain unauthorized access or to sabotage systems change frequently and generally are not recognized until they are launched against a target, APL and its third-party hosting facilities may be unable to anticipate these techniques or to implement adequate preventative measures. In addition, many states have enacted laws requiring companies to notify individuals of data security breaches involving their personal data. These mandatory disclosures regarding a security breach are costly to implement and often lead to widespread negative publicity, which may cause Achieve Loan borrowers and investors to lose confidence in the effectiveness of its data security measures. Any security breach, whether actual or perceived, would harm APL's reputation, and potentially impose significant costs on APL, all of which could impair APL's ability to effectively service the Loans and/or the ability of APL to repurchase Loans and otherwise make payments pursuant to its obligations under the Loan Transferor Purchase Agreement.

Negative publicity could cause reputational harm and adversely affect APL's business.

Negative publicity about APL, its Affiliates, any Law Firm Providers or other service providers or about competitors of APL or its Affiliates or others engaged in consumer lending, could adversely affect APL's reputation and the confidence in, and the use of, the Achieve Loan Program, which could harm APL's business, cause disruptions to the Achieve Loan Program and adversely affect ability of APL to perform its obligations under the Basic Documents. Such negative publicity and reputational harm can arise from many sources, including APL's or its Affiliates' employee misconduct, misconduct by its service providers or other counterparties or their service providers or other counterparties, misconduct by APL's competitors, including marketplace lending platforms, and others

engaged in consumer lending, misconduct by FDR, APL's Affiliate engaged in the debt settlement business, or by competitors of FDR, the inability of APL's or its Affiliates' service providers or other counterparties to meet minimum standards of service and quality, inadequate protection of borrower and investor information, lawsuits filed against APL or its Affiliates, any Partner Bank or competitors of APL or its Affiliates and compliance failures and claims. Any such reputational harm could further affect the behavior of Borrowers who have obtained Loans through the Achieve Loan Program, including to reduce the likelihood of such Borrowers making payments on their Loans.

Events beyond APL's control may damage its ability to maintain adequate records or perform the servicing obligations. If such events result in a system failure, the ability of the Issuer to make principal and interest payments on the Rated Notes, and distributions on the Class R Notes, would be substantially harmed.

If a catastrophic event resulted in a platform outage or physical data loss, APL's ability to perform its servicing obligations would be materially and adversely affected. Such events include, but are not limited to, fires, floods, hurricanes, tornadoes, earthquakes and other natural disasters, terrorist attacks, computer viruses and hacks and telecommunications, internet and computer systems failures. In addition, APL engages third-party vendors for storing backup records relating to the operation of the Achieve Loan Program, and such third-party vendors store that data in the cloud. If electronic data storage and backup data storage systems are affected by such events, APL's ability to perform its servicing obligations could be materially and adversely affected.

If APL is required to register under the Investment Company Act, its ability to conduct business could be materially adversely affected.

The Investment Company Act contains substantive legal requirements that regulate the manner in which "investment companies" are permitted to conduct their business activities. APL believes it has conducted its business, and intends to conduct its business, in a manner that does not result in being characterized as an investment company required to register under the Investment Company Act. If, however, APL is deemed to be an investment company required to register under the Investment Company Act, it may be required to institute burdensome compliance requirements and its activities may be restricted, which would materially adversely affect its business, financial condition and results of operations and thereby impair its ability to perform its obligations under the Basic Documents, including applicable indemnity obligations, purchase obligations and servicing obligations with respect to the Loans, as applicable. If APL were deemed to be an investment company required to register under the Investment Company Act, it may also attempt to seek exemptive relief from the SEC, which could impose significant costs and delays on its business and adversely affect its ability to service the Loans or repurchase Loans and otherwise make payments pursuant to its obligations under the Loan Transferor Purchase Agreement, and which, in turn, could materially and adversely affect payments on the Notes.

If APL were ever deemed to be in non-compliance with applicable investment adviser regulations, its ability to conduct business could be materially adversely affected.

APL is registered as an investment adviser with the SEC under the Investment Advisers Act of 1940 (the "Advisers Act"). The Advisers Act subjects investment advisers to a variety of regulatory filing and recordkeeping requirements, as well as certain requirements and prohibitions as to substantive activities. If APL were ever deemed to be in non-compliance with applicable investment adviser regulations, it could be subject to various penalties, including administrative or judicial proceedings that might result in censure, fine, civil penalties (including treble damages in the case of insider trading violations), the issuance of cease and desist orders or other adverse consequences. Any such penalties or actions could adversely affect APL's ability to perform its obligations under the Basic Documents, including applicable indemnity and purchase obligations and servicing obligations with respect to the Loans, and/or APL's ability to raise capital or to avoid withdrawals of capital, which could, in turn, adversely affect APL's ability to perform its obligations under the Basic Documents. Any such effects could materially and adversely affect payments on the Notes.

COMBINATION OR "LAYERING" OF MULTIPLE RISK FACTORS MAY SIGNIFICANTLY INCREASE THE RISK OF LOSS ON THE NOTES.

Although the various risks discussed in this Private Placement Memorandum are generally described separately, prospective investors in the Notes should consider the potential effects of the interplay of multiple risk

factors. Where more than one significant risk factor is present, the risk of loss to an investor may be significantly increased. In considering the potential effects of layered risks, prospective investors should carefully review the descriptions of the Loans and of the Notes.

[Remainder of page intentionally left blank.]

USE OF PROCEEDS

Net proceeds of the sale of the Notes by the Issuer will be used by the Issuer to pay a portion of the purchase price for the Loans to the Depositor, make a deposit into the Payment Account in an amount equal to the aggregate Unremitted Collections Amounts on the Loans determined as of the Closing Date and pay certain fees and expenses related to the transactions described in this Private Placement Memorandum. The Depositor will use the net cash proceeds of the purchase price received from the Issuer, and the Loan Seller Retained Notes and the Retaining Sponsor Retained Notes received from the Issuer, to pay the purchase price to the Loan Transferor for the Loans under the Depositor Purchase Agreement. The Loan Transferor will use the net cash proceeds of the purchase price received from the Depositor (plus certain other cash amounts), and the Loan Seller Retained Notes received from the Depositor, to pay the purchase price to APL for the Loans under the Loan Transferor Purchase Agreement. APL will use the net cash proceeds of the purchase price received from the Loan Transferor, and the Loan Seller Retained Notes received from the Loan Transferor, to pay the purchase price to the Loan Sellers for the Loans under the APL Purchase Agreements. The proceeds of the sale of the Loans by each Pass-Through Loan Seller will be paid to such Pass-Through Loan Seller and further distributed to Morgan Stanley, Barclays and/or CRB Securities or their respective affiliates, as applicable, as beneficiaries of the Pass-Through Loan Sellers.

[Remainder of page intentionally left blank.]

THE ISSUER

Limited Purpose and Limited Assets

The Issuer, ACHV ABS Trust 2024-2PL, a Delaware statutory trust, was formed on December 22, 2023. The Issuer will not be permitted to engage in any activity other than:

(a) to borrow money or issue notes, bonds or other securities (including the Notes) to finance the purchase of Loans for contribution to the Grantor Trust and the payment of the trust expenses, and to pledge all or a portion of its assets as collateral to secure any such borrowing or issuance; *provided* that no additional debt for borrowed money shall be incurred so long as the Indenture has not been satisfied and discharged or otherwise terminated in accordance with its terms;

(b) to form the Grantor Trust and to contribute Loans to the Grantor Trust on the Closing Date in exchange for the Grantor Trust Certificate and to act as the initial beneficiary of the Grantor Trust;

(c) to acquire, own, hold, manage, dispose of and otherwise deal with Loans, the Grantor Trust Certificate and related property;

(d) to execute and deliver any Issuer Trust Certificates pursuant to the Trust Agreement, and to issue or sell any Issuer Trust Certificates issued pursuant to the Trust Agreement;

(e) to open one or more deposit or securities accounts in the name of the Issuer and any other accounts as the Administrator deems necessary or appropriate to facilitate any of the foregoing or the performance of the Issuer's obligations under the Basic Documents or other activities of the Issuer, and, subject to the limitations set forth in the Trust Agreement, to invest amounts on deposit therein;

(f) to enter into, execute, deliver, issue (as applicable), grant powers of attorney pursuant to, exercise rights and perform its obligations under the Basic Documents and other agreements to which it is or is to be a party, is otherwise bound by, or is a beneficiary of, in each case as such Basic Documents and other agreements may be amended, restated, supplemented or otherwise modified from time to time in accordance with their respective terms; and

(g) to engage in those activities, including entering into, executing, delivering, exercising its rights and performing its obligations under such other agreements and other writings, and preparing disclosure and marketing documents, that are necessary or suitable to accomplish the foregoing or are incidental thereto or connected therewith.

The Issuer's principal offices are in care of Wilmington Savings Fund Society, FSB, a federal savings bank, as Owner Trustee, at 500 Delaware Avenue, 11th Floor, Wilmington, Delaware 19801, Attention: Corporate Trust Administration - ACHV ABS Trust 2024-2PL. The Issuer's fiscal year ends on December 31.

Capitalization and Property of the Issuer

The property of the Issuer will include the Grantor Trust Certificate, the rights as the Grantor Trust Certificateholder and all amounts on deposit in the Payment Account and the Reserve Fund.

The following table illustrates the expected capitalization of the Issuer as of the Closing Date, as if the issuance and sale of the Notes had taken place on such date (assuming no Exchange Notes are exchanged for Exchangeable Notes):

	Principal Amount
Class A Notes Outstanding Amount	$126,581,000
Class B Notes Outstanding Amount	$62,364,000
Class C Notes Outstanding Amount	$34,578,000
Class D Notes Outstanding Amount	$39,827,000
Initial Overcollateralization[(1)]	$45,384,746
Total:……..	$308,734,746

[(1)] Calculated based on the assumed Cutoff Date Pool Balance of approximately $308,734,746. The assumed Cutoff Date Pool Balance assumes a 3.86% amortization of the Loan Pool between the Statistical Cutoff Date and the Cutoff Date. The actual Cutoff Date Pool Balance may vary by up to 5% more or less than the assumed Cutoff Date Pool Balance.

For so long as the Indenture has not been terminated, the Issuer will not be permitted to issue any debt for borrowed money other than the Notes or issue any securities other than the Notes. Those Rated Notes and Class R Notes comprising a portion of the eligible vertical interest intended to be retained by the Retaining Sponsor or its majority-owned affiliate will be transferred to the Retaining Sponsor or its majority-owned affiliate. Certain Class R Notes may be sold to third-party investors, and the remaining Class R Notes will be further transferred to the Loan Sellers or their respective designees, in each case on the Closing Date. Such Notes (other than the Retaining Sponsor Retained Notes to be retained by the Retaining Sponsor or its majority-owned affiliate in satisfaction of the U.S. Risk Retention Rules for the period in which they are required to be retained) may subsequently be sold by the Retaining Sponsor or its majority-owned affiliate, the Loan Sellers or their Affiliates or other third-party investors.

The Issuer has taken steps in structuring the transaction contemplated hereby that are intended to make it unlikely that the voluntary or involuntary petition for relief by any Sponsor or the Depositor under any insolvency law will result in consolidation of the assets and liabilities of the Issuer or the Grantor Trust with those of such Sponsor or the Depositor. These steps include the creation of each of the Issuer and the Grantor Trust as a separate, limited-purpose trust pursuant to a trust agreement containing certain limitations (including restrictions on the nature of the Issuer's and the Grantor Trust's business and a restriction on the Issuer's ability to commence a voluntary case or proceeding with respect to the Issuer or the Grantor Trust under any insolvency law (a "Material Action") except at the direction of the Indenture Trustee, acting at the unanimous written direction of all of the Class R Noteholders (other than any Non-Voting Class R Noteholders), and the Owner Trustee). However, there can be no assurance that the activities of the Issuer and the Grantor Trust would not result in a court concluding that the assets and liabilities of the Issuer and the Grantor Trust should be consolidated with those of any Sponsor or the Depositor in a proceeding under any insolvency law. See "*Risk Factors – Risks Primarily Related to the Notes and the Issuer – Certain bankruptcy and insolvency matters may delay or reduce payments on the Loans or the Notes.*"

THE GRANTOR TRUST

Limited Purpose and Limited Assets

ACHV ABS Grantor Trust 2024-2PL, a Delaware statutory trust, formed by the Issuer, will own the Loans contributed to it by the Issuer, with legal title to such Loans vested in the Grantor Trust Trustee, will issue the Grantor Trust Certificate to the Issuer pursuant to the Grantor Trust Agreement and will grant a security interest in the Loans and related assets to the Indenture Trustee. Pursuant to Sections 3801 and 3810(a)(2) of the Delaware Statutory Trust Act, the Grantor Trust will not constitute a separate legal entity. The Grantor Trust shall not engage in any activity other than:

(a) to acquire the Loans and related assets on the Closing Date, pursuant to the Grantor Trust Contribution Agreement, and to own, hold, manage, dispose of and otherwise deal with the Loans and its other assets;

(b) to pledge the Loans and its other assets as collateral to secure the obligations of the Issuer under the Notes and the Basic Documents;

(c) to execute, deliver and issue the Grantor Trust Certificate pursuant to the Grantor Trust Agreement;

(d) to hold, manage and distribute funds to the Grantor Trust Certificateholder pursuant to the Grantor Trust Agreement;

(e) to open one or more deposit or securities accounts in the name of the Grantor Trust and any other accounts as the Grantor Trust Certificateholder deems necessary or appropriate to facilitate the acquisition of the Loans, the servicing of the Loans, the investment of cash proceeds from the Loans (subject to certain restrictions under the Grantor Trust Agreement) the performance of the Grantor Trust's obligations under the Basic Documents or other activities of the Grantor Trust;

(f) to enter into, execute, deliver, issue (as applicable), grant powers of attorney pursuant to, and exercise rights and perform its obligations under the Basic Documents and other agreements to which it is or is to be a party, is otherwise bound by, or is a beneficiary of, in each case as such Basic Documents and other agreements may be amended, restated, supplemented or otherwise modified from time to time in accordance with their respective terms; and

(g) to engage in those activities, including entering into, executing, delivering, exercising its rights and performing its obligations under such other agreements and other writings and documents, that are necessary or suitable to accomplish the foregoing or are incidental thereto or connected therewith.

The Grantor Trust's principal offices are in care of Wilmington Savings Fund Society, FSB, as Grantor Trust Trustee, at 500 Delaware Avenue, 11th Floor, Wilmington, Delaware 19801, Attention: Corporate Trust Administration - ACHV ABS Grantor Trust 2024-2PL.

Property of the Grantor Trust

The Grantor Trust will own a pool of unsecured consumer loans consisting of Achieve Personal Loans that were originated by a Partner Bank within the Achieve Loan Program and will be contributed to the Grantor Trust through a series of transactions to occur on the Closing Date, as further described under "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum. The Loans and related rights will be the Grantor Trust's principal assets. The acquisition of such Loans by APL, their transfer to the Loan Transferor, their transfer to the Depositor, their transfer to the Issuer and their subsequent contribution to the Grantor Trust are described under "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum. In addition to the Loans, the property of the Grantor Trust will include all of the Grantor Trust's right, title and interest in and to the other Purchased Loan Assets and its rights under the Basic Documents.

Beneficial Ownership Interest in the Grantor Trust

The Grantor Trust will issue an undivided beneficial ownership interest in the Grantor Trust to the Issuer in the form of the Grantor Trust Certificate, which will be pledged by the Issuer to the Indenture Trustee for the benefit of the Secured Parties pursuant to the Indenture. The Grantor Trust Certificate will represent 100% of the undivided beneficial ownership interest in the Grantor Trust.

THE SPONSORS

APL

Freedom Financial Asset Management, LLC, d/b/a Achieve Personal Loans ("APL") is a sponsor of the transaction contemplated by this Private Placement Memorandum. APL will acquire the Loans from the Loan Sellers pursuant to the APL Purchase Agreements and transfer the Loans to the Loan Transferor pursuant to the Loan Transferor Purchase Agreement. APL will also be the Servicer of the Loans and will be the Administrator of the Issuer

and the Grantor Trust and can only be removed from its capacity as Administrator for cause by the Indenture Trustee at the written direction of the Required Class R Noteholders. The Depositor is a wholly owned subsidiary of APL. In addition, APL is the managing member of Series B, a series of Freedom Consumer Credit Fund, LLC ("Series B"), which is the indirect parent of the Series B Loan Seller). APL's principal offices are located at 1875 So. Grant Street – Suite 400, San Mateo, CA 94402.

In connection with the conveyance of the Loans, APL will make certain representations and warranties for the benefit of the Loan Transferor and will agree to certain repurchase and indemnity obligations pursuant to the Loan Transferor Purchase Agreement, and through a series of assignments under the applicable Transfer Agreements, the Loan Transferor will indirectly assign its rights with respect to such representations and warranties to the Grantor Trust, as further described under "*Description of the Loans—Loan Level Representations*" and "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum. However, neither Sponsor nor any of their Affiliates will insure or guarantee payments on the Notes. The Noteholders will have no rights or remedies against the Sponsors or any of their Affiliates (other than the Issuer and Grantor Trust as described herein) for any losses or other claims in connection with the Notes or the Loans except in respect of the limited obligations of APL to repurchase Loans and indemnify with respect to which representations and warranties made in the Loan Transferor Purchase Agreement have been breached.

The issuance of the Notes is the first securitization sponsored by APL of unsecured consumer loans originated through the Achieve Loan Program (formerly known as the Freedom loan program). The following table contains a summary of prior Achieve Loan Program securitization transactions for which Series B acted as sponsor. APL is the managing member of Series B.

Issuer	Issuance Date	Notes Issuance Amount	Type of Loan Collateral
FREED ABS Trust 2018-1	June 20, 2018	$270,000,000	Achieve Acceleration Loans and Achieve Personal Loans
FREED ABS Trust 2018-2	October 18, 2018	$383,500,000	Achieve Acceleration Loans and Achieve Personal Loans
FREED ABS Trust 2019-1	May 1, 2019	$408,350,000	Achieve Acceleration Loans and Achieve Personal Loans
FREED ABS Trust 2019-2	October 17, 2019	$518,700,000	Achieve Acceleration Loans and Achieve Personal Loans
FREED ABS Trust 2020-1	January 30, 2020	$340,770,000	Achieve Personal Loans only
FREED ABS Trust 2020-2CP	May 20, 2020	$188,560,000	Achieve Acceleration Loans only
FREED ABS Trust 2020-3FP	July 29, 2020	$198,050,000	Achieve Personal Loans only
FREED ABS Trust 2021-1CP	February 10, 2021	$186,500,000	Achieve Acceleration Loans only
FREED ABS Trust 2021-2	May 14, 2021	$273,237,000	Achieve Acceleration Loans and Achieve Personal Loans
FREED ABS Trust 2021-3FP	September 29, 2021	$230,490,000	Achieve Personal Loans only
FREED ABS Trust 2022-1FP	January 26, 2022	$232,890,000	Achieve Personal Loans only
FREED ABS Trust 2022-2CP	April 5, 2022	$204,930,000	Achieve Acceleration Loans only
FREED ABS Trust 2022-3FP	July 7, 2022	$323,550,000	Achieve Personal Loans only
FREED ABS Trust 2022-4FP	October 27, 2022	$283,150,000	Achieve Personal Loans only
ACHV ABS Trust 2023-1PL	January 31, 2023	$244,780,000	Achieve Personal Loans only
ACHV ABS Trust 2023-2PL	April 13, 2023	$191,240,000	Achieve Personal Loans only
ACHV ABS Trust 2023-3PL	August 3, 2023	$214,510,000	Achieve Personal Loans only
ACHV ABS Trust 2023-4CP	October 27, 2023	$157,618,000	Achieve Acceleration Loans only
ACHV ABS Trust 2024-1PL	March 18, 2024	$200,730,000	Achieve Personal Loans only

Recent Developments

On May 31, 2024, Ralph Leung resigned as the Chief Financial Officer of FFAM and as the Chief Financial Officer of Freedom Financial Network Funding, LLC ("FFNF"), APL's parent company. Following Mr. Leung's departure, his responsibilities have been split among Ajit Marathe, who joined APL and FFNF on May 28th, 2024 as Senior Vice President, Finance, and other members of existing management teams of APL and FFNF.

Retaining Sponsor

Jefferies LLC ("Jefferies") is a sponsor (the "Retaining Sponsor") of the transaction described in this Private Placement Memorandum and will be the Structuring Agent and an Initial Purchaser. JACV, a Delaware Statutory Trust (the "Loan Transferor") is wholly owned by Jefferies Funding LLC and is an Affiliate of Jefferies. The Loan Transferor will also acquire the Loans from APL pursuant to the Loan Transferor Purchase Agreement and will transfer the Loans to the Depositor pursuant to the Depositor Purchase Agreement on the Closing Date. Jefferies's principal offices are located at 520 Madison Avenue, New York, New York 10022. The Retaining Sponsor or its majority-owned affiliate will hold the Retaining Sponsor Retained Notes in order to comply with the U.S. Risk Retention Rules as more fully described in "*U.S. Credit Risk Retention*" in this Private Placement Memorandum.

THE LOAN TRANSFEROR

The Loan Transferor is an Affiliate of Jefferies. The Loan Transferor was formed as a Delaware statutory trust on August 7, 2024. The Loan Transferor's trust agreement provides that the Loan Transferor is organized for the limited purposes of acquiring, owning, holding, selling, contributing, transferring, delivering, assigning, pledging and otherwise dealing with secured and unsecured consumer loans and receivables and other securities, directly or indirectly securitizing such loans and receivables, and engaging in other actions that are incidental thereto and necessary or convenient therefor. The Loan Transferor's principal offices are c/o Wilmington Trust, National Association 1100 North Market Street, Wilmington, DE 19890-0001, Attn: Corporate Trust Administration. The Loan Transferor will acquire the Loan Seller Retained Notes and the Retaining Sponsor Retained Notes on the Closing Date, and will further distribute the Retaining Sponsor Retained Notes to the Retaining Sponsor or its majority-owned affiliate on the Closing Date and further transfer the Loan Seller Retained Notes to APL for further transfer to the applicable Loan Sellers on the Closing Date.

THE DEPOSITOR

The Depositor is a wholly owned limited purpose subsidiary of APL. The Depositor was formed as a statutory trust in the State of Delaware on July 31, 2024. The Depositor Trust Agreement provides that the Depositor is organized for the limited purposes of acquiring, owning, holding, selling, contributing, transferring, delivering, assigning, pledging and otherwise dealing with secured and unsecured consumer loans and receivables and other securities, directly or indirectly securitizing such loans and receivables, and engaging in other actions that are incidental thereto and necessary or convenient therefor. The Depositor may act as depositor for future securitizations sponsored by the APL or its Affiliates. The Depositor's principal offices are in care of Wilmington Savings Fund Society, FSB, a federal savings bank, as Depositor Trustee, at 500 Delaware Avenue, 11th Floor, Wilmington, Delaware 19801; Attention: Corporate Trust Administration - ACHV ABS Master Depositor Trust. The Depositor will initially acquire the Loan Seller Retained Notes and the Retaining Sponsor Retained Notes on the Closing Date and will further transfer the Loan Seller Retained Notes and the Retaining Sponsor Retained Notes to the Loan Transferor on the Closing Date.

THE SERVICER

In September 2022, Freedom Financial Network Funding, LLC ("FFNF"), the parent of FFAM, announced the launch of its re-branding to Achieve. Subsequently, FFNF, FFAM and their respective affiliates progressively transitioned their business operations and external marketing to the Achieve brand. Beginning December 2022, FFAM became also known as "Achieve Personal Loans" (defined herein as "APL") and the FreedomPlus (F+) loan product became the "Achieve Personal Loan" loan product. Beginning November 2023, the Consolidation Plus (C+) loan product became the "Achieve Acceleration Loan" loan product. APL will act as the Servicer of the Loans pursuant to the Servicing Agreement. APL has serviced the Loans since their origination. APL currently services only Achieve Loans; however, APL may service other types of loans in the future.

The Servicer generally uses an automated process for collecting scheduled loan payments from borrowers via an ACH debit process. Borrowers may elect to opt into ACH debits during origination, and may change such election at any time thereafter. Payments may also be made by check, money transfer or other means. The Servicer's customer service team handles administrative requests and other inquiries received from borrowers, including updating borrower contact information and billing information, responding to borrower communications, issuing

payoff and loan paid in full letters and processing requests to make scheduled loan payments via check, money transfer or other non-ACH methods. The Servicer employs a strategy to optimize collections on delinquent and defaulted loans that includes outbound phone calls, collection letters, emails, texts and alternate contact channels, and may include workout or recovery programs. See *"The Achieve Loan Program – Servicing Policies"* below.

Under the Servicing Agreement, the Servicer will be required to provide any and all cooperation requested by the Administrator in order to assist the Administrator in furnishing the Monthly Report for each Distribution Date to the Grantor Trust, the Paying Agent, the Backup Servicer, the Loan Data Agent and each Rating Agency, and collecting payments on the Loans.

Under the applicable Bank Purchase Agreement, APL, as servicer of the Loans originally for the applicable Partner Bank, made certain limited representations and warranties with respect to each of the Loans, other than the CRB Retained Loans, upon its original sale under such Bank Purchase Agreement. APL will make similar representation and warranties with respect to the CRB Retained Loans in the Loan Transferor Purchase Agreement. APL is obligated to repurchase any Loan upon the breach of any such representations and warranties that materially and adversely affects the interests of the purchaser thereof, unless APL cures or corrects such breach (in the case of a portion of the Loans, in all material respects) within the applicable cure period ranging from thirty (30) to ninety (90) days from the earlier of its discovery or its receipt of notice thereof. In addition, APL is obligated to indemnify the applicable Partner Bank and the purchaser and hold each of them harmless against any losses based on, grounded upon, or resulting from a breach of the foregoing representations and warranties. Such representations and warranties, and associated repurchase and indemnity remedies to APL, with respect to the Loans will be assigned to the Grantor Trust on the Closing Date.

For information regarding the servicing duties of the Servicer, the servicing fees and the Servicer's resignation and termination, see "*Description of the Basic Documents—Servicing—Backup and Successor Servicing*" in this Private Placement Memorandum.

THE BACKUP SERVICER

WTNA will act as the Backup Servicer for the benefit of the Grantor Trust pursuant to the Backup Servicing Agreement. See "*The Trustees—The Indenture Trustee*" for more information about WTNA. On the Closing Date, the Grantor Trust, the Servicer, and the Backup Servicer will enter into the Backup Servicing Agreement, which will obligate the Backup Servicer to perform certain backup servicing and successor servicing duties for the benefit of the Grantor Trust with respect to the Loans in accordance with the Backup Servicing Agreement (the "Backup Servicing Agreement"). Under the Backup Servicing Agreement, the Backup Servicer will be entitled to appoint a Backup Servicer Subcontractor to perform the duties and obligations of the Backup Servicer, including providing the backup servicing services and the successor servicing services under the Backup Servicing Agreement. Generally, the use of a Backup Servicer Subcontractor will not relieve the Backup Servicer of any of its obligations under the Backup Servicing Agreement; provided, however, that the Backup Servicer will be entitled to appoint its Backup Servicer Subcontractor to directly become the Successor Servicer in which case the Backup Servicer will incur no liability for such appointment or any acts or omission of such Backup Servicer Subcontractor, solely with respect to such Backup Servicer Subcontractor's role as Successor Servicer, and shall have no responsibility to monitor or supervise such Backup Servicer Subcontractor or any of such Backup Servicer Subcontractor's agents, attorneys, custodians or nominees in the performance of the duties to be performed by such Backup Servicer Subcontractor as Successor Servicer as of the effective date of such appointment. Upon acceptance of appointment as Successor Servicer, the Backup Servicer Subcontractor will join as a party to the Backup Servicing Agreement and be liable directly for the obligations of the Successor Servicer under the Backup Servicing Agreement arising on and after the time of the Backup Servicer Subcontractor's acceptance of such appointment as Successor Servicer. The Backup Servicer has not participated in the preparation of and assumes no responsibility for this Private Placement Memorandum and has not reviewed or undertaken to verify any information contained herein.

For information regarding (i) the transfer of servicing duties to the Backup Servicer (or its appointed Backup Servicer Subcontractor), the expenses associated with a servicing transfer and the Backup Servicer's fees and indemnities (including any of a Successor Servicer, as applicable), see "*Description of the Basic Documents—Servicing—Backup and Successor Servicing*" in this Private Placement Memorandum and (ii) the Backup Servicer's

resignation, removal and replacement, see "*Description of the Basic Documents—Servicing—Backup and Successor Servicing*" in this Private Placement Memorandum.

THE BACKUP SERVICER SUBCONTRACTOR

The Backup Servicer will appoint Nelnet Servicing, LLC, d/b/a Firstmark Services ("Firstmark"), a Nebraska limited liability company, on or about the Closing Date as its initial Backup Servicer Subcontractor to perform the duties and obligations of the Backup Servicer as permitted by the Backup Servicing Agreement. Firstmark, as the initial Backup Servicer Subcontractor, will be designated by the Backup Servicer to perform the duties and obligations of the Backup Servicer under the Backup Servicing Agreement, including providing the backup servicing services and the successor servicing services under the Backup Servicing Agreement as a subcontractor on behalf of the Backup Servicer. The Backup Servicer may only appoint a Person other than Firstmark or Vervent as its Backup Servicer Subcontractor if at the time of such appointment (a) if any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification is given and (b) such Person services at least $50,000,000 in outstanding principal balance of consumer loans.

Firstmark is a subsidiary of Nelnet, Inc. ("Nelnet"), which has several operating businesses. Nelnet is a diverse, innovative company with a purpose to serve others and a vision to make dreams possible. Nelnet's largest operating businesses engage in loan servicing and education technology, services, and payment processing, and Nelnet also has a significant investment in communications. A significant portion of Nelnet's revenue is net interest income earned on a portfolio of federally insured student loans. Nelnet also makes investments to further diversify both within and outside of its historical core education-related businesses including, but not limited to, investments in early-stage and emerging growth companies and real estate. Substantially all revenue from external customers is earned, and all long-lived assets are located, in the United States.

Nelnet's service organization has decades of experience in originating and servicing consumer and educational loans. Nelnet began its education loan servicing operations on January 1, 1978, and provides, through its subsidiaries, student loan servicing and consumer loan servicing that includes customer service, account maintenance, federal reporting and billing, payment processing, default aversion, claim filing and delinquency servicing services. These servicing activities are performed internally for Nelnet's portfolio and for third-party clients. Nelnet has offices located in, among other cities, Aurora, Colorado, Madison, Wisconsin and Lincoln, Nebraska, and as of June 30, 2024, employed approximately 3,400 employees. Nelnet Servicing, LLC services approximately $524 billion in total loan volume and is one of the nation's largest servicers of private or consumer loans, with approximately $20 billion principal balance outstanding as of June 30, 2024 (on a pro-forma basis). Firstmark's principal offices are located at 121 South 13th Street, Suite 100, Lincoln, Nebraska, 68508, and its telephone number is (402) 458-2370.

Other than the information provided in the paragraph above by the Backup Servicer Subcontractor, the Backup Servicer Subcontractor has not participated in the preparation of and assumes no responsibility for this Private Placement Memorandum and has not reviewed or undertaken to verify any information contained herein.

THE TRUSTEES

The Owner Trustee

Wilmington Savings Fund Society, FSB ("WSFS Bank") will serve as Owner Trustee of the Issuer pursuant to the Trust Agreement.

WSFS Financial Corporation is a multibillion-dollar financial services company. Its primary subsidiary, WSFS Bank, is the oldest and largest locally headquartered bank and trust company in the Greater Philadelphia and Delaware region. As of June 30, 2024, WSFS Financial Corporation had $20.7 billion in assets on its balance sheet and $84.9 billion in assets under management and administration. WSFS operates from 114 offices, 88 of which are banking offices, located in Pennsylvania (57), Delaware (39), New Jersey (14), Florida (2), Nevada (1) and Virginia (1) and provides comprehensive financial services including commercial banking, consumer banking, treasury management and trust and wealth management. Other subsidiaries or divisions include Arrow Land Transfer, Bryn Mawr Capital Management, LLC, Bryn Mawr Trust®, The Bryn Mawr Trust Company of Delaware, Cash Connect®, NewLane Finance®, Powdermill® Financial Solutions, WSFS Institutional Services®, WSFS Mortgage®, and WSFS

Wealth® Investments. Serving the Greater Delaware Valley since 1832, WSFS Bank is one of the ten oldest banks in the United States continuously operating under the same name. WSFS Financial Corporation is traded on the NASDAQ under the ticker symbol WSFS. WSFS Bank has been acting as owner trustee in asset-backed and mortgage-backed securities issuances since 1999. As of June 30, 2024, WSFS Bank is acting as owner trustee for several hundred issuances and acts as trustee under pooling and servicing agreements or indentures for several hundred issuances.

WSFS Bank's corporate trust office is located at 500 Delaware Avenue, 11th Floor; Wilmington, Delaware 19801. At the date of this Private Placement Memorandum, there are no legal proceedings pending, or to the best of WSFS Bank's knowledge, contemplated by governmental authorities, against WSFS Bank or any property of WSFS Bank that would be material to holders of the Notes.

The information provided in the preceding two paragraphs under this heading "The Owner Trustee" has been provided by WSFS Bank. Other than with respect to the information contained in the above two paragraphs, WSFS Bank has not participated in the preparation of, and is not responsible for, any other information contained in this Private Placement Memorandum. None of the Sponsor, the Depositor, the Issuer, the Grantor Trust, the Servicer, the Structuring Agent, the Initial Purchasers, the Owner Trustee, the Grantor Trust Trustee or the Indenture Trustee, or any of their affiliates, has independently verified the accuracy or completeness of this information.

The Owner Trustee has agreed to perform only those duties specifically set forth in the documents to which it is a party, including the following:

- the execution and delivery of the Basic Documents and certain related certificates or other documents to which the Issuer is a party; and

- to perform certain other limited functions identified in the Trust Agreement.

The Owner Trustee also will be authorized but not obligated to take all other actions required of the Issuer pursuant to the Basic Documents.

Under the terms of the Trust Agreement, the Owner Trustee will be entitled to compensation from the Issuer for performance of its duties under the Trust Agreement. In addition, subject to the terms and conditions of the Trust Agreement and the Indenture, the Issuer will indemnify the Owner Trustee and its officers, directors, employees and agents from and against any and all losses, damages, liabilities, claims, actions, suits, investigations, proceedings, costs, expenses, disbursements (including reasonable fees and expenses of its counsel, and including any costs of enforcement of its indemnity rights under the Trust Agreement), taxes and penalties of any kind and nature whatsoever incurred by such indemnified person in connection with the performance of its duties under the Trust Agreement, the creation, operation or termination of the Trust or the transactions contemplated hereby, or in any way relating to or arising out of the titling of the assets in the name of the Owner Trustee, or the Owner Trustee's (in its individual or trustee capacities) lack of compliance with any laws, rules or regulations in any jurisdiction where the Loans or any borrower is located or where the Loan was originated, including any sales finance laws or consumer protection laws, except that the Issuer shall not be liable for or required to indemnify any indemnified person from any such loss, liability or expense that results from such indemnified person's fraud, willful misconduct, bad faith or gross negligence, from the inaccuracy of certain representations and warranties made by the Owner Trustee in the Trust Agreement or for taxes, fees or other charges based on or measured by any fees, commissions or compensation received by the any indemnified person or the Administrator in connection with the services provided by it under the Trust Agreement. The Owner Trustee is obligated to perform only those duties that are specifically assigned to it in the Trust Agreement. The Owner Trustee will not be liable for any action taken at the direction of the Indenture Trustee, the Administrator or any Class R Noteholders. The Owner Trustee will not be required to expend its own funds or incur any financial liability in respect of any of its actions as Owner Trustee if the Owner Trustee has reasonable grounds to believe that reimbursement to it of such funds or for such liabilities is not reasonably assured. The Owner Trustee is not liable for any error of judgment made in good faith by an officer or employee of the Owner Trustee.

The Depositor, the Administrator and their respective Affiliates may maintain normal commercial banking or investment banking relations with the Owner Trustee and its Affiliates.

For information regarding the Owner Trustee's resignation, removal and replacement, see "*Description of the Basic Documents—Replacement or Termination of Trustees, Paying Agent, Collateral Agent, Administrator or Loan Data Agent—The Owner Trustee*" in this Private Placement Memorandum.

The Grantor Trust Trustee and the Grantor Trust Certificate Registrar

WSFS Bank will also serve as the Grantor Trust Trustee and the Grantor Trust Certificate Registrar under the Grantor Trust Agreement. For information regarding WSFS Bank, see "*—The Owner Trustee*" above.

Under the terms and conditions of the Grantor Trust Agreement, the Grantor Trust will indemnify the Grantor Trust Trustee and its officers, directors, employees and agents from and against, any and all losses, damages, liabilities, claims, actions, suits, investigations, proceedings, costs, expenses, disbursements (including reasonable fees and expenses of its counsel, and including any costs of enforcement of its indemnity rights under the Grantor Trust Agreement), taxes and penalties of any kind and nature whatsoever which may at any time be imposed on, incurred by, or asserted against any such indemnified person in any way relating to or arising out of the performance of the Grantor Trust Agreement, the creation, operation or termination of the Grantor Trust or the transactions contemplated thereby, or in any way relating to or arising out of the titling of certain assets in the name of the Grantor Trust Trustee, or the Grantor Trust Trustee's (in its individual or trustee capacities) lack of compliance with any laws, rules or regulations in any jurisdiction where the Loans or any borrower is located or where the Loan was originated, including any sales finance laws or consumer protection laws, other than any such loss, liability or expense arising or resulting from fraud, willful misconduct, bad faith or gross negligence of such indemnified person, the inaccuracy of certain representations and warranties made by the Grantor Trust Trustee in the Grantor Trust Agreement or for taxes, fees or other charges based on or measured by any fees, commissions or compensation received by such indemnified person or the Administrator in connection with the services provided by it under the Grantor Trust Agreement. Any payments owing by the Grantor Trust under such indemnity will be payable by the Issuer, as Grantor Trust Certificateholder, on behalf of the Grantor Trust in accordance with the priority of payments described under "*Application of Available Funds—Priority of Payments*" in this Private Placement Memorandum.

For information regarding the Grantor Trust Trustee's resignation, removal and replacement, see "*Description of the Basic Documents—Replacement or Termination of Trustees, Paying Agent, Collateral Agent, Administrator or Loan Data Agent—The Grantor Trust Trustee*" in this Private Placement Memorandum.

The Indenture Trustee

Wilmington Trust, National Association ("WTNA") a national banking association, will act as Indenture Trustee, as well as the Paying Agent, the Note Registrar, the Issuer Certificate Registrar and the Collateral Agent under the Indenture and the Trust Agreement, as applicable. WTNA is a national banking association with trust powers incorporated under the federal laws of the United States. WTNA's principal place of business is located at 1100 North Market Street, Wilmington, Delaware 19890-0001. WTNA is an affiliate of Wilmington Trust Company and both WTNA and Wilmington Trust Company are subsidiaries of M&T Bank Corporation. Since 1998, WTNA has served as indenture trustee and owner trustee in numerous asset-backed securities transactions involving consumer receivables.

WTNA is subject to various legal proceedings that arise from time to time in the ordinary course of business. WTNA does not believe that the ultimate resolution of any of these proceedings will have a materially adverse effect on its services as Indenture Trustee, Paying Agent, Note Registrar, the Issuer Certificate Registrar or Collateral Agent.

WTNA has provided the above information at the request of the Issuer. Other than the above two paragraphs, WTNA has not participated in the preparation of, and is not responsible for, any other information contained in this Private Placement Memorandum. None of the Sponsors, the Servicer, the Depositor, the Grantor Trust, the Servicer, the Structuring Agent, the Initial Purchasers, the Owner Trustee, the Grantor Trust Trustee or the Indenture Trustee, or any of their affiliates, has independently verified the accuracy or completeness of this information.

The Indenture Trustee has agreed to perform only those duties specifically set forth in the Indenture. Under the terms of the Indenture, the Indenture Trustee's limited responsibilities include the following:

- to enforce the rights of the Grantor Trust against APL and the Servicer, if necessary; and
- to perform certain other limited functions identified in the Indenture.

Under the terms of the Indenture, the Indenture Trustee will be entitled to compensation from the Issuer for performance of its duties under the Indenture. The Issuer will further pay or reimburse the Indenture Trustee upon its request for all reasonable out-of-pocket expenses, disbursements and advances incurred or made by the Indenture Trustee in accordance with any of the provisions of the Indenture or any other documents executed in connection therewith (including the reasonable compensation and the reasonable expenses and disbursements of its agents, counsel, accountants and experts, including in connection with any legal action or investigation commenced by the Indenture Trustee). Additionally, the Issuer will indemnify, defend and hold harmless the Indenture Trustee and any director, officer, employee or agent of the Indenture Trustee against any loss, liability, claim, action, suit, cost or expense (including reasonable attorney's fees and expenses including those incurred in enforcing its indemnification rights under the Indenture) of any kind and nature whatsoever incurred in the administration of the Indenture or in connection with any claim or legal action relating to (a) the Basic Documents or (b) the Notes, other than other than any loss, liability, claim, action, suit, cost or expense (including reasonable attorney's fees and expenses) incurred by reason of the Indenture Trustee's own gross negligence, bad faith or willful misconduct, or which is the responsibility of the Noteholders as provided in the Indenture. The Indenture Trustee is obligated to perform only those duties that are specifically assigned to it in the Indenture. The Indenture Trustee will not be liable for any action taken at the direction of the Issuer, the Administrator or any Noteholders. The Indenture Trustee will not be required to expend its own funds or incur any financial liability in respect of any of its actions as Indenture Trustee if the Indenture Trustee has reasonable grounds to believe that reimbursement to it of such funds or for such liabilities is not reasonably assured. The Indenture Trustee is not liable for any error of judgment made by it in good faith.

The Sponsors and their Affiliates may maintain normal commercial banking or investment banking relations with WTNA and its Affiliates.

For information regarding the Indenture Trustee's resignation, removal and replacement, see "*Description of the Basic Documents—Replacement or Termination of Trustees, Paying Agent, Collateral Agent, Administrator or Loan Data Agent—The Indenture Trustee and the Paying Agent*" in this Private Placement Memorandum.

THE NOTE REGISTRAR, THE PAYING AGENT AND THE ISSUER CERTIFICATE REGISTRAR

WTNA will also act as initial note registrar (in such capacity, the "Note Registrar") and paying agent (in such capacity, the "Paying Agent"), as well as the certificate registrar (in such capacity, the "Issuer Certificate Registrar") of the Issuer.

The Note Registrar, the Paying Agent and the Issuer Certificate Registrar have agreed to perform only those duties specifically set forth in the Indenture and the Trust Agreement, as applicable. Under the terms of the Indenture and the Trust Agreement, the Note Registrar's, the Paying Agent's and the Issuer Certificate Registrar's limited responsibilities include the following:

- to deliver to the Noteholders certain notices, reports and other documents received by the Indenture Trustee, the Note Registrar or the Paying Agent, as required under the Indenture;
- to authenticate, deliver, cancel and otherwise administer the Notes;
- to maintain necessary Trust Accounts;
- to invest funds in the Trust Accounts as directed;

- to distribute and transfer funds at the direction of the Servicer in accordance with the terms of the Indenture and at the direction of the Administrator in accordance with the terms of the Trust Agreement;

- to receive and review the Monthly Reports delivered by or on behalf of the Administrator and confirm the accuracy of certain calculations on such Monthly Reports; and

- to perform certain other administrative functions identified in the Indenture.

All provisions of the Indenture affording benefits, protections, rights, indemnities and immunities to WTNA as the Indenture Trustee will apply, as appropriate, to WTNA as Paying Agent and Note Registrar.

THE COLLATERAL AGENT

WTNA will serve as Collateral Agent for the benefit of the Grantor Trust and the Indenture Trustee. The Collateral Agent will perform collateral agent and verification agent duties for the benefit of the Grantor Trust and the Indenture Trustee. For information regarding the duties of the Collateral Agent, see "*Description of the Basic Documents—Collateral Agent Matters*" in this Private Placement Memorandum.

THE PARTNER BANKS

Each Loan was originated by either Cross River Bank, a New Jersey state-chartered commercial bank, or Pathward, National Association (formerly known as MetaBank, National Association), a national bank, in accordance with the applicable Bank Program Agreement, and, except for the CRB Retained Loans, were initially sold by the applicable Partner Bank under the applicable Bank Purchase Agreement to (i) a Loan Seller or its Affiliates or other designees or (ii) another third-party purchaser, and then concurrently or subsequently transferred to a Loan Seller. Other than to the extent set forth below, neither Cross River Bank nor Pathward will have any obligation to purchase the Loans or to provide indemnification to the Grantor Trust. The principal offices of Cross River Bank are located at 885 Teaneck Road, Teaneck, New Jersey 07666. CRB Securities, which is an Initial Purchaser, is an affiliate of Cross River Bank. The principal offices of Pathward are located at 5501 S. Broadband Lane, Sioux Falls, South Dakota 57108. Approximately 25.18% of the Loans (by aggregate Principal Balance as of the Statistical Cutoff Date) are CRB Retained Loans and will be sold by Cross River Bank directly to APL on the Closing Date.

Under the applicable Bank Program Agreement, each Partner Bank is required to put in place such controls as may be reasonably necessary to adequately control, monitor and supervise the operation of the Achieve Loan Program, including origination of the Achieve Loans. Each Partner Bank's participation in the Achieve Loan Program is subject to oversight by its regulatory agencies, and under the applicable Bank Program Agreement, APL has agreed to submit to any examination that may be required by any such regulatory agency that has audit and examination authority over such Partner Bank.

Under the applicable Bank Purchase Agreement, each Partner Bank made certain limited representations and warranties with respect to each of the Loans, other than the CRB Retained Loans, upon its original sale under such Bank Purchase Agreement. Pathward will make similar representations and warranties with respect to the CRB Retained Loans in the related Depositor Purchase Agreement. The applicable Partner Bank is obligated to repurchase any Loan upon the breach of any of such representations and warranties that materially and adversely affects the interests of the purchaser thereof, unless such Partner Bank cures or corrects such breach (in the case of a portion of the Loans, in all material respects) within thirty (30) days from the earlier of its discovery or its receipt of notice thereof. In addition, the applicable Partner Bank is obligated to indemnify the purchaser and, except for the CRB Retained Loans, APL, and hold each of them harmless against any losses based on, grounded upon, or resulting from a breach of the foregoing representations and warranties. Such representations and warranties, and associated repurchase and indemnity remedies to the Partner Banks, with respect to the Loans will be assigned to the Grantor Trust on the Closing Date.

For information regarding the origination of the Loans, see "*The Achieve Loan Program*" in this Private Placement Memorandum.

THE LOAN DATA AGENT

DV01, Inc., a Delaware corporation, will serve as loan data agent (the "Loan Data Agent") pursuant to the Loan Data Agent Agreement, to be dated as of the Closing Date, among the Issuer, the Servicer, the Administrator and the Loan Data Agent. DV01, Inc. maintains an office in New York, New York. DV01, Inc. has been providing pool performance analysis and data verification services since November 2015. As of June 30, 2024, DV01, Inc. was acting as loan data agent for three hundred eighty six (386) asset-backed securities transactions. On September 13, 2022, Fitch Group announced an agreement to acquire a majority stake in the Loan Data Agent, which will operate as an independent subsidiary of Fitch Solutions, an affiliate of Fitch Ratings, Inc. For the avoidance of doubt, Fitch Group maintains a strict ethical wall between Fitch Ratings, Inc. and Fitch Solutions, preventing information sharing between its affiliates.

The Loan Data Agent will be obligated to maintain an investor portal at https://dv01.co through which Noteholders and prospective Noteholders can view performance information, which the Issuer expects to be updated on a monthly basis, related to the Loans after the Closing Date. In addition, the Loan Data Agent will assist the Administrator in preparing Monthly Reports; however, the Loan Data Agent will rely upon the Servicer to provide it with ongoing information concerning the Loans, and in the event that the Servicer does not provide such information to the Loan Data Agent as and when necessary, no assurance can be given that the information in the Loan Data Agent's portal will be current or periodically updated. None of the Sponsors, the Servicer, the Issuer or any their respective Affiliates makes any representation or warranty as to, nor will it verify or ensure, the accuracy or completeness of the information made available by the Loan Data Agent. Any errors in the information provided by the Loan Data Agent shall be solely the responsibility of the Loan Data Agent, except to the extent such errors in the information result from errors in the information provided by the Servicer to the Loan Data Agent. Additionally, the Loan Data Agent may be terminated by the Issuer at any time after the Closing Date if the Loan Data Agent materially breaches the Loan Data Agent Agreement or with or without cause if no Notes remain Outstanding, and the Issuer will have no obligation to replace the Loan Data Agent with a comparable service. See "*Risk Factors — Risks Primarily Related to Servicing—None of the Sponsors, the Servicer, the Administrator, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Collateral Agent, the Paying Agent, the Issuer, the Structuring Agent, the Initial Purchasers or any of their respective Affiliates makes any representation or warranty as to the accuracy, completeness, timeliness or continuous delivery of the information made available by the Loan Data Agent under the Loan Data Agent Agreement*," "*Description of the Basic Documents—Loan Data Agent Agreement*" for additional description of the duties of the Loan Data Agent.

The Loan Data Agent has provided the above information at the request of the Issuer. Other than the above two paragraphs, the Loan Data Agent has not participated in the preparation of, and is not responsible for, any other information contained in this Private Placement Memorandum. None of the Sponsors, the Depositor, the Issuer, the Grantor Trust, the Servicer, the Structuring Agent, the Initial Purchasers, the Owner Trustee, the Grantor Trust Trustee or the Indenture Trustee, or any of their affiliates, has independently verified the accuracy or completeness of this information.

THE LOAN SELLERS

On the Closing Date, APL expects to acquire the Loans from the following entities (each, a "Loan Seller" and collectively, the "Loan Sellers"): (i) FCCF Funding Trust 2018-1, a Delaware statutory trust ("Series B Loan Seller"), which is an Affiliate of APL, (ii) ACM F Acquisition, LLC, a Nebraska limited liability company (the "Nelnet Loan Seller"), which is an affiliate of Firstmark, (iii) Cross River Bank, which is a Partner Bank and an affiliate of CRB Securities, (iv) Achieve Personal Loan Master Pass-Through Trust, a Delaware statutory trust organized in series (the "Pass-Through Master Trust"), on behalf of one or more series thereof, each of which is beneficially owned by one or more of Morgan Stanley, Barclays and/or CRB Securities or their respective affiliates (the Pass-Through Master Trust on behalf of each such series, a "Pass-Through Loan Seller" and collectively, the "Pass-Through Loan Sellers") and (v) one or more additional holders of Loans that are directly or indirectly beneficially owned by investment funds or other entities not affiliated with APL, Firstmark, Cross River Bank or the Initial Purchasers. See *"Risk Factors – Risks Primarily Related to the Notes and the Issuer – There are potential conflicts of interest relating to the Sponsors and the Loan Sellers*". The following table represents the approximate relative percentages of the Statistical Cutoff Date Pool Balance attributable to the Loan Sellers:

Loan Seller	*% of the Aggregate Principal Balance as of the Statistical Cutoff Date*
Pass-Through Loan Sellers	70.72%
Cross River Bank	25.18%
Series B Loan Seller	1.02%
Nelnet Loan Seller	0.32%
Other	2.76%

The distribution by Loan Seller of the Loans actually sold to the Depositor on the Closing Date may differ from the information set forth above, although the Issuer does not expect such difference to be significant.

THE ACHIEVE LOAN PROGRAM

APL, a wholly owned subsidiary of Freedom Financial Network Funding, LLC ("FFNF"), markets two Loan products through its arrangement with its Partner Banks: Achieve Acceleration Loans and Achieve Personal Loans. Achieve Acceleration Loans are made exclusively to clients of Freedom Debt Relief, LLC ("FDR") or Law Firm Providers. No Achieve Acceleration Loans will be included in the Loans acquired by the Grantor Trust on the Closing Date. Achieve Personal Loans are made to consumers with FICO® scores at origination greater than or equal to 600 or, in the case of Achieve Personal Loans originated on or after October 14, 2022, 620. Achieve Personal Loans are currently originated with interest rates between 7.99% and 26.99%, origination fees of up to 6.99%, loan amounts of up to $50,000 and original terms between 24 and 60 months. The terms of the loans in the Statistical Loan Pool, which were originated prior to the Statistical Cutoff Date, may vary. See "*Description of the Loans—Characteristics of the Statistical Loan Pool*" in this Private Placement Memorandum. In addition, the terms of Achieve Personal Loans vary based on the borrowers' requests and APL's Credit Model, described below under "*Proprietary Credit Models*".

Bank Program

Achieve Loans, including all Loans in the Loan Pool, are originated by either Cross River Bank, a New Jersey state-chartered commercial bank, or Pathward, National Association (formerly known as MetaBank, National Association), a national bank. APL and Cross River Bank have entered into an Amended and Restated Loan Program Agreement dated as of January 1, 2022 (as the same may be amended, restated, supplemented, or otherwise modified from time to time, the "CRB Bank Program Agreement"), pursuant to which APL markets Achieve Acceleration Loans and Achieve Personal Loans and processes loan applications on behalf of Cross River Bank and Cross River Bank originates the Achieve Loans and sells them to investors after origination or retains them. After origination, APL services all Achieve Loans, including after such Achieve Loans are sold by Cross River Bank. APL, Cross River Bank and FCCF have entered into a Bank Purchase Agreement, pursuant to which Cross River Bank agreed to offer to sell Achieve Loans to FCCF (which Achieve Loans may be allocated to a series of FCCF such as the Sponsor), or affiliates of FCCF that FCCF has designated as "Purchaser Assignees" pursuant to the such Bank Purchase Agreement, without recourse and on a servicing released basis (provided that the purchaser separately contracts with APL as servicer), and FCCF or a Purchaser Assignee agreed to purchase such offered Achieve Loans. In addition, Cross River Bank has entered into, and may in the future enter into, other Bank Purchase Agreements to sell Achieve Loans to third-party purchasers including the Loan Sellers or their Affiliates or designees. The CRB Bank Program Agreement has a term that expires on January 1, 2026, subject to three automatic two-year extensions unless either party thereto provides written notice of its intent not to extend at least 120 days prior to the then current expiration date; provided, however, that the CRB Bank Program Agreement shall automatically terminate with respect to any loan program thereunder upon the termination of the last of all purchase agreements related to such program. Pursuant to the CRB Bank Program Agreement, Cross River Bank has agreed to implement such controls as may be reasonably necessary to adequately control, monitor and supervise the operation of the Achieve Loan Program.

Pursuant to the Amended and Restated Program Agreement dated as of April 14, 2020 (as the same may be amended, restated, supplemented, or otherwise modified from time to time, the "Pathward Program Agreement"), APL markets Achieve Acceleration Loans and Achieve Personal Loans and processes loan applications on behalf of Pathward and Pathward originates the Achieve Loans and either sells them to investors after origination or retains them. After origination, APL services all Achieve Loans, including after such Achieve Loans are sold or retained by Pathward. APL, Pathward and Series B have entered into a Bank Purchase Agreement, pursuant to which Pathward

agreed to offer to sell Achieve Loans to Series B or affiliates of Series B that Series B has designated as "Purchaser Assignees" pursuant to such Bank Purchase Agreement, without recourse and on a servicing released basis (provided that the purchaser separately contracts with APL as servicer), and Series B or a Purchaser Assignee agreed to purchase such offered Achieve Loans. In addition, Pathward has entered into, and may in the future enter into, other Bank Purchase Agreements to sell Achieve Loans to third-party purchasers including the Loan Sellers or their Affiliates. The Pathward Program Agreement has an initial term that expires on December 16, 2024, subject to unlimited automatic two-year extensions unless either party thereto provides written notice of its intent not to extend at least 180 days prior to then current expiration date; provided, however, that APL has the right to terminate the Pathward Program Agreement with respect to any loan program thereunder upon the termination of the last of all purchase agreements related to such program. Pursuant to the Pathward Program Agreement, Pathward has agreed to implement such controls as may be reasonably necessary to adequately control, monitor and supervise the operation of the Achieve Loan Program.

Under the applicable Bank Purchase Agreement, each Partner Bank made certain limited representations and warranties with respect to each of the Loans, other than the CRB Retained Loans, sold by it upon the date of the original sale of such Loan under the applicable Bank Purchase Agreement, including, without limitation, a representation and warranty to the effect that the applicable Partner Bank was in all respects in compliance with any and all requirements of all federal, state and local laws, rules and regulations applicable to the Partner Bank and limitations with respect to such Loan and the Achieve Loan Program, including, without limitation, applicable usury laws (though it may not have liability for a breach of such representations and warranties to the extent the breach is caused by APL's failure to comply with the applicable Bank Program Agreement). Cross River Bank will make similar representations and warranties with respect to the CRB Retained Loans in the related APL Purchase Agreement. Moreover, APL will represent and warrant in the Loan Transferor Purchase Agreement that each Loan was originated, and since the applicable Origination Date has been serviced, in compliance with all requirements of Applicable Laws including all consumer credit laws, in all material respects. Accordingly, if any such representation is breached with respect to any Loan, APL, and in certain circumstances the applicable Partner Bank will have an obligation to repurchase such Loan. See "*The Partner Banks*", "*Description of the Loans—Loan Level Representations*" and "*Description of the Basic Documents—Transfer Agreements*" in this Private Placement Memorandum.

Marketing

Borrowers for Achieve Personal Loans are solicited through direct mail, partners, affiliates, online marketing, and through affiliated companies, including FDR, among other marketing channels. As of July 31, 2024, a majority of Achieve Personal Loan borrowers were obtained through APL's partners and affiliates.

Loan Application

The underwriting process for Achieve Loans begins with the submission of a loan application by the prospective borrower either via telephone through a APL salesperson or a digital loan application. To be considered for an Achieve Loan, an applicant must provide certain information, including the applicant's name, physical address, social security number, income and assets. Most borrowers will speak to a APL salesperson who will conduct a customer interview regarding matters such as the purpose of the loan, recent applications for credit and other relevant underwriting criteria. During the loan application process, APL encourages applicants to apply with a co-applicant. If the loan application for a Achieve Personal Loan is approved, then the borrower may elect that the applicable Partner Bank disburse Achieve Personal Loan proceeds (i) to the borrower's existing creditors via APL's Direct Pay service, (ii) directly to the borrower or (iii) to a combination of the borrower's creditors and the borrower. During the application process APL encourages applicants to use the Direct Pay service. As of July 31, 2024, approximately 70% of Achieve Personal Loan funds were distributed directly to creditors via the Direct Pay service.

During the application process, in the case of Achieve Personal Loans, APL obtains a credit report with respect to the borrower and any co-applicant and, in conjunction with attributes contained in the loan application, evaluates the application on behalf of the applicable Partner Bank and using such Partner Bank's credit policy. See "*Proprietary Credit Models*" and "*Credit Policy*" below.

In addition, Achieve Loan borrowers who are not denied based on an initial evaluation, using an automated, non-discretionary process, will go through manual underwriting (review by an APL underwriter) conducted by APL; provided that approximately 75% of Achieve Personal Loans that are funded go through only a limited manual review consisting of identity verification, fraud review and, in certain cases, income verification (but not credit decision making) as described in "*Manual Underwriting System*" below. The manual underwriting process identifies additional risk variables used in the underwriting process. See "*Manual Underwriting System*" below.

Credit Policy

The following is a brief description of the underwriting policies and procedures established by the Partner Banks to underwrite the Achieve Personal Loans (the "Credit Policy") to be included in the Loans acquired by the Grantor Trust on the Closing Date.

The Credit Policy contains certain minimum requirements for an applicant to be eligible for a Achieve Personal Loan. These include, but are not limited to:

(i) The applicant has a minimum FICO® Score of 600 or, in the case of Achieve Personal Loans originated on or after October 14, 2022, 620;

(ii) The applicant has a credit history of at least 36 months;

(iii) The applicant has a valid and open bank account;

(iv) The applicant does not exceed maximum debt to income ratios;

(v) Two or more open trade lines based on the credit report obtained by APL in connection with the application;

(vi) The applicant has a demonstrated ability to repay the Achieve Personal Loan; and

(vii) The applicant is a United States citizen or permanent resident and is at least 18 years of age.

The items set forth in clauses (i) through (vii) are collectively referred to herein as the "Achieve Personal Loan Criteria".

A combination of credit scores, credit activity, payment history, income and other criteria are used to determine an applicant's expected ability and willingness to make required payments with respect to an installment loan. Each applicant must also be at least 18 years of age and APL must be able to verify the applicant's identity. Each application and prospective Achieve Personal Loan is initially evaluated pursuant to the Credit Policy using an automated, non-discretionary process. In limited instances, the Credit Policy allows exceptions to this automated evaluation. APL expects that approximately 91% of Achieve Personal Loan applications that are ultimately funded are approved (subject to the limited manual review process described in "*Manual Underwriting System*" below), and more than 78% of all Achieve Personal Loan applications are denied, in each case, solely based on this automated evaluation. Those Achieve Personal Loan applications that are not approved or denied on an automated basis go through additional review by a member of APL's underwriting team as described in "*Manual Underwriting System*" below.

Proprietary Credit Models

APL's proprietary credit model for Achieve Personal Loans is empirically derived and validated. No variables in this model are used that differentiate applicants based upon a protected class under Applicable Law. Early versions of the proprietary credit model were developed using logistic regression. The latest version of the credit model was developed using the proprietary FICO® scorecard modeling software.

Variables in the latest credit model for Achieve Personal Loans include, but are not limited to, (i) the applicant's FICO® Score, (ii) the total number of open installment loans opened by the applicant in the last 12 months according to the credit report obtained by APL for the application; (iii) the applicant's debt-to-income ratio; (iv) the applicant's loan-to-income ratio, (v) the total number of credit inquiries made in last 6 months, (vi) the number of months since the most recent credit inquiry and (vii) the number of months since the most recent personal finance credit inquiry.

APL will periodically review and revise the Achieve Personal Loan credit model. The Achieve Personal Loan credit model produces an initial credit score that may be adjusted pursuant to the *Manual Underwriting System* discussed below.

APL categorizes Achieve Personal Loans into three credit tiers (each, a "Credit Tier") based on the internal credit risk model assigned to such loans at time of origination. APL's internal credit risk model groups Achieve Personal Loans into twenty distinct risk groups numbered from one to twenty (each, a "Risk Group"). Assignment to a lower-numbered Risk Group represents better credit quality and a lower likelihood of defaulting; conversely, assignment to a higher-numbered Risk Group represents worse credit quality and a higher likelihood of defaulting. Credit Tier 1 is comprised of Achieve Personal Loans that were assigned to Risk Groups one through two. Credit Tier 2 is comprised of Achieve Personal Loans that were assigned to Risk Groups three through seven. Credit Tier 3 is comprised of Achieve Personal Loans that were assigned to Risk Groups eight through twenty.

Manual Underwriting System

As described above, each application and prospective Achieve Personal Loan is initially evaluated pursuant to the Credit Policy using an automated, non-discretionary process. Achieve Personal Loan applications that are approved on this automated basis still undergo a limited manual review consisting of identity verification, fraud review and, in certain cases, income verification (but not credit decision making) as more fully described in the following paragraph. Those Achieve Personal Loan applications that are not approved or denied on an automated basis will go through additional review by a member of APL's underwriting team (an "Underwriter"). In addition, a small portion of Achieve Personal Loans that were denied on an automated basis (less than 1% of all funded Achieve Personal Loans between January 1, 2023, and December 31, 2023) are granted a policy exception to undergo additional review by an Underwriter. During this review, the Underwriter will manually review information, such as the applicant's credit report, responses to application questions and information from third-party data sources. Based on this review, the Underwriter can adjust the preliminary score that resulted from the automated review of the application. During a manual review, an Underwriter may also identify instances in which a modification to the applicant's application, such as the election by the applicant to use APL's Direct Pay service (see "*Loan Application*" above), or the addition of a co-applicant to the application might improve the likelihood of approval.

In addition, APL's Underwriters also perform identity verification and a fraud review on all Achieve Personal Loans after the applicant provides required documentation and income verification on certain Achieve Personal Loans. See "*Borrower Identification and Anti-Fraud Policies*" and "*Income Verification*" and "*Employment Verification*" below.

Borrower Identification and Anti-Fraud Policies

Each Achieve Loan applicant is required to provide a physical address and a social security number. APL verifies the applicant's address and social security number typically by comparison to information from credit bureaus or from public records.

To prevent fraud, APL employs a series of third-party customer verifications and a proprietary fraud scoring model to screen loan applications. Fraud is minimized via reliance on third-party verified data points that are hard to falsify because they are actively used in the loan application or funding process. Variables in the fraud scoring model include in some cases, and are not limited to, (i) bank account verification, (ii) phone number verification, (iii) email verification, (iv) address verification, and (v) disbursing proceeds directly to the borrower's existing creditors via APL's Direct Pay service (in the case of Achieve Personal Loans).

As of July 31, 2024, less than 1% of the Achieve Personal Loan applications that were approved and funded were subject to borrower identification fraud.

Income Verification

The income stated by an Achieve Loan applicant in his or her application is in certain cases verified by APL, typically through review of documents, including paystubs, bank statements and/or tax returns. APL may use electronic sources that enable it to review recent transactions in the applicant's bank account. Starting in June 2021, APL began to forego income verification for some Achieve Loans that have been determined through APL's underwriting experience to have a very low likelihood of overstated income; however, it is expected that a significant portion of Achieve Loans originated after June 2021 will continue to undergo income verification.

Employment Verification

The employment information stated by an Achieve Loan applicant in his or her application is typically verified by APL through review of documents, including paystubs. APL may use electronic sources that enable it to review recent transactions in the applicant's bank account.

Closing and Funding

After approval of a loan application, APL will produce a loan agreement setting forth the terms of the Achieve Loan and send the loan agreement, generally by email, to the applicant. Typically, APL will then contact the customer by phone to review the terms of the Achieve Loan and answer any questions the applicant may have before signing the loan agreement. The signature and delivery of loan agreements for Achieve Loans is addressed in "*Records Management and Storage*" below.

Achieve Personal Loans are funded by the Partner Bank generally within one business day of the execution of the loan agreement. A Partner Bank typically funds the loans by disbursing the loan funds, net of the loan origination fee, through an ACH payment directly to the bank account that the borrower provided in the loan application, to creditors identified by the borrower to receive loan funds via APL's "Direct Pay" service or to a combination of the borrower and creditors. The loan origination fee is capitalized into the principal balance of the Achieve Personal Loan.

Onboarding Process

At the completion of the process described in "*Closing and Funding*" above, an Achieve Loan is boarded onto the Nortridge loan servicing system ("NLS System"), which is the software platform APL uses to service Achieve Loans. See "*Servicing Policies and Procedures—Records Management and Storage*" below.

SERVICING POLICIES AND PROCEDURES

Servicing Locations

APL employees who service Achieve Loans are based out of APL's Tempe, Arizona office. Such employees have generally been working remotely since March 2020, following the onset of the COVID-19 pandemic. In the future, APL may service loans at other APL offices currently existing or established by APL after the date of this Private Placement Memorandum. APL also utilizes two third-party service providers to conduct certain loan servicing activities under the supervision of APL, as described under "*Servicing and Collections Activities*" below.

Records Management and Storage

Most APL borrowers sign their loan agreements using the DocuSign process. The DocuSign process produces an electronic portable document file ("PDF") of the loan agreement that contains evidentiary data that is sealed by a third-party certification as the "original" or single authoritative copy (the "Authoritative Copy") of the loan agreement. The Authoritative Copy is stored in an eVault maintained using eOriginal, Inc. ("eOriginal")

software. Some APL borrowers sign their loan agreements manually and mail the loan agreement to APL. In these instances, APL scans the loan agreement into a PDF and destroys the paper version. APL then uploads the PDF to an eVault and certifies to eOriginal that such PDF is the only copy APL has, and then that PDF is designated as the Authoritative Copy in the eVault.

Any subsequent copy made of the loan agreement will be a flattened PDF that does not contain evidentiary data and will be watermarked "COPY." The applicable Partner Bank is recorded as the owner of the Authoritative Copy at origination and the applicable systems do not permit control of such Authoritative Copy to be amended or transferred to another owner without the authorization of such Partner Bank. The Authoritative Copy is initially stored in an eVault held in the name of such Partner Bank. When an Achieve Loan is sold by a Partner Bank, the Authoritative Copy of the loan agreement is transferred to an eVault held in the name of the loan purchaser or its designee.

Pursuant to its servicing agreements, APL maintains records with respect to each Achieve Loan it services, including the borrower's loan application, credit report(s), underwriting score (if any), a copy of the loan agreement and the payment and servicing history associated with the Achieve Loan. These documents are maintained electronically on APL's systems. Payment history is currently maintained on the NLS System. APL may in the future migrate its records to a different software platform.

Other records related to loan servicing that are created or retained by APL include correspondence, hardship documents submitted by borrowers in connection with a request for a loan modification, loan statements, and other documents received from the borrower. These documents are maintained electronically on the NLS system. When APL receives physical documents from borrowers, APL generally scans the documents, uploads them to the NLS system and shreds the original.

APL follows its policy regarding retention requirements for documents maintained by APL (the "Record Retention and Disposal Policy"). Payment records are backed up by NLS, which delivers backup files to APL no less than monthly.

Billing and Payments

Achieve Loan borrowers are sent billing statements each month showing account information along with directions for making payments. APL prepares billing statements for Achieve Loan borrowers approximately eighteen days before the next payment is due, and sends the statements by email (directing the borrower to APL's online portal) or mail, based on customer preference.

Most Achieve Loan borrowers make loan payments by recurring ACH debit. Borrowers may elect to opt into recurring ACH debits during the application process, and may change such election at any time thereafter. As of July 31, 2024, approximately 80% of all Achieve Loan borrowers elected to make payments by recurring ACH debit. For borrowers who sign up to make payments by recurring ACH debit, periodic ACH transfers will be made directly from the Borrower's bank account into the Servicing Collection Account, which is held at Wells Fargo Bank, N.A. ("Wells Fargo"). In addition, payments may be mailed to a lockbox maintained by Wells Fargo. Wells Fargo regularly retrieves checks delivered to the lockbox and deposits such checks into the Servicing Collection Account.

Payments may also be made by phone or through APL's online portal. Achieve Loan borrowers are not permitted to pay with credit cards. APL charges borrowers a $5 processing fee for each loan payment, but may waive the fee at its discretion. APL waives this processing fee for loan payments made by Achieve Loan borrowers who pay by ACH debit and currently does not charge the $5 fee for payments made by check, by phone or via APL's on-line portal, and may eliminate such fee in the future.

Servicing and Collection Activities

APL's loan servicing team handles administrative requests and other inquiries received from borrowers, including updating borrower contact information and billing information, responding to borrower communications, providing payoff information, providing "paid in full letters" to borrowers who have paid off their loans and processing requests to make loan payments by check, ACH debit or other methods. APL's loan servicing team also fields requests

from borrowers seeking relief under the Servicemembers Civil Relief Act ("SCRA"). APL's loan servicing team handles all customer complaints in accordance with the Loan Servicing Policy and Procedures (the "Policies and Procedures"). All inbound and outbound calls between APL's loan servicing team and Achieve Loan borrowers are recorded and retained in accordance with APL's Record Retention and Disposal Policy. Borrowers are notified at the beginning of each call that the call will be recorded.

As a general matter, APL's loan servicing team reviews daily delinquency information with respect to Achieve Loans. Collection activities with respect to Achieve Loans begin as early as the day after any payment on an Achieve Loan becomes past due.

If an Achieve Loan becomes delinquent, acceptable actions that may be taken by the Servicer include (i) collection of past due amounts, (ii) adjusting the due date for any payment, (iii) adjusting the frequency of payments (for Achieve Acceleration Loans only), (iv) deferral of payments (as described below), (v) settlement (as described below), (vi) modification of the loan terms (as described below) and (vii) sale of charged-off loans to third parties (as described below). The specific action(s) taken with respect to any delinquent Achieve Loan depend upon a number of factors including the borrower's payment history and whether the borrower has a hardship (such as a decrease in income or increase in unavoidable expenses, such as unexpected medical costs) that arose after the borrower obtained his or her Achieve Loan. Any such action is intended to enable the Achieve Loan borrower to meet his or her current and future obligations in a manner that APL believes will not increase the risk of recovery with respect to the Achieve Loan, will preserve the goodwill between APL and the Achieve Loan borrower and will comply with state and federal law and regulations and the Policies and Procedures.

Collection activities taken by the Servicer with respect to a delinquent Achieve Loan may include sending letters, emails or texts or making telephone calls, including by auto-dialer, to the borrower and any applicable co-signor. Attempts to reach delinquent borrowers are made at approved intervals in the delinquency cycle in accordance with the Policies and Procedures. Members of APL's loan servicing team also field incoming borrower communications by phone, mail and email. As a first option, APL's loan servicing team will attempt to arrange for the borrower to pay the amount necessary to bring the Achieve Loan current, either in one lump sum payment or in a series of payments over a period of time.

From time to time, APL may offer borrowers the opportunity to defer their Achieve Loan by extending the date on which a payment in respect thereof is due. This solution is typically offered in situations in which the borrower has suffered a temporary hardship, such as a one-time unplanned expense (for example, major car repair). Generally, deferrals are not offered to borrowers who are more than one payment past due or have received a two-month deferral or two one-month deferrals within the last 12 months. A deferral is not permitted unless, after the deferral, the account would be current or due for the current month's payment. To receive a deferral, a borrower must state a hardship and confirm that he or she will be able to resume payments after the deferred payment. Exceptions to the standard deferral procedures (for example, to defer for an additional month) must be approved by senior management.

Notwithstanding the foregoing, a borrower impacted by a natural disaster, epidemic or pandemic may obtain a deferral of up to two months irrespective of whether the borrower has received any other deferrals within the last 12 months. The restrictions and conditions for deferrals that are described in the previous paragraph do not apply to deferrals related to a natural disaster, epidemic or pandemic, including deferrals requested specifically on account of COVID-19 related hardship.

APL may reach settlement agreements with borrowers to maximize recovery on a delinquent Achieve Loan when the borrower has a financial hardship (such as a decrease in income or increase in unavoidable expenses, such as unexpected medical costs) that arose after origination of the borrower's Achieve Loan. Such a settlement will generally involve a single lump sum payment for the agreed upon settlement balance or the borrower agreeing to make a series of payments over time that, in total, are less than the outstanding principal balance of the loan as of the date of the settlement.

In addition to deferrals, APL may otherwise modify an Achieve Loan when the borrower has a financial hardship (such as a decrease in income or increase in unavoidable expenses, such as unexpected medical costs). Typically such modifications consist of a reduction in the monthly payment amount, resulting in an increase in the repayment period. A reduction in the monthly payment amount that would either cause the repayment period to be

extended by more than 12 months or cause the total repayment period to be greater than 72 months requires approval by senior management.

If one or more scheduled payments on a Loan is deferred or otherwise modified pursuant to an Eligible Modification, then the determination of whether the Loan is a Delinquent Loan, Severely Delinquent Loan or Charged-Off Loan will be made after giving effect to such deferral or other modification, and accordingly such deferral or other modification may allow the Servicer to delay or avoid characterizing the Loan as a Delinquent Loan, Severely Delinquent Loan or Charged-Off Loan, including for purposes of calculating its servicing fees.

In the event that an Achieve Loan borrower files for bankruptcy protection, APL's loan servicing team, through a third party service provider, tracks the bankruptcy filings and may file documents in connection with the bankruptcy, such as proofs of claims.

As of the date of this Private Placement Memorandum, Achieve Loans are generally charged off in full on the last day of the month in which the loan became one-hundred and twenty (120) days past due or if the borrower dies, though they may also be charged off in whole or in part as a result of "settlements" as described above, or in the case of identity fraud. If an Achieve Loan borrower has filed for bankruptcy, the loan is charged off if and when it is discharged in bankruptcy or on the last day of the month in which the loan becomes one-hundred and twenty (120) days past due, whichever occurs first. APL may make outbound attempts to resolve the charged-off debt owed by customers after the charge-off event, and any monies collected are considered recoveries against the loss. This may include payment in full, payments over time, or settlements of the monies owed.

APL has historically conducted servicing activities for Achieve Loans and collection activities with respect to delinquent, bankruptcy or charged-off Achieve Loans internally. As of April 1, 2021, APL entered into an engagement with a third party service provider to conduct collection and servicing activities under the supervision of APL on Achieve Loans that are between one and 59 days past due. In October 2021, APL expanded its engagement with this third party service provider to conduct certain loan servicing activities under the supervision of APL and has subsequently increased its utilization of such third party service provider. Further, in October 2023, APL engaged an additional third party service provider to conduct servicing activities in both English and Spanish for Achieve Loans that are not past due on payments. Both service providers use the same servicing and phone systems as APL and operate under the same performance metric goals, quality control processes and operating policies as APL's internal teams. APL continues to assess its current outsourcing engagements with respect to loan servicing and collection activities for future expansion.

APL does not currently sell delinquent or non-performing assets to third-party debt purchasers, but does engage with these purchasers on charged-off Achieve Personal Loans. Sales are conducted through use of a broker who markets to a broad array of approved buyers. Final bids are approved by APL loan operations leadership and the owning investors. These sales are conducted on either a monthly or quarterly basis or through a forward flow arrangement dependent on volume and market pricing.

DESCRIPTION OF THE LOANS

Historical Information with respect to Achieve Personal Loans

The following tables present aggregated information as of the date set forth above each column, for all Achieve Personal Loans (formerly known as FreedomPlus Loans) originated on or prior to July 31, 2024. Because a pandemic such as COVID-19 has not occurred in many years, it is unlikely that historical delinquency and charge-off data will accurately predict the performance of the Loans over the near future. Default and delinquency rates for Achieve Personal Loans increased in 2022 following the discontinuation at the end of 2021 of the federal government's direct COVID-19 pandemic stimulus payments to individuals. With respect to delinquent Loans, the tables show the entire amount of the principal remaining due (not just that particular past due payment) as of July 31, 2024. In the first quarter of 2019, write-down recognition changed in a way that accelerated write-downs for loans which enter into a settlement agreement. Prior to the change, write-downs were recognized when the loan was closed fully after full performance under the settlement agreement. After the change, any agreed to forgiven balance is immediately recognized as a write-down when the settlement agreement is made with the borrower.

Borrower Loan Originations – Achieve Personal Loans

Loans originated on or prior to July 31, 2024
(For the twelve month period then ended)

	As of December 31,							As of July 31,
	2017	**2018**	**2019**	**2020**	**2021**	**2022**	**2023**	**2024**
Principal Amount of Receivables Outstanding -- End of Period	$556,916,682	$975,279,118	$1,425,556,224	$1,167,259,319	$1,375,166,362	$2,262,036,947	$2,215,326,955	1,845,472,075
Number of Receivables Outstanding	35,350	64,470	103,613	95,678	96,146	137,789	140,771	122,681
Gross Charge-Offs	$21,192,705	$45,363,546	$92,306,222	$119,786,670	$67,707,491	$115,129,740	$324,209,639	$371,246,359
Gross Charge-Offs as a % of the Principal Amount of Receivables Outstanding at Period End	3.8%	4.7%	6.5%	10.3%	4.9%	5.1%	14.6%	20.1%
Gross Charge-Offs as a % of the Principal Amount of the Average Receivables Outstanding	5.1%	6.0%	7.4%	9.0%	5.5%	6.3%	13.6%	17.5%
Recoveries	$272,249	$1,997,137	$6,305,552	$10,211,216	$8,255,090	$9,553,246	$21,248,264	$24,353,428
Net Charge-Offs	$20,920,456	$43,366,410	$86,000,670	$109,575,455	$59,452,402	$105,576,495	$302,961,375	$346,892,930
Net Charge-Offs as a % of the Principal Amount of Receivables Outstanding at Period End	3.8%	4.4%	6.0%	9.4%	4.3%	4.7%	13.7%	18.8%
Net Charge-Offs as a % of the Principal Amount of the Average Receivables Outstanding	5.1%	5.8%	6.9%	8.2%	4.9%	5.8%	12.8%	16.3%
30+ Delinquent Principal Balance	$9,485,051	$20,565,364	$41,268,288	$29,577,229	$24,485,434	$78,093,864	$126,610,074	$98,916,489
% of Principal amount of Receivables Outstanding at End of Period	1.7%	2.1%	2.9%	2.5%	1.8%	3.5%	5.7%	5.4%
30-59 days Delinquent Principal Balance	$4,013,842	$7,854,676	$17,718,551	$12,220,668	$11,498,722	$33,729,662	$48,870,742	$39,791,158
% of Principal amount of Receivables Outstanding at End of Period	0.7%	0.8%	1.2%	1.0%	0.8%	1.5%	2.2%	2.2%
60-89 days Delinquent Principal Balance	$2,956,528	$6,414,350	$12,649,829	$9,357,195	$7,309,329	$23,856,037	$40,559,623	$31,449,687
% of Principal amount of Receivables Outstanding at End of Period	0.5%	0.7%	0.9%	0.8%	0.5%	1.1%	1.8%	1.7%
90 or more days Delinquent Principal Balance	$2,514,682	$6,296,338	$10,899,909	$7,999,366	$5,677,383	$20,508,164	$37,179,709	$27,675,644
% of Principal amount of Receivables Outstanding at End of Period	0.5%	0.6%	0.8%	0.7%	0.4%	0.9%	1.7%	1.5%

Loan Selection

The Loans will be selected from the Loan Sellers by first selecting Achieve Loans held by the Loan Sellers for which the Loan Level Representations set forth below are true as of the Cutoff Date and then applying certain other criteria to the loan pool. Neither the Sponsors nor the Depositor will use selection procedures with respect to the Loans reasonably believed by the Sponsors or the Depositor, as applicable, to be adverse to the interests of the Grantor Trust, the Issuer or the Noteholders.

Loan Level Representations

Pursuant to the Loan Transferor Purchase Agreement, APL will represent and warrant to the Loan Transferor, and through a series of assignments under the applicable Transfer Agreements, the Loan Transferor will indirectly assign its rights with respect to such representations and warranties to the Grantor Trust, that each Loan satisfies all of the following criteria as of the applicable date set forth below, or if not otherwise specified, as of the Closing Date, (such representations and warranties, the "Loan Level Representations"):

(a) Such Loan was originated by a Partner Bank in accordance with the applicable Bank Program Agreement using the form documentation proscribed thereunder for evidencing such Loan in accordance with the Achieve Personal Loan Criteria.

(b) (i) The Related Documents evidencing such Loan shall have been or will be delivered to an eVault in the name of the Grantor Trust at the Vault Provider, subject to the Vault Provider Control Agreement, within three (3) Business Days after the Closing Date, and none of the electronic records that constitute or evidence such Loan have any marks or notations indicating that they have been pledged, assigned, or otherwise conveyed to a Person other than as pursuant to the Basic Documents and (ii) the Collateral Agent has issued or will issue, in accordance with the Indenture, a Collateral Agent Confirm to the Grantor Trust and Indenture Trustee.

(c) Such Loan is a U.S. Dollar denominated obligation payable in the United States.

(d) Such Loan is not a revolving line of credit and provides for periodic level payments which fully amortize the amount financed over the original term to maturity (exclusive of any deferral or forbearance periods).

(e) The Portfolio Documents evidencing such Loan do not contain any provisions (i) pursuant to which periodic payments are to be paid by any source other than the related Borrower or (ii) that may constitute a "buydown" provision.

(f) The Portfolio Documents related to such Loan do not contain any provision containing a contingent interest feature.

(g) Such Loan was fully funded as of the applicable Purchase Date, and the Portfolio Documents related to such Loan do not contain any provisions obligating the applicable Partner Bank or any other Person to make any future advance to the related Borrower (other than those advances made during the initial disbursement period).

(h) Such Loan is not a renewal or extension of any other loan made by the applicable Partner Bank.

(i) Either (i) such Loan is an Eligible Physical Document Loan or (ii) the documentation evidencing such Loan was issued in electronic form, and in either case, there is no physical original thereof and there is only one authoritative electronic copy thereof.

(j) Such Loan was made to an individual for personal or business purposes, and the applicable Borrower has personal recourse for all amounts owed with respect to such Loan.

(k) Such Loan was originated, and since the applicable Origination Date has been serviced, in compliance with all requirements of Applicable Laws including all consumer credit laws, in all material respects.

(l) As of the applicable Origination Date, the Borrower of such Loan (i) was at least eighteen (18) years old and (ii) had provided to APL a U.S. social security number.

(m) As of the Closing Date, immediately prior to the transfer to the Loan Transferor pursuant to the Loan Transferor Purchase Agreement, APL is the sole owner of such Loan, has good and marketable title thereto, and has the right to assign, sell and transfer such Loan to the Loan Transferor free and clear of any lien, pledge, charge, claim, security interest or other encumbrance, other than the security interest granted to the Loan Transferor. APL has not sold, assigned, pledged, granted a security interest in or otherwise transferred any right or interest in or to such Loan and has not pledged such Loan as collateral for any debt or other purpose, other than, in each case, the interests transferred to the Loan Transferor under the Loan Transferor Purchase Agreement. APL has not authorized the filing of and is not aware of any financing statements against APL that include a description of collateral covering such Loan other than any financing statement relating to the security interest granted to Loan Transferor.

(n) Such Loan is assignable without notice to or the consent of the related Borrower.

(o) Such Loan represents a legal, or valid and binding and absolute and unconditional payment obligation of the applicable Borrower and is enforceable in accordance with its terms without any right of rescission, offset, counterclaim, discount, adjustment or defense.

(p) The Borrower of such Loan has not asserted in writing any defense, counterclaim, offset or dispute with respect to such Loan.

(q) Such Loan is not, as of the Cutoff Date, (a) a Delinquent Loan, (b) a Charged-Off Loan or (c) a Bankruptcy Loan.

(r) Such Loan constitutes either an "account" or a "payment intangible" according to the relevant UCC then in effect.

(s) The original term of such Loan was no greater than 73 months.

(t) The original principal balance of such Loan was not greater than $50,000.

(u) The FICO® score of the related Borrower as of such Loan's Origination Date was greater than or equal to 600.

(v) No Borrower of such Loan was as of the related Origination Date employed by APL, the Series B Loan Seller, the Depositor, the Issuer or the Grantor Trust at the time of origination of such Loan.

(w) No term of such Loan has been waived or modified other than pursuant to an Eligible Modification.

(x) Such Loan was not obtained as a result of Verifiable Fraud.

(y) Such Loan is readily identifiable by its respective loan identification number indicated in the List of Purchased Loans and no other Achieve Personal Loan has the same loan identification number as such Loan.

(z) The address of the related Borrower listed in the Related Documents for such Loan was not in Colorado, Connecticut, Vermont or West Virginia.

(aa) If the address of the related Borrower listed in the Related Documents for such Loan was in Hawaii, the original principal balance of such Loan was greater than or equal to $1,500.

(bb) If the address of the related Borrower listed in the Related Documents for such Loan was in Illinois, the "all-in" Military Annual Percentage Rate (as described in the Military Lending Act) is under 36.00%.

(cc) Such Loan is a simple interest loan.

(dd) The number of days between contractual payment dates of such Loan does not exceed 31 days.

(ee) The information related to each of the Data Fields with respect to such Loan contained in the List of Purchased Loans is true and correct; provided that for Loans that do not pay monthly, in some cases the "scheduled payment amount" Data Field may list the aggregate monthly payment amount.

(ff) The Related Documents evidencing such Loan accurately reflect the entire agreement between the applicable Partner Bank and the related Borrower with respect to such Loan.

(gg) To the extent such Loan is in registered form, the register has been or will be updated as of the Closing Date to list the Grantor Trust as the registered owner of such Loan.

Loan Servicing and Collection

The servicing and collection activities with respect to the Loans will be performed by the Servicer in accordance with the terms of the Servicing Agreement. See "*Description of the Basic Documents – Servicing*" in this Private Placement Memorandum. The Grantor Trust has retained WTNA to act as its Backup Servicer with respect to the Loans pursuant to the Backup Servicing Agreement. For a description of the particular loan servicing and collection policies of the Servicer to the Issuer, see "*Servicing Policies and Procedures*" above.

Characteristics of the Statistical Loan Pool

The following tables set forth information as of the close of business on the Statistical Cutoff Date with respect to the Statistical Loan Pool. The Issuer expects that the Cutoff Date Pool Balance will be approximately

$12,404,677 less than the aggregate Principal Balance of the Statistical Loan Pool as of the Statistical Cutoff Date (which corresponds to a 3.86% amortization of the Loan Pool over such period), due to, among other things, normal collection activity, Borrower prepayments, delinquencies, defaults or bankruptcies, and removal of Loans that will not satisfy the Loan Level Representations as of the Closing Date or substitution of Loans that will satisfy the Loan Level Representations as of the Closing Date. The actual Cutoff Date Pool Balance may vary by up to 5% more or less than the assumed Cutoff Date Pool Balance. There can be no assurance that the characteristics of the Loans as of the Closing Date will be the same as, or not be different from, the characteristics of the Statistical Loan Pool set forth in these tables. The information set forth in the tables below has been derived exclusively from reports prepared by APL, as servicer of the Loans, and none of the Issuer, the Grantor Trust, the Depositor, the Structuring Agent, the Initial Purchasers or their respective Affiliates have independently verified such information.

Composition of the Statistical Loan Pool as of the Statistical Cutoff Date (1)

Aggregate Current Principal Balance	$321,139,423
Average Current Principal Balance	$22,166
Aggregate Original Principal Balance	$355,725,974
Average Original Principal Balance	$24,553
Number of Loans	14,488
Weighted Average Original Term(2)	50 months
Range of Original Terms(2)	24 months to 60 months
Weighted Average Remaining Term(3)	45 months
Range of Remaining Terms(3)	1 month to 60 months
Weighted Average Monthly Payments Remaining(4)	45 months
Range of Monthly Payments Remaining(4)	2 months to 60 months
Weighted Average Seasoning	5 months
Range of Seasoning	0 month to 57 months
Weighted Average Original FICO®	715
Non-Zero Weighted Average Current FICO®(5)	727
Weighted Average Verified Income	$157,298
Percentage Verified Income	100%
Weighted Average APR	23.40%
Weighted Average Interest Rate	19.57%
Percentage of Modified Loans	1.21%
Top 3 States (by Aggregate Current Principal Balance)	CA (13.20%) TX (11.12%) NY (9.40%)

(1) All weighted averages set forth in the tables above and below are weighted on the basis of the current Principal Balance of the loans in the Statistical Loan Pool as of the Statistical Cutoff Date.
(2) Original Term is based on the original contractual term.
(3) Remaining Term is defined as the difference between the Original Term and the loan's months on book.
(4) Monthly Payments Remaining has been calculated by adding (a) the remaining term of a loan and (b) the number of monthly payments deferred, if any, if a loan has been deferred or had its term extended after March 15, 2020. For loans that do not pay monthly, the number of payments deferred has been converted into equivalent month(s). As of the Statistical Cutoff Date, approximately 1.19% of the Statistical Loan Pool by aggregate Principal Balance has been granted a deferral or had its term extended on or after March 15, 2020, with the remaining loan terms having been extended by the number of monthly (or equivalent months, as the case may be) payments deferred.
(5) Non-Zero Weighted Average Current FICO® Score is as of the Statistical Cutoff Date, for most accounts where a refreshed FICO® Score is obtained.

[Remainder of page intentionally left blank.]

Distribution of the Statistical Loan Pool by Loan Product as of the Statistical Cutoff Date

Loan Product	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
Achieve Personal Loans	14,488	100.00%	$321,139,423	100.00%	715	23.40%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

Distribution of the Statistical Loan Pool by FICO® Score at Origination as of the Statistical Cutoff Date

FICO® Score at Origination	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
601 to 650.....	743	5.13%	$14,425,579	4.49%	640	25.60%
651 to 700.....	4,777	32.97%	$108,715,231	33.85%	680	25.49%
701 to 750.....	5,959	41.13%	$135,805,097	42.29%	723	23.00%
751 to 800.....	2,482	17.13%	$51,504,220	16.04%	770	20.41%
801 to 850.....	527	3.64%	$10,689,297	3.33%	816	18.53%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

Distribution of the Statistical Loan Pool by Original Term as of the Statistical Cutoff Date

Original Term (Months)(1)	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
24.....	2,424	16.73%	$22,267,191	6.93%	733	14.09%
36.....	2,209	15.25%	$52,097,893	16.22%	716	22.17%
48.....	3,682	25.41%	$87,021,997	27.10%	716	22.66%
60.....	6,173	42.61%	$159,752,342	49.75%	712	25.49%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

(1) Original Term is based on the original contractual term.

[Remainder of page intentionally left blank.]

Distribution of the Statistical Loan Pool by Remaining Term as of the Statistical Cutoff Date

Remaining Term (Months)[1]	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
1 to 12	436	3.01%	$1,974,096	0.61%	723	11.95%
13 to 24	2,449	16.90%	$27,671,064	8.62%	726	16.10%
25 to 36	2,430	16.77%	$56,716,911	17.66%	715	22.15%
37 to 48	4,094	28.26%	$96,937,303	30.19%	716	23.19%
49 to 60	5,079	35.06%	$137,840,049	42.92%	713	25.68%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

(1) Remaining Term is defined as the difference between the Original Term and loan's months on book.

Distribution of the Statistical Loan Pool by Monthly Payments Remaining as of the Statistical Cutoff Date

Monthly Payments Remaining[1]	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
1 to 12	433	2.99%	$1,954,676	0.61%	723	11.90%
13 to 24	2,445	16.88%	$27,538,540	8.58%	727	16.07%
25 to 36	2,429	16.77%	$56,683,948	17.65%	715	22.16%
37 to 48	4,094	28.26%	$96,897,342	30.17%	716	23.18%
49 to 60	5,087	35.11%	$138,064,918	42.99%	713	25.68%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

(1) Monthly Payments Remaining has been calculated by adding (a) the remaining term of a loan and (b) the number of monthly payments deferred, if any, if a loan has been deferred or had its term extended after March 15, 2020. For loans that do not pay monthly, the number of payments deferred has been converted into equivalent month(s). As of the Statistical Cutoff Date, approximately 1.19% of the Statistical Loan Pool by aggregate Principal Balance have been granted deferrals on or after March 15, 2020, and their remaining terms have been extended by the number of monthly (or equivalent months, as the case may be) payments deferred.

Distribution of the Statistical Loan Pool by APR as of the Statistical Cutoff Date

APR (%)	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
Less than or equal to 14.000	1,987	13.71%	$15,136,059	4.71%	745	8.92%
14.001 to 16.000	84	0.58%	$1,320,474	0.41%	748	15.17%
16.001 to 18.000	447	3.09%	$8,366,613	2.61%	753	17.28%
18.001 to 20.000	1,247	8.61%	$28,639,086	8.92%	745	19.15%
20.001 to 22.000	2,386	16.47%	$60,260,429	18.76%	731	20.99%
22.001 to 24.000	2,248	15.52%	$57,941,555	18.04%	718	23.02%
24.001 to 26.000	2,140	14.77%	$55,835,398	17.39%	702	25.09%
26.001 to 28.000	1,331	9.19%	$29,833,579	9.29%	700	26.96%
28.001 to 30.000	2,618	18.07%	$63,806,230	19.87%	691	29.19%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

Distribution of the Statistical Loan Pool by Interest Rate as of the Statistical Cutoff Date

Interest Rate (%)	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
Less than or equal to 12.000	2,030	14.01%	$15,806,099	4.92%	746	9.18%
12.001 to 14.000	599	4.13%	$14,147,908	4.41%	752	18.04%
14.001 to 16.000	1,481	10.22%	$32,382,692	10.08%	739	19.72%
16.001 to 18.000	2,072	14.30%	$51,623,638	16.08%	725	21.05%
18.001 to 20.000	2,221	15.33%	$55,534,156	17.29%	720	23.02%
20.001 to 22.000	2,182	15.06%	$54,321,833	16.92%	709	24.98%
22.001 to 24.000	1,317	9.09%	$32,568,986	10.14%	698	26.63%
24.001 to 26.000	2,296	15.85%	$58,933,716	18.35%	692	29.07%
26.001 to 28.000	290	2.00%	$5,820,395	1.81%	688	29.65%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

Distribution of the Statistical Loan Pool by Original Principal Balance as of the Statistical Cutoff Date

Original Principal Balance ($)	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
0.01 to 5,000.00	91	0.63%	$361,286	0.11%	726	18.35%
5,000.01 to 10,000.00	1,542	10.64%	$10,098,428	3.14%	718	18.12%
10,000.01 to 15,000.00	2,872	19.82%	$29,720,721	9.25%	718	18.73%
15,000.01 to 20,000.00	2,119	14.63%	$33,688,356	10.49%	710	23.63%
20,000.01 to 25,000.00	1,881	12.98%	$38,647,343	12.03%	715	23.92%
25,000.01 to 30,000.00	1,552	10.71%	$39,425,949	12.28%	715	24.31%
30,000.01 to 35,000.00	1,181	8.15%	$35,318,695	11.00%	718	24.15%
35,000.01 to 40,000.00	958	6.61%	$33,026,228	10.28%	716	24.21%
40,000.01 to 45,000.00	625	4.31%	$24,759,974	7.71%	717	24.50%
45,000.01 to 50,000.00	1,667	11.51%	$76,092,442	23.69%	714	24.04%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

Distribution of the Statistical Loan Pool by Current Principal Balance as of the Statistical Cutoff Date

Current Principal Balance ($)	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
0.01 to 5,000.00	626	4.32%	$2,290,471	0.71%	725	13.28%
5,000.01 to 10,000.00	2,200	15.18%	$17,404,916	5.42%	721	16.77%
10,000.01 to 15,000.00	2,445	16.88%	$30,199,437	9.40%	712	21.16%
15,000.01 to 20,000.00	2,126	14.67%	$37,271,715	11.61%	712	23.65%
20,000.01 to 25,000.00	1,809	12.49%	$40,710,211	12.68%	717	23.99%
25,000.01 to 30,000.00	1,488	10.27%	$40,917,497	12.74%	715	24.31%
30,000.01 to 35,000.00	1,065	7.35%	$34,514,443	10.75%	717	24.08%
35,000.01 to 40,000.00	863	5.96%	$32,281,618	10.05%	716	24.22%
40,000.01 to 45,000.00	710	4.90%	$30,202,315	9.40%	719	24.15%
45,000.01 to 50,000.00	1,156	7.98%	$55,346,801	17.23%	713	24.52%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

[Remainder of page intentionally left blank.]

Distribution of the Statistical Loan Pool by State as of the Statistical Cutoff Date

State[1]	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
California	1,829	12.62%	$42,394,859	13.20%	713	23.83%
Texas	1,523	10.51%	$35,704,131	11.12%	714	23.83%
New York[2]	1,688	11.65%	$30,200,438	9.40%	727	19.45%
Florida	1,083	7.48%	$24,904,093	7.75%	715	23.96%
Illinois	617	4.26%	$14,086,736	4.39%	713	23.69%
New Jersey	531	3.67%	$12,306,379	3.83%	713	24.07%
Georgia	489	3.38%	$11,518,117	3.59%	714	24.23%
Virginia	473	3.26%	$11,200,175	3.49%	716	23.95%
Pennsylvania	517	3.57%	$10,875,014	3.39%	713	23.89%
Maryland	444	3.06%	$10,589,878	3.30%	715	23.71%
Ohio	470	3.24%	$9,868,879	3.07%	714	23.75%
North Carolina	397	2.74%	$8,550,185	2.66%	712	24.01%
Massachusetts	362	2.50%	$7,879,778	2.45%	706	23.76%
Arizona	303	2.09%	$7,274,698	2.27%	714	23.84%
Michigan	346	2.39%	$7,219,317	2.25%	712	23.78%
Washington	260	1.79%	$6,524,633	2.03%	715	23.64%
Missouri	299	2.06%	$6,240,858	1.94%	718	23.03%
Tennessee	267	1.84%	$6,127,554	1.91%	713	23.64%
Indiana	277	1.91%	$5,844,769	1.82%	711	24.03%
Minnesota	253	1.75%	$5,696,598	1.77%	721	23.15%
South Carolina	189	1.30%	$4,520,963	1.41%	713	23.99%
Louisiana	193	1.33%	$4,362,159	1.36%	717	23.77%
Kentucky	172	1.19%	$3,792,776	1.18%	712	24.12%
Nevada	170	1.17%	$3,743,471	1.17%	719	23.64%
Alabama	177	1.22%	$3,704,400	1.15%	717	23.27%
Oklahoma	167	1.15%	$3,692,538	1.15%	716	23.95%
Arkansas	166	1.15%	$3,607,836	1.12%	717	23.97%
Utah	95	0.66%	$2,272,228	0.71%	715	23.87%
Mississippi	106	0.73%	$2,214,656	0.69%	719	23.91%
New Mexico	101	0.70%	$2,179,240	0.68%	713	23.56%
Oregon	88	0.61%	$2,086,288	0.65%	714	23.58%
District of Columbia	87	0.60%	$1,605,803	0.50%	724	20.10%
Idaho	62	0.43%	$1,412,390	0.44%	711	24.86%
Delaware	49	0.34%	$1,191,593	0.37%	712	24.35%
Montana	51	0.35%	$1,155,678	0.36%	713	23.62%
Alaska	47	0.32%	$1,154,738	0.36%	712	24.33%
Nebraska	42	0.29%	$1,122,253	0.35%	725	22.86%
New Hampshire	34	0.23%	$904,935	0.28%	712	23.96%
South Dakota	36	0.25%	$802,229	0.25%	731	22.53%
Rhode Island	28	0.19%	$606,158	0.19%	710	24.79%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

(1) State of Borrower's residence as stated on the loan application.

(2) As of the Statistical Cutoff Date, approximately 8.28% of the loans in the Statistical Loan Pool (by aggregate Principal Balance as of the Statistical Cutoff Date) are Subject New York Loans.

Distribution of the Statistical Loan Pool by Days Past Due as of the Statistical Cutoff Date

Days Past Due	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
Current	14,225	98.18%	$315,201,997	98.15%	716	23.38%
1 to 15	263	1.82%	$5,937,426	1.85%	702	24.15%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

Distribution of the Statistical Loan Pool by Credit Tier as of the Statistical Cutoff Date

Credit Tier	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
1	9,430	65.09%	$210,195,612	65.45%	724	21.24%
2	5,006	34.55%	$110,190,640	34.31%	700	27.48%
3	52	0.36%	$753,171	0.23%	683	27.63%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

Distribution of the Statistical Loan Pool by Loan Modification Type (if any) as of the Statistical Cutoff Date

Loan Modification Type	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
Deferral	183	1.26%	$3,699,065	1.15%	691	24.28%
Lower Payment/Term Extension	7	0.05%	$107,528	0.03%	683	21.39%
Not Applicable	14,294	98.66%	$317,237,830	98.79%	716	23.39%
SCRA	4	0.03%	$95,001	0.03%	744	23.35%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

Distribution of the Statistical Loan Pool by Monthly Payments Deferred as of the Statistical Cutoff Date

Monthly Payments Deferred(1)	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
No Deferral	14,298	98.69%	$317,332,831	98.81%	716	23.39%
0.0	7	0.05%	$130,800	0.04%	681	23.27%
1.0	119	0.82%	$2,496,626	0.78%	695	24.67%
2.0	53	0.37%	$991,152	0.31%	683	23.44%
3.0	6	0.04%	$115,263	0.04%	684	24.15%
4.0	3	0.02%	$24,751	0.01%	662	25.33%
5.0	2	0.01%	$48,001	0.01%	666	17.13%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

(1) For loans that do not pay monthly, the number of payments deferred has been converted into equivalent month(s). As of the Statistical Cutoff Date, approximately 1.19% of the Statistical Loan Pool by principal balance have been granted deferrals on or after March 15, 2020, and their remaining terms have been extended by the number of monthly (or equivalent months, as the case may be) payments deferred.

[Remainder of page intentionally left blank.]

Distribution of the Statistical Loan Pool by Co-Applicant as of the Statistical Cutoff Date

Co-Applicant	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
No	8,740	60.33%	$168,641,817	52.51%	715	23.50%
Yes	5,748	39.67%	$152,497,606	47.49%	716	23.29%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

Distribution of the Statistical Loan Pool by Percentage of Loan Proceeds Paid Direct to Creditors as of the Statistical Cutoff Date

Percentage of Loan Proceeds Paid Direct to Creditors (%)	Number of Loans	% of Number of Loans	Current Principal Balance	% of Current Principal Balance	Weighted Average Original FICO®	Weighted Average APR
Less than or equal to 20.00	1,563	10.79%	$23,738,688	7.39%	729	21.85%
20.01 to 40.00	80	0.55%	$1,468,891	0.46%	719	22.50%
40.01 to 60.00	743	5.13%	$17,983,456	5.60%	721	23.65%
60.01 to 80.00	939	6.48%	$22,737,440	7.08%	722	23.46%
80.01 to 90.00	3,182	21.96%	$76,237,406	23.74%	707	24.34%
90.01 to 100.00	7,981	55.09%	$178,973,542	55.73%	716	23.18%
Total:	**14,488**	**100.00%**	**$321,139,423**	**100.00%**	**715**	**23.40%**

[Remainder of page intentionally left blank.]

PREPAYMENT AND YIELD CONSIDERATIONS

The weighted average life of the Rated Notes will generally be influenced by the timing of the occurrence (if any) of an acceleration of the Rated Notes following an Event of Default, an Amortization Event, the rate of payment and prepayments of principal on the Loans and other factors. The Loans are prepayable in full at any time without penalty and in certain circumstances APL may or may be obligated to, a Partner Bank may be obligated to, or the Servicer may, purchase or cause its designee to purchase Loans from the Grantor Trust for the Purchase Price (which does not include future payments of interest on the Loans) or APL or the Servicer may be obligated to make certain indemnity payments with respect to the Loans. Full and/or partial prepayments on the Loans and such Purchase Price amounts and the proceeds of such indemnification payments will be paid or distributed as Available Funds as described in "*Application of Available Funds—Priority of Payments*" on the next Distribution Date following the Collection Period in which they are received. If prepayments, purchase or indemnification payments are received on the Loans, their actual weighted average lives may be shorter than their weighted average lives would be if all payments were made as scheduled and no prepayments, purchase or indemnification payments were made. "Weighted average life" means the average amount of time during which any principal is outstanding on a Loan. For this purpose "prepayments" include all full prepayments, partial prepayments, and recoveries, as well as purchase and indemnification amounts received with respect to the Loans from APL, the Partner Banks, Servicer or their respective designees. The rate and timing of prepayment on the Loans may be influenced by a variety of economic, social and other factors. See "*Risk Factors — Risks Primarily Related to the Notes and the Issuer – Yield considerations/prepayments; the yield to investors in the Notes will be sensitive to the rate and timing of principal payments thereon*" in this Private Placement Memorandum.

Moreover, under certain circumstances, the Redemption Holder may cause the Notes to be redeemed. See "*Description of the Notes—Optional Redemption*" in this Private Placement Memorandum. If any such redemption were to occur, Noteholders of the Rated Notes will receive payments of principal on their Notes earlier than they otherwise would. The exercise of the optional redemption of the Notes will cause retirement of the Class R Notes prior to the collection or charge off of all amounts owing under the Loans. This may result in Class R Noteholders receiving fewer amounts in respect of their Class R Notes than if the Notes remained outstanding and distributions continued to be made from Available Collections on each Distribution Date. The Paying Agent will notify the Class R Noteholder of any optional redemption of the Notes and provide instructions for surrender of the Class R Notes.

It is possible that the final payment on the Notes could occur significantly earlier than the applicable Maturity Date. The Noteholders of the Rated Notes will bear all the reinvestment risks resulting from distributions of principal on the Rated Notes. These reinvestment risks include the possibility that the Noteholders of the Rated Notes may not be able to reinvest distributions of principal in alternative comparable investments having similar yields. See "*Risk Factors— Risks Primarily Related to the Notes and the Issuer – Yield considerations/prepayments; the yield to investors in the Notes will be sensitive to the rate and timing of principal payments thereon*" in this Private Placement Memorandum.

Prepayments on consumer loan contracts can be measured against prepayment standards or models. The model used in this Private Placement Memorandum is based on a constant prepayment rate ("CPR"). CPR is determined by the percentage of principal outstanding at the beginning of a period that prepays during that period, stated as an annualized rate. The CPR prepayment model, like any prepayment model, does not purport to be either a historical description of prepayment experience or a prediction of the anticipated rate of prepayment.

[Remainder of page intentionally left blank.]

The tables below which are captioned "*Percent of Initial Note Balance Outstanding at Various Prepayment Assumptions*" have been prepared on the basis of indicated CPR percentages. In addition, the following modeling assumptions have been used in preparing the table below:

- the Issuer holds 217 pools of Loans with the following assumed characteristics as of the Statistical Cutoff Date:

Pool	Loan Type	Projected Principal Balance* ($)	Weighted Average Interest Rate	Weighted Average Original Term (Months)	Weighted Average Remaining Term (Months)
1	Achieve Personal Loans	2,304,271.12	9.281%	24	19
2	Achieve Personal Loans	3,768,623.50	15.930%	36	31
3	Achieve Personal Loans	7,239,887.54	17.843%	48	43
4	Achieve Personal Loans	11,222,261.55	20.394%	60	55
5	Achieve Personal Loans	244,339.45	20.616%	24	19
6	Achieve Personal Loans	1,881,592.19	21.048%	36	31
7	Achieve Personal Loans	3,057,533.37	22.588%	48	43
8	Achieve Personal Loans	9,496,459.97	25.180%	60	55
9	Achieve Personal Loans	1,848,442.73	9.733%	24	20
10	Achieve Personal Loans	4,629,023.00	16.011%	36	33
11	Achieve Personal Loans	7,732,637.99	17.546%	48	44
12	Achieve Personal Loans	13,652,670.91	20.414%	60	56
13	Achieve Personal Loans	197,486.66	20.927%	24	20
14	Achieve Personal Loans	1,863,791.57	20.962%	36	32
15	Achieve Personal Loans	3,255,070.76	22.333%	48	44
16	Achieve Personal Loans	8,083,761.18	25.130%	60	56
17	Achieve Personal Loans	4,357,071.15	9.259%	24	21
18	Achieve Personal Loans	6,136,190.67	16.030%	36	33
19	Achieve Personal Loans	12,364,449.38	17.466%	48	45
20	Achieve Personal Loans	18,022,519.04	20.331%	60	57
21	Achieve Personal Loans	370,152.70	20.856%	24	22
22	Achieve Personal Loans	2,061,653.40	20.611%	36	33
23	Achieve Personal Loans	4,079,560.26	22.539%	48	45
24	Achieve Personal Loans	9,500,456.79	25.134%	60	57
25	Achieve Personal Loans	1,998,694.41	9.150%	24	17
26	Achieve Personal Loans	3,137,479.57	15.867%	36	29
27	Achieve Personal Loans	6,612,997.15	17.545%	48	42
28	Achieve Personal Loans	8,726,678.94	20.186%	60	54
29	Achieve Personal Loans	473,790.13	20.742%	24	17
30	Achieve Personal Loans	2,061,016.20	20.909%	36	29
31	Achieve Personal Loans	3,151,344.55	22.145%	48	41
32	Achieve Personal Loans	9,028,859.74	24.994%	60	53
33	Achieve Personal Loans	1,043,870.61	9.122%	24	18
34	Achieve Personal Loans	493,550.76	10.046%	24	19
35	Achieve Personal Loans	2,203,508.52	16.189%	36	30
36	Achieve Personal Loans	1,142,291.88	15.881%	36	31
37	Achieve Personal Loans	3,969,535.63	17.525%	48	42
38	Achieve Personal Loans	1,438,044.51	17.380%	48	43
39	Achieve Personal Loans	6,077,157.99	20.289%	60	54

Pool	Loan Type	Projected Principal Balance* ($)	Weighted Average Interest Rate	Weighted Average Original Term (Months)	Weighted Average Remaining Term (Months)
40	Achieve Personal Loans	2,881,624.62	20.486%	60	55
41	Achieve Personal Loans	162,888.97	21.053%	24	18
42	Achieve Personal Loans	142,234.81	20.681%	24	19
43	Achieve Personal Loans	961,288.29	20.740%	36	30
44	Achieve Personal Loans	424,152.34	21.022%	36	31
45	Achieve Personal Loans	2,284,603.52	22.686%	48	42
46	Achieve Personal Loans	887,844.15	22.600%	48	43
47	Achieve Personal Loans	4,256,964.06	25.239%	60	54
48	Achieve Personal Loans	2,296,403.87	25.231%	60	55
49	Achieve Personal Loans	464,248.61	7.499%	24	9
50	Achieve Personal Loans	1,004,130.67	15.654%	36	22
51	Achieve Personal Loans	1,706,832.45	16.835%	48	34
52	Achieve Personal Loans	3,259,375.39	19.630%	60	46
53	Achieve Personal Loans	104,384.50	20.456%	24	10
54	Achieve Personal Loans	731,482.32	21.258%	36	22
55	Achieve Personal Loans	1,838,549.00	22.055%	48	33
56	Achieve Personal Loans	5,999,685.82	25.068%	60	46
57	Achieve Personal Loans	63,670.63	24.990%	36	21
58	Achieve Personal Loans	67,914.64	25.463%	60	46
59	Achieve Personal Loans	38,674.52	5.990%	24	6
60	Achieve Personal Loans	987,704.26	7.089%	24	10
61	Achieve Personal Loans	2,479,831.73	8.384%	24	16
62	Achieve Personal Loans	2,126,480.31	9.793%	24	21
63	Achieve Personal Loans	108,978.45	14.639%	36	18
64	Achieve Personal Loans	2,553,586.62	14.777%	36	22
65	Achieve Personal Loans	4,635,012.03	15.655%	36	28
66	Achieve Personal Loans	3,987,328.29	15.733%	36	33
67	Achieve Personal Loans	300,450.35	14.592%	48	30
68	Achieve Personal Loans	3,841,536.99	16.225%	48	34
69	Achieve Personal Loans	6,765,055.69	17.045%	48	40
70	Achieve Personal Loans	5,528,300.48	17.274%	48	45
71	Achieve Personal Loans	588,952.41	16.653%	60	42
72	Achieve Personal Loans	5,529,228.30	18.335%	60	46
73	Achieve Personal Loans	8,599,447.10	19.455%	60	52
74	Achieve Personal Loans	6,961,807.69	20.085%	60	57
75	Achieve Personal Loans	6,834.08	17.490%	24	6
76	Achieve Personal Loans	63,976.74	21.254%	24	10
77	Achieve Personal Loans	213,585.21	20.340%	24	16
78	Achieve Personal Loans	194,731.95	20.354%	24	20
79	Achieve Personal Loans	194,366.63	17.604%	36	18
80	Achieve Personal Loans	1,821,563.16	18.967%	36	22
81	Achieve Personal Loans	977,021.87	20.494%	36	28
82	Achieve Personal Loans	1,067,427.85	20.870%	36	33
83	Achieve Personal Loans	287,917.59	18.593%	48	30
84	Achieve Personal Loans	2,056,725.80	20.232%	48	34
85	Achieve Personal Loans	1,306,811.21	21.725%	48	40
86	Achieve Personal Loans	1,073,004.58	22.556%	48	45

Pool	Loan Type	Projected Principal Balance* ($)	Weighted Average Interest Rate	Weighted Average Original Term (Months)	Weighted Average Remaining Term (Months)
87	Achieve Personal Loans	176,066.37	19.207%	60	42
88	Achieve Personal Loans	4,216,105.27	24.134%	60	46
89	Achieve Personal Loans	5,280,504.78	25.047%	60	52
90	Achieve Personal Loans	3,509,405.63	25.172%	60	56
91	Achieve Personal Loans	30,050.20	25.740%	48	36
92	Achieve Personal Loans	99,935.06	25.993%	60	47
93	Achieve Personal Loans	17,983.55	14.240%	24	18
94	Achieve Personal Loans	64,202.30	8.425%	24	20
95	Achieve Personal Loans	44,515.59	15.390%	36	30
96	Achieve Personal Loans	215,067.22	16.319%	36	32
97	Achieve Personal Loans	98,598.53	19.506%	48	42
98	Achieve Personal Loans	241,701.87	19.170%	48	45
99	Achieve Personal Loans	2,876.92	14.990%	60	4
100	Achieve Personal Loans	3,618.47	13.490%	60	18
101	Achieve Personal Loans	61,806.68	13.298%	60	27
102	Achieve Personal Loans	22,152.86	11.740%	60	33
103	Achieve Personal Loans	75,367.74	18.114%	60	40
104	Achieve Personal Loans	38,475.71	17.800%	60	43
105	Achieve Personal Loans	125,518.49	17.681%	60	54
106	Achieve Personal Loans	591,959.19	20.023%	60	57
107	Achieve Personal Loans	1,182.35	17.740%	24	7
108	Achieve Personal Loans	4,688.69	21.990%	24	18
109	Achieve Personal Loans	9,718.86	19.959%	24	20
110	Achieve Personal Loans	6,620.38	16.990%	36	3
111	Achieve Personal Loans	14,895.39	17.796%	36	9
112	Achieve Personal Loans	20,866.37	20.783%	36	18
113	Achieve Personal Loans	3,018.70	21.240%	36	19
114	Achieve Personal Loans	143,175.17	21.601%	36	32
115	Achieve Personal Loans	16,898.95	21.838%	48	22
116	Achieve Personal Loans	98,770.09	21.562%	48	45
117	Achieve Personal Loans	18,131.14	19.227%	60	23
118	Achieve Personal Loans	49,131.04	19.440%	60	28
119	Achieve Personal Loans	147,669.89	19.969%	60	34
120	Achieve Personal Loans	45,434.14	25.240%	60	42
121	Achieve Personal Loans	82,127.76	25.680%	60	43
122	Achieve Personal Loans	238,731.40	25.613%	60	54
123	Achieve Personal Loans	476,475.06	25.256%	60	57
124	Achieve Personal Loans	2,134.67	21.490%	24	7
125	Achieve Personal Loans	10,669.75	20.490%	36	9
126	Achieve Personal Loans	13,174.62	21.990%	36	18
127	Achieve Personal Loans	6,289.90	20.490%	48	15
128	Achieve Personal Loans	31,161.55	23.239%	48	21
129	Achieve Personal Loans	10,050.69	25.740%	48	25
130	Achieve Personal Loans	19,547.98	21.520%	60	22
131	Achieve Personal Loans	16,690.30	21.490%	60	28
132	Achieve Personal Loans	49,405.39	23.830%	60	33
133	Achieve Personal Loans	22,292.79	26.990%	60	43

Pool	Loan Type	Projected Principal Balance* ($)	Weighted Average Interest Rate	Weighted Average Original Term (Months)	Weighted Average Remaining Term (Months)
134	Achieve Personal Loans	9,136.78	10.240%	48	19
135	Achieve Personal Loans	32,798.40	16.814%	60	21
136	Achieve Personal Loans	4,388.95	16.490%	60	26
137	Achieve Personal Loans	20,353.46	17.740%	60	38
138	Achieve Personal Loans	12,636.54	18.490%	48	15
139	Achieve Personal Loans	23,146.31	19.846%	60	23
140	Achieve Personal Loans	33,921.96	17.490%	60	25
141	Achieve Personal Loans	51,650.70	20.095%	60	33
142	Achieve Personal Loans	8,804.31	21.490%	60	38
143	Achieve Personal Loans	7,941.04	20.293%	36	1
144	Achieve Personal Loans	1,716.05	25.490%	36	12
145	Achieve Personal Loans	5,510.65	25.490%	36	14
146	Achieve Personal Loans	7,142.10	20.990%	60	24
147	Achieve Personal Loans	13,970.03	25.740%	60	41
148	Achieve Personal Loans	2,713.10	5.990%	24	6
149	Achieve Personal Loans	15,291.96	12.740%	36	17
150	Achieve Personal Loans	26,101.89	12.490%	48	23
151	Achieve Personal Loans	14,258.47	12.240%	48	30
152	Achieve Personal Loans	34,588.11	13.240%	48	31
153	Achieve Personal Loans	128,896.48	17.278%	60	40
154	Achieve Personal Loans	11,599.44	13.240%	60	44
155	Achieve Personal Loans	3,823.50	18.596%	24	3
156	Achieve Personal Loans	74,928.13	17.756%	36	17
157	Achieve Personal Loans	29,868.33	21.022%	36	19
158	Achieve Personal Loans	18,835.74	21.990%	48	24
159	Achieve Personal Loans	103,670.41	19.403%	48	30
160	Achieve Personal Loans	17,354.32	26.359%	60	3
161	Achieve Personal Loans	17,208.89	23.490%	60	15
162	Achieve Personal Loans	13,762.42	18.990%	60	23
163	Achieve Personal Loans	12,844.88	20.955%	60	27
164	Achieve Personal Loans	26,128.73	20.860%	60	33
165	Achieve Personal Loans	186,159.29	24.303%	60	42
166	Achieve Personal Loans	64,044.24	23.852%	60	43
167	Achieve Personal Loans	16,412.04	24.949%	36	16
168	Achieve Personal Loans	10,461.00	25.240%	48	30
169	Achieve Personal Loans	69,123.35	25.613%	48	31
170	Achieve Personal Loans	29,435.91	20.662%	60	30
171	Achieve Personal Loans	15,360.83	22.990%	60	33
172	Achieve Personal Loans	24,663.18	24.990%	60	38
173	Achieve Personal Loans	14,579.15	26.990%	60	43
174	Achieve Personal Loans	2,415.72	5.990%	24	7
175	Achieve Personal Loans	221,893.05	10.515%	24	23
176	Achieve Personal Loans	793,182.50	15.413%	36	35
177	Achieve Personal Loans	776,589.55	17.982%	48	47
178	Achieve Personal Loans	18,203.59	17.490%	60	22
179	Achieve Personal Loans	15,199.05	22.990%	60	46
180	Achieve Personal Loans	1,451,854.97	20.768%	60	59

Pool	Loan Type	Projected Principal Balance* ($)	Weighted Average Interest Rate	Weighted Average Original Term (Months)	Weighted Average Remaining Term (Months)
181	Achieve Personal Loans	14,707.11	21.990%	24	23
182	Achieve Personal Loans	211,654.54	19.604%	36	35
183	Achieve Personal Loans	301,063.71	23.657%	48	47
184	Achieve Personal Loans	21,984.26	23.317%	60	42
185	Achieve Personal Loans	220,745.43	25.150%	60	45
186	Achieve Personal Loans	944,074.01	25.248%	60	59
187	Achieve Personal Loans	5,950.90	22.490%	36	17
188	Achieve Personal Loans	13,178.91	26.990%	60	37
189	Achieve Personal Loans	58,755.37	5.990%	24	6
190	Achieve Personal Loans	148,522.28	5.990%	24	7
191	Achieve Personal Loans	11,664.38	10.619%	36	10
192	Achieve Personal Loans	96,948.74	13.711%	36	18
193	Achieve Personal Loans	293,469.55	13.687%	36	20
194	Achieve Personal Loans	5,343.03	13.240%	48	13
195	Achieve Personal Loans	7,687.07	10.990%	48	21
196	Achieve Personal Loans	316,005.50	14.156%	48	30
197	Achieve Personal Loans	358,333.62	14.743%	48	31
198	Achieve Personal Loans	19,650.54	12.490%	60	27
199	Achieve Personal Loans	59,401.87	11.487%	60	33
200	Achieve Personal Loans	254,075.11	16.200%	60	42
201	Achieve Personal Loans	520,738.31	16.786%	60	43
202	Achieve Personal Loans	2,800.88	20.740%	24	6
203	Achieve Personal Loans	34,765.54	16.186%	24	7
204	Achieve Personal Loans	12,574.79	15.490%	36	9
205	Achieve Personal Loans	78,110.14	16.852%	36	17
206	Achieve Personal Loans	169,534.22	17.687%	36	19
207	Achieve Personal Loans	20,892.60	21.260%	48	22
208	Achieve Personal Loans	97,427.58	18.263%	48	29
209	Achieve Personal Loans	180,878.13	18.816%	48	31
210	Achieve Personal Loans	32,243.59	19.774%	60	28
211	Achieve Personal Loans	90,436.32	19.154%	60	33
212	Achieve Personal Loans	126,942.49	19.789%	60	41
213	Achieve Personal Loans	226,640.74	22.602%	60	44
214	Achieve Personal Loans	1,360.06	19.490%	24	2
215	Achieve Personal Loans	5,643.24	25.490%	36	13
216	Achieve Personal Loans	14,895.87	26.228%	48	28
217	Achieve Personal Loans	22,862.49	20.490%	60	28

*The Projected Principal Balance as of August, 23, 2024 is based off of a 25% CPR and 55% SMM (single monthly mortality) paydown assumption to account for 31 days difference between the Statistical Cutoff Date and the Cutoff Date. Projected Weighted Average Interest Rate, Original Term, and Remaining Term are calculated using the Projected Principal Balance as of August 23, 2024. Remaining Term has been adjusted by 1 (one) month.

- all Loans are current;
- there are no defaults or losses on the Loans and no purchases of Loans or indemnification payments made by APL, any Partner Bank or the Servicer;

- prepayments on the Loans each month are made in full on the last day of each month at the specified monthly CPR and there are no defaults, losses or repurchases of Loans or indemnification payments made with respect to Loans, commencing in August 2024, assuming 22.58064516% of total forecasted collections for August 2024 will be received after the Cutoff Date;

- each scheduled monthly payment on the Loans is made on the last day of each month, whether or not such day is a Business Day, commencing in August 2024, assuming 22.58064516% of total forecasted collections for August 2024 will be received after the Cutoff Date;

- the initial Note Balance of the Class A Notes is $126,581,000;

- the initial Note Balance of the Class B Notes is $62,364,000;

- the initial Note Balance of the Class C Notes is $34,578,000;

- the initial Note Balance of the Class D Notes is $39,827,000;

- interest accrues on the Class A Notes at 5.55% per annum;

- interest accrues on the Class B Notes at 5.91% per annum;

- interest accrues on the Class C Notes at 6.18% per annum;

- interest accrues on the Class D Notes at 6.80% per annum;

- the Reserve Fund Amount on the Closing Date is $0;

- the Reserve Fund Required Amount is equal to the lesser of (i) the Outstanding Amount of all Classes of Rated Notes as of such date prior to giving effect to any payments of principal on or redemptions of the Notes on such Distribution Date and (ii) greater of (x) an amount equal to 0.25% of the Cutoff Date Pool Balance and (y) an amount equal to 0.50% of the aggregate outstanding Principal Balance of all Loans as of the last day of the related Collection Period.

- the Cutoff Date Pool Balance is approximately $308,734,746;

- the number of days of interest paid on the Rated Notes in the first distribution period is 56 days;

- payments on the Notes are made on the twenty-fifth day of each month commencing on October, 2024, whether or not such day is a Business Day;

- the Closing Date is August 29, 2024;

- the Cutoff Date is August 23, 2024;

- no Loan Modifications are made on the Loans after the Cutoff Date;

- no Event of Default occurs;

- no Available Collections Advances are made;

- the Servicer receives a monthly servicing fee equal to the greater of (i) the product of (a) 1.00%, (b) the average of the aggregate outstanding principal balance of all Loans as of the first day of the related Collection Period and as of the last day of the related Collection Period and (c) 1/12 in the case of each

Distribution Date or 37/360 for the Initial Distribution Date or (ii) $7,500, payable on each Distribution Date, commencing on the Initial Distribution Date;

- the Loan Data Agent receives a monthly fee equal to the greater of (i) the product of (a) 0.02%, (b) the aggregate outstanding principal balance of all Loans as of the first day of the related Collection Period and (c) 1/12 in the case of each Distribution Date or 37/360 for the Initial Distribution Date or (ii) $2,500, payable on each Distribution Date, commencing on the Initial Distribution Date;

- the Owner Trustee, the Grantor Trust Trustee and the Grantor Trust Certificate Registrar receive, collectively, an annual fee equal in total to $15,000, payable annually starting with the Distribution Date in August 2025;

- the Administrator receives a monthly fee equal to $416.67, and the Backup Servicer receives a monthly fee of $4,850, payable on each Distribution Date, commencing on the Initial Distribution Date;

- in addition to the fees received in its capacity as Backup Servicer, WTNA receives the following fees: (i) a monthly fee equal to $3,000 in its capacity as the Indenture Trustee, the Note Registrar, the Issuer Certificate Registrar and the Paying Agent, including with respect to its verification agent services under the Indenture, payable on each Distribution Date, and (ii) a monthly Collateral Agent fee equal to $300, payable on each Distribution Date, in each case commencing on the Initial Distribution Date;

- no interest is earned by the Issuer on amounts deposited in the Accounts;

- all other fees and expenses are zero ($0.00) and no fee or expense is subject to the caps set forth in the priority of payments;

- the Unremitted Collections Amount is assumed to be zero ($0.00);

- all of the Loans satisfy the criteria set forth under "*Description of the Loans—Loan Level Representations*" in this Private Placement Memorandum; and

- the optional redemption will not be exercised except with regards to the "Weighted Average Life (years) to Optional Redemption" in which case the Redemption Holder exercises its redemption option to purchase the Loans at the earliest opportunity.

The following tables were created relying on the assumptions listed above. The tables indicate the percentages of the initial principal amounts of the Rated Notes that would be outstanding after each of the listed Distribution Dates if a certain CPR is assumed. The tables also indicate the corresponding weighted average lives of the Rated Notes if the same percentages of CPR are assumed.

The modeling assumptions used to construct the table are hypothetical and have been provided only to give a general sense of how the principal cash flows might behave under various prepayment scenarios. The actual characteristics and performance of the Loans will differ from the modeling assumptions used to construct the table. For example, it is very unlikely that the Loans will prepay at a constant CPR until maturity or that all of the Loans will prepay at the same CPR. Moreover, the diverse terms of the Loans could produce slower or faster principal distributions than indicated in the table at the various CPRs specified. Any difference between the modeling assumptions used to construct the table and the actual characteristics and performance of the Loans, including actual prepayment experience or losses, will affect the percentages of initial principal amounts of the Rated Notes outstanding on any given date and the weighted average lives of the Notes.

As used in the table which follows, the "**weighted average life**" is determined by:

- multiplying the amount of each principal payment on the Rated Notes by the number of years from the Closing Date to the related Distribution Date;

- adding the results; and
- dividing the sum by the initial principal balance of the related Rated Notes.

[Remainder of page intentionally left blank.]

Percent of Initial Note Balance Outstanding at Various Prepayment Assumptions

Class A Notes

Distribution Date	5.00% CPR	10.00% CPR	15.00% CPR	20.00% CPR	25.00% CPR	30.00% CPR
Closing Date	100%	100%	100%	100%	100%	100%
Oct 2024	92%	90%	89%	88%	86%	84%
Nov 2024	83%	81%	79%	76%	74%	73%
Dec 2024	76%	75%	74%	72%	71%	69%
Jan 2025	74%	72%	71%	69%	67%	65%
Feb 2025	72%	70%	68%	66%	64%	62%
Mar 2025	70%	67%	65%	63%	61%	58%
Apr 2025	68%	65%	63%	60%	57%	55%
May 2025	65%	63%	60%	57%	54%	51%
Jun 2025	63%	60%	57%	54%	51%	48%
Jul 2025	61%	58%	55%	51%	48%	45%
Aug 2025	59%	56%	52%	49%	45%	42%
Sep 2025	57%	53%	50%	46%	43%	39%
Oct 2025	55%	51%	47%	44%	40%	36%
Nov 2025	52%	49%	45%	41%	37%	34%
Dec 2025	50%	46%	42%	38%	35%	31%
Jan 2026	48%	44%	40%	36%	32%	29%
Feb 2026	46%	42%	38%	34%	30%	26%
Mar 2026	44%	40%	35%	32%	28%	24%
Apr 2026	42%	37%	33%	29%	26%	22%
May 2026	40%	35%	31%	27%	23%	20%
Jun 2026	38%	33%	29%	25%	21%	18%
Jul 2026	36%	31%	27%	23%	20%	16%
Aug 2026	34%	30%	25%	22%	18%	14%
Sep 2026	32%	28%	24%	20%	16%	13%
Oct 2026	30%	26%	22%	18%	15%	11%
Nov 2026	28%	24%	20%	16%	13%	10%
Dec 2026	26%	22%	18%	15%	11%	8%
Jan 2027	24%	20%	17%	13%	10%	7%
Feb 2027	23%	19%	15%	12%	8%	6%
Mar 2027	21%	17%	13%	10%	7%	4%
Apr 2027	19%	15%	12%	9%	6%	3%
May 2027	17%	14%	10%	7%	5%	2%
Jun 2027	16%	12%	9%	6%	3%	1%
Jul 2027	14%	11%	8%	5%	2%	*
Aug 2027	13%	9%	6%	4%	1%	0%
Sep 2027	11%	8%	5%	3%	1%	0%
Oct 2027	10%	7%	4%	2%	0%	0%
Nov 2027	8%	5%	3%	1%	0%	0%
Dec 2027	7%	4%	2%	0%	0%	0%
Jan 2028	5%	3%	1%	0%	0%	0%
Feb 2028	4%	2%	0%	0%	0%	0%
Mar 2028	2%	*	0%	0%	0%	0%
Apr 2028	1%	0%	0%	0%	0%	0%
May 2028	0%	0%	0%	0%	0%	0%
Weighted Average Life (years) to Optional Redemption	1.52	1.40	1.29	1.19	1.10	1.01

Distribution Date	5.00% CPR	10.00% CPR	15.00% CPR	20.00% CPR	25.00% CPR	30.00% CPR
Weighted Average Life (years) to Maturity	1.52	1.40	1.29	1.19	1.10	1.01

* Denotes a number greater than 0.00% but smaller than 0.50%.

[Remainder of page intentionally left blank.]

Percent of Initial Note Balance Outstanding at Various Prepayment Assumptions

Class B Notes

Distribution Date	5.00% CPR	10.00% CPR	15.00% CPR	20.00% CPR	25.00% CPR	30.00% CPR
Closing Date	100%	100%	100%	100%	100%	100%
Oct 2024	100%	100%	100%	100%	100%	100%
Nov 2024	100%	100%	100%	100%	98%	95%
Dec 2024	98%	94%	90%	85%	81%	76%
Jan 2025	86%	81%	75%	70%	66%	63%
Feb 2025	76%	72%	68%	63%	61%	60%
Mar 2025	71%	67%	63%	61%	59%	57%
Apr 2025	67%	62%	60%	58%	56%	54%
May 2025	63%	60%	58%	56%	54%	51%
Jun 2025	61%	59%	56%	54%	51%	49%
Jul 2025	59%	57%	54%	51%	49%	46%
Aug 2025	58%	55%	52%	49%	47%	44%
Sep 2025	56%	53%	50%	47%	44%	42%
Oct 2025	54%	51%	48%	45%	42%	39%
Nov 2025	52%	49%	46%	43%	40%	37%
Dec 2025	51%	47%	44%	41%	38%	35%
Jan 2026	49%	46%	42%	39%	36%	33%
Feb 2026	47%	44%	41%	37%	34%	31%
Mar 2026	45%	42%	39%	36%	32%	29%
Apr 2026	44%	40%	37%	34%	31%	28%
May 2026	42%	39%	35%	32%	29%	26%
Jun 2026	40%	37%	34%	31%	27%	25%
Jul 2026	39%	36%	32%	29%	26%	23%
Aug 2026	37%	34%	31%	28%	25%	22%
Sep 2026	36%	33%	29%	26%	23%	21%
Oct 2026	34%	31%	28%	25%	22%	19%
Nov 2026	33%	30%	26%	23%	21%	18%
Dec 2026	31%	28%	25%	22%	19%	17%
Jan 2027	30%	27%	24%	21%	18%	16%
Feb 2027	28%	25%	22%	20%	17%	15%
Mar 2027	27%	24%	21%	18%	16%	14%
Apr 2027	26%	23%	20%	17%	15%	13%
May 2027	24%	21%	18%	16%	14%	12%
Jun 2027	23%	20%	17%	15%	13%	11%
Jul 2027	22%	19%	16%	14%	12%	10%
Aug 2027	20%	18%	15%	13%	11%	6%
Sep 2027	19%	17%	15%	13%	11%	1%
Oct 2027	18%	16%	14%	12%	9%	0%
Nov 2027	17%	15%	13%	11%	4%	0%
Dec 2027	16%	14%	12%	9%	0%	0%
Jan 2028	15%	13%	11%	4%	0%	0%
Feb 2028	13%	12%	5%	0%	0%	0%
Mar 2028	12%	11%	0%	0%	0%	0%
Apr 2028	11%	5%	0%	0%	0%	0%
May 2028	10%	0%	0%	0%	0%	0%
Jun 2028	3%	0%	0%	0%	0%	0%
Jul 2028	0%	0%	0%	0%	0%	0%

Weighted Average Life (years) to Optional Redemption	1.71	1.59	1.47	1.38	1.28	1.18
Weighted Average Life (years) to Maturity	1.71	1.59	1.48	1.38	1.28	1.19

[Remainder of page intentionally left blank.]

Percent of Initial Note Balance Outstanding at Various Prepayment Assumptions

Class C Notes

Distribution Date	5.00% CPR	10.00% CPR	15.00% CPR	20.00% CPR	25.00% CPR	30.00% CPR
Closing Date	100%	100%	100%	100%	100%	100%
Oct 2024	100%	100%	100%	100%	100%	100%
Nov 2024	100%	100%	100%	100%	100%	100%
Dec 2024	100%	100%	100%	100%	100%	100%
Jan 2025	100%	100%	100%	100%	100%	99%
Feb 2025	100%	100%	100%	100%	95%	90%
Mar 2025	100%	100%	99%	93%	87%	81%
Apr 2025	100%	98%	92%	86%	79%	73%
May 2025	99%	92%	86%	79%	72%	65%
Jun 2025	94%	87%	79%	72%	64%	60%
Jul 2025	89%	81%	73%	65%	60%	57%
Aug 2025	83%	75%	67%	61%	58%	54%
Sep 2025	78%	70%	62%	58%	55%	51%
Oct 2025	73%	64%	59%	56%	52%	49%
Nov 2025	68%	61%	57%	53%	50%	46%
Dec 2025	62%	58%	55%	51%	47%	44%
Jan 2026	60%	56%	52%	49%	45%	41%
Feb 2026	58%	54%	50%	46%	43%	39%
Mar 2026	56%	52%	48%	44%	41%	37%
Apr 2026	54%	50%	46%	42%	38%	35%
May 2026	52%	48%	44%	40%	36%	33%
Jun 2026	50%	46%	42%	38%	35%	31%
Jul 2026	48%	44%	40%	36%	33%	29%
Aug 2026	47%	42%	38%	35%	31%	28%
Sep 2026	45%	41%	37%	33%	29%	26%
Oct 2026	43%	39%	35%	31%	28%	25%
Nov 2026	41%	37%	33%	30%	26%	23%
Dec 2026	39%	35%	31%	28%	25%	22%
Jan 2027	37%	33%	30%	26%	23%	21%
Feb 2027	36%	32%	28%	25%	22%	19%
Mar 2027	34%	30%	27%	24%	21%	18%
Apr 2027	32%	29%	25%	22%	19%	17%
May 2027	30%	27%	24%	21%	18%	16%
Jun 2027	29%	26%	22%	20%	17%	15%
Jul 2027	28%	24%	21%	19%	16%	14%
Aug 2027	26%	23%	20%	18%	15%	14%
Sep 2027	25%	22%	19%	17%	14%	14%
Oct 2027	23%	20%	18%	16%	14%	7%
Nov 2027	22%	19%	17%	15%	14%	0%
Dec 2027	20%	18%	16%	14%	11%	0%
Jan 2028	19%	17%	14%	14%	2%	0%
Feb 2028	18%	15%	14%	10%	0%	0%
Mar 2028	16%	14%	13%	*	0%	0%
Apr 2028	15%	14%	3%	0%	0%	0%
May 2028	14%	11%	0%	0%	0%	0%
Jun 2028	14%	1%	0%	0%	0%	0%
Jul 2028	11%	0%	0%	0%	0%	0%
Aug 2028	2%	0%	0%	0%	0%	0%
Sep 2028	0%	0%	0%	0%	0%	0%

Weighted Average Life (years) to Optional Redemption	2.13	1.97	1.83	1.71	1.58	1.45
Weighted Average Life (years) to Maturity	2.15	1.99	1.85	1.73	1.60	1.48

* Denotes a number greater than 0.00% but smaller than 0.50%.

[Remainder of page intentionally left blank.]

Percent of Initial Note Balance Outstanding at Various Prepayment Assumptions

Class D Notes

Distribution Date	5.00% CPR	10.00% CPR	15.00% CPR	20.00% CPR	25.00% CPR	30.00% CPR
Closing Date	100%	100%	100%	100%	100%	100%
Oct 2024	100%	100%	100%	100%	100%	100%
Nov 2024	100%	100%	100%	100%	100%	100%
Dec 2024	100%	100%	100%	100%	100%	100%
Jan 2025	100%	100%	100%	100%	100%	100%
Feb 2025	100%	100%	100%	100%	100%	100%
Mar 2025	100%	100%	100%	100%	100%	100%
Apr 2025	100%	100%	100%	100%	100%	100%
May 2025	100%	100%	100%	100%	100%	100%
Jun 2025	100%	100%	100%	100%	100%	97%
Jul 2025	100%	100%	100%	100%	97%	93%
Aug 2025	100%	100%	100%	98%	94%	89%
Sep 2025	100%	100%	99%	95%	90%	86%
Oct 2025	100%	100%	96%	91%	87%	82%
Nov 2025	100%	98%	93%	88%	83%	79%
Dec 2025	100%	95%	90%	85%	80%	75%
Jan 2026	97%	92%	87%	82%	77%	72%
Feb 2026	95%	89%	84%	79%	74%	69%
Mar 2026	92%	86%	81%	76%	71%	66%
Apr 2026	89%	84%	78%	73%	68%	64%
May 2026	86%	81%	76%	71%	66%	61%
Jun 2026	84%	78%	73%	68%	63%	59%
Jul 2026	82%	76%	71%	66%	61%	56%
Aug 2026	79%	74%	68%	63%	59%	54%
Sep 2026	77%	71%	66%	61%	56%	52%
Oct 2026	74%	69%	64%	59%	54%	50%
Nov 2026	72%	67%	61%	57%	52%	48%
Dec 2026	69%	64%	59%	55%	50%	46%
Jan 2027	67%	62%	57%	52%	48%	45%
Feb 2027	65%	60%	55%	50%	47%	43%
Mar 2027	62%	57%	53%	49%	45%	41%
Apr 2027	60%	55%	51%	47%	43%	40%
May 2027	58%	53%	49%	45%	42%	38%
Jun 2027	56%	51%	47%	43%	40%	37%
Jul 2027	54%	49%	46%	42%	39%	36%
Aug 2027	52%	48%	44%	41%	38%	36%
Sep 2027	50%	46%	42%	39%	36%	36%
Oct 2027	48%	44%	41%	38%	35%	36%
Nov 2027	46%	43%	39%	37%	35%	35%
Dec 2027	44%	41%	38%	35%	35%	28%
Jan 2028	43%	39%	37%	35%	35%	22%
Feb 2028	41%	38%	37%	35%	30%	16%
Mar 2028	39%	36%	37%	35%	23%	10%
Apr 2028	37%	36%	37%	28%	17%	5%
May 2028	36%	36%	31%	21%	11%	0%
Jun 2028	36%	36%	23%	15%	6%	0%
Jul 2028	36%	30%	18%	11%	2%	0%
Aug 2028	36%	24%	12%	6%	0%	0%
Sep 2028	29%	17%	7%	0%	0%	0%
Oct 2028	21%	11%	0%	0%	0%	0%
Nov 2028	14%	4%	0%	0%	0%	0%

Distribution Date	5.00% CPR	10.00% CPR	15.00% CPR	20.00% CPR	25.00% CPR	30.00% CPR
Dec 2028	5%	0%	0%	0%	0%	0%
Jan 2029	0%	0%	0%	0%	0%	0%
Weighted Average Life (years) to Optional Redemption	2.95	2.78	2.61	2.48	2.32	2.14
Weighted Average Life (years) to Maturity	3.10	2.94	2.78	2.63	2.48	2.33

[Remainder of page intentionally left blank.]

DESCRIPTION OF THE NOTES

General

The Issuer will issue the Notes under the Indenture. The Class A Notes shall be designated as the "ACHV ABS Trust 2024-2PL Class A Asset-Backed Notes." The Class B Notes shall be designated as the "ACHV ABS Trust 2024-2PL Class B Asset-Backed Notes." The Class C Notes shall be designated as the "ACHV ABS Trust 2024-2PL Class C Asset-Backed Notes." The Class D Notes shall be designated as the "ACHV ABS Trust 2024-2PL Class D Asset-Backed Notes." The Class R Notes shall be designated as the "ACHV ABS Trust 2024-2PL Class R Asset-Backed Notes." The Class A Notes, Class B Notes, Class C Notes, Class D Notes and Class R Notes shall be exchange notes. The Class AB Notes shall be designated as the "ACHV ABS Trust 2024-2PL Class AB Asset-Backed Notes." The Class ABC Notes shall be designated as the "ACHV ABS Trust 2024-2PL Class ABC Asset-Backed Notes." The Class ABCD Notes shall be designated as the "ACHV ABS Trust 2024-2PL Class ABCD Asset-Backed Notes." The Class PT Notes shall be designated as the "ACHV ABS Trust 2024-2PL Class PT Asset-Backed Notes." The Class AB Notes, Class ABC Notes, Class ABCD Notes and Class PT Notes shall be exchangeable notes.

The following table sets forth the CUSIP numbers and ISIN numbers for each Class of Notes:

	Rule 144A		Regulation S	
Class of Notes	**CUSIP**	**ISIN**	**CUSIP**	**ISIN**
Class A Notes	00092HAA9	US00092HAA95	U0046YAA6	USU0046YAA65
Class B Notes	00092HAB7	US00092HAB78	U0046YAB4	USU0046YAB49
Class C Notes	00092HAC5	US00092HAC51	U0046YAC2	USU0046YAC22
Class D Notes	00092HAD3	US00092HAD35	U0046YAD0	USU0046YAD05
Class R Notes	00092HAE1	US00092HAE18	U0046YAE8	USU0046YAE87
Class AB Notes	00092HAF8	US00092HAF82	U0046YAF5	USU0046YAF52
Class ABC Notes	00092HAG6	US00092HAG65	U0046YAG3	USU0046YAG36
Class ABCD Notes	00092HAH4	US00092HAH49	U0046YAH1	USU0046YAH19
Class PT Notes	00092HAJ0	US00092HAJ05	U0046YAJ7	USU0046YAJ74

The following summary describes material terms of the Notes and the Indenture. The summary does not purport to be complete and is subject to all the provisions of the Notes and the Indenture. The Notes are subject to all terms of the Indenture.

Each Noteholder, by its acceptance of a Note, to the extent permitted by applicable law, is deemed to waive all right of trial by jury in any action, proceeding or counterclaim based on, or arising out of, under or in connection with the Indenture, any other Basic Document, the Note, or any matter arising thereunder.

Securities Law Restrictions

The Notes have not been registered under the Securities Act or registered or qualified under any State securities laws or the securities laws of any other jurisdiction. Neither the Issuer nor any other person is required to so register or qualify the Notes or to provide registration rights to any investor therein.

Each purchaser of Notes, other than the Initial Purchasers, the Issuer, APL or one of its direct or indirect subsidiaries, will be deemed to have represented and agreed that it is (i) (a) a QIB purchasing for its own account or for the account of another QIB or (b) solely in the case of Rated Notes, not a "U.S. person" (as defined in Regulation S) (and is not purchasing for the account or benefit of a "U.S. person" as defined in Regulation S), is outside the United States, and is acquiring the Notes pursuant to an exemption from registration in accordance with Rule 903 or Rule 904 of Regulation S, (ii) not purchasing the Notes with a view to the distribution thereof in violation of applicable securities laws and (iii) aware that the sale of the Notes to it is being made in reliance on Rule 144A, Regulation S (solely with respect to the Rated Notes) or another exemption from the registration requirements of the Securities Act. After the initial placement of the Notes to investors pursuant to the offering made under this Private Placement Memorandum, no interest or participation in the Notes may be reoffered, resold, pledged or otherwise transferred unless (i) the Notes are registered pursuant to the Securities Act and registered or qualified pursuant to any applicable

State securities laws or (ii) such interest is reoffered, resold, pledged or otherwise transferred (a) to a person whom the Noteholder desiring to effect such transfer reasonably believes is a QIB in a transaction meeting the requirements of Rule 144A, purchasing for its own account or the account of another QIB, whom the holder has informed that the reoffer, resale, pledge or other transfer is being made in reliance on Rule 144A, (b) solely in the case of Rated Notes, a person who is not a "U.S. person" (as defined in Regulation S) (and is not purchasing for the account or benefit of a "U.S. person" as defined in Regulation S), is outside the United States, and is acquiring the applicable Notes pursuant to an exemption from registration under the Securities Act in accordance with Rule 903 or Rule 904 of Regulation S or (c) to the Issuer or APL or one of its direct or indirect subsidiaries in a transaction that would not result in such Notes being subject to registration under the Securities Act.

Purchasers of Notes in book-entry form will be deemed to make, and each purchaser of a Note in definitive form will be required to certify in writing as to, the representations and agreements set forth under "*Notice to Investors/Transfer Restrictions*".

Any investor desiring to effect a transfer of any Note or interest therein without registration under the Securities Act and registration or qualification under applicable State securities laws will be required to, and by acceptance of its Notes or interests therein will be deemed to have agreed, to indemnify the Issuer, the Indenture Trustee and the Note Registrar against any liability that may result if the transfer is not exempt from such registration and/or qualification or is not made in accordance with such federal and State laws.

Delivery of Notes

The Rated Notes will be available for in minimum denominations of $100,000 and integral multiples of $1 in excess thereof. Unless waived by the Issuer in its sole discretion, the Class R Notes will be issued and may only be held in minimum denomination of $1,200 notional amount and integral multiples of $1 in excess thereof. The Exchangeable Notes will be issued and may only be held in permitted denominations of the corresponding Classes of Exchange Notes (after giving effect to any waiver by the Issuer described above). The Notes will initially be issued only in book-entry form. See "*Description of the Notes—Book-Entry Registration*" below for a further discussion of the book-entry registration system.

Payments of Interest

Interest on the Rated Notes will accrue at the respective per annum interest rate set forth below and will be due on each Distribution Date to the Noteholders of record as of the related Record Date. Interest on the Rated Notes will accrue for each Interest Period and will be calculated on the basis of a 360-day year consisting of twelve 30-day months (or in the case of the first Distribution Date, a period from and including the Closing Date to but excluding the first Distribution Date, on the basis of a 30-day month). The interest accruing on a Class of Rated Notes during an Interest Period will accrue on the outstanding principal amount of such Class of Rated Notes as of the end of the prior Distribution Date, or, in the case of the first Distribution Date, as of the Closing Date.

The Notes will bear interest at the following interest rates:

- Class A Notes will accrue interest at 5.07% per annum;
- Class B Notes will accrue interest at 5.43% per annum;
- Class C Notes will accrue interest at 5.72% per annum;
- Class D Notes will accrue interest at 6.40% per annum;
- No interest shall accrue on the Class R Notes; and
- Exchangeable Notes will accrue interest at a rate equal to the weighted average of the interest rates on the Classes of the corresponding Exchange Notes that are Rated Notes based on the Note Balance of such Classes of Exchange Notes for such Interest Period.

The Issuer will make interest payments on the Rated Notes on each Distribution Date from the Available Funds. Interest payments will not be made on the Class B Notes until all interest payments due on the Class A Notes are paid in full. In addition, any First Priority Principal Distribution Amount will be allocated before the payment of interest due on the Class B Notes. Interest payments will not be made on the Class C Notes until all interest payments due on the Class A Notes and the Class B Notes are paid in full. In addition, any First Priority Principal Distribution Amount and any Second Priority Principal Distribution Amount will be allocated before the payment of interest due on the Class C Notes. Interest payments will not be made on the Class D Notes until all interest payments due on the Class A Notes, the Class B Notes and the Class C Notes are paid in full. In addition, any First Priority Principal Distribution Amount, any Second Priority Principal Distribution Amount and any Third Priority Principal Distribution Amount will be allocated before the payment of interest due on the Class D Notes. See "*Application of Available Funds*" in this Private Placement Memorandum.

All interest that is due but not paid on any Distribution Date will be due on the next Distribution Date, together with interest on the unpaid amount at the applicable interest rate. Failure to pay interest that is due on the Controlling Class of Notes (other than the Class R Notes) that continues for five (5) Business Days will be an Event of Default. Failure to pay interest that is due on any Class of Notes that is not part of the Controlling Class will not be an Event of Default.

If the Rated Notes are accelerated after an Event of Default, (i) interest due on the Class B Notes will not be paid until the Class A Note Balance has been reduced to zero and interest due on the Class A Notes has been paid in full, (ii) interest due on the Class C Notes will not be paid until the Class A Note Balance and the Class B Note Balance has been reduced to zero and interest due on the Class A Notes and the Class B Notes has been paid in full and (iii) interest due on the Class D Notes will not be paid until the Class A Note Balance, Class B Note Balance and the Class C Note Balance has been reduced to zero and interest due on the Class A Notes, the Class B Notes and the Class C Notes has been paid in full.

Payments of Principal

The Issuer will make principal payments of the Rated Notes on any Distribution Date only from Available Funds held as the Principal Distribution Allocation on such Distribution Date. The application of the Principal Distribution Allocation on any Distribution Date for which an Amortization Event does not exist may result in the Class D Notes being paid down to zero while the Class A Notes, the Class B Notes and the Class C Notes remain outstanding. Any outstanding Note Balance with respect to a Class of Rated Notes is required to be repaid on the Maturity Date for such Class. If the principal amount of any Class of Notes is not repaid in full by its respective Maturity Date, an Event of Default will occur and the principal amount of all Classes of Notes may be declared immediately due and payable.

Principal payments on the Rated Notes will generally be made on a Distribution Date when the Note Balance of all Classes of Rated Notes on such date (taking into the account all principal payments on the Notes as of such date) exceeds the excess of the Pool Balance as of the end of the most recently ended Collection Period over the Required Overcollateralization Amount as of such date.

The notional amount is not intended to approximate the offering price or value of the Class R Notes. No distributions to the Class R Noteholders will reduce the notional amount of any Class R Notes. The Class R Notes are not redeemable for their nominal amount.

For the amounts and priority of principal payments, see "*Application of Available Funds*" in this Private Placement Memorandum.

Exchange Notes and Exchangeable Notes

General

All or a portion of the Exchange Notes may generally be exchanged for a proportionate interest in the Exchangeable Notes in the combination shown in Schedule III of this Private Placement Memorandum. All or a

portion of the Exchangeable Notes may also be exchanged for the corresponding Exchange Notes in the same manner, and this process may occur repeatedly. To the extent Exchangeable Notes are issued on the Closing Date, Exchange Notes with an aggregate principal amount equal to the principal amount of such Exchangeable Notes issued on the Closing Date will be deemed to have been exchanged for such Exchangeable Notes on the Closing Date in the relevant Exchangeable Combination.

Holders of Exchangeable Notes will be the beneficial owners of a proportionate interest in the corresponding Exchange Notes and will be entitled to all rights and benefits of the corresponding Exchange Notes represented thereby (including, without limitation, all payments thereon and voting and consent rights).

The Classes of Exchange Notes and Exchangeable Notes that are outstanding at any given time, and the outstanding principal amounts of these Classes, will depend upon, among other things, any payments of principal on those Classes as well as any exchanges that occur. As specified in Schedule III of this Private Placement Memorandum, Exchange Notes and Exchangeable Notes may be exchanged only in the combination (and in the applicable proportions of maximum initial principal amounts) as is shown in Schedule III of this Private Placement Memorandum.

The Exchangeable Notes are not separate legal obligations of the Issuer but are Notes issued by the Issuer which represent a combination of Classes of Exchange Notes with the payment, voting and consent rights of such Exchange Notes.

Procedures

If a Noteholder or Note Owner wishes to exchange of Exchange Notes and/or Exchangeable Notes (except with respect to the exchange of any Exchangeable Combination of Exchange Notes for the corresponding Exchangeable Notes on the Closing Date), the Noteholder or Note Owner must notify the Indenture Trustee in accordance with the Indenture, by e-mail at nhagner@wilmingtontrust.com, no later than three (3) Business Days before the proposed date on which the Note Owner proposes to make the exchange (the "Exchange Date"). The Exchange Date may occur on any Business Day other than a day that is within five (5) Business Days prior to any Distribution Date. Notwithstanding anything herein to the contrary, other than exchanges that take place on the Closing Date in connection with the initial issuance of the Notes, no exchanges of Exchange Notes and/or Exchangeable Notes may occur until after the fifth (5th) Business Day following the Closing Date in accordance with the requirements set forth in the Indenture. The Exchange Letter delivered by the Note Owner pursuant to the Indenture must be signed by two officers authorized to execute on behalf of such Note Owner (which the Indenture Trustee shall be entitled to conclusively rely on without investigation).

In connection with each exchange, the Note Owner must pay the Indenture Trustee a fee equal to $5,000 for each exchange request prior to the Exchange Date or such exchange will not be effected. In addition, the Note Owner wishing to effect such an exchange of Book-Entry Notes must pay any other expenses related to such exchange, including fees charged by DTC. No exchange fee will be required to be paid to the Paying Agent on the Closing Date in connection with the issuance of any Exchangeable Notes issued on the Closing Date.

Additional Considerations

The characteristics of the Exchangeable Notes generally will reflect in the aggregate, the characteristics of the corresponding Exchange Notes. However, the Exchangeable Notes will not be rated by any Rating Agency, even if they have been issued solely in exchange for a combination of Rated Notes. Accordingly, Exchangeable Notes may be less liquid than the corresponding Rated Notes for which they have been exchanged. See *"Risk Factors – Risk Primarily Related to the Notes and the Issuer — The Class R Notes and the Exchangeable Notes will not be rated as of the Closing Date and none of the Issuer, the Sponsors or any of their respective Affiliates has requested a rating of the Class R Notes or the Exchangeable Notes by any rating agency"* herein. Investors are encouraged to also consider several factors that will limit a Noteholder's ability to exchange Exchange Notes for Exchangeable Notes and *vice versa*:

- At the time of the proposed exchange, a Noteholder or Note Owner must own or beneficially own Exchange Notes or Exchangeable Notes of the requisite Class or Classes in the Exchangeable Combination necessary to make the desired exchange and must pay the exchange fee charged by the Indenture Trustee.

- A Noteholder or Note Owner that does not own or beneficially own the Exchange Notes of the requisite Classes in the relevant Exchangeable Combination may be unable to obtain the necessary Notes in order to effect the desired exchange. The Noteholder or Note Owner of needed Exchange Notes or Exchangeable Notes may refuse to sell them at a reasonable price (or any price) or may be unable to sell them.

- Certain Exchange Notes or Exchangeable Notes may have been purchased or placed into other financial structures and thus be unavailable for purchase.

- Exchangeable Notes may not be issued or transferred in reliance on Regulation S. Accordingly, Noteholders who acquired Rated Notes in reliance on Regulation S may not exchange such Rated Notes for Exchangeable Notes unless they are QIBs and the exchange otherwise satisfies the criteria for a transfer of Rule 144A Notes. Likewise, if a Noteholder wishes to transfer Exchangeable Notes to a transferee in reliance on Regulation S, such Noteholder will first need to exchange such Exchangeable Notes for Exchange Notes that are Rule 144A Notes, and then follow the procedures to transfer Rule 144A Exchange Notes to a transferee taking in the form of Regulation S Exchange Notes.

- Reductions of principal on the Exchange Notes and/or Exchangeable Notes and the effect of the minimum denominations will reduce the availability of the relevant Exchangeable Combination and the availability of the Exchange Notes and/or Exchangeable Notes.

- Only the combination listed in Schedule III of this Private Placement Memorandum is permitted.

Payments

The Paying Agent will make the first payment on an Exchange Note or Exchangeable Note received in an exchange transaction on the Distribution Date in the month following the date of exchange to the Noteholder of record as of the related Record Date. In the event that Exchange Notes have been exchanged for Exchangeable Notes in an Exchangeable Combination listed on Schedule III of this Private Placement Memorandum, the Exchangeable Notes received in such an exchange will be entitled to a proportionate share of the interest and principal payments otherwise allocable to the Classes of Exchange Notes so exchanged.

All references in this Private Placement Memorandum to Exchange Notes will, unless explicitly excluded or addressed in the same context, include a reference to the Class of Exchangeable Notes, if issued and outstanding, to the extent of the principal amount of any such Classes of Exchange Notes represented by the Class of Exchangeable Notes, and the rights and obligations of the holders of any such Classes of Exchange Notes (including, without limitation, with respect to any payments to such Classes of Exchange Notes or notices or consents to be given by such holders) will include the rights and obligations of the holders of the Class of Exchangeable Notes to the extent of the principal amount of any such Classes of Exchange Notes represented by the Exchangeable Notes (in all cases, without duplication), and the holders of the Class of Exchangeable Notes will generally be entitled to participate in any consent of, or any direction or objection by, the holders of the related Classes of Exchange Notes to the extent of the principal amount of any such Classes of Exchange Notes represented by the Exchangeable Notes. See "*Risk Factors — Risks Primarily Related to the Notes and the Issuer — Risks Related to the Exchange Notes and the Exchangeable Notes*".

Credit Enhancement

General

Credit enhancement for the Rated Notes will be provided by:

- overcollateralization, which is the amount by which the Pool Balance as of the end of the most recently ended Collection Period (or prior to the end of the first Collection Period, as of the Cutoff Date) exceeds the Note Balance of all classes of Rated Notes;

- excess spread, which is the amount by which the interest paid by the Borrowers exceeds the interest accrued on the Rated Notes, any required principal payments to be made on the Rated Notes in respect of Priority Principal Distribution Amounts, required deposits in the Reserve Fund and the fees, expenses and indemnities of the Issuer and the Grantor Trust (subject to the applicable caps at times prior to the acceleration of the Notes due to an Event of Default), including servicing fees, Ancillary Fees, fees, expenses and indemnities of the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Note Registrar, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar, the Paying Agent, the Collateral Agent, the Backup Servicer (including those of a Successor Servicer, as applicable), the Administrator and the Loan Data Agent and the Transition Costs of any Successor Servicer;

- in the case of the Class A Notes, the subordination of payments of interest and principal on the Class B Notes, the Class C Notes and the Class D Notes to those on the Class A Notes, in the case of the Class B Notes, the subordination of payments of interest and principal on the Class C Notes and the Class D Notes to those on the Class B Notes and in the case of the Class C Notes, the subordination of payments of interest and principal on the Class D Notes to those on the Class C Notes; and

- amounts on deposit in the Reserve Fund.

Overcollateralization

Overcollateralization represents the amount by which the Pool Balance as of the end of the most recent Collection Period (or prior to the end of the first Collection Period, as of the Cutoff Date) exceeds the aggregate Note Balance. The initial amount of overcollateralization will be approximately 14.70% of the Cutoff Date Pool Balance.

The overcollateralization will generally adjust each Collection Period based on decreases in the Pool Balance due to actual payments (including prepayments and proceeds of indemnification payments) of principal made on the Loans as well as charge-offs of defaulted Loans, and may also adjust based on changes in the amounts on deposit in the Reserve Fund. The Issuer will be required to make principal payments on the Rated Notes, to the extent of Available Funds in accordance with the priority of payments, in the amount necessary to reduce the Note Balance of all Classes of Rated Notes to an amount equal to (i) the Pool Balance as of the end of the most recently ended Collection Period minus (ii) the Required Overcollateralization Amount, to the extent of Available Funds remaining after payment of certain fees, expenses and indemnities of the Issuer (subject to the applicable caps) payable pursuant to clauses (i), (ii) and (iii) under "*Application of Available Funds—Priority of Payments*", payment of interest on the Rated Notes, any required principal payment to be made on the Rated Notes in respect of Priority Principal Distribution Amounts and any required deposit of the Reserve Fund Deficiency amount in the Reserve Fund.

Excess Spread

Excess spread will generally equal (1) the amount of interest collections on the Loans during the related Collection Period minus (2) the sum of all fees, expenses and indemnities of the Issuer (subject to the applicable caps at times prior to the acceleration of the Notes due to an Event of Default), including servicing fees, Ancillary Fees, fees, expenses and indemnities of the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Paying Agent, the Note Registrar, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar, the Collateral Agent, the Backup Servicer (including those of a Successor Servicer, as applicable), the Vault Provider, the Administrator and the Loan Data Agent and the Transition Costs of any Successor Servicer, any interest payments on the Rated Notes, any required principal payments to be made on the Rated Notes in respect of Priority Principal Distribution Amounts, and any required deposits to be made into the Reserve Fund. Any Available Funds remaining after payments described in clause (2) above, will be applied on each Distribution Date to make payments of principal amounts on the Rated Notes, sequentially, to the extent necessary to reduce the Note Balance of all Classes of the Notes to an amount equal to (i) the Pool Balance as of the end of the most recently ended Collection Period minus (ii) the Required

Overcollateralization Amount. Any remaining Available Funds will be applied on each Distribution Date to make payments of certain fees, expenses and indemnities of the Issuer over the applicable caps, with the remainder to be distributed ratably to the Noteholders of the Class R Notes.

Subordination

Payments of interest, and in certain instances principal, on the Class A Notes are higher in priority than payments of principal and interest on the Class B Notes, the Class C Notes and the Class D Notes, payments of interest, and in certain instances principal, on the Class B Notes are, in turn, higher in priority than payments of principal and interest on the Class C Notes and the Class D Notes and payments of interest, and in certain instances principal, on the Class C Notes are, in turn, higher in priority than payments of principal and interest on the Class D Notes. Consequently, to the extent that the Collateral does not generate enough cash to satisfy the Issuer's obligations on any particular Distribution Date, any shortfall on such Distribution Date will be absorbed first by the holders of the Class D Notes, then by the holders of the Class C Notes, then by the holders of the Class B Notes, and then by the holders of the Class A Notes. Any shortfall allocable to the Exchange Notes that have been exchanged for Exchangeable Notes will be borne proportionately by the Class of Exchangeable Notes. On the Closing Date, the initial Note Balance of the Class A Notes, the Class B Notes, the Class C Notes and the Class D Notes will equal approximately 41.00%, 20.20%, 11.20% and 12.90%, respectively, of the Cutoff Date Pool Balance of the Loans.

Reserve Fund

The Notes are expected to benefit from a Reserve Fund that will be funded after the Closing Date to the extent there are Available Funds for such purpose. On any Distribution Date when the amounts on deposit in the Reserve Fund (after giving effect to all required withdrawals from the Reserve Fund on such Distribution Date) are below the Reserve Fund Required Amount, which is defined to be the lesser of (i) the Outstanding Amount of all Classes of Rated Notes as of such date prior to giving effect to any payments of principal on or redemptions of the Notes on such Distribution Date and (ii) greater of (x) an amount equal to 0.25% of the Cutoff Date Pool Balance and (y) an amount equal to 0.50% of the aggregate outstanding Principal Balance of all Loans as of the last day of the related Collection Period, then the Paying Agent will be required to deposit into the Reserve Fund, solely as set forth in and in accordance with the Monthly Report, in an amount equal to the Reserve Fund Deficiency from amounts collected on or in respect of the Loans during the related Collection Period to the extent available pursuant to clause (xii) of "*Application of Available Funds—Priority of Payments*" for such purpose.

On each Determination Date, the Administrator will determine the Reserve Fund Draw Amount, if any, for such Distribution Date and indicate such amount in the related Monthly Report. If the Reserve Fund Draw Amount for any Distribution Date is greater than zero, the Paying Agent will withdraw, or cause to be withdrawn, from the Reserve Fund, solely in accordance with the Monthly Report, an amount equal to the Reserve Fund Draw Amount, and transfer such amount to the Payment Account on the Deposit Date.

If the Reserve Fund Amount for any Distribution Date (after giving effect to the withdrawal of the Reserve Fund Draw Amount for such Distribution Date and the distribution described above) exceeds the Reserve Fund Required Amount for such Distribution Date, the excess will be transferred to the Payment Account for application as described under "*Application of Available Funds—Priority of Payments*".

If the Reserve Fund Amount for any Distribution Date (after giving effect to the withdrawal of the Reserve Fund Draw Amount for such Distribution Date and the distribution described above) equals or exceeds the Outstanding Amount of all Classes of Rated Notes for such Distribution Date (after giving effect to all payments of Principal Distribution Allocation to the Notes for such Distribution Date), the Reserve Fund Amount will be used to repay the Outstanding Amount of the Notes in full.

Optional Redemption

If, as of the last day of any Collection Period, the Pool Balance shall be less than or equal to 10% of the Cutoff Date Pool Balance, the Redemption Holder will have the option to purchase or cause its designee to purchase all Loans and the related Purchased Loan Assets from the Grantor Trust on any subsequent Distribution Date for a

purchase price equal to the Redemption Price, which will be an amount equal to the Pool Balance as of the last day of the Collection Period immediately preceding the Redemption Date minus (x) amounts received after the last day of such Collection Period (and investment earnings thereon) that are on deposit in the Payment Account on the Business Day immediately preceding the Redemption Date and (y) the aggregate Principal Balance of all Loans that are more than 29 days past due as of the last day of such Collection Period; provided, however, that such amount shall be at least equal to the sum as of the Redemption Date of (i) the Outstanding Amount of Rated Notes, plus (ii) accrued and unpaid interest thereon through the related Interest Period, plus (iii) all accrued and unpaid Issuer Expenses, minus (iv) amounts on deposit in the Reserve Fund and the Payment Account. The Redemption Price will be deposited in the Payment Account and all amounts on deposit in the Payment Account, together with any amounts on deposit in the Reserve Fund, will be distributed in accordance with the priorities described under "*Application of Available Funds—Priority of Payments*" above on the related Redemption Date, and the Notes will be redeemed. If the Notes are to be redeemed pursuant to the Indenture, the Redemption Holder shall furnish notice of such redemption to the Indenture Trustee and the Paying Agent, not fewer than 10 nor more than 30 days prior to the Redemption Date, and the Redemption Holder will irrevocably deposit on the Business Day prior to the Redemption Date, with the Paying Agent for deposit in the Payment Account the Redemption Price, whereupon all such Notes shall be due and payable on the Redemption Date upon the furnishing of a notice, complying with the Indenture, to each Noteholder.

Limitation on Right to Institute Bankruptcy and Other Proceedings

The Indenture Trustee and the Paying Agent, by entering into the Indenture, and each Noteholder or Note Owner, by accepting a Note or a beneficial interest therein, as the case may be, agree that they will not at any time institute against the Issuer or the Grantor Trust, or join in any institution against the Issuer or the Grantor Trust of, any bankruptcy, reorganization, arrangement, insolvency or liquidation Proceedings, or other Proceedings under any insolvency law in connection with any obligations relating to the Notes or any Basic Document and agrees that it will not cooperate with or encourage others to file a bankruptcy petition against the Issuer or the Grantor Trust during the same period. The parties to the Indenture further agree that this obligation will survive termination of the Indenture.

In addition, no holder of any Note shall have any right to institute any Proceeding, judicial or otherwise, with respect to the Indenture, or for the appointment of a receiver or trustee, or for any other remedy under the Indenture, unless: (i) such holder has previously given written notice to the Indenture Trustee of a continuing Event of Default; (ii) the holders of Notes evidencing not less than 25% of the Note Balance of the Controlling Class of Notes have made written request to the Indenture Trustee to institute such Proceeding in respect of such Event of Default in its own name as Indenture Trustee; (iii) such holder or holders have offered to the Indenture Trustee indemnity satisfactory to it against the costs, expenses and liabilities to be incurred in complying with such request; (iv) the Indenture Trustee for 60 days after its receipt of such notice, request and offer of indemnity has failed to institute such Proceedings; and (v) no direction inconsistent with such written request has been given to the Indenture Trustee during such 60-day period by the Majority Holders.

No one or more Noteholders shall have any right in any manner whatever by virtue of, or by availing of, any provision of the Indenture to affect, disturb or prejudice the rights of any other Noteholders or to obtain or to seek to obtain priority or preference over any other Noteholders or to enforce any right under the Indenture, except in the manner therein provided.

In the event the Indenture Trustee shall receive conflicting or inconsistent requests and indemnity from two or more groups of holders of Notes, each evidencing less than the Majority Holders, the Indenture Trustee will have no obligation to take action until it receives a request and indemnity from the requisite majority of the holders of the Notes, notwithstanding any other provisions of the Indenture.

Amortization Events

With respect to any particular Distribution Date, an Amortization Event exists under the Indenture if either:

(i) the Pool Balance as of the last day of the related Collection Period is equal to or less than 10% of the Cutoff Date Pool Balance (and the Redemption Holder has not exercised its redemption right pursuant to the Indenture), or

(ii) the Cumulative Net Loss Ratio for such Distribution Date exceeds the percentage set forth opposite the month of such Distribution Date as specified on Schedule I hereto. The Cumulative Net Loss Ratio generally measures the running total of the uncollected and unrecovered Principal Balances of the Loans that have become Charged-Off Loans since the Cutoff Date, relative to the Cutoff Date Pool Balance.

If an Amortization Event exists on any particular Distribution Date, all Available Funds remaining after application of clauses (i) through (xii) under "*Application of Available Funds—Priority of Payments*" in this Private Placement Memorandum will be applied to the Principal Distribution Allocation and will continue to be so applied on subsequent Distribution Dates until such Amortization Event no longer exists or until the Outstanding Amounts of all outstanding Classes of Notes has been paid in full.

Events of Default

The occurrence and continuance of any of the following events will constitute an event of default under the Indenture (each, an "Event of Default"):

(i) failure by the Issuer to pay any interest on any Rated Note of the Controlling Class when the same becomes due and payable, and such failure shall continue for a period of five (5) Business Days;

(ii) failure by the Issuer to pay in full all of the then outstanding principal of any Class of Rated Notes on the related Maturity Date;

(iii) default in the observance or performance of any material covenant or agreement of the Issuer or the Grantor Trust made in the Indenture (other than a covenant or agreement to pay interest or principal of any Class of Rated Notes or any covenant or agreement a default in the observance or performance of which is specifically dealt with elsewhere under "Events of Default") and such default shall continue or not be cured for a period of 30 days (or for such longer period, not in excess of 60 days, as may be reasonably necessary to remedy such default; *provided* that such default is capable of remedy within 60 days and the Issuer or the Grantor Trust, as the case may be, has commenced, or will promptly commence and pursue, all reasonable efforts to remedy such default) after there shall have been given, by registered or certified mail, to the Issuer or the Grantor Trust, as the case may be, by the Indenture Trustee or to the Issuer or the Grantor Trust, as the case may be, and the Indenture Trustee, by the holders of Notes evidencing not less than 25% of the Note Balance of the Controlling Class of Notes, a written notice specifying such default and requiring it to be remedied and stating that such notice is a "Notice of Default," and as a result of such default, the interests of the Noteholders of such Controlling Class are materially and adversely affected and continue to be materially and adversely affected during such 30 day or 60 day period, as applicable;

(iv) any representation or warranty of the Issuer or the Grantor Trust, as the case may be, made in the Indenture or in any certificate or other writing delivered pursuant thereto or in connection therewith proving to have been incorrect in any material adverse respect as of the time when the same shall have been made, and the circumstance or condition in respect of which such representation or warranty was incorrect shall not have been eliminated or otherwise cured for a period of 30 days (or for such longer period, not in excess of 60 days, as may be reasonably necessary to remedy such default; *provided* that such default is capable of remedy within 60 days and the Issuer or the Grantor Trust, as the case may be, has commenced, or will promptly commence and pursue, all reasonable efforts to remedy such default) after there shall have been given, by registered or certified mail, to the Issuer or the Grantor Trust, as the case may be, by the Indenture Trustee or to the Issuer or the Grantor Trust, as the case may be, and the Indenture Trustee by the Holders of Notes evidencing not less than 25% of the Note Balance of the Controlling Class of Notes, a written notice specifying such incorrect representation or warranty and requiring it to be remedied and stating that such notice is a "Notice of Default" under the Indenture;

(v) the filing of a decree or order for relief by a court having jurisdiction in the premises in respect of the Issuer or the Grantor Trust or any substantial part of the Collateral in an involuntary case under any applicable Insolvency Law now or hereafter in effect, or appointing a receiver, liquidator, assignee, custodian, trustee, sequestrator or similar official of the Issuer or the Grantor Trust or for any substantial part of the Collateral,

or ordering the winding-up or liquidation of the Issuer's or the Grantor Trust's affairs, and such decree or order shall remain unstayed and in effect for a period of 60 consecutive days;

(vi) the commencement by the Issuer or the Grantor Trust of a voluntary case under any applicable Insolvency Law now or hereafter in effect, or the consent by the Issuer or the Grantor Trust to the entry of an order for relief in an involuntary case under any such Insolvency Law, or the consent by the Issuer or the Grantor Trust to the appointment or taking possession by a receiver, liquidator, assignee, custodian, trustee, sequestrator or similar official of the Issuer or the Grantor Trust or for any substantial part of the Collateral, or the making by the Issuer or the Grantor Trust of any general assignment for the benefit of creditors, or the failure by the Issuer or the Grantor Trust generally to pay its debts as such debts become due, or the taking of any action by the Issuer or the Grantor Trust in furtherance of any of the foregoing; or

(vii) the Issuer or the Grantor Trust shall be required to register as an "investment company" under the Investment Company Act.

If an Event of Default occurs and is continuing and if written notice of the existence thereof has been delivered to a responsible officer of the Indenture Trustee, the Indenture Trustee will be required to deliver to the Administrator, the Paying Agent and each Noteholder notice of the Event of Default, within five (5) Business Days after obtaining such knowledge or receiving notice, unless such Event of Default, if applicable, shall have been waived or cured. Notwithstanding the foregoing, except in the case of an Event of Default in payment of principal of, premium, if any, or interest on any Note, the Indenture Trustee may withhold the notice if and so long as the Indenture Trustee determines that withholding the notice is in the best interests of the holders.

Rights Upon Event of Default

If an Event of Default has occurred and is continuing, the Indenture Trustee, only if so directed in writing by the Majority Holders, will be required to declare that the Notes become immediately due and payable. Any such declaration of the acceleration of the Notes may be rescinded by the Majority Holders at any time before a judgment or decree for payment of the amount due has been obtained by the Indenture Trustee if (i) the Issuer has paid or deposited with the Paying Agent a sum sufficient to pay (A) all payments of principal of and interest on the Rated Notes, (B) all sums paid or advanced by the Indenture Trustee under the Indenture and the reasonable compensation, expenses, disbursements and advances of the Indenture Trustee, the Paying Agent and their agents and counsel, (C) all other outstanding fees and expenses owing by the Issuer and (D) all other amounts, in each case that would then be due under the Indenture or upon the Rated Notes if the Event of Default giving rise to such acceleration had not occurred, and (ii) all Events of Default, other than the nonpayment of the principal of the Notes that has become due solely by such acceleration, have been cured or waived in accordance with the Indenture.

Upon the declaration that the Notes are immediately due and payable following an Event of Default, the Indenture Trustee may, or at the written direction of the Majority Holders will be required to, exercise certain remedies with respect to the Issuer and the Collateral (including the Grantor Trust Certificate) as so directed, which may include (subject to the limitations described below) liquidating the Collateral in whole or in part, or instructing the Grantor Trust to sell or otherwise liquidate the Loans and the related Purchased Loan Assets or any portion thereof or rights or interest therein, at one or more public or private sales called and conducted in any manner permitted by law, on any date or dates following the Event of Default but will not include enforcement by the Indenture Trustee of any consumer loans against the obligors thereof. The Indenture Trustee may not liquidate the Collateral at the direction of the Noteholders following an Event of Default, other than an Event of Default described in clauses (i) or (ii) under "*Description of the Notes—Events of Default*" in this Private Placement Memorandum, unless: (A) the holders of Rated Notes evidencing 100% of the Outstanding Amount of all Classes of Rated Notes consent thereto, (B) the proceeds of such sale or liquidation will be sufficient to pay in full the Outstanding Amount of all Classes of Rated Notes, and all accrued and unpaid interest on the Outstanding Amount of the Rated Notes or (C) the Indenture Trustee determines that the Collateral will not continue to provide sufficient funds for the payment of principal of and interest on the Rated Notes as they would have become due if such Notes had not been declared immediately due and payable, and the Indenture Trustee obtains the consent of the holders of Rated Notes evidencing not less than 66 2/3% of the Outstanding Amount of all Rated Notes. In determining such sufficiency or insufficiency with respect to clauses (B) and (C), the Indenture Trustee may, but need not, obtain and rely upon an opinion of an independent investment

banking or accounting firm of national reputation as to the feasibility of such proposed action and as to the sufficiency of the Collateral for such purpose.

In determining whether the Noteholders of the requisite Note Balance have given any request, demand, authorization, direction, notice, consent or waiver under the Indenture or under any other Basic Document, (i) Notes owned by the Depositor, the Administrator or any of their respective Affiliates (including the Sponsor) shall be disregarded and deemed not to be Outstanding, except that, in determining whether the Indenture Trustee shall be protected in relying upon any such request, demand, authorization, direction, notice, consent or waiver, only Notes that a responsible officer of the Indenture Trustee either actually knows to be so owned or has received written notice thereof shall be so disregarded, (ii) any request, demand, authorization, direction, notice, consent or waiver under the Indenture or under any other Basic Document given by a Noteholder of Exchangeable Notes will be deemed to have been given by the corresponding Exchange Notes in the Note Balance of such Exchange Notes allocable to such Exchangeable Notes and (iii) Class R Notes owned by Non-Voting Class R Noteholders shall be disregarded and deemed not to be Outstanding, except that, in determining whether the Indenture Trustee shall be protected in relying upon any such request, demand, authorization, direction, notice, consent or waiver, only Notes that a responsible officer of the Indenture Trustee either actually knows to be so owned or has received written notice thereof shall be so disregarded.

Waiver of Past Defaults

Prior to the declaration of the acceleration of the maturity of the Notes, the Majority Holders may, on behalf of all Noteholders, waive any past Default or Event of Default and its consequences except a Default or Event of Default (i) in payment of principal of or interest on any of the Rated Notes or (ii) in respect of a covenant or provision hereof which cannot be modified or amended without the consent of the holder of each Note. In the case of any such waiver, the Issuer, the Indenture Trustee and Noteholders shall be restored to their former positions and rights under the Indenture, respectively; but no such waiver shall extend to any subsequent or other Default or Event of Default or impair any right consequent thereto.

Upon any such waiver, such Default or Event of Default shall cease to exist and be deemed to have been cured and not to have occurred, and any Event of Default arising therefrom shall be deemed to have been cured and not to have occurred, for every purpose of the Indenture, but no such waiver shall extend to any subsequent or other Default or Event of Default or impair any right consequent thereto.

Book-Entry Registration

General

All Notes will be issued in book-entry form through the facilities of DTC. Persons acquiring beneficial ownership interests in the Book-Entry Notes will hold such Notes through DTC (in the United States) or Clearstream or Euroclear (outside of the United States). Ownership of beneficial interests in the Book-Entry Notes will be limited to the accounts of Clearing Agency Participants and persons who hold interests through Clearing Agency Participants. Clearstream and Euroclear will hold omnibus positions on behalf of their Clearing Agency Participants through customers' securities accounts in Clearstream's and Euroclear's names on the books of their respective depositaries, which in turn will hold such positions in customers' securities accounts in the depositaries' names on the books of DTC.

The Notes, upon original issuance, will be issued in the form of a tangible Note or Notes representing the Book-Entry Notes, to be delivered to a custodian for Cede, as nominee of DTC, the initial Registered Clearing Agency, by or on behalf of the Issuer. The Book-Entry Notes shall be registered initially on the Note Register in the name of Cede, the nominee of DTC, and no Note Owner will receive a Definitive Note representing such Note Owner's interest in such Book-Entry Note, except as provided under "*—Book-Entry and Definitive Notes*" below. With respect to the Book-Entry Notes, the following shall apply:

(i) the Note Registrar, the Indenture Trustee and the Paying Agent shall be entitled to deal with the Registered Clearing Agency for all purposes of the Indenture (including the payment of principal of and interest on the

Notes and the giving of instructions or directions under the Indenture) as the sole holder of such Notes, and shall have no obligation to the Note Owners;

(ii) the rights of Note Owners shall be exercised only through the Registered Clearing Agency and shall be limited to those established by law and agreements between such Note Owners and the Registered Clearing Agency or the Clearing Agency Participants; unless and until Definitive Notes are issued as provided in "Book-Entry and Definitive Notes" below, the Registered Clearing Agency will make book-entry transfers among the Clearing Agency Participants and receive and transmit payments of principal of and interest on the Notes to such Clearing Agency Participants; and

(iii) whenever the Indenture requires or permits actions to be taken based upon instructions or directions of the holders of Notes evidencing a specified percentage of the Note Balance, the Registered Clearing Agency shall be deemed to represent such percentage only to the extent that it has received instructions to such effect from Note Owners and/or Clearing Agency Participants owning or representing, respectively, such required percentage of the beneficial interest in the Notes and has delivered such instructions to the Indenture Trustee and the Paying Agent. If such instructions are not received by the Paying Agent or the Indenture Trustee, as applicable, the Paying Agent or the Indenture Trustee, as applicable, shall not be under any obligation to take any action instructed or directed by such Clearing Agency.

Book-Entry and Definitive Notes

Each Note Owner is deemed, by virtue of its acquisition of an interest in Notes, to agree to comply with the transfer requirements described under "*Notice to Investors/Transfer Restrictions*" in this Private Placement Memorandum.

Payments on the Book-Entry Notes will be made on each Distribution Date by the Paying Agent to DTC. DTC will be responsible for crediting the amount of such payments to the accounts of the applicable DTC Participants in accordance with DTC's normal procedures. Because of time zone differences, credits of securities received in Clearstream or Euroclear as a result of a transaction with its Clearing Agency Participant will be made during subsequent securities settlement processing and dated the business day following the DTC settlement date. Such credits or any transactions in such securities settled during such processing will be reported to the relevant Euroclear or Clearstream Participants on such business day. Cash received in Clearstream or Euroclear as a result of sales of securities by or through a Clearstream Participant or Euroclear Participant to a DTC Participant will be received with value on the DTC settlement date but will be available in the relevant Clearstream or Euroclear cash account only as of the business day following settlement in DTC. Each DTC Participant, Clearstream Participant and Euroclear Participant will be responsible for disbursing such payments to the Note Owners that it represents and to each financial intermediary for which it acts as agent. Each such financial intermediary will be responsible for disbursing funds to the Note Owners of the Book-Entry Notes that it represents.

Under a book-entry format, Note Owners may experience some delay in their receipt of payments, since such payments will be forwarded by the Paying Agent to Cede, DTC's nominee. Payments with respect to Notes held through Clearstream or Euroclear will be credited to the cash accounts of Clearstream Participants or Euroclear Participants in accordance with the relevant system's rules and procedures, to the extent received by the relevant depositaries. Because DTC can only act on behalf of financial intermediaries, who in turn act on behalf of Note Owners, the ability of a Note Owner to pledge Book-Entry Notes to persons or entities that do not participate in the DTC system, or otherwise take actions in respect of such Book-Entry Notes, may be limited due to the lack of physical notes for such Book-Entry Notes. In addition, issuance of the Book-Entry Notes in book-entry form may reduce the liquidity of such Notes in the secondary market since certain prospective investors may be unwilling to purchase securities for which they cannot obtain physical notes.

Definitive Notes will be issued only if: (i) (A) the Registered Clearing Agency is no longer willing or able to properly discharge its responsibilities with respect to the Book-Entry Notes and (B) the Paying Agent is not able to locate a qualified successor; or (ii) after the occurrence of an Event of Default, owners of Book-Entry Notes representing the Majority Holders notify the Paying Agent and the Clearing Agency Participant through the Registered Clearing Agency, in writing, that the continuation of a book-entry system through the Clearing Agency is no longer in the best interests of such Note Owners.

In each case, the Paying Agent shall then notify Note Owners of the related Class of Notes through the Registered Clearing Agency of the occurrence of any such event and of the availability of Definitive Notes of the related Class of Notes to Note Owners requesting the same.

Upon surrender to the Paying Agent of the Note or Notes representing the Book-Entry Notes by the Registered Clearing Agency, accompanied by registration instructions, the Issuer at its own expense shall execute and deliver the Definitive Notes to the Paying Agent, and the Paying Agent shall authenticate the Definitive Notes in accordance with the instructions of the Clearing Agency. None of the Issuer, the Note Registrar, the Indenture Trustee or the Paying Agent shall be liable for any delay in delivery of such instructions and may conclusively rely on, and shall be protected in relying on, such instructions. Upon the issuance of Definitive Notes of a Class, the Indenture Trustee and the Paying Agent shall recognize the Noteholders of the Definitive Notes as Noteholders under the Indenture.

[Remainder of page intentionally left blank.]

APPLICATION OF AVAILABLE FUNDS

Sources of Funds for Distributions

The funds available to the Issuer to make payments on the Notes on each Distribution Date will come from Available Funds, which will be the only funds that will be used to make payments to Noteholders on each Distribution Date. The calculation of the funds available to make payments on the Notes is set forth in the definition of "Available Funds" under "*Glossary*" in this Private Placement Memorandum.

Priority of Payments

On each Distribution Date prior to the acceleration of the Notes due to an Event of Default, the Paying Agent, in accordance with the Monthly Report for such Distribution Date prepared by the Administrator, will be required to apply or cause to be applied Available Funds on deposit in the Payment Account or the Reserve Fund to make the following payments and deposits in the following order of priority (subject to the next succeeding sentence in the event Exchange Notes have been exchanged for Exchangeable Notes):

(i) *pro rata*, to (A) the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Note Registrar, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar, the Paying Agent and the Collateral Agent, to the extent not previously paid, *pro rata*, (i) any accrued and unpaid fees then due to them, and (ii) any accrued and unpaid expenses and indemnities then due to them, up to a maximum aggregate amount of expenses and indemnities of $200,000 in any calendar year; *provided* that such annual cap shall not apply with respect to the expenses and indemnities payable after the occurrence and during the continuation of an Event of Default or upon the exercise of an optional redemption of the Notes in accordance with the Indenture, and any such expenses and indemnities not paid in full in any calendar year shall be payable in subsequent years (subject to the annual cap for such year) until paid in full, and (B) the Backup Servicer, (i) any accrued and unpaid fees (other than, with respect to the Backup Servicer acting in its capacity as Successor Servicer, servicing fees, Ancillary Fees (but only to the extent such Ancillary Fees have been received as Available Collections) and Collection Fees, which shall be payable pursuant to clause (ii)(A) below) and (ii) expenses and indemnities (including those of a Successor Servicer, as applicable) then due to it, up to a maximum aggregate amount of expenses and indemnities of $250,000 in any calendar year;

(ii) *pro rata*, to (A) the Servicer, to the extent not retained by the Servicer from collections on the Loans, (1) any servicing fees then due and owing to the Servicer up to a maximum amount for such Distribution Date of the greater of the Servicing Fee for the related Collection Period and $7,500, (2) Ancillary Fees then due and owing to the Servicer (but only to the extent such Ancillary Fees have been received as Available Collections), (3) Collection Fees (for payment by the Servicer to the applicable Collection Agents, to the extent not retained by such Collection Agents) then due and owing to the applicable Collection Agents, and (4) other amounts relating to mistaken deposits, postings or checks returned for insufficient funds, and (B) to any Successor Servicer, Transition Costs not to exceed $150,000 (including onboarding fees) in the aggregate;

(iii) *pro rata*, to (A) the Administrator, any accrued and unpaid fees, expenses and indemnities then due to it, up to a maximum aggregate amount of $45,000 in any calendar year, and (B) the Loan Data Agent, any accrued and unpaid fees, expenses and indemnities then due to it, but in the case of expenses and indemnities, only up to a maximum aggregate amount of $25,000 in any calendar year;

(iv) *pro rata*, to the Class A Noteholders, any accrued and unpaid Class A Interest Distributable Amount;

(v) to the Principal Distribution Allocation, an amount equal to the First Priority Principal Distribution Amount for such Distribution Date;

(vi) *pro rata*, to the Class B Noteholders, any accrued and unpaid Class B Interest Distributable Amount;

(vii) to the Principal Distribution Allocation, an amount equal to the Second Priority Principal Distribution Amount for such Distribution Date;

(viii) *pro rata*, to the Class C Noteholders, any accrued and unpaid Class C Interest Distributable Amount;

(ix) to the Principal Distribution Allocation, an amount equal to the Third Priority Principal Distribution Amount for such Distribution Date;

(x) *pro rata*, to the Class D Noteholders, any accrued and unpaid Class D Interest Distributable Amount;

(xi) to the Principal Distribution Allocation, an amount equal to the Fourth Priority Principal Distribution Amount for such Distribution Date;

(xii) to the Reserve Fund, the Reserve Fund Deficiency for such Distribution Date, if any;

(xiii) to the Principal Distribution Allocation, an amount equal to the Regular Principal Distribution Amount for such Distribution Date;

(xiv) *pro rata*, to the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar, the Note Registrar, the Paying Agent, the Servicer, the Administrator, the Backup Servicer, the Collateral Agent, the Vault Provider and the Loan Data Agent, any unpaid fees, expenses and indemnities then due that are in excess of the related caps or monthly or annual limitations, if applicable, in clauses (i), (ii) and (iii) above; and

(xv) any remaining Available Funds will be distributed, on a *pro rata* basis, to the Class R Noteholders.

In the event that any Exchange Notes have been exchanged for the related Class of Exchangeable Notes in an Exchangeable Combination, such Class of Exchangeable Notes received in such an exchange shall be entitled to a proportionate share of the interest and principal payments, as applicable, otherwise allocable to the Exchange Notes that were exchanged for the Exchangeable Notes, in accordance with the payment priorities set forth above. See "*Description of the Notes—Exchange Notes and Exchangeable Notes*".

Notwithstanding the foregoing, the unpaid principal amount of the Notes shall be due and payable, to the extent not previously paid, on the date on which an Event of Default shall have occurred and be continuing, if the Majority Holders have caused the Notes to be declared immediately due and payable in the manner provided in the Indenture. On each Distribution Date following acceleration of the Notes due to an Event of Default that has not been rescinded or annulled, the Paying Agent will be required to apply or cause to be applied all Available Funds to make the following payments and deposits in the following order of priority (subject to the next succeeding sentence in the event Exchange Notes have been exchanged for Exchangeable Notes):

(1) *pro rata*, to the Backup Servicer, any Successor Servicer, the Servicer (solely in respect of Collection Fees for payment by the Servicer to the applicable Collection Agents) the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Note Registrar, the Paying Agent, the Collateral Agent, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar and the Vault Provider and second, *pro rata*, to the Administrator, the Servicer and the Loan Data Agent, the unpaid fees, expenses and indemnities due and owing to such entities pursuant to the priorities set forth in clauses (i), (ii), (iii) and (xiv) of the priority of payments set forth above, without regard to the caps or monthly or annual limitations set forth in such clauses, except in the case of the Loan Data Agent, for which the cap in clause (iii) of the priority of payments set forth above shall continue to apply in this clause (1);

(2) *pro rata*, to the Class A Noteholders, any accrued and unpaid Class A Interest Distributable Amount;

(3) *pro rata*, to the Class A Noteholders, payments of principal, until the Class A Note Balance has been reduced to zero;

(4) *pro rata*, to the Class B Noteholders, any accrued and unpaid Class B Interest Distributable Amount;

(5) *pro rata*, to the Class B Noteholders, payments of principal, until the Class B Note Balance has been reduced to zero;

(6) *pro rata*, to the Class C Noteholders, any accrued and unpaid Class C Interest Distributable Amount;

(7) *pro rata*, to the Class C Noteholders, payments of principal, until the Class C Note Balance has been reduced to zero;

(8) *pro rata*, to the Class D Noteholders, any accrued and unpaid Class D Interest Distributable Amount;

(9) *pro rata*, to the Class D Noteholders, payments of principal, until the Class D Note Balance has been reduced to zero;

(10) to the Loan Data Agent, the unpaid fees, expenses and indemnities due and owing to it to the extent not paid as set forth in clause (1) above; and

(11) any remaining Available Funds will be distributed, on a *pro rata* basis, to the Class R Noteholders.

In the event that any Exchange Notes have been exchanged for the related Class of Exchangeable Notes in an Exchangeable Combination, such Class of Exchangeable Notes received in such an exchange shall be entitled to a proportionate share of the interest and principal payments, as applicable, otherwise allocable to the Exchange Notes that were exchanged for the Exchangeable Notes, in accordance with the payment priorities set forth above. See "*Description of the Notes—Exchange Notes and Exchangeable Notes*".

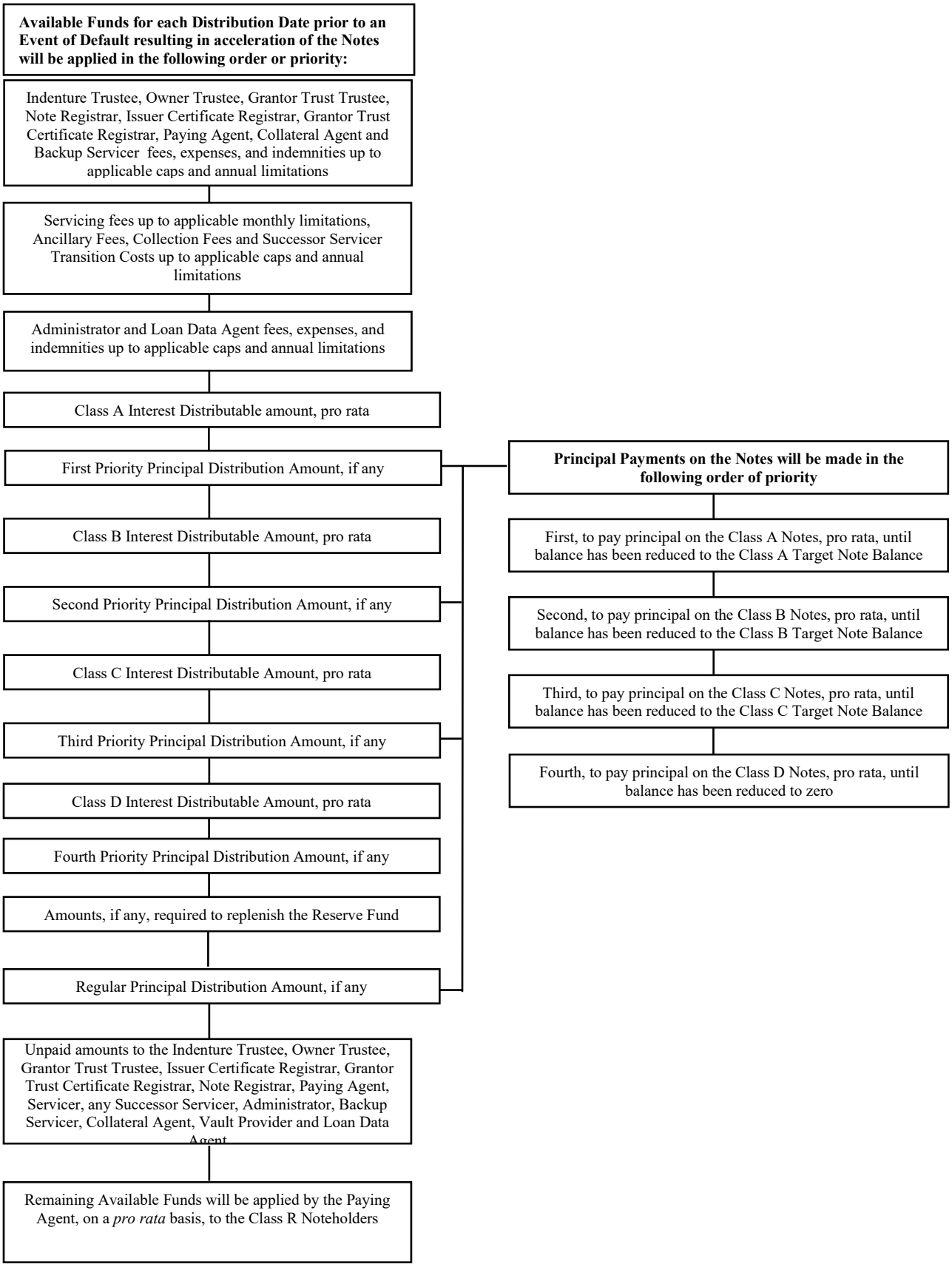
On each Distribution Date, as set forth in the Monthly Report for such Distribution Date, the Paying Agent is required to apply or cause to be applied all amounts held as the Principal Distribution Allocation, sequentially, (i) first, to the Class A Noteholders, *pro rata* based on each Class A Noteholder's portion of the Class A Note Balance, until the Class A Note Balance has been reduced to the Class A Target Note Balance; (ii) second, to the Class B Noteholders, *pro rata* based on each Class B Noteholder's portion of the Class B Note Balance, until the Class B Note Balance has been reduced to the Class B Target Note Balance; (iii) third, to the Class C Noteholders, *pro rata* based on each Class C Noteholder's portion of the Class C Note Balance, until the Class C Note Balance has been reduced to the Class C Target Note Balance and (iv) fourth, to the Class D Noteholders, *pro rata* based on each Class D Noteholder's portion of the Class D Note Balance, until the Class D Note Balance has been reduced to zero. Any remaining Principal Distribution Allocation will be required to be applied as Available Funds to make distributions pursuant to the priority of payments for, and to the extent not paid on, the same Distribution Date. Any Class of Exchangeable Notes shall be entitled to a proportionate share of the Principal Distribution Allocation otherwise allocable to the Exchange Notes that constitute such Exchangeable Notes, in accordance with the payment priorities set forth above.

If on any Distribution Date, the aggregate amount on deposit in the Payment Account and the Reserve Fund equals or exceeds the Note Balance of all Notes outstanding, the accrued and unpaid interest thereon and all amounts due in respect of Issuer Expenses, then the Administrator will be required to provide written notification thereof to the Indenture Trustee and the Paying Agent, and the Paying Agent will be required to apply or cause to be applied all such amounts to retire the Notes and to pay all such amounts due to payees of the Issuer Expenses in accordance with the Indenture, with any remainder to be paid *pro rata* to the Class R Noteholders.

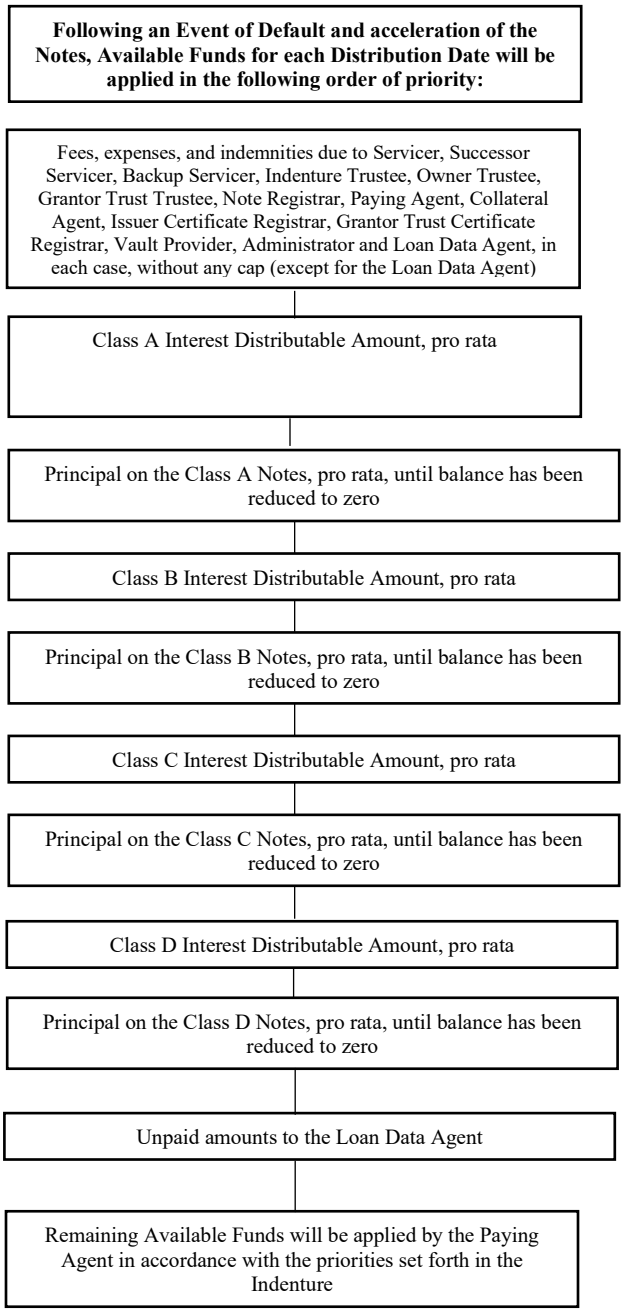
The following diagrams show how payments from Available Funds are made on each Distribution Date.

[Remainder of page intentionally left blank.]

Application of Available Funds Diagram



Application of Available Funds Diagram
(following an Event of Default and acceleration of the Notes)



DESCRIPTION OF THE BASIC DOCUMENTS

The following summary describes certain of the material terms of the Basic Documents. This summary does not claim to be complete and is subject to, and is qualified in its entirety by reference to, all the provisions of the Basic Documents.

Transfer Agreements

On the Closing Date, each Loan Seller will sell, transfer and assign all of its right, title and interest in the Loans and related Purchased Loan Assets to APL pursuant to an APL Purchase Agreement. APL will in turn sell, transfer and assign the Loans and related Purchased Loan Assets to the Loan Transferor pursuant to the Loan Transferor Purchase Agreement. The Loan Transferor will in turn sell, transfer and assign the Loans and related Purchased Loan Assets to the Depositor pursuant to the Depositor Purchase Agreement. The Depositor will in turn sell, transfer and assign the Loans and related Purchased Loan Assets to the Issuer pursuant to the Issuer Purchase Agreement, and the Issuer will contribute the Loans and related Purchased Loan Assets to the Grantor Trust pursuant to the Grantor Trust Contribution Agreement in exchange for the Grantor Trust Certificate. A portion of the net proceeds of the offering of the Notes, after required deposits into the Reserve Fund and payment of transaction expenses, will be applied to purchase the Loans and related Purchased Loan Assets from the Loan Sellers via APL, the Loan Transferor and the Depositor.

Pursuant to the Loan Transferor Purchase Agreement, APL will make certain representations and warranties and undertake certain repurchase and indemnity obligations to the Loan Transferor relating to the Loans. See "*Description of the Loans—Loan Level Representations*" in this Private Placement Memorandum. The rights of the Loan Transferor with respect to such purchase and indemnity obligations will be assigned by the Loan Transferor to the Depositor under the Depositor Purchase Agreement, by the Depositor to the Issuer under the Issuer Purchase Agreement and by the Issuer to the Grantor Trust under the Grantor Trust Contribution Agreement. As a result, APL will be obligated to repurchase, or cause its designee to purchase, any Loan directly from the Grantor Trust, if any of the Loan Level Representations made by APL with respect to such Loan was untrue as of the applicable date, such breach is not cured in all material respects and such breach materially adversely affects the interests of the Noteholders in such Loan. Notwithstanding any other provisions of the Loan Transferor Purchase Agreement to the contrary, the obligations of APL to cure in all material respects, or to purchase or cause the purchase of a Loan, shall be the sole remedy of the Grantor Trust for a breach of the Loan Level Representations in respect of any claims of economic loss related to principal, interest and fees on such Loan.

APL will be obligated to repurchase (or cause its designee to purchase) any Loan for which a Loan Level Representation has been breached no later than thirty (30) Business Days after notice or knowledge of the event giving rise to APL's obligation to repurchase, unless such breach has already been or is being cured in all material respects or such Loan is purchased or repurchased by any Partner Bank or APL or its respective designee under or in connection with the applicable Bank Purchase Agreement or, in the case of the CRB Retained Loans, the applicable APL Purchase Agreement, or the Servicer or its designee under the Servicing Agreement. The purchase price to be paid by APL for such Loan will be an amount equal to the sum of (a) the product of the Principal Balance of such Loan at the time of repurchase (or, in the case of a Charged-Off Loan, immediately prior to such Loan becoming a Charged-Off Loan) multiplied by the Purchase Price Percentage for such Loan, plus (b) all accrued but unpaid interest on such Loan. Upon receipt of such Purchase Price in the Payment Account, the Grantor Trust will transfer its interest in such Loan to APL or its applicable designee on an "AS-IS," "WHERE-IS" basis, without any representations or warranties other than with respect to the Grantor Trust's clear and marketable title to such purchased Loan and all other Purchased Loan Assets, whereupon the Indenture Trustee's lien thereon will be automatically released and the Collateral Agent will be required to take steps to remove such Loan from the Grantor Trust's eVault upon the request of the Issuer or Grantor Trust or the Administrator or the Servicer on their behalf. Any payment by APL or its applicable designee pursuant to its purchase obligation shall be made by the wire transfer of immediately available funds to the Payment Account which payments shall be deemed a distribution by the Grantor Trust to the Issuer of the Grantor Trust Certificate.

After giving effect to the series of assignments of the Loan Transferor's rights under the Loan Transferor Purchase Agreement, APL will be required to indemnify, defend and hold harmless the Grantor Trust, the Grantor Trust Trustee and their respective successors and permitted assigns and their respective directors, officers, trustees,

agents, employees, advisors, shareholders and attorneys from and against any and all losses, claims, damages, liabilities, deficiencies, obligations, fines, penalties, actions, judgments, suits or expenses (including reasonable fees and disbursements of counsel, experts, consultants and other professionals) (collectively, "Damages") incurred by the Grantor Trust and the Grantor Trust Trustee by reason of:

- any breach of any covenant or agreement or the incorrectness or inaccuracy of any representation or warranty of APL contained in the Loan Transferor Purchase Agreement or any other agreement, instrument or document executed in connection with such agreement;

- the exercise by the Grantor Trust of any rights or remedies under the Loan Transferor Purchase Agreement;

- any misappropriation of funds or theft by APL, or any party acting on its behalf;

- any theft by APL or any party acting on its behalf; or

- any fraud or grossly negligent or willful act or omission committed by APL, or any party acting on its behalf.

APL will not be obliged to indemnify, defend or hold harmless any Person harmless under the Loan Transferor Purchase Agreement from and against any Damages to the extent such Damages result from and are attributable directly to such Person's gross negligence or willful misconduct, as determined in a final, non-appealable judgment by a court of competent jurisdiction. Additionally, APL will not have any liability arising from or relating to the ongoing ability of the Borrowers to make payments under the Loans, none of the indemnities of APL under the Loan Transferor Purchase Agreement will constitute an unconditional or other guarantee by APL of the collectability of the Loans and APL will not have any obligation with respect to the financial inability of any Borrower to pay principal, interest or other amounts owing by such Borrower under a Loan. In the event an indemnified party makes a claim for indemnity with respect to Damages that may result from nonpayment of a Loan, APL will not be obligated to take any action with respect to such claim until such Loan becomes a Charged-Off Loan, so long as APL indemnifies, defends and holds harmless the indemnified party against any Damages arising from such nonpayment on a first-dollar basis to the extent such Damages do not result from and are not directly attributable directly to the indemnified person's gross negligence or willful misconduct, as determined in a final, non-appealable judgment by a court of competent jurisdiction; *provided, however*, that APL may in its sole discretion elect to take action at an earlier time. APL will calculate losses resulting from nonpayment of a Loan based upon the outstanding principal balance of such Loan.

APL will acknowledge the security interest of the Indenture Trustee in the Loan Transferor Purchase Agreement and the Servicing Agreement. In addition, APL will acknowledge that ownership of each Loan and the other Purchased Loan Assets will be vested in the Grantor Trust as of the Closing Date. In connection with the sale and conveyance of the Loans to the Loan Transferor, then to the Depositor, then to the Issuer and then contribution thereof to the Grantor Trust, APL will agree to maintain its computer records so that APL's master computer records (including any back-up archives) that refer to any Loan indicate that such Loan was conveyed to the Grantor Trust on the Closing Date.

The rights of the Grantor Trust as assignee under the Loan Transferor Purchase Agreement may be separately exercised at any time by the Issuer (as the Grantor Trust Certificateholder) and by the Administrator. Additionally, if an Event of Default has occurred and is continuing, the Indenture Trustee on behalf of the Noteholders, and acting at the direction of the Majority Holders, is entitled to enforce, either in its own name or in the name of the Grantor Trust, all rights of the Grantor Trust as assignee under the Loan Transferor Purchase Agreement.

Accounts

The Paying Agent is required to establish and maintain, at an Eligible Institution, which shall initially be the Paying Agent, in the name of the Indenture Trustee, for the benefit of (i) the Secured Parties and the Required Class R Noteholders, the Payment Account and (ii) the Secured Parties, the Reserve Fund. The Indenture Trustee, as trustee

for the benefit of the Secured Parties, shall possess all right, title and interest in all funds on deposit from time to time in the Payment Account and the Reserve Fund and in all proceeds thereof.

Under the Servicing Agreement, the Servicer will be required to direct the Borrower of each Loan to make all payments directly into a Servicing Collection Account, including by obtaining authorization from the Borrower to make ACH transfers directly into a Servicing Collection Account. The Servicer will agree that it shall direct each Collection Agent or Subcontractor to deposit all collections of any Loan received by such Collection Agent or Subcontractor (net of any Collection Fees owing thereto or, to the extent the Collection Agent does not withhold the applicable Collection Fees, all Collections) directly to a Servicing Collection Account. None of the Grantor Trust, the Indenture Trustee, the Collateral Agent or the Paying Agent will have any control over or direct access to any Servicing Collection Account. The Servicer will be required to remit, or cause to be remitted, the Net Proceeds (or, as applicable, all such Collections) of each Loan to the Payment Account within two (2) Business Days after identification in a Servicing Collection Account, and remittance shall be deemed a distribution by the Grantor Trust to the Issuer in respect of the Grantor Trust Certificate. See "*Servicing – Collections*" below.

On each Distribution Date, based on the Monthly Report prepared by the Administrator, the Paying Agent shall apply or cause to be applied the amount on deposit in the Payment Account, including the Reserve Fund Draw Amount, if any, from the Reserve Fund on such Distribution Date, in accordance with clauses (i) through (xv) under "*Application of Available Funds—Priority of Payments*" in this Private Placement Memorandum. Following the acceleration of the Notes after the occurrence of an Event of Default, amounts on deposit in the Payment Account, including the Reserve Fund Draw Amount, if any, from the Reserve Fund, will be applied in accordance with clauses (1) through (11) as described under "*Application of Available Funds—Priority of Payments*" in this Private Placement Memorandum.

If on any Distribution Date, the aggregate amount on deposit in the Payment Account and the Reserve Fund equals or exceeds the sum of the Outstanding Amount of all Classes of Rated Notes outstanding as of the last day of the related Collection Period, accrued and unpaid interest thereon and all amounts due in respect of all Issuer Expenses (without regards to any cap or annual limitations), upon notice thereof from the Administrator, the Paying Agent is required to apply all such amounts to retire the Notes and to pay all such fees, expenses and indemnities of the Issuer and the Servicer.

The Indenture requires that each of the Payment Account and the Reserve Fund be maintained at an Eligible Institution. In the event that any of the Payment Account or the Reserve Fund is no longer maintained at an Eligible Institution, the Issuer shall, with the Paying Agent's assistance if reasonably requested by the Issuer, transfer the related account or accounts within 10 Business Days (or such longer period as may be necessary in order to set up the replacement account and put an account control agreement in place with respect thereto, but in any event not to exceed 30 calendar days) to an account that is at an Eligible Institution.

Funds on deposit in the Payment Account and the Reserve Fund may be invested in Eligible Investments at the written direction of the Issuer (or the Administrator on its behalf), and will otherwise remain uninvested. All such investments shall mature (or in the case of money market funds, have the ability to be liquidated) no later than the Business Day preceding the Deposit Date in the month following the investment thereof. None of the Eligible Investments may be purchased at a premium.

Sale of Charged-Off Loans, Bankruptcy Loans and Delinquent Loans

The Grantor Trust will be authorized to sell (and execute any and all agreements, documents and instruments related thereto), or permit the Servicer on its behalf (and the Servicer will be authorized on its behalf and on behalf of the Grantor Trust Trustee, with respect to transferring title) to sell, Charged-Off Loans, Bankruptcy Loans or Delinquent Loans to one or more third-party debt buyers (or to the Administrator or an Affiliate thereof for purposes of facilitating one or more sales to third-party debt buyers) from time to time, and the Grantor Trust (or the Administrator acting on each of the Grantor Trust's and the Grantor Trust Trustee's behalf) will be authorized to enter into or provide its approval or consent to the Servicer entering into, such agreements, instruments and other documents that the Grantor Trust (or the Administrator acting on each of the Grantor Trust's and the Grantor Trust Trustee's behalf) determines in its discretion are necessary or desirable to accomplish any of the foregoing; provided, however, that the Grantor Trust will, and will require the Servicer to, remit all net proceeds of such sale (after the payment of

any fees, including any fee due to any third-party broker, and expenses relating to such sale) to the Payment Account within three (3) Business Days of the receipt of such proceeds. Upon any such sale, such Charged-Off Loans, Bankruptcy Loans or Delinquent Loans will be automatically released from the Lien under the Indenture and no longer included in the Collateral without further action by the Indenture Trustee. The Collateral Agent will, and the Indenture Trustee will upon receipt of an Issuer Order instruct the Collateral Agent to, release to or at the direction the Issuer (or the Servicer or Administrator on its behalf) the Portfolio Documents relating to each Charged-Off Loan, Bankruptcy Loans or Delinquent Loan so sold.

Servicing

APL, in its capacity as Servicer, will be required to service each Loan pursuant to the Servicing Agreement continuously from the Closing Date until the principal and interest on all Loans are paid in full or are charged off, using reasonable efforts to receive all payments due under each Loan when the same shall become due and payable, all in accordance with the Policies and Procedures and on a basis consistent with Applicable Law. For a summary of the Policies and Procedures as in effect on the date of this Private Placement Memorandum, see "*Servicing Policies and Procedures—Servicing and Collection Activities*" in this Private Placement Memorandum. The Policies and Procedures may be amended, restated, supplemented or otherwise modified from time to time by Servicer upon delivery to the Grantor Trust of a notice certifying either that (i) such modification is, in the Servicer's good faith determination, necessary in order to comply with Applicable Law or (ii) such modification (A) applies generally to the servicing practices used by Servicer for loans that are originated under the same credit policy as the Loans or applicable subset of the Loans or (B) is consistent with generally accepted industry practices.

The Servicer will have full power and authority, acting alone, to do or cause to be done any and all things in connection with such servicing and administration that Servicer may deem necessary or desirable and consistent with the terms of the Servicing Agreement, the Policies and Procedures and Applicable Law. Without limiting the generality of the foregoing, the duties of the Servicer will include the following (in each case, as applicable, consistent with Applicable Law and the Policies and Procedures): (i) issuing periodic payment instructions to the Borrower, which shall include, but not necessarily be limited to, disclosure of the remaining principal owed and the principal and interest components of the current payment, directing Loan repayment as Servicer may direct; (ii) issuing payoff demands and, at Servicer's reasonable discretion, initiating and directing, including through a Collection Agent, collection efforts, including judicial or non-judicial action, with respect to any default of any Loan; (iii) issuing annual statements to the Borrower of interest paid; (iv) answering Borrower inquiries, demands and requests; and (v) granting appropriate payment deferrals.

If an Event of Default has occurred and is continuing under the Indenture, the Indenture Trustee shall at the written direction of the Majority Holders exercise all rights, remedies, powers, privileges and claims of the Grantor Trust against the Servicer under or in connection with the Servicing Agreement, including the right or power to take any action to compel or secure performance or observance by the Servicer of its obligations to the Grantor Trust thereunder and to give any consent, request, notice, direction, approval, extension or waiver under the Servicing Agreement, and any right of the Grantor Trust to take such action shall be suspended.

Collections

The Servicer has established a Servicing Collection Account at Wells Fargo Bank, National Association, and may from time to time establish or cause to be established additional or replacement Servicing Collection Accounts. Servicer is not required to grant a security interest in, or confer control over, any Servicing Collection Account to the Grantor Trust, the Indenture Trustee or any other Person; provided, however that Servicer will agree that it will not grant a security interest in any Servicing Collection Account to which Collections on the Loans are deposited to any Person except for the Indenture Trustee. The Servicer will be responsible for the fees, expenses and indemnities payable to the bank at which a Servicing Collection Account is maintained (the "Servicing Account Bank") associated with maintaining each Servicing Collection Account. Servicer will direct the Borrower of each Loan to make all payments directly to a Servicing Collection Account (including by obtaining authorization from the Borrower to make ACH transfers directly into such Servicing Collection Account). The Servicer will be required to direct each Collection Agent and Subcontractor, as applicable, to deposit all Collections of any Loan received by such Collection Agent or Subcontractor (net of any Collection Fees owing thereto or, to the extent the Collection Agent does not withhold the applicable Collection Fees, all Collections) into a Servicing Collection Account. The Servicer will be

required to remit, or cause to be remitted, the Net Proceeds (or, as applicable, all such Collections) of each Loan to the Payment Account within two (2) Business Days after identification in a Servicing Collection Account, and remittance shall be deemed a distribution by the Grantor Trust to the Issuer in respect of the Grantor Trust Certificate. The Servicer will be required to provide the Grantor Trust and the Paying Agent with a detailed accounting of all Collections received in a Servicing Collection Account and all servicing fees or Ancillary Fees required to be remitted to the Servicer and any Collection Fees retained by a Collection Agent. The Servicer will be required to at all times during the term of the Servicing Agreement maintain (or cause to be maintained) each Servicing Collection Account as a segregated account separate and apart from any of the Servicer's own funds and general assets. The Servicer will be required to keep and maintain, or cause to be kept and maintained, in a digital format reasonably acceptable to the Grantor Trust, separate accounting records, on a Loan-by-Loan basis, for the purpose of substantiating any deposits into, withdrawals from or netting against Collections deposited into each Servicing Collection Account. The Servicer will be required to segregate and hold any and all funds collected and received by the Servicer on the Loans separate and apart from any of its own funds. Any amounts received by the Servicer will be required to be held in trust by the Servicer for the benefit of the Grantor Trust as the owner of the Loans pending deposit to the Payment Account and shall not be subject to any set-off or counterclaim by the Servicer.

Without limiting the foregoing, to the extent Collections on any Loan are received by Servicer, a Collection Agent or any Subcontractor, rather than remitted directly to a Servicing Collection Account, the Servicer will agree to receive all such payments in trust for the sole and exclusive benefit of the Grantor Trust and, in respect of Collections received by the Servicer, will be required to deposit such Collections into a Servicing Collection Account within two (2) Business Days after receipt and identification, and, in respect of Collections received by a Collection Agent or Subcontractor, will be required to direct such Collections (or Net Proceeds in the case of a Collection Agent) to be deposited into a Servicing Collection Account within three (3) Business Days after receipt and identification.

Notwithstanding anything to the contrary herein, the Servicer will, from time to time, be allowed to offset against Collections prior to deposit into the Payment Account any amount remitted to the Payment Account and later determined to be not sufficient funds (NSF), subject to providing information thereof as described below. Within five (5) Business Days after the offset of Collections, the Servicer will be required to provide the Grantor Trust with information regarding any such offset, together with reasonable supporting details.

The Servicer will be required to (i) provide any and all cooperation requested by the Administrator in order to assist the Administrator in furnishing the Monthly Report for each Distribution Date to the Grantor Trust, the Paying Agent, the Backup Servicer, the Loan Data Agent and each Rating Agency, no later than two (2) Business Days prior to such Distribution Date, the Monthly Report for the related Distribution Date and (ii) furnish to the Grantor Trust a copy of its annual audited financial statements and certain other reports.

Loan Modifications

The Servicer may, without the consent of the Grantor Trust, the Issuer, the Indenture Trustee, any Noteholder or any other Person, amend, waive, consent to the departure from or modify any term of any Loan (a "Loan Modification"), *provided* that such Loan Modification (i) is an amendment, waiver, consent or modification of an underlying document with respect to such Loan executed or effected after the date on which such Loan was advanced or otherwise came into existence that (x) is required by law or (y) is permitted under the Policies and Procedures (an "Eligible Modification"), (ii) unless such Loan Modification is required by law, such Loan Modification (x) will not result in a "significant modification" (within the meaning of Treasury Regulation § 1.1001-3) of such Loan for U.S. federal income tax purposes or (y) relates to a Loan that is, or which the Servicer reasonably foresees will become, a Delinquent Loan or Charged-Off Loan and (iii) does not extend the maturity date of such Loan beyond the Maturity Date. Without limiting the generality of the foregoing, the Servicer is authorized and empowered to execute and deliver on behalf of itself and the Grantor Trust all instruments of satisfaction or cancellation, or of partial or full release, discharge and all other comparable instruments, with respect to the Loans.

Collection Agents and Subcontractors

Pursuant to the Policies and Procedures, Servicer may at Servicer's reasonable discretion transfer servicing of any Delinquent Loans, Charged-Off Loans or Bankruptcy Loans to one or more Collection Agents, who shall conduct servicing and collections activities on such Loans. The Servicer's contracts with Collection Agents may

entitle the Collection Agents to retain a portion of the Collections collected by such Collection Agent with respect to any Delinquent Loans, Charged-Off Loans or Bankruptcy Loans and such portion will be withheld from the amount remitted by the Collection Agent to a Servicing Collection Account, or if not so withheld, shall be payable by the Grantor Trust to the Servicer for further payment by the Servicer to such Collection Agent. In such case, the Servicer will be responsible for all third-party expenses associated with such transfer of servicing activities. Such transfer will serve as a termination of Servicer's obligations, responsibilities and liabilities under the Servicing Agreement for servicing and collections activities on those transferred Loans. Notwithstanding any transfer of a Delinquent Loan or Bankruptcy Loan to a Collection Agent, servicing fees and Ancillary Fees shall continue to be charged on such Delinquent Loan or Bankruptcy Loan unless and until it becomes a Charged-Off Loan. In addition, to the extent permitted by the Policies and Procedures, the Servicer may sell, on behalf of the Grantor Trust, Delinquent Loans, Charged-Off Loans or Bankruptcy Loans to one or more third-party debt buyers (or the Administrator or an Affiliate thereof to facilitate one or more sales to third-party debt buyers) and deposit the net proceeds of such sale (after the payment of any fees, including any fee due to any third-party broker, and expenses relating to such sale) into the Payment Account within three (3) Business Days of the receipt of such proceeds by Servicer. The Servicer may enter into an agreement or agreements pursuant to which Servicer sells a pool or pools containing Delinquent Loans, Charged-Off Loans or Bankruptcy Loans owned by the Grantor Trust and Delinquent Loans, Charged-Off Loans or Bankruptcy Loans owned by one or more other parties. In the case of such a sale, Servicer shall remit to the Payment Account the Grantor Trust's pro rata share of the proceeds of such sale, which share shall be calculated by multiplying (i) the combined total outstanding unpaid balance of Loans in such pool that were owned by the Grantor Trust divided by the combined total outstanding unpaid balance of all loans in such pool, each as of the date the purchase price for such sale is calculated by (ii) the gross proceeds from the sale of the pool minus any brokerage fee or other fee or amount permitted under the Policies and Procedures, if any.

In addition to the Servicer's rights under the Servicing Agreement with respect to Collection Agents, the Servicing Agreement will permit the Servicer to enter into one or more subservicing or subcontracting arrangements with another Person (each, a "Subcontractor") delegating some or all of its duties under the Servicing Agreement; provided, however that, notwithstanding the provisions of any agreement between Servicer and any such Subcontractors, the use of a Subcontractor shall not relieve the Servicer of any of its obligations under the Servicing Agreement, including for the servicing of the Loans in accordance with the provisions of the Servicing Agreement without diminution of such obligation or liability by virtue of such agreements or arrangements with any Subcontractor or by virtue of indemnification from the Subcontractor and to the same extent and under the same terms and conditions as if the Servicer alone were servicing the Loans. The Servicing Agreement provides that the Servicer shall remain responsible for any and all acts or omissions of its Subcontractors to the same extent as if such acts or omissions were taken or omitted by the Servicer directly.

Servicing Compensation

As consideration to the Servicer for servicing the Loans pursuant to the Servicing Agreement, the Grantor Trust will be required to remit to the Servicer on each Distribution Date all servicing fees and Ancillary Fees accrued and owing by the Grantor Trust through the end of the most recently completed Collection Period that remain unpaid as of such Distribution Date. For each Collection Period, the servicing fee owing by the Grantor Trust will be calculated as follows: the greater of (a) the product of (i) 1/12th, (ii) the servicing fee rate of 1.00% and (iii) the average of the aggregate outstanding principal balance of all Loans that are not Severely Delinquent Loans or Charged-Off Loans as of the first day the related Collection Period and as of the last day of the related Collection Period, and (b) $7,500; provided, that for the initial Collection Period, such servicing fee shall be equal to the greater of (a) the product of (i) the actual number of days of the initial Collection Period, divided by 360 (on the basis of a 30-day month), (ii) the servicing fee rate of 1.00% and (iii) the average of the aggregate outstanding principal balance of all Loans that are not Severely Delinquent Loans or Charged-Off Loans as of the first day of the initial Collection Period and as of the last day of the initial Collection Period, and (b) $7,500. Under the Servicing Agreement, the Servicer will agree that such servicing fees shall be payable by the Issuer as Grantor Trust Certificateholder on behalf of the Grantor Trust, as described under "*Application of Available Funds*." Ancillary Fees with respect to any Loan will include any ancillary servicing type fees or compensation ("Ancillary Fees") derived from such Loan after the Closing Date, including, but not limited to, insufficient fund charges, name change fees and other similar servicing related fees imposed by Servicer in the exercise of its Reasonable Servicer Discretion in relation to servicing activities in amounts consistent with applicable laws, the Related Documents of such Loan and the Servicing Agreement, but in all events

not including or duplicative of (i) servicing fees, (ii) origination fees, (iii) payments of principal and interest, (iv) payments of default interest or late payment fees or (v) Collection Fees.

If the Backup Servicer or a Backup Servicer Subcontractor becomes the Successor Servicer, then the servicing fee payable to it may instead be a monthly servicing fee ranging from $7.00 to $8.75 per Loan (depending upon the volume of Loans serviced for the Grantor Trust) together with additional per Loan fees for certain past due Loans, Loans in litigation or arbitration and Loans assigned to Collection Agents, fees for Loan modifications and a percentage of late payment fees and insufficient funds charges; *provided further* that in no event will such monthly servicing fee payable to the Backup Servicer as the Successor Servicer be less than $7,500 for any Collection Period.

For more information about the amounts of fees and expenses payable by the Grantor Trust and the Issuer, see "*—Fees and Expenses*" below.

Certain Other Matters Regarding the Servicer

The Servicer will agree not to resign from the obligations and duties imposed on it under the Servicing Agreement except (i) by mutual consent of the Servicer and the Grantor Trust, (ii) if the Grantor Trust fails to pay any servicing fees or Ancillary Fees when due, and such failure to pay is not cured within thirty (30) days after such payment is due, or (iii) upon the determination that the Servicer's duties under the Servicing Agreement are no longer permissible under Applicable Law and such incapacity cannot be cured by the Servicer (any such determination permitting the resignation of Servicer shall be evidenced by an Opinion of Counsel to such effect delivered to the Grantor Trust and the Indenture Trustee). No such resignation shall become effective until a Successor Servicer shall have assumed the Servicer's responsibilities and obligations under the Servicing Agreement.

Except with respect to the transfer to a Collection Agent or a Subcontractor as described above, the Servicer will not be permitted to either assign the Servicing Agreement or the servicing thereunder or delegate its rights or duties thereunder or any portion thereof, or sell or otherwise dispose of all or substantially all of its property or assets, without the prior written approval of the Grantor Trust and, so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification.

Following the occurrence and continuance of an Event of Default under the Indenture, the Indenture Trustee, on behalf of the Noteholders, will assume all rights and authority of the Grantor Trust under the Servicing Agreement and will have the right to direct all collections in such manner as the Indenture Trustee (as directed by the Majority Holders) shall elect in writing and to receive all information and files provided for in the Servicing Agreement. Except as otherwise required by law, the Servicer will agree to hold Collections for the benefit of the Indenture Trustee, on behalf of the Noteholders, and to comply with the instructions of the Indenture Trustee, on behalf of the Noteholders and acting at the direction of the Majority Holders, with respect to such Collections without further consent by the Grantor Trust.

In the event of (i) a breach by Servicer of any representation or warranty made by Servicer in any Basic Document or (ii) a failure by Servicer to perform any obligation, covenant, or agreement contained in the Servicing Agreement, in each case, that adversely affects any Loan, the Servicer may, but shall be under no obligation to, purchase or cause one of its Affiliates to purchase the affected Loan (a "Servicer Purchase"). For each Servicer Purchase, the purchase price to be paid by Servicer (or its designated Affiliate) shall be equal to the sum of (a) the product of the Principal Balance of such Loan at the time of purchase (or, in the case of a Charged-Off Loan, immediately prior to such Loan becoming a Charged-Off Loan) multiplied by the Purchase Price Percentage for such Loan, plus (b) all accrued but unpaid interest on such Loan, plus (c) any Claims (as defined below) owing to the Grantor Trust with respect to such Loan in excess of the foregoing amounts.

Under the Servicing Agreement, the Servicer will agree to indemnify the Grantor Trust, the Grantor Trust Trustee, the Indenture Trustee and their respective agents, officers, directors, employees, members, trustees, representatives or subcontractors (collectively, the "Indemnified Party") and defend and hold Indemnified Party harmless against and reimburse Indemnified Party with respect to any and all claims, losses, penalties, fines, forfeitures, legal fees, suits, liabilities and related costs (including reasonable attorney's fees and expenses and including fees and expenses incurred in connection with enforcement of indemnification rights thereunder), including

any such fees and costs in any legal proceeding (including in court, arbitration and on any appeals), judgments, and any other costs, fees and expenses (collectively, "Claims") that the Indemnified Party may sustain arising out of (i) the fraud, bad faith, willful misconduct or gross negligence of the Servicer or its agents, (ii) the failure of the Servicer, or any Subcontractor retained by Servicer or its agents retained to perform the services of the Servicer or service the Loans in compliance with the terms of the Servicing Agreement, (iii) the failure by the Servicer, or any Subcontractor retained by Servicer or its agents to comply in any material respect with any Applicable Law with respect to any Loan or its servicing thereof, or (iv) any representation or warranty made by Servicer in the Servicing Agreement having been materially false or incorrect when made or deemed made; provided, however, that Servicer will have no obligation to indemnify the Indemnified Party for Claims to the extent such Claims are determined by a court of competent jurisdiction to have resulted from the negligence (or in the case of the Grantor Trust Trustee, gross negligence) or willful misconduct of the Indemnified Party or any of its Affiliates.

Servicer Events of Default and Termination

A "Servicer Event of Default" means the occurrence of any of the following:

(1) failure by the Servicer to remit any payment, transfer or deposit required to be made under the terms of the Servicing Agreement, which failure continues unremedied for a period of two (2) Business Days after such payment was due;

(2) failure of the Monthly Report to be delivered to the Paying Agent within two (2) Business Days after the date when due;

(3) failure on the part of the Servicer duly to observe or perform any other material covenant or agreement of Servicer in any Basic Document, and such failure has a Material Adverse Effect on the Grantor Trust and continues unremedied for a period of thirty (30) calendar days after the earlier to occur of notice to, or knowledge thereof by, the Servicer; *provided*, *however*, that any such failure that adversely affects any Loan or group of Loans shall be deemed remedied with respect to such Loan or Loans if (a) Servicer makes a Servicer Purchase or (b) APL fulfills its repurchase obligations in accordance with the Loan Transferor Purchase Agreement, in each case, with respect to such Loan or group of Loans;

(4) any representation, warranty or certification made by Servicer in any of the Basic Documents was incorrect in any material respect when made, and such occurrence has a Material Adverse Effect on the Grantor Trust and shall not have been corrected within thirty (30) calendar days after the earlier to occur of notice to, or knowledge thereof by, the Servicer; *provided*, *however*, that any such failure that adversely affects any Loan or group of Loans shall be deemed remedied with respect to such Loan or Loans if (a) Servicer makes a Servicer Purchase or (b) APL exercises its purchase rights in accordance with the Loan Transferor Purchase Agreement with respect to such Loan or group of Loans;

(5) the occurrence of an Insolvency Event relating to Servicer; or

(6) the occurrence of any event having, or that would reasonably be expected to have, a material adverse effect on the validity or enforceability of the Servicing Agreement against the Servicer or on the Servicer's ability to perform its obligations in accordance with the terms of the Servicing Agreement.

In the event of any Servicer Event of Default, then, and in each and every such case, so long as such Servicer Event of Default shall not have been remedied, the Grantor Trust or the Administrator on behalf of the Grantor Trust or, after the occurrence and during the continuance of an Event of Default under the Indenture, the Indenture Trustee on behalf of the Noteholders (acting solely at the direction of the Majority Holders), by written notice to the Servicer (a "Termination Notice") with a copy to each Rating Agency, in addition to whatever rights the Grantor Trust or Indenture Trustee on behalf of the Noteholders may have at law or in equity to damages, including injunctive relief and specific performance, may terminate all the rights and obligations of Servicer under the Servicing Agreement;

provided, however, that Servicing Agreement shall automatically terminate upon the occurrence of an Insolvency Event with respect to the Servicer.

After receipt by the Servicer of a Termination Notice, or upon the occurrence of an Insolvency Event with respect to the Servicer, the Grantor Trust or the Administrator on behalf of the Grantor Trust or, after the occurrence and during the continuance of an Event of Default, the Indenture Trustee (acting at the direction of the Majority Holders), will have the right to appoint the Backup Servicer, Firstmark, Vervent or another Person that satisfies the criteria within the definition of "Successor Servicer" to be the Successor Servicer with respect to all Loans, and on the effective date that a Successor Servicer accepts such appointment, all authority and power of the Servicer under the Servicing Agreement will pass to and be vested in the Successor Servicer (a "Servicing Transfer"). In such event, the outgoing Servicer will be obligated to (A) promptly prepare, execute and deliver to the Grantor Trust (or such successor) any and all documents and other instruments related to the Loans or as requested by the Grantor Trust or the Administrator on behalf of the Grantor Trust, (B) promptly and in any event within five (5) Business Days place in such Successor Servicer's possession all Servicing Files and Portfolio Documents in the Servicer's possession, and (C) in a timely manner, do or cause to be done all other acts or things necessary or appropriate to effect the purposes of such notice of termination, including but not limited to the transfer of the Portfolio Documents and Servicing Files, at the Servicer's sole expense (including, without limitation, with respect to all costs associated with the transfer of servicing). The outgoing Servicer must, in a timely manner, cooperate with the Grantor Trust and the Administrator in effecting the termination of the servicing responsibilities and rights under the Servicing Agreement and transfer of the servicing functions and the Servicing Files and Portfolio Documents, including without limitation, the transfer to the Successor Servicer for administration by it of all cash amounts which shall at the time be credited by the Servicer to a Servicing Collection Account or thereafter received with respect to the Loans. The Servicer will be entitled only to any accrued and unpaid servicing fees and Ancillary Fees through the effective date of such termination.

The foregoing provisions providing for the termination of the Servicing Agreement upon an Insolvency Event with respect to the Servicer may not be enforceable if the Servicer becomes a debtor in bankruptcy.

Notices Upon Servicer Event of Default

If an Authorized Officer of the Administrator on behalf of the Grantor Trust shall have actual knowledge or written notice of the occurrence of a Servicer Event of Default, the Grantor Trust will be required to promptly notify the Servicer, the Administrator, the Paying Agent, the Backup Servicer, the Rating Agencies and the Indenture Trustee and to specify in such notice the action, if any, the Grantor Trust or the Administrator on behalf of the Grantor Trust is taking with respect to such Servicer Event of Default. If a Servicer Event of Default shall arise from the failure of the Servicer to perform any of its duties or obligations under the Servicing Agreement with respect to the Loans, the Grantor Trust is required to take all reasonable steps available to it to remedy such failure.

The Grantor Trust or the Administrator on behalf of the Grantor Trust is required to promptly notify the Indenture Trustee, the Rating Agencies and the Paying Agent in writing of (i) any termination of the Servicer pursuant to the Servicing Agreement and (ii) the appointment of each Successor Servicer. Any transition fees to the Backup Servicer or the Successor Servicer will be payable by the Issuer on behalf of the Grantor Trust as described under "*Application of Available Funds—Priority of Payments*" in this Private Placement Memorandum.

So long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, the Grantor Trust or the Administrator on behalf of the Grantor Trust, upon Rating Agency Notification, and subject to the limitations described under "*Amendment—Other Basic Documents*", may waive any Servicer Event of Default (other than those set forth in clause (1) or clause (5) of the definition thereof) or any other default by the Servicer in the performance of its obligations under the Servicing Agreement and its consequences; provided, however that the Grantor Trust may not waive timely performance or observance by the Servicer of its duties or obligations under the Basic Documents if such waiver would reasonably be expected to materially adversely affect the Noteholders.

If a Servicer Event of Default occurs and if written notice of the existence thereof has been delivered to the a responsible officer of the Indenture Trustee, the Indenture Trustee will be required to deliver to the Administrator, the Depositor and each Noteholder notice of (i) the Servicer Event of Default within five (5) Business Days after such notice is received, unless a responsible officer the Indenture Trustee has received written notice that such Servicer

Event of Default shall have been waived or cured, or (ii) a waiver of the Servicer Event of Default by the parties to the Servicing Agreement.

If a Servicer Event of Default shall have occurred and shall not have been remedied within the time period applicable to it pursuant to the Servicing Agreement, the Indenture Trustee, at the written direction of the Majority Holders, will be required to terminate all (and not less than all) of the rights and obligations of the Servicer as servicer under the Servicing Agreement and to enforce and exercise all rights and powers of the Indenture Trustee thereunder to effect such termination of the Servicer and appointment of a Successor Servicer in accordance with the terms and subject to conditions of the Servicing Agreement. The Indenture Trustee shall not be required to exercise such right if it does not receive such direction of the Majority Holders.

Backup and Successor Servicing

WTNA will serve as the Backup Servicer for the Loans pursuant to terms of the Backup Servicing Agreement. Under the Backup Servicing Agreement, in the event that the Servicer is terminated pursuant to the Servicing Agreement and the Grantor Trust or the Administrator on behalf of the Grantor Trust or, after the occurrence and during the continuance of an Event of Default, the Indenture Trustee (acting at the direction of the Majority Holders), elects to appoint the Backup Servicer as Successor Servicer, then upon delivery of a notice to WTNA and the Servicer (a "Transfer Notice"), Backup Servicer will have forty-five (45) calendar days from receipt of the Transfer Notice to begin servicing, or appoint a Backup Servicer Subcontractor as Successor Servicer to begin servicing, the Loans as Successor Servicer under the Backup Servicing Agreement. Under the Backup Servicing Agreement, the Backup Servicer will be entitled to appoint a Backup Servicer Subcontractor to perform the duties and obligations of the Backup Servicer, including providing the backup servicing services and the successor servicing services under the Backup Servicing Agreement as a subcontractor on behalf of the Backup Servicer. Generally, the use of a Backup Servicer Subcontractor will not relieve the Backup Servicer of any of its obligations under the Backup Servicing Agreement; provided, however that the Backup Servicer will be entitled to appoint its Backup Servicer Subcontractor to directly become the Successor Servicer in which case the Backup Servicer will incur no liability for such appointment or any acts or omission of such Backup Servicer Subcontractor, solely with respect to such Backup Servicer Subcontractor's role as Successor Servicer, and shall have no responsibility to monitor or supervise such Backup Servicer Subcontractor or any of such Backup Servicer Subcontractor's agents, attorneys, custodians or nominees in the performance of the duties to be performed by such Backup Servicer Subcontractor as Successor Servicer as of the effective date of such appointment. Upon acceptance of appointment as Successor Servicer, the Backup Servicer Subcontractor will join as a party to the Backup Servicing Agreement and be liable directly for the obligations of the Successor Servicer under the Backup Servicing Agreement arising on and after the time of the Backup Servicer Subcontractor's acceptance of such appointment as Successor Servicer. Firstmark will be appointed by the Backup Servicer as its initial Backup Servicer Subcontractor on the Closing Date as permitted by the Backup Servicing Agreement. Firstmark, as the initial Backup Servicer Subcontractor, will be designated by the Backup Servicer to perform the duties and obligations of the Backup Servicer under the Backup Servicing Agreement, including providing the backup servicing services and the successor servicing services under the Backup Servicing Agreement as a subcontractor on behalf of the Backup Servicer. The Backup Servicer may only appoint a Person other than Firstmark or Vervent as its Backup Servicer Subcontractor if at the time of such appointment (a) if any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification is given and (b) such Person services at least $50,000,000 in outstanding principal balance of consumer loans. The Successor Servicer will be required to diligently perform the successor services set forth in the Backup Servicing Agreement, including portfolio setup, payment posting, customer service, collections and reporting, as set forth in the Backup Servicing Agreement in good faith and in accordance with industry standards customary for servicing financial transactions of the type which comprise the Loans. However, there can be no assurance that the manner in which the Loans are serviced by a Successor Servicer would be the same as the manner in which APL services the Loans, including with respect to practices regarding application of Borrower payments, monthly due dates, late fees, Ancillary Fees and Loan modifications. Notwithstanding the delivery of a Transfer Notice, Backup Servicer or its appointed Backup Servicer Subcontractor will not be obliged to complete the transfer of servicing and assume the role of Successor Servicer for so long as the Grantor Trust, the Servicer or any other Person fails to provide access to its facilities or items and information necessary to begin servicing the Loans or Backup Servicer's or its appointee's ability to take on such servicing role is otherwise frustrated in a continuing and material manner.

The Backup Servicer or a Backup Servicer Subcontractor, in its capacity as Successor Servicer, will be entitled to a one-time portfolio set-up and conversion fee of $150,000, which is part of the Transition Costs, and a monthly servicing fee ranging from $7.00 to $8.75 per Loan (depending upon the volume of Loans serviced for the Grantor Trust) together with additional per Loan fees for certain past due Loans, Loans in litigation or arbitration and Loans assigned to Collection Agents, fees for Loan modifications and a percentage of late payment fees and insufficient funds charges; *provided* that in no event will the monthly servicing fee payable to the Backup Servicer as the Successor Servicer be less than $7,500 for any Collection Period. The Backup Servicer or other Successor Servicer will be entitled to reimbursement from the assets of the Issuer for the first $150,000 of Transition Costs at a higher level of priority than payments on the Notes. Furthermore, the Successor Servicer will be entitled to reimbursement of expenses and indemnities (subject to the applicable caps at times prior to the acceleration of the Notes due to an Event of Default) that are payable prior to payments to the Noteholders.

Prior to the receipt by the Backup Servicer of the Transfer Notice, the Backup Servicer (either directly or through the Backup Servicer Subcontractor) will perform certain backup services for the benefit of the Grantor Trust, including receiving a monthly loan data file from the Servicer and Monthly Report from the Administrator and reconciling the data file to the Monthly Report.

The Grantor Trust and the Servicer will each agree, severally but not jointly, to defend, indemnify, and hold the Backup Servicer, and its shareholders, directors, affiliates, assignees, agents, and employees, harmless from and against any and all claims, actions, suits, counterclaims, liabilities, losses, damages, court costs, reasonable attorneys' fees, and other reasonable expenses arising from or connected in any way with any third-party claim, including reasonable fees and expenses of its counsel, and including any costs of enforcement of its rights under the Backup Servicing Agreement ("Backup Servicer Claims") concerning in any way Backup Servicer's services as Backup Servicer or as Successor Servicer, the Loans, or the Backup Servicing Agreement, but excepting Backup Servicer Claims arising from Backup Servicer's gross negligence, bad faith or willful misconduct or by reason of reckless disregard of its obligations and duties under the Backup Servicing Agreement.

Backup Servicer will agree to defend, indemnify, and hold the Grantor Trust and the Servicer and each of their respective shareholders, directors, trustees, beneficiaries, affiliates, assignees, agents, and employees harmless from and against any and all Backup Servicer Claims arising from Backup Servicer's gross negligence, bad faith or willful misconduct or by reason of reckless disregard of its obligations and duties under the Backup Servicing Agreement.

Any Backup Servicer Claims with respect to which indemnity or reimbursement is sought under the Backup Servicing Agreement must be commenced within the later of (x) two (2) years after the Closing Date and (y) one (1) year following the termination of the Backup Servicing Agreement.

The Backup Servicer is not permitted to (i) assign the Backup Servicing Agreement or its rights thereunder, or delegate its obligations thereunder to any other Person without the prior written consent of the Servicer and the Grantor Trust, which consent of the Grantor Trust will be subject to the restrictions set forth under *"Amendment—Other Basic Documents"* below or (ii) delegate its obligations thereunder to any Person besides Firstmark (as Backup Servicer Subcontractor) or Vervent (as successor Backup Servicer Subcontractor) unless at the time of such delegation (a) if any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or the Sponsors, Rating Agency Notification is given and (b) such Person services at least $50,000,000 in outstanding principal balance of consumer loans. Backup Servicer may terminate the Backup Servicing Agreement for cause by giving at least thirty (30) calendar days' written notice to the Grantor Trust, the Indenture Trustee and the Servicer, with a copy to each Rating Agency, upon the occurrence of any of the following:

(a) the Grantor Trust fails to pay to Backup Servicer any payment when due under the Backup Servicing Agreement and such delinquency is not cured within thirty (30) calendar days after written notice to Grantor Trust, the Indenture Trustee and the Rating Agencies; or

(b) Backup Servicer reasonably determines that the performance of its duties under the Backup Servicing Agreement is no longer permissible or practicable under any laws, rules, or regulations applicable to it or if termination is required by governmental or regulatory authorities, in either case as evidenced by an opinion of outside counsel to Backup Servicer in form and substance reasonably satisfactory to each of Grantor Trust and the Indenture Trustee;

provided, however, that no such termination shall become effective until the earliest of (w) the date that a successor Backup Servicer (for which either (i) at the time of such assumption (a) if any Rated Notes are rated by a Rating Agency, Rating Agency Notification is given and (b) such Person services at least $50,000,000 in outstanding principal balance of consumer loans or (ii) such Person is consented to in writing by the Indenture Trustee (acting solely at the direction of the Majority Holders)) shall have assumed the responsibilities and obligations of Backup Servicer under the Backup Servicing Agreement pursuant to such documentation as shall be acceptable to the Indenture Trustee and the Majority Holders, (x) in the case of termination resulting from governmental or regulatory authorities, the effective date defined by such governmental or regulatory authorities, (y) ninety (90) days (or sixty (60) days, in the case of any resignation by reason of Backup Servicer not having received any payment owing by the Grantor Trust on the date when due, and such event continued for sixty (60) days following receipt of written notice

thereof by the Grantor Trust, the Indenture Trustee and the Servicer) after the delivery of a notice of termination by Backup Servicer as described above or (z) such date as the Grantor Trust, Indenture Trustee (acting solely at the direction of the Majority Holders), the Servicer and Backup Servicer may mutually agree in writing. The Backup Servicer will not be permitted to terminate the Backup Servicing Agreement or resign from its role as backup servicer or successor servicer, as the case may be, under the Backup Servicing Agreement for its convenience.

The Backup Servicer may (subject to, so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification), upon sixty (60) days' advance written notice to each of the other parties to the Backup Servicing Agreement and the Indenture Trustee, resign from its role as backup servicer under the Backup Servicing Agreement; provided, that such resignation shall be effective upon the date that a successor Backup Servicer appointed by the Grantor Trust and consented to in writing by the Indenture Trustee (at the direction of the Majority Holders) has assumed the responsibilities and obligations of the Backup Servicer under the Backup Servicing Agreement pursuant to such documentation as is acceptable to the Indenture Trustee (at the direction of the Majority Holders).

The Grantor Trust may (subject to, so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification and the other conditions described in "*Amendment—Other Basic Documents*" below) terminate the Backup Servicing Agreement for cause by giving at least thirty (30) calendar days' written notice to Backup Servicer, the Indenture Trustee and the Servicer, with a copy to the Rating Agency, upon the occurrence of any of the following:

(a) Backup Servicer or any Successor Servicer fails in any material way to provide backup services or successor services, as applicable, for the Loans, which failure of performance is not cured within ten (10) business days of written notice from Grantor Trust or Servicer;

(b) Any gross negligence or willful misconduct of Backup Servicer or any Successor Servicer;

(c) Backup Servicer or Successor Servicer shall become insolvent, shall admit in writing its inability to pay its debt generally, or a voluntary or involuntary petition under the Federal bankruptcy laws shall be filed (and, in the case of an involuntary filing, the petition is not dismissed prior to entry of an order for relief) by or against Backup Servicer or Successor Servicer, as the case may be;

(d) Backup Servicer or any Successor Servicer defaults in any material way under the Backup Servicing Agreement and fails to cure such default within ten (10) business days of receipt of written notice from Grantor Trust or Servicer; or

(e) Any representation or warranty made by Backup Servicer or any Successor Servicer under the Backup Servicing Agreement shall prove to be untrue in any material respect, which failure shall continue unremedied for a period of ten (10) business days of receipt of written notice from Grantor Trust or Servicer.

Administration Agreement

Pursuant to the Administration Agreement, each of the Issuer and the Grantor Trust will engage Series B as Administrator to perform, on behalf of the Issuer and Grantor Trust, respectively, certain of the covenants, duties and obligations of the Issuer or Grantor Trust, as applicable, under the Indenture and the other Basic Documents. Such duties shall include, without limitation, furnishing the Monthly Report for each Distribution Date to the Grantor Trust, the Paying Agent, the Backup Servicer, the Loan Data Agent and each Rating Agency, no later than two (2) Business Days prior to such Distribution Date. The Administrator will be given broad authority to act on behalf of the Issuer and the Grantor Trust, including the preparation and execution on behalf of the Issuer and the Grantor Trust of all documents, notices, reports, filings, instruments, certificates and opinions as it shall be the duty of the Issuer to prepare, file or deliver pursuant to the Basic Documents, and giving directions on behalf of the Grantor Trust to the Servicer to the extent permitted or required under the Servicing Agreement.

The Administrator may retain, in connection with its responsibilities under the Administration Agreement, the services of third parties to perform, or to assist with, any of its duties, obligations, responsibilities or functions, including independent third-party professionals and service providers and attorneys, accountants and consultants to advise and assist it in connection with any activities to be conducted on behalf of the Issuer. Any expenses incurred by the Administrator with respect to such third parties will be payable by the Issuer as a reimbursable expense pursuant to the terms of the Indenture upon presentation of an invoice therefor to the Paying Agent. The Administrator will not be liable for any act or omission of any such third party to the extent such third party was selected by the Administrator with reasonable care; *provided* that the Administrator will either cause the Issuer or the Grantor Trust, as applicable, to be a third-party beneficiary under the agreements or instruments under which such third parties have been appointed or shall cooperate with and assist the Issuer and the Grantor Trust in seeking redress from such third parties for any damages suffered by the Issuer or Grantor Trust as a result of the conduct of such third parties.

As compensation for the performance of these obligations under the Administration Agreement and the Basic Documents the Administrator shall be entitled to the Administration Fee, or such other fee as agreed to by the Issuer and any successor Administrator, payable pursuant to the terms of the Indenture. The Administrator will also be entitled to reimbursement of the fees of any third parties engaged by it as described above. Additionally, the Issuer will indemnify the Administrator and its successors, assigns, agents, directors, officers, managers, members, partners, shareholders and employees from and against, any and all liabilities, obligations, losses, damages, taxes, claims, actions and suits which may at any time be imposed on, incurred by, or asserted against such indemnified parties in any way relating to or arising out of the Administration Agreement, the Trust Agreement, the Grantor Trust Agreement, the other Basic Documents, the Trust, the Grantor Trust, the Trust Estate, the Grantor Trust Estate or the administration of the Trust Estate or the Grantor Trust Estate, other than such liabilities, losses or damages arising or resulting from the willful misconduct, bad faith or gross negligence of any such indemnified party.

The Administration Agreement shall continue in force until the termination of the Trust Agreement in accordance with its terms.

Loan Data Agent Agreement

The Loan Data Agent Agreement is among the Issuer, the Servicer, the Administrator and the Loan Data Agent. Under the Loan Data Agent Agreement, the Loan Data Agent will agree to provide access to certain information relating to the Loans to specified persons, including Note Owners and potential Note Owners, via an electronic portal interface located at https://dv01.co. The Loan Data Agent will be paid a fee by the Issuer for the performance of its duties under the Loan Data Agent Agreement, as set forth in "*Description of the Basic Documents—Fees and Expenses*" in this Private Placement Memorandum.

Under the Loan Data Agent Agreement, the Servicer will be obligated to provide the Loan Data Agent with daily servicing files setting forth information relating to agreed-upon data fields with respect to the Loans (such information, the "Loan Data"). After the Closing Date, the Loan Data Agent will be obligated to make available to Note Owners and potential Note Owners, as well as other registered Persons, including Persons specifically identified by the Administrator, on a monthly basis, certain loan-level performance information derived from the Loan Data provided by the Servicer. In addition, the Loan Data Agent will assist the Administrator in preparing Monthly Reports; however, the Loan Data Agent will rely upon the Servicer to provide it with ongoing information concerning the Loans, and in the event that the Servicer does not provide such information to the Loan Data Agent as and when necessary, no assurance can be given that the information in the Loan Data Agent's portal will be current or periodically updated. None of the Sponsor, the Servicer, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Collateral Agent, the Paying Agent, the Issuer or any their respective Affiliates makes any representation or warranty as to, nor will it verify or ensure, the accuracy or completeness of the information made available by the Loan Data Agent. Any errors in the information provided by the Loan Data Agent shall be solely the responsibility of the Loan Data Agent, except to the extent such errors in the information result from errors in the information provided by the Servicer to the Loan Data Agent. Additionally, the Loan Data Agent may be terminated by the Issuer at any time after the Closing Date if the Loan Data Agent materially breaches the Loan Data Agent Agreement or with or without cause if no Notes remain Outstanding, and the Issuer will have no obligation to replace the Loan Data Agent with a comparable service.

The Note Owners' and potential Note Owners' ability to access the certain loan-level performance information posted to the investor portal will be subject to certain terms and conditions, including certification regarding its identity and certain agreements regarding confidentiality and agreements restricting use of such information. The continued provision of such loan-related information is subject to the compliance by third parties, including the Loan Data Agent, the Servicer and the Backup Servicer, with their obligations under the Loan Data Agent Agreement and other Basic Documents, and is not guaranteed by the Issuer, the Grantor Trust, APL, the Depositor, the Loan Transferor, the Servicer or the Administrator. The Loan Data Agent will rely upon the Servicer to provide it with ongoing information concerning the Loans, and in the event that the Servicer does not provide such information to the Loan Data Agent, no assurance can be given that the information in the Loan Data Agent's portal will be current or periodically updated. Further, the Loan Data Agent may be terminated by the Issuer at any time after the Closing Date if the Loan Data Agent materially breaches the Loan Data Agent Agreement or with or without cause if no Notes remain Outstanding, in which case the Loan Data Agent would cease providing Loan information through its portal.

Under the Loan Data Agent Agreement, (A) the Loan Data Agent will be obligated to indemnify and hold harmless the Administrator, the Grantor Trust, the Grantor Trust Trustee, the Indenture Trustee, the Issuer, the Owner Trustee and the Servicer from and against any loss, liability, damage, cost, or expense, including without limitation, any reasonable legal fees and expenses (the foregoing, collectively, for purposes of this paragraph, "certain losses"), arising out of (i) any act or omission on the part of the Loan Data Agent, its Affiliates, and their respective agents, subcontractors, officers and employees that constitutes negligence, bad faith or willful misconduct, (ii) any failure on the part of the Loan Data Agent to accurately reproduce, export or derive or calculate any information from or based on the Loan Data, including losses related to the pursuit of any indemnity thereunder, or (iii) certain inaccuracies in information provided to the Issuer for purposes of this Private Placement Memorandum; (B) the Issuer will be obligated to indemnify and hold harmless the Loan Data Agent from and against certain losses arising out of any third-party claims brought against the Loan Data Agent due to its obligations under the Loan Data Agent Agreement, including those related to the pursuit of any indemnity thereunder, but solely to the extent that those do not arise out of (i) any act or omission on the part of the Loan Data Agent that constitutes negligence, bad faith or willful misconduct, or (ii) any failure on the part of the Loan Data Agent to accurately reproduce, export, or derive or calculate any information from, or based on, the Loan Data; and (C) the Servicer will be obligated to indemnify and hold harmless the Loan Data Agent for certain losses resulting from inaccuracies in the content of any Loan Data delivered by the Servicer to the Loan Data Agent or arising out of any act or omission on the part of the Servicer that constitutes negligence, bad faith or willful misconduct, but in each case solely to the extent that such losses do not arise or result from (i) any act or omission on the part of the Loan Data Agent that constitutes negligence, bad faith or willful misconduct, or (ii) any failure on the part of the Loan Data Agent to accurately reproduce, export or derive or calculate any information from or based on the Loan Data.

The Loan Data Agent Agreement (including any licenses granted thereunder) will terminate upon the termination of the Trust Agreement. For termination and replacement of the Loan Data Agent, see *"—Replacement or Termination of Trustees, Paying Agent, Collateral Agent, Administrator or Loan Data Agent—Loan Data Agent*" below.

Collateral Agent Matters

WTNA will serve as collateral agent pursuant to the Indenture (in such capacity, the "Collateral Agent"). The Collateral Agent will maintain control over the Related Documents maintained in the Grantor Trust's eVault pursuant to the Vault Provider Control Agreement for the exclusive benefit of the Grantor Trust and the Indenture Trustee on behalf of the Secured Parties, and may make dispositions of the Related Documents contained therein only in accordance with the Indenture.

WTNA serves as Collateral Agent for the Grantor Trust pursuant to the Indenture. The Collateral Agent has agreed that it will control electronic copies of all Related Documents delivered to an eVault in accordance with the Indenture and the Vault Provider Control Agreement for the exclusive benefit of the Grantor Trust and the Indenture Trustee, on behalf of the Secured Parties.

Within three (3) Business Days after the date upon which the Related Documents evidencing the Loans have been delivered to an eVault in the name of the Grantor Trust at the Vault Provider, the Collateral Agent is required to

complete certain procedures that are intended to provide assurance that the proper Related Documents with respect to the Loans have been delivered to an eVault in the name of the Grantor Trust over which the Collateral Agent has control pursuant to the Vault Provider Control Agreement, and will make available to the Issuer, the Indenture Trustee, the Servicer and the Grantor Trust a Collateral Agent Confirm and, if applicable, an exception report. In the Collateral Agent Confirm, the Collateral Agent shall represent to the Grantor Trust that it has duly conducted the related procedures in accordance with the Indenture with respect to the Loans and Related Documents covered by the related collateral agent confirm and related exception report, and that it has not discovered any exceptions except as identified in the exception report or that have been cured.

The Collateral Agent may execute any of the powers under the Indenture or perform any duties under the Indenture either directly or by or through agents, attorneys, Collateral Agents or nominees appointed with due care, *provided* that any such appointment shall not relieve the Collateral Agent of its duties and liabilities under the Indenture.

The Collateral Agent Fee will be payable to the Collateral Agent by the Issuer, as the Grantor Trust Certificateholder. The Issuer, as the Grantor Trust Certificateholder, will further pay or reimburse the Collateral Agent upon its request for all reasonable out-of-pocket expenses, disbursements and advances incurred or made by the Collateral Agent in accordance with any of the provisions hereof or any other documents executed in connection herewith (including the reasonable compensation and the reasonable expenses and disbursements of its agents, counsel, accountants and experts, including in connection with any legal action or investigation commenced by the Collateral Agent). Additionally, the Issuer, as the Grantor Trust Certificateholder, shall indemnify, defend and hold harmless the Collateral Agent and any director, officer, employee or agent of the Collateral Agent against any loss, liability, claim, action, suit, cost or expense (including reasonable attorney's fees and expenses including those incurred in enforcing its indemnification rights under the Indenture) of any kind and nature whatsoever incurred in connection with any claim or legal action relating to (a) the Basic Documents or (b) the Notes, other than other than any loss, liability, claim, action, suit, cost or expense (including reasonable attorney's fees and expenses) incurred by reason of the Collateral Agent's own negligence, bad faith or willful misconduct, or which is the responsibility of the Noteholders as provided in the Indenture.

The Grantor Trust will maintain an eVault at the Vault Provider, through which it expects to maintain in electronic form the Related Documents related to the Loans. Pursuant to the Vault Provider Control Agreement, the Grantor Trust and the Vault Provider will provide the Collateral Agent with access to, and control over, the Related Documents maintained in the Grantor Trust's eVault. The Collateral Agent will agree to make available to the Servicer, including any Successor Servicer, and the Backup Servicer copies of Related Documents maintained in such eVault upon request.

Replacement or Termination of Trustees, Paying Agent, Collateral Agent, Administrator or Loan Data Agent

The Owner Trustee

The Owner Trustee may resign at any time under the Trust Agreement upon 30 days' prior written notice to the Depositor, the Administrator, the Indenture Trustee and the Class R Noteholders. Upon such resignation, the Administrator will be required to promptly appoint a successor Owner Trustee. Additionally, the Administrator or the Indenture Trustee at the written direction of the Required Class R Noteholders may remove the Owner Trustee if at any time (i) the Owner Trustee ceases to be eligible in accordance with the Trust Agreement, (ii) the Owner Trustee is legally unable to act as Owner Trustee, (iii) the Owner Trustee is adjudged bankrupt or insolvent, (iv) a receiver is appointed for the Owner Trustee or its property, or if any public officer takes charge or control of the Owner Trustee or of its property or affairs for the purpose of rehabilitation, conservation or liquidation or (v) the Owner Trustee otherwise becomes incapable of acting. If the Administrator or the Indenture Trustee at the written direction of the Required Class R Noteholders so remove the Owner Trustee, the Administrator or the Indenture Trustee at the written direction of the Required Class R Noteholders, as the case may be, will be required to promptly appoint a successor Owner Trustee by written instrument with prior written notice to the Indenture Trustee and delivery of any documents requested by the Indenture Trustee. If no successor Owner Trustee is so appointed and accepts the appointment within 30 days after the Owner Trustee's resignation or removal, the outgoing Owner Trustee or the Depositor, at the expense of the Issuer, may petition any court of competent jurisdiction for the appointment of a successor Owner Trustee.

Notwithstanding the foregoing, no resignation or removal of the Owner Trustee or appointment of a successor Owner Trustee pursuant to any of the provisions of the Trust Agreement will become effective until acceptance of appointment by the successor Owner Trustee and payment of all fees and expenses owed to the outgoing Owner Trustee.

The Indenture Trustee and the Paying Agent

Under the Indenture, the Indenture Trustee may resign at any time upon a 30 days' notice to the Issuer. The Majority Holders may remove the Indenture Trustee without cause by providing 30 days' written notice to the Indenture Trustee of such removal (with a copy to the Issuer and the Paying Agent) and, following such removal, may appoint a successor Indenture Trustee. Additionally, the Issuer will be required to remove the Indenture Trustee if (i) at any time, the Indenture Trustee shall cease to be eligible under the Indenture, (ii) an Insolvency Event occurs with respect to the Indenture Trustee, (iii) a receiver or other public officer takes charge of the Indenture Trustee or its property or (iv) the Indenture Trustee otherwise becomes incapable of acting. Additionally, the Administrator may remove the Indenture Trustee if the Indenture Trustee fails to comply with certain notice obligations with respect to its consolidation, merger or transfer of substantially all of its assets.

If the Indenture Trustee resigns or is removed, the Issuer will be required to promptly appoint a successor Indenture Trustee. No resignation or removal of the Indenture Trustee will become effective until the acceptance of appointment by the successor Indenture Trustee in accordance with the Indenture. All costs incurred in connection with any resignation or removal of the Indenture Trustee shall be borne by the Issuer.

The foregoing also applies to WTNA in its capacity as Paying Agent. Additionally, the Paying Agent may be removed by the Administrator, upon 30 days' prior written notice, if the Paying Agent fails to prepare, deliver and otherwise make available Monthly Reports or provide certain notices in accordance with the Indenture and such failure continues for 10 days or more after written notice of such failure is given by the Administrator to the Paying Agent.

The Grantor Trust Trustee

The Grantor Trust Trustee may resign at any time under the Grantor Trust Agreement by giving 30 days' written notice thereof to the Issuer and the Grantor Trust Certificateholder. Additionally, the Grantor Trust Certificateholder may remove the Grantor Trust Trustee if at any time (i) the Grantor Trust Trustee ceases to be eligible in accordance with the Grantor Trust Agreement, (ii) the Grantor Trust Trustee is legally unable to act as Grantor Trust Trustee, (iii) the Grantor Trust Trustee is adjudged bankrupt or insolvent or (iv) a receiver is appointed for the Grantor Trust Trustee or its property, or if any public officer takes charge or control of the Grantor Trust Trustee or of its property or affairs for the purpose of rehabilitation, conservation or liquidation. Upon the Grantor Trust Trustee's resignation or removal, the Grantor Trust Certificateholder will be required to promptly appoint a successor Grantor Trust Trustee. If no successor Grantor Trust Trustee is so appointed and accepts the appointment within 30 days after such resignation or removal, the outgoing Grantor Trust Trustee or the Grantor Trust Certificateholder, at the expense of the Grantor Trust Certificateholder, may petition any court of competent jurisdiction for the appointment of a successor Grantor Trust Trustee.

Notwithstanding the foregoing, no resignation or removal of the Grantor Trust Trustee or appointment of a successor Grantor Trust Trustee pursuant to any of the provisions of the Grantor Trust Agreement will become effective until acceptance of appointment by the successor Grantor Trust Trustee and payment of all fees and expenses owed to the outgoing Grantor Trust Trustee.

The Administrator

The Administrator may resign by providing the Issuer, the Owner Trustee, the Indenture Trustee and the Depositor with at least 10 days' prior written notice. The Issuer may remove Series B as Administrator if (i) the Administrator fails to deliver, or cause to be delivered, the Monthly Report to the Paying Agent within two (2) Business Days after the date when due or (ii) the Administrator defaults in the performance of any of its other duties under the Administration Agreement and, after notice of such default, does not cure such default within 60 days, or if an Insolvency Event shall occur with respect to the Administrator; *provided* that the Trust Agreement will provide

that any action by the Issuer to remove the Administrator pursuant to the terms of the Administration Agreement shall require the consent of, or action of the Indenture Trustee at the written direction of the Required Class R Noteholders.

No resignation or removal of the Administrator described above shall be effective until (i) a successor Administrator shall have been appointed by the Indenture Trustee at the written direction of the Required Class R Noteholders and by the Grantor Trust Certificateholder and (ii) such successor Administrator shall have agreed in writing to be bound by the terms of the Administration Agreement. If a successor Administrator does not take office within 30 days after the retiring Administrator resigns or is removed, the resigning Administrator or the Owner Trustee, at the expense of the Trust, may petition any court of competent jurisdiction for the appointment of a successor Administrator.

The Collateral Agent

The Grantor Trust, with or without cause, may upon at least 60 days' notice remove and discharge the Collateral Agent from the performance of its duties under the Indenture by written notice from the Grantor Trust to the Collateral Agent, with a copy to the Indenture Trustee. Such removal shall take effect upon the appointment of a successor Collateral Agent and payment of the outgoing Collateral Agent's unpaid fees, expenses and any other amounts then owed to it.

The Collateral Agent may resign from the obligations and duties under the Indenture only by (i) mutual written consent of the Collateral Agent and the Grantor Trust (such consent not to be unreasonably withheld), with written notice to the Indenture Trustee, (ii) upon 30 days' prior written notice to the Grantor Trust, the Administrator and the Indenture Trustee; *provided* that the Collateral Agent exercises best efforts in assisting the Grantor Trust in appointing a successor Collateral Agent or (iii) upon the determination that its duties thereunder are no longer permissible under Applicable Law and such incapacity cannot be cured by the Collateral Agent without any unreasonable costs or expenses. Any such determination permitting the resignation of the Collateral Agent must be in the reasonable determination of the Collateral Agent and must be accompanied by a certificate of an authorized officer of the Collateral Agent reasonably acceptable to the Grantor Trust certifying as to the basis of such impermissibility under Applicable Law.

The Loan Data Agent

The Loan Data Agent Agreement will terminate upon the termination of the Trust Agreement. The Issuer (or the Administrator acting on its behalf) may, and at the direction of the Majority Holders shall, terminate the Loan Data Agent Agreement or remove the Loan Data Agent immediately upon written notice if the Loan Data Agent materially breaches any of its obligations under the Loan Data Agent Agreement, or with or without cause if no Notes remain Outstanding. The Loan Data Agent may resign its duties under the Loan Data Agent Agreement by providing the Grantor Trust with at least 30 days' prior written notice, *provided* that no such resignation will be effective unless and until a successor electronic platform data provider has been appointed by the Issuer (or the Administrator on its behalf) and has agreed in writing to assume all of the obligations and duties of the Loan Data Agent under the Loan Data Agent Agreement.

Amendment

Indenture

The Indenture may be amended by the parties thereto, without the consent of the Noteholders but, so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or the Sponsors, with Rating Agency Notification:

(i) to correct or amplify the description of any property at any time subject to the Lien of the Indenture, or better to assure, convey and confirm unto the Indenture Trustee any property subject or required to be subjected to the lien of the Indenture, or to subject to the Lien of the Indenture additional property;

(ii) to evidence the succession, in compliance with the applicable provisions of the Indenture, of another Person to the Issuer, and the assumption by any such successor of the covenants of the Issuer contained in the Indenture and in the Notes;

(iii) to add to the covenants of the Issuer or the Grantor Trust, for the benefit of the Noteholders, or to surrender any right or power in the Indenture conferred upon the Issuer;

(iv) to convey, transfer, assign, mortgage or pledge any additional property to or with the Indenture Trustee;

(v) to cure any ambiguity, to correct or supplement any provision in the Indenture or in any supplemental indenture that may be inconsistent with any other provision in the Indenture or any supplemental indenture or in (A) this Private Placement Memorandum or any offering document used in connection with the initial offer and sale of the Notes or (B) any other Basic Document with respect to matters or questions arising under the Indenture or in any supplemental indenture,

(vi) to add any provisions to or change in any manner or eliminate any of the provisions of the Indenture which will not be inconsistent with other provisions of the Indenture; *provided* that such action shall not materially adversely affect the interests of the Noteholders as shall be conclusively evidenced by an Officer's Certificate; *provided, further*, that no such supplemental indenture will be permitted unless a Tax Opinion of counsel who shall not be an employee of the Issuer or an Affiliate, is delivered to the Indenture Trustee and the Paying Agent with respect to such supplemental indenture; or

(vii) to evidence and provide for the acceptance of the appointment under the Indenture by a successor Trustee with respect to the Notes and to add to or change any of the provisions of the Indenture as shall be necessary to facilitate the administration of the trusts thereunder by more than one trustee, pursuant to the requirements of the Indenture.

The Issuer, the Grantor Trust, the Indenture Trustee and the Paying Agent may also, without the consent of any of the Holders of the Notes but, so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, with Rating Agency Notification, enter into an indenture or indentures supplemental to the Indenture for the purpose of adding any provisions to, or changing in any manner or eliminating any of the provisions of, the Indenture or of modifying in any manner the rights of the Noteholders under the Indenture; *provided*, *however*, that such action shall not adversely affect, in any material respect, the interests of any Noteholder as evidenced by an Officer's Certificate of the Issuer and Opinion of Counsel; *provided*, *further*, that a Tax Opinion of a counsel, who shall not be an employee of the Issuer, the Grantor Trust or any Affiliate of either thereof, is delivered to the Indenture Trustee and the Paying Agent with respect to such action. Any supplemental indenture which affects the rights, duties, immunities or liabilities of the Indenture Trustee, the Paying Agent, the Collateral Agent, the Backup Servicer, the Owner Trustee or the Grantor Trust Trustee will not be effective without the prior written consent of the Indenture Trustee, the Paying Agent, the Collateral Agent, the Backup Servicer, the Owner Trustee or Grantor Trust Trustee, respectively.

The Indenture may also be amended by the Issuer, the Grantor Trust, the Indenture Trustee and the Paying Agent, with the consent of the Majority Holders but, so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, with Rating Agency Notification, for the purpose of adding any provisions to, or changing in any manner or eliminating any of the provisions of, the Indenture or of modifying in any manner the rights of the holders of the Notes. However, the amendment may not, without the consent of the holders of all Notes materially and adversely affected by such amendment:

(i) change the Maturity Date of any Class of Notes or the date of payment of any installment of principal of or interest on any Note, or reduce the principal amount thereof, the interest rate applicable thereto or the Redemption Price with respect thereto, change the provisions of the Indenture relating to the application of collections on, or the proceeds of the sale of, the Collateral to payment of principal of or interest on the Notes, or change any place of payment where, or the coin or currency in which, any Note or the interest thereon is payable, or impair the right to institute suit for the enforcement of the provisions of the Indenture requiring the application of funds

available therefor to the payment of any such amount due on the Notes on or after the respective due dates thereof (or, in the case of redemption, on or after the Redemption Date);

(ii) reduce the percentage of the Note Balance or the Note Balance of the Controlling Class of Notes, the consent of the Holders of Noteholders of which is required for any such supplemental indenture, or the consent of the Holders of Notes of which is required for any waiver of compliance with certain provisions of the Indenture or certain defaults and their consequences provided for in the Indenture;

(iii) modify or alter (A) the provisions of the proviso to the definition of the term "Outstanding," (B) the definition of the term "Note Balance" or (C) the definition of the term "Controlling Class";

(iv) reduce the percentage of the Note Balance or the Note Balance of the Controlling Class of Notes required to direct the Indenture Trustee to sell or liquidate the Collateral or instruct the Grantor Trust to sell or liquidate the Loans and the related Purchased Loan Assets upon acceleration of the Notes if the proceeds of such sale or liquidation would be insufficient to pay in full the principal amount of and accrued and unpaid interest on the Rated Notes. All references to payments of, or amounts owing in respect of, principal of or interest on Rated Notes shall include the respective portions of principal of or interest on any Class A Notes, Class B Notes, Class C Notes and Class D Notes represented by Exchangeable Notes;

(v) reduce the percentage of the Note Balance or the Note Balance of the Controlling Class of Notes the consent of the Holders of Notes of which is required for any such supplemental indenture amending the provisions of the Indenture which specify the applicable percentage of the Note Balance of the Controlling Class of Notes the consent of which is required for such supplemental indenture or the amendment of any other Basic Document;

(vi) modify any provision related to amendment of the Indenture with the Noteholders' consent except to increase applicable voting percentages or to provide that certain additional provisions of the Indenture or the other Basic Documents cannot be modified or waived without the consent of the Holder of each outstanding Note affected thereby;

(vii) modify any of the provisions of the Indenture in such manner as to affect the calculation of the amount of any payment of interest or principal due on any Note on any Distribution Date (including the calculation of any of the individual components of such calculation) or to affect the rights of the Holders of Notes to the benefit of any provisions for the mandatory redemption of the Notes;

(viii) permit the creation of any Lien ranking prior to or on a parity with the Lien of the Indenture with respect to any part of the Collateral or, except as otherwise permitted or contemplated herein, terminate the Lien of the Indenture on any property at any time subject hereto or deprive the Noteholders of the security provided by the Lien of the Indenture; or

(ix) impair the right to institute suit for the enforcement of payment as provided in the Indenture.

In determining whether the Noteholders of the requisite Note Balance have given any request, demand, authorization, direction, notice, consent or waiver under the Indenture or under any other Basic Document, (i) Notes owned by the Depositor, the Administrator or any of their respective Affiliates (including the Sponsor) shall be disregarded and deemed not to be Outstanding, except that, in determining whether the Indenture Trustee shall be protected in relying upon any such request, demand, authorization, direction, notice, consent or waiver, only Notes that a responsible officer of the Indenture Trustee either actually knows to be so owned or has received written notice thereof shall be so disregarded, (ii) any request, demand, authorization, direction, notice, consent or waiver under the Indenture or under any other Basic Document given by a Noteholder of Exchangeable Notes will be deemed to have

been given by the corresponding Exchange Notes in the Note Balance of such Exchange Notes allocable to such Exchangeable Notes and (iii) Class R Notes owned by Non-Voting Class R Noteholders shall be disregarded and deemed not to be Outstanding, except that, in determining whether the Indenture Trustee shall be protected in relying upon any such request, demand, authorization, direction, notice, consent or waiver, only Notes that a responsible officer of the Indenture Trustee either actually knows to be so owned or has received written notice thereof shall be so disregarded.

Other Basic Documents

Except as set forth under "*Amendment—Indenture*" above and "*Amendment—Trust Agreement*", "*Amendment—Grantor Trust Agreement*" and "*Amendment – Administration Agreement*" below, each of the Issuer and the Grantor Trust will agree not to (i) terminate, amend, waive, supplement or otherwise modify any of, or consent to the assignment by any party of, the Basic Documents (other than pursuant to the Indenture) to which it is a party, and (ii) to the extent that the Issuer or the Grantor Trust has the right to consent to any termination, waiver, amendment, supplement or other modification of, or any assignment by any party of, any Basic Document to which it is not a party, give such consent, unless, in each case (a) either (x) such termination, amendment, waiver, supplement or other modification or such assignment, as applicable, would not materially adversely affect any Noteholder, conclusive evidence of which may be established by delivery of an Officer's Certificate of the Issuer or the Grantor Trust, as the case may be, to the Indenture Trustee as to such determination or (y) the Majority Holders have consented in writing thereto; and (b) the other requirements with respect to such termination, amendment, waiver, supplement or other modification, or such assignment, as applicable, contained in the Basic Documents (including the aforementioned requirements) are satisfied. Notwithstanding the foregoing, (i) the Issuer and the Grantor Trust may amend, modify, waive, supplement or consent to the departure from or agree to any amendment, modification, supplement, waiver or consent to the departure from any of the terms of the Indenture in accordance with its provisions authorizing amendments without the consent of the Noteholders, (ii) the Trust Agreement may be amended or otherwise modified from time to time to add, change or remove the transfer restrictions with respect to the Issuer Trust Certificate, change the timing, priority or recipients of distributions under the Trust Agreement or make any other changes that in the determination of the Issuer or the Administrator facilitates the sale or financing of the Issuer Trust Certificate, in each case without the consent of the Indenture Trustee, the Paying Agent or any holders of Notes, (iii) the Issuer and the Grantor Trust may amend, modify, waive, supplement or agree to any amendment, modification, supplement or waiver of the terms of any Basic Document without the consent of any holders of Notes to resolve any inconsistency between the provisions of this Private Placement Memorandum, or any other Basic Document and such Basic Document, (iv) the Issuer may terminate and replace the Administrator and the Trust Agreement or the Administration Agreement may be amended or otherwise modified, or the Administration Agreement may be terminated and replaced with a new administration agreement, from time to time to accommodate the replacement of the Administrator, including to modify the Administration Fee (*provided* that such fee remains to be payable pursuant to the Indenture), in each case without the consent of the Indenture Trustee, the Paying Agent or any holders of Notes, (v) the Issuer or Grantor Trust may agree to any amendment, modification, supplement or waiver to the Backup Servicing Agreement or the Servicing Agreement, from time to time to accommodate the appointment of a Successor Servicer, in each case without the consent of any holders of the Notes, but subject to all other conditions set forth in the Basic Documents and (vi) the Issuer may, and shall at the direction of the Majority Holders, terminate the Loan Data Agent Agreement or remove the Loan Data Agent. Any of the actions of the Issuer or Grantor Trust described in this paragraph will require, so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or the Sponsors, Rating Agency Notification.

Any amendment to a Basic Document which affects the rights, duties, immunities or liabilities of the Indenture Trustee, the Paying Agent, the Collateral Agent, the Backup Servicer, the Grantor Trust Trustee or the Owner Trustee will not be effective without the prior written consent of the Indenture Trustee, the Paying Agent, the Collateral Agent, the Backup Servicer, the Grantor Trust Trustee or the Owner Trustee, respectively.

Servicing Agreement

The Servicing Agreement or any term thereof may only be amended, changed, waived, discharged or terminated from time to time, with respect to the Loans only in a writing signed by the Servicer and the Grantor Trust upon, so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification; *provided* that, in addition to the restrictions described under "*Amendment—Other Basic*

Documents" above, any such amendment which affects the rights, duties, or liabilities of the Administrator will not be effective without the prior written consent of the Administrator. The Grantor Trust's right to consent to any such amendment is subject to the limitations described under "*Amendment—Other Basic Documents*" above. In addition, Section 3.01 of the Servicing Agreement shall not be amended unless, as evidenced by an Opinion of Counsel, such amendment will not adversely affect the U.S. federal income tax treatment of the Grantor Trust as a "grantor trust" within the meaning of subpart E of part I of subchapter J of chapter 1 of subtitle A of the Code.

Backup Servicing Agreement

The Backup Servicing Agreement or any term thereof may only be amended, changed, waived, discharged or terminated from time to time in a writing signed by the Backup Servicer, the Servicer and the Grantor Trust and only upon, so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification. The Grantor Trust's right to consent to any such amendment is subject to the limitations described under "*Amendment—Other Basic Documents*" above.

APL Purchase Agreements

Each APL Purchase Agreement may be amended, from time to time, only in a writing signed by the parties thereto.

Loan Transferor Purchase Agreement

The Loan Transferor Purchase Agreement may be amended, from time to time, only in a writing signed by APL and the Loan Transferor.

Depositor Purchase Agreement

The Depositor Purchase Agreement may be amended, from time to time, only in a writing signed by the Loan Transferor and the Depositor.

Issuer Purchase Agreement

The Issuer Purchase Agreement may be amended, from time to time, only in a writing signed by the Depositor and the Issuer. The Issuer's right to consent to any such amendment is subject to the limitations described under "*Amendment—Other Basic Documents*" above.

Grantor Trust Contribution Agreement

The Grantor Trust Contribution Agreement may be amended, from time to time, only in a writing signed by the Issuer and the Grantor Trust. The Issuer's and Grantor Trust's right to consent to any such amendment is subject to the limitations described under "*Amendment—Other Basic Documents*" above.

Administration Agreement

The Administration Agreement may be amended, from time to time, only in a writing signed by the Issuer, the Grantor Trust and the Administrator, with the prior written consent of the Owner Trustee and the Grantor Trust Trustee. The Issuer's and Administrator's right to enter into any such amendment is subject to the limitations described under "*Amendment—Other Basic Documents*" above.

Trust Agreement

The Trust Agreement may be amended by the Depositor, the Owner Trustee, the Issuer Certificate Registrar and the Administrator without the consent of any of the Noteholders or the Indenture Trustee, to (i) cure any ambiguity or to otherwise correct or supplement any provisions in the Trust Agreement; *provided, however*, that so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification

shall have been satisfied, and such action shall not adversely affect in any material respect the interests of any Noteholder whose consent has not been obtained as evidenced by an Officer's Certificate of the Administrator delivered to the Owner Trustee and the Indenture Trustee or (ii) to resolve any inconsistency between the provisions of the Trust Agreement and this Private Placement Memorandum or any other Basic Document. In addition, certain amendments to the Trust Agreement will require the prior written consent of the Majority Holders of the Rated Notes and the Required Class R Noteholders and certain amendments will also require the unanimous consent of all Class R Noteholders. No amendment to the Trust Agreement will, as evidenced by an opinion of nationally recognized U.S. federal income tax counsel addressed and delivered to the Owner Trustee and the Indenture Trustee, adversely affect the U.S. federal income tax status of the Issuer. The Issuer's right to consent to amendments to the Trust Agreement includes the right to consent to the amendments, and is subject to the limitations, described under "—*Amendment—Other Basic Documents*" above.

Notwithstanding anything in Trust Agreement to the contrary, so long as any Notes remain Outstanding, any amendment that would adversely affect the Indenture Trustee, including but not limited any amendment, supplement or modification to the definition of Material Action or the Indenture Trustee's security interest in the Trust Estate, may not be entered into without ten (10) Business Days' prior written notice to the Indenture Trustee of any amendment and compliance by the Trust with the restrictions set forth in the Indenture.

Grantor Trust Agreement

The Grantor Trust Agreement may be amended by the Issuer, the Administrator, the Grantor Trust Certificate Registrar and the Grantor Trust Trustee, without the consent of any other Person, (i) to cure any ambiguity or to correct or supplement any provisions in the Grantor Trust Agreement if, so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, Rating Agency Notification has been satisfied, and the Administrator shall have delivered to the Grantor Trust Trustee and the Indenture Trustee an Officer's Certificate stating that the Administrator reasonably believes that any such amendment will not adversely affect in any material respect the interest of any Noteholder whose consent has not been obtained or (ii) to resolve any inconsistency between the provisions of the Grantor Trust Agreement and this Private Placement Memorandum or any other Basic Document; *provided*, *further*, that so long as any Notes remain outstanding, the Majority Holders must consent to any amendment to the Grantor Trust Agreement that has a materially adverse effect on the Noteholders and such amendment must be accompanied by the opinion of a nationally recognized U.S. federal income tax counsel, stating that such amendment will not adversely affect the U.S. federal income tax status of the Grantor Trust as a "grantor trust" within the meaning of subpart E of part I of subchapter J of chapter 1 of subtitle A of the Code. In addition, any amendment to the Grantor Trust Agreement which affects the rights, duties or liabilities of the Owner Trustee will not be effective without the prior written consent of the Owner Trustee.

The Grantor Trust Agreement may also be amended by the Issuer, the Grantor Trust Certificate Registrar and the Grantor Trust Trustee, with the prior written consent of the Grantor Trust Certificateholder, for the purpose of adding any provisions to or changing in any manner or eliminating any of the provisions of the Grantor Trust Agreement or of modifying in any manner the rights of the Grantor Trust Certificateholder.

Notwithstanding anything in the Grantor Trust Agreement to the contrary, so long as any Notes remain outstanding, any amendment that would adversely affect the Indenture Trustee, including but not limited to any amendment, supplement or modification to the definition of Material Action or the Indenture Trustee's security interest in the Grantor Trust Collateral, may not be entered into without ten Business Days' prior written notice to the Indenture Trustee of any amendment and compliance by the Trust with the restrictions set forth in the Indenture.

Vault Provider Control Agreement

The Vault Provider Control Agreement may be amended, from time to time, only in a writing signed by party being charged by such amendment. The Grantor Trust's right to consent to any such amendment is subject to the limitations described under "*Amendment—Other Basic Documents*" above. The Vault Provider Control Agreement will terminate concurrently with the termination of FFN's global agreement with the Vault Provider, unless the Collateral Agent agrees to assume such arrangement or enters into a separate agreement with the Vault Provider regarding the continual maintenance of the eVault subject thereto.

WTNA will serve as Collateral Agent pursuant to the Indenture. The Collateral Agent will maintain control over the Related Documents maintained in the Grantor Trust's eVault pursuant to the Vault Provider Control Agreement for the exclusive benefit of the Grantor Trust and the Indenture Trustee on behalf of the Secured Parties, and may make dispositions of the Related Documents contained therein only in accordance with the Indenture and the instructions furnished by the Grantor Trust or, after the occurrence and during the continuance of an Event of Default, the Indenture Trustee.

Loan Data Agent Agreement

The Loan Data Agent Agreement may be amended, from time to time, only in a writing signed by the Issuer, the Servicer, the Administrator and the Loan Data Agent. The Issuer's right to consent to any such amendment is subject to the limitations described under "*Amendment—Other Basic Documents*" above.

Termination of the Indenture

Satisfaction and discharge of the Indenture will occur when certain certifications and opinions of counsel have been delivered to the Indenture Trustee and the Paying Agent, the Issuer has paid or caused to be paid all amounts payable by the Issuer under the Indenture, and either (i) all Notes authenticated and delivered (other than destroyed, lost or stolen Notes that have been replaced or repaid and other than Notes for which payment has been provided for, in each case, in accordance with the provisions of the Indenture) have been delivered to the Paying Agent for cancellation or (ii) all Notes not delivered to the Note Registrar for cancellation have become due and payable and the Issuer has deposited cash or direct obligations of, or obligations guaranteed by, the United States in an amount sufficient to discharge the entire indebtedness of such Notes when due on the related Maturity Date or redemption date (if Notes have been called for redemption pursuant to the Indenture), as the case may be.

Fees and Expenses

The Grantor Trust and the Issuer will be obligated to pay servicing fees and Ancillary Fees to the Servicer and the fees, expenses and indemnified amounts of the Indenture Trustee, the Grantor Trust Trustee, the Owner Trustee, the Paying Agent, the Backup Servicer, the Note Registrar, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar, the Collateral Agent, the Administrator and the Loan Data Agent, and any Transition Costs payable to any Successor Servicer, and may pay expenses of the Vault Provider if FFN fails to do so. All such amounts will be payable by the Issuer in accordance with the priority of payments under the Indenture and will be payable (subject to certain caps if certain Events of Default have not occurred) before it pays any amounts due on the Notes and other liabilities. The following table illustrates this arrangement. The fees described below will not change following an Event of Default; *provided* that after the acceleration of the Notes following certain Events of Default, the caps described in clauses (i), (ii) and (iii) under "*Application of Available Funds—Priority of Payments*" on the fees, expenses and indemnities will no longer apply (except in the case of the expenses and indemnities due to the Loan Data Agent).

FEE	GENERAL PURPOSE OF THE FEE	AMOUNT OR CALCULATION OF FEE
Servicing Compensation	Compensation to the Servicer for services provided pursuant to the Servicing Agreement.	(1) For any Collection Period, a servicing fee equal to the greater of (x) the product of (a) 1.00%, (b) the average of the aggregate outstanding principal balance of all Loans that are not Severely Delinquent Loans or Charged-Off Loans as of the first day of the related Collection Period and as of the last day of the related Collection Period and (c) 1/12, and (y) $7,500; *provided* that for the initial Collection Period, such servicing fee shall be equal to the greater of (x) the product of (i) the actual number of days of the initial

FEE	GENERAL PURPOSE OF THE FEE	AMOUNT OR CALCULATION OF FEE
		Collection Period, divided by 360 (on the basis of a 30-day month), (ii) the servicing fee rate of 1.00% and (iii) the average of the aggregate outstanding principal balance of all Loans that are not Severely Delinquent Loans or Charged-Off Loans as of the first day of the initial Collection Period and as of the last day of the initial Collection Period, and (y) $7,500. If the Backup Servicer or its Subcontractor becomes the Successor Servicer, then the servicing fee payable to it may instead be a monthly servicing fee ranging from $7.00 to $8.75 per Loan (depending upon the volume of Loans serviced for the Grantor Trust) together with additional per Loan fees for certain past due Loans, Loans in litigation or arbitration and Loans assigned to Collection Agents; *provided further* that in the case of the Successor Servicer, in no event will such monthly servicing fee be less than $7,500 for any such Collection Period. (2) Excluding the fee described in (1) above and excluding all payments with respect to principal, interest, default interest, origination fees, late payment fees and Collection Fees attributable to the Loans, with respect to any Loan, all other ancillary servicing type fees or compensation derived from such Loan after the Closing Date, including, but not limited to, insufficient fund charges, name change fees and other similar servicing related fees imposed by the Servicer in the exercise of the Reasonable Servicer Discretion in relation to servicing activities in amounts consistent with applicable laws, the Related Documents of such Loan and the Servicing Agreement.
Collection Fee	Payment to the Servicer for further payment to the applicable Collection Agent as compensation for collection or servicing activities provided in respect of Charged-Off Loans contemplated under the Servicing Agreement.	With respect to any Charged-Off Loan, expenses in an amount not to exceed 35% of the related Collections on such Charged-Off Loan, unless otherwise determined by the Servicer in the exercise of its Reasonable Servicer Discretion. No Collection Fees will accrue with respect to the sale proceeds of any Loan.
Indenture Trustee, Paying Agent, Issuer	Compensation to WTNA in its capacity as the Indenture Trustee, the Note Registrar, the Issuer Certificate	A one-time acceptance fee of $2,500 payable on the Closing Date and $3,000 monthly.

FEE	GENERAL PURPOSE OF THE FEE	AMOUNT OR CALCULATION OF FEE
Certificate Registrar and Note Registrar Fee	Registrar and the Paying Agent for services provided pursuant to the Indenture and the Trust Agreement.	
Backup Servicing Fee	Compensation to the Backup Servicer for services provided pursuant to the Backup Servicing Agreement.	A one-time acceptance fee of $4,850 payable on the Closing Date and $5,150 monthly.
Collateral Agent Fee	Compensation to the Collateral Agent for services provided pursuant to the Indenture.	$300 monthly.
Owner Trustee Fee	Compensation to the Owner Trustee for services provided pursuant to the Trust Agreement.	A one-time acceptance fee of $3,500 payable on the Closing Date and an annual fee of $5,000 payable on the Closing Date and thereafter annually starting with the Distribution Date in August 2025.
Grantor Trust Trustee and Grantor Trust Certificate Registrar Fee	Compensation to the Grantor Trust Trustee and the Grantor Trust Certificate Registrar for services provided pursuant to the Grantor Trust Agreement.	A one-time acceptance fee of $5,000 payable on the Closing Date and an annual fee of $10,000 payable on the Closing Date and thereafter annually starting with the Distribution Date in August 2025.
Administration Fee	Compensation to the Administrator for services provided pursuant to the Administration Agreement.	$5,000 annually, payable in monthly installments.
Loan Data Agent Fee	Compensation to the Loan Data Agent for services provided pursuant to the Loan Data Agent Agreement.	$12,000 payable on the Closing Date and thereafter, a monthly fee equal to the greater of (1) the product of (a) (A) with regards to the first Distribution Date, the actual number of days of the initial Collection Period, divided by 360 (on the basis of a 30-day month), and (B) otherwise, 1/12, (b) the aggregate outstanding Principal Balance of all Loans that are not Severely Delinquent Loans or Charged-Off Loans as of the first day of the related Collection Period and (c) 0.02%, or (2) $2,500; for the initial Collection Period, such fee shall be equal to the greater of (i) the product of (A) the actual number of days of the initial Collection Period divided by 360 (on the basis of a 30-day month), (B) 0.02% and (C) the aggregate outstanding principal balance of all Loans as of the cutoff date, or (ii) $2,500.

[Remainder of page intentionally left blank.]

STATEMENTS TO NOTEHOLDERS

No later than the second Business Day preceding each Distribution Date, the Administrator shall prepare and deliver, or cause to be delivered, to each of the Grantor Trust, the Backup Servicer (and any sub-servicer appointed by the Backup Servicer whose notice addresses have been timely supplied to the Servicer), the Loan Data Agent, the Indenture Trustee and the Paying Agent, the Monthly Report. No later than the Distribution Date, the Paying Agent shall make each Monthly Report available to the Noteholders and the deal parties via its website at www.wilmingtontrustconnect.com. The Monthly Report will include the following information regarding the Notes on the related Distribution Date:

(1) the amount of the distribution(s) allocable to interest on the Notes;

(2) the amount of the distribution(s) allocable to principal of the Notes;

(3) the Note Balance, after taking into account all payments to be made on such Distribution Date;

(4) the servicing fees and Ancillary Fees paid and/or due but unpaid as of such Distribution Date;

(5) the Pool Balance, the Class A Target Overcollateralization Amount, the Class B Target Overcollateralization Amount, the Class C Target Overcollateralization Amount and Required Overcollateralization Amount as of the close of business on the last day of the related Collection Period;

(6) the Reserve Fund Amount, the Reserve Fund Required Amount and the Reserve Fund Draw Amount;

(7) the amount of the aggregate realized losses on the Loans, if any, for the preceding Collection Period and the Cumulative Net Loss Ratio;

(8) whether an (a) Amortization Event or (b) Step-Up Event will exist as of such Distribution Date;

(9) the aggregate Purchase Price, if any, paid by APL and/or Servicer with respect to purchases or repurchases by them of loans during the related Collection Period;

(10) the amount of fees payable to all parties pursuant to the Indenture;

(11) information about Loan Modifications; and

(12) in the case of the first Distribution Date, (i) the Unremitted Collections Amounts and (ii) relevant post-closing disclosures, if any, required under the U.S. Risk Retention Rules.

Compliance Statements

On an annual basis, the Servicer is required to complete a SSAE16 SOC Type 2 (or substantially equivalent) review of its activities including its security, recovery and continuity programs, and provide to the Grantor Trust and each Rating Agency a copy of the report.

Additionally, on or before June 30 of each year, starting in the year after the year in which the Closing Date occurs, the Administrator, on behalf of the Issuer, will deliver to the Indenture Trustee an Officer's Certificate signed by an Authorized Officer of the Issuer (or the Administrator acting on its behalf), stating that (a) a review of the Issuer's activities and of its performance under the Indenture during the prior year (or such shorter or longer period in the case of the first such Officer's Certificate) has been made under the Authorized Officer's supervision and (b) to

the Authorized Officer's knowledge, based on the review, the Issuer has fulfilled in all material respects its obligations under the Indenture throughout the prior year (or such shorter period in the case of the first such Officer's Certificate) or, if there has been a failure to fulfill an obligation in any material respect, stating each failure known to the Authorized Officer and the nature and status of the failure. The Issuer's obligation to deliver such annual Officer's Certificate will terminate on the payment in full of the Notes.

[Remainder of page intentionally left blank.]

MATERIAL LEGAL ASPECTS OF THE LOANS

General

To the extent that the Loans are payment intangibles, under the UCC, for most purposes, a sale of a Loan is treated in a manner similar to a transaction creating a security interest in a payment intangible to secure an obligation, except that a sale of a payment intangible is perfected automatically when the buyer obtains its interests in the payment intangible. As a precaution against the recharacterization of the sale of the Loan as a grant of a security interest to secure an obligation, or against the characterization of a Loan as not being a payment intangible under the UCC, the Loan Transfer Documents will provide for the filing of financing statements with the appropriate governmental authorities to perfect the interest of the transferees in the Loans and the collections on the Loans under the Loan Transfer Documents. Each such transferee will take all action that is required to perfect its rights (and the rights of the Indenture Trustee) in the Loans and such collections. Collections on the Loans, however, may be evidenced by checks or other "instruments" as defined in the UCC. If, through inadvertence or otherwise, another purchaser takes possession of such checks or other instrument for value and in good faith without actual knowledge that the purchase violates the rights of the Issuer, such purchaser may acquire an interest in the payments owed on the Loans in the form of such checks or other instrument superior to the interest of the Issuer.

Regarding the Servicemembers Civil Relief Act

Federal law provides a Borrower on active military service with rights that may delay or impair the Servicer's ability to collect on a Loan. Current U.S. military operations and rising tensions in other regions may continue to involve military operation that will increase the number of citizens who have been called or will be called to active duty. The SCRA requires that the interest rate on preexisting debts, which may include the Loans, be set at no more than 6% while the qualified service member or reservist is on active duty. The Grantor Trust, as owner of such a Loan, will not receive the difference between 6% and the original stated interest rate for the Loan during any such period, nor will such difference be accrued during such period and paid at a later date. The SCRA also permits courts to stay proceedings and execution of judgments against service members and reservists on active duty, which may delay recovery on any Loans in default, and, accordingly, payments to the Issuer, and ultimately on the Notes. APL does not take military service into account in determining eligibility or loan terms, and it does not request the Borrowers to confirm if they are qualified service members or reservists within the meaning of the SCRA.

Regarding Consumer Protection Laws

Federal and state consumer protection laws impose requirements, including licensing requirements, and place restrictions on creditors in connection with solicitations and extensions of credit, the interest rate and other terms of credit, as well as servicing of and collections on installment loans, including protection of sensitive customer data obtained in the origination and servicing thereof. Failure to comply with applicable consumer protection laws may result in penalties or regulatory actions, subject collection efforts to defenses, and may result in findings that loans are not valid or enforceable under their terms against the obligors of those installment loans. Although limited inquiries have been made and representations and warranties in connection with the sale and servicing of the Loans were made by or on behalf of APL and the Servicer, no independent diligence was performed to ensure that the Partner Banks or any Collection Agents were or are properly licensed and, consequently, enforcement of the Loans could be impaired. Moreover, certain of these laws, such as the federal Truth in Lending Act, may make an assignee of such installment loans (such as the Sponsor, the Depositor, the Issuer or the Grantor Trust) liable to the obligor thereon for any violation by the originating lender. Federal law permits both FDIC-insured state-chartered banks and national banks to charge interest to borrowers on a nationwide basis based on the rates allowed by the state where the bank is located, and these federal statutes preempt inconsistent state law limitations. In *Madden v. Midland Funding, LLC*, 786 F.3d 246 (2d Cir. 2015), a federal appeals court with jurisdiction in the States of Connecticut, New York and Vermont ruled that federal law did not preempt a state's interest rate limitations when applied to the non-bank debt buyer of a loan seeking to collect interest at the rate originally contracted for by a national bank. Citing *Madden*, a Colorado state court ruled that non-bank purchasers of loans that were originated by Cross River Bank could not rely on federal preemption pursuant to the Federal Deposit Insurance Act to receive interest in excess of the rates permitted by Colorado law. As further discussed under "*Risk Factors—Risks Primarily Related To the Loans—Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal*

(previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans, the Indenture Trustee, the Collateral Agent, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement actions, any of which would adversely affect the Notes", the OCC and the FDIC each has finalized regulations to address the application of federal preemption to loans that are originated by national banks, federal savings banks, or FDIC-insured state banks and then sold by the banks, concluding that the allowable interest rate is not affected by the sale, assignment, or other transfer of the loan. Although the Loans will not include any loans made to borrowers who were Colorado, Connecticut or Vermont residents at the time of their Loan application, investors should understand and consider that approximately 8.28% of the Loans (by aggregate Principal Balance as of the Statistical Cutoff Date) are Subject New York Loans. While the facts of the *Madden* case are different from the facts relating to the origination and subsequent transfer of the Loans, and the OCC and the FDIC have issued final regulations contrary to the *Madden* decision, if the *Madden* holding were nevertheless applied to the Loans originated by the Partner Banks and ultimately transferred to the Grantor Trust, then the Loans could be found to be unenforceable and void, or subject to reduction of the interest or principal (previously paid since origination or to be paid), or holders thereof could be subject to other penalties or damages. States have, and additional states may, enact laws that seek to deem certain entities to be the lender of a loan and prohibit any evasion or circumvention of state laws regulating consumer lending. For example, in 2021 Maine adopted a law that, among other things, may deem an entity to be the lender of a loan if it (a) holds, acquires or maintains the "predominant economic interest in the loan", (b) markets, arranges or facilitates the loan and holds the right to purchase the loan or interest in the loan, or (c) based on the totality of the circumstances, appears to be the lender, and the transaction is structured to evade certain statutory requirements. Any violation of such laws or any litigation alleging such a violation with respect to a Loan could give rise to claims and/or defenses by a Borrower, or a group of similarly situated Borrowers, against the Issuer, the Grantor Trust, the Depositor, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans (including Noteholders), the Trustees, the Servicer and certain other parties, or subject them to claims for damages, disgorgement or enforcement actions by regulators or other Governmental Authorities.

The federal and state consumer protection laws, rules and regulations applicable to the solicitation and advertising, underwriting, granting, servicing and collection of installment loans, and the protection of sensitive customer data, frequently provide for administrative penalties, as well as civil (and in some cases, criminal) liability resulting from their violation. An administrative proceeding, litigation or investigation relating to one or more allegations or findings of the violation of such laws by the Sponsor, the Servicer, the Depositor, the Issuer, the Grantor Trust or other prior owners or subsequent transferees of the Loans (whether by an administrative agency, a Borrower or a group or class of Borrowers) could result in modifications in the Servicer's methods of doing business which could impair the Servicer's ability to service the Loans or collect on the Loans or result in the requirement that the Sponsor, the Servicer, the Depositor, the Issuer, the Grantor Trust and/or prior owners or subsequent transferees of the Loans pay damages, fines or penalties and/or cancel the balance or other amounts owing under a Loan associated with such violations.

The Loans generally are written using standardized documentation. Thus, many Borrowers may be similarly situated insofar as the provisions of their respective contractual obligations are concerned. Accordingly, allegations of violations of the provisions of applicable federal or state consumer protection laws could potentially result in a large class of claimants asserting claims against the Sponsor, the Servicer, the Depositor, the Issuer, the Grantor Trust, prior owners or subsequent transferees of the Loans and/or recipients of proceeds from collections on the Loans. There is no assurance that such claims will not be asserted against the Sponsor, the Servicer, the Depositor, the Issuer, the Grantor Trust, prior owners or subsequent transferees of the Loans and/or recipients of proceeds from collections on the Loans in the future. The loan agreement for each Loan (other than those subject to the Military Lending Act) contains an arbitration provision that is intended to limit class litigation while complying with applicable case law. To that end, such arbitration provision is designed to be substantively fair and customer-friendly, to prevent any credible allegation of overreaching. However, it is possible that a court would decline to enforce the arbitration clause, in which case litigation could proceed in court including as a class action. See also "*—Federal, state and local laws may adversely affect the ability to collect amounts due on the Loans*" below.

To the extent it is determined that the Loans were not originated in accordance with all applicable laws, APL may be obligated to purchase from the Grantor Trust any Loan that fails to comply with such legal requirements.

There can be no assurance that such Loan purchases will be enforced or that APL will have adequate resources to make such Loan purchases. See "*Risks Primarily Related to the Notes and the Issuer — The Grantor Trust's ability to obtain Loan repurchase protection and indemnification from APL and the applicable Partner Bank is limited and may not be exercised in all cases*" and "*Risks Primarily Related to APL's Business – Obligations of APL are subject to its financial and operational ability to fulfill them.*"

Additionally, Congress, the states and regulatory agencies could further regulate the consumer credit industry in ways that would make it more difficult for the Servicer to collect payments on the Loans. See "*—There continues to be uncertainty as to how the actions of the Bureau, the FDIC, the OCC and other Governmental Authorities could impact APL's business or that of the Partner Banks*" herein. Further, changes in the regulatory application or judicial interpretation of the laws and regulations applicable to financial institutions also could impact the manner in which the Servicer conducts its business. The regulatory environment in which financial institutions, creditors and servicers operate has become increasingly complex and robust, and following the financial crisis of 2008, supervisory efforts to apply relevant laws, regulations and policies have become more intense.

State or federal laws may require the owner or servicer of a loan to send certain notices to customers upon a change in such owner or servicer. These notices might cause a borrower to request validation of the debt, dispute the debt or make other inquiries about debt balances, which may adversely affect collections. Neither APL nor its Affiliates is required to send any such notices to the Borrowers under any agreement with the Depositor, the Issuer, the Grantor Trust or any Loan Seller.

As set forth in further detail under "*Risk Factors*" in this Private Placement Memorandum, recent litigation brought by both government and private plaintiffs has successfully challenged the contention that a bank acting as the lender on the loan was the "true lender" and asserting that the party purchasing the loan was instead the true lender. Certain regulators or other Governmental Authorities may also challenge the status of a bank as a loan's true lender. In the event of any recharacterization of a Partner Bank's status as a true lender, any affected Loans may not be enforceable, may become subject to state and local laws that otherwise would have been preempted by federal law applicable to a Partner Bank as lender, and may further result in fines, penalties, damages, compliance costs or related operational burdens that may adversely affect the Loans and the Notes. See "*Risk Factors — Risks Primarily Related to the Loans—Consumer protection laws and contractual restrictions may affect the enforceability or collectability of the Loans or result in penalties or damages to the transaction parties*"*;* "*—Risks Primarily Related to the Loans—Litigation or a regulatory enforcement action seeking to recharacterize the true lender of the Loans as a person other than the applicable Partner Bank could result in related Loans being found to be unenforceable or void or subject to reduction of the interest or principal (previously paid since origination or to be paid) or subject to other penalties or damages, and/or the Issuer, the Grantor Trust, the Depositor, the Administrator, APL, the Loan Transferor, prior owners or subsequent transferees of the Loans, recipients of proceeds from collections on the Loans, the Indenture Trustee, the Collateral Agent, the Owner Trustee, the Grantor Trust Trustee, the Servicer and certain other parties could be subject to claims for damages, disgorgement or enforcement actions, any of which would adversely affect the Notes.*"*; "—Risks Primarily Related to the Loans—Federal, state and local laws may adversely affect the ability to collect amounts due on the Loans.*"*; "—Risks Primarily Related to the Loans—If Loans are found to violate a state's usury laws, this could adversely affect the performance of the Loans and the Notes, and adversely affect the ability of APL to perform its obligations under the Basic Documents.*" in this Private Placement Memorandum.

[Remainder of page intentionally left blank.]

U.S. CREDIT RISK RETENTION

General

The U.S. Risk Retention Rules require a sponsor of a securitization transaction (or majority-owned affiliate of the sponsor) to retain, on an unhedged basis, at least 5% of the economic interest in the credit risk of the securitized assets. Under the U.S. Risk Retention Rules, a "sponsor" means a person who organizes and initiates a securitization transaction by selling or transferring assets, either directly or indirectly, including through an affiliate, to the issuing entity.

Retention by the Retaining Sponsor or its Majority-Owned Affiliate

Under the U.S. Risk Retention Rules, the sponsor of a securitization transaction (or a majority-owned affiliate of the sponsor) may hold the required retained interest in the form of an "eligible vertical interest" of at least 5% of each class of ABS interests in the issuing entity issued as part of the securitization transaction. Each of APL and Jefferies is a sponsor of the securitization transaction described in this Private Placement Memorandum. Pursuant to the U.S. Risk Retention Rules, if more than one Person satisfies the definition of sponsor thereunder, one such Person must comply with such duties and obligations. The Retaining Sponsor, or its majority-owned affiliate, will acquire on the Closing Date at least 5% of the initial principal balance of each Class of Rated Notes and at least 5% of the initial notional amount of the Class R Notes (such Notes, the "Retaining Sponsor Retained Notes", and which holding, in each case, may include Exchangeable Notes representing an interest in the corresponding Exchange Notes) issued by the Issuer (the "Retained Interest"), which the Retaining Sponsor believes to be an "eligible vertical interest" retained by the "sponsor" under the U.S. Risk Retention Rules.

The Retaining Sponsor, or its majority-owned affiliate, as holder of at least 5% of the initial principal balance of each Class of the Exchange Notes, will be entitled to receive at least 5% of all payments of interest and principal made on each Class of the Rated Notes and at least 5% of all distribution on the Class R Notes and, if any Class of the Rated Notes or the Class R Notes incur losses, will bear at least 5% of those losses, as applicable. See *"Description of the Notes"* for a description of other terms of the Rated Notes and Class R Notes.

The Retaining Sponsor will not nor will it permit any majority-owned affiliate holding the Retained Interest to transfer, hedge or finance the Retained Interest, except as permitted under the U.S. Risk Retention Rules. Neither the Structuring Agent nor the Initial Purchasers have independently verified any of the statements under this "*Credit Risk Retention*" section.

For the avoidance of doubt, in no event shall the Indenture Trustee, Owner Trustee or Grantor Trust Trustee have any responsibility to monitor or enforce compliance with, or be charged with knowledge of, Regulation RR or any other risk retention regulations, nor shall it be liable to any investor or any other party whatsoever for any violation of such regulations or any similar provisions in effect or the breach of any terms of any Basic Documents in connection therewith.

In no event will the Paying Agent, Collateral Agent, Note Registrar, Issuer Certificate Registrar, Grantor Trust Certificate Registrar, Indenture Trustee, Owner Trustee or the Grantor Trust Trustee have any responsibility to monitor compliance with or enforce compliance with the credit risk retention requirements for asset-backed securities or other rules or regulations relating to risk retention. The Paying Agent, Collateral Agent, Note Registrar, Issuer Certificate Registrar, Grantor Trust Certificate Registrar, Indenture Trustee, Owner Trustee or the Grantor Trust Trustee will not be charged with knowledge of such rules, nor will it be liable to any Noteholder, either Sponsor, the Backup Servicer, the Backup Servicer Subcontractor, the Servicer or any other person for violation of such rules now or hereinafter in effect. The Paying Agent, Collateral Agent, Note Registrar, Issuer Certificate Registrar, Grantor Trust Certificate Registrar, Indenture Trustee, Owner Trustee or the Grantor Trust Trustee will not be required to monitor, initiate or conduct any proceedings to enforce the obligations of the Issuer, either Sponsor, the Backup Servicer, the Backup Servicer Subcontractor, the Servicer or any other person with respect to any breach of representation or warranty under any Basic Document and the Paying Agent, Collateral Agent, Note Registrar, Issuer Certificate Registrar, Grantor Trust Certificate Registrar, Indenture Trustee, Owner Trustee or the Grantor Trust Trustee will not have any duty to conduct any investigation as to the occurrence of any condition requiring the repurchase of any Loan by any person pursuant to any Basic Document.

[Remainder of page intentionally left blank.]

CERTAIN FEDERAL INCOME TAX CONSIDERATIONS

General

The following discussion describes certain U.S. federal income tax consequences of the purchase, ownership and disposition of a beneficial interest in the Notes. The discussion is based on the Code, and existing final, temporary and proposed Treasury Regulations, revenue rulings and judicial decisions, all of which potentially are subject to prospective and retroactive changes. The discussion is addressed only to original purchasers of a beneficial interest in the Notes ("Note Owners"), deals only with interests in Notes held as capital assets within the meaning of Section 1221 of the Code. The discussions herein are not intended to apply to Notes acquired by a Note Owner who is a member of the Issuer's expanded group, as defined in the Treasury Regulations under Section 385 of the Code. This discussion is for general information only and, except as specifically set forth below, does not address tax consequences of holding interests in Notes that may be relevant to investors in light of their own investment circumstances or their special tax situations, such as certain financial institutions, tax-exempt organizations, life insurance companies, dealers in securities, accrual method taxpayers subject to special tax accounting rules as a result of their use of financial statements pursuant to Section 451(b) of the Code, or investors holding interests in the Notes as part of a conversion transaction, as part of a hedge or hedging transaction, or as a position in a straddle for tax purposes. Further, this discussion does not address alternative minimum tax consequences or any tax consequences to beneficial owners of equity interests in a Note Owner. Note Owners should be aware that this discussion and the opinions contained herein may not be able to be relied upon to avoid any income tax penalties that may be imposed with respect to the Notes. An opinion of Special Tax Counsel is not binding on the IRS or the courts, and no ruling on any of the issues discussed below will be sought from the IRS. Moreover, there are no authorities on similar transactions involving interests issued by an entity with terms similar to those of the Notes described in this Private Placement Memorandum.

For purposes of this discussion, the term "U.S. Note Owner" refers to a Note Owner who is a "United States person" within the meaning of Section 7701(a)(30) of the Code (other than an entity treated as a partnership for U.S. federal income tax purposes), and the term "Non-U.S. Note Owner" means a Note Owner who is neither a U.S. Note Owner nor an entity treated as a partnership for U.S. federal income tax purposes. In addition, the term "U.S. Class R Note Owner" means a U.S. Note Owner of a Class R Note and "Non-U.S. Class R Note Owner" means a Non-U.S. Note Owner of a Class R Note.

If a partnership (including for this purpose any entity treated as a partnership for U.S. federal income tax purposes) is a Note Owner, the treatment of a partner in that partnership will generally depend upon the status of the partner and upon the activities of the partnership. A Note Owner that is a partnership and partners in such partnership are encouraged to consult their tax advisors regarding the U.S. federal income tax consequences of holding and disposing of an interest in the Notes.

Accordingly, persons considering the purchase of an interest in the Notes should consult their own tax advisors with regard to the U.S. federal income tax consequences of an investment in an interest in the Notes and the application of U.S. federal income tax laws, as well as the laws of any state, local or foreign taxing jurisdictions, to their particular situations.

Tax Characterization of the Issuer and the Notes

Treatment of the Issuer and the Grantor Trust

Sidley Austin LLP, as special tax counsel to the Issuer ("Special Tax Counsel"), is of the opinion that, for U.S. federal income tax purposes, (i) neither the Issuer nor the Grantor Trust will be classified as an association (or a publicly traded partnership) taxable as a corporation, and (ii) the Grantor Trust will be classified as a "grantor trust" within the meaning of subpart E of part I of subchapter J of chapter 1 of subtitle A of the Code. Therefore, neither the Issuer nor the Grantor Trust itself will be subject to U.S. federal income tax. It should be noted that this transaction is not the subject of, or squarely on point with, any Treasury Regulation, revenue ruling or judicial decision, and that legal opinions are not binding on the IRS, so no assurance can be given that this characterization will prevail.

The precise tax characterization of the Issuer for U.S. federal income tax purposes is not completely certain. For example, the Issuer might be viewed as a mere security device, holding assets on behalf of the owner(s) of the Issuer as collateral for Rated Notes issued by the owner(s) of the Issuer. On the other hand, it could be viewed as either a "grantor trust" within the meaning of subpart E of part I of subchapter J of chapter 1 of subtitle A of the Code, or as a business entity that is treated as a disregarded entity, if it has a single owner for U.S. federal income tax purposes, or as a partnership, if it has more than one owner for U.S. federal income tax purposes. This distinction, however, should not have a significant tax effect on Note Owners except as stated below under "*—Possible Alternative Characterizations*" and "*Consequences to Non-U.S. Note Owners*."

Treatment of the Rated Notes

Special Tax Counsel is of the opinion that, when issued, (i) the Rated Notes will be characterized as debt for U.S. federal income tax purposes. Additionally, the Issuer will agree in the Indenture, and the Note Owners will agree by their purchase and holding of an interest in the Rated Notes, to treat all of the Rated Notes as debt for U.S. federal income tax purposes. As discussed below in "*—Taxation of Owners of Exchangeable Notes*," the Issuer intends to treat the Exchangeable Notes as a direct ownership interest in the separate Classes of Exchange Notes corresponding to the Exchange Notes of such Exchangeable Notes for U.S. federal income tax purposes, and by acquiring an Exchangeable Note, each beneficial owner will agree to this treatment. Again, it should be noted that this transaction is not the subject of, or squarely on point with, any Treasury Regulation, revenue ruling or judicial decision, and thus this opinion is not binding on the IRS and no assurance can be given that this characterization will prevail.

The opinion described above regarding the treatment of the Rated Notes as debt for U.S. federal income tax purposes does not apply to any Notes beneficially owned by the Issuer or a Person that is considered the same Person as the Issuer or its single beneficial owner, as the case may be, for U.S. federal income tax purposes.

Treatment of the Class R Notes

For U.S. federal income tax purposes, the Issuer agrees, and by acquiring a Class R Note each beneficial owner of a Class R Note is deemed to agree, to treat the Issuer as a grantor trust for U.S. federal income tax purposes and to treat each Class R Note as an undivided beneficial ownership interest in the income and assets of the Issuer for such purposes. Further, pursuant to the Indenture, the Issuer agrees, and by acquiring a Class R Note, each Class R Note Owner agrees, to treat the Rated Notes as debt for U.S. federal income tax purposes.

Each Note Owner of a Class R Note is generally subject to certain tax-related transfer restrictions on its disposition of any such Class R Note. All references in this Private Placement Memorandum to transfer restrictions in respect of a Class R Note shall include the respective portions of any Class R Note represented by an Exchangeable Note. See "*Notice to Investors/Transfer Restrictions*".

Possible Alternative Characterizations

If, contrary to the opinion of Special Tax Counsel, the IRS successfully asserted that one or more classes of the issued Rated Notes did not represent debt for U.S. federal income tax purposes, those Rated Notes would likely be treated as equity interests in the Issuer. If so treated, the Issuer would likely be treated as a partnership, the Note Owners of such Rated Notes and the Note Owners of Class R Notes would be treated as a partners in such partnership. In such case, payments on any Notes treated as equity interests in such partnership could be treated as "guaranteed payments," which could result in adverse tax consequence to certain holders. For example, individual Note Owners could be subject to certain limitations on their ability to deduct their share of Issuer expenses under the rules of Section 163(j) of the Code, income to certain tax-exempt entities, including pension funds, could be "unrelated business taxable income," income to Non-U.S. Note Owners could be subject to U.S. federal withholding tax and income tax return filing requirements, and Non-U.S. Note Owners could be subject to withholding in connection with their disposition of any such Notes.

In the opinion of Special Tax Counsel, although the matter is not free from doubt, the Issuer will not be treated as engaged in the conduct of a trade or business within the United States for U.S. federal income tax purposes, and the Issuer does not intend to treat its activities as causing any of its income to be treated as effectively connected

with the conduct of a trade or business within the United States. However, if the IRS successfully asserted that the Issuer is engaged in such a trade or business within the United States, then taxable income treated as effectively connected with such trade or business and allocable to a Non-U.S. Class R Note Owner, or a Non-U.S. Note Owner of any Class of Rated Notes that is recharacterized as equity in the Issuer, would be subject to U.S. income and withholding tax. In addition, if a Class R Note Owner (or Note Owner of any Class of Rated Note that is recharacterized as equity in the Issuer) provides the Issuer with an IRS Form W-8ECI (or an IRS Form W-8IMY with an IRS Form W-8ECI attached) to indicate that income allocable to such Class R Note Owner or Note Owner of Rated Notes is otherwise effectively connected to a U.S. trade or business of that Class R Note Owner or Note Owner of Rated Notes, the Issuer would be required to withhold on such income if it is classified as a partnership for U.S. federal income tax purposes. To reduce the risk of such potential liability for the Issuer, each Class R Note Owner is required to be either (i) a United States person that provides the Issuer with an IRS Form W-9 or (ii) a non-United States person that provides the Issuer with an IRS Form W-8BEN or IRS Form W-8BEN-E certifying that the income is not effectively connected to a U.S. trade or business of the holder (or an IRS Form W-8IMY that does not have any IRS Form W-8ECIs attached or otherwise treat any of the income as effectively connected with the conduct of a U.S. trade or business). There can be no assurance, however, that a Class R Note will not be held by a non-United States person that treats the income as effectively connected with a U.S. trade or business.

In addition, if the Issuer is required to be treated as a partnership for U.S. federal income tax purposes, a Non-U.S. Class R Note Owner could be subject to withholding under Section 1446(f) of the Code on its attempted disposition of a Class R Note. In such event, under Section 1446(f) of the Code, a transferee of a Class R Note could be liable for a withholding tax of 10% of the amount realized by the transferor (including debt deemed to be assumed by the transferee) if the transferee does not obtain an affidavit meeting the requirements of Section 1446(f) of the Code or satisfy the requirements of IRS guidance issued thereunder so as to exempt the amount realized from such withholding. The affidavits generally relate to either confirming that the transferor is a United States person for U.S. federal income tax purposes, that the underlying assets of the Issuer do not give rise to a certain level of income effectively connected with a trade or business in the United States, that the Issuer has not been engaged in a United States trade or business within a certain time period, or that certain matters involving gain recognition are applicable to the transaction. If a transferee of a Class R Note is required to withhold and does not, the partnership is required to withhold, but only on distributions to such transferee. As stated above, Special Tax Counsel is of the opinion that, although the matter is not free from doubt, the Issuer will not be treated as engaged in the conduct of a trade or business within the United States. In addition, each Class R Note Owner agrees to treat the Issuer as a grantor trust for U.S. federal, state and local income and franchise tax purposes, and the Issuer intends to treat its income as not being effectively connected to a U.S. trade or business. As such, the Issuer has not created a mechanism for a transferee of a Class R Note to obtain any particular affidavit described above. Accordingly, each Class R Note Owner represents and agrees that complying with Section 1446(f) of the Code is not the responsibility of the Issuer, and that a transferor and transferee of a Class R Note may be subject to withholding or a withholding obligation, as the case may be, in the event that the Issuer is treated as a partnership for U.S. federal income tax purposes and there is a failure to comply with Section 1446(f) of the Code.

In addition, if the Issuer is required to be treated as a partnership for U.S. federal income tax purposes, (i) the Administrator will cause the timely filing of any and all required forms to effect such treatment and the treatment of the Class R Note Owner as the partners of the Issuer for U.S. federal income tax purposes, (ii) each nominee holder of a Class R Note will be required to provide the Administrator the information required by Section 6031(c) of the Code, and (iii) each beneficial owner of a Class R Note, whether such Class R Note is held directly or through a nominee, will be required to provide the Administrator any information or certifications the Administrator requires for tax purposes and reasonably requests in writing. A failure to timely file the tax returns, if required, can result in penalties on the Issuer.

Under the rules applicable to the tax audits of partnerships and entities treated as partnerships, unless an entity elects otherwise, taxes arising from audit adjustments are required to be paid by the entity rather than by its partners or members. If applicable, the parties responsible for the tax administration of the Issuer described herein will have the authority to utilize, and intends to utilize, any exceptions available under these provisions (including any changes) and any Treasury Regulations issued thereunder so that a Class R Note Owner, to the fullest extent possible, rather than the Issuer itself, will be liable for any taxes arising from audit adjustments to the Issuer's taxable income. If the Issuer is unable to avail itself of such exceptions, liability for any taxes arising from audit adjustments may

adversely impact the cash flow of the Issuer available to pay the Notes. Prospective investors are urged to consult with their tax advisors regarding possible effects of these rules.

Furthermore, to the extent any of the Rated Notes were recharacterized as equity interests and the Issuer failed to meet certain qualifying income tests, the Issuer might be treated as a publicly traded partnership taxable as a corporation with potentially adverse tax consequences to the Note Owners, including an adverse impact on cash flow of the Issuer available to pay the Notes. For instance, if the Issuer was so treated, the Issuer would be subject to U.S. federal income tax at corporate income tax rates on the income it derives from the Loans and other assets, which would reduce the amounts available for payment to the beneficial owners of Notes. In addition, it would not be able to reduce its taxable income by deductions for interest expense on any Rated Notes recharacterized as equity; further, cash payments to the beneficial owners of the Class R Notes and distributions to Note Owners of any Rated Notes recharacterized as equity would be treated as dividend income to the extent of the Issuer's current and accumulated earnings and profits, subject to withholding in the case of Non-U.S. Note Owners and possibly more broadly without the benefit of any dividends received deduction. It is expected, however, that the Issuer would meet these qualifying income tests and thus will not be treated as a publicly traded partnership taxable as a corporation.

Prospective investors should consult their own tax advisors with regard to the consequences of possible alternative characterizations to them in their particular circumstances; the following discussion assumes that the characterization of the Rated Notes as debt is correct, that the Class R Notes will be treated as representing undivided beneficial ownership interests in the income and assets of the Issuer, and that the characterization of the Issuer and the Grantor Trust as entities not subject to U.S. federal income tax is correct.

Consequences to U.S. Note Owners of Rated Notes

Interest and Original Issue Discount

Stated interest on a Rated Note will be includible in gross income as it accrues or is received in accordance with the usual method of tax accounting of a Note Owner. One or more classes of Rated Notes may be issued with OID. If any Rated Notes are issued with OID, the provisions of Sections 1271 through 1273 and 1275 of the Code will apply to those Notes. Under those provisions, a Note Owner (including a cash basis Note Owner) would be required to include the OID on a Rated Note in income for federal income tax purposes on a constant yield basis, resulting in the inclusion of OID in income in advance of the receipt of cash attributable to that income. Subject to the discussion below, an interest in a Rated Note will be treated as having OID to the extent that its "stated redemption price" exceeds its "issue price," if such excess equals or exceeds 0.25 percent multiplied by the weighted average life of the Rated Note (determined by taking into account the number of complete years following issuance until payment is made for each partial principal payment). Under Section 1272(a)(6) of the Code, special provisions apply to debt instruments on which payments may be accelerated due to prepayments of other obligations securing those debt instruments. Although no Treasury Regulations have been issued interpreting those provisions and the manner in which those provisions would apply to the Rated Notes is unclear, the application of Section 1272(a)(6) of the Code generally would affect the rate of accrual of OID and could have other consequences to Note Owners.

Interest, other than "qualified stated interest," must be accrued under the OID rules described above. To be "qualified stated interest," interest must be "unconditionally payable" at least annually. Interest is unconditionally payable if reasonable legal remedies exist to compel timely payment or if other provisions of the instrument make the likelihood of late payment or nonpayment sufficiently remote. Because the interest on each of the Class B Notes, the Class C Notes and the Class D Notes is subject to deferral in certain circumstances, the IRS could take the position based on the Treasury Regulations that none of the interest payable on a Class B Note, a Class C Note or a Class D Note is "unconditionally payable" and hence that all of such interest should be accrued under the OID rules described above. If sustained, such treatment should not significantly affect tax liabilities for most Note Owners, but prospective investors should consult their own tax advisors concerning the impact to them in their particular circumstances. The Issuer currently intends to take the position that interest on the Rated Notes, including the Class B Notes, the Class C Notes and the Class D Notes, constitutes "qualified stated interest" and that the above consequences do not apply, but may revise such tax reporting in the future should it determine a change to be appropriate.

Market Discount

To the extent a Rated Note is purchased on the secondary market for less than its issue price, such Rated Note would be treated as having been purchased at a "market discount," unless the amount of such market discount is less than a specified de minimis amount. Under the market discount rules, the lesser of (i) the gain realized or (ii) the portion of the market discount that accrued while the debt instrument was held by the holder will be treated as ordinary income at the time of the disposition. Market discount is considered to accrue ratably during the period from the date of acquisition to the maturity date of the debt instrument, unless the holder elects to accrue market discount on a constant yield basis. A holder of a Rated Note may be required to defer the deduction of all or a portion of the interest paid or accrued on any indebtedness incurred or continued to purchase or carry a Rated Note with market discount until the maturity of the Rated Note or certain earlier dispositions, because unless a holder elects to take market discount into income currently, a current deduction is only allowed to the extent the interest expense exceeds the market discount. If such election is made with respect to a Rated Note, then the holder of such Rated Note will be deemed to have elected to include market discount currently with respect to all market discount debt instruments that the investor acquired on the first day of the taxable year to which the election applies and acquires thereafter.

Market Premium

To the extent a Rated Note is purchased on the secondary market for greater than its issue price, such Rated Note would be treated as having been purchased at a premium for U.S. federal income tax purposes. A holder of such a Rated Note may elect to amortize the premium against interest income over the remaining term of such Rated Note on a constant yield basis. Such holder's tax basis in a Rated Note will be reduced by the amount of premium on the Rated Note that is so amortized. An election to amortize the premium applies to all taxable debt instruments acquired by the holder on or after the first day of the first taxably year to which such election applies, and may not be revoked without the consent of the IRS. If a holder of a Rated Note does not elect to amortize the premium, the holder will be required to report the full amount of stated interest on the Rated Note as ordinary income, even though the holder may be required to recognize a capital loss (which may not be available to offset ordinary income) on a sale or other disposition of the Rated Note.

Disposition of an Interest in the Rated Notes

Subject to certain exceptions (such as in the case of "wash sales") upon the sale, exchange or retirement of an interest in a Rated Note, the Note Owner will recognize taxable gain or loss in an amount equal to the difference between the amount realized on the disposition (other than amounts attributable to accrued but unpaid interest) and the Note Owner's adjusted tax basis in its interest in a Rated Note. The Note Owner's adjusted tax basis in its interest in a Rated Note generally will equal the cost of the interest in the Rated Note to such Note Owner, increased by any OID previously included in income by such Note Owner with respect to the Rated Note, and decreased by any payments reflecting principal or OID previously received by such Note Owner with respect to such Rated Note. Any such gain treated as capital gain will be long-term capital gain if the interest in the Rated Note has been held for more than one year, and any such loss will be a capital loss, subject to limitations on deductibility.

Medicare Tax on Investment Income

The Code also imposes a Medicare related surtax of 3.8% on the "net investment income" of certain individuals, trusts and estates. Among other items, net investment income generally includes interest on debt obligations like the Notes and net gain attributable to the disposition of debt instruments like the Rated Notes to the extent that such gain would be otherwise included in taxable income.

Consequences to U.S. Note Owners of Class R Notes

Ownership of Class R Notes and Payments to U.S. Class R Note Owners

Each U.S. Note Owner of a Class R Note will be treated as acquiring and owning a pro rata undivided interest in the income and assets of the Issuer. Since the Issuer's principal assets will consist of a Class R Note representing the entire beneficial interest in the Grantor Trust, each U.S. Class R Note Owner will also be treated as owner of a pro

rata undivided interest in the income and assets of the Grantor Trust, including the Loans. Accordingly, each U.S. Class R Note Owner will be required to report on its U.S. federal income tax return in accordance with such U.S. Class R Note Owner's method of accounting its pro rata share of the income from the Loans represented by its Class R Notes, including any interest, OID, market discount, prepayment fees, and late payment charges received by the Servicer. Non-corporate U.S. Class R Note Owners will not be able to deduct their pro rata shares of prepayment fees, late payment charges and other miscellaneous itemized deductions received by the Servicer for tax years beginning before January 1, 2026. Further, the deductibility of a U.S. Class R Note Owner's interest expense allocable to a trade or business may be subject to the limitations under the rules of Section 163(j) of the Code.

The price paid for a Class R Note by a U.S. Class R Note Owner will be allocated to the holder's undivided interest in each Loan (and each of the Issuer's other assets) based on each such Loan's and other asset's relative fair market value at the time of Class R Note purchase, with the effect that a U.S. Class R Note Owner's undivided interest in each Loan will have its own tax basis.

Special considerations apply to any U.S. Class R Note Owner that also beneficially owns Rated Notes. To the extent that a U.S. Class R Note Owner also beneficially owns Rated Notes, such U.S. Class R Note Owner's pro rata portion of the Rated Notes may not be treated as issued for U.S. federal income tax purposes, and the interest on such Rated Notes that would otherwise be treated as paid by the U.S. Class R Note Owner may be disregarded for U.S. federal income tax purposes and not treated as paid. Under such treatment, the U.S. Class R Note Owner would not be entitled to a deduction with respect to the portion of the interest on such Rated Notes that would otherwise be treated as paid by the U.S. Class R Note Owner (and as Rated Noteholder would not be required to include that amount in income), but the treatment of interest paid on Notes not held by the U.S. Class R Note Owner would be unaffected by the U.S. Class R Note Owner's position as a holder of the Rated Notes. Prospective investors should consult their tax advisors regarding the treatment of interest on their Rated Notes that is attributable to their Class R Note.

Market Discount

A U.S. Class R Note Owner's acquisition of a Class R Note representing an undivided interest in each Loan may be subject to the market discount rules of Sections 1276 through 1278 of the Code to the extent such interest is considered to have been purchased at a "market discount." For purposes of this discussion, each Loan subject to the market discount rules is referred to herein as a "market discount bond." Generally, the amount of market discount would be equal to the excess of the portion of the principal amount of a Loan allocable to a U.S. Class R Note Owner's undivided interest therein over such U.S. Class R Note Owner's tax basis in the Loan.

Any principal payment (whether a scheduled payment or a prepayment) or any gain on disposition of a market discount bond shall be treated as ordinary income to the extent that it does not exceed the accrued market discount at the time of such payment. The amount of accrued market discount for purposes of determining the tax treatment of subsequent principal payments or dispositions of the market discount bond is to be reduced by the amount so treated as ordinary income. For market discount bonds with unaccrued OID, the market discount must be included in income in addition to any OID. A U.S. Class R Note Owner that incurs or continues indebtedness to acquire a Class R Note representing an undivided interest in a Loan subject to the market discount rules also may be required to defer the deduction of all or a portion of the interest on the indebtedness until the corresponding amount of market discount is included in income. In general terms, market discount on a market discount bond may be treated as accruing either (i) under a constant-yield method or (ii) in proportion to remaining accruals of OID, if any, or if none, in proportion to remaining distributions of interest of the market discount bond, in any case taking into account the prepayment assumption. The Issuer will make available, as required by the IRS, to U.S. Class R Note Owners information necessary to compute the accrual of market discount.

Notwithstanding the above rules, market discount on a market discount bond will be considered to be zero if the discount is less than 0.25% of the remaining "stated redemption price at maturity" of the market discount bond multiplied by its "weighted average remaining maturity." Weighted average remaining maturity would be calculated taking into account payments, including prepayments, prior to the date of acquisition of the market discount bond by the subsequent purchaser. If market discount on a market discount bond is treated as zero under this rule, the actual amount of market discount must be allocated to the remaining principal distributions on the market discount bond and, when each distribution is received, gain equal to the discount allocated to the distribution will be recognized. U.S.

Class R Note Owners should consult their own tax advisors regarding the application of these rules and the advisability of making any of the elections allowed under Code Sections 1276 through 1278 of the Code.

Premium

A U.S. Class R Note Owner that purchases a Class R Note representing an undivided interest in a Loan at a cost greater than the Loan's remaining "stated redemption price at maturity" will be considered to have purchased that Loan at a premium. A U.S. Class R Note Owner that acquires an interest in Loans at a premium may elect to amortize that premium under a constant-yield method. If the election is made, amortizable bond premium will be treated as an offset to interest income on those Loans and the basis for those Loans will be reduced to the extent that amortizable premium is applied to offset interest payments. A U.S. Class R Note Owner that makes this election for a Loan that is acquired at a premium will be deemed to have made an election to amortize bond premium with respect to all debt instruments having amortizable bond premium that such U.S. Class R Note Owner acquires during the year of the election or thereafter, and the election is irrevocable without the consent of the IRS.

It is not clear whether a reasonable prepayment assumption should be used in computing amortization of premium allowable under Section 171 of the Code. If a premium is not subject to amortization using a reasonable prepayment assumption, the U.S. Class R Note Owner deemed to have acquired a Loan at a premium should recognize a loss if the Loan prepays in full, in an amount equal to the difference between the portion of the prepaid principal amount of such Loan that is allocable to the holder's Class R Note and the portion of the holder's adjusted basis in its Class R Note that is allocable to the Loan. If a reasonable prepayment assumption is used to amortize such premium, a loss may be available, if at all, only if prepayments have occurred at a rate faster than the reasonably assumed prepayment rate. It is not clear whether any other adjustments would be required to reflect differences between an assumed prepayment rate and the actual rate of prepayments.

Treasury regulations governing the application of amortizable bond premium specifically do not apply to prepayable debt instruments, such as the Loans, that are described in Section 1272(a)(6) of the Code. Prospective U.S. Class R Note Owners should consult their tax advisors regarding application of the amortizable premium rules to their investment in Class R Notes.

Election to Treat All Interest as OID

The OID Treasury regulations permit a U.S. Class R Note Owner to elect to accrue all interest, discount (including de minimis market discount or OID) and premium in income as interest, based on a constant-yield method. If this election is made with respect to a Class R Note representing Loans acquired with market discount, the U.S. Class R Note Owner will be deemed to have made an election to include in income currently market discount with respect to all other debt instruments having market discount that the U.S. Class R Note Owner acquires during the year of the election or thereafter. Similarly, a U.S. Class R Note Owner that makes this election for a Class R Note representing Loans acquired at a premium will be deemed to have made an election to amortize bond premium with respect to all debt instruments having amortizable bond premium that the U.S. Class R Note Owner owns or acquires. See "—Premium" above. The election to accrue interest, discount and premium on a constant-yield method with respect to a Class R Note may only be revoked with the consent of the IRS.

Disposition of Class R Notes

A sale, exchange or other taxable disposition of Class R Notes by a U.S. Class R Note Owner will result in the recognition of gain or loss in an amount equal to the difference, if any, between the amount realized on the sale, exchange or disposition and the U.S. Class R Note Owner's adjusted tax basis in its Class R Notes (except to the extent any such gain is attributable to accrued but unpaid stated interest on the Loans, which will be treated as a payment of interest). A U.S. Class R Note Owner's adjusted tax basis will equal such U.S. Class R Note Owner's initial purchase price for the Class R Note, increased by any accrued OID or market discount included in income with respect to the Class R Note and decreased by principal payments received or any bond premium amortized with respect to the Class R Note. Any gain or loss recognized with respect to such sale or other disposition generally will be treated as capital gain or loss, and will be long-term capital gain or loss if the Class R Note has been held by the U.S. Class R Note Owner for more than one year.

Capital gains recognized by an individual upon the sale or other disposition of a Class R Note that is held for more than one year are generally eligible for reduced rates of U.S. federal income taxation. The deductibility of a capital loss recognized upon the sale or other disposition of a Class R Note against ordinary income is subject to limitations. In the case of a U.S. Class R Note Owner that acquires Class R Notes at different times, the determination of the holding period for any particular Class R Note will need to take into account certain "split holding period" rules that apply to acquisitions of partnership interests.

Debt-Financed UBTI for Tax Exempt Holders

Since the Issuer, as a grantor trust, is borrowing under the Notes to fund (directly or indirectly) the purchase of the Loans, all or a portion of the Issuer's taxable income may be considered debt-financed and some or all of a tax-exempt U.S. Class R Note Owner's distributive share of income from the Issuer (including interest and capital gains) could be unrelated business taxable income ("**UBTI**") within the meaning of the Code for a tax-exempt U.S. Class R Note Owner. The receipt of UBTI by a tax-exempt U.S. Class R Note Owner could give rise to additional tax liability to such tax-exempt U.S. Class R Note Owner.

Medicare Tax on Investment Income

The Code also imposes a Medicare related surtax of 3.8% on the "net investment income" of certain U.S. individuals, trusts and estates. Among other items, net investment income generally includes a U.S. Class R Note Owner's distributive share of interest income on debt obligations like the Loans and net gain attributable to the disposition of property like the Class R Notes.

Taxation of Owners of Exchangeable Notes

Exchangeable Notes

Although an Exchangeable Note is a single instrument in form, the Issuer intends to treat beneficial owners of Exchangeable Notes as directly owning the separate Classes of Exchange Notes corresponding to such Exchangeable Note for U.S. federal income tax purposes. By acquiring an Exchangeable Note, each beneficial owner will agree to this treatment. Accordingly, each beneficial owner of an Exchangeable Note should account for its ownership interest in each Exchange Note underlying that Exchangeable Note as described under "*—Consequences to U.S. Note Owners of the Rated Notes*" and "*Consequences of U.S. Note Owners of Class R Notes*" above. Generally, when a person acquires beneficial ownership in two or more underlying Exchange Notes at the same time, such as when it acquires an Exchangeable Note that represents the beneficial ownership of two or more Exchange Notes, the beneficial owner must allocate its cost to acquire that Exchangeable Note among the corresponding Exchange Notes in proportion to their relative fair market values at the time of acquisition. When such a beneficial owner sells the Exchangeable Note, the owner must allocate the sale proceeds among the Exchange Notes in proportion to their relative fair market values at the time of sale.

Under the OID Treasury regulations, if two or more debt instruments are issued in connection with the same transaction or related transaction (determined based on all the facts and circumstances), those debt instruments are treated as a single debt instrument for purposes of the provisions of the Code applicable to OID, unless an exception applies. Under this rule, even though an Exchangeable Note represents beneficial ownership of each of the Exchange Notes, it could be treated, with respect to the Exchange Notes underlying the Exchangeable Notes that are Rated Notes, as a single debt instrument for OID purposes. In addition, if the two or more Exchange Notes that are Rated Notes underlying an Exchangeable Note were aggregated for OID purposes as described above and a beneficial owner of an Exchangeable Note were to (i) exchange that Exchangeable Note for the related underlying Exchange Notes, (ii) sell one of those corresponding Exchange Notes, and (iii) retain one or more of the remaining corresponding Exchange Notes, the beneficial owner might be treated as having engaged in a "coupon stripping" or "bond stripping" transaction within the meaning of Section 1286 of the Code. Under Section 1286 of the Code, a beneficial owner of an Exchangeable Note that engages in a coupon stripping or bond stripping transaction must allocate its basis in the original Exchangeable Note between the related Exchange Note sold and the related Exchange Note retained in proportion to their relative fair market values as of the date of the stripping transaction. The beneficial owner then must recognize gain or loss on the Exchange Note sold using its basis allocable to those Exchange Notes. Also, the beneficial owner then must treat the Exchange Notes underlying the Exchangeable Note retained as a newly issued

debt instrument that was purchased for an amount equal to the beneficial owner's basis allocable to those Exchange Notes. Accordingly, in such event, the beneficial owner must accrue interest and OID with respect to the Exchange Notes retained based on the beneficial owner's basis in those Exchange Notes.

As a result, when compared to treating each Exchange Note underlying an Exchangeable Note as a separate debt instrument, aggregating the Exchange Notes underlying an Exchangeable Note could affect the timing and character of income recognized by a beneficial owner of an Exchangeable Note. Moreover, if Section 1286 were to apply to a beneficial owner of an Exchangeable Note, much of the information necessary to perform the related calculations for information reporting purposes generally would not be available to the Indenture Trustee. Because it may not be clear whether the aggregation rule in the OID Treasury regulations applies to the Exchangeable Notes and due to the Indenture Trustee's lack of information necessary to report computations that might be required by Section 1286 of the Code, the Indenture Trustee intends to treat each Exchange Note that is a Rated Note underlying an Exchangeable Note as a separate debt instrument for information reporting purposes. By acquiring an Exchangeable Note, each beneficial owner will acknowledge and agree to this treatment for information reporting purposes. Prospective investors should note that, if the two or more Exchange Notes that are Rated Notes underlying an Exchangeable Note were aggregated, the timing of accruals of OID applicable to an Exchangeable Note could be different than that reported to holders and the IRS. Prospective investors should consult their own tax advisor regarding any possible tax consequences if the IRS were to assert that the Exchange Notes underlying their Exchangeable Notes should be aggregated for OID purposes.

All references in this Private Placement Memorandum to the tax treatment relating to the ownership of Rated Notes and Class R Notes shall include the respective portions of any Class A Notes, Class B Notes, Class C Notes, Class D Notes and Class R Notes represented by Exchangeable Notes.

Exchanges

If a beneficial owner exchanges one or more Exchange Notes for the related Exchangeable Note or *vice versa* in the manner described under "*Description of the Notes—Exchange Notes and Exchangeable Notes*" in this Private Placement Memorandum, the exchange will not be a taxable exchange. Likewise, if a beneficial owner exchanges one or more Exchangeable Notes for the corresponding Exchange Notes in the manner described in that discussion, the exchange will not be a taxable exchange. In each of these cases, the beneficial owner will be treated as continuing to own after the exchange the same combination of interests in the corresponding Exchange Notes that it owned immediately prior to the exchange.

Consequences to Non-U.S. Note Owners of Rated Notes

Subject to exceptions applicable to certain types of interest and to the discussion below, payments of interest (including accrued OID) to a Non-U.S. Note Owner will not be subject to U.S. federal income tax and withholding tax provided the interest is not effectively connected with the conduct of a trade or business within the United States by the Non-U.S. Note Owner and the Non-U.S. Note Owner (i) is not for U.S. federal income tax purposes (a) actually or constructively a "10 percent shareholder" of the Issuer (including a holder of 10% of the outstanding Class R Notes), (b) a "controlled foreign corporation" with respect to which the Issuer is a "related person" within the meaning of the Code, or (c) a bank extending credit pursuant to a loan agreement entered into in the ordinary course of its trade or business, and (ii) provides the person who is otherwise required to withhold U.S. tax with respect to the Rated Notes with an appropriate statement (on IRS Form W-8BEN or IRS Form W-8BEN-E, as applicable, or a substitute form), signed under penalties of perjury, certifying that the beneficial owner of the Rated Note is a Non-U.S. Note Owner and providing the Non-U.S. Note Owner's name, address and certain additional information. If a Rated Note is held through a securities clearing organization or certain other financial institutions, the organization or institution may provide the relevant signed statement to the withholding agent; in that case, however, the signed statement must be accompanied by an IRS Form W-8BEN or W-8BEN-E, as applicable, or substitute form provided by the Non-U.S. Note Owner that owns the interest in the Rated Note. Special rules apply to partnerships, estates and trusts, and in certain circumstances certifications as to foreign status and other matters may be required to be provided by partners and beneficiaries thereof. If such interest is not portfolio interest, then it may be subject to U.S. federal income and withholding tax at a rate of 30%, unless such rate is reduced or eliminated pursuant to an applicable tax treaty, or treated as effectively connected with the conduct of a trade or business within the United States and, in either such case, the appropriate statement has been provided.

As discussed under "*—Tax Characterization of the Issuer and the Notes—Possible Alternative Characterizations*" above, it is possible that a Note Owner could be treated as owning an equity interest in a partnership. If any such Rated Note were to be characterized by the IRS as equity in the Issuer, interest payments (or, if the Issuer were treated as being engaged in the conduct of a trade or business within the United States, taxable income allocable) to a Non-U.S. Note Owner owning an interest in such a Rated Note might be subject to U.S. federal withholding tax. In addition, if the Non-U.S. Note Owner provides an IRS Form W-8ECI in connection with its acquisition or ownership of such recharacterized Rated Notes to indicate that the income is effectively connected to a U.S. trade or business of that Note Owner, the Note Owner will be subject to U.S. federal withholding tax. Such withholding tax would reduce the amount of payments to any such Non-U.S. Note Owner on any such recharacterized Rated Note. Further, the IRS could assert a withholding tax with respect to interest payments distributed to such Note Owners prior to the recharacterization.

Any capital gain realized on the sale, redemption, retirement or other taxable disposition of an interest in a Note by a Non-U.S. Note Owner will be exempt from U.S. federal income tax and withholding tax, *provided* that (i) such gain is not effectively connected with the conduct of a trade or business in the United States by the Non-U.S. Note Owner, and (ii) in the case of an individual Non-U.S. Note Owner, such individual is not present in the United States for 183 days or more in the taxable year.

Non-U.S. Note Owners should consult their tax advisors regarding the procedures whereby they may establish an exemption from withholding.

Consequences to Non-U.S. Note Owners of Class R Notes

Subject to the discussions below regarding FATCA and backup withholding, a Non-U.S. Class R Note Owner that does not hold its Class R Note in connection with the conduct of a trade or business in the United States by such Class R Note Owner will not be subject to U.S. federal withholding tax on its proportionate share of the gross interest received by the Issuer from the Loans so long as:

(a) the Non-U.S. Class R Note Owner is neither (i) a "10-percent shareholder" (as described in Section 881(c)(3)(B) of the Code) of the payor of the interest on the Loans, (ii) a "controlled foreign corporation" with respect to which the payor is a "related person" as described in Section 881(c)(3)(C) of the Code, nor (iii) a bank receiving the interest on a loan made in the ordinary course of its business, and

(b) certain certification requirements are satisfied.

If a Class R Note is held by a Non-U.S. Class R Note Owner in connection with the conduct of a trade or business carried on in the United States, the Non-U.S. Class R Note Owner will be subject to U.S. federal income tax (as well as, in the case of a corporate Non-U.S. Class R Note Owner, possible U.S. branch profits tax at a rate of up to 30%) on interest income recognized on the Loans generally in the same manner as a U.S. Class R Note Owner unless an applicable income tax treaty provides otherwise. To prevent the Class R Notes from being held in connection with the conduct of a trade or business in the United States, each Non-U.S. Class R Note Owner is required to provide the Issuer with an appropriate IRS Form W-8 (or applicable successor form) other than an IRS Form W-8ECI or IRS Form W-8IMY with an IRS Form W-8ECI attached.

Sale, Exchange or Other Taxable Disposition of Class R Notes

Subject to the discussions relating to backup withholding below, any gain realized by a Non-U.S. Class R Note Owner on the sale, exchange or other taxable disposition of Class R Notes (except to the extent such gain is attributable to accrued but unpaid stated interest on the Loans, which will be treated as a payment of interest) should not be subject to U.S. federal income and withholding tax, provided that:

- the gain is not effectively connected with the conduct of a trade or business in the United States by the Non-U.S. Class R Note Owner; and

- in the case of an individual Non-U.S. Class R Note Owner, such Non-U.S. Class R Note Owner is not present in the United States for 183 days or more in the taxable year and certain other conditions are met (in which case such individual will be subject to a 30% U.S. federal income tax on the gain, which gain may be offset by certain U.S.-source capital losses).

Capital gain recognized by a Non-U.S. Class R Note Owner on a Class R Note that is effectively connected with a trade or business conducted in the United States by such Non-U.S. Class R Note Owner will be subject to U.S. federal income tax (as well as, in the case of a corporate Non-U.S. Class R Note Owner, possible U.S. branch profits tax at a rate of up to 30%) generally in the same manner as capital gain recognized by a U.S. Class R Note Owner unless an applicable income tax treaty provides otherwise, but generally will not be subject to U.S. withholding tax if the Non-U.S. Class R Note Owner provides a timely and properly executed IRS Form W-8ECI to claim exemption from withholding.

Foreign Trust Reporting Requirement

If a Non-U.S. Class R Note Owner acquires a Class R Note, the Issuer may be treated as a foreign trust for U.S. federal income tax purposes. If the Issuer is treated as a foreign trust, a beneficial owner of a Class R Note that is a U.S. Class R Note Owner will be required to report any transfer of money or property to the Issuer on IRS Form 3520 and to file IRS Form 3520 on an annual basis. In addition, in that case, a beneficial owner of a Class R Note that is a U.S. Class R Note Owner will also be responsible for ensuring that the Issuer files IRS Form 3520-A and provides certain annual statements to all beneficial owners of Class R Note issued by the Issuer. It is not clear that a U.S. Class R Note Owner could fully comply with the foregoing reporting requirements with respect to the Issuer, and a U.S. Class R Note Owner that failed to comply with those requirements could (and normally would) be subject to significant penalties.

In addition, in such event, certain U.S. Class R Note Owners may be required to file IRS Form 8938. U.S. Class R Note Owners that are individuals who own "specified foreign financial assets" with an aggregate value in excess of $50,000 on the last day of the taxable year (or with an aggregate value in excess of $75,000 at any time during the taxable year), will generally be required to file an information report on IRS Form 8938 with respect to such assets with their U.S. federal tax returns. "Specified foreign financial assets" include any financial accounts maintained by foreign financial institutions, as well as any of the following, but only if they are held for investment and not held in accounts maintained by financial institutions: (i) stocks and securities issued by non-U.S. holders, (ii) financial instruments and contracts that have non-U.S. issuers or counterparties and (iii) interest in foreign entities.

Prospective investors in Class R Notes should consult their tax advisors regarding the applicability of the various potential information reporting requirements and penalties to their ownership of Class R Notes.

Backup Withholding and Information Reporting

Payments of principal and interest with respect to a Rated Note, distributions made with respect to a Class R Note, and payments of proceeds from the sale, retirement or disposition of an interest in a Rated Note or Class R Note, may be subject to "backup withholding" tax under Section 3406 of the Code if a recipient of such payments fails to furnish to the payor certain identifying information. Any amounts deducted and withheld would be allowed as a credit against such recipient's U.S. federal income tax, provided appropriate proof is provided under rules established by the IRS. Furthermore, the IRS may impose certain penalties on a recipient of payments that is required to supply information but that does not do so in the proper manner. Backup withholding will not apply with respect to payments made to certain exempt recipients. Payments on a Note may also be subject to information reporting requirements, unless an exemption applies. Note Owners should consult their tax advisors regarding the rates for backup withholding, their qualification for any exemptions from backup withholding and information reporting and the procedure for obtaining such an exemption.

Withholding and Reporting Related to Foreign Accounts of United States Persons

In addition, withholding taxes may be imposed under the Foreign Account Tax Compliance Act ("FATCA") on certain types of payments made to "foreign financial institutions" and certain other non-U.S. entities. Failure to comply with additional certification, information reporting and other specified requirements imposed pursuant to

FATCA could result in the imposition of a 30% withholding tax on payments of interest (including OID) to U.S. Rated Note Owners who own their Rated Notes through foreign accounts or foreign intermediaries, on a Non-U.S. Class R Note Owner's share of interest from the underlying Loans, and to certain Non-U.S. Rated Note Owners. FATCA may result in changes to some of the general rules discussed above relating to certification requirements, information reporting and withholding. Current provisions of the Code and Treasury Regulations that govern FATCA treat gross proceeds from a sale or other disposition of debt obligations that can produce U.S.-source interest (such as the Notes) as subject to FATCA withholding. However, under proposed Treasury Regulations, such gross proceeds are not subject to FATCA withholding. In its preamble to such proposed Treasury Regulations, the IRS has stated that taxpayers may generally rely on the proposed Treasury Regulations until final Treasury Regulations are issued. Prospective investors should consult their own tax advisors regarding FATCA and any effect on them.

Tax Regulations For Related Party Note Acquisitions

Treasury and the IRS issued regulations under Section 385 of the Code that address the treatment as debt or equity of instruments held by certain parties related to the Issuer. In particular, in certain circumstances, a Note that otherwise would be treated as debt is treated as stock for federal income tax purposes during the period in which the Note is held by the applicable related party (generally based on a group of corporations or controlled partnerships connected through 80% direct or indirect ownership links). Under the Treasury Regulations, related party noteholders whose notes are recharacterized as equity may suffer adverse consequences, such as the imposition of U.S. federal withholding taxes on distributions in respect of the notes. If the Issuer were to become liable for any such withholding or failure to so withhold, the resulting impositions could reduce the cash flow that would otherwise be available to make payments on the Notes. In this regard, the Indenture generally provides that a potential purchaser or transferee of Class R Notes (including any portion of a PT Note attributable to a Class R Note) may not acquire or hold (together with other members of its "expanded group" (as such term is defined in applicable Treasury Regulations)), directly or through attribution, 80% or more of the Class R Notes (including any portion of a PT Note attributable to a Class R Note) if another member of its expanded group owns any Rated Notes. If a Note Owner fails to comply with such restriction, the Issuer and Administrator are each entitled, at its discretion, to compel such Note Owner to sell its Class R Note (including any portion of a PT Note attributable to a Class R Note). In order to avoid the potential application of these rules, the Indenture will include certain provisions limiting the ownership of Class R Notes (including any portion of a PT Note attributable to a Class R Note) by persons who own Rated Notes (either directly or through certain affiliates).See "*Notice to Investors/Transfer Restrictions*" in this Private Placement Memorandum. Please note that these Treasury Regulations are complex and we urge prospective investors to consult their tax advisors regarding the possible effects of these rules.

The U.S. federal income tax discussion set forth above may not be applicable to all Note Owners, depending upon the particular tax situation of such Note Owner, and does not purport to address the issues described with the degree of specificity that would be provided by a taxpayer's own tax advisor. Accordingly, prospective investors should consult their own tax advisors regarding the tax consequences to them of the purchase, ownership and disposition of an interest in the Notes and the possible effects of changes in federal tax laws.

State and Local Tax Consequences

Rated Notes

The discussion above does not address the taxation of the Issuer or the tax consequences of the purchase, ownership or disposition of an interest in the Rated Notes under any state or local tax law. Each investor should consult its own tax advisor regarding state and local tax consequences.

Class R Notes

In addition to the federal income tax consequences described under "*Certain Federal Income Tax Considerations*" herein, prospective investors should consider the state and local tax consequences of the acquisition, ownership and disposition of the Class R Notes.

Class R Note Owners may be directly or indirectly subject to state and/or local income, franchise, withholding, capital gain, or other tax payment obligations and filing requirements in those jurisdictions in which the Issuer is regarded as doing business or purposefully directing its economic activity in a regular, continuous, and substantial manner. Credits for these taxes may not be available (or may be subject to limitations) in the jurisdictions in which Class R Note Owners are resident or are otherwise taxable. The presence of Borrowers under the Loans and/or the Servicer acting on behalf of the Issuer in a jurisdiction each have the potential to trigger an obligation to pay tax and file tax returns.

State and local tax law may differ substantially from the corresponding federal tax law, and the discussion above does not purport to describe any aspect of the tax laws of any state or other jurisdiction. The foregoing discussion is not intended to and does not address all of the tax consequences of the purchase, ownership or disposition of the Class R Notes under any state or local tax law. Therefore, prospective investors should consult their own tax advisors with respect to the various state and local tax consequences of investments in the Class R Notes.

[Remainder of page intentionally left blank.]

ERISA CONSIDERATIONS

Subject to the requirements herein, the Rated Notes (and Exchangeable Notes corresponding solely to Rated Notes) may be purchased by Plans, any entity whose underlying assets include "plan assets" (as defined in the Plan Asset Regulation or any applicable Similar Laws) due to investments made in the entity by any such Plan (a "Plan Asset Entity") and any person investing "plan assets" of any Plan or Plan Asset Entity (unless the context clearly indicates otherwise reference to a "Plan" in this section shall also be deemed to refer to a "Plan Asset Entity").

Section 406 of ERISA and Section 4975 of the Code prohibit a Plan that is subject to the fiduciary responsibility provisions of Title I of ERISA or Section 4975 of the Code (an "ERISA Plan") from engaging in certain transactions involving plan assets with persons that are "parties in interest" under ERISA or "disqualified persons" under the Code with respect to the ERISA Plan. Certain governmental plans and church plans, although not subject to Section 406 of ERISA or Section 4975 of the Code, may be subject to a Similar Law that imposes similar requirements. A violation of these "prohibited transaction" rules may generate excise tax and other liabilities under ERISA, the Code or Similar Laws for these parties in interest or disqualified persons.

Under the Plan Asset Regulation, if an ERISA Plan invests in an "equity interest" of an entity that is neither a "publicly offered security" nor a security issued by an investment company registered under the Investment Company Act, the ERISA Plan's assets are deemed to include both the equity interest itself and an undivided interest in each of the entity's underlying assets, unless it is established that the entity is an "operating company" or that equity participation by "benefit plan investors" is not "significant". An equity interest is defined in the Plan Asset Regulation as an interest in an entity other than an instrument that is treated as indebtedness under applicable local law and which has no substantial equity features. While there is little guidance in this regard, the Issuer believes the Rated Notes, other than any such Rated Notes beneficially owned by the Issuer or any affiliate thereof, should be treated as "indebtedness" and not as "equity interests" for purposes of the Plan Asset Regulation because such Rated Notes:

- are expected to be treated as indebtedness under applicable local law and as described under "*Certain Federal Income Tax Considerations*" in this Private Placement Memorandum, will in the opinion of special U.S. federal income tax counsel to the Issuer, be treated as debt for U.S. federal income tax purposes subject to the assumptions and qualifications contained therein; and

- should not be deemed to have any "substantial equity features".

A Plan is only permitted to purchase (i) Exchange Notes that are Rated Notes or (ii) Exchangeable Notes corresponding solely to Rated Notes. The Exchange Notes that are Rated Notes will, in the opinion of special U.S. federal income tax counsel to the Issuer, be treated as debt for U.S. federal income tax purposes, as described under "*Certain Federal Income Tax Considerations*" in this Private Placement Memorandum, subject to the assumptions and qualifications contained therein. Although special U.S. federal income tax counsel to the Issuer will not issue any opinion regarding the tax treatment of the Exchangeable Notes, the Issuer intends, and each beneficial owner of an Exchangeable Note by acquisition of such Exchangeable Note will agree, to treat the Exchangeable Notes as direct ownership of the separate Classes of Exchange Notes corresponding to the Exchange Notes of such Exchangeable Note for U.S. federal income tax purposes. Accordingly, it is expected that, for purposes of the Plan Asset Regulation, the Exchangeable Notes corresponding solely to Rated Notes should also be treated as indebtedness under applicable local law.

Without regard to whether the Rated Notes are treated as debt or equity, the acquisition and holding of the Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes) by or on behalf of an ERISA Plan could give rise to a prohibited transaction under Section 406 of ERISA or Section 4975 of the Code if the Issuer, the Trustees, the Servicer, the Structuring Agent, the Initial Purchasers, the Sponsors, the Collection Agents, the Note Registrar, the Issuer Certificate Registrar, the Paying Agent, the Collateral Agent, the Backup Servicer, the Backup Servicer Subcontractor, the Administrator, the Grantor Trust Certificate Registrar, the Loan Data Agent, the Vault Provider or any of their respective Affiliates is or becomes a "party in interest" or a "disqualified person" (as defined in ERISA and the Code, respectively) with respect to such ERISA Plan.

Depending on the relevant facts and circumstances, certain prohibited transaction exemptions may apply to the acquisition or holding of the Rated Notes (and Exchangeable Notes corresponding solely to Rated Notes) — including PTCE 96-23, which exempts certain transactions effected on behalf of an ERISA Plan by an "in-house asset manager"; PTCE 95-60, which exempts certain transactions by insurance company general accounts; PTCE 91-38, which exempts certain transactions by bank collective investment funds; PTCE 90-1, which exempts certain transactions by insurance company pooled separate accounts; and PTCE 84-14, which exempts certain transactions effected on behalf of an ERISA Plan by a "qualified professional asset manager". In addition, the statutory exemption under Section 408(b)(17) of ERISA and Section 4975(d)(20) of the Code, which exempts certain transactions between an ERISA Plan and a person that is a party in interest or disqualified person with respect to an ERISA Plan (other than a fiduciary or its affiliates) solely by reason of providing services to the ERISA Plan or a relationship to such service provider, may apply to the acquisition or holding of the Rated Notes (and Exchangeable Notes corresponding solely to Rated Notes). There can be no assurance that any of these exemptions will apply with respect to any ERISA Plan's investment in the Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes), or that an exemption, if it did apply, would apply to all prohibited transactions that may occur in connection with the investment.

Each investor in a Note, by its acceptance and holding of such Note or a beneficial interest therein, will be deemed to represent either (i) that it is not a Plan or a Plan Asset Entity, and is not investing on behalf of or with plan assets of such Plan or Plan Asset Entity, or (ii) it is acquiring a Rated Note (or Exchangeable Notes corresponding solely to Rated Notes) and its acquisition, holding and disposition of such Note (or a beneficial interest therein) is consistent with its fiduciary duties and will not constitute or result in a non-exempt prohibited transaction under Section 406 of ERISA or Section 4975 of the Code or a violation of any applicable Similar Laws.

ERISA also imposes certain duties on persons who are fiduciaries of ERISA Plans that are subject to ERISA, including the requirements of investment prudence and diversification, and the requirement that such Plan's investments be made in accordance with the documents governing such Plan. Under ERISA, any person who exercises any authority or control respecting the management or disposition of the assets of an ERISA Plan is considered to be a fiduciary of such ERISA Plan.

A fiduciary of an ERISA Plan considering the purchase of Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes) should consult its tax and/or legal advisors regarding the possibility of exemptive relief from the prohibited transaction rules and other issues and their potential consequences. Moreover, each fiduciary of an ERISA Plan subject to ERISA should determine whether, under the general fiduciary standards of investment prudence and diversification, an investment in the Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes) is appropriate for such Plan, taking into account the overall investment policy of such Plan and the composition of such Plan's investment portfolio.

None of the Issuer, the Structuring Agent, the Initial Purchasers, the Sponsors, the Depositor, the Servicer, the Trustees, the Collection Agents, the Note Registrar, the Issuer Certificate Registrar, the Paying Agent, the Collateral Agent, the Backup Servicer, the Backup Servicer Subcontractor, the Administrator, the Grantor Trust Certificate Registrar, the Loan Data Agent, the Vault Provider or any of their respective Affiliates (the "Transaction Parties") is undertaking to provide impartial investment advice in connection with the acquisition or holding of the Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes) by a Plan. Because the Transaction Parties may receive certain benefits in connection with the sale of such Notes, the acquisition and holding of the Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes) using plan assets of a Plan over which any of the Transaction Parties has discretion or provides investment advice may be deemed to be a violation of the prohibited transaction rules of ERISA or Section 4975 of the Code or Similar Laws for which no exemption may be available. Accordingly, any investor considering a purchase of Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes) using plan assets of a Plan should consult with its counsel if any Transaction Party has investment discretion or provides advice for a direct or indirect fee with respect to such assets or is an employer maintaining or contributing to the Plan.

As discussed under "*Certain Federal Income Tax Considerations—Tax Status*" in this Private Placement Memorandum, the tax opinion of Sidley Austin LLP does not apply to any Notes beneficially owned by the Issuer, any Initial Purchaser, or any affiliate thereof. Therefore, it is possible that those Notes could be considered equity interests in the Issuer for purposes of the Plan Asset Regulation or Similar Laws. Accordingly, in order to ensure that the assets of the Issuer are not treated as "plan assets" for purposes of Title I of ERISA, Section 4975 of the Code or

any Similar Laws, those Notes may not be acquired by any Plan, a Plan Asset Entity, or by any person who is directly or indirectly acquiring or holding those Notes or any interest therein on behalf of, as fiduciary of, as trustee of, or with assets of, any such Plan or Plan Asset Entity unless the Issuer receives an opinion from counsel at such time to the effect that those Notes will be characterized as debt for U.S. federal income tax purposes.

The considerations set forth above are only intended as an overview and may not be applicable depending on a Plan's specific facts and circumstances. The sale of the Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes) to a Plan is in no respect a representation by the Issuer or any Initial Purchaser or the Structuring Agent that this investment meets all relevant legal requirements with respect to investments by Plans generally or any particular Plan, or that this investment is appropriate or consistent with fiduciary duties for such Plans generally or any particular Plan.

Special Considerations Applicable to Insurance Company General Accounts

Under Section 401(c) of ERISA, the Department of Labor published general account regulations providing guidance on which assets held by an insurance company constitute "plan assets" for purposes of the fiduciary responsibility provisions of ERISA and Section 4975 of the Code. The general account regulations do not exempt from treatment as "plan assets" assets in an insurance company's general account that support certain insurance policies issued to ERISA Plans. The plan asset status of insurance company separate accounts is unaffected by Section 401(c) of ERISA, and separate account assets continue to be treated as the plan assets of any ERISA Plan invested in a separate account. ERISA Plan investors considering the purchase of Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes) or a beneficial interest therein on behalf of an insurance company general account should consult their legal advisors regarding the effect of the general account regulations on the purchase of Rated Notes (or Exchangeable Notes corresponding solely to Rated Notes) or a beneficial interest therein. The general account regulations should not, however, adversely affect the applicability of Prohibited Transaction Class Exemption 95-60.

No Class R Notes or Class PT Notes may be acquired by any Plan, Plan Asset Entity, or person who is directly or indirectly acquiring or holding those Notes or any interest therein on behalf of, as fiduciary of, as trustee of, or with assets of, any such Plan or Plan Asset Entity. Each investor in a Class R Note or Class PT Note, by its acceptance and holding of such Note or a beneficial interest therein, will be deemed to represent that it is not a Plan or a Plan Asset Entity and is not directly or indirectly acquiring or holding the Note or any interest therein on behalf of, as a fiduciary of, as trustee of, or with assets of, any such Plan or Plan Asset Entity.

[Remainder of page intentionally left blank.]

CERTAIN INVESTMENT COMPANY ACT CONSIDERATIONS

The Issuer is being structured such that it is not now, and solely after giving effect to the offering and sale of the Notes and the application of the proceeds thereof, will not be, a "covered fund" for purposes of regulations adopted under Section 13 of the Bank Holding Company Act of 1956, as amended, commonly known as the "Volcker Rule."

In reaching this conclusion, although other statutory or regulatory exceptions or exemptions under the Investment Company Act and under the Volcker Rule and its related regulations may be available, the Issuer has relied on the determinations that:

- the Issuer may rely on the exemption from registration under the Investment Company Act provided by Rule 3a-7 thereunder, and accordingly,

- the Issuer does not rely solely on Section 3(c)(1) or Section 3(c)(7) of the Investment Company Act for its exception from registration under the Investment Company Act and may rely on the exemptions from the definition of a "covered fund" under the Volcker Rule made available to entities that do not rely solely on Section 3(c)(1) or Section 3(c)(7) of the Investment Company Act for its exception from registration under the Investment Company Act.

RATINGS OF THE NOTES

It is a condition of issuance of the Rated Notes that DBRS, Inc. ("DBRS") and Kroll Bond Rating Agency, LLC ("KBRA") assign ratings equal to or better than the following ratings to the Rated Notes on the Closing Date:

Rated Notes	DBRS Rating	KBRA Rating
Class A	AAA (sf)	AAA (sf)
Class B	AA (low) (sf)	AA- (sf)
Class C	A (low) (sf)	A- (sf)
Class D	Not Rated	BBB- (sf)

The Class D Notes will not be rated by DBRS. The Class R Notes and the Exchangeable Notes will not be rated. The ratings are not recommendations to purchase, hold or sell the Notes, inasmuch as such ratings do not comment as to or address market price, investor preference or suitability for a particular investor. There is no assurance that the ratings will remain for any given period of time or that the ratings will not be lowered or withdrawn entirely by the assigning Rating Agency if in its judgment circumstances in the future so warrant.

Both of the Sponsors and their representatives from time to time engage in discussions with rating agencies on various transactions, and such discussions prior to the date hereof may have related to this transaction or other transactions involving either of the Sponsors, the Depositor, or other unaffiliated participants in the market for consumer receivables. APL elected to solicit a rating on the Rated Notes solely from the Rating Agencies. APL did not solicit a rating on the Class D Notes from DBRS. There can be no assurance that another rating agency (including a rating agency with whom the Sponsors have had discussions), if it had been solicited to rate the Rated Notes in addition to or instead of the Rating Agencies, would not have issued ratings lower than the ratings issued by the Rating Agencies or declined to issue any rating on one or more classes of Notes.

Additionally, an unsolicited rating from another NRSRO could be assigned at any time, including prior to the Closing Date. None of the Depositor, the Sponsors, the Issuer, the Structuring Agent, the Initial Purchasers or any of their affiliates will have any obligation to inform Noteholders of any unsolicited ratings assigned to the Notes, even though one or more of these parties may be aware of unsolicited ratings assigned to the Notes. Consequently, prospective investors should monitor whether an unsolicited rating of the Notes has been assigned by a non-hired NRSRO and are urged to consult with their financial and legal advisors regarding the effect of the assignment of an unsolicited rating to a class of Notes. NRSROs, including the Rating Agencies, may have different methodologies, criteria, models and requirements. If any non-hired NRSRO assigns an unsolicited rating to the Notes, there can be no assurance that the unsolicited rating will not be lower than the ratings provided by the Rating Agencies with respect to the Notes, which could adversely affect the market value of a Noteholder's Notes and/or limit such Noteholder's ability to resell such Notes.

A security rating is not a recommendation to buy, sell or hold securities and may be revised or withdrawn at any time by the assigning Rating Agency. No transaction party will be responsible for monitoring any changes to the ratings on the Rated Notes. See "*Risk Factors — Risks Primarily Related to the Notes and the Issuer—The ratings of the Notes may be withdrawn or lowered, or the Notes may receive an unsolicited rating, which may adversely affect the liquidity or market value of the Notes. In addition, the Rating Agencies may have a conflict of interest because APL pays the fees charged by each Rating Agency for its rating services in connection with rating the Notes*."

PLAN OF DISTRIBUTION

The Sponsors, the Issuer and the Depositor will enter into the Note Purchase Agreement with the Structuring Agent and the Initial Purchasers. Subject to the terms and conditions set forth in the Note Purchase Agreement, the Notes (other than the Notes, if any, acquired by the Sponsors or their Affiliates) will be offered by the Issuer through the Initial Purchasers to prospective purchasers from time to time in negotiated transactions at varying prices to be determined in each case at the time of sale (i) within the United States to QIBs and (ii) solely in the case of Rated Notes, outside the United States to entities which are not "U.S. persons" (as defined in Regulation S). The Indenture also provides that all of the Notes offered hereby may be sold only to investors as described under "*Notice to Investors/Transfer Restrictions*."

The Note Purchase Agreement provides that the obligation of the Initial Purchasers to purchase Notes is subject to approval of certain legal matters by counsel and to other conditions. The Initial Purchasers will receive a fee from the Issuer in consideration for the placement of the Notes by the Initial Purchasers. APL may retain, or may convey to its Affiliates, any Notes that are not purchased by the Initial Purchasers.

The Initial Purchasers and their Affiliates may purchase Notes at any time and may sell such Notes at a later date. In the ordinary course of business, the Initial Purchasers and certain of their Affiliates may have provided and may in the future provide commercial banking, investment banking, general financing and other financial services to the Sponsor, the Loan Sellers and their respective Affiliates for which they may have received or may receive customary compensation. As a result of providing such services, one or more Initial Purchasers or such Affiliates may have entered into and may enter into agreements with the Sponsor, the Loan Sellers or their respective Affiliates setting forth rights and remedies enforceable by the parties thereto. The proceeds of the sale of the Loans by each Pass-Through Loan Seller will be paid to such Pass-Through Loan Seller and further distributed to affiliates of one or more of Morgan Stanley, Barclays and CRB Securities, as beneficiaries of the Pass-Through Loan Sellers. The interests of the Initial Purchasers or such Affiliates under any such agreements may conflict with the interests of the Noteholders. See *"Risk Factors – Risks Primarily Related to the Notes and the Issuer – There are potential conflicts of interest relating to the Initial Purchasers.*" and "*Use of Proceeds.*"

Prior to the offering there has been no active market for the Notes. Neither the Structuring Agent nor any of the Initial Purchasers are obligated to make a market in the Notes and any such market-making, if undertaken by the Structuring Agent or the Initial Purchasers, may be discontinued at any time at the sole discretion of the Structuring Agent or the Initial Purchasers without notice. Accordingly, no assurance can be given that any market for the Notes will develop, or if any such market develops, as to the liquidity of such market. The ability of the Structuring Agent or the Initial Purchasers to make a market in the Notes may be impacted by changes in any regulatory requirements applicable to the marketing, holding and selling of, and issuing quotations with respect to, asset-backed securities generally. Any purchaser of Notes must be able to bear the economic risk of the investment for an indefinite period of time because the Notes have not been registered under the Securities Act. There is no undertaking to register the Notes under the Securities Act hereafter and they cannot be reoffered, resold or otherwise transferred except as described in this Private Placement Memorandum. In particular, the Notes have not been and will not be registered under the Securities Act or the securities laws of any jurisdiction. Consequently, the Notes are not transferable other than pursuant to an exemption from the registration requirements of the Securities Act and satisfaction of certain other provisions of the Indenture. Resales of the Notes may be made only (i) to QIBs pursuant to Rule 144A, (ii) solely in the case of Rated Notes, outside the United States to entities which are not "U.S. persons" (as defined in Regulation S) in compliance with Regulation S or (iii) to the Issuer or APL or one of its direct or indirect subsidiaries in a transaction that would not result in such Notes being subject to registration under the Securities Act. See "*Notice to Investors/Transfer Restrictions.*"

The Note Purchase Agreement provides that each Sponsor and the Depositor will indemnify the Initial Purchasers and the Structuring Agent against certain liabilities, including liabilities under the Securities Act, or contribute to payments that the Initial Purchasers may be required to make in respect thereof. A portion of the cash proceeds of sale of the Notes, together with the Loan Seller Retained Notes and the Retaining Sponsor Retained Notes, will be used to pay the Depositor in respect of the purchase of the Loans pursuant to the Issuer Purchase Agreement. The Depositor will use the net cash proceeds of the purchase price received from the Issuer, and the Loan Seller Retained Notes and the Retaining Sponsor Retained Notes received from the Issuer, to pay the purchase price to the Loan Transferor for the Loans under the Depositor Purchase Agreement. The Loan Transferor will use the net cash proceeds of the purchase price received from the Depositor (plus certain other cash amounts), and the Loan Seller Retained Notes received from the Depositor, to pay the purchase price to APL for the Loans under the Loan Transferor Purchase Agreement. APL will use the net cash proceeds of the purchase price received from the Loan Transferor, and the Loan Seller Retained Notes received from the Loan Transferor, to pay the purchase price to the Loan Sellers for the Loans under the APL Purchase Agreements. The proceeds of the sale of the Loans by each Pass-Through Loan Seller will be paid to such Pass-Through Loan Seller and further distributed to one or more of Morgan Stanley, Barclays and/or CRB Securities or their respective affiliates, as beneficiaries of the Pass-Through Loan Sellers. See "*Use of Proceeds*."

The Initial Purchasers and their Affiliates take no responsibility for, and have no obligations in respect of, the Issuer and will have no obligation to monitor the performance of the Loans or the actions of the Sponsors, the Depositor or the Issuer and will have no authority to advise the Sponsors, the Depositor or the Issuer or to direct their actions. If any of the Initial Purchasers or any of their Affiliates (or any entity sponsored by any of its Affiliates) own Notes, it will have no responsibility to consider the interests of any other owners of the Notes in actions they take or refrain from taking in such capacity.

Each of the Issuer and the Grantor Trust is not required to register as an "investment company" under the Investment Company Act. The Note Purchase Agreement will contain a representation and warranty to the Initial Purchasers that each of the Issuer and the Grantor Trust is relying on Rule 3a-7 under the Investment Company Act for its exemption from registration, though other exceptions and exemptions may apply.

Selling Restrictions: European Economic Area

The Structuring Agent and each Initial Purchaser will represent and agree, severally and not jointly, that it has not offered, sold or otherwise made available, and will not offer, sell or otherwise make available, any Notes which are the subject of this Private Placement Memorandum to any EU Retail Investor in the European Economic Area. For the purposes of this provision:

(1) the expression "EU Retail Investor" means a person who is one (or more) of the following:

   (a) a retail client, as defined in point (11) of Article 4(1) of Directive 2014/65/EU (as amended, "MiFID II");

   (b) a customer within the meaning of Directive (EU) 2016/97 (as amended), where that customer would not qualify as a professional client as defined in point (10) of Article 4(1) of MiFID II; or

   (c) not a qualified investor, as defined in Article 2 of Regulation (EU) 2017/1129 (as amended); and

(2) the expression "offer" includes the communication in any form and by any means of sufficient information on the terms of the offer and the Notes to be offered so as to enable an investor to decide to purchase or subscribe for the Notes.

Selling Restrictions: United Kingdom

The Structuring Agent and each Initial Purchaser will represent and agree, severally and not jointly, that:

Prohibition on sales to UK Retail Investors

(1) it has not offered, sold or otherwise made available, and will not offer, sell or otherwise make available, any Notes which are the subject of the offering contemplated by this Private Placement Memorandum to any UK Retail Investor in the United Kingdom (the "UK"). For the purposes of this provision:

(a) the expression "UK Retail Investor" means a person who is one (or more) of the following:

(i) a retail client, as defined in point (8) of Article 2 of Commission Delegated Regulation (EU) 2017/565, as it forms part of UK domestic law by virtue of the European Union (Withdrawal) Act 2018 (as amended, the "EUWA") and as amended;

(ii) a customer within the meaning of the provisions of the Financial Services and Markets Act 2000 (as amended, the "FSMA") and any rules or regulations made under the FSMA (such rules and regulations as amended) to implement Directive (EU) 2016/97, where that customer would not qualify as a professional client, as defined in point (8) of Article 2(1) of Regulation (EU) No 600/2014, as it forms part of UK domestic law by virtue of the EUWA and as amended; or

(iii) not a qualified investor, as defined in Article 2 of Regulation (EU) 2017/1129, as it forms part of UK domestic law by virtue of the EUWA and as amended; and

(b) the expression "offer" includes the communication in any form and by any means of sufficient information on the terms of the offer and the Notes so as to enable an investor to decide to purchase or subscribe for the Notes;

Other UK regulatory restrictions

(2) it has only communicated or caused to be communicated, and will only communicate or cause to be communicated, an invitation or inducement to engage in investment activity (within the meaning of Section 21 of the FSMA) received by it in connection with the issue or sale of the Notes in circumstances in which Section 21(1) of the FSMA does not apply to the Issuer; and

(3) it has complied and will comply with all applicable provisions of the FSMA with respect to anything done by it in relation to the Notes in, from or otherwise involving, the UK.

LEGAL MATTERS

Certain legal matters relating to the Notes, including certain U.S. federal income tax matters, will be passed upon for the Issuer by Sidley Austin LLP, New York, New York. Sidley Austin LLP will also act as counsel to APL with respect to the transaction described in the Private Placement Memorandum. Certain legal matters relating to the Depositor, the Issuer, the Grantor Trust, the Owner Trustee, the Loan Transferor, the owner trustee of the Loan Transferor and the Grantor Trust Trustee governed by Delaware state law will be passed upon for the Depositor, the Issuer, the Loan Transferor and Grantor Trust by Richards, Layton & Finger, P.A., Wilmington, Delaware. Richards, Layton & Finger, P.A., Wilmington, Delaware, will also act as counsel to the Indenture Trustee, the Paying Agent, the Collateral Agent and the Backup Servicer. Morgan, Lewis & Bockius LLP, New York, New York, will act as counsel for the Structuring Agent, the Initial Purchasers and the Retaining Sponsor.

[Remainder of page intentionally left blank.]

GLOSSARY

The following rules of construction apply to this Private Placement Memorandum: (a) definitions contained in this Private Placement Memorandum are equally applicable to both the singular and plural forms of such terms and to the masculine as well as to the feminine and neuter genders of such terms, (b) any agreement or statute defined or referred to in this Private Placement Memorandum means such agreement or statute as from time to time amended, modified, supplemented or replaced, including (in the case of agreements) by waiver or consent and (in the case of statutes) by succession of comparable successor statutes and includes (in the case of agreements) references to all attachments thereto and instruments incorporated therein and (in the case of statutes) any rules and regulations promulgated thereunder and any judicial and administrative interpretations thereof, (c) references to a Person are also to its permitted successors and assigns, (d) references to deposits, transfers and payments of any amounts refer to deposits, transfers or payments of such amounts in immediately available funds; and in the term "proceeds" has the meaning ascribed to such term in the UCC, and (e) except where "not less than zero" or similar language is indicated, amounts determined by reference to a mathematical formula may be positive or negative. Set forth below is a list of certain defined terms used in this Private Placement Memorandum.

"Account Collateral" means, with respect to each Account, such Account, together with all cash, securities, Financial Assets and investments and other property from time to time deposited into or credited to such Account and all proceeds thereof, including, with respect to the Reserve Fund, the Reserve Fund Amount.

"Accounts" means, collectively, the Payment Account and the Reserve Fund.

"Achieve Loan Program" means, collectively, the loan programs established through the CRB Bank Program Agreement and the Pathward Program Agreement.

"Administration Agreement" means the Administration Agreement, to be dated as of the Closing Date, among the Issuer, the Grantor Trust and the Administrator.

"Administration Fee" means the administration fee payable to the Administrator as compensation for its services pursuant to the Administration Agreement.

"Administrator" means Series B, in its capacity as Administrator under the Administration Agreement, and its successors in such capacity.

"Affiliate" means, with respect to any Person, any other Person directly or indirectly controlling or controlled by or under direct or indirect common control with such Person. For purposes of this definition, "control," when used with respect to any Person, means the power to direct the management and policies of such Person, directly or indirectly, whether through the ownership of voting securities, by contract or otherwise; and the terms "controlling" and "controlled" have meanings correlative to the foregoing.

"Amortization Event" means, with respect to any Distribution Date, the circumstance that either (i) the Pool Balance as of the last day of the related Collection Period is equal to or less than 10% of the Cutoff Date Pool Balance (and the Redemption Holder has not exercised its redemption right pursuant to Article X of the Indenture), or (ii) the Cumulative Net Loss Ratio for such Distribution Date exceeds the percentage set forth opposite the month of such Distribution Date as specified on Schedule I hereto.

"APL" means Freedom Financial Asset Management, LLC, d/b/a Achieve Personal Loans, a Delaware limited liability company.

"APL Purchase Agreement" means any of the APL Purchase Agreements to be dated as of the Closing Date between APL, as purchaser, and a Loan Seller, as seller.

"Applicable Anti-Money Laundering Law" means the Customer Identification Program requirements established under the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, Title III of Pub. L. 107 56 (signed into law October 26, 2001) and its implementing

regulations (collectively, USA PATRIOT Act), the Financial Crimes Enforcement Network's (FinCEN) Customer Due Diligence Requirements and such other laws, rules, regulations and executive orders in effect from time to time applicable to banking institutions.

"Applicable Laws" means all federal, state and local laws, statutes, rules, regulations, court orders and decrees, administrative orders and decrees, and other legal requirements of any and every conceivable type applicable to a relevant Person, and all requirements of any Governmental Authority having jurisdiction over such Person, as any such laws, statutes, regulations, orders or requirements may be amended and in effect from time to time. In the case of the Servicer, the term "Applicable Laws" includes, but is not limited to, the Fair Debt Collection Practices Act, the Fair Credit Reporting Act, the Telephone Consumer Protection Act, 47 U.S.C. 227 and all laws, statutes, regulations and orders relating to the provision of consumer financial products and services (including, without limitation, regulations adopted by the Bureau of Consumer Financial Protection to prevent unfair, deceptive or abusive acts or practices pursuant to the Dodd-Frank Wall Street Reform and Consumer Protection Act), as any such laws, statutes, regulations, orders and requirements may be amended and in effect from time to time during the term of the Basic Documents.

"Authorized Officer" means, with respect to (i) the Issuer, any officer of the Owner Trustee who is authorized to act for or on behalf of the Owner Trustee in matters relating to the Issuer and who is identified on the list of authorized officers or authorized signatories delivered by the Owner Trustee to the Indenture Trustee and the Paying Agent on the Closing Date (as such list may be modified or supplemented from time to time thereafter by notice to the Indenture Trustee and Paying Agent), as well as any director or more senior officer of the Administrator who is authorized to act for the Administrator in matters relating to the Issuer that are to be acted upon by the Administrator pursuant to the Trust Agreement or the Administration Agreement and who is identified on the list of authorized officers delivered by the Administrator to the Indenture Trustee and the Paying Agent on the Closing Date (as such list may be modified or supplemented from time to time thereafter by notice to the Indenture Trustee and Paying Agent), (ii) the Grantor Trust, any officer of the Grantor Trust Trustee who is authorized to act for or on behalf of the Grantor Trust Trustee in matters relating to the Grantor Trust and who is identified on the list of authorized officers or authorized signatories delivered by the Grantor Trust Trustee to the Indenture Trustee and the Paying Agent on the Closing Date (as such list may be modified or supplemented from time to time thereafter by notice to the Indenture Trustee and Paying Agent), as well as any director or more senior officer of the Administrator who is authorized to act for the Administrator in matters relating to the Grantor Trust that are to be acted upon by the Administrator pursuant to the Grantor Trust Agreement or the Administration Agreement, in each case, as identified on the list of authorized officers or authorized signatories delivered to the Indenture Trustee and the Paying Agent (as such list may be modified or supplemented from time to time thereafter by notice to the Indenture Trustee and Paying Agent) and (iii) any other Person, including any director, president, vice president, assistant vice president, treasurer, assistant treasurer, secretary, assistant secretary or any other officer of such Person who customarily performs functions similar to those performed by any of the foregoing having direct responsibility for the administration of the Basic Documents and also, with respect to a particular matter, any other officer to whom such matter is referred because of such officer's knowledge of and familiarity with the particular subject.

"Available Collections" means, for any Distribution Date and the related Collection Period, the sum of (i) all Collections (net of any servicing fees, Ancillary Fees and Collection Fees, as applicable, to the extent not paid as described under "*Application of Available Funds—Priority of Payments*") that were received after the Cutoff Date and forwarded by the Servicer (or any Subcontractor or Collection Agent) to the Payment Account during such Collection Period, (ii) in the case of the first Distribution Date, all amounts retained by the Issuer (and not required to be returned to any Loan Seller) in respect of Unremitted Collections Amounts, (iii) interest and other income (net of losses and investment expenses) on Eligible Investments (if any) on deposit in the Payment Account and the Reserve Fund, (iv) the aggregate Purchase Price, if any, deposited by (A) APL or any of its respective designees under the Loan Transferor Purchase Agreement and (B) the Servicer or its designee under the Servicing Agreement, in each case, in the Payment Account from and after the prior Distribution Date (or the Closing Date in the case of the initial Distribution Date) and on or prior to the related Deposit Date, (v) all indemnity payments received by the Issuer or Grantor Trust during such Collection Period and (vi) all proceeds from the sale or other disposition of the Loans and related assets relating to the exercise by the Redemption Holder of its redemption right pursuant to Article X of the Indenture; *provided, however*, that Available Collections shall not include any Available Collections Advances which were included in Available Funds for a previous Distribution Date.

"Available Collections Advance" means, with respect to any Distribution Date and the related Collection Period, the amount equal to the lesser of (x) the amount, if any, by which the amounts payable on such Distribution Date pursuant to clauses (i) through (xi) under "*Application of Available Funds—Priority of Payments*" exceed the sum of the amounts under clauses (i) and (ii) of the definition of "Available Funds" and (y) the amount on deposit in the Payment Account on the related Determination Date which would constitute Available Collections for the Distribution Date immediately following such Distribution Date.

"Available Funds" means, with respect to any Distribution Date, the sum of (i) Available Collections (including Available Collections that are held in the Payment Account as the Principal Distribution Allocation) with respect to such Distribution Date, (ii) the Reserve Fund Draw Amount, if any, and (iii) the Available Collections Advance, if any.

"Backup Servicer" means WTNA, as backup servicer under the Backup Servicing Agreement.

"Backup Servicing Agreement" means the Backup Servicing Agreement to be dated as of the Closing Date, among the Grantor Trust, APL, as servicer and WTNA, as backup servicer.

"Bank Program Agreement" means any of the CRB Bank Program Agreement and the Pathward Program Agreement.

"Bank Purchase Agreement" means any purchase agreement among a Partner Bank, as seller, APL, as servicer, and a Loan Seller or its Affiliates or other designees or another third-party purchaser, as purchaser.

"Bankruptcy Code" means Title 11 of the United States Code, 11 U.S.C. § 101 et seq.

"Bankruptcy Loan" means a Loan that is not a Charged-Off Loan and with respect to which (i) all or a portion thereof has been discharged or is involved in any bankruptcy or court-ordered restructuring proceeding, or (ii) an obligor of which has filed, or there has been filed against such obligor, voluntary or involuntary proceedings under the Bankruptcy Code or any other Insolvency Laws.

"Basic Documents" means the Indenture, the Note Purchase Agreement, the Servicing Agreement, the Loan Transfer Documents, the Backup Servicing Agreement, the Vault Provider Control Agreement, the Trust Agreement, the Grantor Trust Agreement, the Administration Agreement, the Loan Data Agent Agreement, the Notes, the Grantor Trust Certificate, the certificate of trust of the Issuer and the certificate of trust of the Grantor Trust.

"Book-Entry Notes" means a beneficial interest in the Notes, ownership and transfers of which shall be made through book entries by a Clearing Agency as described herein.

"Borrower" means, with respect to any Loan, collectively, each borrower and other obligor (including any co-signor or guarantor) of the payment obligations for such Loan.

"Business Day" means any day other than (i) a Saturday, (ii) a Sunday, (iii) any day on which commercial banks are authorized to close under the laws of, or are in fact closed in New York, New York, Wilmington, Delaware, San Mateo, California or Tempe, Arizona, or, at any time when a Successor Servicer is acting as the Servicer, the location of the principal office of such Successor Servicer.

"Charged-Off Loan" means any Loan that has been charged off or sold by the Servicer in accordance with the Policies and Procedures, including due to the death of the Borrower, discharge in bankruptcy, a settlement with the Borrower or identity fraud; provided, however, that, notwithstanding the foregoing, any Loan with respect to which any scheduled payment remains unpaid for more than 120 days from the related due date shall be a Charged-Off Loan.

"Class" means a class of Notes, which may be the Class A Notes, the Class B Notes, the Class C Notes, the Class D Notes, the Class R Notes, the Class AB Notes, the Class ABC Notes, the Class ABCD Notes or the Class PT Notes, as the context may require.

"Class A Interest Distributable Amount" means, with respect to any Distribution Date, the sum of (i) interest due on the Class A Notes for the related Interest Period calculated based on the Class A Interest Rate and the Class A Note Balance on the preceding Distribution Date, after giving effect to all payments of principal of the Class A Notes on or prior to such preceding Distribution Date, or, in the case of the first Distribution Date, on the original Class A Note Balance as of the Closing Date, and (ii) any unpaid Class A Interest Distributable Amount from the preceding Distribution Date plus accrued and unpaid interest thereon.

"Class A Interest Rate" means 5.07% per annum.

"Class A Note Balance" means the Note Balance of the Class A Notes.

"Class A Noteholder" means the Person in whose name a Class A Note is registered on the Note Register.

"Class A Notes" means the Issuer's Class A Asset-Backed Notes.

"Class AB Notes" means the Issuer's Class AB Asset-Backed Notes.

"Class ABC Notes" means the Issuer's Class ABC Asset-Backed Notes.

"Class ABCD Notes " means the Issuer's Class ABCD Asset-Backed Notes.

"Class A Target Note Balance" means, (i) with respect to any Distribution Date for which an Amortization Event does not exist, an amount, not less than zero, equal to the excess of (x) the Pool Balance as of the end of the related Collection Period over (y) the Class A Target Overcollateralization Amount for such Distribution Date, and (ii) with respect to any Distribution Date for which an Amortization Event exists, zero.

"Class A Target Overcollateralization Amount" means, with respect to any Distribution Date, an amount equal to the sum of (x) (1) if no Step-Up Event exists on such date, 62.00% of the Pool Balance as of the end of the most recently ended Collection Period and (2) if a Step-Up Event exists on such date, 70.00% of the Pool Balance as of the end of the most recently ended Collection Period and (y) 4.00% of the Cutoff Date Pool Balance.

"Class B Interest Distributable Amount" means, with respect to any Distribution Date, the sum of (i) interest due on the Class B Notes for the related Interest Period calculated based on the Class B Interest Rate and the Class B Note Balance on the preceding Distribution Date, after giving effect to all payments of principal of the Class B Notes on or prior to such preceding Distribution Date, or, in the case of the first Distribution Date, on the original Class B Note Balance as of the Closing Date and (ii) any unpaid Class B Interest Distributable Amount from the preceding Distribution Date plus accrued and unpaid interest thereon.

"Class B Interest Rate" means 5.43% per annum.

"Class B Note Balance" means the Note Balance of the Class B Notes.

"Class B Noteholder" means the Person in whose name a Class B Note is registered on the Note Register.

"Class B Notes" means the Issuer's Class B Asset-Backed Notes.

"Class B Target Note Balance" means, (i) with respect to any Distribution Date for which an Amortization Event does not exist, an amount, not less than zero, equal to the excess of (x) the Pool Balance as of the end of the related Collection Period over (y) the sum of (a) the Class B Target Overcollateralization Amount for such Distribution Date and (b) the Class A Target Note Balance for such Distribution Date, and (ii) with respect to any Distribution Date for which an Amortization Event exists, zero.

"Class B Target Overcollateralization Amount" means, with respect to any Distribution Date, an amount equal to the sum of (x) (1) if no Step-Up Event exists on such date, 47.00% of the Pool Balance as of the end of the

most recently ended Collection Period and (2) if a Step-Up Event exists on such date, 55.00% of the Pool Balance as of the end of the most recently ended Collection Period and (y) 3.50% of the Cutoff Date Pool Balance.

"Class C Interest Distributable Amount" means, with respect to any Distribution Date, the sum of (i) interest due on the Class C Notes for the related Interest Period calculated based on the Class C Interest Rate and the Class C Note Balance on the preceding Distribution Date, after giving effect to all payments of principal of the Class C Notes on or prior to such preceding Distribution Date, or, in the case of the first Distribution Date, on the original Class C Note Balance as of the Closing Date and (ii) any unpaid Class C Interest Distributable Amount from the preceding Distribution Date plus accrued and unpaid interest thereon.

"Class C Interest Rate" means 5.72% per annum.

"Class C Note Balance" means the Note Balance of the Class C Notes.

"Class C Noteholder" means the Person in whose name a Class C Note is registered on the Note Register.

"Class C Notes" means the Issuer's Class C Asset-Backed Notes.

"Class C Target Note Balance" means, (i) with respect to any Distribution Date for which an Amortization Event does not exist, an amount, not less than zero, equal to the excess of (x) the Pool Balance as of the end of the related Collection Period over (y) the sum of (a) the Class C Target Overcollateralization Amount for such Distribution Date, (b) the Class A Target Note Balance for such Distribution Date and (c) the Class B Target Note Balance for such Distribution Date and (ii) with respect to any Distribution Date for which an Amortization Event exists, zero.

"Class C Target Overcollateralization Amount" means, with respect to any Distribution Date, an amount equal to the sum of (x) (1) if no Step-Up Event exists on such date, 37.00% of the Pool Balance as of the end of the most recently ended Collection Period and (2) if a Step-Up Event exists on such date, 45.00% of the Pool Balance as of the end of the most recently ended Collection Period and (y) 3.00% of the Cutoff Date Pool Balance.

"Class D Interest Distributable Amount" means, with respect to any Distribution Date, the sum of (i) interest due on the Class D Notes for the related Interest Period calculated based on the Class D Interest Rate and the Class D Note Balance on the preceding Distribution Date, after giving effect to all payments of principal of the Class D Notes on or prior to such preceding Distribution Date, or, in the case of the first Distribution Date, on the original Class D Note Balance as of the Closing Date and (ii) any unpaid Class D Interest Distributable Amount from the preceding Distribution Date plus accrued and unpaid interest thereon.

"Class D Interest Rate" means 6.40% per annum.

"Class D Note Balance" means the Note Balance of the Class D Notes.

"Class D Noteholder" means the Person in whose name a Class D Note is registered on the Note Register.

"Class D Notes" means the Issuer's Class D Asset-Backed Notes.

"Class PT Noteholder" means the Person in whose name a Class PT Note is registered on the Note Register.

"Class PT Notes" means the Issuer's Class PT Asset-Backed Notes.

"Class R Noteholder" means the Person in whose name a Class R Note is registered on the Note Register.

"Class R Notes" means the Issuer's Class R Asset-Backed Notes.

"Clearing Agency" means an organization registered as a "clearing agency" pursuant to Section 17A of the Exchange Act.

"Clearing Agency Participant" means a broker, dealer, bank, other financial institution or other Person for whom from time to time a Clearing Agency effects book-entry transfers and pledges of securities deposited with the Clearing Agency.

"Clearstream" means Clearstream Banking, *société anonyme*, a professional depository incorporated under the laws of Luxembourg, and its successors.

"Clearstream Participant" means a Clearing Agency Participant with respect to Clearstream.

"Closing Date" means on or about August 29, 2024.

"Code" means the Internal Revenue Code of 1986.

"Collateral" means the Issuer Collateral and the Grantor Trust Collateral.

"Collateral Agent Confirm" means the confirmation provided by the Collateral Agent to the Grantor Trust and the Servicer under the Indenture with respect to the Related Documents related to the Loans.

"Collateral Agent Fee" means the fee payable by the Issuer to the Collateral Agent in respect of the Collateral Agent performing its obligations under the Basic Documents, which shall be equal to $300 each month.

"Collection Agent" means a third-party licensed collections firm appointed in accordance with the Policies and Procedures.

"Collection Fees" means any fees, expenses or charges payable to a Collection Agent in connection with its servicing or collection efforts with respect to any Loans, which fees and charges shall not exceed 35% of recovered amounts on Charged-Off Loans, unless otherwise determined by Servicer in the exercise of its Reasonable Servicer Discretion.

"Collection Period" means, with respect to any Distribution Date, the calendar month immediately preceding the calendar month in which that Distribution Date occurs (or, in the case of the first Distribution Date, the period beginning on but excluding the Cutoff Date to and including the last day of the calendar month immediately preceding the calendar month in which the first Distribution Date occurs).

"Collections" means, with respect to a Loan, (a) all payments, including, but not limited to, scheduled payments and prepayments (both voluntary and mandatory), on account of principal, interest, fees or late charges of such Loan, (b) all Liquidation Proceeds and Recoveries with respect to such Loan and (c) any other payments on or proceeds of such Loan of any and every description, including, but not limited to, amounts received pursuant to the applicable the Portfolio Documents or any other related documents or instruments, and amounts received pursuant to judgment awards, settlements and refinancings.

"Controlling Class" means (i) if any Class A Notes are Outstanding, the Class A Notes, (ii) if no Class A Notes are Outstanding and any Class B Notes are Outstanding, the Class B Notes, (iii) if no Class A Notes or Class B Notes are Outstanding and any Class C Notes are Outstanding, the Class C Notes, (iv) if no Class A Notes, Class B Notes or Class C Notes are Outstanding and any Class D Notes are Outstanding, the Class D Notes, or (v) if no Class A Notes, Class B Notes, Class C Notes or Class D Notes are Outstanding and any Class R Notes are Outstanding, the Class R Notes.

"Corporate Transparency Act" means the Corporate Transparency Act (31 U.S.C. § 5336), enacted as part of the National Defense Authorization Act for Fiscal Year 2021, as amended, and the rules and regulations promulgated thereunder, including 31 C.F.R. § 1010.380.

"Corporate Trust Office" means, with respect to (i) the Indenture Trustee, the office of the Indenture Trustee at which at any particular time its corporate trust business shall be administered, which office at the date of execution of the Indenture is located at 1100 North Market Street, Wilmington, Delaware 19890-0001, Attn: Corporate Trust

Administration, Facsimile: (302) 636-4140, E-mail: nhagner@wilmingtontrust.com, or at such other address as the Indenture Trustee may designate from time to time by written notice to the Noteholders, the Servicer, the Backup Servicer, the Administrator, the Grantor Trust Trustee, the Collateral Agent and the Issuer, or the principal corporate trust office of any successor Indenture Trustee at the address designated by such successor Indenture Trustee by written notice to the Noteholders and the Issuer, (ii) the Owner Trustee, the principal corporate trust office of the Owner Trustee located at 500 Delaware Avenue, 11th Floor, Wilmington, Delaware 19801, Attention: Corporate Trust Administration- ACHV ABS Trust 2024-2PL, Facsimile: (302) 421-9137, E-mail: MPagano@wsfsbank.com; or at such other address as the Owner Trustee may designate from time to time by notice to the Indenture Trustee, or the principal corporate trust office of any successor Owner Trustee at the address designated by such successor Owner Trustee by notice to the Indenture Trustee, (iii) the Grantor Trust Trustee, the principal corporate trust office of the Grantor Trust Trustee located at 500 Delaware Avenue, 11th Floor, Wilmington, Delaware 19801, Attention: Corporate Trust Administration- ACHV ABS Grantor Trust 2024-2PL, Facsimile: (302) 421-9137, E-mail: MPagano@wsfsbank.com; or at such other address in Delaware as the Grantor Trust Trustee may designate from time to time by notice to the Indenture Trustee and the Servicer, or the principal corporate trust office of any successor Grantor Trust Trustee at the address in Delaware designated by such successor Grantor Trust Trustee by notice to the Indenture Trustee, the Issuer, the Servicer and the Administrator or (iv) the Paying Agent, Note Registrar or Collateral Agent, the principal corporate office of the Paying Agent, Note Registrar or Collateral Agent, which office at the date of execution of the Indenture is located at 1100 North Market Street, Wilmington, Delaware 19890-0001, Attention: Corporate Trust Administration, Facsimile: (302) 636-4140, E-mail: nhagner@wilmingtontrust.com; or at such other address as the Paying Agent may designate from time to time by notice to the Noteholders, the Issuer, the Servicer and the Indenture Trustee, or the principal corporate office of any successor Paying Agent at the address designated by such successor Paying Agent by notice to the Noteholders, the Issuer, the Servicer, the Administrator, the Grantor Trust Trustee and the Indenture Trustee.

"COVID-19" means coronavirus disease 2019.

"Cross River Bank" means Cross River Bank, a New Jersey state-chartered commercial bank.

"Cumulative Net Loss Amount" means, with respect to any Distribution Date, the sum of the principal balances of each Loan (measured as of the end of the Collection Period in which such Loan became a Charged-Off Loan) that became a Charged-Off Loan during the period from the Cutoff Date through the end of the related Collection Period, less the sum of the aggregate amount of all Liquidation Proceeds and Recoveries received with respect to each such Charged-Off Loan during the period from the Cutoff Date through the end of the related Collection Period.

"Cumulative Net Loss Ratio" means, with respect to any Distribution Date, the fraction, expressed as a percentage, the numerator of which is the Cumulative Net Loss Amount for such Distribution Date and the denominator of which is the Cutoff Date Pool Balance.

"Cutoff Date" means the close of business on August 23, 2024.

"Cutoff Date Accrued Interest" means all accrued and unpaid interest on the Loans as of the Cutoff Date, inclusive of any interest accrued on such day.

"Cutoff Date Pool Balance" means the aggregate Principal Balance of the Loans as of the Cutoff Date.

"Data Fields" means, with respect to any Loan, (1) loan identification number, (2) original principal amount, (3) outstanding principal amount, (4) origination date, (5) term, (6) interest rate and (7) scheduled payment amount.

"DBRS" means DBRS, Inc.

"Default" means any event that with notice or the lapse of time or both would become an Event of Default.

"Definitive Notes" means definitive, fully registered Notes issued pursuant to the Indenture.

"Delinquent Loan" means a Loan that (a) is not a Charged-Off Loan or a Bankruptcy Loan and (b) for which any scheduled payment remains unpaid for more than thirty (30) days from the original due date for such payment, in whole or in part, after giving effect to any Eligible Modifications.

"Deposit Date" means, with respect to any Distribution Date and the related Collection Period, the Business Day immediately preceding such Distribution Date.

"Depositor" means ACHV ABS Master Depositor Trust, a Delaware statutory trust.

"Depositor Purchase Agreement" means the Depositor Purchase Agreement to be dated as of the Closing Date between the Depositor, as purchaser, and the Loan Transferor, as seller.

"Depositor Trustee" means WSFS Bank, not in its individual capacity but solely as owner trustee under the Depositor Trust Agreement.

"Determination Date" means, with respect to any Distribution Date, the third (3rd) Business Day preceding such Distribution Date.

"Distribution Compliance Period" means the period through and including the 40th day after the later of (i) the beginning of the offering of Notes to persons other than distributors in reliance upon Regulation S or (ii) the Closing Date.

"Distribution Date" means the 25th day of each month or, if any such day is not a Business Day, the next Business Day, commencing on the Initial Distribution Date.

"DTC" means The Depository Trust Company.

"DTC Participant" means a Clearing Agency Participant with respect to DTC.

"Eligible Institution" means the corporate trust department of any depository institution organized under the laws of the United States or any State or incorporated under the laws of a foreign jurisdiction with a branch or agency located in the United States or any State qualified to take deposits and subject to supervision and examination by federal or state banking authorities (a) so long as any Rating Agency is then rating any of the Rated Notes at the request of the Issuer or APL, (1) which at all times has at least one of (i) a long-term unsecured debt rating of at least "Baa1" from Moody's, (ii) a long-term unsecured debt rating of at least "BBB" from DBRS or (iii) a long-term unsecured debt rating, short-term unsecured debt rating or a certificate of deposit rating otherwise acceptable to each Rating Agency or (2) if clause (1) above is not satisfied, for which Rating Agency Notification is satisfied, (b) whose deposits are insured by the Federal Deposit Insurance Corporation and (c) has a qualifying office in the United States of America for purposes of Article 4 of the Hague Convention.

"Eligible Investments" means, at any time, any one or more of the following obligations, instruments, investments and securities:

(i) direct obligations of, and obligations fully guaranteed by, the United States or any agency or instrumentality thereof the obligations of which are backed by the full faith and credit of the United States;

(ii) demand deposits, time deposits, bankers' acceptances or certificates of deposit of any depository institution or trust company (a) incorporated under the laws of the United States, any State or any United States branch of a foreign bank, (b) subject to supervision and examination by federal or State banking or depository institution authorities and (c) at the time of the investment or contractual commitment to invest therein, the commercial paper or other short-term unsecured debt obligations (other than such obligations the rating of which is based on the credit of a Person other than such depository institution or trust

company) of which have a short-term rating of at least "P-1" by Moody's, "A-1" from Standard & Poor's or at least "R-1" from DBRS.

(iii) repurchase obligations, having maturities of not more than 365 days, with respect to any security that is a direct obligation of, or fully guaranteed by, the United States or any agency or instrumentality thereof the obligations of which are backed by the full faith and credit of the United States, in either case entered into with a depository institution or trust company (acting as principal) described in clause (ii) above;

(iv) short-term corporate securities bearing interest or sold at a discount issued by any corporation incorporated under the laws of the United States or any State thereof; *provided, however*, that (a) such investment shall not have an 'r' highlighter affixed to its rating and its terms shall have a predetermined fixed dollar amount of principal due at maturity that cannot vary or change and (b) at the time of the investment, the short-term unsecured debt obligations (other than such obligations the rating of which is based on the credit of a Person other than such corporation) of such corporation shall have the highest rating from Standard & Poor's, Moody's or DBRS;

(v) commercial paper having maturities of not more than 365 days, at the time of the investment, with the highest rating from Standard & Poor's, Moody's or DBRS; *provided*, *however*, that such investment shall not have an 'r' highlighter affixed to its rating and its terms shall have a predetermined fixed dollar amount of principal due at maturity that cannot vary or change;

(vi) guaranteed investment contracts issued by an insurance company or other corporation which has a short-term credit rating of at least "P-1" by Moody's, at least "A-1" from Standard & Poor's or at least "R-1" from DBRS; and

(vii) investments in money market funds having a rating in the highest rating category from Moody's, Standard & Poor's or DBRS (including money market funds offered or managed by the Indenture Trustee or the Paying Agent or an Affiliate thereof) whose payments are not subject to withholding tax when held by a non-"United States person" (as defined in Section 7701(a)(30) of the Code);

provided that (A) each of the foregoing investments shall mature (or in the case of money market funds, have the ability to be liquidated) no later than the Deposit Date immediately following the Collection Period in which such investment was made, and shall be required to be held to such maturity (or in the case of money market funds, to be liquidated no later than such Deposit Date) and (B) none of the payments with respect to such obligations, instruments, investments and securities are subject to withholding taxes by any jurisdiction. Each of the Eligible Investments may be purchased by the Paying Agent or through an Affiliate of the Paying Agent.

Notwithstanding anything to the contrary contained in this definition, no Eligible Investment may be purchased at a premium.

"Eligible Physical Document Loan" means each Loan for which documentation evidencing such Loan was executed in physical form and has been converted into an electronic record within five (5) calendar days following execution thereof with the physical documentation being destroyed immediately following such conversion.

"ERISA" means the Employee Retirement Income Security Act of 1974, as amended.

"Euroclear" means the Euroclear System.

"Euroclear Participant" means a Clearing Agency Participant with respect to Euroclear.

"Event of Default" has the meaning specified in *"Description of the Notes—Events of Default"* in this Private Placement Memorandum.

"Exchange Act" means the Securities Exchange Act of 1934, as amended.

"Exchange Notes" means, collectively, each of the Class A Notes, the Class B Notes, the Class C Notes, the Class D Notes and the Class R Notes.

"Exchangeable Combination" means each permissible exchange combination described in Schedule III hereto.

"Exchangeable Notes" means the Class AB Notes, the Class ABC Notes, the Class ABCD Notes and the Class PT Notes.

"Face Amount" means, with respect to any Class PT Note, the sum of (a) the outstanding principal balance of all component Rated Notes and (b) the outstanding notional amount of all component Class R Notes.

"FATCA" means the Foreign Account Tax Compliance Act.

"Financial Asset" has the meaning specified in Section 8-102(a)(9) of the UCC.

"First Priority Principal Distribution Amount" means, with respect to any Distribution Date, an amount not less than zero equal to the excess of (x) the Class A Note Balance prior to any distributions on such Distribution Date over (y) the Pool Balance as of the end of the related Collection Period; *provided, however*, that on or after the Maturity Date of the Class A Notes, the First Priority Principal Distribution Amount shall not be less than the amount that is necessary to reduce the Class A Note Balance to zero.

"Flow-Through Entity" means a partnership, subchapter S corporation, or grantor trust (or a disregarded entity the single owner of which is any of the foregoing), in each case as defined in the Code.

"Firstmark" means Nelnet Servicing, LLC, d/b/a Firstmark Services, a Nebraska limited liability company.

"Fourth Priority Principal Distribution Amount" means, with respect to any Distribution Date, an amount not less than zero equal to the excess of (x) an amount equal to (I) the sum of the Class A Note Balance, the Class B Note Balance, the Class C Note Balance and the Class D Note Balance prior to any distributions on such Distribution Date minus (II) the sum of the First Priority Principal Distribution Amount, the Second Priority Principal Distribution Amount and the Third Priority Principal Distribution Amount for such Distribution Date, over (y) the Pool Balance as of the end of the related Collection Period; *provided, however*, that on or after the Maturity Date of the Class D Notes, the Fourth Priority Principal Distribution Amount shall not be less than the amount that is necessary to reduce the Class D Note Balance to zero.

"Global Note" means any Regulation S Global Note or Rule 144A Global Note.

"Governmental Authority" means any federal, state, municipal, national, local or other governmental department, court, commission, board, bureau, agency or instrumentality or political subdivision thereof, including, without limitation, any attorney general or agency related thereto, or any entity or officer exercising executive, legislative or judicial, regulatory or administrative functions of or pertaining to any government or any court, in each case, whether of the United States or a state, territory or possession thereof, a foreign sovereign entity or country or jurisdiction or the District of Columbia.

"Grantor Trust" means ACHV ABS Grantor Trust 2024-2PL, a Delaware statutory trust.

"Grantor Trust Agreement" means the Amended and Restated Grantor Trust Agreement of the Grantor Trust, to be dated as of the Closing Date, among the Issuer, as grantor, the Grantor Trust Trustee, the Grantor Trust Certificate Registrar and the Administrator.

"Grantor Trust Certificate" means a certificate evidencing the beneficial ownership interest of its holder in the Grantor Trust.

"Grantor Trust Certificateholder" means the person in whose name the Grantor Trust Certificate is registered in accordance with the Grantor Trust Agreement.

"Grantor Trust Certificate Registrar" means WSFS Bank, not in its individual capacity but solely as certificate registrar under the Grantor Trust Agreement.

"Grantor Trust Collateral" means all of the Grantor Trust's and the Grantor Trust Trustee's (not in its individual capacity but solely as trustee on behalf of the Grantor Trust) right, title and interest in, to and under, whether now owned or existing or hereafter acquired or arising: (i) the Loans and all other Purchased Loan Assets, (ii) all amounts due and collected on or in respect of the Purchased Loan Assets after the Cutoff Date, including the Cutoff Date Accrued Interest, (iii) all rights but none of the obligations of the Grantor Trust under the Basic Documents, (iv) all present and future claims, demands, causes of action and choses in action in respect of any or all of the foregoing, and all payments on or under and all proceeds of every kind and nature whatsoever in respect of any or all of the foregoing, including all proceeds of the conversion thereof, voluntary or involuntary, into cash or other liquid property, (v) all Accounts, Chattel Paper, Commercial Tort Claims, Deposit Accounts, Documents, General Intangibles, Goods, Instruments, Investment Property, Letter-of-Credit Rights, Letters of Credit, Money and Supporting Obligations (as each such term is defined in Article 9 of the UCC), and (vi) all proceeds of any of the foregoing. Notwithstanding the foregoing, "Grantor Trust Collateral" shall not include, and the Lien of the Indenture Trustee shall be automatically released upon and/or shall not extend to, (i) any Loan that is acquired by APL or any of its respective designees pursuant to the Loan Transferor Purchase Agreement or by the Servicer or its designee pursuant to the Servicing Agreement, and in either case for which the related Purchase Price is deposited into the Payment Account, (ii) any Loan sold by the Issuer or the Grantor Trust (or the Servicer, as defined herein, on its behalf) as permitted under the Indenture or (iii) any amounts described in the proviso to the definition of the term "Available Collections".

"Grantor Trust Contribution Agreement" means the Grantor Trust Contribution Agreement, to be dated as of the Closing Date, between the Issuer and the Grantor Trust.

"Grantor Trust Estate" shall mean, at any time, the assets of the Grantor Trust at such time, including the Loans, regardless of whether such assets are held by the Grantor Trust Trustee or any agent or custodian for the Grantor Trust.

"Grantor Trust Trustee Fee" means the fees payable to the Grantor Trust Trustee for its services under the Grantor Trust Agreement, consisting of (i) an initial acceptance fee of $5,000 payable on the Closing Date, and (ii) an annual fee of $10,000 payable on the Closing Date and thereafter annually starting with the Distribution Date in August, 2025.

"Grantor Trust Trustee" means WSFS Bank, not in its individual capacity but solely as grantor trust trustee under the Grantor Trust Agreement.

"Holder" means a Noteholder, as the context may require.

"Indenture" means the Indenture, to be dated as of the Closing Date, among the Issuer, the Indenture Trustee, the Grantor Trust, the Paying Agent, the Note Registrar and the Collateral Agent.

"Indenture Trustee" means WTNA, not in its individual capacity but solely in its capacity as indenture trustee under the Indenture.

"Indenture Trustee Fee" means the monthly fee payable by the Issuer to the Indenture Trustee in respect of the Indenture Trustee performing its obligations under the Basic Documents, which may be set forth in a separate fee letter or fee schedule.

"Initial Distribution Date" means October 25, 2024.

"Initial Purchasers" means each of Jefferies LLC, Barclays Capital Inc., CRB Securities LLC and Morgan Stanley & Co. LLC.

"Insolvency Event" means, with respect to any Person, (i) the making of a general assignment for the benefit of creditors; (ii) the filing of a voluntary petition in bankruptcy; (iii) being adjudged as bankrupt or insolvent, or having had entered against such Person an order for relief in any bankruptcy or insolvency Proceeding; (iv) the filing by such Person of a petition or answer seeking reorganization, arrangement, composition, readjustment, liquidation, dissolution or similar relief under any Insolvency Laws; (v) the filing by such Person of an answer or other pleading admitting the material allegations of a petition filed against such Person in any proceeding specified in clause (viii) below; (vi) the seeking, consenting to or acquiescing in the appointment of a trustee, receiver, liquidator or similar official of such Person or of all or any substantial part of the assets of such Person; (vii) the failure by such Person generally to pay its debts as such debts become due; (viii) the failure to obtain dismissal within sixty (60) days of the commencement of any Proceeding against such Person seeking (a) reorganization, arrangement, composition, readjustment, liquidation, dissolution or similar relief under any statute, law or regulation, or (b) the appointment of a trustee, liquidator, receiver or similar official, in each case of such Person or of such Person's assets or any substantial portion thereof; and (ix) the taking of action by such Person in furtherance of any of the foregoing.

"Insolvency Laws" means the Bankruptcy Code and all other applicable liquidation, conservatorship, bankruptcy, moratorium, rearrangement, receivership, insolvency, reorganization, suspension of payments or similar debtor relief laws from time to time in effect affecting the rights of creditors generally.

"Interest Period" means, with respect to any Distribution Date, the period from and including the 25th day of the calendar month preceding such Distribution Date (or from and including the Closing Date in the case of the first Distribution Date) to but excluding the 25th day of the calendar month of such Distribution Date.

"IRS" means the Internal Revenue Service.

"Issuer" means ACHV ABS Trust 2024-2PL, a Delaware statutory trust.

"Issuer Certificate Registrar" means Wilmington Trust, National Association, not in its individual capacity but solely as certificate registrar under the Issuer Trust Agreement.

"Issuer Collateral" means all of the Issuer's and the Owner Trustee's (not in its individual capacity but solely as trustee on behalf of the Issuer) right, title and interest in, to and under, whether now owned or existing or hereafter acquired or arising, (i) the Grantor Trust Certificate; (ii) all distributions on or in respect of the Grantor Trust Certificate; (iii) each of the Accounts and all Account Collateral with respect thereto; (iv) all rights of the Issuer, but none of the obligations, under the Basic Documents, (v) all present and future claims, demands, causes of action and choses in action in respect of any or all of the foregoing, and all payments on or under and all proceeds of every kind and nature whatsoever in respect of any or all of the foregoing, including all proceeds of the conversion thereof, voluntary or involuntary, into cash or other liquid property, (vi) all Accounts, Chattel Paper, Commercial Tort Claims, Deposit Accounts, Documents, General Intangibles, Goods, Instruments, Investment Property, Letter-of-Credit Rights, Letters of Credit, Money and Supporting Obligations (as each such term is defined in Article 9 of the UCC), and (vii) all proceeds of any of the foregoing. Notwithstanding the foregoing, "Issuer Collateral" shall not include, and the Lien of the Indenture Trustee shall be automatically released upon and/or shall not extend to, (i) any Loan that is acquired by APL or any of its respective designees pursuant to the Loan Transferor Purchase Agreement or by the Servicer or its designee pursuant to the Servicing Agreement, and in either case for which the related Purchase Price is deposited into the Payment Account, (ii) any Loan sold by the Issuer or the Grantor Trust (or the Servicer, as defined herein, on its behalf) as permitted under the Indenture, (iii) any amounts described in the proviso to the definition of the term "Available Collections" or (iv) without prejudice to any indirect interest therein as contemplated by the Grantor Trust Certificate or any express rights with respect thereto as contemplated by the Basic Documents, the Loans and all other Purchased Loan Assets and any other assets, in each case to the extent contributed by the Issuer to the Grantor Trust under the Grantor Trust Contribution Agreement.

"Issuer Expenses" means, with respect to any Distribution Date and the related Collection Period, all fees, expenses and indemnities due and owing by the Issuer or the Grantor Trust (including by the Issuer as the Grantor Trust Certificateholder) to the Servicer, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Note

Registrar, the Paying Agent, the Issuer Certificate Registrar, the Grantor Trust Certificate Registrar, the Backup Servicer, any Successor Servicer, the Collateral Agent and the Administrator.

"Issuer Purchase Agreement" means the Issuer Purchase Agreement, to be dated as of the Closing Date, between the Depositor as seller and the Issuer as purchaser.

"Issuer Trust Certificate" means the certificate evidencing the 100% non-economic beneficial interest in the Issuer, substantially in the form required by the Trust Agreement.

"KBRA" means Kroll Bond Rating Agency, LLC.

"Lien" means any security interest, lien, claim, charge, pledge or encumbrance of any kind other than tax liens, mechanics' or materialmen's liens, judicial liens and any other liens that may attach by operation of law.

"Liquidation Proceeds" means, with respect to any Loan that is sold or otherwise disposed of by or on behalf of the Grantor Trust, whether to a third party or an Affiliate, all amounts collected from such sale or disposition net of all fees and expenses incurred by or on behalf of the Grantor Trust (including, without limitation, by the Servicer, any Subcontractor, any Collection Agent, the Issuer or the Grantor Trust Trustee) in connection with such sale or disposition.

"List of Purchased Loans" means the electronic file that lists the Loans, as provided by the Sponsors to the Indenture Trustee, the Grantor Trust and the Collateral Agent on or prior to the Closing Date, identifying for each Loan so identified the information in each of the Data Fields.

"Loan" means individually any of, and "Loans" means collectively all of, the unsecured consumer loans acquired by APL from a Loan Seller pursuant to a APL Purchase Agreement, then acquired by the Loan Transferor from APL pursuant to the Loan Transferor Purchase Agreement, then acquired by the Depositor from the Loan Transferor pursuant to the Depositor Purchase Agreement, then acquired by the Issuer from the Depositor pursuant to the Issuer Purchase Agreement and then contributed to the Grantor Trust by the Issuer pursuant to the Grantor Trust Contribution Agreement, and shall include any loan identified on the List of Purchased Loans; provided, however, that the term "Loan" shall not include any loans which have been sold by or on behalf of the Grantor Trust as permitted under the Basic Documents.

"Loan Data Agent" means DV01, Inc., a Delaware corporation.

"Loan Data Agent Agreement" means the Loan Data Agent Agreement, to be dated as of the Closing Date, among the Issuer, the Servicer, the Administrator and the Loan Data Agent.

"Loan Pool" means the pool of loans that as of the Cutoff Date are expected to be acquired by the Issuer and contributed to the Grantor Trust.

"Loan Seller" means any of (i) FCCF Funding Trust 2018-1, a Delaware statutory trust, which is an which is an Affiliate of APL, (ii) ACM F Acquisition, LLC, a Nebraska limited liability company, which is an affiliate of Firstmark, (iii) Cross River Bank, which is a Partner Bank and an affiliate of CRB Securities, (iv) Achieve Personal Loan Master Pass-Through Trust, a Delaware statutory trust organized in series, on behalf of one or more series thereof, each of which is beneficially owned by one or more of Morgan Stanley, Barclays and/or CRB Securities or their respective affiliates and (v) one or more additional holders of Loans that are directly or indirectly beneficially owned by investment funds or other entities not affiliated with APL, Firstmark, Cross River Bank or the Initial Purchasers.

"Loan Transfer Documents" means, collectively, (i) each of the APL Purchase Agreements, (ii) the Loan Transferor Purchase Agreement, (iii) the Depositor Purchase Agreement, (iv) the Issuer Purchase Agreement and (v) the Grantor Trust Contribution Agreement.

"Loan Transferor" means JACV, a Delaware Statutory Trust.

"Loan Transferor Purchase Agreement" means the Loan Transferor Purchase Agreement, to be dated as of the Closing Date, between APL and the Loan Transferor .

"Majority Holders" means the Holders of not less than an aggregate of 51% of the Note Balance of the Controlling Class of Notes.

"Material Adverse Effect" means, with respect to any Person, and to any event or circumstance, a material adverse effect on (i) the business, condition (financial or otherwise), operations, performance or properties of such Person, (ii) the validity or enforceability of any Basic Document against such Person or the validity, enforceability or collectability of a material portion of the Loans or any other Purchased Loan Asset, (iii) the ability of such Person to perform its obligations under any Basic Document, or (iv) the status, existence, perfection, priority or enforceability of the interest of the Indenture Trustee in the Purchased Loan Assets.

"Maturity Date" means, with respect to each Class of Notes other than the Class R Notes, October 27, 2031.

"Monthly Payment" means the scheduled monthly payment of principal and/or interest on a Loan.

"Monthly Report" means, with respect to any Distribution Date, the report prepared by the Administrator and delivered by the Paying Agent on behalf of the Issuer with respect to such Distribution Date, with such changes thereto as the Issuer, the Administrator and the Paying Agent may from time to time agree.

"Moody's" means Moody's Investors Service, Inc.

"Net Proceeds" means, with respect to a Loan as of any date, Collections on such Loan less any applicable Ancillary Fees and Collection Fees earned to such date.

"Non-Public Personal Information" has the meaning ascribed to such term under the Federal Trade Commission's Rule regarding Privacy of Consumer Financial Information (16 CFR Part 313).

"Non-Voting Class R Noteholder" means any Noteholder or Note Owner of a Class R Note that is an investment company registered under the Investment Company Act of 1940, as amended, or any wholly-owned subsidiary thereof, unless, in either case, the Administrator, in its sole discretion, has upon request waived in writing the "Non-Voting Class R Noteholder" status with respect to such Noteholder or Note Owner, in which case, upon the grant of such waiver, such Noteholder or Note Owner shall be entitled to exercise all rights of a regular Noteholder or Note Owner of a Class R Note as if it were not a Non-Voting Class R Noteholder.

"Note" means any Exchange Note or Exchangeable Note and "Notes" means, collectively, the Exchange Notes and the Exchangeable Notes.

"Note Balance" means, at any time, the aggregate principal amount of all Notes (or a Class of Notes, as the context may require) that are Outstanding at such time; *provided* that with respect to the Class R Notes, the Note Balance thereof will equal the notional amount thereof on the Closing Date and will not be reduced for distributions made on the Class R Notes.

"Note Owner" means, with respect to any Book-Entry Note, the Person who is the beneficial owner of such Book-Entry Note, as reflected on the books of the Registered Clearing Agency or on the books of a Person maintaining an account with such Clearing Agency (directly as a Clearing Agency Participant or as an indirect participant, in each case in accordance with the rules of such Clearing Agency).

"Note Purchase Agreement" means the Note Purchase Agreement dated August 21, 2024 among the Issuer, the Depositor, the Sponsors, the Loan Transferor, the Structuring Agent and the Initial Purchasers.

"Note Register" means the register in which the Issuer shall provide for the registration of Notes and the registration of transfers of Notes that shall serve as a record of ownership, identifying the name and address of the owner of an interest in the obligation of the Issuer represented by the Notes.

"Note Registrar" means the registrar of the Note Register under the Indenture, acting as agent of the Issuer for such purpose. WTNA will be the initial Note Registrar pursuant to the Indenture.

"Noteholder" means the Person in whose name a Note is registered on the Note Register.

"Officer's Certificate" means, with respect to any Person, a certificate signed by an Authorized Officer of such Person.

"Opinion of Counsel" means a written opinion of counsel who may, except as otherwise provided in the applicable Basic Document, be employees of or counsel to the Issuer, the Grantor Trust, the Depositor, the Administrator or any of their respective Affiliates and, in the case of an opinion of counsel to be delivered to a party to the Basic Documents or another entity, (i) is delivered by counsel reasonably acceptable to the related recipient and (ii) is addressed to such recipient; *provided*, *however*, that any Tax Opinion or other opinion related to tax matters shall be an opinion of nationally recognized tax counsel.

"Origination Date" means, with respect to any Loan, the date that the Related Documents in respect of such Loan have been executed and delivered by the Borrower.

"Outstanding" means, as of the date of determination, all Notes theretofore authenticated and delivered under the Indenture except:

(i) Notes theretofore cancelled by the Note Registrar or delivered to the Note Registrar for cancellation;

(ii) Notes or portions thereof the payment for which money in the necessary amount has been theretofore deposited with the Indenture Trustee or any Paying Agent in trust for the Noteholders; *provided*, *however*, that if such Notes are to be redeemed, notice of such redemption must have been duly given pursuant to the Indenture or provision for such notice must have been made in a manner satisfactory to the Indenture Trustee; and

(iii) Notes in exchange for or in lieu of which other Notes have been authenticated and delivered pursuant to the Indenture unless proof satisfactory to the Indenture Trustee is presented that any such Notes are held by a Protected Purchaser;

provided, *however*, that prior to the Redemption Date, in determining whether (a) the Noteholders of the requisite principal amount of the Notes Outstanding have given any request, demand, authorization, direction, notice, consent or waiver under the Indenture or under any other Basic Document or determining the Controlling Class, (i) Notes owned by the Depositor, the Administrator or any of their respective Affiliates shall be disregarded and deemed not to be Outstanding, (ii) the portion of the outstanding principal amount (or notional amount in the case of Class R Notes), if any, of the Exchangeable Notes allocable to any Class of Exchange Notes shall be included in the principal amount (or notional amount in the case of Class R Notes) of such Class of Exchange Notes and (iii) Class R Notes owned by Non-Voting Class R Noteholders shall be disregarded and deemed not to be Outstanding, except that, in determining whether the Indenture Trustee shall be protected in relying upon any such request, demand, authorization, direction, notice, consent or waiver, only Notes that a responsible officer of the Indenture Trustee either actually knows to be so owned or has received written notice thereof shall be so disregarded, and (b) the Indenture Trustee is protected in relying on any request, demand, authorization, direction, notice, consent or waiver, only the Notes that a Responsible Officer of the Indenture Trustee actually knows to be so owned will be deemed not to be Outstanding; and provided, further, that, notwithstanding the foregoing, Notes owned by the Issuer, the Depositor, the Administrator or any of their respective Affiliates will be treated as Outstanding if (x) no other Notes remain Outstanding or (y) those Notes have been pledged in good faith and the pledgee establishes to the satisfaction of the Indenture Trustee the pledgee's right to act for those Notes and that the pledgee is not the Issuer, the Depositor, the Administrator or an Affiliate of any such party.

"Outstanding Amount" means, with respect to (i) any Class of Exchange Notes, the aggregate outstanding principal amount (or notional amount in the case of Class R Notes) of such Class of Exchange Notes Outstanding at the date of determination (including the principal or notional amount of such Class represented by Exchangeable Notes) and (ii) any Class of Exchangeable Notes, the sum of the aggregate outstanding principal amounts (or notional amount in the case of Class R Notes) of each constituent Class of Exchange Notes (whether or not represented by such Exchangeable Notes). Any reduction in the Outstanding Amount of a Class of Exchange Notes will reduce the Outstanding Amount of the Class of the Exchangeable Notes in each corresponding Exchangeable Combination dollar-for-dollar regardless of whether any exchange has occurred so that the aggregate Outstanding Amount of the Classes of Exchange Notes will at all times reflect the Outstanding Amount of the Class of Exchangeable Notes in each corresponding Exchangeable Combination.

"Overcollateralization Percentage" means, with respect to any Distribution Date, a percentage, (i) the numerator of which is the excess, if any, of (a) the Pool Balance as of the end of the related Collection Period over (b) the Note Balance of all Classes of Notes (after giving effect to any related principal distributions on such Distribution Date) and (ii) the denominator of which is the Pool Balance as of the last day of the related Collection Period.

"Owner Trustee" means WSFS Bank, not in its individual capacity but solely as Owner Trustee under the Trust Agreement.

"Owner Trustee Fee" means the fees payable to the Owner Trustee for its services under the Trust Agreement, consisting of (i) an initial acceptance fee of $3,500 payable on the Closing Date, and (ii) an annual fee of $5,000 payable on the Closing Date and thereafter annually starting with the Distribution Date in March 2025.

"Partner Bank" means either of Cross River Bank or Pathward.

"Pass-Through Loan Sellers" means Achieve Personal Loan Master Pass-Through Trust, a Delaware statutory trust organized in series, on behalf of one or more series thereof, each of which is beneficially owned by one or more of Morgan Stanley, Barclays and/or CRB Securities or their respective affiliates.

"Pathward" means Pathward, National Association (formerly known as MetaBank, National Association), a national banking association.

"Paying Agent" means WTNA, not in its individual capacity but solely in its capacity as paying agent under the Indenture and the Trust Agreement.

"Paying Agent Fee" means the monthly fee payable by the Issuer to the Paying Agent in respect of the Paying Agent performing its obligations under the Basic Documents, which may be set forth in a separate fee letter or fee schedule.

"Payment Account" means the account designated as such, and established and maintained pursuant to the Indenture.

"Permanent Regulation S Global Note" means any permanent Regulation S Note issued to a Clearing Agency to represent all or any portion of any Class of Rated Notes.

"Person" means any individual, corporation (including a business trust), partnership, joint venture, association, bank, limited liability company, joint stock company, estate, trust (including a business or statutory trust), unincorporated organization, government or any agency or political subdivision thereof or other entity.

"Plan" means any "employee benefit plan" (as defined in Section 3(3) of ERISA) subject to the fiduciary responsibility provisions of Title I of ERISA, a "plan" (as defined in Section 4975(e)(1) of the Code) subject to Section 4975 of the Code or a plan, account or other arrangement that is subject to Similar Laws.

"Plan Asset Regulation" means 29 C.F.R. Section 2510.3-101 issued by the United States Department of Labor, as modified by Section 3(42) of ERISA.

"Pool Balance" means, as of any date of determination, the aggregate Principal Balance of all Loans on such date (excluding Charged-Off Loans and any Loans for which the related Purchase Price has been paid by APL, or any of its respective designees, according to the Loan Transferor Purchase Agreement or the Servicing Agreement, as applicable).

"Portfolio Documents" means, with respect to any Loan, the Related Documents and any other promissory notes, loan agreements and other documents and instruments, executed and delivered, and electronic records created, in connection with the origination, funding, acquisition and ownership of such Loan.

"Principal Balance" means, (i) with respect to any Loan, other than a Charged-Off Loan, as of any date of determination, the outstanding principal balance of such Loan as of such date and (ii) with respect to a Charged-Off Loan, zero.

"Principal Distribution Allocation" means Available Funds set aside by the Paying Agent in the Payment Account for payment of principal of the Notes pursuant to the terms of the Indenture.

"Priority Principal Distribution Amounts" means, with respect to any Distribution Date, the sum of the First Priority Principal Distribution Amount, the Second Priority Principal Distribution Amount, the Third Priority Principal Distribution Amount and the Fourth Priority Principal Distribution Amount, in each case, for such Distribution Date.

"Proceeding" means any suit in equity, action at law or other judicial or administrative proceeding.

"Protected Purchaser" has the meaning specified in Section 8-303 of the UCC.

"PTCE" means Prohibited Transaction Class Exemption.

"Purchase Date" means, with respect to any Loan, the effective date that such Purchased Loan Asset was acquired by the applicable Loan Seller.

"Purchase Price" means an amount equal to the sum of (1) the product of the Principal Balance of such Loan at the time of purchase (or, in the case of a Charged-Off Loan, immediately prior to such Loan becoming a Charged-Off Loan) multiplied by the Purchase Price Percentage for such Loan, plus (2) all accrued but unpaid interest on such Loan.

"Purchase Price Percentage" means, with respect to any Loan, the greater of (i) 100% and (ii) a percentage equal to (x) the cash equivalent of the purchase price paid by APL for such Loan under the applicable APL Purchase Agreement, plus any Unremitted Collections Amount with respect thereto, divided by (y) the Principal Balance of such Loan as of the Cutoff Date.

"Purchased Loan Assets" means, collectively, (i) each Loan, (ii) all Collections received or receivable and all other amounts due or to become due under each Loan, in each case on or after the Cutoff Date, but excluding all Unremitted Collections Amounts with respect to the Loans, (iii) all Portfolio Documents and Records for each Loan and all rights, remedies, powers, privileges, and claims under each of the foregoing, (iv) the Servicing Rights with respect to each Loan, (v) all other rights, interests (whether whole, fractional or otherwise), benefits, proceeds, remedies and claims arising from or relating to the Loans, (vi) all rights, interests, benefits, proceeds, remedies and claims related to each Loan under each loan purchase or servicing agreement between APL, on the one hand, and the applicable Loan Seller, on the other hand, each agreement between APL, the Sponsor, the applicable Loan Seller or any of their respective Affiliates, on the one hand, and the applicable Partner Bank, on the other hand, including any loan purchase agreement or loan program agreement, and any other agreement pursuant to which a Loan Seller acquired any Loans, (vii) all Investment Property, Goods, Instruments, Chattel Paper, Money, Documents, Deposit Accounts, Supporting Obligations, General Intangibles or Accounts (as each term is defined in the UCC) at any time evidencing or relating to any of the foregoing; (viii) all rights, interest in, remedies, powers, privileges and claims under each Loan Transfer Document; and (ix) all income and proceeds of any of the foregoing.

"Qualified Institutional Buyer" or "QIB" means a "qualified institutional buyer", as defined in Rule 144A under the Securities Act.

"Rating Agency " means either of DBRS or KBRA, in each case, for so long as it rates any of the Notes at the request of the Issuer or APL.

"Rating Agency Notification" means, with respect to any proposed action, event or circumstance, that each Rating Agency has been given notice of such proposed action, event or circumstance at least ten (10) Business Days prior to the taking of such action or occurrence of such event or circumstance.

"Rated Notes" means, collectively, each of the Class A Notes, Class B Notes, Class C Notes and Class D Notes.

"Reasonable Servicer Discretion" means, with respect to any act or decision of the Servicer with respect to any Loan(s), that such act or decision (i) is not in conflict with the Policies and Procedures and (ii) is determined by the Servicer at the time of such act or decision to be a practical manner to obtain a reasonable recovery from such Loan(s) based upon the Servicer's prior servicing experience for similar consumer loans.

"Record Date" means, with respect to the Notes and any Distribution Date or Redemption Date, the close of business on the Business Day immediately preceding such Distribution Date or Redemption Date, as the case may be; *provided, however*, that if Definitive Notes have been issued pursuant to the Indenture, Record Date means, with respect to any Distribution Date or Redemption Date, the last day of the immediately preceding Collection Period.

"Records" means, with respect to any Loan, any change-of-terms notices, credit files, credit bureau reports, transaction data, records, contact information of related Borrower, bank account information of the related Borrower (if the related Borrower has authorized the Servicer to automatically debit recurring payments from a valid bank account), evidences of disbursement of funds to (and or credits against amounts owing by) the related Borrower, copies of all information received by the applicable Partner Bank or APL to verify information, including, but not limited to, income of the related Borrower in the application process, disclosure statements, correspondence with the related Borrower or other documentation (including computer tapes, magnetic files, and information in any other format) related to such Loan.

"Recoveries" means, with respect to any Collection Period following the Collection Period in which a Loan became a Charged-Off Loan, all amounts received by the Servicer (including any Subcontractor or Collection Agent of the Servicer) from whatever source with respect to such Loan during such Collection Period, net of the sum of (a) fees and expenses incurred by the Servicer (including any Subcontractor or Collection Agent of the Servicer) in connection with the collection of such Loan (to the extent not previously reimbursed to or retained by the Servicer or its Subcontractors or Collection Agents) and (b) all payments required by law to be remitted to the related Borrower.

"Redemption Date" means, in the case of a redemption of the Notes pursuant to the Indenture, the Distribution Date specified by the Redemption Holder.

"Redemption Holder" means the Servicer, or, if APL is no longer the Servicer as of the date notice of redemption is given to the Indenture Trustee and the Paying Agent pursuant to the Indenture, then the Administrator.

"Registered Clearing Agency" means, with respect to any Note, the Clearing Agency in whose name (or in whose nominee's name) such Note is registered, which initially shall be DTC.

"Regular Principal Distribution Amount" means, (I) with respect to any Distribution Date for which an Amortization Event does not exist, an amount, not less than zero, equal to the excess of (x) an amount equal to (i) the sum of the Class A Note Balance, the Class B Note Balance, the Class C Note Balance and the Class D Note Balance prior to any distributions on such Distribution Date minus (ii) the sum of the First Priority Principal Distribution Amount, the Second Priority Principal Distribution Amount, the Third Priority Principal Distribution Amount and the Fourth Priority Principal Distribution Amount for such Distribution Date, over (y) an amount equal to the excess of (A) the Pool Balance as of the end of the related Collection Period, over (B) the Required Overcollateralization

Amount for such Distribution Date and (II) with respect to any Distribution Date for which an Amortization Event exists, all remaining Available Funds until the Outstanding Amount of all Classes of Notes has been reduced to zero.

"Regulation S" means Regulation S under the Securities Act.

"Regulation S Global Note" means any Temporary Regulation S Global Note or Permanent Regulation S Global Note.

"Regulation S Note" means any Note offered or sold in reliance on Regulation S.

"Related Documents" means (1) Truth-In-Lending Disclosure, (2) Notice and Consent re Electronic Loan Payments or Notice of Loan Payment Options and Loan Payment Election, as applicable, (3) Authorization to Debit Bank Account or Authorization for Recurring Electronic Fund Transfers, as applicable, (4) Freedom Plus Loan Agreement, Achieve Personal Loan Agreement or Achieve Personal Loans Agreement, as applicable, (5) Dispute Resolution By Binding Arbitration, if applicable, (6) Privacy Policy of the applicable originator, (7) Your Credit Score and the Price You Pay for Credit (with respect to each obligor) and (8) Privacy Policy of Freedom Financial Asset Management or Privacy Policy of Achieve Personal Loans, as applicable; provided, that the documents identified in clauses (2), (3) and (5) will only be included in Related Documents with respect to any Loan to the extent that the applicable Borrower delivered an executed copy of such document prior to the Origination Date.

"Required Class R Noteholders" means the Noteholders and Note Owners of Class R Notes constituting more than 60% of the aggregate notional amount of the Class R Notes, excluding the aggregate notional amount of any Class R Notes held by Non-Voting Class R Noteholders.

"Required Overcollateralization Amount" means, as of any date of determination, an amount equal to the greater of (i) 2.00% of the Cutoff Date Pool Balance and (ii) (1) if no Step-Up Event exists on such date, 21.70% of the Pool Balance as of the end of the most recently ended Collection Period and (2) if a Step-Up Event exists on such date, 29.70% of the Pool Balance as of the end of the most recently ended Collection Period. Notwithstanding the foregoing, the Required Overcollateralization Amount for any Distribution Date after the initial Distribution Date shall not be less than the product of (a) the Overcollateralization Percentage as of the previous Distribution Date and (b) the Pool Balance as of the end of the most recently ended Collection Period.

"Reserve Fund" means the account designated as such, and established and maintained pursuant to the Indenture.

"Reserve Fund Amount" means, with respect to any Distribution Date, the amount on deposit in and available for withdrawal from the Reserve Fund on the related Determination Date.

"Reserve Fund Deficiency" means, as of any date, the excess, if any, of the Reserve Fund Required Amount over the Reserve Fund Amount.

"Reserve Fund Draw Amount" means, with respect to any Distribution Date and the related Collection Period, the lesser of (i) the amount, if any, by which the amounts payable on such Distribution Date pursuant to clauses (i) through (xi) under *"Application of Available Funds—Priority of Payments"* exceed the Available Collections for such Distribution Date and (ii) the Reserve Fund Amount (before giving effect to any deposits to or withdrawals from the Reserve Fund on such Distribution Date); *provided, however*, that the Reserve Fund Draw Amount shall equal the Reserve Fund Amount if (a) the sum of Available Collections and the Reserve Fund Amount equals or exceeds the aggregate Outstanding Amount of all Classes of Rated Notes, accrued and unpaid interest thereon and all amounts required to be paid in respect of Issuer Expenses on such Distribution Date, (b) on the last day of such Collection Period the Pool Balance is zero, (c) such Distribution Date occurs on or after the Maturity Date or (d) the Notes have been accelerated following an Event of Default.

"Reserve Fund Property" means the Reserve Fund and all amounts and other property deposited in or credited to the Reserve Fund.

"Reserve Fund Required Amount" means, with respect to any Distribution Date, an amount equal to the lesser of (i) the Outstanding Amount of all Classes of Rated Notes as of such date prior to giving effect to any payments of principal of or redemptions of the Notes on such Distribution Date and (ii) greater of (x) an amount equal to 0.25% of the Cutoff Date Pool Balance and (y) an amount equal to 0.50% of the aggregate outstanding Principal Balance of all Loans as of the last day of the related Collection Period.

"Retained Interest" has the meaning specified under the heading "*U.S. Credit Risk Retention*".

"Retaining Sponsor" means Jefferies LLC, in its capacity as the risk retention sponsor.

"Retaining Sponsor Retained Notes" has the meaning specified under the heading "*U.S. Credit Risk Retention*".

"Rule 144A" means Rule 144A under the Securities Act.

"Rule 144A Global Note" means any Rule 144A Note issued to the Clearing Agency to represent all or any portion of any Class of Notes.

"Rule 144A Note" means any Note offered and sold pursuant to Rule 144A.

"SEC" means the U.S. Securities and Exchange Commission.

"Second Priority Principal Distribution Amount" means, with respect to any Distribution Date, an amount not less than zero equal to the excess of (x) an amount equal to (I) the sum of the Class A Note Balance and the Class B Note Balance prior to any distributions on such Distribution Date minus (II) the First Priority Principal Distribution Amount for such Distribution Date, over (y) the Pool Balance as of the end of the related Collection Period; *provided, however*, that on or after the Maturity Date of the Class B Notes, the Second Priority Principal Distribution Amount shall not be less than the amount that is necessary to reduce the Class B Note Balance to zero.

"Secured Parties" means the Noteholders, the Indenture Trustee, the Owner Trustee, the Grantor Trust Trustee, the Paying Agent, the Backup Servicer (including in its capacity as Successor Servicer) and the Collateral Agent.

"Securities Act" means the Securities Act of 1933.

"Securitization Transaction" means the securitization transaction described in this Private Placement Memorandum.

"Series B" means Series B, a series of Freedom Consumer Credit Fund, LLC, a Delaware multi-series limited liability company.

"Servicer" means APL, in its capacity as servicer under the Servicing Agreement, and its successors in such capacity (including any Successor Servicer).

"Servicer Event of Default" means any of the events described under "*Description of the Basic Documents – Servicer Events of Default and Termination*".

"Servicing Account Bank" means Wells Fargo Bank, N.A. or any other bank at which a Servicing Collection Account is maintained.

"Servicing Agreement" means the Servicing Agreement, to be dated as of the Closing Date, between the Grantor Trust and the Servicer.

"Servicing Collection Account" means initially, the account established by the Servicer pursuant to the Servicing Agreement at Wells Fargo Bank, N.A., or from time to time such other deposit account maintained at an Eligible Institution designated by the Servicer to the Grantor Trust in a notice pursuant to the Servicing Agreement.

"Servicing Fee" means a servicing fee for each Collection Period, equal to the product of (i) 1.00%, (ii) the average of the aggregate outstanding principal balance of all Loans that are not Severely Delinquent Loans or Charged-Off Loans as of the first day of the related Collection Period and as of the last day of the related Collection Period and (iii) 1/12; *provided* that for the initial Collection Period, such servicing fee shall be equal to the product of (A) the actual number of days of the initial Collection Period divided by 360 (on the basis of a 30-day month), (B) the servicing fee rate of 1.00% and (C) the average of the aggregate outstanding principal balance of all Loans that are not Severely Delinquent Loans or Charged-Off Loans as of the first day of the initial Collection Period and as of the last day of the initial Collection Period.

"Servicing File" means, with respect to any Loan, the items, documents, files and records pertaining to the servicing of such Loan, including, but not limited to, the computer files, data tapes, books, records, notes, copies of the related Portfolio Documents, and all additional documents generated as a result of, or utilized in originating and/or servicing, such Loan, which are delivered to or generated by, the Servicer.

"Servicing Rights" means, with respect to any Loan, (a) any and all rights to service such Loan (including the right to exercise any remedies with respect thereto); (b) the rights to receive, and the proceeds of, servicing and other fees with respect to the servicing of such Loan; (c) all agreements or documents creating, defining or evidencing any such servicing rights to the extent they relate to such servicing rights; (d) all accounts receivable and other rights to payment related to any of the property described in this paragraph; and (e) any and all Servicing Files and other data and information pertaining to such Loan, or pertaining to the past, present or prospective servicing of such Loan.

"Severely Delinquent Loan" means any Loan that is not a Charged-Off Loan and with respect to which any scheduled payment remains unpaid for more than ninety (90) days from the related due date.

"Similar Laws" means provisions under federal, state, local or non-U.S. laws or regulations that are substantially similar to the fiduciary responsibility provisions of Title I of ERISA or Section 4975 of the Code.

"Sponsors" means APL and Jefferies LLC.

"Standard & Poor's" means Standard & Poor's Ratings Services, a Standard & Poor's Financial Services LLC business.

"State" means any of the fifty (50) states of the United States or the District of Columbia.

"Statistical Cutoff Date" means the close of business on July 23, 2024.

"Statistical Cutoff Date Pool Balance" means the aggregate principal balance of the Statistical Loan Pool as of the Statistical Cutoff Date.

"Step-Up Event" means with respect to any Distribution Date, the circumstance that the Cumulative Net Loss Ratio for such Distribution Date exceeds the percentage set forth opposite the month of such Distribution Date as specified on Schedule III hereto.

"Structuring Agent" means Jefferies LLC, in its capacity as sole structuring agent.

"Successor Servicer" means (i) the Backup Servicer, (ii) Firstmark, (iii) Vervent or (iv) any other Person so long as at the time of such appointment (a) if any of the Rated Notes are rated by a Rating Agency, Rating Agency Notification is satisfied and (b) such Person services at least $50,000,000 in outstanding principal balance of consumer loans, in each case that is appointed as successor to the Servicer pursuant to the Servicing Agreement.

"Tax Opinion" means, with respect to any action, an Opinion of Counsel to the effect that, for U.S. federal income tax purposes, (a) such action will not cause the Rated Notes of any Outstanding Class of Notes that were characterized as debt at the time of their issuance to be characterized as other than debt, (b) such action will not cause the Issuer or the Grantor Trust to be treated as an association (or publicly traded partnership) taxable as a corporation, (c) such action will not adversely affect the tax characterization of the Grantor Trust, (d) such action will not cause the Issuer to be considered to be engaged in a U.S. trade or business and (e) except to the extent consented to by the applicable affected Noteholder(s), such action will not cause or constitute an event in which gain or loss would be recognized by any Noteholder.

"Temporary Regulation S Global Note" means any temporary Regulation S Note issued to a Clearing Agency to represent all or any portion of any Class of Rated Notes.

"Third Priority Principal Distribution Amount" means, with respect to any Distribution Date, an amount not less than zero equal to the excess of (x) an amount equal to (I) the sum of the Class A Note Balance, the Class B Note Balance and the Class C Note Balance prior to any distributions on such Distribution Date minus (II) the sum of the First Priority Principal Distribution Amount and the Second Priority Principal Distribution Amount for such Distribution Date, over (y) the Pool Balance as of the end of the related Collection Period; *provided, however*, that on or after the Maturity Date of the Class C Notes, the Third Priority Principal Distribution Amount shall not be less than the amount that is necessary to reduce the Class C Note Balance to zero.

"Transition Costs" means all reasonable out-of-pocket costs and expenses incurred in connection with the transfer of servicing, including any reasonable out-of-pocket costs or expenses associated with the complete transfer of all Portfolio Documents, Records and all other items, documents, files and records pertaining to the servicing of a Loan, and the completion, correction or manipulation of such servicing data and information as may be reasonably required by the Grantor Trust (or any Successor Servicer) to correct any errors or insufficiencies in the Portfolio Documents, Records or any other items, documents, files and records pertaining to the servicing of a Loan or such other data and information that prevent the Grantor Trust (or any Successor Servicer) from servicing the Loans in a manner that complies with the Policies and Procedures, but not including overhead or similar internal costs.

"Treasury Regulations" means the regulations promulgated by Treasury under the Code.

"Trust Accounts" means, collectively, the Payment Account and the Reserve Fund.

"Trust Agreement" means the Second Amended and Restated Trust Agreement of the Issuer, to be dated as of the Closing Date, among the Depositor, the Owner Trustee, the Issuer Certificate Registrar, the Paying Agent and the Administrator.

"Trust Estate" shall mean, at any time, the assets of the Issuer at such time, including the Grantor Trust Certificate, regardless of whether such assets are held by the Owner Trustee or any agent or custodian for the Issuer.

"Trust Officer" means, with respect to the Owner Trustee or Grantor Trust Trustee, any managing director, director, vice president, assistant vice president, assistant secretary, assistant treasurer, trust officer or any other officer of the Owner Trustee or Grantor Trust Trustee customarily performing functions similar to those performed by any of the above designated officers and, with respect to a particular corporate trust matter, any other officer to whom such matter is referred because of his or her knowledge of and familiarity with the particular subject and, in each case, having direct responsibility for the administration of the Trust Agreement.

"Trustees" means, collectively, the Owner Trustee, the Indenture Trustee, the Grantor Trust Trustee and the Depositor Trustee.

"UCC" means, unless the context otherwise requires, the Uniform Commercial Code as in effect in the relevant jurisdiction.

"United States" or "U.S." means the United States of America.

"Unremitted Collections Amount" means, with respect to any Loan, all Collections received by the applicable Loan Seller after the Cutoff Date through but excluding the Closing Date that are not remitted to APL in connection with the sale and transfer of such Loan to APL pursuant to a APL Purchase Agreement.

"Verifiable Fraud" means when a Borrower obtains a Loan as a result of (i) verifiable identity theft or (ii) other material fraud in the application process, in each case as determined by APL in its reasonable discretion.

"Vervent" means Vervent Inc., a Delaware corporation.

"WSFS Bank" means Wilmington Savings Fund Society, FSB, a federal savings bank.

"WTNA" means Wilmington Trust, National Association, a national banking association.

INDEX OF DEFINED TERMS

144A Global Note vii
2023 CRB Consent Order 60
AAA 49
Acceptance Identification Document xiv
Account Collateral 210
Accounts 210
Achieve Acceleration Loans 14
Achieve Loan Program 210
Achieve Loans 14
Achieve Personal Loan Criteria 106
Achieve Personal Loan Program 2
Achieve Personal Loans 2, 14, 96
Administration Agreement 210
Administration Fee 210
Administrator 3, 210
Advisers Act 89
Affiliate 210
Amortization Event 210
Ancillary Fees 15, 162
APL 3, 94, 96, 210
APL Purchase Agreement 210
Applicable Anti-Money Laundering Law 210
Applicable Laws 211
ARRC 87
Authoritative Copy 108
Authorized Officer 211
Available Collections 211
Available Collections Advance 212
Available Funds 212
Backup Servicer 2, 212
Backup Servicer Claims 168
Backup Servicer Subcontractor 2
Backup Servicing Agreement 2, 97, 212
Bank Consent Order 88
Bank Program Agreement 212
Bank Purchase Agreement 212
Bankruptcy Code 212
Bankruptcy Loan 212
Barclays 3
Basic Documents 212
beneficial owner xvii
Beneficial Owner xiv
Beneficial Owners xiii
Best Egg loans 53
BOI 37
Book-Entry and Definitive Notes 150
Book-Entry Notes 212
Borrower 212
Bureau 45
Business Day 212
Cede vii
CFL 57
CFPA 84
Charged-Off Loan 212
Claims 164
Class 212
Class A Interest Distributable Amount 213
Class A Interest Rate 213
Class A Note Balance 213
Class A Noteholder 213
Class A Notes 2, 213
Class A Target Note Balance 9, 213
Class A Target Overcollateralization Amount 9, 213
Class AB Notes 2, 213
Class ABC Notes 2, 213
Class ABCD Notes 2, 213
Class B Interest Distributable Amount 213
Class B Interest Rate 213
Class B Note Balance 213
Class B Noteholder 213
Class B Notes 2, 213
Class B Target Note Balance 9, 213
Class B Target Overcollateralization Amount 9, 213
Class C Interest Distributable Amount 214
Class C Interest Rate 214
Class C Note Balance 214
Class C Noteholder 214
Class C Notes 2, 214
Class C Target Note Balance 9, 214
Class C Target Overcollateralization Amount 10, 214
Class D Interest Distributable Amount 214
Class D Interest Rate 214
Class D Note Balance 214
Class D Noteholder 214
Class D Notes 2, 214
Class PT Noteholder 214
Class PT Notes 214
Class R Noteholder 214
Class R Notes 2, 214
Clearing Agency 214
Clearing Agency Participant 215
Clearstream ..... vii, 215
Clearstream Participant 215
Closing Date 3, 215
Code ..... vi, xi, 215
Collateral 215
Collateral Agent 3, 171
Collateral Agent Confirm 215
Collateral Agent Fee 215
Collection Agent 215
Collection Fees 215
Collection Period 215
Collections 215
Colorado Administrator 53

Commissioner 58
Controlling Class 35, 176, 215
Corporate Transparency Act 215
Corporate Trust Office 215
COVID-19 216
CPR 122
CRB Bank Program Agreement 104
CRB Retained Loans 3
CRB Securities 3
Credit Policy 106
Credit Tier 107
Cross River Bank 216
CSBA 57
CSBS 85
CTA xiv
Cumulative Net Loss Amount 216
Cumulative Net Loss Ratio 216
Cutoff Date 216
Cutoff Date Accrued Interest 4, 216
Cutoff Date Pool Balance 216
Damages 158
Data Fields 216
DBRS 16, 206, 216
debt collectors 62
Default 216
Definitive Notes 216
Delinquent Loan 217
Deposit Date 217
Depositor 1, 217
Depositor Purchase Agreement 217
Depositor Trust Agreement 1
Depositor Trustee 217
Determination Date 217
DFS 85
DIDMCA 86
Direct Pay 108
Distribution Compliance Period ..... vii, 217
Distribution Date 217
DISTRIBUTORS xi
Dodd-Frank Act 45
DTC 3, 217
DTC Participant 217
EEA iii
Eligible Consumers 84
Eligible Institution 217
Eligible Investments 217
Eligible Modification 161
Eligible Physical Document Loan 218
EMPLOYEE BENEFIT PLAN xi
Employment Benefit Plan xi
eOriginal 108
ERISA ..... v, xi, 218
ERISA Considerations 17
ERISA Plan 203
E-SIGN 63, 67
Established Securities Market xiii
EU 24
EU CRR 25
EU Delegated Directive iii
EU Investor Requirements 25
EU Prospectus Regulation iii
EU Qualified Investor iii
EU Retail Investor ..... iii, 208
EU Securitization Regulation 25
Euroclear ..... vii, 218
Euroclear Participant 218
EUWA ..... ii, 25, 209
eVault 2
Event of Default 147, 219
Events of Default 13
Exchange Act 219
Exchange Date 142
Exchange Notes 2, 219
Exchangeable Combination 219
Exchangeable Combinations 6
Exchangeable Notes 2, 219
Face Amount 219
FATCA 200, 219
FDIC 45, 83
FDR 70, 83, 104
FDR Complaint 84
FDR Consent Order 84
FFAM 2
FFAM Consent Order 84
FFN 67
FFNF 96, 104
Financial Asset 219
Financial Promotion Order iii
FinCEN 37
First Priority Principal Distribution Amount 219
Firstmark 2, 98, 219
Flow-Through Entity 219
Fourth Priority Principal Distribution Amount 219
FRBNY 87
FSMA ..... ii, 209
Future UK Securitization Rules 26
Global Note 219
Global Notes vii
Glossary 35
Governmental Authority 219
grantor trust 190
Grantor Trust 2, 219
Grantor Trust Agreement 219
Grantor Trust Certificate 6, 220
Grantor Trust Certificate Registrar 3, 220
Grantor Trust Certificateholder 220
Grantor Trust Collateral 220
Grantor Trust Contribution Agreement 220
Grantor Trust Estate 220
Grantor Trust Trustee 3, 220
Grantor Trust Trustee Fee 220
Holder 220

Indemnified Party 163
Indenture.....220
Indenture Trustee.....2, 220
Indenture Trustee Fee 220
Initial Distribution Date.....220
Initial Purchasers 3
Initial Purchasers 221
Insolvency Event 221
Insolvency Laws.....221
Interest Period.....221
Investment Company Act 3, 14
IRS..... xii, 221
Issuer 2, 221
Issuer Certificate Registrar 2, 101, 221
Issuer Collateral.....221
Issuer Expenses 13, 146, 154, 159, 221, 228
Issuer Purchase Agreement.....222
Issuer Trust Certificate 6, 222
Jefferies.....3, 96
KBRA.....16, 206, 222
Law Firm Providers.....85
LIBOR 87
Lien.....222
Liquidation Proceeds 222
List of Purchased Loans 222
Loan.....222
Loan Data 170
Loan Data Agent.....3, 103, 222
Loan Data Agent Agreement.....222
Loan Level Representations 112
Loan Modification 161
Loan Pool.....222
Loan Seller.....3, 222
Loan Seller Retained Notes 4
Loan Sellers.....3
Loan Transfer Documents 222
Loan Transferor 1, 96
Loan Transferor Purchase Agreement 223
Loans 222
Majority Holders.....35, 223
Manual Underwriting System.....106
Marlette.....53
Massachusetts Commissioner.....64
Massachusetts Consent Order.....64
Massachusetts Division 64
Material.....93
Material Adverse Effect.....223
Maturity Date.....223
MiFID II ..... iii, 208
Monthly Payment 223
Monthly Report 223
Moody's.....223
Morgan Stanley 3
Mr. Housser 84
Nelnet 98
Nelnet Loan Seller.....3, 103
Net Proceeds.....223
NLS System.....108
Non-Public Personal Information 223
Non-U.S. Class R Note Owner 190
Non-U.S. Note Owner 190
Non-Voting Class R Noteholder.....36, 223
Note Balance 223
Note Owner 223
Note Owners.....28, 190
Note Purchase Agreement 223
Note Register 223
Note Registrar.....2, 101, 224
Noteholder 224
Notes.....2
Notice of Default 13, 14, 147
NRSRO.....40
OCC.....59
offer 208, 209
Officer's Certificate.....224
OID.....38
Opinion of Counsel.....224
Origination Date 224
Outstanding.....35, 176, 224
Outstanding Amount.....225
Outstanding Amount of all Classes of Notes.....6
Overcollateralization Percentage 225
Owner Trustee 225
Owner Trustee Fee.....225
Partner Bank 3, 225
Partner Banks.....3
Pass-Through Loan Seller.....3, 103
Pass-Through Loan Sellers.....3, 103, 225
Pass-Through Master Trust.....3, 103
Pathward.....3, 225
Pathward Program Agreement.....104
Paying Agent 2, 101, 225
Paying Agent Fee.....225
Payment Account.....225
PDF.....108
Permanent Regulation S Global Note..... vii, 225
Person 225
PHEAA.....46
Plan.....ix, xi, 203, 225
Plan Asset Entity .....ix, xi, 203
Plan Asset Regulation.....225
Plan Assets.....xi
Policies and Procedures 110
Pool Balance 226
Portfolio Documents.....226
PRIIPS Regulation..... iii
Principal Balance.....226
Principal Distribution Allocation.....226
Priority Principal Distribution Amounts.....226
Private Placement Memorandum.....1, 3
Proceeding 226
Prosper.....55

-

Protected Purchaser 226
PTCE 226
Purchase Date 226
Purchase Price 226
Purchase Price Percentage 226
Purchased Loan Assets 226
Purchaser Assignees 104
QIB .....vi, 227
Qualified Institutional Buyer 227
Rated Notes 2, 227
Rating Agency 16, 227
Rating Agency Notification 227
Reasonable Servicer Discretion 227
Record Date 227
Record Retention and Disposal Policy 109
Records 227
Recoveries 227
Redemption Date 227
Redemption Holder 227
Redemption Price 12
Registered Clearing Agency 227
Regular Principal Distribution Amount 227
Regulation S 3, 228
REGULATION S x
Regulation S Global Note 228
Regulation S Global Notes vii
Regulation S Note 228
Related Documents 228
Relevant Persons iii
Required Class R Noteholders 228
Required Overcollateralization Amount 228
Reserve Fund 228
Reserve Fund Amount 228
Reserve Fund Deficiency 228
Reserve Fund Draw Amount 228
Reserve Fund Property 228
Reserve Fund Required Amount 229
Retained Interest 188, 229
Retaining Sponsor 16, 96, 229
Retaining Sponsor Retained Notes 16, 188, 229
Risk Group 107
Rule 144A 3, 229
Rule 144A Global Note 229
Rule 144A Note 229
SCRA 72, 110
SEC 229
Second Circuit 50
Second Priority Principal Distribution Amount 229
Secured Parties 229
Securities Act 3, 229
SECURITIES ACT ix
Securitization Transaction 229
Series B 95, 229
Series B Loan Seller 3, 103
Servicer 229
Servicer Event of Default 164, 229
Servicer Purchase 163
Servicing Account Bank 160, 229
Servicing Agreement 229
Servicing Collection Account 230
Servicing Fee 230
Servicing File 230
Servicing Rights 230
Servicing Transfer 165
Settlement Account 84
Severely Delinquent Loan 230
Similar Laws .....vi, xi, 230
SOFR 87
Special Tax Counsel 190
Sponsor 1, 230
SR Investor 26
Standard & Poor's 230
State 230
Statistical Loan Pool 15
Step-Up Event 10, 230
Structuring Agent 3, 230
Subcontractor 162
Subject New York Loans 50
Substantial Control xiv
Successor Servicer 165, 230
Tax Opinion 231
Temporary Regulation S Global Note ..... vii, 231
Termination Notice 164
The Achieve Loan Program 14
The Loan Data Agent 23
The Owner Trustee 99
Third Priority Principal Distribution Amount 231
Transaction Parties 204
Transfer Notice 167
Transition Costs 231
Treasury Regulations 231
Trust 2
Trust Accounts 231
Trust Agreement 2, 231
Trust Estate 231
Trust Officer 231
Trustees 231
U.S. 231
U.S. Class R Note Owner 190
U.S. Credit Risk Retention 16, 23, 26
U.S. Note Owner 190
U.S. person 139
U.S. Person vii
U.S. persons 22
U.S. Risk Retention Rules 16
UBTI 197
UCC 67, 231
UCCC 53
UCL 57
UETA 63, 67
UK .....ii, 24, 209
UK CRR 26

-

UK Investor Requirements 25
UK MIFIR Product Governance Rules..... ii
UK PRIIPS Regulation..... ii
UK Prospectus Regulation..... ii
UK Qualified Investor ii
UK Retail Investor..... ii, 209
UK Securitization Regulation.....25
Underwriter.....107
United States.....231
United States person 190
United States Person xii
Unremitted Collections Amount.....232
Vault Provider 2
Vault Provider Control Agreement.....2
Verifiable Fraud.....232
Vervent 2, 75, 232
Volcker Rule 17, 206
Weighted average life.....122
Wells Fargo 109
WSFS Bank 3, 98, 232
WTNA 2, 100, 232

-

APPENDIX A

Historical Pool Information

The table below represents the cumulative net loss rates, as of July 31, 2024, of the Achieve Personal Loans originated during each calendar quarter, with period 0 representing the first month of loan origination.

For each quarterly vintage, the cumulative net loss rate is calculated as (a) the sum of all principal balances that have been charged off as of the end of each calendar month since loan origination, (b) less the sum of the aggregate amount of all Liquidation Proceeds and Recoveries received as of the end of each calendar month since loan origination, divided by (c) the original principal balances of the Achieve Personal Loans originated during such calendar quarter.

[Remainder of page intentionally left blank.]

Cumulative Net Loss Rates by Quarter of Origination
Through July 31, 2024
(Achieve Personal Loans)

Age	2017 Q4	2018 Q1	2018 Q2	2018 Q3	2018 Q4	2019 Q1	2019 Q2	2019 Q3	2019 Q4	2020 Q1	2020 Q2	2020 Q3	2020 Q4	2021 Q1	2021 Q2	2021 Q3	2021 Q4	2022 Q1	2022 Q2	2022 Q3	2022 Q4	2023 Q1	2023 Q2	2023 Q3	2023 Q4	2024 Q1	2024 Q2
0	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.01%	0.01%	0.00%	0.00%	0.00%
1	0.00%	0.00%	0.00%	0.01%	0.00%	0.01%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.00%	0.03%	0.01%	0.00%	0.00%	0.03%	0.02%	0.01%	0.00%	0.01%	0.00%
2	0.03%	0.01%	0.02%	0.03%	0.00%	0.01%	0.00%	0.00%	0.00%	0.03%	0.00%	0.00%	0.00%	0.00%	0.00%	0.02%	0.04%	0.03%	0.02%	0.01%	0.01%	0.07%	0.02%	0.02%	0.00%	0.01%	
3	0.05%	0.03%	0.02%	0.03%	0.00%	0.02%	0.01%	0.00%	0.02%	0.03%	0.00%	0.00%	0.00%	0.00%	0.01%	0.03%	0.04%	0.04%	0.03%	0.02%	0.03%	0.09%	0.03%	0.02%	0.01%	0.01%	
4	0.08%	0.04%	0.06%	0.04%	0.02%	0.08%	0.05%	0.04%	0.04%	0.06%	0.00%	0.02%	0.00%	0.01%	0.04%	0.06%	0.08%	0.06%	0.07%	0.09%	0.09%	0.13%	0.09%	0.08%	0.02%	0.12%	
5	0.29%	0.31%	0.56%	0.46%	0.31%	0.43%	0.43%	0.56%	0.45%	0.33%	0.13%	0.13%	0.11%	0.17%	0.21%	0.25%	0.40%	0.48%	0.58%	0.80%	0.69%	0.75%	0.45%	0.45%	0.26%		
6	0.61%	0.62%	1.05%	1.07%	0.97%	1.02%	1.17%	1.24%	0.92%	0.68%	0.24%	0.43%	0.31%	0.39%	0.51%	0.61%	0.96%	1.03%	1.48%	1.81%	1.52%	1.66%	1.12%	1.19%	0.73%		
7	0.99%	1.02%	1.69%	1.63%	1.57%	1.67%	1.95%	1.96%	1.59%	1.01%	0.50%	0.86%	0.54%	0.63%	0.98%	1.10%	1.55%	1.68%	2.35%	2.91%	2.50%	2.55%	1.99%	2.13%	1.26%		
8	1.56%	1.46%	2.16%	2.17%	2.19%	2.32%	2.67%	2.66%	2.20%	1.37%	0.76%	1.15%	0.83%	0.93%	1.33%	1.60%	2.25%	2.59%	3.47%	3.93%	3.54%	3.73%	2.93%	3.02%			
9	2.22%	1.95%	2.65%	2.78%	2.79%	3.00%	3.38%	3.51%	2.74%	1.81%	1.22%	1.45%	1.06%	1.26%	1.81%	2.08%	2.85%	3.30%	4.47%	5.12%	4.72%	4.84%	4.04%	3.88%			
10	2.72%	2.60%	3.15%	3.27%	3.37%	3.78%	4.07%	4.19%	3.14%	2.23%	1.53%	1.73%	1.36%	1.57%	2.15%	2.62%	3.69%	4.16%	5.57%	6.13%	5.77%	6.06%	5.09%	4.97%			
11	3.13%	3.10%	3.69%	3.85%	4.16%	4.52%	4.91%	4.78%	3.60%	2.61%	1.91%	2.15%	1.64%	1.87%	2.50%	3.06%	4.32%	5.04%	6.46%	7.13%	6.83%	7.39%	6.15%				
12	3.70%	3.64%	4.20%	4.36%	4.90%	5.24%	5.64%	5.27%	4.14%	3.05%	2.16%	2.45%	1.96%	2.15%	2.94%	3.52%	5.03%	5.81%	7.50%	7.99%	7.97%	8.62%	7.17%				
13	4.27%	4.05%	4.86%	4.96%	5.58%	5.82%	6.24%	5.76%	4.62%	3.49%	2.54%	2.68%	2.22%	2.43%	3.36%	4.13%	5.72%	6.54%	8.34%	9.00%	9.25%	9.72%	8.27%				
14	4.75%	4.52%	5.51%	5.44%	6.39%	6.35%	6.89%	6.19%	5.13%	3.97%	2.83%	2.97%	2.48%	2.71%	3.82%	4.72%	6.41%	7.26%	9.23%	10.01%	10.48%	10.78%					
15	5.32%	4.98%	6.09%	6.04%	7.15%	7.10%	7.33%	6.66%	5.55%	4.30%	2.97%	3.13%	2.72%	2.96%	4.35%	5.21%	7.16%	7.83%	10.19%	11.12%	11.61%	11.85%					
16	5.79%	5.45%	6.59%	6.56%	7.81%	7.67%	7.79%	7.11%	5.91%	4.61%	3.15%	3.30%	2.90%	3.23%	4.91%	5.83%	7.72%	8.63%	11.07%	12.23%	12.57%	12.89%					
17	6.23%	5.95%	7.05%	7.12%	8.35%	8.21%	8.14%	7.55%	6.29%	4.84%	3.25%	3.58%	3.28%	3.64%	5.34%	6.41%	8.31%	9.28%	11.94%	13.28%	13.47%						
18	6.81%	6.45%	7.46%	7.70%	8.97%	8.62%	8.51%	7.98%	6.65%	5.07%	3.41%	3.80%	3.51%	3.81%	5.74%	7.00%	8.99%	9.94%	12.85%	14.24%	14.19%						
19	7.11%	7.11%	7.97%	8.09%	9.48%	9.01%	8.92%	8.39%	6.94%	5.26%	3.52%	3.99%	3.65%	4.04%	6.31%	7.44%	9.59%	10.60%	13.68%	15.10%	14.96%						
20	7.64%	7.53%	8.33%	8.57%	9.86%	9.30%	9.33%	8.77%	7.28%	5.51%	3.57%	4.11%	3.81%	4.28%	6.67%	7.83%	10.17%	11.27%	14.50%	15.74%							
21	7.96%	7.97%	8.78%	8.96%	10.13%	9.58%	9.66%	9.07%	7.45%	5.73%	3.73%	4.27%	4.02%	4.52%	7.11%	8.21%	10.58%	11.96%	15.29%	16.30%							
22	8.27%	8.27%	9.06%	9.26%	10.35%	9.88%	9.98%	9.26%	7.67%	5.98%	3.96%	4.39%	4.18%	4.78%	7.43%	8.55%	11.15%	12.55%	15.91%	16.91%							
23	8.52%	8.46%	9.40%	9.56%	10.58%	10.13%	10.18%	9.49%	7.83%	6.23%	4.11%	4.52%	4.35%	5.07%	7.74%	8.98%	11.62%	13.16%	16.56%								
24	8.88%	8.73%	9.67%	9.78%	10.82%	10.33%	10.37%	9.67%	7.99%	6.44%	4.26%	4.71%	4.40%	5.30%	8.07%	9.34%	12.13%	13.72%	17.13%								
25	9.08%	8.95%	9.92%	10.01%	11.03%	10.55%	10.53%	9.86%	8.22%	6.60%	4.33%	4.81%	4.62%	5.52%	8.40%	9.69%	12.61%	14.15%	17.59%								
26	9.39%	9.10%	10.18%	10.24%	11.21%	10.74%	10.68%	10.02%	8.45%	6.78%	4.50%	4.98%	4.77%	5.71%	8.74%	10.07%	13.10%	14.50%									
27	9.65%	9.29%	10.33%	10.39%	11.37%	10.90%	10.80%	10.14%	8.66%	6.93%	4.60%	5.13%	4.92%	5.85%	8.95%	10.49%	13.49%	14.81%									
28	9.88%	9.46%	10.40%	10.56%	11.53%	11.02%	10.92%	10.29%	8.81%	7.04%	4.68%	5.34%	4.98%	6.01%	9.36%	10.83%	13.85%	15.18%									
29	10.01%	9.63%	10.55%	10.72%	11.68%	11.19%	11.03%	10.41%	8.94%	7.14%	4.77%	5.46%	5.17%	6.19%	9.59%	11.26%	14.08%										
30	10.16%	9.69%	10.69%	10.89%	11.81%	11.32%	11.13%	10.56%	9.06%	7.21%	4.90%	5.52%	5.32%	6.36%	9.87%	11.54%	14.37%										
31	10.30%	9.75%	10.86%	11.00%	11.95%	11.40%	11.19%	10.64%	9.16%	7.32%	4.98%	5.57%	5.39%	6.49%	10.20%	11.79%	14.68%										
32	10.41%	9.83%	10.92%	11.11%	12.05%	11.49%	11.26%	10.74%	9.25%	7.43%	5.04%	5.64%	5.46%	6.63%	10.46%	11.99%											
33	10.45%	9.88%	11.07%	11.16%	12.10%	11.57%	11.37%	10.83%	9.31%	7.58%	5.07%	5.70%	5.61%	6.78%	10.70%	12.22%											
34	10.49%	9.93%	11.15%	11.20%	12.17%	11.61%	11.47%	10.85%	9.41%	7.69%	5.14%	5.77%	5.70%	6.91%	10.89%	12.39%											
35	10.59%	10.05%	11.20%	11.26%	12.25%	11.68%	11.54%	10.93%	9.49%	7.75%	5.19%	5.82%	5.80%	7.06%	11.08%												
36	10.65%	10.10%	11.26%	11.27%	12.32%	11.76%	11.60%	11.03%	9.59%	7.83%	5.22%	5.91%	5.95%	7.16%	11.23%												
37	10.72%	10.15%	11.31%	11.30%	12.38%	11.84%	11.67%	11.14%	9.63%	7.90%	5.29%	6.00%	6.04%	7.27%	11.35%												
38	10.80%	10.20%	11.39%	11.37%	12.43%	11.86%	11.73%	11.18%	9.73%	7.94%	5.36%	6.15%	6.18%	7.39%													
39	10.86%	10.25%	11.47%	11.39%	12.45%	11.89%	11.78%	11.20%	9.81%	7.98%	5.38%	6.19%	6.24%	7.48%													
40	10.86%	10.25%	11.49%	11.41%	12.49%	11.92%	11.85%	11.26%	9.85%	8.02%	5.43%	6.25%	6.28%	7.60%													
41	10.89%	10.25%	11.52%	11.45%	12.54%	11.97%	11.91%	11.30%	9.95%	8.06%	5.46%	6.30%	6.30%														
42	10.89%	10.26%	11.51%	11.46%	12.59%	12.00%	11.95%	11.35%	9.98%	8.12%	5.52%	6.37%	6.36%														
43	10.90%	10.26%	11.55%	11.45%	12.61%	12.03%	11.99%	11.38%	10.05%	8.17%	5.53%	6.40%	6.38%														
44	10.91%	10.26%	11.53%	11.49%	12.64%	12.05%	12.01%	11.41%	10.11%	8.24%	5.55%	6.41%															
45	10.90%	10.24%	11.54%	11.50%	12.65%	12.08%	12.03%	11.44%	10.15%	8.30%	5.58%	6.44%															
46	10.91%	10.24%	11.53%	11.51%	12.67%	12.10%	12.06%	11.47%	10.20%	8.35%	5.61%	6.45%															
47	10.90%	10.24%	11.53%	11.52%	12.68%	12.11%	12.09%	11.52%	10.27%	8.38%	5.61%																
48	10.93%	10.25%	11.54%	11.54%	12.71%	12.14%	12.11%	11.57%	10.28%	8.41%	5.65%																
49	10.93%	10.26%	11.54%	11.56%	12.74%	12.17%	12.13%	11.58%	10.31%	8.43%	5.67%																
50	10.91%	10.25%	11.56%	11.55%	12.75%	12.18%	12.16%	11.62%	10.34%	8.45%																	

Age	2017 Q4	2018 Q1	2018 Q2	2018 Q3	2018 Q4	2019 Q1	2019 Q2	2019 Q3	2019 Q4	2020 Q1	2020 Q2	2020 Q3	2020 Q4	2021 Q1	2021 Q2	2021 Q3	2021 Q4	2022 Q1	2022 Q2	2022 Q3	2022 Q4	2023 Q1	2023 Q2	2023 Q3	2023 Q4	2024 Q1	2024 Q2
51	10.91%	10.24%	11.56%	11.57%	12.76%	12.20%	12.17%	11.66%	10.37%	8.47%																	
52	10.90%	10.23%	11.56%	11.58%	12.78%	12.20%	12.21%	11.68%	10.40%	8.49%																	
53	10.90%	10.24%	11.55%	11.59%	12.78%	12.21%	12.22%	11.69%	10.42%																		
54	10.88%	10.24%	11.55%	11.58%	12.78%	12.22%	12.23%	11.71%	10.44%																		
55	10.88%	10.24%	11.56%	11.58%	12.78%	12.24%	12.23%	11.72%	10.45%																		
56	10.87%	10.22%	11.56%	11.58%	12.78%	12.26%	12.25%	11.72%																			
57	10.86%	10.22%	11.56%	11.58%	12.80%	12.26%	12.26%	11.74%																			
58	10.84%	10.22%	11.56%	11.58%	12.80%	12.26%	12.26%	11.75%																			
59	10.84%	10.22%	11.56%	11.57%	12.81%	12.27%	12.27%																				
60	10.83%	10.21%	11.56%	11.57%	12.81%	12.27%	12.27%																				
61	10.82%	10.20%	11.56%	11.57%	12.81%	12.27%	12.28%																				
62	10.81%	10.19%	11.55%	11.57%	12.81%	12.28%																					
63	10.81%	10.18%	11.54%	11.56%	12.81%	12.27%																					
64	10.80%	10.18%	11.53%	11.56%	12.80%	12.27%																					
65	10.79%	10.17%	11.53%	11.55%	12.79%																						
66	10.77%	10.17%	11.53%	11.55%	12.79%																						
67	10.77%	10.17%	11.52%	11.54%	12.78%																						
68	10.76%	10.16%	11.51%	11.54%																							
69	10.74%	10.15%	11.51%	11.53%																							
70	10.74%	10.15%	11.49%	11.53%																							
71	10.73%	10.14%	11.49%																								
72	10.72%	10.14%	11.48%																								
73	10.72%	10.14%	11.48%																								
74	10.71%	10.14%																									
75	10.70%	10.13%																									
76	10.70%	10.14%																									
77	10.69%																										
78	10.68%																										
79	10.67%																										

The table below represents the end of period principal balance outstanding, as of July 31, 2024, of the Achieve Personal Loans originated during each calendar quarter, with period 0 representing the first month of loan origination.

[Remainder of page intentionally left blank.]

End of Period Principal Balance Outstanding by Quarter of Origination

Through July 31, 2024

(Achieve Personal Loans)

Total $ Amount Originated	144,399,571	$181,015,774	213,237,061	260,491,383	254,704,433	290,095,439	305,158,584	238,118,576	254,113,443	87,690,915	97,841,680	114,949,944	171,660,675	244,848,425	339,295,496	324,706,625	388,856,992	502,691,357	574,652,728	491,340,097	484,239,121	393,196,304	226,925,178	220,299,464	175,995,623	194,621,912
Age	**2018 Q1**	**2018 Q2**	**2018 Q3**	**2018 Q4**	**2019 Q1**	**2019 Q2**	**2019 Q3**	**2019 Q4**	**2020 Q1**	**2020 Q2**	**2020 Q3**	**2020 Q4**	**2021 Q1**	**2021 Q2**	**2021 Q3**	**2021 Q4**	**2022 Q1**	**2022 Q2**	**2022 Q3**	**2022 Q4**	**2023 Q1**	**2023 Q2**	**2023 Q3**	**2023 Q4**	**2024-Q1**	**2024-Q2**
0	144,157,233	180,457,886	212,518,758	260,075,195	253,854,700	289,293,462	304,292,675	237,208,660	253,141,648	87,269,303	97,545,528	114,691,403	170,880,206	243,816,615	338,185,463	323,606,815	387,332,536	500,749,736	571,837,196	489,227,066	481,903,062	391,552,236	226,011,850	219,614,716	174,469,591	193,506,770
1	140,962,040	176,379,377	207,934,034	255,437,888	248,665,177	283,795,846	298,302,778	232,271,234	247,214,347	85,166,485	95,551,160	112,313,500	166,967,645	239,536,101	333,621,735	317,181,009	379,384,243	491,204,621	560,188,907	478,282,233	471,108,801	383,727,383	221,591,845	215,322,356	170,332,059	189,716,948
2	137,092,195	171,322,060	202,128,955	249,486,363	241,687,829	276,383,912	290,691,609	226,288,046	240,051,870	82,593,287	93,141,694	109,493,426	162,288,309	233,169,558	325,071,146	308,234,156	369,287,053	478,791,472	546,560,087	465,543,957	456,598,310	373,648,278	215,909,047	209,787,274	165,225,844	
3	133,281,956	165,998,107	196,321,415	242,387,385	234,089,637	268,805,616	282,441,113	219,750,689	232,838,925	79,399,292	90,094,654	106,172,088	157,512,789	225,606,507	315,557,097	299,115,435	357,968,291	465,572,018	531,937,989	451,087,641	443,182,196	362,711,149	209,984,420	203,374,555	160,412,715	
4	129,030,050	160,276,783	190,191,082	235,158,172	226,781,245	260,850,461	273,931,831	212,936,789	224,926,711	76,717,569	87,267,822	102,634,308	152,040,111	218,429,287	305,670,383	289,167,935	347,184,771	452,475,924	517,154,874	436,986,781	428,285,568	351,850,653	203,954,628	197,484,528	155,103,114	
5	124,194,471	154,220,794	183,349,365	227,031,993	218,569,182	252,326,583	264,856,826	204,989,308	216,553,272	73,825,592	84,508,464	98,923,549	146,194,534	210,683,427	295,169,734	277,887,947	333,966,684	437,464,335	499,270,797	419,676,561	411,896,353	340,603,539	197,253,148	190,338,011		
6	119,251,492	148,133,647	175,760,643	217,782,015	209,958,145	242,923,690	254,591,177	197,412,921	208,247,301	70,977,120	80,817,153	94,389,161	139,525,341	202,144,396	282,995,091	266,081,936	320,440,416	420,602,843	478,911,252	401,275,158	393,517,363	327,133,572	189,511,620	182,826,856		
7	113,555,869	141,098,764	167,740,549	208,395,306	200,388,671	232,671,452	243,323,023	188,610,374	199,654,931	67,673,897	76,228,546	88,956,107	130,912,781	191,743,866	268,249,243	253,248,284	306,191,638	402,735,106	455,448,041	380,366,718	375,043,464	312,766,216	181,003,660	175,066,651		
8	108,443,168	135,174,185	159,872,602	199,641,191	191,798,604	222,464,372	232,833,472	180,168,461	191,391,690	64,393,655	70,745,986	82,171,838	120,254,794	180,228,867	251,500,882	240,335,699	291,868,844	384,163,085	431,857,645	360,968,958	356,365,218	298,555,692	171,900,864			
9	103,691,359	129,071,732	152,048,560	191,143,609	183,519,988	212,035,492	221,840,889	171,840,224	182,809,370	60,075,239	65,908,769	75,520,106	111,151,961	168,007,418	236,493,379	228,313,273	278,962,105	366,896,142	408,762,428	342,196,346	339,005,627	283,492,291	162,714,423			
10	99,076,430	123,094,858	145,170,568	182,596,791	175,129,436	202,036,271	211,606,048	163,948,952	173,469,329	55,999,646	60,674,737	69,242,867	103,283,418	156,005,624	223,397,786	215,411,234	266,407,017	349,263,213	388,383,942	323,268,482	320,475,426	267,827,439	154,061,486			
11	94,604,762	117,245,343	138,226,480	173,897,672	166,987,694	191,904,648	201,399,362	156,503,423	165,177,436	52,122,700	55,289,861	63,147,668	96,868,581	145,405,638	210,761,713	203,762,693	253,751,533	333,088,388	369,195,471	306,289,333	302,844,334	253,004,647				
12	89,831,597	111,405,077	131,681,982	165,669,451	158,230,664	182,720,109	191,924,866	148,316,303	156,405,804	48,104,496	50,285,348	57,845,918	89,506,466	136,029,409	199,302,690	193,338,454	242,060,324	316,899,907	351,268,568	288,733,819	285,503,023	239,014,256				
13	85,522,163	105,447,222	124,712,352	157,741,162	150,225,598	173,110,504	182,176,302	140,168,328	146,464,714	44,144,437	45,727,236	53,097,648	82,838,400	126,977,544	186,700,346	183,200,290	229,667,656	300,973,748	332,455,136	270,634,912	268,714,794	224,694,390				
14	80,774,825	99,607,822	117,862,474	149,617,533	142,382,045	164,102,306	173,358,112	132,570,806	137,246,168	40,414,696	41,474,243	49,359,025	76,553,164	118,319,085	174,649,980	173,400,294	217,134,976	285,646,751	314,169,896	253,849,956	251,506,816					
15	76,432,072	93,754,376	111,901,187	141,146,101	134,246,669	154,886,147	164,471,861	124,681,159	128,439,516	36,902,100	37,698,029	45,194,420	71,058,085	109,839,390	164,665,706	164,054,567	205,925,779	270,736,189	295,914,900	237,757,275	234,571,758					
16	72,152,205	88,384,977	106,156,193	133,697,316	126,798,992	146,635,244	155,947,746	116,882,693	119,411,790	33,714,338	34,417,299	41,599,850	65,899,214	101,836,828	155,340,850	155,284,584	194,881,422	256,085,382	278,246,291	221,631,238	218,682,014					
17	68,052,992	83,500,104	100,425,290	126,368,637	119,437,178	138,600,414	147,506,873	109,477,039	111,137,497	30,518,705	31,472,569	38,002,417	60,763,150	94,502,533	146,391,696	146,600,941	184,809,425	241,941,124	261,022,278	206,884,437						
18	64,071,219	78,686,144	93,999,538	119,315,519	112,459,221	131,058,414	138,697,427	102,093,255	103,009,782	27,729,390	28,851,357	35,052,238	56,596,888	88,783,085	137,647,402	137,883,859	175,197,188	228,601,734	244,214,283	193,322,902						
19	59,785,051	74,138,706	88,273,497	112,789,470	105,934,461	123,679,373	129,810,388	95,075,681	95,575,727	25,209,031	26,041,851	32,176,840	52,205,864	82,956,364	129,661,290	129,735,545	165,208,597	215,714,672	228,879,891	180,452,368						
20	56,036,501	69,747,679	82,920,021	106,007,462	99,351,245	116,271,703	120,627,839	87,818,433	88,005,853	23,039,331	23,899,288	29,414,420	48,533,357	78,352,888	122,165,429	122,065,568	155,682,229	203,378,064	214,640,565							
21	52,563,638	65,186,995	77,891,194	99,716,070	93,450,505	108,839,545	112,470,829	81,420,729	80,466,305	21,096,415	21,643,386	26,845,754	45,116,483	73,784,274	114,887,514	115,526,377	146,478,603	190,995,017	201,494,621							
22	49,225,439	60,867,273	72,837,813	93,818,023	87,497,145	101,387,449	104,470,525	74,872,495	74,232,298	18,847,801	19,832,612	24,459,865	42,302,412	69,397,736	108,129,869	108,334,880	137,911,635	179,490,991	188,530,716							
23	46,093,938	56,785,509	67,934,644	88,482,841	81,579,323	94,601,143	96,776,053	68,665,440	68,175,415	16,855,860	17,981,604	22,465,609	39,416,847	65,368,158	101,509,855	102,067,339	129,185,606	168,279,282								
24	42,665,286	53,141,307	63,497,043	83,364,290	75,868,104	88,023,435	89,631,493	63,307,235	61,608,983	14,754,263	16,154,804	20,606,207	36,779,229	61,307,462	95,453,780	96,145,093	121,301,458	157,440,305								
25	39,857,737	49,609,016	59,597,745	78,276,361	70,814,281	81,593,864	82,561,933	58,208,531	55,851,689	13,276,520	14,513,826	19,213,911	34,266,017	57,538,326	90,032,781	90,004,183	113,598,160	147,785,018								
26	37,081,460	46,171,879	55,643,816	73,043,172	65,567,465	75,624,644	76,076,285	53,429,125	50,353,356	11,972,879	13,179,086	17,875,899	31,995,962	53,686,151	84,591,996	84,337,550	106,883,619									
27	34,562,779	43,033,311	51,901,974	68,074,819	60,914,381	70,166,159	69,725,954	48,792,232	45,859,515	10,746,274	12,226,762	16,402,111	29,969,564	50,486,152	78,885,136	78,946,469	100,134,624									
28	32,120,596	40,170,885	48,358,573	63,374,452	56,343,307	64,884,476	63,855,349	44,466,271	41,635,095	9,685,118	11,225,960	15,438,803	28,094,302	47,192,330	73,929,853	73,776,186	93,534,001									
29	29,693,419	37,462,106	44,848,751	58,819,606	51,802,725	59,273,334	58,240,746	39,984,536	37,595,036	8,925,839	10,392,443	14,345,048	26,391,368	44,388,000	68,828,585	69,304,709										
30	27,609,446	34,615,351	41,307,392	54,428,164	47,678,419	54,220,769	52,766,228	36,331,839	34,163,315	8,126,685	9,683,605	13,317,543	24,767,546	41,721,842	64,240,818	64,646,898										
31	25,312,193	31,942,996	37,769,478	50,102,527	43,615,882	49,627,014	47,491,441	32,917,782	30,729,786	7,434,288	9,056,112	12,326,187	23,162,111	39,021,348	59,732,333	59,734,668										
32	23,338,183	29,539,785	34,375,441	46,056,233	39,730,511	45,376,261	42,412,608	29,552,163	27,863,602	6,879,266	8,370,649	11,523,895	21,599,961	36,306,067	55,333,247											
33	21,409,747	26,888,011	31,792,139	42,153,698	35,987,628	40,550,317	38,150,167	26,463,093	25,202,849	6,268,274	7,782,481	10,544,711	20,168,718	33,782,537	51,242,686											
34	19,564,543	24,428,922	28,903,673	38,328,859	32,631,818	36,241,078	34,598,134	23,749,712	22,905,484	5,774,655	7,213,598	9,759,952	18,915,684	31,282,301	47,390,528											
35	17,825,725	22,147,450	26,292,334	34,773,970	29,383,815	32,329,409	31,120,770	21,476,587	20,875,518	5,367,732	6,617,753	9,086,153	17,473,887	28,883,659												
36	16,297,447	19,895,736	23,613,590	31,459,713	26,039,262	29,041,121	27,886,207	19,379,128	18,916,437	4,943,482	6,067,027	8,377,066	16,131,540	26,724,520												
37	14,764,004	17,874,093	21,526,139	28,376,414	23,320,414	26,030,482	24,892,999	17,909,670	17,278,983	4,505,882	5,555,700	7,826,267	14,902,490	24,859,842												
38	13,415,671	16,184,377	19,300,465	25,657,342	20,930,804	23,396,335	22,775,736	16,453,230	15,921,413	4,134,558	5,014,510	7,146,879	13,790,407													
39	12,152,968	14,460,984	17,406,963	23,266,724	18,640,198	21,088,565	20,885,355	15,093,888	14,567,177	3,842,095	4,701,216	6,608,587	12,736,302													

Total $ Amount Originated	144,399,571	$181,015,774	213,237,061	260,491,383	254,704,433	290,095,439	305,158,584	238,118,576	254,113,443	87,690,915	97,841,680	114,949,944	171,660,675	244,848,425	339,295,496	324,706,625	388,856,992	502,691,357	574,652,728	491,340,097	484,239,121	393,196,304	226,925,178	220,299,464	175,995,623	194,621,912
Age	**2018 Q1**	**2018 Q2**	**2018 Q3**	**2018 Q4**	**2019 Q1**	**2019 Q2**	**2019 Q3**	**2019 Q4**	**2020 Q1**	**2020 Q2**	**2020 Q3**	**2020 Q4**	**2021 Q1**	**2021 Q2**	**2021 Q3**	**2021 Q4**	**2022 Q1**	**2022 Q2**	**2022 Q3**	**2022 Q4**	**2023 Q1**	**2023 Q2**	**2023 Q3**	**2023 Q4**	**2024-Q1**	**2024-Q2**
40	10,914,386	13,003,518	15,724,618	20,961,859	16,736,152	18,945,898	19,087,078	13,819,104	13,331,837	3,528,537	4,304,449	6,080,924	11,751,217													
41	9,752,105	11,617,579	14,087,001	18,489,804	14,969,145	17,063,129	17,415,888	12,448,903	12,210,481	3,240,631	3,992,795	5,647,631														
42	8,764,733	10,410,633	12,580,477	16,485,084	13,340,031	15,523,276	15,674,601	11,365,161	11,114,076	2,953,536	3,654,359	5,157,123														
43	7,737,077	9,261,391	11,117,421	14,780,666	11,846,490	13,945,418	14,202,812	10,235,101	10,042,396	2,721,466	3,283,276	4,753,440														
44	6,793,351	8,139,642	9,737,887	13,115,240	10,661,565	12,617,484	12,837,287	9,292,121	8,941,279	2,482,176	2,921,637															
45	5,852,154	7,025,987	8,546,543	11,628,000	9,445,542	11,387,954	11,517,830	8,317,875	7,946,993	2,255,936	2,609,986															
46	5,049,174	5,995,465	7,423,740	10,180,230	8,392,296	10,148,474	10,341,139	7,412,560	7,061,129	2,040,762	2,279,196															
47	4,275,683	5,123,864	6,394,192	8,874,136	7,497,577	8,999,703	9,078,610	6,557,337	6,274,837	1,849,465																
48	3,598,273	4,297,811	5,455,948	7,786,821	6,525,935	7,999,679	7,937,486	5,825,846	5,491,389	1,632,403																
49	3,105,768	3,686,455	4,675,240	6,865,073	5,735,219	7,090,731	7,042,543	5,176,029	4,832,531	1,464,308																
50	2,635,005	3,172,380	4,120,048	6,085,950	5,072,556	6,304,426	6,213,065	4,605,939	4,306,424																	
51	2,275,852	2,735,447	3,520,298	5,338,527	4,447,866	5,542,072	5,421,928	4,036,524	3,761,794																	
52	1,934,555	2,336,823	3,062,091	4,669,085	3,909,756	4,747,106	4,735,996	3,488,511	3,262,281																	
53	1,623,339	2,005,844	2,645,841	4,024,881	3,367,308	4,187,338	4,084,241	3,004,832																		
54	1,339,512	1,703,258	2,261,253	3,474,325	2,882,421	3,609,981	3,489,464	2,554,804																		
55	1,066,718	1,399,626	1,894,355	2,942,351	2,406,721	3,063,369	2,923,987	2,154,127																		
56	859,003	1,146,910	1,518,650	2,407,328	1,944,538	2,477,916	2,403,294																			
57	671,908	881,291	1,176,510	1,927,803	1,536,820	1,971,983	1,890,421																			
58	473,153	652,997	882,534	1,446,283	1,163,299	1,520,373	1,448,974																			
59	293,862	433,290	606,479	1,021,494	804,134	1,096,584																				
60	151,655	249,344	354,092	659,465	513,172	700,719																				
61	81,631	137,690	224,266	429,323	317,401	438,183																				
62	45,531	80,421	139,466	306,876	210,307																					
63	33,215	54,666	100,725	219,277	158,201																					
64	24,638	37,940	68,942	154,488	119,530																					
65	18,861	27,884	50,747	122,511																						
66	15,656	17,078	32,911	94,176																						
67	11,873	9,690	26,637	72,512																						
68	8,936	3,889	21,432																							
69	7,587	2,514	15,601																							
70	5,798	244	9,988																							
71	4,389	-																								
72	3,319	-																								
73	2,805	-																								
74	705																									
75	168																									
76	-																									

Prepayments by Quarter of Origination
Through July 31, 2024
(Achieve Personal Loans)

Age	2017 Q4	2018 Q1	2018 Q2	2018 Q3	2018 Q4	2019 Q1	2019 Q2	2019 Q3	2019 Q4	2020 Q1	2020 Q2	2020 Q3	2020 Q4	2021 Q1	2021 Q2	2021 Q3	2021 Q4	2022 Q1	2022 Q2	2022 Q3	2022 Q4	2023 Q1	2023 Q2	2023 Q3	2023 Q4	2024 Q1	2024 Q2
0	2.0%	1.5%	3.1%	3.5%	1.6%	3.5%	2.8%	2.8%	4.0%	4.1%	5.0%	3.1%	2.1%	4.6%	4.3%	3.4%	3.4%	4.0%	4.0%	5.1%	4.4%	5.0%	4.4%	3.6%	2.8%	4.5%	3.8%
1	13.2%	12.7%	14.0%	13.7%	9.3%	12.7%	10.8%	11.0%	12.7%	14.9%	16.2%	13.3%	13.0%	14.5%	9.4%	11.8%	11.7%	12.2%	11.1%	12.2%	13.7%	14.5%	12.5%	11.3%	11.2%	12.5%	11.1%
2	11.4%	12.5%	15.3%	14.8%	10.1%	15.1%	13.6%	12.9%	13.0%	15.5%	17.9%	13.5%	13.6%	15.9%	15.9%	14.0%	16.5%	14.5%	14.4%	12.8%	14.4%	19.1%	15.6%	14.1%	14.2%	17.9%	
3	16.4%	11.2%	15.9%	13.7%	13.5%	16.6%	12.8%	13.9%	14.3%	15.6%	24.1%	18.7%	16.9%	16.0%	20.4%	16.3%	16.4%	17.7%	15.3%	13.8%	17.0%	16.2%	16.9%	14.5%	17.8%	16.1%	
4	15.4%	14.9%	18.7%	15.7%	14.3%	15.3%	14.4%	14.9%	16.0%	18.9%	18.6%	16.6%	19.5%	20.7%	19.0%	17.9%	19.5%	16.5%	15.2%	14.0%	16.4%	19.7%	16.6%	14.9%	15.2%	18.6%	
5	17.3%	17.6%	16.1%	15.7%	15.4%	16.6%	13.2%	13.4%	17.9%	19.0%	20.9%	15.2%	20.4%	22.4%	20.6%	18.8%	21.5%	19.9%	15.0%	13.3%	18.2%	17.8%	14.7%	15.0%	19.7%		
6	21.8%	18.8%	17.3%	18.1%	17.5%	16.5%	14.3%	15.4%	16.7%	18.2%	20.8%	24.2%	28.9%	28.1%	23.7%	23.1%	22.1%	20.2%	14.9%	14.8%	19.3%	19.6%	18.3%	16.8%	20.1%		
7	23.8%	25.1%	22.5%	21.9%	19.5%	21.1%	17.0%	19.7%	21.1%	20.6%	26.8%	34.3%	38.3%	41.5%	31.7%	31.3%	26.6%	22.2%	18.7%	21.3%	24.6%	21.1%	19.8%	19.3%	22.1%		
8	24.5%	21.3%	18.2%	22.3%	17.2%	17.4%	18.5%	18.2%	20.9%	19.5%	27.5%	47.2%	51.8%	55.0%	39.9%	39.4%	27.3%	20.5%	18.3%	23.4%	21.7%	19.6%	19.3%	24.1%			
9	24.1%	18.2%	19.6%	22.6%	17.5%	15.7%	20.3%	20.3%	21.6%	20.9%	40.6%	44.2%	55.0%	49.9%	43.6%	36.8%	26.5%	18.9%	16.7%	22.2%	19.5%	17.8%	20.9%	26.9%			
10	22.7%	15.8%	20.3%	19.2%	19.0%	16.0%	19.9%	19.4%	22.5%	26.4%	41.9%	51.6%	55.1%	45.9%	47.3%	31.2%	28.9%	16.9%	17.6%	19.7%	23.3%	20.9%	25.3%	22.9%			
11	23.2%	16.7%	19.4%	20.3%	17.4%	16.8%	20.5%	21.6%	20.3%	22.9%	41.3%	56.7%	57.8%	38.2%	43.8%	33.0%	27.9%	18.1%	17.2%	17.7%	18.8%	17.8%	23.5%				
12	22.3%	20.5%	21.4%	19.4%	16.5%	20.7%	18.6%	19.9%	24.4%	25.7%	48.5%	57.0%	53.9%	48.5%	39.7%	29.7%	22.8%	16.5%	17.5%	18.1%	20.5%	19.3%	23.0%				
13	19.5%	19.1%	21.4%	22.5%	16.7%	20.6%	23.4%	23.4%	27.0%	34.2%	49.6%	57.5%	52.8%	46.8%	41.0%	34.5%	23.7%	21.0%	20.2%	19.6%	21.7%	21.1%	25.6%				
14	21.0%	23.8%	22.2%	24.8%	17.6%	21.5%	20.5%	20.6%	24.4%	31.4%	51.3%	57.4%	42.9%	46.0%	39.9%	35.4%	22.9%	23.8%	18.7%	19.8%	18.9%	25.1%					
15	21.0%	21.5%	25.1%	16.9%	21.3%	23.0%	26.1%	21.1%	29.2%	34.3%	54.3%	56.6%	52.4%	43.8%	40.9%	28.5%	21.1%	22.3%	18.1%	18.5%	20.5%	25.9%					
16	20.5%	21.8%	23.4%	17.8%	17.3%	21.7%	22.1%	21.0%	31.7%	38.8%	52.1%	52.9%	48.7%	42.3%	40.3%	24.8%	22.7%	19.2%	20.2%	18.1%	25.3%	25.4%					
17	18.9%	21.5%	19.8%	18.8%	20.9%	22.6%	24.1%	22.0%	30.5%	38.3%	58.1%	48.6%	49.3%	43.2%	40.9%	24.4%	23.2%	18.6%	19.1%	18.4%	22.9%						
18	22.2%	20.8%	22.0%	26.4%	20.0%	24.2%	22.4%	26.0%	33.6%	40.5%	53.5%	46.3%	44.5%	39.1%	29.6%	24.6%	23.4%	17.0%	16.2%	20.4%	23.9%						
19	18.4%	24.4%	18.4%	24.7%	18.6%	23.0%	21.5%	28.7%	34.7%	39.0%	53.4%	55.7%	48.6%	44.5%	29.5%	24.3%	22.7%	21.2%	17.1%	19.0%	22.5%						
20	23.7%	21.2%	22.5%	21.4%	24.9%	26.7%	23.0%	33.6%	39.3%	42.4%	50.2%	46.2%	50.4%	36.7%	22.1%	24.2%	23.2%	19.6%	15.9%	20.7%							
21	21.1%	18.6%	22.8%	23.7%	25.1%	23.1%	26.6%	31.2%	37.5%	46.6%	44.6%	51.2%	48.0%	35.3%	22.0%	25.3%	19.5%	17.7%	18.2%	21.0%							
22	25.3%	21.9%	26.3%	27.5%	24.0%	25.3%	29.5%	35.5%	41.7%	37.8%	57.6%	44.1%	49.9%	25.4%	24.8%	24.3%	22.9%	16.4%	19.3%	21.1%							
23	19.8%	23.8%	24.2%	27.9%	20.1%	28.3%	29.9%	35.5%	43.6%	40.1%	56.3%	50.0%	43.9%	27.0%	23.0%	23.1%	18.8%	20.1%	18.8%								
24	22.9%	29.5%	23.1%	25.7%	19.8%	30.1%	31.1%	34.8%	38.0%	50.6%	67.7%	52.5%	46.9%	26.8%	25.1%	22.2%	16.1%	15.8%	21.5%								
25	21.0%	24.8%	25.1%	22.2%	23.4%	27.7%	36.3%	40.8%	40.2%	51.2%	59.2%	57.7%	29.8%	30.5%	24.8%	18.9%	20.4%	21.4%	20.9%								
26	19.6%	28.6%	27.3%	27.1%	31.1%	34.5%	35.9%	40.8%	40.7%	53.2%	54.7%	48.7%	35.2%	30.0%	28.8%	21.4%	18.4%	18.5%									
27	26.7%	25.8%	27.9%	27.5%	30.1%	31.8%	35.2%	44.4%	42.8%	46.4%	58.4%	33.8%	43.1%	29.6%	24.7%	22.2%	19.9%	22.0%									
28	28.2%	26.1%	27.6%	26.8%	29.9%	35.4%	35.9%	42.5%	44.6%	48.4%	55.7%	33.9%	26.9%	25.7%	22.4%	19.8%	21.2%	21.7%									
29	25.7%	28.1%	22.8%	28.9%	30.3%	37.2%	44.1%	44.5%	52.5%	50.6%	40.4%	30.2%	27.3%	23.6%	21.0%	17.5%	18.2%										
30	29.1%	24.4%	28.7%	31.7%	32.4%	36.3%	41.9%	45.9%	44.4%	45.9%	41.2%	28.4%	29.8%	22.3%	16.9%	19.7%	21.4%										
31	34.4%	34.5%	26.5%	37.3%	34.0%	39.1%	40.5%	51.2%	45.2%	50.0%	40.8%	23.6%	36.8%	25.6%	16.1%	23.0%	26.9%										
32	30.9%	26.3%	26.2%	38.2%	34.5%	40.8%	40.5%	53.0%	49.8%	41.5%	29.8%	30.0%	25.5%	25.7%	21.8%	25.8%											
33	25.4%	28.6%	32.5%	26.3%	38.8%	43.3%	53.3%	47.3%	51.6%	37.4%	43.0%	23.6%	35.9%	21.8%	20.0%	22.5%											
34	26.2%	29.4%	34.1%	39.1%	41.3%	41.3%	49.4%	42.0%	44.5%	32.6%	29.9%	23.5%	30.5%	14.1%	25.4%	25.3%											
35	29.1%	24.0%	35.1%	35.3%	40.2%	42.8%	49.5%	42.8%	38.5%	32.4%	21.4%	33.7%	18.2%	25.2%	24.0%												
36	28.4%	22.5%	40.6%	44.4%	39.6%	50.3%	44.2%	42.3%	35.4%	31.9%	26.4%	26.1%	25.2%	25.1%	23.8%												
37	21.9%	34.2%	43.6%	35.7%	43.0%	45.3%	46.6%	46.3%	25.5%	30.5%	36.8%	31.4%	13.6%	25.4%	23.0%												
38	22.2%	33.5%	40.1%	46.2%	44.2%	48.8%	46.7%	34.5%	26.9%	27.1%	32.1%	34.5%	22.9%	22.5%													
39	29.9%	35.1%	42.6%	43.3%	40.9%	53.2%	45.3%	33.2%	28.8%	32.2%	20.3%	7.7%	24.2%	27.4%													
40	39.4%	42.9%	40.8%	41.3%	43.2%	46.3%	43.0%	30.9%	33.0%	31.9%	29.1%	28.9%	29.8%	22.1%													
41	34.0%	45.0%	42.9%	41.4%	52.6%	44.6%	38.3%	31.6%	34.0%	25.8%	29.6%	9.6%	23.1%														
42	37.9%	37.0%	41.6%	43.1%	44.5%	45.4%	30.5%	36.8%	32.0%	25.6%	22.7%	21.8%	27.4%														
43	36.2%	45.6%	37.5%	48.9%	38.8%	45.7%	37.0%	31.8%	31.4%	28.5%	23.7%	35.3%	24.6%														
44	31.4%	44.9%	47.5%	46.8%	42.9%	32.7%	27.4%	28.8%	23.2%	30.7%	23.8%	46.0%															
45	36.3%	54.3%	54.1%	44.2%	39.8%	38.4%	27.1%	32.8%	32.0%	30.1%	23.5%	35.6%															
46	34.8%	47.0%	55.7%	45.1%	44.3%	30.6%	29.6%	26.9%	28.6%	22.9%	18.6%	54.8%															
47	36.4%	50.4%	48.5%	45.3%	42.8%	25.8%	28.6%	35.0%	26.5%	23.2%	23.7%																
48	56.9%	46.9%	52.8%	41.4%	27.3%	33.5%	26.7%	27.4%	25.3%	30.2%	25.8%																
49	46.0%	37.2%	49.5%	44.0%	26.3%	30.1%	30.6%	30.3%	24.8%	32.5%	20.8%																
50	44.6%	57.0%	42.6%	35.6%	27.2%	26.7%	24.3%	23.0%	23.6%	24.4%																	
51	59.8%	47.7%	43.1%	46.6%	33.6%	29.6%	34.0%	27.2%	32.5%	36.4%																	
52	48.6%	48.7%	52.1%	26.9%	25.9%	27.2%	37.9%	29.7%	31.3%	32.7%																	
53	53.0%	46.0%	44.4%	24.4%	34.8%	35.8%	23.7%	34.7%	29.0%																		
54	59.1%	50.0%	31.4%	29.9%	29.9%	27.5%	19.5%	24.9%	32.2%																		
55	46.8%	49.7%	38.4%	35.6%	27.4%	20.9%	28.8%	34.1%	33.0%																		
56	63.1%	34.0%	28.8%	34.7%	36.3%	31.4%	36.7%	37.6%																			
57	31.7%	22.6%	49.1%	43.5%	23.9%	35.1%	30.8%	30.8%																			
58	25.9%	58.7%	37.5%	34.4%	26.0%	29.2%	28.6%	28.6%																			
59	22.9%	38.0%	49.4%	28.9%	33.3%	35.3%	39.2%																				
60	70.3%	29.8%	37.2%	38.4%	27.8%	30.6%	57.9%																				
61	50.0%	71.4%	56.7%	27.0%	31.5%	37.6%	31.2%																				
62	2.5%	50.0%	84.6%	21.4%	12.2%	24.2%																					
63	80.6%	30.6%	64.8%	48.2%	25.4%	6.9%																					
64	35.5%	3.3%	0.5%	11.9%	28.7%	25.3%																					
65	0.0%	12.9%	5.4%	0.0%	1.9%																						
66	6.7%	0.0%	41.7%	0.0%	7.6%																						
67	0.0%	0.0%	58.0%	0.0%	32.0%																						
68	0.0%	0.0%	0.0%	2.8%																							

Age	2017 Q4	2018 Q1	2018 Q2	2018 Q3	2018 Q4	2019 Q1	2019 Q2	2019 Q3	2019 Q4	2020 Q1	2020 Q2	2020 Q3	2020 Q4	2021 Q1	2021 Q2	2021 Q3	2021 Q4	2022 Q1	2022 Q2	2022 Q3	2022 Q4	2023 Q1	2023 Q2	2023 Q3	2023 Q4	2024 Q1	2024 Q2
69	0.0%	0.0%	0.0%	0.0%																							
70	0.0%	0.0%	0.0%	0.0%																							
71	0.0%	0.0%	0.0%																								
72	0.0%	0.1%	0.0%																								
73	0.0%	0.0%	0.0%																								
74	0.0%	0.0%																									
75	0.0%	0.1%																									
76	0.0%	0.0%																									
77	0.0%																										
78	0.0%																										
79	0.0%																										

SCHEDULE I
CUMULATIVE NET LOSS RATIO AMORTIZATION EVENT

Distribution Date	Cumulative Net Loss Ratio
Oct 2024	3.50%
Nov 2024	3.75%
Dec 2024	5.00%
Jan 2025	6.00%
Feb 2025	7.00%
Mar 2025	8.00%
Apr 2025	9.00%
May 2025	10.00%
Jun 2025	11.00%
Jul 2025	12.00%
Aug 2025	13.00%
Sep 2025	14.00%
Oct 2025	15.00%
Nov 2025	16.00%
Dec 2025	17.00%
Jan 2026	18.00%
Feb 2026	19.00%
Mar 2026	20.00%
Apr 2026	20.00%
May 2026	20.00%
Jun 2026 and thereafter	20.00%

SCHEDULE II
CUMULATIVE NET LOSS RATIO STEP-UP EVENT

Distribution Date	Step-Up Event CNL
Oct 2024	3.25%
Nov 2024	3.50%
Dec 2024	3.75%
Jan 2025	4.00%
Feb 2025	4.50%
Mar 2025	5.00%
Apr 2025	5.50%
May 2025	6.00%
Jun 2025	7.00%
Jul 2025	8.00%
Aug 2025	9.00%
Sep 2025	9.50%
Oct 2025	10.00%
Nov 2025	11.00%
Dec 2025	12.00%
Jan 2026	13.00%
Feb 2026	14.00%
Mar 2026	15.00%
Apr 2026	16.00%
May 2026	17.00%
Jun 2026 and thereafter	18.00%

SCHEDULE III

EXCHANGEABLE COMBINATIONS

Exchangeable Combination	Exchange Notes[1]		Exchangeable Notes[1]	
	Class	Principal Amount	Class	Principal Amount
AB	Class A	$126,581,000	Class AB[3]	$188,945,000
	Class B	$62,364,000		

Exchangeable Combination	Exchange Notes[1]		Exchangeable Notes[1]	
	Class	Principal Amount	Class	Principal Amount
ABC	Class A	$126,581,000	Class ABC[3]	$223,523,000
	Class B	$62,364,000		
	Class C	$34,578,000		

Exchangeable Combination	Exchange Notes[1]		Exchangeable Notes[1]	
	Class	Principal Amount	Class	Principal Amount
ABCD	Class A	$126,581,000	Class ABCD[3]	$263,350,000
	Class B	$62,364,000		
	Class C	$34,578,000		
	Class D	$39,827,000		

Exchangeable Combination	Exchange Notes[1]		Exchangeable Notes[1]	
	Class	Principal Amount or Notional Amount	Class	Face Amount
PT	Class A	$126,581,000	Class PT[3]	$263,450,000[4]
	Class B	$62,364,000		
	Class C	$34,578,000		
	Class D	$39,827,000		
	Class R	$100,000[2]		

(1) All or a portion of the Exchange Notes may generally be exchanged for a proportionate interest in the Exchangeable Notes in the applicable combination shown in this Schedule III. All or a portion of the Exchangeable Notes may also be exchanged for the corresponding Exchange Notes in the same manner, and this process may occur repeatedly.
(2) This is a notional amount that is not intended to approximate the offering price or value of the Class R Notes. The Class R Notes will not bear interest.
(3) The interest rate on this Class of Notes for any Interest Period represents the weighted average of the interest rates on the Classes of the corresponding Exchange Notes that are Rated Notes based upon the Note Balance of each Class of such Exchange Notes for such Interest Period.
(4) The amount listed for the Class PT Notes represents the maximum initial Face Amount of Class PT Notes as of the Closing Date, where "Face Amount" means the sum of the principal amount of Rated Notes and the notional amount of Class R Notes represented by the Class PT Notes. If no Class PT Notes are issued on the Closing Date, the Class PT Notes will have an initial Face Amount of $0.

Unless waived by the Issuer in its sole discretion, the Class R Notes will be issued and may only be held in minimum denomination of $1,200 notional amount, which represents 1.2% of the Class R Notes. As a result, any exchange of Exchange Notes into an Exchangeable Note for which one of the separate Classes of Exchange Notes corresponding to such Exchangeable Note is a Class R Note will require the exchange of at least 1.2% of the Outstanding Amount of each of the other separate Classes of Exchange Notes corresponding to such Exchangeable Note.